PSYCHOLOGY

Studies in the Psychology of Sex, Volume 6

Havelock Ellis

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STUDIES IN THE PSYCHOLOGY OF SEX, VOLUME VI

Sex in Relation to Society

by

HAVELOCK ELLIS

1927

PREFACE.

In the previous five volumes of these _Studies_, I have dealt mainly with the sexual impulse in relation to its object, leaving out of account the external persons and the environmental influences which yet may powerfully affect that impulse and its gratification. We cannot afford, however, to pass unnoticed this relationship of the sexual impulse to third persons and to the community at large with all its anciently established traditions. We have to consider sex in relation to society.

In so doing, it will be possible to discuss more summarily than in preceding volumes the manifold and important problems that are presented to us. In considering the more special questions of sexual psychology we entered a neglected field and it was necessary to expend an analytic care and precision which at many points had never been expended before on these questions. But when we reach the relationships of sex to society we have for the most part no such neglect to encounter. The subject of every chapter in the present volume could easily form, and often has formed, the topic of a volume, and the literature of many of these subjects is already extremely voluminous. It must therefore be our main object here not to accumulate details but to place each subject by turn, as clearly and succinctly as may be, in relation to those fundamental principles of sexual psychology which--so far as the data at present admit--have been set forth in the preceding volumes.

It may seem to some, indeed, that in this exposition I should have confined myself to the present, and not included so wide a sweep of the course of human history and the traditions of the race. It may especially seem that I have laid too great a stress on the influence of Christianity in moulding sexual ideals and establishing sexual institutions. That, I am convinced, is an error. It is because it is so frequently made that the movements of progress among us--movements that can never at any period of social history cease--are by many so seriously misunderstood. We cannot escape from our traditions. There never has been, and never can be, any "age of reason." The most ardent co-called "free-thinker," who casts aside as he imagines the authority of the Christian past, is still held by that past. If its traditions are not absolutely in his blood, they are ingrained in the texture of all the social institutions into which he was born and they affect even his modes of thinking. The latest modifications of our institutions are inevitably influenced by the past form of those institutions. We cannot realize where we are, nor whither we are moving, unless we know whence we came. We cannot understand the significance of the changes around us, nor face them with

cheerful confidence, unless we are acquainted with the drift of the great movements that stir all civilization in never-ending cycles.

In discussing sexual questions which are very largely matters of social hygiene we shall thus still be preserving the psychological point of view. Such a point of view in relation to these matters is not only legitimate but necessary. Discussions of social hygiene that are purely medical or purely juridical or purely moral or purely theological not only lead to conclusions that are often entirely opposed to each other but they obviously fail to possess complete applicability to the complex human personality. The main task before us must be to ascertain what best expresses, and what best satisfies, the totality of the impulses and ideas of civilized men and women. So that while we must constantly bear in mind medical, legal, and moral demands--which all correspond in some respects to some individual or social need--the main thing is to satisfy the demands of the whole human person.

It is necessary to emphasize this point of view because it would seem that no error is more common among writers on the hygienic and moral problems of sex than the neglect of the psychological standpoint. They may take, for instance, the side of sexual restraint, or the side of sexual unrestraint, but they fail to realize that so narrow a basis is inadequate for the needs of complex human beings. From the wider psychological standpoint we recognize that we have to conciliate opposing impulses that are both alike founded on the human psychic organism.

In the preceding volumes of these _Studies_ I have sought to refrain from the expression of any personal opinion and to maintain, so far as possible, a strictly objective attitude. In this endeavor, I trust, I have been successful if I may judge from the fact that I have received the sympathy and approval of all kinds of people, not less of the rationalistic free-thinker than of the orthodox believer, of those who accept, as well as of those who reject, our most current standards of morality. This is as it should be, for whatever our criteria of the worth of feelings and of conduct, it must always be of use to us to know what exactly are the feelings of people and how those feelings tend to affect their conduct. In the present volume, however, where social traditions necessarily come in for consideration and where we have to discuss the growth of those traditions in the past and their probable evolution in the future, I am not sanguine that the objectivity of my attitude will be equally clear to the reader. I have here to set down not only what people actually feel and do but what I think they are tending to feel and do. That is a matter of estimation only, however widely and however cautiously it is approached; it cannot be a matter of absolute demonstration. I trust that those who have followed me in the past will bear with me still, even if it is impossible for them always to accept the conclusions I have myself reached.

HAVELOCK ELLIS.

Carbis Bay, Cornwall, England.

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CHAPTER I.

THE MOTHER AND HER CHILD.

The Child's Right to Choose Its Ancestry--How This is Effected--The Mother the Child's Supreme Parent--Motherhood and the Woman Movement--The Immense Importance of Motherhood--Infant Mortality and Its Causes--The Chief Cause in the Mother--The Need of Rest During Pregnancy--Frequency of Premature Birth--The Function of the State--Recent Advance in Puericulture--The Question of Coitus During Pregnancy--The Need of Rest During Lactation--The Mother's Duty to Suckle Her Child--The Economic Question--The Duty of the State--Recent Progress in the Protection of the Mother--The Fallacy of State Nurseries.

A man's sexual nature, like all else that is most essential in him, is rooted in a soil that was formed very long before his birth. In this, as in every other respect, he draws the elements of his life from his ancestors, however new the recombination may be and however greatly it may be modified by subsequent conditions. A man's destiny stands not in the future but in the past. That, rightly considered, is the most vital of all vital facts. Every child thus has a right to choose his own ancestors. Naturally he can only do this vicariously, through his parents. It is the most serious and sacred duty of the future father to choose one half of the ancestral and hereditary character of his future child; it is the most serious and sacred duty of the future mother to make a similar choice.[1] In choosing each other they have between them chosen the whole ancestry of their child. They have determined the stars that will rule his fate.

In the past that fateful determination has usually been made helplessly, ignorantly, almost unconsciously. It has either been guided by an instinct which, on the whole, has worked out fairly well, or controlled by economic interests of the results of which so much cannot be said, or left to the risks of lower than bestial chances which can produce nothing but evil. In the future we cannot but have faith--for all the hope of humanity must rest on that faith--that a new guiding impulse, reinforcing natural instinct and becoming in time an inseparable accompaniment of it, will lead civilized man on his racial course. Just as in the past the race has, on the whole, been moulded by a natural, and in part sexual, selection, that was unconscious of itself and ignorant of the ends it made towards, so in the future the race will be moulded by deliberate selection, the creative energy of Nature becoming self-conscious in the civilized brain of man. This is not a faith which has its source in a vague hope. The problems of the individual life are linked on to the fate of the racial life, and again and again we shall find as we ponder the individual questions we are here concerned with, that at all points they ultimately converge towards this same racial end.

Since we have here, therefore, to follow out the sexual relationships of the individual as they bear on society, it will be convenient at this point to put aside the questions of ancestry and to accept the individual as, with hereditary constitution already determined, he lies in his mother's womb.

It is the mother who is the child's supreme parent. At various points in zoölogical evolution it has seemed possible that the functions that we now know as those of maternity would be largely and even equally shared by the male parent. Nature has

tried various experiments in this direction, among the fishes, for instance, and even among birds. But reasonable and excellent as these experiments were, and though they were sufficiently sound to secure their perpetuation unto this day, it remains true that it was not along these lines that Man was destined to emerge. Among all the mammal predecessors of Man, the male is an imposing and important figure in the early days of courtship, but after conception has once been secured the mother plays the chief part in the racial life. The male must be content to forage abroad and stand on guard when at home in the ante-chamber of the family. When she has once been impregnated the female animal angrily rejects the caresses she had welcomed so coquettishly before, and even in Man the place of the father at the birth of his child is not a notably dignified or comfortable one. Nature accords the male but a secondary and comparatively humble place in the home, the breeding-place of the race; he may compensate himself if he will, by seeking adventure and renown in the world outside. The mother is the child's supreme parent, and during the period from conception to birth the hygiene of the future man can only be affected by influences which work through her.

Fundamental and elementary as is the fact of the predominant position of the mother in relation to the life of the race, incontestable as it must seem to all those who have traversed the volumes of these _Studies_ up to the present point, it must be admitted that it has sometimes been forgotten or ignored. In the great ages of humanity it has indeed been accepted as a central and sacred fact. In classic Rome at one period the house of the pregnant woman was adorned with garlands, and in Athens it was an inviolable sanctuary where even the criminal might find shelter. Even amid the mixed influences of the exuberantly vital times which preceded the outburst of the Renaissance, the ideally beautiful woman, as pictures still show, was the pregnant woman. But it has not always been so. At the present time, for instance, there can be no doubt that we are but beginning to emerge from a period during which this fact was often disputed and denied, both in theory and in practice, even by women themselves. This was notably the case both in England and America, and it is probably owing in large part to the unfortunate infatuation which led women in these lands to follow after masculine ideals that at the present moment the inspirations of progress in women's movements come mainly to-day from the women of other lands. Motherhood and the future of the race were systematically belittled. Paternity is but a mere incident, it was argued, in man's life: why should maternity be more than a mere incident in woman's life? In England, by a curiously perverted form of sexual attraction, women were so fascinated by the glamour that surrounded men that they desired to suppress or forget all the facts of organic constitution which made them unlike men, counting their glory as their shame, and sought the same education as men, the same occupations as men, even the same sports. As we know, there was at the origin an element of rightness in this impulse.[2] It was absolutely right in so far as it was a claim for freedom from artificial restriction, and a demand for economic independence. But it became mischievous and absurd when it developed into a passion for doing, in all respects, the same things as men do; how mischievous and how absurd we may realize if we imagine men developing a passion to imitate the ways and avocations of women. Freedom is only good when it is a freedom to follow

the laws of one's own nature; it ceases to be freedom when it becomes a slavish attempt to imitate others, and would be disastrous if it could be successful.[3]

At the present day this movement on the theoretical side has ceased to possess any representatives who exert serious influence. Yet its practical results are still prominently exhibited in England and the other countries in which it has been felt. Infantile mortality is enormous, and in England at all events is only beginning to show a tendency to diminish; motherhood is without dignity, and the vitality of mothers is speedily crushed, so that often they cannot so much as suckle their infants; ignorant girl-mothers give their infants potatoes and gin; on every hand we are told of the evidence of degeneracy in the race, or if not in the race, at all events, in the young individuals of to-day.

It would be out of place, and would lead us too far, to discuss here these various practical outcomes of the foolish attempt to belittle the immense racial importance of motherhood. It is enough here to touch on the one point of the excess of infantile mortality.

In England--which is not from the social point of view in a very much worse condition than most countries, for in Austria and Russia the infant mortality is higher still, though in Australia and New Zealand much lower, but still excessive--more than one-fourth of the total number of deaths every year is of infants under one year of age. In the opinion of medical officers of health who are in the best position to form an opinion, about one-half of this mortality, roughly speaking, is absolutely preventable. Moreover, it is doubtful whether there is any real movement of decrease in this mortality; during the past half century it has sometimes slightly risen and sometimes slightly fallen, and though during the past few years the general movement of mortality for children under five in England and Wales has shown a tendency to decrease, in London (according to J.F.J. Sykes, although Sir Shirley Murphy has attempted to minimize the significance of these figures) the infantile mortality rate for the first three months of life actually rose from 69 per 1,000 in the period 1888-1892 to 75 per 1,000 in the period 1898-1901. (This refers, it must be remembered, to the period before the introduction of the Notification of Births Act.) In any case, although the general mortality shows a marked tendency to improvement there is certainly no adequately corresponding improvement in the infantile mortality. This is scarcely surprising, when we realize that there has been no change for the better, but rather for the worse, in the conditions under which our infants are born and reared. Thus William Hall, who has had an intimate knowledge extending over fifty-six years of the slums of Leeds, and has weighed and measured many thousands of slum children, besides examining over 120,000 boys and girls as to their fitness for factory labor, states (_British Medical Journal_, October 14, 1905) that "fifty years ago the slum mother was much more sober, cleanly, domestic, and motherly than she is to-day; she was herself better nourished and she almost always suckled her children, and after weaning they received more nutritious bone-making food, and she was able to prepare more wholesome food at home." The system of compulsory education has had an unfortunate influence in exerting a strain on the parents and worsening the conditions of the home. For, excellent as education is in

itself, it is not the primary need of life, and has been made compulsory before the more essential things of life have been made equally compulsory. How absolutely unnecessary this great mortality is may be shown, without evoking the good example of Australia and New Zealand, by merely comparing small English towns; thus while in Guildford the infantile death rate is 65 per thousand, in Burslem it is 205 per thousand.

It is sometimes said that infantile mortality is an economic question, and that with improvement in wages it would cease. This is only true to a limited extent and under certain conditions. In Australia there is no grinding poverty, but the deaths of infants under one year of age are still between 80 and 90 per thousand, and one-third of this mortality, according to Hooper (_British Medical Journal_, 1908, vol. ii, p. 289), being due to the ignorance of mothers and the dislike to suckling, is easily preventable. The employment of married women greatly diminishes the poverty of a family, but nothing can be worse for the welfare of the woman as mother, or for the welfare of her child. Reid, the medical officer of health for Staffordshire, where there are two large centres of artisan population with identical health conditions, has shown that in the northern centre, where a very large number of women are engaged in factories, still-births are three times as frequent as in the southern centre, where there are practically no trade employments for women; the frequency of abnormalities is also in the same ratio. The superiority of Jewish over Christian children, again, and their lower infantile mortality, seem to be entirely due to the fact that Jewesses are better mothers. "The Jewish children in the slums," says William Hall (_British Medical Journal_, October 14, 1905), speaking from wide and accurate knowledge, "were superior in weight, in teeth, and in general bodily development, and they seemed less susceptible to infectious disease. Yet these Jews were overcrowded, they took little exercise, and their unsanitary environment was obvious. The fact was, their children were much better nourished. The pregnant Jewess was more cared for, and no doubt supplied better nutriment to the foetus. After the children were born 90 per cent. received breast-milk, and during later childhood they were abundantly fed on bone-making material; eggs and oil, fish, fresh vegetables, and fruit entered largely into their diet." G. Newman, in his important and comprehensive book on _Infant Mortality_, emphasizes the conclusion that "first of all we need a higher standard of physical motherhood." The problem of infantile mortality, he declares (page 259), is not one of sanitation alone, or housing, or indeed of poverty as such, "_but is mainly a question of motherhood_."

The fundamental need of the pregnant woman is _rest_. Without a large degree of maternal rest there can be no puericulture.[4] The task of creating a man needs the whole of a woman's best energies, more especially during the three months before birth. It cannot be subordinated to the tax on strength involved by manual or mental labor, or even strenuous social duties and amusements. The numerous experiments and observations which have been made during recent years in Maternity Hospitals, more especially in France, have shown conclusively that not only the present and future well-being of the mother and the ease of her confinement, but the fate of the child, are immensely influenced by rest during the last month of pregnancy. "Every working woman is entitled to rest during the last three months of her pregnancy."

This formula was adopted by the International Congress of Hygiene in 1900, but it cannot be practically carried out except by the coöperation of the whole community. For it is not enough to say that a woman ought to rest during pregnancy; it is the business of the community to ensure that that rest is duly secured. The woman herself, and her employer, we may be certain, will do their best to cheat the community, but it is the community which suffers, both economically and morally, when a woman casts her inferior children into the world, and in its own interests the community is forced to control both employer and employed. We can no longer allow it to be said, in Bouchacourt's words, that "to-day the dregs of the human species--the blind, the deaf-mute, the degenerate, the nervous, the vicious, the idiotic, the imbecile, the cretins and epileptics--are better protected than pregnant women."[5]

Pinard, who must always be honored as one of the founders of eugenics, has, together with his pupils, done much to prepare the way for the acceptance of this simple but important principle by making clear the grounds on which it is based. From prolonged observations on the pregnant women of all classes Pinard has shown conclusively that women who rest during pregnancy have finer children than women who do not rest. Apart from the more general evils of work during pregnancy, Pinard found that during the later months it had a tendency to press the uterus down into the pelvis, and so cause the premature birth of undeveloped children, while labor was rendered more difficult and dangerous (see, e.g., Pinard, _Gazette des Hôpitaux_, Nov. 28, 1895, Id., _Annales de Gynécologie_, Aug., 1898).

Letourneux has studied the question whether repose during pregnancy is necessary for women whose professional work is only slightly fatiguing. He investigated 732 successive confinements at the Clinique Baudelocque in Paris. He found that 137 women engaged in fatiguing occupations (servants, cooks, etc.) and not resting during pregnancy, produced children with an average weight of 3,081 grammes; 115 women engaged in only slightly fatiguing occupations (dressmakers, milliners, etc.) and also not resting during pregnancy, had children with an average weight of 3,130 grammes, a slight but significant difference, in view of the fact that the women of the first group were large and robust, while those of the second group were of slight and elegant build. Again, comparing groups of women who rested during pregnancy, it was found that the women accustomed to fatiguing work had children with an average weight of 3,319 grammes, while those accustomed to less fatiguing work had children with an average weight of 3,318 grammes. The difference between repose and non-repose is thus considerable, while it also enables robust women exercising a fatiguing occupation to catch up, though not to surpass, the frailer women exercising a less fatiguing occupation. We see, too, that even in the comparatively unfatiguing occupations of milliners, etc., rest during pregnancy still remains important, and cannot safely be dispensed with. "Society," Letourneux concludes, "must guarantee rest to women not well off during a part of pregnancy. It will be repaid the cost of doing so by the increased vigor of the children thus produced" (Letourneux, _De l'Influence de la Profession de la Mère sur le Poids de l'Enfant_, Thèse de Paris, 1897).

Dr. Dweira-Bernson (_Revue Pratique d'Obstétrique et de Pédiatrie_, 1903, p. 370), compared four groups of pregnant women (servants with light work, servants with heavy work, farm girls, dressmakers) who rested for three months before confinement with four groups similarly composed who took no rest before confinement. In every group he found that the difference in the average weight of the child was markedly in favor of the women who rested, and it was notable that the greatest difference was found in the case of the farm girls who were probably the most robust and also the hardest worked.

The usual time of gestation ranges between 274 and 280 days (or 280 to 290 days from the last menstrual period), and occasionally a few days longer, though there is dispute as to the length of the extreme limit, which some authorities would extend to 300 days, or even to 320 days (Pinard, in Richet's _Dictionnaire de Physiologie_, vol. vii, pp. 150-162; Taylor, _Medical Jurisprudence_, fifth edition, pp. 44, 98 et seq.; L.M. Allen, "Prolonged Gestation," _American Journal Obstetrics_, April, 1907). It is possible, as Müller suggested in 1898 in a Thèse de Nancy, that civilization tends to shorten the period of gestation, and that in earlier ages it was longer than it is now. Such a tendency to premature birth under the exciting nervous influences of civilization would thus correspond, as Bouchacourt has pointed out (_La Grossesse_, p. 113), to the similar effect of domestication in animals. The robust countrywoman becomes transformed into the more graceful, but also more fragile, town woman who needs a degree of care and hygiene which the countrywoman with her more resistant nervous system can to some extent dispense with, although even she, as we see, suffers in the person of her child, and probably in her own person, from the effects of work during pregnancy. The serious nature of this civilized tendency to premature birth--of which lack of rest in pregnancy is, however, only one of several important causes--is shown by the fact that Séropian (_Fréquence Comparée des Causes de l'Accouchement Prématuré_, Thèse de Paris, 1907) found that about one-third of French births (32.28 per cent.) are to a greater or less extent premature. Pregnancy is not a morbid condition; on the contrary, a pregnant woman is at the climax of her most normal physiological life, but owing to the tension thus involved she is specially liable to suffer from any slight shock or strain.

It must be remarked that the increased tendency to premature birth, while in part it may be due to general tendencies of civilization, is also in part due to very definite and preventable causes. Syphilis, alcoholism, and attempts to produce abortion are among the not uncommon causes of premature birth (see, e.g., G.F. McCleary, "The Influence of Antenatal Conditions on Infantile Mortality," _British Medical Journal_, Aug. 13, 1904).

Premature birth ought to be avoided, because the child born too early is insufficiently equipped for the task before him. Astengo, dealing with nearly 19,000 cases at the Lariboisière Hospital in Paris and the Maternité, found, that reckoning from the date of the last menstruation, there is a direct relation between the weight of the infant at birth and the length of the pregnancy. The longer the pregnancy, the finer the child (Astengo, _Rapport du Poids des Enfants à la Durée de la Grossesse_, Thèse de Paris, 1905).

The frequency of premature birth is probably as great in England as in France. Ballantyne states (_Manual of Antenatal Pathology; The Foetus_, p. 456) that for practical purposes the frequency of premature labors in maternity hospitals may be put at 20 per cent., but that if all infants weighing less than 3,000 grammes are to be regarded as premature, it rises to 41.5 per cent. That premature birth is increasing in England seems to be indicated by the fact that during the past twenty-five years there has been a steady rise in the mortality rate from premature birth. McCleary, who discusses this point and considers the increase real, concludes that "it would appear that there has been a diminution in the quality as well as in the quantity of our output of babies" (see also a discussion, introduced by Dawson Williams, on "Physical Deterioration," _British Medical Journal_, Oct. 14, 1905).

It need scarcely be pointed out that not only is immaturity a cause of deterioration in the infants that survive, but that it alone serves enormously to decrease the number of infants that are able to survive. Thus G. Newman states (loc. cit.) that in most large English urban districts immaturity is the chief cause of infant mortality, furnishing about 30 per cent. of the infant deaths; even in London (Islington) Alfred Harris (_British Medical Journal_, Dec. 14, 1907) finds that it is responsible for nearly 17 per cent. of the infantile deaths. It is estimated by Newman that about half of the mothers of infants dying of immaturity suffer from marked ill-health and poor physique; they are not, therefore, fitted to be mothers.

Rest during pregnancy is a very powerful agent in preventing premature birth. Thus Dr. Sarraute-Lourié has compared 1,550 pregnant women at the Asile Michelet who rested before confinement with 1,550 women confined at the Hôpital Lariboisière who had enjoyed no such period of rest. She found that the average duration of pregnancy was at least twenty days shorter in the latter group (Mme. Sarraute-Lourié, _De l'Influence du Repos sur la Durée de la Gestation_, Thèse de Paris, 1899).

Leyboff has insisted on the absolute necessity of rest during pregnancy, as well for the sake of the woman herself as the burden she carries, and shows the evil results which follow when rest is neglected. Railway traveling, horse-riding, bicycling, and sea-voyages are also, Leyboff believes, liable to be injurious to the course of pregnancy. Leyboff recognizes the difficulties which procreating women are placed under by present industrial conditions, and concludes that "it is urgently necessary to prevent women, by law, from working during the last three months of pregnancy; that in every district there should be a maternity fund; that during this enforced rest a woman should receive the same salary as during work." He adds that the children of unmarried mothers should be cared for by the State, that there should be an eight-hours' day for all workers, and that no children under sixteen should be allowed to work (E. Leyboff, _L'Hygiène de la Grossesse_, Thèse de Paris, 1905).

Perruc states that at least two months' rest before confinement should be made compulsory, and that during this period the woman should receive an indemnity regulated by the State. He is of opinion that it should take the form of compulsory assurance, to which the worker, the employer, and the State alike contributed (Perruc, _Assistance aux Femmes Enceintes_, Thèse de Paris, 1905).

It is probable that during the earlier months of pregnancy, work, if not excessively heavy and exhausting, has little or no bad effect; thus Bacchimont (_Documents pour servir a l'Histoire de la Puériculture Intra-utérine_, Thèse de Paris, 1898) found that, while there was a great gain in the weight of children of mothers who had rested for three months, there was no corresponding gain in the children of those mothers who had rested for longer periods. It is during the last three months that freedom, repose, the cessation of the obligatory routine of employment become necessary. This is the opinion of Pinard, the chief authority on this matter. Many, however, fearing that economic and industrial conditions render so long a period of rest too difficult of practical attainment, are, with Clappier and G. Newman, content to demand two months as a minimum; Salvat only asks for one month's rest before confinement, the woman, whether married or not, receiving a pecuniary indemnity during this period, with medical care and drugs free. Ballantyne (_Manual of Antenatal Pathology: The Foetus_, p. 475), as well as Niven, also asks only for one month's compulsory rest during pregnancy, with indemnity. Arthur Helme, however, taking a more comprehensive view of all the factors involved, concludes in a valuable paper on "The Unborn Child: Its Care and Its Rights" (_British Medical Journal_, Aug. 24, 1907), "The important thing would be to prohibit pregnant women from going to work at all, and it is as important from the standpoint of the child that this prohibition should include the early as the late months of pregnancy."

In England little progress has yet been made as regards this question of rest during pregnancy, even as regards the education of public opinion. Sir William Sinclair, Professor of Obstetrics at the Victoria University of Manchester, has published (1907) _A Plea for Establishing Municipal Maternity Homes_. Ballantyne, a great British authority on the embryology of the child, has published a "Plea for a Pre-Maternity Hospital" (_British Medical Journal_, April 6, 1901), has since given an important lecture on the subject (_British Medical Journal_, Jan. 11, 1908), and has further discussed the matter in his _Manual of Ante-Natal Pathology: The Foetus_ (Ch. XXVII); he is, however, more interested in the establishment of hospitals for the diseases of pregnancy than in the wider and more fundamental question of rest for all pregnant women. In England there are, indeed, a few institutions which receive unmarried women, with a record of good conduct, who are pregnant for the first time, for, as Bouchacourt remarks, ancient British prejudices are opposed to any mercy being shown to women who are recidivists in committing the crime of conception.

At present, indeed, it is only in France that the urgent need of rest during the latter months of pregnancy has been clearly realized, and any serious and official attempts made to provide for it. In an interesting Paris thesis (_De la Puériculture avant le Naissance_, 1907) Clappier has brought together much information bearing on the efforts now being made to deal practically with this question. There are many _Asiles_ in Paris for pregnant women. One of the best is the Asile Michelet, founded in 1893 by the Assistance Publique de Paris. This is a sanatorium for pregnant women who have reached a period of seven and a half months. It is nominally restricted to the admission of French women who have been domiciled for a year in Paris, but, in practice, it appears that women from all parts of France are received. They are

employed in light and occasional work for the institution, being paid for this work, and are also occupied in making clothes for the expected baby. Married and unmarried women are admitted alike, all women being equal from the point of view of motherhood, and indeed the majority of the women who come to the Asile Michelet are unmarried, some being girls who have even trudged on foot from Brittany and other remote parts of France, to seek concealment from their friends in the hospitable seclusion of these refuges in the great city. It is not the least advantage of these institutions that they shield unmarried mothers and their offspring from the manifold evils to which they are exposed, and thus tend to decrease crime and suffering. In addition to the maternity refuges, there are institutions in France for assisting with help and advice those pregnant women who prefer to remain at home, but are thus enabled to avoid the necessity for undue domestic labor.

There ought to be no manner of doubt that when, as is the case to-day in our own and some other supposedly civilized countries, motherhood outside marriage is accounted as almost a crime, there is the very greatest need for adequate provision for unmarried women who are about to become mothers, enabling them to receive shelter and care in secrecy, and to preserve their self-respect and social position. This is necessary not only in the interests of humanity and public economy, but also, as is too often forgotten, in the interests of morality, for it is certain that by the neglect to furnish adequate provision of this nature women are driven to infanticide and prostitution. In earlier, more humane days, the general provision for the secret reception and care of illegitimate infants was undoubtedly most beneficial. The suppression of the mediæval method, which in France took place gradually between 1833 and 1862, led to a great increase in infanticide and abortion, and was a direct encouragement to crime and immorality. In 1887 the Conseil Général of the Seine sought to replace the prevailing neglect of this matter by the adoption of more enlightened ideas and founded a _bureau secret d'admission_ for pregnant women. Since then both the abandonment of infants and infanticide have greatly diminished, though they are increasing in those parts of France which possess no facilities of this kind. It is widely held that the State should unify the arrangements for assuring secret maternity, and should, in its own interests, undertake the expense. In 1904 French law ensured the protection of unmarried mothers by guaranteeing their secret, but it failed to organize the general establishment of secret maternities, and has left to doctors the pioneering part in this great and humane public work (A. Maillard-Brune, _Refuges, Maternités, Bureaux d'Admission Secrets, comme Moyens Préservatives des Infanticide_, Thèse de Paris, 1908). It is not among the least benefits of the falling birth rate that it has helped to stimulate this beneficent movement.

The development of an industrial system which subordinates the human body and the human soul to the thirst for gold, has, for a time, dismissed from social consideration the interests of the race and even of the individual, but it must be remembered that this has not been always and everywhere so. Although in some parts of the world the women of savage peoples work up to the time of confinement, it must be remarked that the conditions of work in savage life do not resemble the strenuous and continuous labor of modern factories. In many parts of the world,

however, women are not allowed to work hard during pregnancy and every consideration is shown to them. This is so, for instance, among the Pueblo Indians, and among the Indians of Mexico. Similar care is taken in the Carolines and the Gilbert Islands and in many other regions all over the world. In some places, women are secluded during pregnancy, and in others are compelled to observe many more or less excellent rules. It is true that the assigned cause for these rules is frequently the fear of evil spirits, but they nevertheless often preserve a hygienic value. In many parts of the world the discovery of pregnancy is the sign for a festival of more or less ritual character, and much good advice is given to the expectant mother. The modern Musselmans are careful to guard the health of their women when pregnant, and so are the Chinese.[6] Even in Europe, in the thirteenth century, as Clappier notes, industrial corporations sometimes had regard to this matter, and would not allow women to work during pregnancy. In Iceland, where much of the primitive life of Scandinavian Europe is still preserved, great precautions are taken with pregnant women. They must lead a quiet life, avoid tight garments, be moderate in eating and drinking, take no alcohol, be safeguarded from all shocks, while their husbands and all others who surround them must treat them with consideration, save them from worry and always bear with them patiently.[7]

It is necessary to emphasize this point because we have to realize that the modern movement for surrounding the pregnant woman with tenderness and care, so far from being the mere outcome of civilized softness and degeneracy, is, in all probability, the return on a higher plane to the sane practice of those races which laid the foundations of human greatness.

While rest is the cardinal virtue imposed on a woman during the later months of pregnancy, there are other points in her regimen that are far from unimportant in their bearing on the fate of the child. One of these is the question of the mother's use of alcohol. Undoubtedly alcohol has been a cause of much fanaticism. But the declamatory extravagance of anti-alcoholists must not blind us to the fact that the evils of alcohol are real. On the reproductive process especially, on the mammary glands, and on the child, alcohol has an arresting and degenerative influence without any compensatory advantages. It has been proved by experiments on animals and observations on the human subject that alcohol taken by the pregnant woman passes freely from the maternal circulation to the foetal circulation. Féré has further shown that, by injecting alcohol and aldehydes into hen's eggs during incubation, it is possible to cause arrest of development and malformation in the chick.[8] The woman who is bearing her child in her womb or suckling it at her breast would do well to remember that the alcohol which may be harmless to herself is little better than poison to the immature being who derives nourishment from her blood. She should confine herself to the very lightest of alcoholic beverages in very moderate amounts and would do better still to abandon these entirely and drink milk instead. She is now the sole source of the child's life and she cannot be too scrupulous in creating around it an atmosphere of purity and health. No after-influence can ever compensate for mistakes made at this time.[9]

What is true of alcohol is equally true of other potent drugs and poisons, which should all be avoided so far as possible during pregnancy because of the harmful influence they may directly exert on the embryo. Hygiene is better than drugs, and care should be exercised in diet, which should by no means be excessive. It is a mistake to suppose that the pregnant woman needs considerably more food than usual, and there is much reason to believe not only that a rich meat diet tends to cause sterility but that it is also unfavorable to the development of the child in the womb.[10]

How far, if at all, it is often asked, should sexual intercourse be continued after fecundation has been clearly ascertained? This has not always been found an easy question to answer, for in the human couple many considerations combine to complicate the answer. Even the Catholic theologians have not been entirely in agreement on this point. Clement of Alexandria said that when the seed had been sown the field must be left till harvest. But it may be concluded that, as a rule, the Church was inclined to regard intercourse during pregnancy as at most a venial sin, provided there was no danger of abortion. Augustine, Gregory the Great, Aquinas, Dens, for instance, seem to be of this mind; for a few, indeed, it is no sin at all.[11] Among animals the rule is simple and uniform; as soon as the female is impregnated at the period of oestrus she absolutely rejects all advance of the male until, after birth and lactation are over, another period of oestrus occurs. Among savages the tendency is less uniform, and sexual abstinence, when it occurs during pregnancy, tends to become less a natural instinct than a ritual observance, or a custom now chiefly supported by superstitions. Among many primitive peoples abstinence during the whole of pregnancy is enjoined because it is believed that the semen would kill the foetus.[12]

The Talmud is unfavorable to coitus during pregnancy, and the Koran prohibits it during the whole of the period, as well as during suckling. Among the Hindus, on the other hand, intercourse is continued up to the last fortnight of pregnancy, and it is even believed that the injected semen helps to nourish the embryo (W.D. Sutherland, "Ueber das Alltagsleben und die Volksmedizin unter den Bauern Britischostindiens," _Münchener Medizinische Wochenschrift_, Nos. 12 and 13, 1906). The great Indian physician Susruta, however, was opposed to coitus during pregnancy, and the Chinese are emphatically on the same side.

As men have emerged from barbarism in the direction of civilization, the animal instinct of refusal after impregnation has been completely lost in women, while at the same time both sexes tend to become indifferent to those ritual restraints which at an earlier period were almost as binding as instinct. Sexual intercourse thus came to be practiced after impregnation, much the same as before, as part of ordinary "marital rights," though sometimes there has remained a faint suspicion, reflected in the hesitating attitude of the Catholic Church already alluded to, that such intercourse may be a sinful indulgence. Morality is, however, called in to fortify this indulgence. If the husband is shut out from marital intercourse at this time, it is argued, he will seek extra-marital intercourse, as indeed in some parts of the world it is recognized that he legitimately may; therefore the interests of the wife, anxious to retain her

husband's fidelity, and the interests of Christian morality, anxious to uphold the institution of monogamy, combine to permit the continuation of coitus during pregnancy. The custom has been furthered by the fact that, in civilized women at all events, coitus during pregnancy is usually not less agreeable than at other times and by some women is felt indeed to be even more agreeable.[13] There is also the further consideration, for those couples who have sought to prevent conception, that now intercourse may be enjoyed with impunity. From a higher point of view such intercourse may also be justified, for if, as all the finer moralists of the sexual impulse now believe, love has its value not only in so far as it induces procreation but also in so far as it aids individual development and the mutual good and harmony of the united couple, it becomes morally right during pregnancy.

From an early period, however, great authorities have declared themselves in opposition to the custom of practicing coitus during pregnancy. At the end of the first century, Soranus, the first of great gynæcologists, stated, in his treatise on the diseases of women, that sexual intercourse is injurious throughout pregnancy, because of the movement imparted to the uterus, and especially injurious during the latter months. For more than sixteen hundred years the question, having fallen into the hands of the theologians, seems to have been neglected on the medical side until in 1721 a distinguished French obstetrician, Mauriceau, stated that no pregnant woman should have intercourse during the last two months and that no woman subject to miscarriage should have intercourse at all during pregnancy. For more than a century, however, Mauriceau remained a pioneer with few or no followers. It would be inconvenient, the opinion went, even if it were necessary, to forbid intercourse during pregnancy.[14]

During recent years, nevertheless, there has been an increasingly strong tendency among obstetricians to speak decisively concerning intercourse during pregnancy, either by condemning it altogether or by enjoining great prudence. It is highly probable that, in accordance with the classical experiments of Dareste on chicken embryos, shocks and disturbances to the human embryo may also produce injurious effects on growth. The disturbance due to coitus in the early stages of pregnancy may thus tend to produce malformation. When such conditions are found in the children of perfectly healthy, vigorous, and generally temperate parents who have indulged recklessly in coitus during the early stages of pregnancy it is possible that such coitus has acted on the embryo in the same way as shocks and intoxications are known to act on the embryo of lower organisms. However this may be, it is quite certain that in predisposed women, coitus during pregnancy causes premature birth; it sometimes happens that labor pains begin a few minutes after the act.[15] The natural instinct of animals refuses to allow intercourse during pregnancy; the ritual observance of primitive peoples very frequently points in the same direction; the voice of medical science, so far as it speaks at all, is beginning to utter the same warning, and before long will probably be in a position to do so on the basis of more solid and coherent evidence.

Pinard, the greatest of authorities on puericulture, asserts that there must be complete cessation of sexual intercourse during the whole of pregnancy, and in his

consulting room at the Clinique Baudelocque he has placed a large placard with an "Important Notice" to this effect. Féré was strongly of opinion that sexual relations during pregnancy, especially when recklessly carried out, play an important part in the causation of nervous troubles in children who are of sound heredity and otherwise free from all morbid infection during gestation and development; he recorded in detail a case which he considered conclusive ("L'Influence de l'Incontinence Sexuelle pendant la Gestation sur la Descendance," _Archives de Neurologie_, April, 1905). Bouchacourt discusses the subject fully (_La Grossesse_, pp. 177-214), and thinks that sexual intercourse during pregnancy should be avoided as much as possible. Fürbringer (Senator and Kaminer, _Health and Disease in Relation to Marriage_, vol. i, p. 226) recommends abstinence from the sixth or seventh month, and throughout the whole of pregnancy where there is any tendency to miscarriage, while in all cases much care and gentleness should be exercised.

The whole subject has been investigated in a Paris Thesis by H. Brénot (_De L'Influence de la Copulation pendant la Grossesse_, 1903); he concludes that sexual relations are dangerous throughout pregnancy, frequently provoking premature confinement or abortion, and that they are more dangerous in primiparæ than in multiparæ.

Nearly everything that has been said of the hygiene of pregnancy, and the need for rest, applies also to the period immediately following the birth of the child. Rest and hygiene on the mother's part continue to be necessary alike in her own interests and in the child's. This need has indeed been more generally and more practically recognized than the need for rest during pregnancy. The laws of several countries make compulsory a period of rest from employment after confinement, and in some countries they seek to provide for the remuneration of the mother during this enforced rest. In no country, indeed, is the principle carried out so thoroughly and for so long a period as is desirable. But it is the right principle, and embodies the germ which, in the future, will be developed. There can be little doubt that whatever are the matters, and they are certainly many, which may be safely left to the discretion of the individual, the care of the mother and her child is not among them. That is a matter which, more than any other, concerns the community as a whole, and the community cannot afford to be slack in asserting its authority over it. The State needs healthy men and women, and by any negligence in attending to this need it inflicts serious charges of all sorts upon itself, and at the same time dangerously impairs its efficiency in the world. Nations have begun to recognize the desirability of education, but they have scarcely yet begun to realize that the nationalization of health is even more important than the nationalization of education. If it were necessary to choose between the task of getting children educated and the task of getting them well-born and healthy it would be better to abandon education. There have been many great peoples who never dreamed of national systems of education; there has been no great people without the art of producing healthy and vigorous children.

This matter becomes of peculiar importance in great industrial states like England, the United States, and Germany, because in such states a tacit conspiracy tends to grow up to subordinate national ends to individual ends, and practically to work for

the deterioration of the race. In England, for instance, this tendency has become peculiarly well marked with disastrous results. The interest of the employed woman tends to become one with that of her employer; between them they combine to crush the interests of the child who represents the race, and to defeat the laws made in the interests of the race which are those of the community as a whole. The employed woman wishes to earn as much wages as she can and with as little interruption as she can; in gratifying that wish she is, at the same time, acting in the interests of the employer, who carefully avoids thwarting her.

This impulse on the employed woman's part is by no means always and entirely the result of poverty, and would not, therefore, be removed by raising her wages. Long before marriage, when little more than a child, she has usually gone out to work, and work has become a second nature. She has mastered her work, she enjoys a certain position and what to her are high wages; she is among her friends and companions; the noise and bustle and excitement of the work-room or the factory have become an agreeable stimulant which she can no longer do without. On the other hand, her home means nothing to her; she only returns there to sleep, leaving it next morning at day-break or earlier; she is ignorant even of the simplest domestic arts; she moves about in her own home like a strange and awkward child. The mere act of marriage cannot change this state of things; however willing she may be at marriage to become a domesticated wife, she is destitute alike of the inclination or the skill for domesticity. Even in spite of herself she is driven back to the work-shop, to the one place where she feels really at home.

In Germany women are not allowed to work for four weeks after confinement, nor during the following two weeks except by medical certificate. The obligatory insurance against disease which covers women at confinement assures them an indemnity at this time equivalent to a large part of their wages. Married and unmarried mothers benefit alike. The Austrian law is founded on the same model. This measure has led to a very great decrease in infantile mortality, and, therefore, a great increase in health among those who survive. It is, however, regarded as very inadequate, and there is a movement in Germany for extending the time, for applying the system to a larger number of women, and for making it still more definitely compulsory.

In Switzerland it has been illegal since 1877 for any woman to be received into a factory after confinement, unless she has rested in all for eight weeks, six weeks at least of this period being after confinement. Since 1898 Swiss working women have been protected by law from exercising hard work during pregnancy, and from various other influences likely to be injurious. But this law is evaded in practice, because it provides no compensatory indemnity for the woman. An attempt, in 1899, to amend the law by providing for such indemnity was rejected by the people.

In Belgium and Holland there are laws against women working immediately after confinement, but no indemnity is provided, so that employers and employed combine to evade the law. In France there is no such law, although its necessity has often been emphatically asserted (see, e.g., Salvat, _La Dépopulation de la France_, Thèse de Lyon, 1903).

In England it is illegal to employ a woman "knowingly" in a work-shop within four weeks of the birth of her child, but no provision is made by the law for the compensation of the woman who is thus required to sacrifice herself to the interests of the State. The woman evades the law in tacit collusion with her employers, who can always avoid "knowing" that a birth has taken place, and so escape all responsibility for the mother's employment. Thus the factory inspectors are unable to take action, and the law becomes a dead letter; in 1906 only one prosecution for this offense could be brought into court. By the insertion of this "knowingly" a premium is placed on ignorance. The unwisdom of thus beforehand placing a premium on ignorance has always been more or less clearly recognized by the framers of legal codes even as far back as the days of the Ten Commandments and the laws of Hamurabi. It is the business of the Court, of those who administer the law, to make allowance for ignorance where such allowance is fairly called for; it is not for the law-maker to make smooth the path of the law-breaker. There are evidently law-makers nowadays so scrupulous, or so simple-minded, that they would be prepared to exact that no pickpocket should be prosecuted if he was able to declare on oath that he had no "knowledge" that the purse he had taken belonged to the person he extracted it from.

The annual reports of the English factory inspectors serve to bring ridicule on this law, which looks so wisely humane and yet means nothing, but have so far been powerless to effect any change. These reports show, moreover, that the difficulty is increasing in magnitude. Thus Miss Martindale, a factory inspector, states that in all the towns she visits, from a quiet cathedral city to a large manufacturing town, the employment of married women is rapidly increasing; they have worked in mills or factories all their lives and are quite unaccustomed to cooking, housework and the rearing of children, so that after marriage, even when not compelled by poverty, they prefer to go on working as before. Miss Vines, another factory inspector, repeats the remark of a woman worker in a factory. "I do not need to work, but I do not like staying at home," while another woman said, "I would rather be at work a hundred times than at home. I get lost at home" (_Annual Report Chief Inspector of Factories and Workshops for 1906_, pp. 325, etc.).

It may be added that not only is the English law enjoining four weeks' rest on the mother after childbirth practically inoperative, but the period itself is absurdly inadequate. As a rest for the mother it is indeed sufficient, but the State is still more interested in the child than in its mother, and the child needs the mother's chief care for a much longer period than four weeks. Helme advocates the State prohibition of women's work for at least six months after confinement. Where nurseries are attached to factories, enabling the mother to suckle her infant in intervals of work, the period may doubtless be shortened.

It is important to remember that it is by no means only the women in factories who are induced to work as usual during the whole period of pregnancy, and to return to work immediately after the brief rest of confinement. The Research Committee of the Christian Social Union (London Branch) undertook, in 1905, an inquiry into the employment of women after childbirth. Women in factories and workshops were

excluded from the inquiry which only had reference to women engaged in household duties, in home industries, and in casual work. It was found that the majority carry on their employment right up to the time of confinement and resume it from ten to fourteen days later. The infantile death rate for the children of women engaged only in household duties was greatly lower than that for the children of the other women, while, as ever, the hand-fed infants had a vastly higher death rate than the breast-fed infants (_British Medical Journal_, Oct. 24, 1908, p. 1297).

In the great French gun and armour-plate works at Creuzot (Saône et Loire) the salaries of expectant mothers among the employees are raised; arrangements are made for giving them proper advice and medical attendance; they are not allowed to work after the middle of pregnancy or to return to work after confinement without a medical certificate of fitness. The results are said to be excellent, not only on the health of the mothers, but in the diminution of premature births, the decrease of infantile deaths, and the general prevalence of breast-feeding. It would probably be hopeless to expect many employers in Anglo-Saxon lands to adopt this policy. They are too "practical," they know how small is the money-value of human lives. With us it is necessary for the State to intervene.

There can be no doubt that, on the whole, modern civilized communities are beginning to realize that under the social and economic conditions now tending more and more to prevail, they must in their own interests insure that the mother's best energy and vitality are devoted to the child, both before and after its birth. They are also realizing that they cannot carry out their duty in this respect unless they make adequate provision for the mothers who are thus compelled to renounce their employment in order to devote themselves to their children. We here reach a point at which Individualism is at one with Socialism. The individualist cannot fail to see that it is at all cost necessary to remove social conditions which crush out all individuality; the Socialist cannot fail to see that a society which neglects to introduce order at this central and vital point, the production of the individual, must speedily perish.

It is involved in the proper fulfilment of a mother's relationship to her infant child that, provided she is healthy, she should suckle it. Of recent years this question has become a matter of serious gravity. In the middle of the eighteenth century, when the upper-class women of France had grown disinclined to suckle their own children, Rousseau raised so loud and eloquent a protest that it became once more the fashion for a woman to fulfil her natural duties. At the present time, when the same evil is found once more, and in a far more serious form, for now it is not the small upper-class but the great lower-class that is concerned, the eloquence of a Rousseau would be powerless, for it is not fashion so much as convenience, and especially an intractable economic factor, that is chiefly concerned. Not the least urgent reason for putting women, and especially mothers, upon a sounder economic basis, is the necessity of enabling them to suckle their children.

No woman is sound, healthy, and complete unless she possesses breasts that are beautiful enough to hold the promise of being functional when the time for their exercise arrives, and nipples that can give suck. The gravity of this question to-day is shown by the frequency with which women are lacking in this essential element of

womanhood, and the young man of to-day, it has been said, often in taking a wife, "actually marries but part of a woman, the other part being exhibited in the chemist's shop window, in the shape of a glass feeding-bottle." Blacker found among a thousand patients from the maternity department of University College Hospital that thirty-nine had never suckled at all, seven hundred and forty-seven had suckled all their children, and two hundred and fourteen had suckled only some. The chief reason given for not suckling was absence or insufficiency of milk; other reasons being inability or disinclination to suckle, and refusal of the child to take the breast (Blacker, _Medical Chronicle_, Feb., 1900). These results among the London poor are certainly very much better than could be found in many manufacturing towns where women work after marriage. In the other large countries of Europe equally unsatisfactory results are found. In Paris Madame Dluska has shown that of 209 women who came for their confinement to the Clinique Baudelocque, only 74 suckled their children; of the 135 who did not suckle, 35 were prevented by pathological causes or absence of milk, 100 by the necessities of their work. Even those who suckled could seldom continue more than seven months on account of the physiological strain of work (Dluska, _Contribution à l'Etude de l'Allaitement Maternel_, Thèse de Paris, 1894). Many statistics have been gathered in the German countries. Thus Wiedow (_Centralblatt für Gynäkologie_, No. 29, 1895) found that of 525 women at the Freiburg Maternity only half could suckle thoroughly during the first two weeks; imperfect nipples were noted in 49 cases, and it was found that the development of the nipple bore a direct relation to the value of the breast as a secretory organ. At Munich Escherich and Büller found that nearly 60 per cent. of women of the lower class were unable to suckle their children, and at Stuttgart three-quarters of the child-bearing women were in this condition.

The reasons why children should be suckled at their mothers' breasts are larger than some may be inclined to believe. In the first place the psychological reason is one of no mean importance. The breast with its exquisitely sensitive nipple, vibrating in harmony with the sexual organs, furnishes the normal mechanism by which maternal love is developed. No doubt the woman who never suckles her child may love it, but such love is liable to remain defective on the fundamental and instinctive side. In some women, indeed, whom we may hesitate to call abnormal, maternal love fails to awaken at all until brought into action through this mechanism by the act of suckling.

A more generally recognized and certainly fundamental reason for suckling the child is that the milk of the mother, provided she is reasonably healthy, is the infant's only ideally fit food. There are some people whose confidence in science leads them to believe that it is possible to manufacture foods that are as good or better than mother's milk; they fancy that the milk which is best for the calf is equally best for so different an animal as the baby. These are delusions. The infant's best food is that elaborated in his own mother's body. All other foods are more or less possible substitutes, which require trouble to prepare properly and are, moreover, exposed to various risks from which the mother's milk is free.

A further reason, especially among the poor, against the use of any artificial foods is that it accustoms those around the child to try experiments with its feeding and to fancy that any kind of food they eat themselves may be good for the infant. It thus happens that bread and potatoes, brandy and gin, are thrust into infants' mouths. With the infant that is given the breast it is easier to make plain that, except by the doctor's orders, nothing else must be given.

An additional reason why the mother should suckle her child is the close and frequent association with the child thus involved. Not only is the child better cared for in all respects, but the mother is not deprived of the discipline of such care, and is also enabled from the outset to learn and to understand the child's nature.

The inability to suckle acquires great significance if we realize that it is associated, probably in a large measure as a direct cause, with infantile mortality. The mortality of artificially-fed infants during the first year of life is seldom less than double that of the breast-fed, sometimes it is as much as three times that of the breast-fed, or even more; thus at Derby 51.7 per cent. of hand-fed infants die under the age of twelve months, but only 8.6 per cent. of breast-fed infants. Those who survive are by no means free from suffering. At the end of the first year they are found to weigh about 25 per cent. less than the breast-fed, and to be much shorter; they are more liable to tuberculosis and rickets, with all the evil results that flow from these diseases; and there is some reason to believe that the development of their teeth is injuriously affected. The degenerate character of the artificially-fed is well indicated by the fact that of 40,000 children who were brought for treatment to the Children's Hospital in Munich, 86 per cent. had been brought up by hand, and the few who had been suckled had usually only had the breast for a short time. The evil influence persists even up to adult life. In some parts of France where the wet-nurse industry flourishes so greatly that nearly all the children are brought up by hand, it has been found that the percentage of rejected conscripts is nearly double that for France generally. Corresponding results have been found by Friedjung in a large German athletic association. Among 155 members, 65 per cent. were found on inquiry to have been breast-fed as infants (for an average of six months); but among the best athletes the percentage of breast-fed rose to 72 per cent. (for an average period of nine or ten months), while for the group of 56 who stood lowest in athletic power the percentage of breast-fed fell to 57 (for an average of only three months).

The advantages for an infant of being suckled by its mother are greater than can be accounted for by the mere fact of being suckled rather than hand-fed. This has been shown by Vitrey (_De la Mortalité Infantile_, Thèse de Lyon, 1907), who found from the statistics of the Hôtel-Dieu at Lyons, that infants suckled by their mothers have a mortality of only 12 per cent., but if suckled by strangers, the mortality rises to 33 per cent. It may be added that, while suckling is essential to the complete well-being of the child, it is highly desirable for the sake of the mother's health also. (Some important statistics are summarized in a paper on "Infantile Mortality" in _British Medical Journal_, Nov. 2, 1907), while the various aspects of suckling have been thoroughly discussed by Bollinger, "Ueber Säuglings-Sterblichkeit und die Erbliche functionelle Atrophie der menschlichen Milchdrüse" (_Correspondenzblatt

Deutschen Gesellschaft Anthropologie_, Oct., 1899).

It appears that in Sweden, in the middle of the eighteenth century, it was a punishable offense for a woman to give her baby the bottle when she was able to suckle it. In recent years Prof. Anton von Menger, of Vienna, has argued (in his _Burgerliche Recht und die Besitzlosen Klassen_) that the future generation has the right to make this claim, and he proposes that every mother shall be legally bound to suckle her child unless her inability to do so has been certified by a physician. E.A. Schroeder (_Das Recht in der Geschlechtlichen Ordnung_, 1893, p. 346) also argued that a mother should be legally bound to suckle her infant for at least nine months, unless solid grounds could be shown to the contrary, and this demand, which seems reasonable and natural, since it is a mother's privilege as well as her duty to suckle her infant when able to do so, has been insistently made by others also. It has been supported from the legal side by Weinberg (_Mutterschutz_, Sept., 1907). In France the Loi Roussel forbids a woman to act as a wet-nurse until her child is seven months old, and this has had an excellent effect in lowering infantile mortality (A. Allée, _Puériculture et la Loi Roussel_, Thèse de Paris, 1908). In some parts of Germany manufacturers are compelled to set up a suckling-room in the factory, where mothers can give the breast to the child in the intervals of work. The control and upkeep of these rooms, with provision of doctors and nurses, is undertaken by the municipality (_Sexual-Probleme_, Sept., 1908, p. 573).

As things are to-day in modern industrial countries the righting of these wrongs cannot be left to Nature, that is, to the ignorant and untrained impulses of persons who live in a whirl of artificial life where the voice of instinct is drowned. The mother, we are accustomed to think, may be trusted to see to the welfare of her child, and it is unnecessary, or even "immoral," to come to her assistance. Yet there are few things, I think, more pathetic than the sight of a young Lancashire mother who works in the mills, when she has to stay at home to nurse her sick child. She is used to rise before day-break to go to the mill; she has scarcely seen her child by the light of the sun, she knows nothing of its necessities, the hands that are so skilful to catch the loom cannot soothe the child. The mother gazes down at it in vague, awkward, speechless misery. It is not a sight one can ever forget.

It is France that is taking the lead in the initiation of the scientific and practical movements for the care of the young child before and after birth, and it is in France that we may find the germs of nearly all the methods now becoming adopted for arresting infantile mortality. The village system of Villiers-le-Duc, near Dijon in the Côte d'Or, has proved a germ of this fruitful kind. Here every pregnant woman not able to secure the right conditions for her own life and that of the child she is bearing, is able to claim the assistance of the village authorities; she is entitled, without payment, to the attendance of a doctor and midwife and to one franc a day during her confinement. The measures adopted in this village have practically abolished both maternal and infantile mortality. A few years ago Dr. Samson Moore, the medical officer of health for Huddersfield, heard of this village, and Mr. Benjamin Broadbent, the Mayor of Huddersfield, visited Villiers-le-Duc. It was resolved to initiate in Huddersfield a movement for combating infant mortality. Henceforth arose

what is known as the Huddersfield scheme, a scheme which has been fruitful in splendid results. The points of the Huddersfield scheme are: (1) compulsory notification of births within forty-eight hours; (2) the appointment of lady assistant medical officers of help to visit the home, inquire, advise, and assist; (3) the organized aid of voluntary lady workers in subordination to the municipal part of the scheme; (4) appeal to the medical officer of help when the baby, not being under medical care, fails to thrive. The infantile mortality of Huddersfield has been very greatly reduced by this scheme.[16]

The Huddersfield scheme may be said to be the origin of the English Notification of Births Act, which came into operation in 1908. This Act represents, in England, the national inauguration of a scheme for the betterment of the race, the ultimate results of which it is impossible to foresee. When this Act comes into universal action every baby of the land will be entitled--legally and not by individual caprice or philanthropic condescension--to medical attention from the day of birth, and every mother will have at hand the counsel of an educated woman in touch with the municipal authorities. There could be no greater triumph for medical science, for national efficiency, and the cause of humanity generally. Even on the lower financial plane, it is easy to see that an enormous saving of public and private money will thus be effected. The Act is adoptive, and not compulsory. This was a wise precaution, for an Act of this kind cannot be effectual unless it is carried out thoroughly by the community adopting it, and it will not be adopted until a community has clearly realized its advantages and the methods of attaining them.

An important adjunct of this organization is the School for Mothers. Such schools, which are now beginning to spring up everywhere, may be said to have their origins in the _Consultations de Nourrissons_ (with their offshoot the _Goutte de Lait_), established by Professor Budin in 1892, which have spread all over France and been widely influential for good. At the _Consultations_ infants are examined and weighed weekly, and the mothers advised and encouraged to suckle their children. The _Gouttes_ are practically milk dispensaries where infants for whom breast-feeding is impossible are fed with milk under medical supervision. Schools for Mothers represent an enlargement of the same scheme, covering a variety of subjects which it is necessary for a mother to know. Some of the first of these schools were established at Bonn, at the Bavarian town of Weissenberg, and in Ghent. At some of the Schools for Mothers, and notably at Ghent (described by Mrs. Bertrand Russell in the _Nineteenth Century_, 1906), the important step has been taken of giving training to young girls from fourteen to eighteen; they receive instruction in infant anatomy and physiology, in the preparation of sterilized milk, in weighing children, in taking temperatures and making charts, in managing crêches, and after two years are able to earn a salary. In various parts of England, schools for young mothers and girls on these lines are now being established, first in London, under the auspices of Dr. F.J. Sykes, Medical Officer of Health for St. Pancreas (see, e.g., _A School For Mothers_, 1908, describing an establishment of this kind at Somers Town, with a preface by Sir Thomas Barlow; an account of recent attempts to improve the care of infants in London will also be found in the _Lancet_, Sept. 26, 1908). It may be added that some English municipalities have established depôts for supplying mothers cheaply with

good milk. Such depôts are, however, likely to be more mischievous than beneficial if they promote the substitution of hand-feeding for suckling. They should never be established except in connection with Schools for Mothers, where an educational influence may be exerted, and no mother should be supplied with milk unless she presents a medical certificate showing that she is unable to nourish her child (Byers, "Medical Women and Public Health Questions," _British Medical Journal_, Oct. 6, 1906). It is noteworthy that in England the local authorities will shortly be empowered by law to establish Schools for Mothers.

The great benefits produced by these institutions in France, both in diminishing the infant mortality and in promoting the education of mothers and their pride and interest in their children, have been set forth in two Paris theses by G. Chaignon (_Organisation des Consultations de Nourrissons à la Campagne_, 1908), and Alcide Alexandre (_Consultation de Nourrissons et Goutte de Lait d'Arques_, 1908).

The movement is now spreading throughout Europe, and an International Union has been formed, including all the institutions specially founded for the protection of child life and the promotion of puericulture. The permanent committee is in Brussels, and a Congress of Infant Protection (_Goutte de Lait_) is held every two years.

It will be seen that all the movements now being set in action for the improvement of the race through the child and the child's mother, recognize the intimacy of the relation between the mother and her child and are designed to aid her, even if necessary by the exercise of some pressure, in performing her natural functions in relation to her child. To the theoretical philanthropist, eager to reform the world on paper, nothing seems simpler than to cure the present evils of child-rearing by setting up State nurseries which are at once to relieve mothers of everything connected with the production of the men of the future beyond the pleasure--if such it happens to be--of conceiving them and the trouble of bearing them, and at the same time to rear them up independently of the home, in a wholesome, economical, and scientific manner.[17] Nothing seems simpler, but from the fundamental psychological standpoint nothing is falser. The idea of a State which is outside the community is but a survival in another form of that antiquated notion which compelled Louis XIV to declare "L'Etat c'est moi!" A State which admits that the individuals composing it are incompetent to perform their own most sacred and intimate functions, and takes upon itself to perform them instead, attempts a task which would be undesirable, even if it were possible of achievement. It must always be remembered that a State which proposes to relieve its constituent members of their natural functions and responsibilities attempts something quite different from the State which seeks to aid its members to fulfil their own biological and social functions more adequately. A State which enables its mothers to rest when they are child-bearing is engaged in a reasonable task; a State which takes over its mothers' children is reducing philanthropy to absurdity. It is easy to realize this if we consider the inevitable course of circumstances under a system of "State-nurseries." The child would be removed from its natural mother at the earliest age, but some one has to perform the mother's duties; the substitute must therefore be properly trained for such duties; and in exercising them under favorable circumstances a maternal

relationship is developed between the child and the "mother," who doubtless possesses natural maternal instincts but has no natural maternal bond to the child she is mothering. Such a relationship tends to become on both sides practically and emotionally the real relationship. We very often have opportunity of seeing how unsatisfactory such a relationship becomes. The artificial mother is deprived of a child she had begun to feel her own; the child's emotional relationships are upset, split and distorted; the real mother has the bitterness of feeling that for her child she is not the real mother. Would it not have been much better for all if the State had encouraged the vast army of women it had trained for the position of mothering other women's children, to have, instead, children of their own? The women who are incapable of mothering their own children could then be trained to refrain from bearing them.

Ellen Key (in her _Century of the Child_, and elsewhere) has advocated for all young women a year of compulsory "service," analogous to the compulsory military service imposed in most countries on young men. During this period the girl would be trained in rational housekeeping, in the principles of hygiene, in the care of the sick, and especially in the care of infants and all that concerns the physical and psychic development of children. The principle of this proposal has since been widely accepted. Marie von Schmid (in her _Mutterdienst_, 1907) goes so far as to advocate a general training of young women in such duties, carried on in a kind of enlarged and improved midwifery school. The service would last a year, and the young woman would then be for three years in the reserves, and liable to be called up for duty. There is certainly much to be said for such a proposal, considerably more than is to be said for compulsory military service. For while it is very doubtful whether a man will ever be called on to fight, most women are liable to be called on to exercise household duties or to look after children, whether for themselves or for other people.

FOOTNOTES:

[1] It is not, of course, always literally true that each parent supplies exactly half the heredity, for, as we see among animals generally, the offspring may sometimes approach more nearly to one parent, sometimes to the other, while among plants, as De Vries and others have shown, the heredity may be still more unequally divided.

[2] It should scarcely be necessary to say that to assert that motherhood is a woman's supreme function is by no means to assert that her activities should be confined to the home. That is an opinion which may now be regarded as almost extinct even among those who most glorify the function of woman as mother. As Friedrich Naumann and others have very truly pointed out, a woman is not adequately equipped to fulfil her functions as mother and trainer of children unless she has lived in the world and exercised a vocation.

[3] "Were the capacities of the brain and the heart equal in the sexes," Lily Braun (_Die Frauenfrage_, page 207) well says, "the entry of women into public life would be of no value to humanity, and would even lead to a still wilder competition. Only the

recognition that the entire nature of woman is different from that of man, that it signifies a new vivifying principle in human life, makes the women's movement, in spite of the misconception of its enemies and its friends, a social revolution" (see also Havelock Ellis, _Man and Woman_, fourth edition, 1904, especially Ch. XVIII).

[4] The word "puericulture" was invented by Dr. Caron in 1866 to signify the culture of children after birth. It was Pinard, the distinguished French obstetrician, who, in 1895, gave it a larger and truer significance by applying it to include the culture of children before birth. It is now defined as "the science which has for its end the search for the knowledge relative to the reproduction, the preservation, and the amelioration of the human race" (Péchin, _La Puériculture avant la Naissance_, Thèse de Paris, 1908).

[5] In _La Grossesse_ (pp. 450 et seq.) Bouchacourt has discussed the problems of puericulture at some length.

[6] The importance of antenatal puericulture was fully recognized in China a thousand years ago. Thus Madame Cheng wrote at that time concerning the education of the child: "Even before birth his education may begin; and, therefore, the prospective mother of old, when lying down, lay straight; when sitting down, sat upright; and when standing, stood erect. She would not taste strange flavors, nor have anything to do with spiritualism; if her food were not cut straight she would not eat it, and if her mat were not set straight, she would not sit upon it. She would not look at any objectionable sight, nor listen to any objectionable sound, nor utter any rude word, nor handle any impure thing. At night she studied some canonical work, by day she occupied herself with ceremonies and music. Therefore, her sons were upright and eminent for their talents and virtues; such was the result of antenatal training" (H.A. Giles, "Woman in Chinese Literature," _Nineteenth Century_, Nov., 1904).

[7] Max Bartels, "Isländischer Brauch," etc., _Zeitschrift für Ethnologie_, 1900, p. 65. A summary of the customs of various peoples in regard to pregnancy is given by Ploss and Bartels, _Das Weib_, Sect. XXIX.

[8] On the influence of alcohol during pregnancy on the embryo, see, e.g., G. Newman, _Infant Mortality_, pp. 72-77. W.C. Sullivan (_Alcoholism_, 1906, Ch. XI), summarizes the evidence showing that alcohol is a factor in human degeneration.

[9] There is even reason to believe that the alcoholism of the mother's father may impair her ability as a mother. Bunge (_Die Zunehmende Unfähigkeit der Frauen ihre Kinder zu Stillen_, fifth edition, 1907), from an investigation extending over 2,000 families, finds that chronic alcoholic poisoning in the father is the chief cause of the daughter's inability to suckle, this inability not usually being recovered in subsequent generations. Bunge has, however, been opposed by Dr. Agnes Bluhm, "Die Stillungsnot," _Zeitschrift für Soziale Medizin_, 1908 (fully summarized by herself in _Sexual-Probleme_, Jan., 1909).

[10] See, e.g., T. Arthur Helme, "The Unborn Child," _British Medical Journal_, Aug. 24, 1907. Nutrition should, of course, be adequate. Noel Paton has shown (_Lancet_, July 4, 1903) that defective nutrition of the pregnant woman diminishes

the weight of the offspring.

[11] Debreyne, _Moechialogie_, p. 277. And from the Protestant side see Northcote (_Christianity and Sex Problems_, Ch. IX), who permits sexual intercourse during pregnancy.

[12] See Appendix A to the third volume of these _Studies_; also Ploss and Bartels, loc. cit.

[13] Thus one lady writes: "I have only had one child, but I may say that during pregnancy the desire for union was much stronger, for the whole time, than at any other period." Bouchacourt (_La Grossesse_, pp. 180-183) states that, as a rule, sexual desire is not diminished by pregnancy, and is occasionally increased.

[14] This "inconvenience" remains to-day a stumbling-block with many excellent authorities. "Except when there is a tendency to miscarriage," says Kossmann (Senator and Kaminer, _Health and Disease in Relation to Marriage_, vol. i, p. 257), "we must be very guarded in ordering abstinence from intercourse during pregnancy," and Ballantyne (_The Foetus_, p. 475) cautiously remarks that the question is difficult to decide. Forel also (_Die Sexuelle Frage_, fourth edition, p. 81), who is not prepared to advocate complete sexual abstinence during a normal pregnancy, admits that it is a rather difficult question.

[15] This point is discussed, for instance, by Séropian in a Paris Thesis (_Fréquence comparée des Causes de l'Accouchement Prématuré_, 1907); he concludes that coitus during pregnancy is a more frequent cause of premature confinement than is commonly supposed, especially in primiparæ, and markedly so by the ninth month.

[16] "Infantile Mortality: The Huddersfield Scheme," _British Medical Journal_, Dec., 1907; Samson Moore, "Infant Mortality," ib., August 29, 1908.

[17] Ellen Key has admirably dealt with proposals of this kind (as put forth by C.P. Stetson) in her Essays "On Love and Marriage." In opposition to such proposals Ellen Key suggests that such women as have been properly trained for maternal duties and are unable entirely to support themselves while exercising them should be subsidized by the State during the child's first three years of life. It may be added that in Leipzig the plan of subsidizing mothers who (under proper medical and other supervision) suckle their infants has already been introduced.

CHAPTER II.

SEXUAL EDUCATION.

Nurture Necessary as Well as Breed--Precocious Manifestations of the Sexual Impulse--Are They to be Regarded as Normal?--The Sexual Play of Children--The Emotion of Love in Childhood--Are Town Children More Precocious Sexually Than Country Children?--Children's Ideas Concerning the Origin of Babies--Need for Beginning the Sexual Education of Children in Early Years--The Importance of Early Training in Responsibility--Evil of the Old Doctrine of Silence in Matters of Sex--The Evil Magnified When Applied to Girls--The Mother the Natural and Best Teacher--The

Morbid Influence of Artificial Mystery in Sex Matters--Books on Sexual Enlightenment of the Young--Nature of the Mother's Task--Sexual Education in the School--The Value of Botany--Zoölogy--Sexual Education After Puberty--The Necessity of Counteracting Quack Literature--Danger of Neglecting to Prepare for the First Onset of Menstruation--The Right Attitude Towards Woman's Sexual Life--The Vital Necessity of the Hygiene of Menstruation During Adolescence--Such Hygiene Compatible with the Educational and Social Equality of the Sexes--The Invalidism of Women Mainly Due to Hygienic Neglect--Good Influence of Physical Training on Women and Bad Influence of Athletics--The Evils of Emotional Suppression--Need of Teaching the Dignity of Sex--Influence of These Factors on a Woman's Fate in Marriage--Lectures and Addresses on Sexual Hygiene--The Doctor's Part in Sexual Education--Pubertal Initiation Into the Ideal World--The Place of the Religious and Ethical Teacher--The Initiation Rites of Savages Into Manhood and Womanhood--The Sexual Influence of Literature--The Sexual Influence of Art.

It may seem to some that in attaching weight to the ancestry, the parentage, the conception, the gestation, even the first infancy, of the child we are wandering away from the sphere of the psychology of sex. That is far from being the case. We are, on the contrary, going to the root of sex. All our growing knowledge tends to show that, equally with his physical nature, the child's psychic nature is based on breed and nurture, on the quality of the stocks he belongs to, and on the care taken at the early moments when care counts for most, to preserve the fine quality of those stocks.

It must, of course, be remembered that the influences of both breed and nurture are alike influential on the fate of the individual. The influence of nurture is so obvious that few are likely to under-rate it. The influence of breed, however, is less obvious, and we may still meet with persons so ill informed, and perhaps so prejudiced, as to deny it altogether. The growth of our knowledge in this matter, by showing how subtle and penetrative is the influence of heredity, cannot fail to dispel this mischievous notion. No sound civilization is possible except in a community which in the mass is not only well-nurtured but well-bred. And in no part of life so much as in the sexual relationships is the influence of good breeding more decisive. An instructive illustration may be gleaned from the minute and precise history of his early life furnished to me by a highly cultured Russian gentleman. He was brought up in childhood with his own brothers and sisters and a little girl of the same age who had been adopted from infancy, the child of a prostitute who had died soon after the infant's birth. The adopted child was treated as one of the family, and all the children supposed that she was a real sister. Yet from early years she developed instincts unlike those of the children with whom she was nurtured; she lied, she was cruel, she loved to make mischief, and she developed precociously vicious sexual impulses; though carefully educated, she adopted the occupation of her mother, and at the age of twenty-two was exiled to Siberia for robbery and attempt to murder. The child of a chance father and a prostitute mother is not fatally devoted to ruin; but such a child is ill-bred, and that fact, in some cases, may neutralize all the influences of good nurture.

When we reach the period of infancy we have already passed beyond the foundations and potentialities of the sexual life; we are in some cases witnessing its actual beginnings. It is a well-established fact that auto-erotic manifestations may sometimes be observed even in infants of less than twelve months. We are not now called upon to discuss the disputable point as to how far such manifestations at this age can be called normal.[18] A slight degree of menstrual and mammary activity sometimes occurs at birth.[19] It seems clear that nervous and psychic sexual activity has its first springs at this early period, and as the years go by an increasing number of individuals join the stream until at puberty practically all are carried along in the great current.

While, therefore, it is possibly, even probably, true that the soundest and healthiest individuals show no definite signs of nervous and psychic sexuality in childhood, such manifestations are still sufficiently frequent to make it impossible to say that sexual hygiene may be completely ignored until puberty is approaching.

Precocious physical development occurs as a somewhat rare variation. W. Roger Williams ("Precocious Sexual Development with Abstracts of over One Hundred Cases," _British Gynæcological Journal_, May, 1902) has furnished an important contribution to the knowledge of this anomaly which is much commoner in girls than in boys. Roger Williams's cases include only twenty boys to eighty girls, and precocity is not only more frequent but more pronounced in girls, who have been known to conceive at eight, while thirteen is stated to be the earliest age at which boys have proved able to beget children. This, it may be remarked, is also the earliest age at which spermatozoa are found in the seminal fluid of boys; before that age the ejaculations contain no spermatozoa, and, as Fürbringer and Moll have found, they may even be absent at sixteen, or later. In female children precocious sexual development is less commonly associated with general increase of bodily development than in boys. (An individual case of early sexual development in a girl of five has been completely described and figured in the _Zeitschrift für Ethnologie_, 1896, Heft 4, p. 262.)

Precocious sexual impulses are generally vague, occasional, and more or less innocent. A case of rare and pronounced character, in which a child, a boy, from the age of two had been sexually attracted to girls and women, and directed all his thoughts and actions to sexual attempts on them, has been described by Herbert Rich, of Detroit (_Alienist and Neurologist_, Nov., 1905). General evidence from the literature of the subject as to sexual precocity, its frequency and significance, has been brought together by L.M. Terman ("A Study in Precocity," _American Journal Psychology_, April, 1905).

The erections that are liable to occur in male infants have usually no sexual significance, though, as Moll remarks, they may acquire it by attracting the child's attention; they are merely reflex. It is believed by some, however, and notably by Freud, that certain manifestations of infant activity, especially thumb-sucking, are of sexual causation, and that the sexual impulse constantly manifests itself at a very early age. The belief that the sexual instinct is absent in childhood, Freud regards as a serious error, so easy to correct by observation that he wonders how it can have

arisen. "In reality," he remarks, "the new-born infant brings sexuality with it into the world, sexual sensations accompany it through the days of lactation and childhood, and very few children can fail to experience sexual activities and feelings before the period of puberty" (Freud, "Zur Sexuellen Aufklärung der Kinder," _Soziale Medizin und Hygiene_, Bd. ii, 1907; cf., for details, the same author's _Drei Abhandlungen zur Sexualtheorie_, 1905). Moll, on the other hand, considers that Freud's views on sexuality in infancy are exaggerations which must be decisively rejected, though he admits that it is difficult, if not impossible, to differentiate the feelings in childhood (Moll, _Das Sexualleben des Kindes_, p. 154). Moll believes also that psycho-sexual manifestations appearing after the age of eight are not pathological; children who are weakly or of bad heredity are not seldom sexually precocious, but, on the other hand, Moll has known children of eight or nine with strongly developed sexual impulses, who yet become finely developed men.

Rudimentary sexual activities in childhood, accompanied by sexual feelings, must indeed--when they are not too pronounced or too premature--be regarded as coming within the normal sphere, though when they occur in children of bad heredity they are not without serious risks. But in healthy children, after the age of seven or eight, they tend to produce no evil results, and are strictly of the nature of play. Play, both in animals and men, as Groos has shown with marvelous wealth of illustration, is a beneficent process of education; the young creature is thereby preparing itself for the exercise of those functions which in later life it must carry out more completely and more seriously. In his _Spiele der Menschen_, Groos applies this idea to the sexual play of children, and brings forward quotations from literature in evidence. Keller, in his "Romeo und Juliet auf dem Dorfe," has given an admirably truthful picture of these childish love-relationships. Emil Schultze-Malkowsky (_Geschlecht und Gesellschaft_, Bd. ii, p. 370) reproduces some scenes from the life of a little girl of seven clearly illustrating the exact nature of the sexual manifestation at this age.

A kind of rudimentary sexual intercourse between children, as Bloch has remarked (_Beiträge_, etc., Bd. ii, p. 254), occurs in many parts of the world, and is recognized by their elders as play. This is, for instance, the case among the Bawenda of the Transvaal (_Zeitschrift für Ethnologie_, 1896, Heft 4, p. 364), and among the Papuans of Kaiser-Wilhelms-Land, with the approval of the parents, although much reticence is observed (id., 1889, Heft 1, p. 16). Godard (_Egypte et Palestine_, 1867, p. 105) noted the sexual play of the boys and girls in Cairo. In New Mexico W.A. Hammond (_Sexual Impotence_, p. 107) has seen boys and girls attempting a playful sexual conjunction with the encouragement of men and women, and in New York he has seen boys and girls of three and four doing the same in the presence of their parents, with only a laughing rebuke. "Playing at pa and ma" is indeed extremely common among children in genuine innocence, and with a complete absence of viciousness; and is by no means confined to children of low social class. Moll remarks on its frequency (_Libido Sexualis_, Bd. i, p. 277), and the committee of evangelical pastors, in their investigation of German rural morality (_Die Geschlechtliche-sittliche Verhältnisse_, Bd. i, p. 102) found that children who are not yet of school age make attempts at coitus. The sexual play of children is by no means confined to father and mother games; frequently there are games of school with the climax in exposure and

smackings, and occasionally there are games of being doctors and making examinations. Thus a young English woman says: "Of course, when we were at school [at the age of twelve and earlier] we used to play with one another, several of us girls; we used to go into a field and pretend we were doctors and had to examine one another, and then we used to pull up one another's clothes and feel each other."

These games do not necessarily involve the coöperation of the sexual impulse, and still less have they any element of love. But emotions of love, scarcely if at all distinguishable from adult sexual love, frequently appear at equally early ages. They are of the nature of play, in so far as play is a preparation for the activities of later life, though, unlike the games, they are not felt as play. Ramdohr, more than a century ago (_Venus Urania_, 1798), referred to the frequent love of little boys for women. More usually the love is felt towards individuals of the opposite or the same sex who are not widely different in age, though usually older. The most comprehensive study of the matter has been made by Sanford Bell in America on a basis of as many as 2,300 cases (S. Bell, "A Preliminary Study of the Emotion of Love Between the Sexes," _American Journal Psychology_, July, 1902). Bell finds that the presence of the emotion between three and eight years of age is shown by such actions as hugging, kissing, lifting each other, scuffling, sitting close to each other, confessions to each other and to others, talking about each other when apart, seeking each other and excluding the rest, grief at separation, giving gifts, showing special courtesies to each other, making sacrifices for each other, exhibiting jealousy. The girls are, on the whole, more aggressive than the boys, and less anxious to keep the matter secret. After the age of eight, the girls increase in modesty and the boys become still more secretive. The physical sensations are not usually located in the sexual organs; erection of the penis and hyperæmia of the female sexual parts Bell regards as marking undue precocity. But there is diffused vascular and nervous tumescence and a state of exaltation comparable, though not equal, to that experienced in adolescent and adult age. On the whole, as Bell soundly concludes, "love between children of opposite sex bears much the same relation to that between adults as the flower does to the fruit, and has about as little of physical sexuality in it as an apple-blossom has of the apple that develops from it." Moll also (op. cit. p. 76) considers that kissing and other similar superficial contacts, which he denominates the phenomena of contrectation, constitute most frequently the first and sole manifestation of the sexual impulse in childhood.

It is often stated that it is easier for children to preserve their sexual innocence in the country than in the town, and that only in cities is sexuality rampant and conspicuous. This is by no means true, and in some respects it is the reverse of the truth. Certainly, hard work, a natural and simple life, and a lack of alert intelligence often combine to keep the rural lad chaste in thought and act until the period of adolescence is completed. Ammon, for instance, states, though without giving definite evidence, that this is common among the Baden conscripts. Certainly, also, all the multiple sensory excitements of urban life tend to arouse the nervous and cerebral excitability of the young at a comparatively early age in the sexual as in other fields, and promote premature desires and curiosities. But, on the other hand, urban life offers the young no gratification for their desires and curiosities. The

publicity of a city, the universal surveillance, the studied decorum of a population conscious that it is continually exposed to the gaze of strangers, combine to spread a veil over the esoteric side of life, which, even when at last it fails to conceal from the young the urban stimuli of that life, effectually conceals, for the most part, the gratifications of those stimuli. In the country, however, these restraints do not exist in any corresponding degree; animals render the elemental facts of sexual life clear to all; there is less need or regard for decorum; speech is plainer; supervision is impossible, and the amplest opportunities for sexual intimacy are at hand. If the city may perhaps be said to favor unchastity of thought in the young, the country may certainly be said to favor unchastity of act.

The elaborate investigations of the Committee of Lutheran pastors into sexual morality (_Die Geschlechtich-sittliche Verhältnisse im Deutschen Reiche_), published a few years ago, demonstrate amply the sexual freedom in rural Germany, and Moll, who is decidedly of opinion that the country enjoys no relative freedom from sexuality, states (op. cit., pp. 137-139, 239) that even the circulation of obscene books and pictures among school-children seems to be more frequent in small towns and the country than in large cities. In Russia, where it might be thought that urban and rural conditions offered less contrast than in many countries, the same difference has been observed. "I do not know," a Russian correspondent writes, "whether Zola in _La Terre_ correctly describes the life of French villages. But the ways of a Russian village, where I passed part of my childhood, fairly resemble those described by Zola. In the life of the rural population into which I was plunged everything was impregnated with erotism. One was surrounded by animal lubricity in all its immodesty. Contrary to the generally received opinion, I believe that a child may preserve his sexual innocence more easily in a town than in the country. There are, no doubt, many exceptions to this rule. But the functions of the sexual life are generally more concealed in the towns than in the fields. Modesty (whether or not of the merely superficial and exterior kind) is more developed among urban populations. In speaking of sexual things in the towns people veil their thought more; even the lower class in towns employ more restraint, more euphemisms, than peasants. Thus in the towns a child may easily fail to comprehend when risky subjects are talked of in his presence. It may be said that the corruption of towns, though more concealed, is all the deeper. Maybe, but that concealment preserves children from it. The town child sees prostitutes in the street every day without distinguishing them from other people. In the country he would every day hear it stated in the crudest terms that such and such a girl has been found at night in a barn or a ditch making love with such and such a youth, or that the servant girl slips every night into the coachman's bed, the facts of sexual intercourse, pregnancy, and childbirth being spoken of in the plainest terms. In towns the child's attention is solicited by a thousand different objects; in the country, except fieldwork, which fails to interest him, he hears only of the reproduction of animals and the erotic exploits of girls and youths. When we say that the urban environment is more exciting we are thinking of adults, but the things which excite the adult have usually no erotic effect on the child, who cannot, however, long remain asexual when he sees the great peasant girls, as ardent as mares in heat, abandoning themselves to the arms of robust youths. He cannot fail to

remark these frank manifestations of sexuality, though the subtle and perverse refinements of the town would escape his notice. I know that in the countries of exaggerated prudery there is much hidden corruption, more, one is sometimes inclined to think, than in less hypocritical countries. But I believe that that is a false impression, and am persuaded that precisely because of all these little concealments which excite the malicious amusement of foreigners, there are really many more young people in England who remain chaste than in the countries which treat sexual relations more frankly. At all events, if I have known Englishmen who were very debauched and very refined in vice, I have also known young men of the same nation, over twenty, who were as innocent as children, but never a young Frenchman, Italian, or Spaniard of whom this could be said." There is undoubtedly truth in this statement, though it must be remembered that, excellent as chastity is, if it is based on mere ignorance, its possessor is exposed to terrible dangers.

The question of sexual hygiene, more especially in its special aspect of sexual enlightenment, is not, however, dependent on the fact that in some children the psychic and nervous manifestation of sex appears at an earlier age than in others. It rests upon the larger general fact that in all children the activity of intelligence begins to work at a very early age, and that this activity tends to manifest itself in an inquisitive desire to know many elementary facts of life which are really dependent on sex. The primary and most universal of these desires is the desire to know where children come from. No question could be more natural; the question of origins is necessarily a fundamental one in childish philosophies as, in more ultimate shapes, it is in adult philosophies. Most children, either guided by the statements, usually the misstatements, of their elders, or by their own intelligence working amid such indications as are open to them, are in possession of a theory of the origin of babies.

Stanley Hall ("Contents of Children's Minds on Entering School," _Pedagogical Seminary_, June, 1891) has collected some of the beliefs of young children as to the origin of babies. "God makes babies in heaven, though the Holy Mother and even Santa Claus make some. He lets them down and drops them, and the women or doctors catch them, or He leaves them on the sidewalk, or brings them down a wooden ladder backwards and pulls it up again, or mamma or the doctor or the nurse go up and fetch them, sometimes in a balloon, or they fly down and lose off their wings in some place or other and forget it, and jump down to Jesus, who gives them around. They were also often said to be found in flour-barrels, and the flour sticks ever so long, you know, or they grew in cabbages, or God puts them in water, perhaps in the sewer, and the doctor gets them out and takes them to sick folks that want them, or the milkman brings them early in the morning; they are dug out of the ground, or bought at the baby store."

In England and America the inquisitive child is often told that the baby was found in the garden, under a gooseberry bush or elsewhere; or more commonly it is said, with what is doubtless felt to be a nearer approach to the truth, that the doctor brought it. In Germany the common story told to children is that the stork brings the baby. Various theories, mostly based on folk-lore, have been put forward to explain this story, but none of them seem quite convincing (see, e.g., G. Herman,

"Sexual-Mythen," _Geschlecht und Gesellschaft_, vol. i, Heft 5, 1906, p. 176, and P. Näcke, _Neurologische Centralblatt_, No. 17, 1907). Näcke thinks there is some plausibility in Professor Petermann's suggestion that a frog writhing in a stork's bill resembles a tiny human creature.

In Iceland, according to Max Bartels ("Isländischer Brauch und Volksglaube," etc., _Zeitschrift für Ethnologie_, 1900, Heft 2 and 3) we find a transition between the natural and the fanciful in the stories told to children of the origin of babies (the stork is here precluded, for it only extends to the southern border of Scandinavian lands). In North Iceland it is said that God made the baby and the mother bore it, and on that account is now ill. In the northwest it is said that God made the baby and gave it to the mother. Elsewhere it is said that God sent the baby and the midwife brought it, the mother only being in bed to be near the baby (which is seldom placed in a cradle). It is also sometimes said that a lamb or a bird brought the baby. Again it is said to have entered during the night through the window. Sometimes, however, the child is told that the baby came out of the mother's breasts, or from below her breasts, and that is why she is not well.

Even when children learn that babies come out of the mother's body this knowledge often remains very vague and inaccurate. It very commonly happens, for instance, in all civilized countries that the navel is regarded as the baby's point of exit from the body. This is a natural conclusion, since the navel is seemingly a channel into the body, and a channel for which there is no obvious use, while the pudendal cleft would not suggest itself to girls (and still less to boys) as the gate of birth, since it already appears to be monopolized by the urinary excretion. This belief concerning the navel is sometimes preserved through the whole period of adolescence, especially in girls of the so-called educated class, who are too well-bred to discuss the matter with their married friends, and believe indeed that they are already sufficiently well informed. At this age the belief may not be altogether harmless, in so far as it leads to the real gate of sex being left unguarded. In Elsass where girls commonly believe, and are taught, that babies come through the navel, popular folk-tales are current (_Anthropophyteia_, vol. iii, p. 89) which represent the mistakes resulting from this belief as leading to the loss of virginity.

Freud, who believes that children give little credit to the stork fable and similar stories invented for their mystification, has made an interesting psychological investigation into the real theories which children themselves, as the result of observation and thought, reach concerning the sexual facts of life (S. Freud, "Ueber Infantile Sexualtheorien," _Sexual-Probleme_, Dec., 1908). Such theories, he remarks, correspond to the brilliant, but defective hypotheses which primitive peoples arrive at concerning the nature and origin of the world. There are three theories, which, as Freud quite truly concludes, are very commonly formed by children. The first, and the most widely disseminated, is that there is no real anatomical difference between boys and girls; if the boy notices that his little sister has no obvious penis he even concludes that it is because she is too young, and the little girl herself takes the same view. The fact that in early life the clitoris is relatively larger and more penis-like helps to confirm this view which Freud connects with the tendency in later life to

erotic dream of women furnished with a penis. This theory, as Freud also remarks, favors the growth of homosexuality when its germs are present. The second theory is the fæcal theory of the origin of babies. The child, who perhaps thinks his mother has a penis, and is in any case ignorant of the vagina, concludes that the baby is brought into the world by an action analogous to the action of the bowels. The third theory, which is perhaps less prevalent than the others, Freud terms the sadistic theory of coitus. The child realizes that his father must have taken some sort of part in his production. The theory that sexual intercourse consists in violence has in it a trace of truth, but seems to be arrived at rather obscurely. The child's own sexual feelings are often aroused for the first time when wrestling or struggling with a companion; he may see his mother, also, resisting more or less playfully a sudden caress from his father, and if a real quarrel takes place, the impression may be fortified. As to what the state of marriage consists in, Freud finds that it is usually regarded as a state which abolishes modesty; the most prevalent theory being that marriage means that people can make water before each other, while another common childish theory is that marriage is when people can show each other their private parts.

Thus it is that at a very early stage of the child's life we are brought face to face with the question how we may most wisely begin his initiation into the knowledge of the great central facts of sex. It is perhaps a little late in the day to regard it as a question, but so it is among us, although three thousand five hundred years ago, the Egyptian father spoke to his child: "I have given you a mother who has carried you within her, a heavy burden, for your sake, and without resting on me. When at last you were born, she indeed submitted herself to the yoke, for during three years were her nipples in your mouth. Your excrements never turned her stomach, nor made her say, 'What am I doing?' When you were sent to school she went regularly every day to carry the household bread and beer to your master. When in your turn you marry and have a child, bring up your child as your mother brought you up."[20]

I take it for granted, however, that--whatever doubt there may be as to the how or the when--no doubt is any longer possible as to the absolute necessity of taking deliberate and active part in this sexual initiation, instead of leaving it to the chance revelation of ignorant and perhaps vicious companions or servants. It is becoming more and more widely felt that the risks of ignorant innocence are too great.

"All the love and solicitude parental yearning can bestow," writes Dr. G.F. Butler, of Chicago (_Love and its Affinities_, 1899, p. 83), "all that the most refined religious influence can offer, all that the most cultivated associations can accomplish, in one fatal moment may be obliterated. There is no room for ethical reasoning, indeed oftentimes no consciousness of wrong, but only Margaret's 'Es war so süss'." The same writer adds (as had been previously remarked by Mrs. Craik and others) that among church members it is the finer and more sensitive organizations that are the most susceptible to sexual emotions. So far as boys are concerned, we leave instruction in matters of sex, the most sacred and central fact in the world, as Canon Lyttelton remarks, to "dirty-minded school-boys, grooms, garden-boys, anyone, in short, who at an early age may be sufficiently defiled and sufficiently reckless to talk of them." And, so far as girls are concerned, as Balzac long ago remarked, "a mother

may bring up her daughter severely, and cover her beneath her wings for seventeen years; but a servant-girl can destroy that long work by a word, even by a gesture."

The great part played by servant-girls of the lower class in the sexual initiation of the children of the middle class has been illustrated in dealing with "The Sexual Impulse in Women" in vol. iii, of these _Studies_, and need not now be further discussed. I would only here say a word, in passing, on the other side. Often as servant-girls take this part, we must not go so far as to say that it is the case with the majority. As regards Germany, Dr. Alfred Kind has lately put on record his experience: "I have _never_, in youth, heard a bad or improper word on sex-relationships from a servant-girl, although servant-girls followed one another in our house like sunshine and showers in April, and there was always a relation of comradeship between us children and the servants." As regards England, I can add that my own youthful experiences correspond to Dr. Kind's. This is not surprising, for one may say that in the ordinary well-conditioned girl, though her virtue may not be developed to heroic proportions, there is yet usually a natural respect for the innocence of children, a natural sexual indifference to them, and a natural expectation that the male should take the active part when a sexual situation arises.

It is also beginning to be felt that, especially as regards women, ignorant innocence is not merely too fragile a possession to be worth preservation, but that it is positively mischievous, since it involves the lack of necessary knowledge. "It is little short of criminal," writes Dr. F.M. Goodchild,[21] "to send our young people into the midst of the excitements and temptations of a great city with no more preparation than if they were going to live in Paradise." In the case of women, ignorance has the further disadvantage that it deprives them of the knowledge necessary for intelligent sympathy with other women. The unsympathetic attitude of women towards women is often largely due to sheer ignorance of the facts of life. "Why," writes in a private letter a married lady who keenly realizes this, "are women brought up with such a profound ignorance of their own and especially other women's natures? They do not know half as much about other women as a man of the most average capacity learns in his day's march." We try to make up for our failure to educate women in the essential matters of sex by imposing upon the police and other guardians of public order the duty of protecting women and morals. But, as Moll insists, the real problem of chastity lies, not in the multiplication of laws and policemen, but largely in women's knowledge of the dangers of sex and in the cultivation of their sense of responsibility.[22] We are always making laws for the protection of children and setting the police on guard. But laws and the police, whether their activities are good or bad, are in either case alike ineffectual. They can for the most part only be invoked when the damage is already done. We have to learn to go to the root of the matter. We have to teach children to be a law to themselves. We have to give them that knowledge which will enable them to guard their own personalities.[23] There is an authentic story of a lady who had learned to swim, much to the horror of her clergyman, who thought that swimming was unfeminine. "But," she said, "suppose I was drowning." "In that case," he replied, "you ought to wait until a man comes along and saves you." There we have the two methods of salvation which have been preached to women, the old method and the new. In no sea have women been more

often in danger of drowning than that of sex. There ought to be no question as to which is the better method of salvation.

It is difficult nowadays to find any serious arguments against the desirability of early sexual enlightenment, and it is almost with amusement that we read how the novelist Alphonse Daudet, when asked his opinion of such enlightenment, protested--in a spirit certainly common among the men of his time--that it was unnecessary, because boys could learn everything from the streets and the newspapers, while "as to young girls--no! I would teach them none of the truths of physiology. I can only see disadvantages in such a proceeding. These truths are ugly, disillusioning, sure to shock, to frighten, to disgust the mind, the nature, of a girl." It is as much as to say that there is no need to supply sources of pure water when there are puddles in the street that anyone can drink of. A contemporary of Daudet's, who possessed a far finer spiritual insight, Coventry Patmore, the poet, in the essay on "Ancient and Modern Ideas of Purity" in his beautiful book, _Religio Poetæ_, had already finely protested against that "disease of impurity" which comes of "our modern undivine silences" for which Daudet pleaded. And Metchnikoff, more recently, from the scientific side, speaking especially as regards women, declares that knowledge is so indispensable for moral conduct that "ignorance must be counted the most immoral of acts" (_Essais Optimistes_, p. 420).

The distinguished Belgian novelist, Camille Lemonnier, in his _L'Homme en Amour_, deals with the question of the sexual education of the young by presenting the history of a young man, brought up under the influence of the conventional and hypocritical views which teach that nudity and sex are shameful and disgusting things. In this way he passes by the opportunities of innocent and natural love, to become hopelessly enslaved at last to a sensual woman who treats him merely as the instrument of her pleasure, the last of a long succession of lovers. The book is a powerful plea for a sane, wholesome, and natural education in matters of sex. It was, however, prosecuted at Bruges, in 1901, though the trial finally ended in acquittal. Such a verdict is in harmony with the general tendency of feeling at the present time.

The old ideas, expressed by Daudet, that the facts of sex are ugly and disillusioning, and that they shock the mind of the young, are both alike entirely false. As Canon Lyttelton remarks, in urging that the laws of the transmission of life should be taught to children by the mother: "The way they receive it with native reverence, truthfulness of understanding and guileless delicacy, is nothing short of a revelation of the never-ceasing beauty of nature. People sometimes speak of the indescribable beauty of children's innocence. But I venture to say that no one quite knows what it is who has foregone the privilege of being the first to set before them the true meaning of life and birth and the mystery of their own being. Not only do we fail to build up sound knowledge in them, but we put away from ourselves the chance of learning something that must be divine." In the same way, Edward Carpenter, stating that it is easy and natural for the child to learn from the first its physical relation to its mother, remarks (_Love's Coming of Age_, p. 9): "A child at the age of puberty, with the unfolding of its far-down emotional and sexual nature, is eminently capable of the most sensitive, affectional and serene appreciation of what _sex_ means (generally

more so as things are to-day, than its worldling parent or guardian); and can absorb the teaching, if sympathetically given, without any shock or disturbance to its sense of shame--that sense which is so natural and valuable a safeguard of early youth."

How widespread, even some years ago, had become the conviction that the sexual facts of life should be taught to girls as well as boys, was shown when the opinions of a very miscellaneous assortment of more or less prominent persons were sought on the question ("The Tree of Knowledge," _New Review_, June, 1894). A small minority of two only (Rabbi Adler and Mrs. Lynn Lynton) were against such knowledge, while among the majority in favor of it were Mme. Adam, Thomas Hardy, Sir Walter Besant, Björnson, Hall Caine, Sarah Grand, Nordau, Lady Henry Somerset, Baroness von Suttner, and Miss Willard. The leaders of the woman's movement are, of course, in favor of such knowledge. Thus a meeting of the Bund für Mutterschutz at Berlin, in 1905, almost unanimously passed a resolution declaring that the early sexual enlightenment of children in the facts of the sexual life is urgently necessary (_Mutterschutz_, 1905, Heft 2, p. 91). It may be added that medical opinion has long approved of this enlightenment. Thus in England it was editorially stated in the _British Medical Journal_ some years ago (June 9, 1894): "Most medical men of an age to beget confidence in such affairs will be able to recall instances in which an ignorance, which would have been ludicrous if it had not been so sad, has been displayed on matters regarding which every woman entering on married life ought to have been accurately informed. There can, we think, be little doubt that much unhappiness and a great deal of illness would be prevented if young people of both sexes possessed a little accurate knowledge regarding the sexual relations, and were well impressed with the profound importance of selecting healthy mates. Knowledge need not necessarily be nasty, but even if it were, it certainly is not comparable in that respect with the imaginings of ignorance." In America, also, where at an annual meeting of the American Medical Association, Dr. Denslow Lewis, of Chicago, eloquently urged the need of teaching sexual hygiene to youths and girls, all the subsequent nine speakers, some of them physicians of worldwide fame, expressed their essential agreement (_Medico-Legal Journal_, June-Sept., 1903). Howard, again, at the end of his elaborate _History of Matrimonial Institutions_ (vol. iii, p. 257) asserts the necessity for education in matters of sex, as going to the root of the marriage problem. "In the future educational programme," he remarks, "sex questions must hold an honorable place."

While, however, it is now widely recognized that children are entitled to sexual enlightenment, it cannot be said that this belief is widely put into practice. Many persons, who are fully persuaded that children should sooner or later be enlightened concerning the sexual sources of life, are somewhat nervously anxious as to the precise age at which this enlightenment should begin. Their latent feeling seems to be that sex is an evil, and enlightenment concerning sex also an evil, however necessary, and that the chief point is to ascertain the latest moment to which we can safely postpone this necessary evil. Such an attitude is, however, altogether wrong-headed. The child's desire for knowledge concerning the origin of himself is a perfectly natural, honest, and harmless desire, so long as it is not perverted by being thwarted. A child of four may ask questions on this matter, simply and spontaneously.

As soon as the questions are put, certainly as soon as they become at all insistent, they should be answered, in the same simple and spontaneous spirit, truthfully, though according to the measure of the child's intelligence and his capacity and desire for knowledge. This period should not, and, if these indications are followed, naturally would not, in any case, be delayed beyond the sixth year. After that age even the most carefully guarded child is liable to contaminating communications from outside. Moll points out that the sexual enlightenment of girls in its various stages ought to be always a little ahead of that of boys, and as the development of girls up to the pubertal age is more precocious than that of boys, this demand is reasonable.

If the elements of sexual education are to be imparted in early childhood, it is quite clear who ought to be the teacher. There should be no question that this privilege belongs by every right to the mother. Except where a child is artificially separated from his chief parent it is indeed only the mother who has any natural opportunity of receiving and responding to these questions. It is unnecessary for her to take any initiative in the matter. The inevitable awakening of the child's intelligence and the evolution of his boundless curiosity furnish her love and skill with all opportunities for guiding her child's thoughts and knowledge. Nor is it necessary for her to possess the slightest technical information at this stage. It is only essential that she should have the most absolute faith in the purity and dignity of her physical relationship to her child, and be able to speak of it with frankness and tenderness. When that essential condition is fulfilled every mother has all the knowledge that her young child needs.

Among the best authorities, both men and women, in all the countries where this matter is attracting attention, there seems now to be unanimity of opinion in favor of the elementary facts of the baby's relationship to its mother being explained to the child by the mother as soon as the child begins to ask questions. Thus in Germany Moll has repeatedly argued in this sense; he insists that sexual enlightenment should be mainly a private and individual matter; that in schools there should be no general and personal warnings about masturbation, etc. (though at a later age he approves of instruction in regard to venereal diseases), but that the mother is the proper person to impart intimate knowledge to the child, and that any age is suitable for the commencement of such enlightenment, provided it is put into a form fitted for the age (Moll, op. cit., p. 264).

At the Mannheim meeting of the Congress of the German Society for Combating Venereal Disease, when the question of sexual enlightenment formed the sole subject of discussion, the opinion in favor of early teaching by the mother prevailed. "It is the mother who must, in the first place, be made responsible for the child's clear understanding of sexual things, so often lacking," said Frau Krukenberg ("Die Aufgabe der Mutter," _Sexualpädagogik_, p. 13), while Max Enderlin, a teacher, said on the same occasion ("Die Sexuelle Frage in die Volksschule," id., p. 35): "It is the mother who has to give the child his first explanations, for it is to his mother that he first naturally comes with his questions." In England, Canon Lyttelton, who is distinguished among the heads of public schools not least by his clear and admirable statements on these questions, states (_Mothers and Sons_, p. 99) that the mother's part in the sexual enlightenment and sexual guardianship of her son is of paramount

importance, and should begin at the earliest years. J.H. Badley, another schoolmaster ("The Sex Difficulty," _Broad Views_, June, 1904), also states that the mother's part comes first. Northcote (_Christianity and Sex Problems_, p. 25) believes that the duty of the parents is primary in this matter, the family doctor and the schoolmaster coming in at a later stage. In America, Dr. Mary Wood Allen, who occupies a prominent and influential position in women's social movements, urges (in _Child-Confidence Rewarded_, and other pamphlets) that a mother should begin to tell her child these things as soon as he begins to ask questions, the age of four not being too young, and explains how this may be done, giving examples of its happy results in promoting a sweet confidence between the child and his mother.

If, as a few believe should be the case, the first initiation is delayed to the tenth year or even later, there is the difficulty that it is no longer so easy to talk simply and naturally about such things; the mother is beginning to feel too shy to speak for the first time about these difficult subjects to a son or a daughter who is nearly as big as herself. She feels that she can only do it awkwardly and ineffectively, and she probably decides not to do it at all. Thus an atmosphere of mystery is created with all the embarrassing and perverting influences which mystery encourages.

There can be no doubt that, more especially in highly intelligent children with vague and unspecialized yet insistent sexual impulses, the artificial mystery with which sex is too often clothed not only accentuates the natural curiosity but also tends to favor the morbid intensity and even prurience of the sexual impulse. This has long been recognized. Dr. Beddoes wrote at the beginning of the nineteenth century: "It is in vain that we dissemble to ourselves the eagerness with which children of either sex seek to satisfy themselves concerning the conformation of the other. No degree of reserve in the heads of families, no contrivances, no care to put books of one description out of sight and to garble others, has perhaps, with any one set of children, succeeded in preventing or stifling this kind of curiosity. No part of the history of human thought would perhaps be more singular than the stratagems devised by young people in different situations to make themselves masters or witnesses of the secret. And every discovery, due to their own inquiries, can but be so much oil poured upon an imagination in flames" (T. Beddoes, _Hygeia_, 1802, vol. iii, p. 59). Kaan, again, in one of the earliest books on morbid sexuality, sets down mystery as one of the causes of _psychopathia sexualis_. Marro (_La Pubertà_, p. 299) points out how the veil of mystery thrown over sexual matters merely serves to concentrate attention on them. The distinguished Dutch writer Multatuli, in one of his letters (quoted with approval by Freud), remarks on the dangers of hiding things from boys and girls in a veil of mystery, pointing out that this must only heighten the curiosity of children, and so far from keeping them pure, which mere ignorance can never do, heats and perverts their imaginations. Mrs. Mary Wood Allen, also, warns the mother (op. cit., p. 5) against the danger of allowing any air of embarrassing mystery to creep over these things. "If the instructor feels any embarrassment in answering the queries of the child, he is not fitted to be the teacher, for the feeling of embarrassment will, in some subtle way, communicate itself to the child, and he will experience an indefinable sense of offended delicacy which is both unnecessary and undesirable. Purification of one's own thought is, then, the first step towards teaching

the truth purely. Why," she adds, "is death, the gateway out of life, any more dignified or pathetic than birth, the gateway into life? Or why is the taking of earthly life a more awful fact than the giving of life?" Mrs. Ennis Richmond, in a book of advice to mothers which contains many wise and true things, says: "I want to insist, more strongly than upon anything else, that it is the _secrecy_ that surrounds certain parts of the body and their functions that gives them their danger in the child's thought. Little children, from earliest years, are taught to think of these parts of their body as mysterious, and not only so, but that they are mysterious because they are unclean. Children have not even a name for them. If you have to speak to your child, you allude to them mysteriously and in a half-whisper as 'that little part of you that you don't speak of,' or words to that effect. Before everything it is important that your child should have a good working name for these parts of his body, and for their functions, and that he should be taught to use and to hear the names, and that as naturally and openly as though he or you were speaking of his head or his foot. Convention has, for various reasons, made it impossible to speak in this way in public. But you can, at any rate, break through this in the nursery. There this rule of convention has no advantage, and many a serious disadvantage. It is easy to say to a child, the first time he makes an 'awkward' remark in public: 'Look here, laddie, you may say what you like to me or to daddy, but, for some reason or other, one does not talk about these' (only say _what_ things) 'in public.' Only let your child make the remark in public _before_ you speak (never mind the shock to your caller's feelings), don't warn him against doing so" (Ennis Richmond, _Boyhood_, p. 60). Sex must always be a mystery, but, as Mrs. Richmond rightly says, "the real and true mysteries of generation and birth are very different from the vulgar secretiveness with which custom surrounds them."

The question as to the precise names to be given to the more private bodily parts and functions is sometimes a little difficult to solve. Every mother will naturally follow her own instincts, and probably her own traditions, in this matter. I have elsewhere pointed out (in the study of "The Evolution of Modesty") how widespread and instinctive is the tendency to adopt constantly new euphemisms in this field. The ancient and simple words, which in England a great poet like Chaucer could still use rightly and naturally, are so often dropped in the mud by the vulgar that there is an instinctive hesitation nowadays in applying them to beautiful uses. They are, however, unquestionably the best, and, in their origin, the most dignified and expressive words. Many persons are of opinion that on this account they should be rescued from the mud, and their sacredness taught to children. A medical friend writes that he always taught his son that the vulgar sex names are really beautiful words of ancient origin, and that when we understand them aright we cannot possibly see in them any motive for low jesting. They are simple, serious and solemn words, connoting the most central facts of life, and only to ignorant and plebeian vulgarity can they cause obscene mirth. An American man of science, who has privately and anonymously printed some pamphlets on sex questions, also takes this view, and consistently and methodically uses the ancient and simple words. I am of opinion that this is the ideal to be sought, but that there are obvious difficulties at present in the way of attaining it. In any case, however, the mother should be in possession of a very

precise vocabulary for all the bodily parts and acts which it concerns her children to know.

It is sometimes said that at this early age children should not be told, even in a simple and elementary form, the real facts of their origin but should, instead, hear a fairy-tale having in it perhaps some kind of symbolic truth. This contention may be absolutely rejected, without thereby, in any degree, denying the important place which fairy-tales hold in the imagination of young children. Fairy-tales have a real value to the child; they are a mental food he needs, if he is not to be spiritually starved; to deprive him of fairy-tales at this age is to do him a wrong which can never be made up at any subsequent age. But not only are sex matters too vital even in childhood to be safely made matter for a fairy-tale, but the real facts are themselves as wonderful as any fairy-tale, and appeal to the child's imagination with as much force as a fairy-tale.

Even, however, if there were no other reasons against telling children fairy-tales of sex instead of the real facts, there is one reason which ought to be decisive with every mother who values her influence over her child. He will very quickly discover, either by information from others or by his own natural intelligence, that the fairy-tale, that was told him in reply to a question about a simple matter of fact, was a lie. With that discovery his mother's influence over him in all such matters vanishes for ever, for not only has a child a horror of being duped, but he is extremely sensitive about any rebuff of this kind, and never repeats what he has been made to feel was a mistake to be ashamed of. He will not trouble his mother with any more questions on this matter; he will not confide in her; he will himself learn the art of telling "fairy-tales" about sex matters. He had turned to his mother in trust; she had not responded with equal trust, and she must suffer the punishment, as Henriette Fürth puts it, of seeing "the love and trust of her son stolen from her by the first boy he makes friends with in the street." When, as sometimes happens (Moll mentions a case), a mother goes on repeating these silly stories to a girl or boy of seven who is secretly well-informed, she only degrades herself in her child's eyes. It is this fatal mistake, so often made by mothers, which at first leads them to imagine that their children are so innocent, and in later years causes them many hours of bitterness because they realize they do not possess their children's trust. In the matter of trust it is for the mother to take the first step; the children who do not trust their mothers are, for the most part, merely remembering the lesson they learned at their mother's knee.

The number of little books and pamphlets dealing with the question of the sexual enlightenment of the young--whether intended to be read by the young or offering guidance to mothers and teachers in the task of imparting knowledge--has become very large indeed during recent years in America, England, and especially Germany, where there has been of late an enormous production of such literature. The late Ben Elmy, writing under the pseudonym of "Ellis Ethelmer," published two booklets, _Baby Buds_, and _The Human Flower_ (issued by Mrs. Wolstenholme Elmy, Buxton House, Congleton), which state the facts in a simple and delicate manner, though the author was not a notably reliable guide on the scientific aspects of these questions. A

charming conversation between a mother and child, from a French source, is reprinted by Edward Carpenter at the end of his _Love's Coming of Age. How We Are Born_, by Mrs. N.J. (apparently a Russian lady writing in English), prefaced by J.H. Badley, is satisfactory. Mention may also be made of _The Wonder of Life_, by Mary Tudor Pole. Margaret Morley's _Song of Life_, an American book, which I have not seen, has been highly praised. Most of these books are intended for quite young children, and while they explain more or less clearly the origin of babies, nearly always starting with the facts of plant life, they touch very slightly, if at all, on the relations of the sexes.

Mrs. Ennis Richmond's books, largely addressed to mothers, deal with these questions in a very sane, direct, and admirable manner, and Canon Lyttelton's books, discussing such questions generally, are also excellent. Most of the books now to be mentioned are intended to be read by boys and girls who have reached the age of puberty. They refer more or less precisely to sexual relationships, and they usually touch on masturbation. _The Story of Life_, written by a very accomplished woman, the late Ellice Hopkins, is somewhat vague, and introduces too many exalted religious ideas. Arthur Trewby's _Healthy Boyhood_ is a little book of wholesome tendency; it deals specially with masturbation. _A Talk with Boys About Themselves_ and _A Talk with Girls About Themselves_, both by Edward Bruce Kirk (the latter book written in conjunction with a lady) deal with general as well as sexual hygiene. There could be no better book to put into the hands of a boy or girl at puberty than M.A. Warren's _Almost Fourteen_, written by an American school teacher in 1892. It was a most charming and delicately written book, which could not have offended the innocence of the most sensitive maiden. Nothing, however, is sacred to prurience, and it was easy for the prurient to capture the law and obtain (in 1897) legal condemnation of this book as "obscene." Anything which sexually excites a prurient mind is, it is true, "obscene" for that mind, for, as Mr. Theodore Schroeder remarks, obscenity is "the contribution of the reading mind," but we need such books as this in order to diminish the number of prurient minds, and the condemnation of so entirely admirable a book makes, not for morality, but for immorality. I am told that the book was subsequently issued anew with most of its best portions omitted, and it is stated by Schroeder (_Liberty of Speech and Press Essential to Purity Propaganda_, p. 34) that the author was compelled to resign his position as a public school principal. Maria Lischnewska's _Geschlechtliche Belehrung der Kinder_ (reprinted from _Mutterschutz_, 1905, Heft 4 and 5) is a most admirable and thorough discussion of the whole question of sexual education, though the writer is more interested in the teacher's share in this question than in the mother's. Suggestions to mothers are contained in Hugo Salus, _Wo kommen die Kinder her?_, E. Stiehl, _Eine Mutterpflicht_, and many other books. Dr. Alfred Kind strongly recommends Ludwig Gurlitt's _Der Verkehr mit meinem Kindern_, more especially in its combination of sexual education with artistic education. Many similar books are referred to by Bloch, in his _Sexual Life of Our Time_, Ch. xxvi.

I have enumerated the names of these little books because they are frequently issued in a semi-private manner, and are seldom easy to procure or to hear of. The propagation of such books seems to be felt to be almost a disgraceful action, only to

be performed by stealth. And such a feeling seems not unnatural when we see, as in the case of the author of _Almost Fourteen_, that a nominally civilized country, instead of loading with honors a man who has worked for its moral and physical welfare, seeks so far as it can to ruin him.

I may add that while it would usually be very helpful to a mother to be acquainted with a few of the booklets I have named, she would do well, in actually talking to her children, to rely mainly on her own knowledge and inspiration.

The sexual education which it is the mother's duty and privilege to initiate during her child's early years cannot and ought not to be technical. It is not of the nature of formal instruction but is a private and intimate initiation. No doubt the mother must herself be taught.[24] But the education she needs is mainly an education in love and insight. The actual facts which she requires to use at this early stage are very simple. Her main task is to make clear the child's own intimate relations to herself and to show that all young things have a similar intimate relation to their mothers; in generalizing on this point the egg is the simplest and most fundamental type to explain the origin of the individual life, for the idea of the egg--in its widest sense as the seed--not only has its truth for the human creature but may be applied throughout the animal and vegetable world. In this explanation the child's physical relationship to his father is not necessarily at first involved; it may be left to a further stage or until the child's questions lead up to it.

Apart from his interest in his origin, the child is also interested in his sexual, or as they seem to him exclusively, his excretory organs, and in those of other people, his sisters and parents. On these points, at this age, his mother may simply and naturally satisfy his simple and natural curiosity, calling things by precise names, whether the names used are common or uncommon being a matter in regard to which she may exercise her judgment and taste. In this manner the mother will, indirectly, be able to safeguard her child at the outset against the prudish and prurient notions alike which he will encounter later. She will also without unnatural stress be able to lead the child into a reverential attitude towards his own organs and so exert an influence against any undesirable tampering with them. In talking with him about the origin of life and about his own body and functions, in however elementary a fashion, she will have initiated him both in sexual knowledge and in sexual hygiene.

The mother who establishes a relationship of confidence with her child during these first years will probably, if she possesses any measure of wisdom and tact, be able to preserve it even after the epoch of puberty into the difficult years of adolescence. But as an educator in the narrower sense her functions will, in most cases, end at or before puberty. A somewhat more technical and completely impersonal acquaintance with the essential facts of sex then becomes desirable, and this would usually be supplied by the school.

The great though capricious educator, Basedow, to some extent a pupil of Rousseau, was an early pioneer in both the theory and the practice of giving school children instruction in the facts of the sexual life, from the age of ten onwards. He insists much on this subject in his great treatise, the _Elementarwerk_ (1770-1774).

The questions of children are to be answered truthfully, he states, and they must be taught never to jest at anything so sacred and serious as the sexual relations. They are to be shown pictures of childbirth, and the dangers of sexual irregularities are to be clearly expounded to them at the outset. Boys are to be taken to hospitals to see the results of venereal disease. Basedow is aware that many parents and teachers will be shocked at his insistence on these things in his books and in his practical pedagogic work, but such people, he declares, ought to be shocked at the Bible (see, e.g., Pinloche, _La Rèforme de l'Education en Allemagne au dixhuitième siècle: Basedow et le Philanthropinisme_, pp. 125, 256, 260, 272). Basedow was too far ahead of his own time, and even of ours, to exert much influence in this matter, and he had few immediate imitators.

Somewhat later than Basedow, a distinguished English physician, Thomas Beddoes, worked on somewhat the same lines, seeking to promote sexual knowledge by lectures and demonstrations. In his remarkable book, _Hygeia_, published in 1802 (vol. i, Essay IV) he sets forth the absurdity of the conventional requirement that "discretion and ignorance should lodge in the same bosom," and deals at length with the question of masturbation and the need of sexual education. He insists on the great importance of lectures on natural history which, he had found, could be given with perfect propriety to a mixed audience. His experiences had shown that botany, the amphibia, the hen and her eggs, human anatomy, even disease and sometimes the sight of it, are salutary from this point of view. He thinks it is a happy thing for a child to gain his first knowledge of sexual difference from anatomical subjects, the dignity of death being a noble prelude to the knowledge of sex and depriving it forever of morbid prurience. It is scarcely necessary to remark that this method of teaching children the elements of sexual anatomy in the _post-mortem_ room has not found many advocates or followers; it is undesirable, for it fails to take into account the sensitiveness of children to such impressions, and it is unnecessary, for it is just as easy to teach the dignity of life as the dignity of death.

The duty of the school to impart education in matters of sex to children has in recent years been vigorously and ably advocated by Maria Lischnewska (op. cit.), who speaks with thirty years' experience as a teacher and an intimate acquaintance with children and their home life. She argues that among the mass of the population to-day, while in the home-life there is every opportunity for coarse familiarity with sexual matters, there is no opportunity for a pure and enlightened introduction to them, parents being for the most part both morally and intellectually incapable of aiding their children here. That the school should assume the leading part in this task is, she believes, in accordance with the whole tendency of modern civilized life. She would have the instruction graduated in such a manner that during the fifth or sixth year of school life the pupil would receive instruction, with the aid of diagrams, concerning the sexual organs and functions of the higher mammals, the bull and cow being selected by preference. The facts of gestation would of course be included. When this stage was reached it would be easy to pass on to the human species with the statement: "Just in the same way as the calf develops in the cow so the child develops in the mother's body."

It is difficult not to recognize the force of Maria Lischnewska's argument, and it seems highly probable that, as she asserts, the instruction proposed lies in the course of our present path of progress. Such instruction would be formal, unemotional, and impersonal; it would be given not as specific instruction in matters of sex, but simply as a part of natural history. It would supplement, so far as mere knowledge is concerned, the information the child had already received from its mother. But it would by no means supplant or replace the personal and intimate relationship of confidence between mother and child. That is always to be aimed at, and though it may not be possible among the ill-educated masses of to-day, nothing else will adequately take its place.

There can be no doubt, however, that while in the future the school will most probably be regarded as the proper place in which to teach the elements of physiology--and not as at present a merely emasculated and effeminated physiology--the introduction of such reformed teaching is as yet impracticable in many communities. A coarse and ill-bred community moves in a vicious circle. Its members are brought up to believe that sex matters are filthy, and when they become adults they protest violently against their children being taught this filthy knowledge. The teacher's task is thus rendered at the best difficult, and under democratic conditions impossible. We cannot, therefore, hope for any immediate introduction of sexual physiology into schools, even in the unobtrusive form in which alone it could properly be introduced, that is to say as a natural and inevitable part of general physiology.

This objection to animal physiology by no means applies, however, to botany. There can be little doubt that botany is of all the natural sciences that which best admits of this incidental instruction in the fundamental facts of sex, when we are concerned with children below the age of puberty. There are at least two reasons why this should be so. In the first place botany really presents the beginnings of sex, in their most naked and essential forms; it makes clear the nature, origin, and significance of sex. In the second place, in dealing with plants the facts of sex can be stated to children of either sex or any age quite plainly and nakedly without any reserve, for no one nowadays regards the botanical facts of sex as in any way offensive. The expounder of sex in plants also has on his side the advantage of being able to assert, without question, the entire beauty of the sexual process. He is not confronted by the ignorance, bad education, and false associations which have made it so difficult either to see or to show the beauty of sex in animals. From the sex-life of plants to the sex-life of the lower animals there is, however, but a step which the teacher, according to his discretion, may take.

An early educational authority, Salzmann, in 1785 advocated the sexual enlightenment of children by first teaching them botany, to be followed by zoölogy. In modern times the method of imparting sex knowledge to children by means, in the first place, of botany, has been generally advocated, and from the most various quarters. Thus Marro (_La Pubertà_, p. 300) recommends this plan. J. Hudrey-Menos ("La Question du Sexe dans l'Education," _Revue Socialiste_, June, 1895), gives the same advice. Rudolf Sommer, in a paper entitled "Mädchenerziehung oder

Menschenbildung?" (_Geschlecht und Gesellschaft_, Jahrgang I, Heft 3) recommends that the first introduction of sex knowledge to children should be made by talking to them on simple natural history subjects; "there are endless opportunities," he remarks, "over a fairy-tale, or a walk, or a fruit, or an egg, the sowing of seed or the nest-building of birds." Canon Lyttelton (_Training of the Young in Laws of Sex_, pp. 74 et seq.) advises a somewhat similar method, though laying chief stress on personal confidence between the child and his mother; "reference is made to the animal world just so far as the child's knowledge extends, so as to prevent the new facts from being viewed in isolation, but the main emphasis is laid on his feeling for his mother and the instinct which exists in nearly all children of reverence due to the maternal relation;" he adds that, however difficult the subject may seem, the essential facts of paternity must also be explained to boys and girls alike. Keyes, again (_New York Medical Journal_, Feb. 10, 1906), advocates teaching children from an early age the sexual facts of plant life and also concerning insects and other lower animals, and so gradually leading up to human beings, the matter being thus robbed of its unwholesome mystery. Mrs. Ennis Richmond (_Boyhood_, p. 62) recommends that children should be sent to spend some of their time upon a farm, so that they may not only become acquainted with the general facts of the natural world, but also with the sexual lives of animals, learning things which it is difficult to teach verbally. Karina Karin ("Wie erzieht man ein Kind zür wissenden Keuschheit?" _Geschlecht und Gesellschaft_, Jahrgang I, Heft 4), reproducing some of her talks with her nine-year old son, from the time that he first asked her where children came from, shows how she began with telling him about flowers, to pass on to fish and birds, and finally to the facts of human pregnancy, showing him pictures from an obstetrical manual of the child in its mother's body. It may be added that the advisability of beginning the sex teaching of children with the facts of botany was repeatedly emphasized by various speakers at the special meeting of the German Congress for Combating Venereal Disease devoted to the subject of sexual instruction (_Sexualpädagogik_, especially pp. 36, 47, 76).

The transition from botany to the elementary zoölogy of the lower animals, to human anatomy and physiology, and to the science of anthropology based on these, is simple and natural. It is not likely to be taken in detail until the age of puberty. Sex enters into all these subjects and should not be artificially excluded from them in the education of either boys or girls. The text-books from which the sexual system is entirely omitted ought no longer to be tolerated. The nature and secretion of the testicles, the meaning of the ovaries and of menstruation, as well as the significance of metabolism and the urinary excretion, should be clear in their main lines to all boys and girls who have reached the age of puberty.

At puberty there arises a new and powerful reason why boys and girls should receive definite instruction in matters of sex. Before that age it is possible for the foolish parent to imagine that a child may be preserved in ignorant innocence.[25] At puberty that belief is obviously no longer possible. The efflorescence of puberty with the development of the sexual organs, the appearance of hair in unfamiliar places, the general related organic changes, the spontaneous and perhaps alarming occurrence in boys of seminal emissions, and in girls of menstruation, the

unaccustomed and sometimes acute recognition of sexual desire accompanied by new sensations in the sexual organs and leading perhaps to masturbation; all these arouse, as we cannot fail to realize, a new anxiety in the boy's or girl's mind, and a new curiosity, all the more acute in many cases because it is carefully concealed as too private, and even too shameful, to speak of to anyone. In boys, especially if of sensitive temperament, the suffering thus caused may be keen and prolonged.

A doctor of philosophy, prominent in his profession, wrote to Stanley Hall (_Adolescence_, vol. i, p. 452): "My entire youth, from six to eighteen, was made miserable from lack of knowledge that any one who knew anything of the nature of puberty might have given; this long sense of defect, dread of operation, shame and worry, has left an indelible mark." There are certainly many men who could say the same. Lancaster ("Psychology and Pedagogy of Adolescence," _Pedagogical Seminary_, July, 1897, pp. 123-5) speaks strongly regarding the evils of ignorance of sexual hygiene, and the terrible fact that millions of youths are always in the hands of quacks who dupe them into the belief that they are on the road to an awful destiny merely because they have occasional emissions during sleep. "This is not a light matter," Lancaster declares. "It strikes at the very foundation of our inmost life. It deals with the reproductory part of our natures, and must have a deep hereditary influence. It is a natural result of the foolish false modesty shown regarding all sex instruction. Every boy should be taught the simple physiological facts before his life is forever blighted by this cause." Lancaster has had in his hands one thousand letters, mostly written by young people, who were usually normal, and addressed to quacks who were duping them. From time to time the suicides of youths from this cause are reported, and in many mysterious suicides this has undoubtedly been the real cause. "Week after week," writes the _British Medical Journal_ in an editorial ("Dangerous Quack Literature: The Moral of a Recent Suicide," Oct. 1, 1892), "we receive despairing letters from those victims of foul birds of prey who have obtained their first hold on those they rob, torture and often ruin, by advertisements inserted by newspapers of a respectable, nay, even of a valuable and respected, character." It is added that the wealthy proprietors of such newspapers, often enjoying a reputation for benevolence, even when the matter is brought before them, refuse to interfere as they would thereby lose a source of income, and a censorship of advertisements is proposed. This, however, is difficult, and would be quite unnecessary if youths received proper enlightenment from their natural guardians.

Masturbation, and the fear that by an occasional and perhaps outgrown practice of masturbation they have sometimes done themselves irreparable injury, is a common source of anxiety to boys. It has long been a question whether a boy should be warned against masturbation. At a meeting of the Section of Psychology of the British Medical Association some years ago, four speakers, including the President (Dr. Blandford), were decidedly in favor of parents warning their children against masturbation, while three speakers were decidedly against that course, mainly on the ground that it was possible to pass through even a public school life without hearing of masturbation, and also that the warning against masturbation might encourage the practice. It is, however, becoming more and more clearly realized that ignorance, even if it can be maintained, is a perilous possession, while the teaching that consists,

as it should, in a loving mother's counsel to the child from his earliest years to treat his sexual parts with care and respect, can only lead to masturbation in the child who is already irresistibly impelled to it. Most of the sex manuals for boys touch on masturbation, sometimes exaggerating its dangers; such exaggeration should be avoided, for it leads to far worse evils than those it attempts to prevent. It seems undesirable that any warnings about masturbation should form part of school instruction, unless under very special circumstances. The sexual instruction imparted in the school on sexual as on other subjects should be absolutely impersonal and objective.

At this point we approach one of the difficulties in the way of sexual enlightenment: the ignorance or unwisdom of the would-be teachers. This difficulty at present exists both in the home and the school, while it destroys the value of many manuals written for the sexual instruction of the young. The mother, who ought to be the child's confidant and guide in matters of sexual education, and could naturally be so if left to her own healthy instincts, has usually been brought up in false traditions which it requires a high degree of intelligence and character to escape from; the school-teacher, even if only called upon to give instruction in natural history, is oppressed by the same traditions, and by false shame concerning the whole subject of sex; the writer of manuals on sex has often only freed himself from these bonds in order to advocate dogmatic, unscientific, and sometimes mischievous opinions which have been evolved in entire ignorance of the real facts. As Moll says (Das _Sexualleben des Kindes_, p. 276), necessary as sexual enlightenment is, we cannot help feeling a little skeptical as to its results so long as those who ought to enlighten are themselves often in need of enlightenment. He refers also to the fact that even among competent authorities there is difference of opinion concerning important matters, as, for instance, whether masturbation is physiological at the first development of the sexual impulse and how far sexual abstinence is beneficial. But it is evident that the difficulties due to false tradition and ignorance will diminish as sound traditions and better knowledge become more widely diffused.

The girl at puberty is usually less keenly and definitely conscious of her sexual nature than the boy. But the risks she runs from sexual ignorance, though for the most part different, are more subtle and less easy to repair. She is often extremely inquisitive concerning these matters; the thoughts of adolescent girls, and often their conversation among themselves, revolve much around sexual and allied mysteries. Even in the matter of conscious sexual impulse the girl is often not so widely different from her brother, nor so much less likely to escape the contamination of evil communications, so that the scruples of foolish and ignorant persons who dread to "sully her purity" by proper instruction are exceedingly misplaced.

Conversations dealing with the important mysteries of human nature, Obici and Marchesini were told by ladies who had formerly been pupils in Italian Normal Schools, are the order of the day in schools and colleges, and specially circle around procreation, the most difficult mystery of all. In England, even in the best and most modern colleges, in which games and physical exercise are much cultivated, I am told that "the majority of the girls are entirely ignorant of all sexual matters, and

understand nothing whatever about them. But they do wonder about them, and talk about them constantly" (see Appendix D, "The School Friendships of Girls," in the second volume of these _Studies_). "The restricted life and fettered mind of girls," wrote a well-known physician some years ago (J. Milner Fothergill, _Adolescence_, 1880, pp. 20, 22) "leave them with less to actively occupy their thoughts than is the case with boys. They are studiously taught concealment, and a girl may be a perfect model of outward decorum and yet have a very filthy mind. The prudishness with which she is brought up leaves her no alternative but to view her passions from the nasty side of human nature. All healthy thought on the subject is vigorously repressed. Everything is done to darken her mind and foul her imagination by throwing her back on her own thoughts and a literature with which she is ashamed to own acquaintance. It is opposed to a girl's best interests to prevent her from having fair and just conceptions about herself and her nature. Many a fair young girl is irredeemably ruined on the very threshold of life, herself and her family disgraced, from ignorance as much as from vice. When the moment of temptation comes she falls without any palpable resistance; she has no trained educated power of resistance within herself; her whole future hangs, not upon herself, but upon the perfection of the social safeguards by which she is hedged and surrounded." Under the free social order of America to-day much the same results are found. In an instructive article ("Why Girls Go Wrong," _Ladies' Home Journal_, Jan., 1907) B.B. Lindsey, who, as Judge of the Juvenile Court of Denver, is able to speak with authority, brings forward ample evidence on this head. Both girls and boys, he has found, sometimes possess manuscript books in which they had written down the crudest sexual things. These children were often sweet-faced, pleasant, refined and intelligent, and they had respectable parents; but no one had ever spoken to them of sex matters, except the worst of their school-fellows or some coarse-minded and reckless adult. By careful inquiry Lindsey found that only in one in twenty cases had the parents ever spoken to the children of sexual subjects. In nearly every case the children acknowledged that it was not from their parents, but in the street or from older companions, that they learnt the facts of sex. The parents usually imagined that their children were absolutely ignorant of these matters, and were astonished to realize their mistake; "parents do not know their children, nor have they the least idea of what their children know, or what their children talk about and do when away from them." The parents guilty of this neglect to instruct their children, are, Lindsey declares, traitors to their children. From his own experience he judges that nine-tenths of the girls who "go wrong," whether or not they sink in the world, do so owing to the inattention of their parents, and that in the case of most prostitutes the mischief is really done before the age of twelve; "every wayward girl I have talked to has assured me of this truth." He considers that nine-tenths of school-boys and school-girls, in town or country, are very inquisitive regarding matters of sex, and, to his own amazement, he has found that in the girls this is as marked as in the boys.

It is the business of the girl's mother, at least as much as of the boy's, to watch over her child from the earliest years and to win her confidence in all the intimate and personal matters of sex. With these aspects the school cannot properly meddle. But in matters of physical sexual hygiene, notably menstruation, in regard to which

all girls stand on the same level, it is certainly the duty of the teacher to take an actively watchful part, and, moreover, to direct the general work of education accordingly, and to ensure that the pupil shall rest whenever that may seem to be desirable. This is part of the very elements of the education of girls. To disregard it should disqualify a teacher from taking further share in educational work. Yet it is constantly and persistently neglected. A large number of girls have not even been prepared by their mothers or teachers for the first onset of the menstrual flow, sometimes with disastrous results both to their bodily and mental health.[26]

"I know of no large girl's school," wrote a distinguished gynæcologist, Sir W.S. Playfair ("Education and Training of Girls at Puberty," _British Medical Journal_, Dec. 7, 1895), "in which the absolute distinction which exists between boys and girls as regards the dominant menstrual function is systematically cared for and attended to. Indeed, the feeling of all schoolmistresses is distinctly antagonistic to such an admission. The contention is that there is no real difference between an adolescent male and female, that what is good for one is good for the other, and that such as there is is due to the evil customs of the past which have denied to women the ambitions and advantages open to men, and that this will disappear when a happier era is inaugurated. If this be so, how comes it that while every practical physician of experience has seen many cases of anæmia and chlorosis in girls, accompanied by amenorrhæa or menorrhagia, headaches, palpitations, emaciation, and all the familiar accompaniments of breakdown, an analogous condition in a school-boy is so rare that it may well be doubted if it is ever seen at all?"

It is, however, only the excuses for this almost criminal negligence, as it ought to be considered, which are new; the negligence itself is ancient. Half a century earlier, before the new era of feminine education, another distinguished gynæcologist, Tilt (_Elements of Health and Principles of Female Hygiene_, 1852, p. 18) stated that from a statistical inquiry regarding the onset of menstruation in nearly one thousand women he found that "25 per cent. were totally unprepared for its appearance; that thirteen out of the twenty-five were much frightened, screamed, or went into hysterical fits; and that six out of the thirteen thought themselves wounded and washed with cold water. Of those frightened ... the general health was seriously impaired."

Engelmann, after stating that his experience in America was similar to Tilt's in England, continues ("The Health of the American Girl," _Transactions of the Southern Surgical and Gynæcological Society_, 1890): "To innumerable women has fright, nervous and emotional excitement, exposure to cold, brought injury at puberty. What more natural than that the anxious girl, surprised by the sudden and unexpected loss of the precious life-fluid, should seek to check the bleeding wound--as she supposes? For this purpose the use of cold washes and applications is common, some even seek to stop the flow by a cold bath, as was done by a now careful mother, who long lay at the point of death from the result of such indiscretion, and but slowly, by years of care, regained her health. The terrible warning has not been lost, and mindful of her own experience she has taught her children a lesson which but few are fortunate enough to learn--the individual care during periods of functional activity which is

needful for the preservation of woman's health."

In a study of one hundred and twenty-five American high school girls Dr. Helen Kennedy refers to the "modesty" which makes it impossible even for mothers and daughters to speak to each other concerning the menstrual functions. "Thirty-six girls in this high school passed into womanhood with no knowledge whatever, from a proper source, of all that makes them women. Thirty-nine were probably not much wiser, for they stated that they had received some instruction, but had not talked freely on the matter. From the fact that the curious girl did not talk freely on what naturally interested her, it is possible she was put off with a few words as to personal care, and a reprimand for her curiosity. Less than half of the girls felt free to talk with their mothers of this most important matter!" (Helen Kennedy, "Effects of High School Work upon Girls During Adolescence," _Pedagogical Seminary_, June, 1896.)

The same state of things probably also prevails in other countries. Thus, as regards France, Edmond de Goncourt in _Chérie_ (pp. 137-139) described the terror of his young heroine at the appearance of the first menstrual period for which she had never been prepared. He adds: "It is very seldom, indeed, that women speak of this eventuality. Mothers fear to warn their daughters, elder sisters dislike confidences with their younger sisters, governesses are generally mute with girls who have no mothers or sisters."

Sometimes this leads to suicide or to attempts at suicide. Thus a few years ago the case was reported in the French newspapers of a young girl of fifteen, who threw herself into the Seine at Saint-Ouen. She was rescued, and on being brought before the police commissioner said that she had been attacked by an "unknown disease" which had driven her to despair. Discreet inquiry revealed that the mysterious malady was one common to all women, and the girl was restored to her insufficiently punished parents.

Half a century ago the sexual life of girls was ignored by their parents and teachers from reasons of prudishness; at the present time, when quite different ideas prevail regarding feminine education, it is ignored on the ground that girls should be as independent of their physiological sexual life as boys are. The fact that this mischievous neglect has prevailed equally under such different conditions indicates clearly that the varying reasons assigned for it are merely the cloaks of ignorance. With the growth of knowledge we may reasonably hope that one of the chief evils which at present undermine in early life not only healthy motherhood but healthy womanhood generally, may be gradually eliminated. The data now being accumulated show not only the extreme prevalence of painful, disordered, and absent menstruation in adolescent girls and young women, but also the great and sometimes permanent evils inflicted upon even healthy girls when at the beginning of sexual life they are subjected to severe strain of any kind. Medical authorities, whichever sex they belong to, may now be said to be almost or quite unanimous on this point. Some years ago, indeed, Dr. Mary Putnam Jacobi, in a very able book, _The Question of Rest for Women_, concluded that "ordinarily healthy" women may disregard the menstrual period, but she admitted that forty-six per cent, of women are not "ordinarily healthy," and a minority which comes so near to being a majority can by no means be

dismissed as a negligible quantity. Girls themselves, indeed, carried away by the ardor of their pursuit of work or amusement, are usually recklessly and ignorantly indifferent to the serious risks they run. But the opinions of teachers are now tending to agree with medical opinion in recognizing the importance of care and rest during the years of adolescence, and teachers are even prepared to admit that a year's rest from hard work during the period that a girl's sexual life is becoming established, while it may ensure her health and vigor, is not even a disadvantage from the educational point of view. With the growth of knowledge and the decay of ancient prejudices, we may reasonably hope that women will be emancipated from the traditions of a false civilization, which have forced her to regard her glory as her shame,--though it has never been so among robust primitive peoples,--and it is encouraging to find that so distinguished an educator as Principal Stanley Hall looks forward with confidence to such a time. In his exhaustive work on _Adolescence_ he writes: "Instead of shame of this function girls should be taught the greatest reverence for it, and should help it to normality by regularly stepping aside at stated times for a few years till it is well established and normal. To higher beings that looked down upon human life as we do upon flowers, these would be the most interesting and beautiful hours of blossoming. With more self-knowledge women will have more self-respect at this time. Savagery reveres this state and it gives to women a mystic awe. The time may come when we must even change the divisions of the year for women, leaving to man his week and giving to her the same number of Sabbaths per year, but in groups of four successive days per month. When woman asserts her true physiological rights she will begin here, and will glory in what, in an age of ignorance, man made her think to be her shame. The pathos about the leaders of woman's so-called emancipation, is that they, even more than those they would persuade, accept man's estimate of this state."[27]

These wise words cannot be too deeply pondered. The pathos of the situation has indeed been--at all events in the past for to-day a more enlightened generation is growing up--that the very leaders of the woman's movement have often betrayed the cause of women. They have adopted the ideals of men, they have urged women to become second-rate men, they have declared that the healthy natural woman disregards the presence of her menstrual functions. This is the very reverse of the truth. "They claim," remarks Engelmann, "that woman in her natural state is the physical equal of man, and constantly point to the primitive woman, the female of savage peoples, as an example of this supposed axiom. Do they know how well this same savage is aware of the weakness of woman and her susceptibility at certain periods of her life? And with what care he protects her from harm at these periods? I believe not. The importance of surrounding women with certain precautions during the height of these great functional waves of her existence was appreciated by all peoples living in an approximately natural state, by all races at all times; and among their comparatively few religious customs this one, affording rest to women, was most persistently adhered to." It is among the white races alone that the sexual invalidism of women prevails, and it is the white races alone, which, outgrowing the religious ideas with which the menstrual seclusion of women was associated, have flung away that beneficent seclusion itself, throwing away the baby with the bath in

an almost literal sense.[28]

In Germany Tobler has investigated the menstrual histories of over one thousand women (_Monatsschrift für Geburtshülfe und Gynäkologie_, July, 1905). He finds that in the great majority of women at the present day menstruation is associated with distinct deterioration of the general health, and diminution of functional energy. In 26 per cent. local pain, general malaise, and mental and nervous anomalies coexisted; in larger proportion come the cases in which local pain, general weak health or psychic abnormality was experienced alone at this period. In 16 per cent. only none of these symptoms were experienced. In a very small separate group the physical and mental functions were stronger during this period, but in half of these cases there was distinct disturbance during the intermenstrual period. Tobler concludes that, while menstruation itself is physiological, all these disturbances are pathological.

As far as England is concerned, at a discussion of normal and painful menstruation at a meeting of the British Association of Registered Medical Women on the 7th of July, 1908, it was stated by Miss Bentham that 50 per cent. of girls in good position suffered from painful menstruation. Mrs. Dunnett said it usually occurred between the ages of twenty-four and thirty, being frequently due to neglect to rest during menstruation in the earlier years, and Mrs. Grainger Evans had found that this condition was very common among elementary school teachers who had worked hard for examinations during early girlhood.

In America various investigations have been carried out, showing the prevalence of disturbance in the sexual health of school girls and young women. Thus Dr. Helen P. Kennedy obtained elaborate data concerning the menstrual life of one hundred and twenty-five high school girls of the average age of eighteen ("Effect of High School Work upon Girls During Adolescence," _Pedagogical Seminary_, June, 1896). Only twenty-eight felt no pain during the period; half the total number experienced disagreeable symptoms before the period (such as headache, malaise, irritability of temper), while forty-four complained of other symptoms besides pain during the period (especially headache and great weakness). Jane Kelley Sabine (quoted in _Boston Medical and Surgical Journal_, Sept. 15, 1904) found in New England schools among two thousand girls that 75 per cent. had menstrual troubles, 90 per cent. had leucorrhoea and ovarian neuralgia, and 60 per cent. had to give up work for two days during each month. These results seem more than usually unfavorable, but are significant, as they cover a large number of cases. The conditions in the Pacific States are not much better. Dr. Mary Ritter (in a paper read before the California State Medical Society in 1903) stated that of 660 Freshmen girls at the University of California, 67 per cent. were subject to menstrual disorders, 27 per cent. to headaches, 30 per cent. to backaches, 29 per cent. were habitually constipated, 16 per cent. had abnormal heart sounds; only 23 per cent. were free from functional disturbances. Dr. Helen MacMurchey, in an interesting paper on "Physiological Phenomena Preceding or Accompanying Menstruation" (_Lancet_, Oct. 5, 1901), by inquiries among one hundred medical women, nurses, and women teachers in Toronto concerning the presence or absence of twenty-one different abnormal menstrual phenomena, found that between 50 and 60 per cent. admitted that they

were liable at this time to disturbed sleep, to headache, to mental depression, to digestive disturbance, or to disturbance of the special senses, while about 25 to 50 per cent. were liable to neuralgia, to vertigo, to excessive nervous energy, to defective nervous and muscular power, to cutaneous hyperæsthesia, to vasomotor disturbances, to constipation, to diarrhoea, to increased urination, to cutaneous eruption, to increased liability to take cold, or to irritating watery discharges before or after the menstrual discharge. This inquiry is of much interest, because it clearly brings out the marked prevalence at menstruation of conditions which, though not necessarily of any gravity, yet definitely indicate decreased power of resistance to morbid influences and diminished efficiency for work.

How serious an impediment menstrual troubles are to a woman is indicated by the fact that the women who achieve success and fame seem seldom to be greatly affected by them. To that we may, in part, attribute the frequency with which leaders of the women's movement have treated menstruation as a thing of no importance in a woman's life. Adele Gerhard, and Helene Simon, also, in their valuable and impartial work, _Mutterschaft und Geistige Arbeit_ (p. 312), failed to find, in their inquiries among women of distinguished ability, that menstruation was regarded as seriously disturbing to work.

Of late the suggestion that adolescent girls shall not only rest from work during two days of the menstrual period, but have an entire holiday from school during the first year of sexual life, has frequently been put forward, both from the medical and the educational side. At the meeting of the Association of Registered Medical Women, already referred to, Miss Sturge spoke of the good results obtained in a school where, during the first two years after puberty, the girls were kept in bed for the first two days of each menstrual period. Some years ago Dr. G.W. Cook ("Some Disorders of Menstruation," _American Journal of Obstetrics_, April, 1896), after giving cases in point, wrote: "It is my deliberate conviction that no girl should be confined at study during the year of her puberty, but she should live an outdoor life." In an article on "Alumna's Children," by "An Alumna" (_Popular Science Monthly_, May, 1904), dealing with the sexual invalidism of American women and the severe strain of motherhood upon them, the author, though she is by no means hostile to education, which is not, she declares, at fault, pleads for rest for the pubertal girl. "If the brain claims her whole vitality, how can there be any proper development? Just as very young children should give all their strength for some years solely to physical growth before the brain is allowed to make any considerable demands, so at this critical period in the life of the woman nothing should obstruct the right of way of this important system. A year at the least should be made especially easy for her, with neither mental nor nervous strain; and throughout the rest of her school days she should have her periodical day of rest, free from any study or overexertion." In another article on the same subject in the same journal ("The Health of American Girls," Sept., 1907), Nellie Comins Whitaker advocates a similar course. "I am coming to be convinced, somewhat against my wish, that there are many cases when the girl ought to be taken out of school entirely for some months or for a year _at the period of puberty_." She adds that the chief obstacle in the way is the girl's own likes and dislikes, and the ignorance of her mother who has been accustomed to think that pain

is a woman's natural lot.

Such a period of rest from mental strain, while it would fortify the organism in its resistance to any reasonable strain later, need by no means be lost for education in the wider sense of the word, for the education required in classrooms is but a small part of the education required for life. Nor should it by any means be reserved merely for the sickly and delicate girl. The tragic part of the present neglect to give girls a really sound and fitting education is that the best and finest girls are thereby so often ruined. Even the English policeman, who admittedly belongs in physical vigor and nervous balance to the flower of the population, is unable to bear the strain of his life, and is said to be worn out in twenty-five years. It is equally foolish to submit the finest flowers of girlhood to a strain which is admittedly too severe.

It seems to be clear that the main factor in the common sexual and general invalidism of girls and young women is bad hygiene, in the first place consisting in neglect of the menstrual functions and in the second place in faulty habits generally. In all the more essential matters that concern the hygiene of the body the traditions of girls--and this seems to be more especially the case in the Anglo-Saxon countries--are inferior to those of youths. Women are much more inclined than men to subordinate these things to what seems to them some more urgent interest or fancy of the moment; they are trained to wear awkward and constricting garments, they are indifferent to regular and substantial meals, preferring innutritious and indigestible foods and drinks; they are apt to disregard the demands of the bowels and the bladder out of laziness or modesty; they are even indifferent to physical cleanliness.[29] In a great number of minor ways, which separately may seem to be of little importance, they play into the hands of an environment which, not always having been adequately adjusted to their special needs, would exert a considerable stress and strain even if they carefully sought to guard themselves against it. It has been found in an American Women's College in which about half the scholars wore corsets and half not, that nearly all the honors and prizes went to the non-corset-wearers. McBride, in bringing forward this fact, pertinently remarks, "If the wearing of a single style of dress will make this difference in the lives of young women, and that, too, in their most vigorous and resistive period, how much difference will a score of unhealthy habits make, if persisted in for a life-time?"[30]

"It seems evident," A.E. Giles concludes ("Some Points of Preventive Treatment in the Diseases of Women," _The Hospital_, April 10, 1897) "that dysmenorrhoea might be to a large extent prevented by attention to general health and education. Short hours of work, especially of standing; plenty of outdoor exercise--tennis, boating, cycling, gymnastics, and walking for those who cannot afford these; regularity of meals and food of the proper quality--not the incessant tea and bread and butter with variation of pastry; the avoidance of overexertion and prolonged fatigue; these are some of the principal things which require attention. Let girls pursue their study, but more leisurely; they will arrive at the same goal, but a little later." The benefit of allowing free movement and exercise to the whole body is undoubtedly very great, both as regards the sexual and general physical health and the mental balance; in order to insure this it is necessary to avoid heavy and constricting garments, more

especially around the chest, for it is in respiratory power and chest expansion more than in any other respect that girls fall behind boys (see, e.g., Havelock Ellis, _Man and Woman_, Ch. IX). In old days the great obstacle to the free exercise of girls lay in an ideal of feminine behavior which involved a prim restraint on every natural movement of the body. At the present day that ideal is not so fervently preached as of old, but its traditional influence still to some extent persists, while there is the further difficulty that adequate time and opportunity and encouragement are by no means generally afforded to girls for the cultivation and training of the romping instincts which are really a serious part of education, for it is by such free exercise of the whole body that the neuro-muscular system, the basis of all vital activity, is built up. The neglect of such education is to-day clearly visible in the structure of our women. Dr. F. May Dickinson Berry, Medical Examiner to the Technical Education Board of the London County Council, found (_British Medical Journal_, May 28, 1904) among over 1,500 girls, who represent the flower of the schools, since they had obtained scholarships enabling them to proceed to higher grade schools, that 22 per cent, presented some degree, not always pronounced, of lateral curvature of the spine, though such cases were very rare among the boys. In the same way among a very similar class of select girls at the Chicago Normal School, Miss Lura Sanborn (_Doctors' Magazine_, Dec., 1900) found 17 per cent, with spinal curvature, in some cases of a very pronounced degree. There is no reason why a girl should not have as straight a back as a boy, and the cause can only lie in the defective muscular development which was found in most of the cases, sometimes accompanied by anæmia. Here and there nowadays, among the better social classes, there is ample provision for the development of muscular power in girls, but in any generalized way there is no adequate opportunity for such exercise, and among the working class, above all, in the section of it which touches the lower middle class, although their lives are destined to be filled with a constant strain on the neuro-muscular system from work at home or in shops, etc., there is usually a minimum of healthy exercise and physical development. Dr. W.A.B. Sellman, of Baltimore ("Causes of Painful Menstruation in Unmarried Women," _American Journal Obstetrics_, Nov., 1907), emphasizes the admirable results obtained by moderate physical exercise for young women, and in training them to care for their bodies and to rest their nervous systems, while Dr. Charlotte Brown, of San Francisco, rightly insists on the establishment in all towns and villages alike of outdoor gymnastic fields for women and girls, and of a building, in connection with every large school, for training in physical, manual, and domestic science. The provision of special playgrounds is necessary where the exercising of girls is so unfamiliar as to cause an embarrassing amount of attention from the opposite sex, though when it is an immemorial custom it can be carried out on the village green without attracting the slightest attention, as I have seen in Spain, where one cannot fail to connect it with the physical vigor of the women. In boys' schools games are not only encouraged, but made compulsory; but this is by no means a universal rule in girls' schools. It is not necessary, and is indeed highly undesirable, that the games adopted should be those of boys. In England especially, where the movements of women are so often marked by awkwardness, angularity and lack of grace, it is essential that nothing should be done to emphasize these characteristics, for where vigor involves violence we are in the presence of a

lack of due neuro-muscular coördination. Swimming, when possible, and especially some forms of dancing, are admirably adapted to develop the bodily movements of women both vigorously and harmoniously (see, e.g., Havelock Ellis, _Man and Woman_, Ch. VII). At the International Congress of School Hygiene in 1907 (see, e.g., _British Medical Journal_, Aug. 24, 1907) Dr. L.H. Gulick, formerly Director of Physical Training in the Public Schools of New York City, stated that after many experiments it had been found in the New York elementary and high schools that folk-dancing constituted the very best exercise for girls. "The dances selected involved many contractions of the large muscular masses of the body and had therefore a great effect on respiration, circulation and nutrition. Such movements, moreover, when done as dances, could be carried on three or four times as long without producing fatigue as formal gymnastics. Many folk-dances were imitative, sowing and reaping dance, dances expressing trade movements (the shoemaker's dance), others illustrating attack and defense, or the pursuit of game. Such neuro-muscular movements were racially old and fitted in with man's expressive life, and if it were accepted that the folk-dances really expressed an epitome of man's neuro-muscular history, as distinguished from mere permutation of movements, the folk-dance combinations should be preferred on these biological grounds to the unselected, or even the physiologically selected. From the æsthetic point of view the sense of beauty as shown in dancing was far commoner than the power to sing, paint or model."

It must always be remembered that in realizing the especial demands of woman's nature, we do not commit ourselves to the belief that higher education is unfitted for a woman. That question may now be regarded as settled. There is therefore no longer any need for the feverish anxiety of the early leaders of feminine education to prove that girls can be educated exactly as if they were boys, and yield at least as good educational results. At the present time, indeed, that anxiety is not only unnecessary but mischievous. It is now more necessary to show that women have special needs just as men have special needs, and that it is as bad for women, and therefore, for the world, to force them to accept the special laws and limitations of men as it would be bad for men, and therefore, for the world, to force men to accept the special laws and limitations of women. Each sex must seek to reach the goal by following the laws of its own nature, even although it remains desirable that, both in the school and in the world, they should work so far as possible side by side. The great fact to be remembered always is that, not only are women, in physical size and physical texture, slighter and finer than men, but that to an extent altogether unknown among men, their centre of gravity is apt to be deflected by the series of rhythmic sexual curves on which they are always living. They are thus more delicately poised and any kind of stress or strain--cerebral, nervous, or muscular--is more likely to produce serious disturbance and requires an accurate adjustment to their special needs.

The fact that it is stress and strain in general, and not necessarily educational studies, that are injurious to adolescent women, is sufficiently proved, if proof is necessary, by the fact that sexual arrest, and physical or nervous breakdown, occur with extreme frequency in girls who work in shops or mills, even in girls who have never been to school at all. Even excesses in athletics--which now not infrequently

occur as a reaction against woman's indifference to physical exercise--are bad. Cycling is beneficial for women who can ride without pain or discomfort, and, according to Watkins, it is even beneficial in many diseased and disordered pelvic conditions, but excessive cycling is evil in its results on women, more especially by inducing rigidity of the perineum to an extent which may even prevent childbirth and necessitate operation. I may add that the same objection applies to much horse-riding. In the same way everything which causes shocks to the body is apt to be dangerous to women, since in the womb they possess a delicately poised organ which varies in weight at different times, and it would, for instance, be impossible to commend football as a game for girls. "I do not believe," wrote Miss H. Ballantine, Director of Vassar College Gymnasium, to Prof. W. Thomas (_Sex and Society_, p. 22) "women can ever, no matter what the training, approach men in their physical achievements; and," she wisely adds, "I see no reason why they should." There seem, indeed, as has already been indicated, to be reasons why they should not, especially if they look forward to becoming mothers. I have noticed that women who have lived a very robust and athletic outdoor life, so far from always having the easy confinements which we might anticipate, sometimes have very seriously difficult times, imperilling the life of the child. On making this observation to a distinguished obstetrician, the late Dr. Engelmann, who was an ardent advocate of physical exercise for women (in e.g. his presidential address, "The Health of the American Girl," _Transactions Southern Surgical and Gynæcological Association_, 1890), he replied that he had himself made the same observation, and that instructors in physical training, both in America and England, had also told him of such cases among their pupils. "I hold," he wrote, "precisely the opinion you express [as to the unfavorable influence of muscular development in women]. _Athletics_, i.e., overdone physical training, causes the girl's system to approximate to the masculine; this is so whether due to sport or necessity. The woman who indulges in it approximates to the male in her attributes; this is marked in diminished sexual intensity, and in increased difficulty of childbirth, with, in time, lessened fecundity. Healthy habits improve, but masculine muscular development diminishes, womanly qualities, although it is true that the peasant and the laboring woman have easy labor. I have never advocated muscular development for girls, only physical training, but have perhaps said too much for it and praised it too unguardedly. In schools and colleges, so far, however, it is insufficient rather than too much; only the wealthy have too much golf and athletic sports. I am collecting new material, but from what I already have seen I am impressed with the truth of what you say. I am studying the point, and shall elaborate the explanation." Any publication on this subject was, however, prevented by Engelmann's death a few years later.

A proper recognition of the special nature of woman, of her peculiar needs and her dignity, has a significance beyond its importance in education and hygiene. The traditions and training to which she is subjected in this matter have a subtle and far-reaching significance, according as they are good or evil. If she is taught, implicitly or explicitly, contempt for the characteristics of her own sex, she naturally develops masculine ideals which may permanently discolor her vision of life and distort her practical activities; it has been found that as many as fifty per cent. of

American school girls have masculine ideals, while fifteen per cent. American and no fewer than thirty-four per cent. English school girls wished to be men, though scarcely any boys wished to be women.[31] With the same tendency may be connected that neglect to cultivate the emotions, which, by a mischievously extravagant but inevitable reaction from the opposite extreme, has sometimes marked the modern training of women. In the finely developed woman, intelligence is interpenetrated with emotion. If there is an exaggerated and isolated culture of intelligence a tendency shows itself to disharmony which breaks up the character or impairs its completeness. In this connection Reibmayr has remarked that the American woman may serve as a warning.[32] Within the emotional sphere itself, it may be added, there is a tendency to disharmony in women owing to the contradictory nature of the feelings which are traditionally impressed upon her, a contradiction which dates back indeed to the identification of sacredness and impurity at the dawn of civilization. "Every girl and woman," wrote Hellmann, in a pioneering book which pushed a sound principle to eccentric extremes, "is taught to regard her sexual parts as a precious and sacred spot, only to be approached by a husband or in special circumstances a doctor. She is, at the same time, taught to regard this spot as a kind of water-closet which she ought to be extremely ashamed to possess, and the mere mention of which should cause a painful blush."[33] The average unthinking woman accepts the incongruity of this opposition without question, and grows accustomed to adapt herself to each of the incompatibles according to circumstances. The more thoughtful woman works out a private theory of her own. But in very many cases this mischievous opposition exerts a subtly perverting influence on the whole outlook towards Nature and life. In a few cases, also, in women of sensitive temperament, it even undermines and ruins the psychic personality.

Thus Boris Sidis has recorded a case illustrating the disastrous results of inculcating on a morbidly sensitive girl the doctrine of the impurity of women. She was educated in a convent. "While there she was impressed with the belief that woman is a vessel of vice and impurity. This seemed to have been imbued in her by one of the nuns who was very holy and practiced self-mortification. With the onset of her periods, and with the observation of the same in the other girls, this doctrine of female impurity was all the stronger impressed on her sensitive mind." It lapsed, however, from conscious memory and only came to the foreground in subsequent years with the exhaustion and fatigue of prolonged office work. Then she married. Now "she has an extreme abhorrence of women. Woman, to the patient, is impurity, filth, the very incarnation of degradation and vice. The house wash must not be given to a laundry where women work. Nothing must be picked up in the street, not even the most valuable object, perchance it might have been dropped by a woman" (Boris Sidis, "Studies in Psychopathology," _Boston Medical and Surgical Journal_, April 4, 1907). That is the logical outcome of much of the traditional teaching which is given to girls. Fortunately, the healthy mind offers a natural resistance to its complete acceptation, yet it usually, in some degree, persists and exerts a mischievous influence.

It is, however, not only in her relations to herself and to her sex that a girl's thoughts and feelings tend to be distorted by the ignorance or the false traditions by which she is so often carefully surrounded. Her happiness in marriage, her whole future career, is put in peril. The innocent young woman must always risk much in entering the door of indissoluble marriage; she knows nothing truly of her husband, she knows nothing of the great laws of love, she knows nothing of her own possibilities, and, worse still, she is even ignorant of her ignorance. She runs the risk of losing the game while she is still only beginning to learn it. To some extent that is quite inevitable if we are to insist that a woman should bind herself to marry a man before she has experienced the nature of the forces that marriage may unloose in her. A young girl believes she possesses a certain character; she arranges her future in accordance with that character; she marries. Then, in a considerable proportion of cases (five out of six, according to the novelist Bourget), within a year or even a week, she finds she was completely mistaken in herself and in the man she has married; she discovers within her another self, and that self detests the man to whom she is bound. That is a possible fate against which only the woman who has already been aroused to love is entitled to regard herself as fairly protected.

There is, however, a certain kind of protection which it is possible to afford the bride, even without departing from our most conventional conceptions of marriage. We can at least insist that she shall be accurately informed as to the exact nature of her physical relations to her future husband and be safeguarded from the shocks or the disillusions which marriage might otherwise bring. Notwithstanding the decay of prejudices, it is probable that even to-day the majority of women of the so-called educated class marry with only the vaguest and most inaccurate notions, picked up more or less clandestinely, concerning the nature of the sexual relationships. So highly intelligent a woman as Madame Adam has stated that she believed herself bound to marry a man who had kissed her on the mouth, imagining that to be the supreme act of sexual union,[34] and it has frequently happened that women have married sexually inverted persons of their own sex, not always knowingly, but believing them to be men, and never discovering their mistake; it is not long indeed since in America three women were thus successively married to the same woman, none of them apparently ever finding out the real sex of the "husband." "The civilized girl," as Edward Carpenter remarks, "is led to the 'altar' often in uttermost ignorance and misunderstanding of the sacrificial rites about to be consummated." Certainly more rapes have been effected in marriage than outside it.[35] The girl is full of vague and romantic faith in the promises of love, often heightened by the ecstasies depicted in sentimental novels from which every touch of wholesome reality has been carefully omitted. "All the candor of faith is there," as Sénancour puts it in his book _De l'Amour_, "the desires of inexperience, the needs of a new life, the hopes of an upright heart. She has all the faculties of love, she must love; she has all the means of pleasure, she must be loved. Everything expresses love and demands love: this hand formed for sweet caresses, an eye whose resources are unknown if it must not say that it consents to be loved, a bosom which is motionless and useless without love, and will fade without having been worshipped; these feelings that are so vast, so tender, so voluptuous, the ambition of the heart, the heroism of passion! She needs

must follow the delicious rule which the law of the world has dictated. That intoxicating part, which she knows so well, which everything recalls, which the day inspires and the night commands, what young, sensitive, loving woman can imagine that she shall not play it?" But when the actual drama of love begins to unroll before her, and she realizes the true nature of the "intoxicating part" she has to play, then, it has often happened, the case is altered; she finds herself altogether unprepared, and is overcome with terror and alarm. All the felicity of her married life may then hang on a few chances, her husband's skill and consideration, her own presence of mind. Hirschfeld records the case of an innocent young girl of seventeen--in this case, it eventually proved, an invert--who was persuaded to marry but on discovering what marriage meant energetically resisted her husband's sexual approaches. He appealed to her mother to explain to her daughter the nature of "wifely duties." But the young wife replied to her mother's expostulations, "If that is my wifely duty then it was your parental duty to have told me beforehand, for, if I had known, I should never have married." The husband in this case, much in love with his wife, sought for eight years to over-persuade her, but in vain, and a separation finally took place.[36] That, no doubt, is an extreme case, but how many innocent young inverted girls never realize their true nature until after marriage, and how many perfectly normal girls are so shocked by the too sudden initiation of marriage that their beautiful early dreams of love never develop slowly and wholesomely into the acceptance of its still more beautiful realities?

Before the age of puberty it would seem that the sexual initiation of the child--apart from such scientific information as would form part of school courses in botany and zoölogy--should be the exclusive privilege of the mother, or whomever it may be to whom the mother's duties are delegated. At puberty more authoritative and precise advice is desirable than the mother may be able or willing to give. It is at this age that she should put into her son's or daughter's hands some one or other of the very numerous manuals to which reference has already been made (page 53), expounding the physical and moral aspects of the sexual life and the principles of sexual hygiene. The boy or girl is already, we may take it, acquainted with the facts of motherhood, and the origin of babies, as well as, more or less precisely, with the father's part in their procreation. Whatever manual is now placed in his or her hands should at least deal summarily, but definitely, with the sexual relationship, and should also comment, warningly but in no alarmist spirit, with the chief auto-erotic phenomena, and by no means exclusively with masturbation. Nothing but good can come of the use of such a manual, if it has been wisely selected; it will supplant what the mother has already done, what the teacher may still be doing, and what later may be done by private interview with a doctor. It has indeed been argued that the boy or girl to whom such literature is presented will merely make it an opportunity for morbid revelry and sensual enjoyment. It can well be believed that this may sometimes happen with boys or girls from whom all sexual facts have always been mysteriously veiled, and that when at last they find the opportunity of gratifying their long-repressed and perfectly natural curiosity they are overcome by the excitement of the event. It could not happen to children who have been naturally and wholesomely brought up. At a later age, during adolescence, there is doubtless great advantage in

the plan, now frequently adopted, especially in Germany, of giving lectures, addresses, or quiet talks to young people of each sex separately. The speaker is usually a specially selected teacher, a doctor or other qualified person who may be brought in for this special purpose.

Stanley Hall, after remarking that sexual education should be chiefly from fathers to sons and from mothers to daughters, adds: "It may be that in the future this kind of initiation will again become an art, and experts will tell us with more confidence how to do our duty to the manifold exigencies, types and stages of youth, and instead of feeling baffled and defeated, we shall see that this age and theme is the supreme opening for the highest pedagogy to do its best and most transforming work, as well as being the greatest of all opportunities for the teacher of religion" (Stanley Hall, _Adolescence_, vol. i, p. 469). "At Williams College, Harvard, Johns Hopkins and Clark," the same distinguished teacher observes (ib., p. 465), "I have made it a duty in my departmental teaching to speak very briefly, but plainly to young men under my instruction, personally if I deemed it wise, and often, though here only in general terms, before student bodies, and I believe I have nowhere done more good, but it is a painful duty. It requires tact and some degree of hard and strenuous common sense rather than technical knowledge."

It is scarcely necessary to say that the ordinary teacher of either sex is quite incompetent to speak of sexual hygiene. It is a task to which all, or some, teachers must be trained. A beginning in this direction has been made in Germany by the delivery to teachers of courses of lectures on sexual hygiene in education. In Prussia the first attempt was made in Breslau when the central school authorities requested Dr. Martin Chotzen to deliver such a course to one hundred and fifty teachers who took the greatest interest in the lectures, which covered the anatomy of the sexual organs, the development of the sexual instinct, its chief perversions, venereal diseases, and the importance of the cultivation of self-control. In _Geschlecht und Gesellschaft_ (Bd. i, Heft 7) Dr. Fritz Reuther gives the substance of lectures which he has delivered to a class of young teachers; they cover much the same ground as Chotzen's.

There is no evidence that in England the Minister of Education has yet taken any steps to insure the delivery of lectures on sexual hygiene to the pupils who are about to leave school. In Prussia, however, the Ministry of Education has taken an active interest in this matter, and such lectures are beginning to be commonly delivered, though attendance at them is not usually obligatory. Some years ago (in 1900), when it was proposed to deliver a series of lectures on sexual hygiene to the advanced pupils in Berlin schools, under the auspices of a society for the improvement of morals, the municipal authorities withdrew their permission to use the classrooms, on the ground that "such lectures would be extremely dangerous to the moral sense of an audience of the young." The same objection has been made by municipal officials in France. In Germany, at all events, however, opinion is rapidly growing more enlightened. In England little or no progress has yet been made, but in America steps are being taken in this direction, as by the Chicago Society for Social Hygiene. It must, indeed, be said that those who oppose the sexual enlightenment of youth in

large cities are directly allying themselves, whether or not they know it, with the influences that make for vice and immorality.

Such lectures are also given to girls on leaving school, not only girls of the well-to-do, but also those of the poor class, who need them fully as much, and in some respects more. Thus Dr. A. Heidenhain has published a lecture (_Sexuelle Belehrung der aus den Volksschule entlassenen Mädchen_, 1907), accompanied by anatomical tables, which he has delivered to girls about to leave school, and which is intended to be put into their hands at this time. Salvat, in a Lyons thesis (_La Dépopulation de la France_, 1903), insists that the hygiene of pregnancy and the care of infants should form part of the subject of such lectures. These subjects might well be left, however, to a somewhat later period.

Something is clearly needed beyond lectures on these matters. It should be the business of the parents or other guardians of every adolescent youth and girl to arrange that, once at least at this period of life, there should be a private, personal interview with a medical man to afford an opportunity for a friendly and confidential talk concerning the main points of sexual hygiene. The family doctor would be the best for this duty because he would be familiar with the personal temperament of the youth and the family tendencies.[37] In the case of girls a woman doctor would often be preferred. Sex is properly a mystery; and to the unspoilt youth, it is instinctively so; except in an abstract and technical form it cannot properly form the subject of lectures. In a private and individualized conversation between the novice in life and the expert, it is possible to say many necessary things that could not be said in public, and it is possible, moreover, for the youth to ask questions which shyness and reserve make it impossible to put to parents, while the convenient opportunity of putting them naturally to the expert otherwise seldom or never occurs. Most youths have their own special ignorances, their own special difficulties, difficulties and ignorances that could sometimes be resolved by a word. Yet it by no means infrequently happens that they carry them far on into adult life because they have lacked the opportunity, or the skill and assurance to create the opportunity, of obtaining enlightenment.

It must be clearly understood that these talks are of medical, hygienic, and physiological character; they are not to be used for retailing moral platitudes. To make them that would be a fatal mistake. The young are often very hostile to merely conventional moral maxims, and suspect their hollowness, not always without reason. The end to be aimed at here is enlightenment. Certainly knowledge can never be immoral, but nothing is gained by jumbling up knowledge and morality together.

In emphasizing the nature of the physician's task in this matter as purely and simply that of wise practical enlightenment, nothing is implied against the advantages, and indeed the immense value in sexual hygiene, of the moral, religious, ideal elements of life. It is not the primary business of the physician to inspire these, but they have a very intimate relation with the sexual life, and every boy and girl at puberty, and never before puberty, should be granted the privilege--and not the duty or the task--of initiation into those elements of the world's life which are, at the same time, natural functions of the adolescent soul. Here, however, is the sphere of the religious or ethical teacher. At puberty he has his great opportunity, the greatest he

can ever obtain. The flower of sex that blossoms in the body at puberty has its spiritual counterpart which at the same moment blossoms in the soul. The churches from of old have recognized the religious significance of this moment, for it is this period of life that they have appointed as the time of confirmation and similar rites. With the progress of the ages, it is true, such rites become merely formal and apparently meaningless fossils. But they have a meaning nevertheless, and are capable of being again vitalized. Nor in their spirit and essence should they be confined to those who accept supernaturally revealed religion. They concern all ethical teachers, who must realize that it is at puberty that they are called upon to inspire or to fortify the great ideal aspirations which at this period tend spontaneously to arise in the youth's or maiden's soul.[38]

The age of puberty, I have said, marks the period at which this new kind of sexual initiation is called for. Before puberty, although the psychic emotion of love frequently develops, as well as sometimes physical sexual emotions that are mostly vague and diffused, definite and localized sexual sensations are rare. For the normal boy or girl love is usually an unspecialized emotion; it is in Guyau's words "a state in which the body has but the smallest place." At the first rising of the sun of sex the boy or girl sees, as Blake said he saw at sunrise, not a round yellow body emerging above the horizon, or any other physical manifestation, but a great company of singing angels. With the definite eruption of physical sexual manifestation and desire, whether at puberty or later in adolescence, a new turbulent disturbing influence appears. Against the force of this influence, mere intellectual enlightenment, or even loving maternal counsel--the agencies we have so far been concerned with--may be powerless. In gaining control of it we must find our auxiliary in the fact that puberty is the efflorescence not only of a new physical but a new psychic force. The ideal world naturally unfolds itself to the boy or girl at puberty. The magic of beauty, the instinct of modesty, the naturalness of self-restraint, the idea of unselfish love, the meaning of duty, the feeling for art and poetry, the craving for religious conceptions and emotions--all these things awake spontaneously in the unspoiled boy or girl at puberty. I say "unspoiled," for if these things have been thrust on the child before puberty when they have yet no meaning for him--as is unfortunately far too often done, more especially as regards religious notions--then it is but too likely that he will fail to react properly at that moment of his development when he would otherwise naturally respond to them. Under natural conditions this is the period for spiritual initiation. Now, and not before, is the time for the religious or ethical teacher as the case may be--for all religions and ethical systems may equally adapt themselves to this task--to take the boy or girl in hand, not with any special and obtrusive reference to the sexual impulses but for the purpose of assisting the development and manifestation of this psychic puberty, of indirectly aiding the young soul to escape from sexual dangers by harnessing his chariot to a star that may help to save it from sticking fast in any miry ruts of the flesh.

Such an initiation, it is important to remark, is more than an introduction to the sphere of religious sentiment. It is an initiation into manhood, it must involve a recognition of the masculine even more than of the feminine virtues. This has been well understood by the finest primitive races. They constantly give their boys and

girls an initiation at puberty; it is an initiation that involves not merely education in the ordinary sense, but a stern discipline of the character, feats of endurance, the trial of character, the testing of the muscles of the soul as much as of the body.

Ceremonies of initiation into manhood at puberty--involving physical and mental discipline, as well as instruction, lasting for weeks or months, and never identical for both sexes--are common among savages in all parts of the world. They nearly always involve the endurance of a certain amount of pain and hardship, a wise measure of training which the softness of civilization has too foolishly allowed to drop, for the ability to endure hardness is an essential condition of all real manhood. It is as a corrective to this tendency to flabbiness in modern education that the teaching of Nietzsche is so invaluable.

The initiation of boys among the natives of Torres Straits has been elaborately described by A.C. Haddon (_Reports Anthropological Expedition to Torres Straits_, vol. v, Chs. VII and XII). It lasts a month, involves much severe training and power of endurance, and includes admirable moral instruction. Haddon remarks that it formed "a very good discipline," and adds, "it is not easy to conceive of a more effectual means for a rapid training."

Among the aborigines of Victoria, Australia, the initiatory ceremonies, as described by R.H. Mathews ("Some Initiation Ceremonies," _Zeitschrift für Ethnologie_, 1905, Heft 6), last for seven months, and constitute an admirable discipline. The boys are taken away by the elders of the tribe, subjected to many trials of patience and endurance of pain and discomfort, sometimes involving even the swallowing of urine and excrement, brought into contact with strange tribes, taught the laws and folk-lore, and at the end meetings are held at which betrothals are arranged.

Among the northern tribes of Central Australia the initiation ceremonies involve circumcision and urethral subincision, as well as hard manual labor and hardships. The initiation of girls into womanhood is accompanied by cutting open of the vagina. These ceremonies have been described by Spencer and Gillen (_Northern Tribes of Central Australia_, Ch. XI). Among various peoples in British East Africa (including the Masai) pubertal initiation is a great ceremonial event extending over a period of many months, and it includes circumcision in boys, and in girls clitoridectomy, as well as, among some tribes, removal of the nymphæ. A girl who winces or cries out during the operation is disgraced among the women and expelled from the settlement. When the ceremony has been satisfactorily completed the boy or girl is marriageable (C. Marsh Beadnell, "Circumcision and Clitoridectomy as Practiced by the Natives of British East Africa," _British Medical Journal_, April 29, 1905).

Initiation among the African Bawenda, as described by a missionary, is in three stages: (1) A stage of instruction and discipline during which the traditions and sacred things of the tribe are revealed, the art of warfare taught, self-restraint and endurance borne; then the youths are counted as full-grown. (2) In the next stage the art of dancing is practiced, by each sex separately, during the day. (3) In the final stage, which is that of complete sexual initiation, the two sexes dance together by night; the scene, in the opinion of the good missionary, "does not bear description;"

the initiated are now complete adults, with all the privileges and responsibilities of adults (Rev. E. Gottschling, "The Bawenda," _Journal Anthropological Institution_, July to Dec., 1905, p. 372. Cf., an interesting account of the Bawenda Tondo schools by another missionary, Wessmann, _The Bawenda_, pp. 60 et seq.).

The initiation of girls in Azimba Land, Central Africa, has been fully and interestingly described by H. Crawford Angus ("The Chensamwali' or Initiation Ceremony of Girls," _Zeitschrift für Ethnologie_, 1898, Heft 6). At the first sign of menstruation the girl is taken by her mother out of the village to a grass hut prepared for her where only the women are allowed to visit her. At the end of menstruation she is taken to a secluded spot and the women dance round her, no men being present. It was only with much difficulty that Angus was enabled to witness the ceremony. The girl is then informed in regard to the hygiene of menstruation. "Many songs about the relations between men and women are sung, and the girl is instructed as to all her duties when she becomes a wife.... The girl is taught to be faithful to her husband, and to try and bear children. The whole matter is looked upon as a matter of course, and not as a thing to be ashamed of or to hide, and being thus openly treated of and no secrecy made about it, you find in this tribe that the women are very virtuous, because the subject of married life has no glamour for them. When a woman is pregnant she is again danced; this time all the dancers are naked, and she is taught how to behave and what to do when the time of her delivery arrives."

Among the Yuman Indians of California, as described by Horatio Rust ("A Puberty Ceremony of the Mission Indians," _American Anthropologist_, Jan. to March, 1906, p. 28) the girls are at puberty prepared for marriage by a ceremony. They are wrapped in blankets and placed in a warm pit, where they lie looking very happy as they peer out through their covers. For four days and nights they lie here (occasionally going away for food), while the old women of the tribe dance and sing round the pit constantly. At times the old women throw silver coins among the crowd to teach the girls to be generous. They also give away cloth and wheat, to teach them to be kind to the old and needy; and they sow wild seeds broadcast over the girls to cause them to be prolific. Finally, all strangers are ordered away, garlands are placed on the girls' heads, and they are led to a hillside and shown the large and sacred stone, symbolical of the female organs of generation and resembling them, which is said to protect women. Then grain is thrown over all present, and the ceremony is over.

The Thlinkeet Eskimo women were long noted for their fine qualities. At puberty they were secluded, sometimes for a whole year, being kept in darkness, suffering, and filth. Yet defective and unsatisfactory as this initiation was, "Langsdorf suggests," says Bancroft (_Native Races of Pacific_, vol. i, p. 110), referring to the virtues of the Thlinkeet woman, "that it may be during this period of confinement that the foundation of her influence is laid; that in modest reserve and meditation her character is strengthened, and she comes forth cleansed in mind as well as body."

We have lost these ancient and invaluable rites of initiation into manhood and womanhood, with their inestimable moral benefits; at the most we have merely preserved the shells of initiation in which the core has decayed. In time, we cannot

doubt, they will be revived in modern forms. At present the spiritual initiation of youths and maidens is left to the chances of some happy accident, and usually it is of a purely cerebral character which cannot be perfectly wholesome, and is at the best absurdly incomplete.

This cerebral initiation commonly occurs to the youth through the medium of literature. The influence of literature in sexual education thus extends, in an incalculable degree, beyond the narrow sphere of manuals on sexual hygiene, however admirable and desirable these may be. The greater part of literature is more or less distinctly penetrated by erotic and auto-erotic conceptions and impulses; nearly all imaginative literature proceeds from the root of sex to flower in visions of beauty and ecstasy. The Divine Comedy of Dante is herein the immortal type of the poet's evolution. The youth becomes acquainted with the imaginative representations of love before he becomes acquainted with the reality of love, so that, as Leo Berg puts it, "the way to love among civilized peoples passes through imagination." All literature is thus, to the adolescent soul, a part of sexual education.[39] It depends, to some extent, though fortunately not entirely, on the judgment of those in authority over the young soul whether the literature to which the youth or girl is admitted is or is not of the large and humanizing order.

All great literature touches nakedly and sanely on the central facts of sex. It is always consoling to remember this in an age of petty pruderies. And it is a satisfaction to know that it would not be possible to emasculate the literature of the great ages, however desirable it might seem to the men of more degenerate ages, or to close the avenues to that literature against the young. All our religious and literary traditions serve to fortify the position of the Bible and of Shakespeare. "So many men and women," writes a correspondent, a literary man, "gain sexual ideas in childhood from reading the Old Testament, that the Bible may be called an erotic text-book. Most persons of either sex with whom I have conversed on the subject, say that the Books of Moses, and the stories of Amnon and Tamar, Lot and his daughters, Potiphar's wife and Joseph, etc., caused speculation and curiosity, and gave them information of the sexual relationship. A boy and girl of fifteen, both friends of the writer, and now over thirty years of age, used to find out erotic passages in the Bible on Sunday mornings, while in a Dissenting chapel, and pass their Bibles to one another, with their fingers on the portions that interested them." In the same way many a young woman has borrowed Shakespeare in order to read the glowing erotic poetry of _Venus and Adonis_, which her friends have told her about.

The Bible, it may be remarked, is not in every respect, a model introduction for the young mind to the questions of sex. But even its frank acceptance, as of divine origin, of sexual rules so unlike those that are nominally our own, such as polygamy and concubinage, helps to enlarge the vision of the youthful mind by showing that the rules surrounding the child are not those everywhere and always valid, while the nakedness and realism of the Bible cannot but be a wholesome and tonic corrective to conventional pruderies.

We must, indeed, always protest against the absurd confusion whereby nakedness of speech is regarded as equivalent to immorality, and not the less because it is often

adopted even in what are regarded as intellectual quarters. When in the House of Lords, in the last century, the question of the exclusion of Byron's statue from Westminster Abbey was under discussion, Lord Brougham "denied that Shakespeare was more moral than Byron. He could, on the contrary, point out in a single page of Shakespeare more grossness than was to be found in all Lord Byron's works." The conclusion Brougham thus reached, that Byron is an incomparably more moral writer than Shakespeare, ought to have been a sufficient _reductio ad absurdum_ of his argument, but it does not appear that anyone pointed out the vulgar confusion into which he had fallen.

It may be said that the special attractiveness which the nakedness of great literature sometimes possesses for young minds is unwholesome. But it must be remembered that the peculiar interest of this element is merely due to the fact that elsewhere there is an inveterate and abnormal concealment. It must also be said that the statements of the great writers about natural things are never degrading, nor even erotically exciting to the young, and what Emilia Pardo Bazan tells of herself and her delight when a child in the historical books of the Old Testament, that the crude passages in them failed to send the faintest cloud of trouble across her young imagination, is equally true of most children. It is necessary, indeed, that these naked and serious things should be left standing, even if only to counterbalance the lewdly comic efforts to besmirch love and sex, which are visible to all in every low-class bookseller's shop window.

This point of view was vigorously championed by the speakers on sexual education at the Third Congress of the German Gesellschaft zur Bekämpfung der Geschlechtskrankheiten in 1907. Thus Enderlin, speaking as a headmaster, protested against the custom of bowdlerizing poems and folk-songs for the use of children, and thus robbing them of the finest introduction to purified sexual impulses and the highest sphere of emotion, while at the same time they are recklessly exposed to the "psychic infection" of the vulgar comic papers everywhere exposed for sale. "So long as children are too young to respond to erotic poetry it cannot hurt them; when they are old enough to respond it can only benefit them by opening to them the highest and purest channels of human emotion" (_Sexualpädagogik_, p. 60). Professor Schäfenacker (id., p. 98) expresses himself in the same sense, and remarks that "the method of removing from school-books all those passages which, in the opinion of short-sighted and narrow-hearted schoolmasters, are unsuited for youth, must be decisively condemned." Every healthy boy and girl who has reached the age of puberty may be safely allowed to ramble in any good library, however varied its contents. So far from needing guidance they will usually show a much more refined taste than their elders. At this age, when the emotions are still virginal and sensitive, the things that are realistic, ugly, or morbid, jar on the young spirit and are cast aside, though in adult life, with the coarsening of mental texture which comes of years and experience, this repugnance, doubtless by an equally sound and natural instinct, may become much less acute.

Ellen Key in Ch. VI of her _Century of the Child_ well summarizes the reasons against the practice of selecting for children books that are "suitable" for them, a

practice which she considers one of the follies of modern education. The child should be free to read all great literature, and will himself instinctively put aside the things he is not yet ripe for. His cooler senses are undisturbed by scenes that his elders find too exciting, while even at a later stage it is not the nakedness of great literature, but much more the method of the modern novel, which is likely to stain the imagination, falsify reality and injure taste. It is concealment which misleads and coarsens, producing a state of mind in which even the Bible becomes a stimulus to the senses. The writings of the great masters yield the imaginative food which the child craves, and the erotic moment in them is too brief to be overheating. It is the more necessary, Ellen Key remarks, for children to be introduced to great literature, since they often have little opportunity to occupy themselves with it in later life. Many years earlier Ruskin, in _Sesame and Lilies_, had eloquently urged that even young girls should be allowed to range freely in libraries.

What has been said about literature applies equally to art. Art, as well as literature, and in the same indirect way, can be made a valuable aid in the task of sexual enlightenment and sexual hygiene. Modern art may, indeed, for the most part, be ignored from this point of view, but children cannot be too early familiarized with the representations of the nude in ancient sculpture and in the paintings of the old masters of the Italian school. In this way they may be immunized, as Enderlin expresses it, against those representations of the nude which make an appeal to the baser instincts. Early familiarity with nudity in art is at the same time an aid to the attainment of a proper attitude towards purity in nature. "He who has once learnt," as Höller remarks, "to enjoy peacefully nakedness in art, will be able to look on nakedness in nature as on a work of art."

Casts of classic nude statues and reproductions of the pictures of the old Venetian and other Italian masters may fittingly be used to adorn schoolrooms, not so much as objects of instruction as things of beauty with which the child cannot too early become familiarized. In Italy it is said to be usual for school classes to be taken by their teachers to the art museums with good results; such visits form part of the official scheme of education.

There can be no doubt that such early familiarity with the beauty of nudity in classic art is widely needed among all social classes and in many countries. It is to this defect of our education that we must attribute the occasional, and indeed in America and England frequent, occurrence of such incidents as petitions and protests against the exhibition of nude statuary in art museums, the display of pictures so inoffensive as Leighton's "Bath of Psyche" in shop windows, and the demand for the draping of the naked personifications of abstract virtues in architectural street decoration. So imperfect is still the education of the multitude that in these matters the ill-bred fanatic of pruriency usually gains his will. Such a state of things cannot but have an unwholesome reaction on the moral atmosphere of the community in which it is possible. Even from the religious point of view, prurient prudery is not justifiable. Northcote has very temperately and sensibly discussed the question of the nude in art from the standpoint of Christian morality. He points out that not only is the nude in art not to be condemned without qualification, and that the nude is by no

means necessarily the erotic, but he also adds that even erotic art, in its best and purest manifestations, only arouses emotions that are the legitimate object of man's aspirations. It would be impossible even to represent Biblical stories adequately on canvas or in marble if erotic art were to be tabooed (Rev. H. Northcote, _Christianity and Sex Problems_, Ch. XIV).

Early familiarity with the nude in classic and early Italian art should be combined at puberty with an equal familiarity with photographs of beautiful and naturally developed nude models. In former years books containing such pictures in a suitable and attractive manner to place before the young were difficult to procure. Now this difficulty no longer exists. Dr. C.H. Stratz, of The Hague, has been the pioneer in this matter, and in a series of beautiful books (notably in _Der Körper des Kindes, Die Schönheit des Weiblichen Körpers_ and _Die Rassenschönheit des Weibes_, all published by Enke in Stuttgart), he has brought together a large number of admirably selected photographs of nude but entirely chaste figures. More recently Dr. Shufeldt, of Washington (who dedicates his work to Stratz), has published his _Studies of the Human Form_ in which, in the same spirit, he has brought together the results of his own studies of the naked human form during many years. It is necessary to correct the impressions received from classic sources by good photographic illustrations on account of the false conventions prevailing in classic works, though those conventions were not necessarily false for the artists who originated them. The omission of the pudendal hair, in representations of the nude was, for instance, quite natural for the people of countries still under Oriental influence are accustomed to remove the hair from the body. If, however, under quite different conditions, we perpetuate that artistic convention to-day, we put ourselves into a perverse relation to nature. There is ample evidence of this. "There is one convention so ancient, so necessary, so universal," writes Mr. Frederic Harrison (_Nineteenth Century and After_, Aug., 1907), "that its deliberate defiance to-day may arouse the bile of the least squeamish of men and should make women withdraw at once." If boys and girls were brought up at their mother's knees in familiarity with pictures of beautiful and natural nakedness, it would be impossible for anyone to write such silly and shameful words as these.

There can be no doubt that among ourselves the simple and direct attitude of the child towards nakedness is so early crushed out of him that intelligent education is necessary in order that he may be enabled to discern what is and what is not obscene. To the plough-boy and the country servant-girl all nakedness, including that of Greek statuary, is alike shameful or lustful. "I have a picture of women like that," said a countryman with a grin, as he pointed to a photograph of one of Tintoret's most beautiful groups, "smoking cigarettes." And the mass of people in most northern countries have still passed little beyond this stage of discernment; in ability to distinguish between the beautiful and the obscene they are still on the level of the plough-boy and the servant-girl.

FOOTNOTES:

[18] These manifestations have been dealt with in the study of Autoerotism in vol. i of the present _Studies_. It may be added that the sexual life of the child has been exhaustively investigated by Moll, _Das Sexualleben des Kindes_, 1909.

[19] This genital efflorescence in the sexual glands and breasts at birth or in early infancy has been discussed in a Paris thesis, by Camille Renouf (_La Crise Génital et les Manifestations Connexes chez le Foetus et le Nouveau-né_, 1905); he is unable to offer a satisfactory explanation of these phenomena.

[20] Amélineau, _La Morale des Egyptiens_, p. 64.

[21] "The Social Evil in Philadelphia," _Arena_, March, 1896.

[22] Moll, _Konträre Sexualempfindung_, third edition, p. 592.

[23] This powerlessness of the law and the police is well recognized by lawyers familiar with the matter. Thus F. Werthauer (_Sittlichkeitsdelikte der Grosstadt_, 1907) insists throughout on the importance of parents and teachers imparting to children from their early years a progressively increasing knowledge of sexual matters.

[24] "Parents must be taught how to impart information," remarks E.L. Keyes ("Education upon Sexual Matters," _New York Medical Journal_, Feb. 10, 1906), "and this teaching of the parent should begin when he is himself a child."

[25] Moll (op. cit., p. 224) argues well how impossible it is to preserve children from sights and influence connected with the sexual life.

[26] Girls are not even prepared, in many cases, for the appearance of the pubic hair. This unexpected growth of hair frequently causes young girls much secret worry, and often they carefully cut it off.

[27] G.S. Hall, _Adolescence_, vol. i, p. 511. Many years ago, in 1875, the late Dr. Clarke, in his _Sex in Education_, advised menstrual rest for girls, and thereby aroused a violent opposition which would certainly not be found nowadays, when the special risks of womanhood are becoming more clearly understood.

[28] For a summary of the physical and mental phenomena of the menstrual period, see Havelock Ellis: _Man and Woman_, Ch. XI. The primitive conception of menstruation is briefly discussed in Appendix A to the first volume of these _Studies_, and more elaborately by J.G. Frazer in _The Golden Bough_. A large collection of facts with regard to the menstrual seclusion of women throughout the world will be found in Ploss and Bartels, _Das Weib_. The pubertal seclusion of girls at Torres Straits has been especially studied by Seligmann, _Reports Anthropological Expedition to Torres Straits_, vol. v, Ch. VI.

[29] Thus Miss Lura Sanborn, Director of Physical Training at the Chicago Normal School, found that a bath once a fortnight was not unusual. At the menstrual period especially there is still a superstitious dread of water. Girls should always be taught that at this period, above all, cleanliness is imperatively necessary. There should be a tepid hip bath night and morning, and a vaginal douche (which should never be cold) is always advantageous, both for comfort as well as cleanliness. There is not the

slightest reason to dread water during menstruation. This point was discussed a few years ago in the _British Medical Journal_ with complete unanimity of opinion. A distinguished American obstetrician, also, Dr. J. Clifton Edgar, after a careful study of opinion and practice in this matter ("Bathing During the Menstrual Period," _American Journal Obstetrics_, Sept., 1900), concludes that it is possible and beneficial to take cold baths (though not sea-baths) during the period, provided due precautions are observed, and that there are no sudden changes of habits. Such a course should not be indiscriminately adopted, but there can be no doubt that in sturdy peasant women who are inured to it early in life even prolonged immersion in the sea in fishing has no evil results, and is even beneficial. Houzel (_Annales de Gynécologie_, Dec., 1894) has published statistics of the menstrual life of 123 fisherwomen on the French coast. They were accustomed to shrimp for hours at a time in the sea, often to above the waist, and then walk about in their wet clothes selling the shrimps. They all insisted that their menstruation was easier when they were actively at work. Their periods are notably regular, and their fertility is high.

[30] J.H. McBride, "The Life and Health of Our Girls in Relation to Their Future," _Alienist and Neurologist_, Feb., 1904.

[31] W.G. Chambers, "The Evolution of Ideals," _Pedagogical Seminary_, March, 1903; Catherine Dodd, "School Children's Ideals," _National Review_, Feb. and Dec., 1900, and June, 1901. No German girls acknowledged a wish to be men; they said it would be wicked. Among Flemish girls, however, Varendonck found at Ghent (_Archives de Psychologie_, July, 1908) that 26 per cent. had men as their ideals.

[32] A. Reibmayr, _Die Entwicklungsgeschichte des Talentes und Genies_, 1908, Bd. i, p. 70.

[33] R. Hellmann, _Ueber Geschlechtsfreiheit_, p. 14.

[34] This belief seems frequent among young girls in Continental Europe. It forms the subject of one of Marcel Prevost's _Lettres de Femmes_. In Austria, according to Freud, it is not uncommon, exclusively among girls.

[35] Yet, according to English law, rape is a crime which it is impossible for a husband to commit on his wife (see, e.g., Nevill Geary, _The Law of Marriage_, Ch. XV, Sect. V). The performance of the marriage ceremony, however, even if it necessarily involved a clear explanation of marital privileges, cannot be regarded as adequate justification for an act of sexual intercourse performed with violence or without the wife's consent.

[36] Hirschfeld, _Jahrbuch für Sexuelle Zwischenstufen_, 1903, p. 88. It may be added that a horror of coitus is not necessarily due to bad education, and may also occur in hereditarily degenerate women, whose ancestors have shown similar or allied mental peculiarities. A case of such "functional impotence" has been reported in a young Italian wife of twenty-one, who was otherwise healthy, and strongly attached to her husband. The marriage was annulled on the ground that "rudimentary sexual or emotional paranoia, which renders a wife invincibly refractory to sexual union, notwithstanding the integrity of the sexual organs, constitutes psychic functional impotence" (_Archivio di Psichiatria_, 1906, fasc. vi, p. 806).

[37] The reasonableness of this step is so obvious that it should scarcely need insistence. "The instruction of school-boys and school-girls is most adequately effected by an elderly doctor," Näcke remarks, "sometimes perhaps the school-doctor." "I strongly advocate," says Clouston (_The Hygiene of Mind_, p. 249), "that the family doctor, guided by the parent and the teacher, is by far the best instructor and monitor." Moll is of the same opinion.

[38] I have further developed this argument in "Religion and the Child," _Nineteenth Century and After_, 1907.

[39] The intimate relation of art and poetry to the sexual impulse has been realized in a fragmentary way by many who have not attained to any wide vision of auto-erotic activity in life. "Poetry is necessarily related to the sexual function," says Metchnikoff (_Essais Optimistes_, p. 352), who also quotes with approval the statement of Möbius (previously made by Ferrero and many others) that "artistic aptitudes must probably be considered as secondary sexual characters."

CHAPTER III.

SEXUAL EDUCATION AND NAKEDNESS.

The Greek Attitude Towards Nakedness--How the Romans Modified That Attitude--The Influence of Christianity--Nakedness in Mediæval Times--Evolution of the Horror of Nakedness--Concomitant Change in the Conception of Nakedness--Prudery--The Romantic Movement--Rise of a New Feeling in Regard to Nakedness--The Hygienic Aspect of Nakedness--How Children May Be Accustomed to Nakedness--Nakedness Not Inimical to Modesty--The Instinct of Physical Pride--The Value of Nakedness in Education--The Æsthetic Value of Nakedness--The Human Body as One of the Prime Tonics of Life--How Nakedness May Be Cultivated--The Moral Value of Nakedness.

The discussion of the value of nakedness in art leads us on to the allied question of nakedness in nature. What is the psychological influence of familiarity with nakedness? How far should children be made familiar with the naked body? This is a question in regard to which different opinions have been held in different ages, and during recent years a remarkable change has begun to come over the minds of practical educationalists in regard to it.

In Sparta, in Chios, and elsewhere in Greece, women at one time practiced gymnastic feats and dances in nakedness, together with the men, or in their presence.[40] Plato in his _Republic_ approved of such customs and said that the ridicule of those who laughed at them was but "unripe fruit plucked from the tree of knowledge." On many questions Plato's opinions changed, but not on this. In the _Laws_, which are the last outcome of his philosophic reflection in old age, he still advocates (Bk. viii) a similar co-education of the sexes and their coöperation in all the works of life, in part with a view to blunt the over-keen edge of sexual appetite; with the same object he advocated the association together of youths and girls without constraint in costumes which offered no concealment to the form.

It is noteworthy that the Romans, a coarser-grained people than the Greeks and in our narrow modern sense more "moral," showed no perception of the moralizing and refining influence of nakedness. Nudity to them was merely a licentious indulgence, to be treated with contempt even when it was enjoyed. It was confined to the stage, and clamored for by the populace. In the Floralia, especially, the crowd seem to have claimed it as their right that the actors should play naked, probably, it has been thought, as a survival of a folk-ritual. But the Romans, though they were eager to run to the theatre, felt nothing but disdain for the performers. "Flagitii principium est, nudare inter cives corpora." So thought old Ennius, as reported by Cicero, and that remained the genuine Roman feeling to the last. "Quanta perversitas!" as Tertullian exclaimed. "Artem magnificant, artificem notant."[41] In this matter the Romans, although they aroused the horror of the Christians, were yet in reality laying the foundation of Christian morality.

Christianity, which found so many of Plato's opinions congenial, would have nothing to do with his view of nakedness and failed to recognize its psychological correctness. The reason was simple, and indeed simple-minded. The Church was passionately eager to fight against what it called "the flesh," and thus fell into the error of confusing the subjective question of sexual desire with the objective spectacle of the naked form. "The flesh" is evil; therefore, "the flesh" must be hidden. And they hid it, without understanding that in so doing they had not suppressed the craving for the human form, but, on the contrary, had heightened it by imparting to it the additional fascination of a forbidden mystery.

Burton, in his _Anatomy of Melancholy_ (Part III, Sect II, Mem. II, Subs. IV), referring to the recommendations of Plato, adds: "But _Eusebius_ and _Theodoret_ worthily lash him for it; and well they might: for as one saith, the very sight of naked parts, _causeth enormous, exceeding concupiscences, and stirs up both men and women to burning lust_." Yet, as Burton himself adds further on in the same section of his work (Mem. V, Subs. III), without protest, "some are of opinion, that to see a woman naked, is able of itself to alter his affection; and it is worthy of consideration, saith _Montaigne_, the Frenchman, in his Essays, that the skilfullest masters of amorous dalliance appoint for a remedy of venereous passions, a full survey of the body."

There ought to be no question regarding the fact that it is the adorned, the partially concealed body, and not the absolutely naked body, which acts as a sexual excitant. I have brought together some evidence on this point in the study of "The Evolution of Modesty." "In Madagascar, West Africa, and the Cape," says G.F. Scott Elliot (_A Naturalist in Mid-Africa_, p. 36), "I have always found the same rule. Chastity varies inversely as the amount of clothing." It is now indeed generally held that one of the chief primary objects of ornament and clothing was the stimulation of sexual desire, and artists' models are well aware that when they are completely unclothed, they are most safe from undesired masculine advances. "A favorite model of mine told me," remarks Dr. Shufeldt (_Medical Brief_, Oct., 1904), the distinguished author of _Studies of the Human Form_, "that it was her practice to disrobe as soon after entering the artist's studio as possible, for, as men are not

always responsible for their emotions, she felt that she was far less likely to arouse or excite them when entirely nude than when only semi-draped." This fact is, indeed, quite familiar to artists' models. If the conquest of sexual desire were the first and last consideration of life it would be more reasonable to prohibit clothing than to prohibit nakedness.

When Christianity absorbed the whole of the European world this strict avoidance of even the sight of "the flesh," although nominally accepted by all as the desirable ideal, could only be carried out, thoroughly and completely, in the cloister. In the practice of the world outside, although the original Christian ideals remained influential, various pagan and primitive traditions in favor of nakedness still persisted, and were, to some extent, allowed to manifest themselves, alike in ordinary custom and on special occasions.

How widespread is the occasional or habitual practice of nakedness in the world generally, and how entirely concordant it is with even a most sensitive modesty, has been set forth in "The Evolution of Modesty," in vol. i of these _Studies_.

Even during the Christian era the impulse to adopt nudity, often with the feeling that it was an especially sacred practice, has persisted. The Adamites of the second century, who read and prayed naked, and celebrated the sacrament naked, according to the statement quoted by St. Augustine, seem to have caused little scandal so long as they only practiced nudity in their sacred ceremonies. The German Brethren of the Free Spirit, in the thirteenth century, combined so much chastity with promiscuous nakedness that orthodox Catholics believed they were assisted by the Devil. The French Picards, at a much later date, insisted on public nakedness, believing that God had sent their leader into the world as a new Adam to reestablish the law of Nature; they were persecuted and were finally exterminated by the Hussites.

In daily life, however, a considerable degree of nakedness was tolerated during mediæval times. This was notably so in the public baths, frequented by men and women together. Thus Alwin Schultz remarks (in his _Höfische Leben zur Zeit der Minnesänger_), that the women of the aristocratic classes, though not the men, were often naked in these baths except for a hat and a necklace.

It is sometimes stated that in the mediæval religious plays Adam and Eve were absolutely naked. Chambers doubts this, and thinks they wore flesh-colored tights, or were, as in a later play of this kind, "apparelled in white leather" (E.K. Chambers, _The Mediæval Stage_, vol. i, p. 5). It may be so, but the public exposure even of the sexual organs was permitted, and that in aristocratic houses, for John of Salisbury (in a passage quoted by Buckle, _Commonplace Book_, 541) protests against this custom.

The women of the feminist sixteenth century in France, as R. de Maulde la Clavière remarks (_Revue de l'Art_, Jan., 1898), had no scruple in recompensing their adorers by admitting them to their toilette, or even their bath. Late in the century they became still less prudish, and many well-known ladies allowed themselves to be painted naked down to the waist, as we see in the portrait of "Gabrielle d'Estrées au Bain" at Chantilly. Many of these pictures, however, are certainly not real portraits.

Even in the middle of the seventeenth century in England nakedness was not prohibited in public, for Pepys tells us that on July 29, 1667, a Quaker came into Westminster Hall, crying, "Repent! Repent!" being in a state of nakedness, except that he was "very civilly tied about the privities to avoid scandal." (This was doubtless Solomon Eccles, who was accustomed to go about in this costume, both before and after the Restoration. He had been a distinguished musician, and, though eccentric, was apparently not insane.)

In a chapter, "De la Nudité," and in the appendices of his book, _De l'Amour_ (vol. i, p. 221), Sénancour gives instances of the occasional practice of nudity in Europe, and adds some interesting remarks of his own; so, also, Dulaure (_Des Divinités Génératrices_, Ch. XV). It would appear, as a rule, that though complete nudity was allowed in other respects, it was usual to cover the sexual parts.

The movement of revolt against nakedness never became completely victorious until the nineteenth century. That century represented the triumph of all the forces that banned public nakedness everywhere and altogether. If, as Pudor insists, nakedness is aristocratic and the slavery of clothes a plebeian characteristic imposed on the lower classes by an upper class who reserved to themselves the privilege of physical culture, we may perhaps connect this with the outburst of democratic plebeianism which, as Nietzsche pointed out, reached its climax in the nineteenth century. It is in any case certainly interesting to observe that by this time the movement had entirely changed its character. It had become general, but at the same time its foundation had been undermined. It had largely lost its religious and moral character, and instead was regarded as a matter of convention. The nineteenth century man who encountered the spectacle of white limbs flashing in the sunlight no longer felt like the mediæval ascetic that he was risking the salvation of his immortal soul or even courting the depravation of his morals; he merely felt that it was "indecent" or, in extreme cases, "disgusting." That is to say he regarded the matter as simply a question of conventional etiquette, at the worst, of taste, of æsthetics. In thus bringing down his repugnance to nakedness to so low a plane he had indeed rendered it generally acceptable, but at the same time he had deprived it of high sanction. His profound horror of nakedness was out of relation to the frivolous grounds on which he based it.

We must not, however, under-rate the tenacity with which this horror of nakedness was held. Nothing illustrates more vividly the deeply ingrained hatred which the nineteenth century felt of nakedness than the ferocity--there is no other word for it--with which Christian missionaries to savages all over the world, even in the tropics, insisted on their converts adopting the conventional clothing of Northern Europe. Travellers' narratives abound in references to the emphasis placed by missionaries on this change of custom, which was both injurious to the health of the people and degrading to their dignity. It is sufficient to quote one authoritative witness, Lord Stanmore, formerly Governor of Fiji, who read a long paper to the Anglican Missionary Conference in 1894 on the subject of "Undue Introduction of Western Ways." "In the centre of the village," he remarked in quoting a typical case (and referring not to Fiji but to Tonga), "is the church, a wooden barn-like building. If

the day be Sunday, we shall find the native minister arrayed in a greenish-black swallow-tail coat, a neckcloth, once white, and a pair of spectacles, which he probably does not need, preaching to a congregation, the male portion of which is dressed in much the same manner as himself, while the women are dizened out in old battered hats or bonnets, and shapeless gowns like bathing dresses, or it may be in crinolines of an early type. Chiefs of influence and women of high birth, who in their native dress would look, and do look, the ladies and gentlemen they are, are, by their Sunday finery, given the appearance of attendants upon Jack-in-the-Green. If a visit be paid to the houses of the town, after the morning's work of the people is over, the family will be found sitting on chairs, listless and uncomfortable, in a room full of litter. In the houses of the superior native clergy there will be a yet greater aping of the manners of the West. There will be chairs covered with hideous antimacassars, tasteless round worsted-work mats for absent flower jars, and a lot of ugly cheap and vulgar china chimney ornaments, which, there being no fireplace, and consequently no chimney-piece, are set out in order on a rickety deal table. The whole life of these village folk is one piece of unreal acting. They are continually asking themselves whether they are incurring any of the penalties entailed by infraction of the long table of prohibitions, and whether they are living up to the foreign garments they wear. Their faces have, for the most part, an expression of sullen discontent, they move about silently and joylessly, rebels in heart to the restrictive code on them, but which they fear to cast off, partly from a vague apprehension of possible secular results, and partly because they suppose they will cease to be good Christians if they do so. They have good ground for their dissatisfaction. At the time when I visited the villages I have specially in my eye, it was punishable by fine and imprisonment to wear native clothing, punishable by fine and imprisonment to wear long hair or a garland of flowers; punishable by fine or imprisonment to wrestle or to play at ball; punishable by fine and imprisonment to build a native-fashioned house; punishable not to wear shirt and trousers, and in certain localities coat and shoes also; and, in addition to laws enforcing a strictly puritanical observation of the Sabbath, it was punishable by fine and imprisonment to bathe on Sundays. In some other places bathing on Sunday was punishable by flogging; and to my knowledge women have been flogged for no other offense. Men in such circumstances are ripe for revolt, and sometimes the revolt comes."

An obvious result of reducing the feeling about nakedness to an unreasoning but imperative convention is the tendency to prudishness. This, as we know, is a form of pseudo-modesty which, being a convention, and not a natural feeling, is capable of unlimited extension. It is by no means confined to modern times or to Christian Europe. The ancient Hebrews were not entirely free from prudishness, and we find in the Old Testament that by a curious euphemism the sexual organs are sometimes referred to as "the feet." The Turks are capable of prudishness. So, indeed, were even the ancient Greeks. "Dion the philosopher tells us," remarks Clement of Alexandria (_Stromates_, Bk. IV, Ch. XIX) "that a certain woman, Lysidica, through excess of modesty, bathed in her clothes, and that Philotera, when she was to enter the bath, gradually drew back her tunic as the water covered her naked parts; and then rising by degrees, put it on." Mincing prudes were found among the early Christians, and

their ways are graphically described by St. Jerome in one of his letters to Eustochium: "These women," he says, "speak between their teeth or with the edge of the lips, and with a lisping tongue, only half pronouncing their words, because they regard as gross whatever is natural. Such as these," declares Jerome, the scholar in him overcoming the ascetic, "corrupt even language." Whenever a new and artificial "modesty" is imposed upon savages prudery tends to arise. Haddon describes this among the natives of Torres Straits, where even the children now suffer from exaggerated prudishness, though formerly absolutely naked and unashamed (_Cambridge Anthropological Expedition to Torres Straits_, vol. v, p. 271).

The nineteenth century, which witnessed the triumph of timidity and prudery in this matter, also produced the first fruitful germ of new conceptions of nakedness. To some extent these were embodied in the great Romantic movement. Rousseau, indeed, had placed no special insistence on nakedness as an element of the return to Nature which he preached so influentially. A new feeling in this matter emerged, however, with characteristic extravagance, in some of the episodes of the Revolution, while in Germany in the pioneering _Lucinde_ of Friedrich Schlegel, a characteristic figure in the Romantic movement, a still unfamiliar conception of the body was set forth in a serious and earnest spirit.

In England, Blake with his strange and flaming genius, proclaimed a mystical gospel which involved the spiritual glorification of the body and contempt for the civilized worship of clothes ("As to a modern man," he wrote, "stripped from his load of clothing he is like a dead corpse"); while, later, in America, Thoreau and Whitman and Burroughs asserted, still more definitely, a not dissimilar message concerning the need of returning to Nature.

We find the importance of the sight of the body--though very narrowly, for the avoidance of fraud in the preliminaries of marriage--set forth as early as the sixteenth century by Sir Thomas More in his _Utopia_, which is so rich in new and fruitful ideas. In Utopia, according to Sir Thomas More, before marriage, a staid and honest matron "showeth the woman, be she maid or widow, naked to the wooer. And likewise a sage and discreet man exhibiteth the wooer naked to the woman. At this custom we laughed and disallowed it as foolish. But they, on their part, do greatly wonder at the folly of all other nations which, in buying a colt where a little money is in hazard, be so chary and circumspect that though he be almost all bare, yet they will not buy him unless the saddle and all the harness be taken off, lest under these coverings be hid some gall or sore. And yet, in choosing a wife, which shall be either pleasure or displeasure to them all their life after, they be so reckless that all the residue of the woman's body being covered with clothes, they estimate her scarcely by one handsbreadth (for they can see no more but her face) and so join her to them, not without great jeopardy of evil agreeing together, if anything in her body afterward should chance to offend or mislike them. Verily, so foul deformity may be hid under these coverings that it may quite alienate and take away the man's mind from his wife, when it shall not be lawful for their bodies to be separate again. If such deformity happen by any chance after the marriage is consummate and finished, well, there is no remedy but patience. But it were well done that a law were made whereby

all such deceits were eschewed and avoided beforehand."

The clear conception of what may be called the spiritual value of nakedness--by no means from More's point of view, but as a part of natural hygiene in the widest sense, and as a high and special aspect of the purifying and ennobling function of beauty--is of much later date. It is not clearly expressed until the time of the Romantic movement at the beginning of the nineteenth century. We have it admirably set forth in Sénancour's _De l'Amour_ (first edition, 1806; fourth and enlarged edition, 1834), which still remains one of the best books on the morality of love. After remarking that nakedness by no means abolishes modesty, he proceeds to advocate occasional partial or complete nudity. "Let us suppose," he remarks, somewhat in the spirit of Plato, "a country in which at certain general festivals the women should be absolutely free to be nearly or even quite naked. Swimming, waltzing, walking, those who thought good to do so might remain unclothed in the presence of men. No doubt the illusions of love would be little known, and passion would see a diminution of its transports. But is it passion that in general ennobles human affairs? We need honest attachments and delicate delights, and all these we may obtain while still preserving our common-sense.... Such nakedness would demand corresponding institutions, strong and simple, and a great respect for those conventions which belong to all times" (Sénancour, _De l'Amour_, vol. i, p. 314).

From that time onwards references to the value and desirability of nakedness become more and more frequent in all civilized countries, sometimes mingled with sarcastic allusions to the false conventions we have inherited in this matter. Thus Thoreau writes in his journal on June 12, 1852, as he looks at boys bathing in the river: "The color of their bodies in the sun at a distance is pleasing. I hear the sound of their sport borne over the water. As yet we have not man in Nature. What a singular fact for an angel visitant to this earth to carry back in his note-book, that men were forbidden to expose their bodies under the severest penalties."

Iwan Bloch, in Chapter VII of his _Sexual Life of Our Time_, discusses this question of nakedness from the modern point of view, and concludes: "A natural conception of nakedness: that is the watchword of the future. All the hygienic, æsthetic, and moral efforts of our time are pointing in that direction."

Stratz, as befits one who has worked so strenuously in the cause of human health and beauty, admirably sets forth the stage which we have now attained in this matter. After pointing out (_Die Frauenkleidung_, third edition, 1904, p. 30) that, in opposition to the pagan world which worshipped naked gods, Christianity developed the idea that nakedness was merely sexual, and therefore immoral, he proceeds: "But over all glimmered on the heavenly heights of the Cross, the naked body of the Saviour. Under that protection there has gradually disengaged itself from the confusion of ideas a new transfigured form of nakedness made free after long struggle. I would call this _artistic nakedness_, for as it was immortalized by the old Greeks through art, so also among us it has been awakened to new life by art. Artistic nakedness is, in its nature, much higher than either the natural or the sensual conception of nakedness. The simple child of Nature sees in nakedness nothing at all; the clothed man sees in the uncovered body only a sensual irritation. But at the

highest standpoint man consciously returns to Nature, and recognizes that under the manifold coverings of human fabrication there is hidden the most splendid creature that God has created. One may stand in silent, worshipping wonder before the sight; another may be impelled to imitate and show to his fellow-man what in that holy moment he has seen. But both enjoy the spectacle of human beauty with full consciousness and enlightened purity of thought."

It was not, however, so much on these more spiritual sides, but on the side of hygiene, that the nineteenth century furnished its chief practical contribution to the new attitude towards nakedness.

Lord Monboddo, the Scotch judge, who was a pioneer in regard to many modern ideas, had already in the eighteenth century realized the hygienic value of "air-baths," and he invented that now familiar name. "Lord Monboddo," says Boswell, in 1777 (_Life of Johnson_, edited by Hill, vol. iii, p. 168) "told me that he awaked every morning at four, and then for his health got up and walked in his room naked, with the window open, which he called taking _an air-bath_." It is said also, I know not on what authority, that he made his beautiful daughters take an air-bath naked on the terrace every morning. Another distinguished man of the same century, Benjamin Franklin, used sometimes to work naked in his study on hygienic grounds, and, it is recorded, once affrighted a servant-girl by opening the door in an absent-minded moment, thus unattired.

Rikli seems to have been the apostle of air-baths and sun-baths regarded as a systematic method. He established light-and air-baths over half a century ago at Trieste and elsewhere in Austria. His motto was: "Light, Truth, and Freedom are the motive forces towards the highest development of physical and moral health." Man is not a fish, he declared; light and air are the first conditions of a highly organized life. Solaria for the treatment of a number of different disordered conditions are now commonly established, and most systems of natural therapeutics attach prime importance to light and air, while in medicine generally it is beginning to be recognized that such influences can by no means be neglected. Dr. Fernand Sandoz, in his _Introduction à la Thérapeutique Naturiste par les agents Physiques et Dietétiques_ (1907) sets forth such methods comprehensively. In Germany sun-baths have become widely common; thus Lenkei (in a paper summarized in _British Medical Journal_, Oct. 31, 1908) prescribes them with much benefit in tuberculosis, rheumatic conditions, obesity, anæmia, neurasthenia, etc. He considers that their peculiar value lies in the action of light. Professor J.N. Hyde, of Chicago, even believes ("Light-Hunger in the Production of Psoriasis," _British Medical Journal_, Oct. 6, 1906), that psoriasis is caused by deficiency of sunlight, and is best cured by the application of light. This belief, which has not, however, been generally accepted in its unqualified form, he ingeniously supports by the fact that psoriasis tends to appear on the most exposed parts of the body, which may be held to naturally receive and require the maximum of light, and by the absence of the disease in hot countries and among negroes.

The hygienic value of nakedness is indicated by the robust health of the savages throughout the world who go naked. The vigor of the Irish, also, has been connected

with the fact that (as Fynes Moryson's _Itinerary_ shows) both sexes, even among persons of high social class, were accustomed to go naked except for a mantle, especially in more remote parts of the country, as late as the seventeenth century. Where-ever primitive races abandon nakedness for clothing, at once the tendency to disease, mortality, and degeneracy notably increases, though it must be remembered that the use of clothing is commonly accompanied by the introduction of other bad habits. "Nakedness is the only condition universal among vigorous and healthy savages; at every other point perhaps they differ," remarks Frederick Boyle in a paper ("Savages and Clothes," _Monthly Review_, Sept., 1905) in which he brings together much evidence concerning the hygienic advantages of the natural human state in which man is "all face."

It is in Germany that a return towards nakedness has been most ably and thoroughly advocated, notably by Dr. H. Pudor in his _Nackt-Cultur_, and by R. Ungewitter in _Die Nacktheit_ (first published in 1905), a book which has had a very large circulation in many editions. These writers enthusiastically advocate nakedness, not only on hygienic, but on moral and artistic grounds. Pudor insists more especially that "nakedness, both in gymnastics and in sport, is a method of cure and a method of regeneration;" he advocates co-education in this culture of nakedness. Although he makes large claims for nakedness--believing that all the nations which have disregarded these claims have rapidly become decadent--Pudor is less hopeful than Ungewitter of any speedy victory over the prejudices opposed to the culture of nakedness. He considers that the immediate task is education, and that a practical commencement may best be made with the foot which is specially in need of hygiene and exercise; a large part of the first volume of his book is devoted to the foot.

As the matter is to-day viewed by those educationalists who are equally alive to sanitary and sexual considerations, the claims of nakedness, so far as concerns the young, are regarded as part alike of physical and moral hygiene. The free contact of the naked body with air and water and light makes for the health of the body; familiarity with the sight of the body abolishes petty pruriencies, trains the sense of beauty, and makes for the health of the soul. This double aspect of the matter has undoubtedly weighed greatly with those teachers who now approve of customs which, a few years ago, would have been hastily dismissed as "indecent." There is still a wide difference of opinion as to the limits to which the practice of nakedness may be carried, and also as to the age when it should begin to be restricted. The fact that the adult generation of to-day grew up under the influence of the old horror of nakedness is an inevitable check on any revolutionary changes in these matters.

Maria Lischnewska, one of the ablest advocates of the methodical enlightenment of children in matters of sex (op. cit.), clearly realizes that a sane attitude towards the body lies at the root of a sound education for life. She finds that the chief objection encountered in such education, as applied in the higher classes of schools, is "the horror of the civilized man at his own body." She shows that there can be no doubt that those who are engaged in the difficult task of working towards the abolition of that superstitious horror have taken up a moral task of the first importance.

Walter Gerhard, in a thoughtful and sensible paper on the educational question ("Ein Kapitel zur Erziehungsfrage," _Geschlecht und Gesellschaft_, vol. i, Heft 2), points out that it is the adult who needs education in this matter--as in so many other matters of sexual enlightenment--considerably more than the child. Parents educate their children from the earliest years in prudery, and vainly flatter themselves that they have thereby promoted their modesty and morality. He records his own early life in a tropical land and accustomed to nakedness from the first. "It was not till I came to Germany when nearly twenty that I learnt that the human body is indecent, and that it must not be shown because that 'would arouse bad impulses.' It was not till the human body was entirely withdrawn from my sight and after I was constantly told that there was something improper behind clothes, that I was able to understand this.... Until then I had not known that a naked body, by the mere fact of being naked, could arouse erotic feelings. I had known erotic feelings, but they had not arisen from the sight of the naked body, but gradually blossomed from the union of our souls." And he draws the final moral that, if only for the sake of our children, we must learn to educate ourselves.

Forel (_Die Sexuelle Frage_, p. 140), speaking in entirely the same sense as Gerhard, remarks that prudery may be either caused or cured in children. It may be caused by undue anxiety in covering their bodies and hiding from them the bodies of others. It may be cured by making them realize that there is nothing in the body that is unnatural and that we need be ashamed of, and by encouraging bathing of the sexes in common. He points out (p. 512) the advantages of allowing children to be acquainted with the adult forms which they will themselves some day assume, and condemns the conduct of those foolish persons who assume that children already possess the adult's erotic feelings about the body. That is so far from being the case that children are frequently unable to distinguish the sex of other children apart from their clothes.

At the Mannheim Congress of the German Society for Combating Venereal Diseases, specially devoted to sexual hygiene, the speakers constantly referred to the necessity of promoting familiarity with the naked body. Thus Eulenburg and Julian Marcuse (_Sexualpädagogik_, p. 264) emphasize the importance of air-baths, not only for the sake of the physical health of the young, but in the interests of rational sexual training. Höller, a teacher, speaking at the same congress (op. cit., p. 85), after insisting on familiarity with the nude in art and literature, and protesting against the bowdlerising of poems for the young, continues: "By bathing-drawers ordinances no soul was ever yet saved from moral ruin. One who has learnt to enjoy peacefully the naked in art is only stirred by the naked in nature as by a work of art." Enderlin, another teacher, speaking in the same sense (p. 58), points out that nakedness cannot act sexually or immorally on the child, since the sexual impulse has not yet become pronounced, and the earlier he is introduced to the naked in nature and in art, as a matter of course, the less likely are the sexual feelings to be developed precociously. The child thus, indeed, becomes immune to impure influences, so that later, when representations of the nude are brought before him for the object of provoking his wantonness, they are powerless to injure him. It is important, Enderlin adds, for familiarity with the nude in art to be learnt at school, for most of us, as Siebert

remarks, have to learn purity through art.

Nakedness in bathing, remarks Bölsche in his _Liebesleben in der Natur_ (vol. iii, pp. 139 et seq.), we already in some measure possess; we need it in physical exercises, at first for the sexes separately; then, when we have grown accustomed to the idea, occasionally for both sexes together. We need to acquire the capacity to see the bodies of individuals of the other sex with such self-control and such natural instinct that they become non-erotic to us and can be gazed at without erotic feeling. Art, he says, shows that this is possible in civilization. Science, he adds, comes to the aid of the same view.

Ungewitter (_Die Nacktheit_, p. 57) also advocates boys and girls engaging in play and gymnastics together, entirely naked in air-baths. "In this way," he believes, "the gymnasium would become a school of morality, in which young growing things would be able to retain their purity as long as possible through becoming naturally accustomed to each other. At the same time their bodies would be hardened and developed, and the perception of beautiful and natural forms awakened." To those who have any "moral" doubts on the matter, he mentions the custom in remote country districts of boys and girls bathing together quite naked and without any sexual consciousness. Rudolf Sommer, similarly, in an excellent article entitled "Mädchenerziehung oder Menschenbildung?" (_Geschlecht und Gesellschaft_, Bd. i, Heft 3) advises that children should be made accustomed to each other's nakedness from an early age in the family life of the house or the garden, in games, and especially in bathing; he remarks that parents having children of only one sex should cultivate for their children's sake intimate relations with a family having children of like age of the opposite sex, so that they may grow up together.

It is scarcely necessary to add that the cultivation of nakedness must always be conciliated with respect for the natural instincts of modesty. If the practice of nakedness led the young to experience a diminished reverence for their own or others' personalities the advantages of it would be too dearly bought. This is, in part, a matter of wholesome instinct, in part of wise training. We now know that the absence of clothes has little relation with the absence of modesty, such relation as there is being of the inverse order, for the savage races which go naked are usually more modest than those which wear clothes. The saying quoted by Herodotus in the early Greek world that "A woman takes off her modesty with her shift" was a favorite text of the Christian Fathers. But Plutarch, who was also a moralist, had already protested against it at the close of the Greek world: "By no means," he declared, "she who is modest clothes herself with modesty when she lays aside her tunic." "A woman may be naked," as Mrs. Bishop, the traveller, remarked to Dr. Baelz, in Japan, "and yet behave like a lady."[42]

The question is complicated among ourselves because established traditions of rigid concealment have fostered a pruriency which is an offensive insult to naked modesty. In many lands the women who are accustomed to be almost or quite naked in the presence of their own people cover themselves as soon as they become conscious of the lustful inquisitive eyes of Europeans. Stratz refers to the prevalence of this impulse of offended modesty in Japan, and mentions that he himself failed to

arouse it simply because he was a physician, and, moreover, had long lived in another land (Java) where also the custom of nakedness prevails.[43] So long as this unnatural prurience exists a free unqualified nakedness is rendered difficult.

Modesty is not, however, the only natural impulse which has to be considered in relation to the custom of nakedness. It seems probable that in cultivating the practice of nakedness we are not merely carrying out a moral and hygienic prescription but allowing legitimate scope to an instinct which at some periods of life, especially in adolescence, is spontaneous and natural, even, it may be, wholesomely based in the traditions of the race in sexual selection. Our rigid conventions make it impossible for us to discover the laws of nature in this matter by stifling them at the outset. It may well be that there is a rhythmic harmony and concordance between impulses of modesty and impulses of ostentation, though we have done our best to disguise the natural law by our stupid and perverse by-laws.

Stanley Hall, who emphasizes the importance of nakedness, remarks that at puberty we have much reason to assume that in a state of nature there is a certain instinctive pride and ostentation that accompanies the new local development, and quotes the observation of Dr. Seerley that the impulse to conceal the sexual organs is especially marked in young men who are underdeveloped, but not evident in those who are developed beyond the average. Stanley Hall (_Adolescence_, vol. ii, p. 97), also refers to the frequency with which not only "virtuous young men, but even women, rather glory in occasions when they can display the beauty of their forms without reserve, not only to themselves and to loved ones, but even to others with proper pretexts."

Many have doubtless noted this tendency, especially in women, and chiefly in those who are conscious of beautiful physical development. Madame Céline Renooz believes that the tendency corresponds to a really deep-rooted instinct in women, little or not at all manifested in men who have consequently sought to impose artificially on women their own masculine conceptions of modesty. "In the actual life of the young girl to-day there is a moment when, by a secret atavism, she feels the pride of her sex, the intuition of her moral superiority and cannot understand why she must hide its cause. At this moment, wavering between the laws of Nature and social conventions, she scarcely knows if nakedness should, or should not, affright her. A sort of confused atavistic memory recalls to her a period before clothing was known, and reveals to her as a paradisaical ideal the customs of that human epoch" (Céline Renooz, _Psychologie Comparée de l'Homme et de la Femme_, pp. 85-87). Perhaps this was obscurely felt by the German girl (mentioned in Kalbeck's _Life of Brahms_), who said: "One enjoys music twice as much _décolletée_."

From the point of view with which we are here essentially concerned there are three ways in which the cultivation of nakedness--so far as it is permitted by the slow education of public opinion--tends to exert an influence: (1) It is an important element in the sexual hygiene of the young, introducing a wholesome knowledge and incuriosity into a sphere once given up to prudery and pruriency. (2) The effect of nakedness is beneficial on those of more mature age, also, in so far as it tends to cultivate the sense of beauty and to furnish the tonic and consoling influences of

natural vigor and grace. (3) The custom of nakedness, in its inception at all events, has a dynamic psychological influence also on morals, an influence exerted in the substitution of a strenuous and positive morality for the merely negative and timid morality which has ruled in this sphere.

Perhaps there are not many adults who realize the intense and secret absorption of thought in the minds of many boys and some girls concerning the problem of the physical conformation of the other sex, and the time, patience, and intellectual energy which they are willing to expend on the solution of this problem. This is mostly effected in secret, but not seldom the secret impulse manifests itself with a sudden violence which in the blind eyes of the law is reckoned as crime. A German lawyer, Dr. Werthauer, has lately stated that if there were a due degree of familiarity with the natural organs and functions of the opposite sex ninety per cent. of the indecent acts of youths with girl children would disappear, for in most cases these are not assaults but merely the innocent, though uncontrollable, outcome of a repressed natural curiosity. It is quite true that not a few children boldly enlist each others' coöperation in the settlement of the question and resolve it to their mutual satisfaction. But even this is not altogether satisfactory, for the end is not attained openly and wholesomely, with a due subordination of the specifically sexual, but with a consciousness of wrong-doing and an exclusive attentiveness to the merely physical fact which tend directly to develop sexual excitement. When familiarity with the naked body of the other sex is gained openly and with no consciousness of indecorum, in the course of work and of play, in exercise or gymnastics, in running or in bathing, from a child's earliest years, no unwholesome results accompany the knowledge of the essential facts of physical conformation thus naturally acquired. The prurience and prudery which have poisoned sexual life in the past are alike rendered impossible.

Nakedness has, however, a hygienic value, as well as a spiritual significance, far beyond its influences in allaying the natural inquisitiveness of the young or acting as a preventative of morbid emotion. It is an inspiration to adults who have long outgrown any youthful curiosities. The vision of the essential and eternal human form, the nearest thing to us in all the world, with its vigor and its beauty and its grace, is one of the prime tonics of life. "The power of a woman's body," said James Hinton, "is no more bodily than the power of music is a power of atmospheric vibrations." It is more than all the beautiful and stimulating things of the world, than flowers or stars or the sea. History and legend and myth reveal to us the sacred and awful influence of nakedness, for, as Stanley Hall says, nakedness has always been "a talisman of wondrous power with gods and men." How sorely men crave for the spectacle of the human body--even to-day after generations have inculcated the notion that it is an indecorous and even disgusting spectacle--is witnessed by the eagerness with which they seek after the spectacle of even its imperfect and meretricious forms, although these certainly possess a heady and stimulating quality which can never be found in the pathetic simplicity of naked beauty. It was another spectacle when the queens of ancient Madagascar at the annual Fandroon, or feast of the bath, laid aside their royal robes and while their subjects crowded the palace courtyard, descended the marble steps to the bath in complete nakedness. When we

make our conventions of clothing rigid we at once spread a feast for lust and deny ourselves one of the prime tonics of life.

"I was feeling in despair and walking despondently along a Melbourne street," writes the Australian author of a yet unpublished autobiography, "when three children came running out of a lane and crossed the road in full daylight. The beauty and texture of their legs in the open air filled me with joy, so that I forgot all my troubles whilst looking at them. It was a bright revelation, an unexpected glimpse of Paradise, and I have never ceased to thank the happy combination of shape, pure blood, and fine skin of these poverty-stricken children, for the wind seemed to quicken their golden beauty, and I retained the rosy vision of their natural young limbs, so much more divine than those always under cover. Another occasion when naked young limbs made me forget all my gloom and despondency was on my first visit to Adelaide. I came on a naked boy leaning on the railing near the Baths, and the beauty of his face, torso, fair young limbs and exquisite feet filled me with joy and renewed hope. The tears came to my eyes, and I said to myself, 'While there is beauty in the world I will continue to struggle,'"

We must, as Bölsche declares (loc. cit.), accustom ourselves to gaze on the naked human body exactly as we gaze at a beautiful flower, not merely with the pity with which the doctor looks at the body, but with joy in its strength and health and beauty. For a flower, as Bölsche truly adds, is not merely "naked body," it is the most sacred region of the body, the sexual organs of the plant.

"For girls to dance naked," said Hinton, "is the only truly pure form of dancing, and in due time it must therefore come about. This is certain: girls will dance naked and men will be pure enough to gaze on them." It has already been so in Greece, he elsewhere remarks, as it is to-day in Japan (as more recently described by Stratz). It is nearly forty years since these prophetic words were written, but Hinton himself would probably have been surprised at the progress which has already been made slowly (for all true progress must be slow) towards this goal. Even on the stage new and more natural traditions are beginning to prevail in Europe. It is not many years since an English actress regarded as a calumny the statement that she appeared on the stage bare-foot, and brought an action for libel, winning substantial damages. Such a result would scarcely be possible to-day. The movement in which Isadora Duncan was a pioneer has led to a partial disuse among dancers of the offensive device of tights, and it is no longer considered indecorous to show many parts of the body which it was formerly usual to cover.

It should, however, be added at the same time that, while dancers, in so far as they are genuine artists, are entitled to determine the conditions most favorable to their art, nothing whatever is gained for the cause of a wholesome culture of nakedness by the "living statues" and "living pictures" which have obtained an international vogue during recent years. These may be legitimate as variety performances, but they have nothing whatever to do with either Nature or art. Dr. Pudor, writing as one of the earliest apostles of the culture of nakedness, has energetically protested against these performances (_Sexual-Probleme_, Dec., 1908, p. 828). He rightly points out that nakedness, to be wholesome, requires the open air, the meadows, the sunlight,

and that nakedness at night, in a music hall, by artificial light, in the presence of spectators who are themselves clothed, has no element of morality about it. Attempts have here and there been quietly made to cultivate a certain amount of mutual nakedness as between the sexes on remote country excursions. It is significant to find a record of such an experiment in Ungewitter's _Die Nacktheit_. In this case a party of people, men and women, would regularly every Sunday seek remote spots in woods or meadows where they would settle down, picnic, and enjoy games. "They made themselves as comfortable as possible, the men laying aside their coats, waistcoats, boots and socks; the women their blouses, skirts, shoes and stockings. Gradually, as the moral conception of nakedness developed in their minds, more and more clothing fell away, until the men wore nothing but bathing-drawers and the women only their chemises. In this 'costume' games were carried out in common, and a regular camp-life led. The ladies (some of whom were unmarried) would then lie in hammocks and we men on the grass, and the intercourse was delightful. We felt as members of one family, and behaved accordingly. In an entirely natural and unembarrassed way we gave ourselves up entirely to the liberating feelings aroused by this light- and air-bath, and passed these splendid hours in joyous singing and dancing, in wantonly childish fashion, freed from the burden of a false civilization. It was, of course, necessary to seek spots as remote as possible from high-roads, for fear of being disturbed. At the same time we by no means failed in natural modesty and consideration towards one another. Children, who can be entirely naked, may be allowed to take part in such meetings of adults, and will thus be brought up free from morbid prudery" (R. Ungewitter, _Die Nacktheit_, p. 58).

No doubt it may be said that the ideal in this matter is the possibility of permitting complete nakedness. This may be admitted, and it is undoubtedly true that our rigid police regulations do much to artificially foster a concealment in this matter which is not based on any natural instinct. Dr. Shufeldt narrates in his _Studies of the Human Form_ that once in the course of a photographic expedition in the woods he came upon two boys, naked except for bathing-drawers, engaged in getting water lilies from a pond. He found them a good subject for his camera, but they could not be induced to remove their drawers, by no means out of either modesty or mock-modesty, but simply because they feared they might possibly be caught and arrested. We have to recognize that at the present day the general popular sentiment is not yet sufficiently educated to allow of public disregard for the convention of covering the sexual centres, and all attempts to extend the bounds of nakedness must show a due regard for this requirement. As concerns women, Valentin Lehr, of Freiburg, in Breisgau, has invented a costume (figured in Ungewitter's _Die Nacktheit_) which is suitable for either public water-baths or air-baths, because it meets the demand of those whose minimum requirement is that the chief sexual centres of the body should be covered in public, while it is otherwise fairly unobjectionable. It consists of two pieces, made of porous material, one covering the breasts with a band over the shoulders, and the other covering the abdomen below the navel and drawn between the legs. This minimal costume, while neither ideal nor æsthetic, adequately covers the sexual regions of the body, while leaving the arms, waist, hips, and legs entirely free.

There finally remains the moral aspect of nakedness. Although this has been emphasized by many during the past half century it is still unfamiliar to the majority. The human body can never be a little thing. The wise educator may see to it that boys and girls are brought up in a natural and wholesome familiarity with each other, but a certain terror and beauty must always attach to the spectacle of the body, a mixed attraction and repulsion. Because it has this force it naturally calls out the virtue of those who take part in the spectacle, and makes impossible any soft compliance to emotion. Even if we admit that the spectacle of nakedness is a challenge to passion it is still a challenge that calls out the ennobling qualities of self-control. It is but a poor sort of virtue that lies in fleeing into the desert from things that we fear may have in them a temptation. We have to learn that it is even worse to attempt to create a desert around us in the midst of civilization. We cannot dispense with passions if we would; reason, as Holbach said, is the art of choosing the right passions, and education the art of sowing and cultivating them in human hearts. The spectacle of nakedness has its moral value in teaching us to learn to enjoy what we do not possess, a lesson which is an essential part of the training for any kind of fine social life. The child has to learn to look at flowers and not pluck them; the man has to learn to look at a woman's beauty and not desire to possess it. The joyous conquest over that "erotic kleptomania," as Ellen Key has well said, reveals the blossoming of a fine civilization. We fancy the conquest is difficult, even impossibly difficult. But it is not so. This impulse, like other human impulses, tends under natural conditions to develop temperately and wholesomely. We artificially press a stupid and brutal hand on it, and it is driven into the two unnatural extremes of repression and license, one extreme as foul as the other.

To those who have been bred under bad conditions, it may indeed seem hopeless to attempt to rise to the level of the Greeks and the other finer tempered peoples of antiquity in realizing the moral, as well as the pedagogic, hygienic, and æsthetic advantages[44] of admitting into life the spectacle of the naked human body. But unless we do we hopelessly fetter ourselves in our march along the road of civilization, we deprive ourselves at once of a source of moral strength and of joyous inspiration. Just as Wesley once asked why the devil should have all the best tunes, so to-day men are beginning to ask why the human body, the most divine melody at its finest moments that creation has yielded, should be allowed to become the perquisite of those who lust for the obscene. And some are, further, convinced that by enlisting it on the side of purity and strength they are raising the most powerful of all bulwarks against the invasion of a vicious conception of life and the consequent degradation of sex. These are considerations which we cannot longer afford to neglect, however great the opposition they arouse among the unthinking.

"Folk are afraid of such things rousing the passions," Edward Carpenter remarks. "No doubt the things may act that way. But why, we may ask, should people be afraid of rousing passions which, after all, are the great driving forces of human life?" It is true, the same writer continues, our conventional moral formulæ are no longer strong enough to control passion adequately, and that we are generating steam in a boiler that is cankered with rust. "The cure is not to cut off the passions, or to be weakly afraid of them, but to find a new, sound, healthy engine of general morality and

common sense within which they will work" (Edward Carpenter, _Albany Review_, Sept., 1907).

So far as I am aware, however, it was James Hinton who chiefly sought to make clear the possibility of a positive morality on the basis of nakedness, beauty, and sexual influence, regarded as dynamic forces which, when suppressed, make for corruption and when wisely used serve to inspire and ennoble life. He worked out his thoughts on this matter in MSS., written from about 1870 to his death two years later, which, never having been prepared for publication, remain in a fragmentary state and have not been published. I quote a few brief characteristic passages: "Is not," he wrote, "the Hindu refusal to see a woman eating strangely like ours to see one naked? The real sensuality of the thought is visibly identical.... Suppose, because they are delicious to eat, pineapples were forbidden to be seen, except in pictures, and about that there was something dubious. Suppose no one might have sight of a pineapple unless he were rich enough to purchase one for his particular eating, the sight and the eating being so indissolubly joined. What lustfulness would surround them, what constant pruriency, what stealing!... Miss ---- told us of her Syrian adventures, and how she went into a wood-carver's shop and he would not look at her; and how she took up a tool and worked, till at last he looked, and they both burst out laughing. Will it not be even so with our looking at women altogether? There will come a _work_--and at last we shall look up and both burst out laughing.... When men see truly what is amiss, and act with reason and forethought in respect to the sexual relations, will they not insist on the enjoyment of women's beauty by youths, and from the earliest age, that the first feeling may be of beauty? Will they not say, 'We must not allow the false purity, we must have the true.' The false has been tried, and it is not good enough; the power purely to enjoy beauty must be gained; attempting to do with less is fatal. Every instructor of youth shall say: 'This beauty of woman, God's chief work of beauty, it is good you see it; it is a pleasure that serves good; all beauty serves it, and above all this, for its office is to make you pure. Come to it as you come to daily bread, or pure air, or the cleansing bath: this is pure to you if you be pure, it will aid you in your effort to be so. But if any of you are impure, and make of it the feeder of impurity, then you should be ashamed and pray; it is not for you our life can be ordered; it is for men and not for beasts.' This must come when men open their eyes, and act coolly and with reason and forethought, and not in mere panic in respect to the sexual passion in its moral relations."

FOOTNOTES:

[40] Thus Athenæus (Bk. xiii, Ch. XX) says: "In the Island of Chios it is a beautiful sight to go to the gymnasia and the race-courses, and to see the young men wrestling naked with the maidens who are also naked."

[41] Augustine (_De civitate Dei_, lib. ii, cap. XIII) refers to the same point, contrasting the Romans with the Greeks who honored their actors.

[42] See "The Evolution of Modesty" in the first volume of these _Studies_, where this question of the relationship of nakedness to modesty is fully discussed.

[43] C.H. Stratz, _Die Körperformen in Kunst und Leben der Japaner_, Second edition, Ch. III; id., _Frauenkleidung_, Third edition, pp. 22, 30.

[44] I have not considered it in place here to emphasize the æsthetic influence of familiarity with nakedness. The most æsthetic nations (notably the Greeks and the Japanese) have been those that preserved a certain degree of familiarity with the naked body. "In all arts," Maeterlinck remarks, "civilized peoples have approached or departed from pure beauty according as they approached or departed from the habit of nakedness." Ungewitter insists on the advantage to the artist of being able to study the naked body in movement, and it may be worth mentioning that Fidus (Hugo Höppener), the German artist of to-day who has exerted great influence by his fresh, powerful and yet reverent delineation of the naked human form in all its varying aspects, attributes his inspiration and vision to the fact that, as a pupil of Diefenbach, he was accustomed with his companions to work naked in the solitudes outside Munich which they frequented (F. Enzensberger, "Fidus," _Deutsche Kultur_, Aug., 1906).

CHAPTER IV.

THE VALUATION OF SEXUAL LOVE.

The Conception of Sexual Love--The Attitude of Mediæval Asceticism--St. Bernard and St. Odo of Cluny--The Ascetic Insistence on the Proximity of the Sexual and Excretory Centres--Love as a Sacrament of Nature--The Idea of the Impurity of Sex in Primitive Religions Generally--Theories of the Origin of This Idea--The Anti-Ascetic Element in the Bible and Early Christianity--Clement of Alexandria--St. Augustine's Attitude--The Recognition of the Sacredness of the Body by Tertullian, Rufinus and Athanasius--The Reformation--The Sexual Instinct regarded as Beastly--The Human Sexual Instinct Not Animal-like--Lust and Love--The Definition of Love--Love and Names for Love Unknown in Some Parts of the World--Romantic Love of Late Development in the White Race--The Mystery of Sexual Desire--Whether Love is a Delusion--The Spiritual as Well as the Physical Structure of the World in Part Built up on Sexual Love--The Testimony of Men of Intellect to the Supremacy of Love.

It will be seen that the preceding discussion of nakedness has a significance beyond what it appeared to possess at the outset. The hygienic value, physically and mentally, of familiarity with nakedness during the early years of life, however considerable it may be, is not the only value which such familiarity possesses. Beyond its æsthetic value, also, there lies in it a moral value, a source of dynamic energy. And now, taking a still further step, we may say that it has a spiritual value in relation to our whole conception of the sexual impulse. Our attitude towards the naked human body is the test of our attitude towards the instinct of sex. If our own and our fellows' bodies seem to us intrinsically shameful or disgusting, nothing will ever really ennoble or purify our conceptions of sexual love. Love craves the flesh, and if the flesh is shameful the lover must be shameful. "Se la cosa amata è vile," as Leonardo da Vinci profoundly said, "l'amante se fa vile." However illogical it may have been, there really was a justification for the old Christian identification of the flesh with the

sexual instinct. They stand or fall together; we cannot degrade the one and exalt the other. As our feelings towards nakedness are, so will be our feelings towards love.

"Man is nothing else than fetid sperm, a sack of dung, the food of worms.... You have never seen a viler dung-hill." Such was the outcome of St. Bernard's cloistered _Meditationes Piissimæ_.[45] Sometimes, indeed, these mediæval monks would admit that the skin possessed a certain superficial beauty, but they only made that admission in order to emphasize the hideousness of the body when deprived of this film of loveliness, and strained all their perverse intellectual acumen, and their ferocious irony, as they eagerly pointed the finger of mockery at every detail of what seemed to them the pitiful figure of man. St. Odo of Cluny--charming saint as he was and a pioneer in his appreciation of the wild beauty of the Alps he had often traversed--was yet an adept in this art of reviling the beauty of the human body. That beauty only lies in the skin, he insists; if we could see beneath the skin women would arouse nothing but nausea. Their adornments are but blood and mucus and bile. If we refuse to touch dung and phlegm even with a fingertip, how can we desire to embrace a sack of dung?[46] The mediæval monks of the more contemplative order, indeed, often found here a delectable field of meditation, and the Christian world generally was content to accept their opinions in more or less diluted versions, or at all events never made any definite protest against them.

Even men of science accepted these conceptions and are, indeed, only now beginning to emancipate themselves from such ancient superstitions. R. de Graef in the Preface to his famous treatise on the generative organs of women, _De Mulierum Organis Generatione Inservientibus_, dedicated to Cosmo III de Medici in 1672, considered it necessary to apologize for the subject of his work. Even a century later, Linnæus in his great work, _The System of Nature_, dismissed as "abominable" the exact study of the female genitals, although he admitted the scientific interest of such investigations. And if men of science have found it difficult to attain an objective vision of women we cannot be surprised that medieval and still more ancient conceptions have often been subtly mingled with the views of philosophical and semi-philosophical writers.[47]

We may regard as a special variety of the ascetic view of sex,--for the ascetics, as we see, freely but not quite legitimately, based their asceticism largely on æsthetic considerations,--that insistence on the proximity of the sexual to the excretory centres which found expression in the early Church in Augustine's depreciatory assertion: "Inter fæces et urinam nascimur," and still persists among many who by no means always associate it with religious asceticism.[48] "As a result of what ridiculous economy, and of what Mephistophilian irony," asks Tarde,[49] "has Nature imagined that a function so lofty, so worthy of the poetic and philosophical hymns which have celebrated it, only deserved to have its exclusive organ shared with that of the vilest corporal functions?"

It may, however, be pointed out that this view of the matter, however unconsciously, is itself the outcome of the ascetic depreciation of the body. From a scientific point of view, the metabolic processes of the body from one end to the other, whether regarded chemically or psychologically, are all interwoven and all of

equal dignity. We cannot separate out any particular chemical or biological process and declare: This is vile. Even what we call excrement still stores up the stuff of our lives. Eating has to some persons seemed a disgusting process. But yet it has been possible to say, with Thoreau, that "the gods have really intended that men should feed divinely, as themselves, on their own nectar and ambrosia.... I have felt that eating became a sacrament, a method of communion, an ecstatic exercise, and a sitting at the communion table of the world."

The sacraments of Nature are in this way everywhere woven into the texture of men's and women's bodies. Lips good to kiss with are indeed first of all chiefly good to eat and drink with. So accumulated and overlapped have the centres of force become in the long course of development, that the mucous membranes of the natural orifices, through the sensitiveness gained in their own offices, all become agents to thrill the soul in the contact of love; it is idle to discriminate high or low, pure or impure; all alike are sanctified already by the extreme unction of Nature. The nose receives the breath of life; the vagina receives the water of life. Ultimately the worth and loveliness of life must be measured by the worth and loveliness for us of the instruments of life. The swelling breasts are such divinely gracious insignia of womanhood because of the potential child that hangs at them and sucks; the large curves of the hips are so voluptuous because of the potential child they clasp within them; there can be no division here, we cannot cut the roots from the tree. The supreme function of manhood--the handing on of the lamp of life to future races--is carried on, it is true, by the same instrument that is the daily conduit of the bladder. It has been said in scorn that we are born between urine and excrement; it may be said, in reverence, that the passage through this channel of birth is a sacrament of Nature's more sacred and significant than men could ever invent.

These relationships have been sometimes perceived and their meaning realized by a sort of mystical intuition. We catch glimpses of such an insight now and again, first among the poets and later among the physicians of the Renaissance. In 1664 Rolfincius, in his _Ordo et Methods Generationi Partium etc._, at the outset of the second Part devoted to the sexual organs of women, sets forth what ancient writers have said of the Eleusinian and other mysteries and the devotion and purity demanded of those who approached these sacred rites. It is so also with us, he continues, in the rites of scientific investigation. "We also operate with sacred things. The organs of sex are to be held among sacred things. They who approach these altars must come with devout minds. Let the profane stand without, and the doors be closed." In those days, even for science, faith and intuition were alone possible. It is only of recent years that the histologist's microscope and the physiological chemist's test-tube have furnished them with a rational basis. It is no longer possible to cut Nature in two and assert that here she is pure and there impure.[50]

There thus appears to be no adequate ground for agreeing with those who consider that the proximity of the generative and excretory centres is "a stupid bungle of Nature's." An association which is so ancient and primitive in Nature can only seem repulsive to those whose feelings have become morbidly unnatural. It may further be remarked that the anus, which is the more æsthetically unattractive of the

excretory centres, is comparatively remote from the sexual centre, and that, as R. Hellmann remarked many years ago in discussing this question (_Ueber Geschlechtsfreiheit_, p. 82): "In the first place, freshly voided urine has nothing specially unpleasant about it, and in the second place, even if it had, we might reflect that a rosy mouth by no means loses its charm merely because it fails to invite a kiss at the moment when its possessor is vomiting."

A clergyman writes suggesting that we may go further and find a positive advantage in this proximity: "I am glad that you do not agree with the man who considered that Nature had bungled by using the genitals for urinary purposes; apart from teleological or theological grounds I could not follow that line of reasoning. I think there is no need for disgust concerning the urinary organs, though I feel that the anus can never be attractive to the normal mind; but the anus is quite separate from the genitals. I would suggest that the proximity serves a good end in making the organs more or less secret except at times of sexual emotion or to those in love. The result is some degree of repulsion at ordinary times and a strong attraction at times of sexual activity. Hence, the ordinary guarding of the parts, from fear of creating disgust, greatly increases their attractiveness at other times when sexual emotion is paramount. Further, the feeling of disgust itself is merely the result of habit and sentiment, however useful it may be, and according to Scripture everything is clean and good. The ascetic feeling of repulsion, if we go back to origin, is due to other than Christian influence. Christianity came out of Judaism which had no sense of the impurity of marriage, for 'unclean' in the Old Testament simply means 'sacred.' The ascetic side of the religion of Christianity is no part of the religion of Christ as it came from the hands of its Founder, and the modern feeling on this matter is a lingering remnant of the heresy of the Manichæans." I may add, however, that, as Northcote points out (_Christianity and Sex Problems_, p. 14), side by side in the Old Testament with the frank recognition of sexuality, there is a circle of ideas revealing the feeling of impurity in sex and of shame in connection with it. Christianity inherited this mixed feeling. It has really been a widespread and almost universal feeling among the ancient and primitive peoples that there is something impure and sinful in the things of sex, so that those who would lead a religious life must avoid sexual relationships; even in India celibacy has commanded respect (see, e.g., Westermarck, _Marriage_, pp. 150 et seq.). As to the original foundation of this notion--which it is unnecessary to discuss more fully here--many theories have been put forward; St. Augustine, in his _De Civitate Dei_, sets forth the ingenious idea that the penis, being liable to spontaneous movements and erections that are not under the control of the will, is a shameful organ and involves the whole sphere of sex in its shame. Westermarck argues that among nearly all peoples there is a feeling against sexual relationship with members of the same family or household, and as sex was thus banished from the sphere of domestic life a notion of its general impurity arose; Northcote points out that from the first it has been necessary to seek concealment for sexual intercourse, because at that moment the couple would be a prey to hostile attacks, and that it was by an easy transition that sex came to be regarded as a thing that ought to be concealed, and, therefore, a sinful thing. (Diderot, in his _Supplément au Voyage de Bougainville_, had already referred to this motive for seclusion as "the

only natural element in modesty.") Crawley has devoted a large part of his suggestive work, _The Mystic Rose_, to showing that, to savage man, sex is a perilous, dangerous, and enfeebling element in life, and, therefore, sinful.

It would, however, be a mistake to think that such men as St. Bernard and St. Odo of Cluny, admirably as they represented the ascetic and even the general Christian views of their own time, are to be regarded as altogether typical exponents of the genuine and primitive Christian view. So far as I have been able to discover, during the first thousand years of Christianity we do not find this concentrated intellectual and emotional ferocity of attack on the body; it only developed at the moment when, with Pope Gregory VII, mediæval Christianity reached the climax of its conquest over the souls of European men, in the establishment of the celibacy of the secular clergy, and the growth of the great cloistered communities of monks in severely regulated and secluded orders.[51] Before that the teachers of asceticism were more concerned to exhort to chastity and modesty than to direct a deliberate and systematic attack on the whole body; they concentrated their attention rather on spiritual virtues than on physical imperfections. And if we go back to the Gospels we find little of the mediæval ascetic spirit in the reported sayings and doings of Jesus, which may rather indeed be said to reveal, on the whole, notwithstanding their underlying asceticism, a certain tenderness and indulgence to the body, while even Paul, though not tender towards the body, exhorts to reverence towards it as a temple of the Holy Spirit.

We cannot expect to find the Fathers of the Church sympathetic towards the spectacle of the naked human body, for their position was based on a revolt against paganism, and paganism had cultivated the body. Nakedness had been more especially associated with the public bath, the gymnasium, and the theatre; in profoundly disapproving of these pagan institutions Christianity discouraged nakedness. The fact that familiarity with nakedness was favorable, rather than opposed, to the chastity to which it attached so much importance, the Church--though indeed at one moment it accepted nakedness in the rite of baptism--was for the most part unable to see if it was indeed a fact which the special conditions of decadent classic life had tended to disguise. But in their decided preference for the dressed over the naked human body the early Christians frequently hesitated to take the further step of asserting that the body is a focus of impurity and that the physical organs of sex are a device of the devil. On the contrary, indeed, some of the most distinguished of the Fathers, especially those of the Eastern Church who had felt the vivifying breath of Greek thought, occasionally expressed themselves on the subject of Nature, sex, and the body in a spirit which would have won the approval of Goethe or Whitman.

Clement of Alexandria, with all the eccentricities of his over-subtle intellect, was yet the most genuinely Greek of all the Fathers, and it is not surprising that the dying ray of classic light reflected from his mind shed some illumination over this question of sex. He protested, for instance, against that prudery which, as the sun of the classic world set, had begun to overshadow life. "We should not be ashamed to name," he declared, "what God has not been ashamed to create."[52] It was a memorable declaration because, while it accepted the old classic feeling of no shame

in the presence of nature, it put that feeling on a new and religious basis harmonious to Christianity. Throughout, though not always quite consistently, Clement defends the body and the functions of sex against those who treated them with contempt. And as the cause of sex is the cause of women he always strongly asserts the dignity of women, and also proclaims the holiness of marriage, a state which he sometimes places above that of virginity.[53]

Unfortunately, it must be said, St. Augustine--another North African, but of Roman Carthage and not of Greek Alexandria--thought that he had a convincing answer to the kind of argument which Clement presented, and so great was the force of his passionate and potent genius that he was able in the end to make his answer prevail. For Augustine sin was hereditary, and sin had its special seat and symbol in the sexual organs; the fact of sin has modified the original divine act of creation, and we cannot treat sex and its organs as though there had been no inherited sin. Our sexual organs, he declares, have become shameful because, through sin, they are now moved by lust. At the same time Augustine by no means takes up the mediæval ascetic position of contemptuous hatred towards the body. Nothing can be further from Odo of Cluny than Augustine's enthusiasm about the body, even about the exquisite harmony of the parts beneath the skin. "I believe it may be concluded," he even says, "that in the creation of the human body beauty was more regarded than necessity. In truth, necessity is a transitory thing, and the time is coming when we shall be able to enjoy one another's beauty without any lust."[54] Even in the sphere of sex he would be willing to admit purity and beauty, apart from the inherited influence of Adam's sin. In Paradise, he says, had Paradise continued, the act of generation would have been as simple and free from shame as the act of the hand in scattering seed on to the earth. "Sexual conjugation would have been under the control of the will without any sexual desire. The semen would be injected into the vagina in as simple a manner as the menstrual fluid is now ejected. There would not have been any words which could be called obscene, but all that might be said of these members would have been as pure as what is said of the other parts of the body."[55] That, however, for Augustine, is what might have been in Paradise where, as he believed, sexual desire had no existence. As things are, he held, we are right to be ashamed, we do well to blush. And it was natural that, as Clement of Alexandria mentions, many heretics should have gone further on this road and believed that while God made man down to the navel, the rest was made by another power; such heretics have their descendants among us even to-day.

Alike in the Eastern and Western Churches, however, both before and after Augustine, though not so often after, great Fathers and teachers have uttered opinions which recall those of Clement rather than of Augustine. We cannot lay very much weight on the utterance of the extravagant and often contradictory Tertullian, but it is worth noting that, while he declared that woman is the gate of hell, he also said that we must approach Nature with reverence and not with blushes. "Natura veneranda est, non erubescenda." "No Christian author," it has indeed been said, "has so energetically spoken against the heretical contempt of the body as Tertullian. Soul and body, according to Tertullian, are in the closest association. The soul is the life-principle of the body, but there is no activity of the soul which is not manifested

and conditioned by the flesh."[56] More weight attaches to Rufinus Tyrannius, the friend and fellow-student of St. Jerome, in the fourth century, who wrote a commentary on the Apostles' Creed, which was greatly esteemed by the early and mediæval Church, and is indeed still valued even to-day. Here, in answer to those who declared that there was obscenity in the fact of Christ's birth through the sexual organs of a woman, Rufinus replies that God created the sexual organs, and that "it is not Nature but merely human opinion which teaches that these parts are obscene. For the rest, all the parts of the body are made from the same clay, whatever differences there may be in their uses and functions."[57] He looks at the matter, we see, piously indeed, but naturally and simply, like Clement, and not, like Augustine, through the distorting medium of a theological system. Athanasius, in the Eastern Church, spoke in the same sense as Rufinus in the Western Church. A certain monk named Amun had been much grieved by the occurrence of seminal emissions during sleep, and he wrote to Athanasius to inquire if such emissions are a sin. In the letter he wrote in reply, Athanasius seeks to reassure Amun. "All things," he tells him, "are pure to the pure. For what, I ask, dear and pious friend, can there be sinful or naturally impure in excrement? Man is the handwork of God. There is certainly nothing in us that is impure."[58] We feel as we read these utterances that the seeds of prudery and pruriency are already alive in the popular mind, but yet we see also that some of the most distinguished thinkers of the early Christian Church, in striking contrast to the more morbid and narrow-minded mediæval ascetics, clearly stood aside from the popular movement. On the whole, they were submerged because Christianity, like Buddhism, had in it from the first a germ that lent itself to ascetic renunciation, and the sexual life is always the first impulse to be sacrificed to the passion for renunciation. But there were other germs also in Christianity, and Luther, who in his own plebeian way asserted the rights of the body, although he broke with mediæval asceticism, by no means thereby cast himself off from the traditions of the early Christian Church.

I have thought it worth while to bring forward this evidence, although I am perfectly well aware that the facts of Nature gain no additional support from the authority of the Fathers or even of the Bible. Nature and humanity existed before the Bible and would continue to exist although the Bible should be forgotten. But the attitude of Christianity on this point has so often been unreservedly condemned that it seems as well to point out that at its finest moments, when it was a young and growing power in the world, the utterances of Christianity were often at one with those of Nature and reason. There are many, it may be added, who find it a matter of consolation that in following the natural and rational path in this matter they are not thereby altogether breaking with the religious traditions of their race.

It is scarcely necessary to remark that when we turn from Christianity to the other great world-religions, we do not usually meet with so ambiguous an attitude towards sex. The Mahommedans were as emphatic in asserting the sanctity of sex as they were in asserting physical cleanliness; they were prepared to carry the functions of sex into the future life, and were never worried, as Luther and so many other Christians have been, concerning the lack of occupation in Heaven. In India, although India is the home of the most extreme forms of religious asceticism, sexual love has

been sanctified and divinized to a greater extent than in any other part of the world. "It seems never to have entered into the heads of the Hindu legislators," said Sir William Jones long since (_Works_, vol. ii, p. 311), "that anything natural could be offensively obscene, a singularity which pervades all their writings, but is no proof of the depravity of their morals." The sexual act has often had a religious significance in India, and the minutest details of the sexual life and its variations are discussed in Indian erotic treatises in a spirit of gravity, while nowhere else have the anatomical and physiological sexual characters of women been studied with such minute and adoring reverence. "Love in India, both as regards theory and practice," remarks Richard Schmidt (_Beiträge zur Indischen Erotik_, p. 2) "possesses an importance which it is impossible for us even to conceive."

In Protestant countries the influence of the Reformation, by rehabilitating sex as natural, indirectly tended to substitute in popular feeling towards sex the opprobrium of sinfulness by the opprobrium of animality. Henceforth the sexual impulse must be disguised or adorned to become respectably human. This may be illustrated by a passage in Pepys's _Diary_ in the seventeenth century. On the morning after the wedding day it was customary to call up new married couples by music; the absence of this music on one occasion (in 1667) seemed to Pepys "as if they had married like dog and bitch." We no longer insist on the music, but the same feeling still exists in the craving for other disguises and adornments for the sexual impulse. We do not always realize that love brings its own sanctity with it.

Nowadays indeed, whenever the repugnance to the sexual side of life manifests itself, the assertion nearly always made is not so much that it is "sinful" as that it is "beastly." It is regarded as that part of man which most closely allies him to the lower animals. It should scarcely be necessary to point out that this is a mistake. On whichever side, indeed, we approach it, the implication that sex in man and animals is identical cannot be borne out. From the point of view of those who accept this identity it would be much more correct to say that men are inferior, rather than on a level with animals, for in animals under natural conditions the sexual instinct is strictly subordinated to reproduction and very little susceptible to deviation, so that from the standpoint of those who wish to minimize sex, animals are nearer to the ideal, and such persons must say with Woods Hutchinson: "Take it altogether, our animal ancestors have quite as good reason to be ashamed of us as we of them." But if we look at the matter from a wider biological standpoint of development, our conclusion must be very different.

So far from being animal-like, the human impulses of sex are among the least animal-like acquisitions of man. The human sphere of sex differs from the animal sphere of sex to a singularly great extent.[59] Breathing is an animal function and here we cannot compete with birds; locomotion is an animal function and here we cannot equal quadrupeds; we have made no notable advance in our circulatory, digestive, renal, or hepatic functions. Even as regards vision and hearing, there are many animals that are more keen-sighted than man, and many that are capable of hearing sounds that to him are inaudible. But there are no animals in whom the sexual instinct is so sensitive, so highly developed, so varied in its manifestations, so

constantly alert, so capable of irradiating the highest and remotest parts of the organism. The sexual activities of man and woman belong not to that lower part of our nature which degrades us to the level of the "brute," but to the higher part which raises us towards all the finest activities and ideals we are capable of. It is true that it is chiefly in the mouths of a few ignorant and ill-bred women that we find sex referred to as "bestial" or "the animal part of our nature."[60] But since women are the mothers and teachers of the human race this is a piece of ignorance and ill-breeding which cannot be too swiftly eradicated.

There are some who seem to think that they have held the balance evenly, and finally stated the matter, if they admit that sexual love may be either beautiful or disgusting, and that either view is equally normal and legitimate. "Listen in turn," Tarde remarks, "to two men who, one cold, the other ardent, one chaste, the other in love, both equally educated and large-minded, are estimating the same thing: one judges as disgusting, odious, revolting, and bestial what the other judges to be delicious, exquisite, ineffable, divine. What, for one, is in Christian phraseology, an unforgivable sin, is, for the other, the state of true grace. Acts that for one seem a sad and occasional necessity, stains that must be carefully effaced by long intervals of continence, are for the other the golden nails from which all the rest of conduct and existence is suspended, the things that alone give human life its value."[61] Yet we may well doubt whether both these persons are "equally well-educated and broad-minded." The savage feels that sex is perilous, and he is right. But the person who feels that the sexual impulse is bad, or even low and vulgar, is an absurdity in the universe, an anomaly. He is like those persons in our insane asylums, who feel that the instinct of nutrition is evil and so proceed to starve themselves. They are alike spiritual outcasts in the universe whose children they are. It is another matter when a man declares that, personally, in his own case, he cherishes an ascetic ideal which leads him to restrain, so far as possible, either or both impulses. The man, who is sanely ascetic seeks a discipline which aids the ideal he has personally set before himself. He may still remain theoretically in harmony with the universe to which he belongs. But to pour contempt on the sexual life, to throw the veil of "impurity" over it, is, as Nietzsche declared, the unpardonable sin against the Holy Ghost of Life.

There are many who seek to conciliate prejudice and reason in their valuation of sex by drawing a sharp distinction between "lust" and "love," rejecting the one and accepting the other. It is quite proper to make such a distinction, but the manner in which it is made will by no means usually bear examination. We have to define what we mean by "lust" and what we mean by "love," and this is not easy if they are regarded as mutually exclusive. It is sometimes said that "lust" must be understood as meaning a reckless indulgence of the sexual impulse without regard to other considerations. So understood, we are quite safe in rejecting it. But that is an entirely arbitrary definition of the word. "Lust" is really a very ambiguous term; it is a good word that has changed its moral values, and therefore we need to define it very carefully before we venture to use it. Properly speaking, "lust" is an entirely colorless word[62] and merely means desire in general and sexual desire in particular; it corresponds to "hunger" or "thirst"; to use it in an offensive sense is much the same as though we should always assume that the word "hungry" had the offensive

meaning of "greedy." The result has been that sensitive minds indignantly reject the term "lust" in connection with love.[63] In the early use of our language, "lust," "lusty," and "lustful" conveyed the sense of wholesome and normal sexual vigor; now, with the partial exception of "lusty," they have been so completely degraded to a lower sense that although it would be very convenient to restore them to their original and proper place, which still remains vacant, the attempt at such a restoration scarcely seems a hopeful task. We have so deeply poisoned the springs of feeling in these matters with mediæval ascetic crudities that all our words of sex tend soon to become bespattered with filth; we may pick them up from the mud into which they have fallen and seek to purify them, but to many eyes they will still seem dirty. One result of this tendency is that we have no simple, precise, natural word for the love of the sexes, and are compelled to fall back on the general term, which is so extensive in its range that in English and French and most of the other leading languages of Europe, it is equally correct to "love" God or to "love" eating.

Love, in the sexual sense, is, summarily considered, a synthesis of lust (in the primitive and uncolored sense of sexual emotion) and friendship. It is incorrect to apply the term "love" in the sexual sense to elementary and uncomplicated sexual desire; it is equally incorrect to apply it to any variety or combination of varieties of friendship. There can be no sexual love without lust; but, on the other hand, until the currents of lust in the organism have been so irradiated as to affect other parts of the psychic organism--at the least the affections and the social feelings--it is not yet sexual love. Lust, the specific sexual impulse, is indeed the primary and essential element in this synthesis, for it alone is adequate to the end of reproduction, not only in animals but in men. But it is not until lust is expanded and irradiated that it develops into the exquisite and enthralling flower of love. We may call to mind what happens among plants: on the one hand we have the lower organisms in which sex is carried on summarily and cryptogamically, never shedding any shower of gorgeous blossoms on the world, and on the other hand the higher plants among whom sex has become phanersgamous and expanded enormously into form and color and fragrance.

While "lust" is, of course, known all over the world, and there are everywhere words to designate it, "love" is not universally known, and in many languages there are no words for "love." The failures to find love are often remarkable and unexpected. We may find it where we least expect it. Sexual desire became idealized (as Sergi has pointed out) even by some animals, especially birds, for when a bird pines to death for the loss of its mate this cannot be due to the uncomplicated instinct of sex, but must involve the interweaving of that instinct with the other elements of life to a degree which is rare even among the most civilized men. Some savage races seem to have no fundamental notion of love, and (like the American Nahuas) no primary word for it, while, on the other hand, in Quichua, the language of the ancient Peruvians, there are nearly six hundred combinations of the verb _munay_, to love. Among some peoples love seems to be confined to the women. Letourneau (_L'Evolution Littéraire_, p. 529) points out that in various parts of the world women have taken a leading part in creating erotic poetry. It may be mentioned in this connection that suicide from erotic motives among primitive peoples occurs chiefly among women (_Zeitschrift für Sozialwissenschaft_, 1899, p. 578). Not a few savages

possess love-poems, as, for instance, the Suahali (Velten, in his _Prosa und Poesie der Suahali_, devotes a section to love-poems reproduced in the Suahali language). D.G. Brinton, in an interesting paper on "The Conception of Love in Some American Languages" (_Proceedings American Philosophical Society_, vol. xxiii, p. 546, 1886) states that the words for love in these languages reveal four main ways of expressing the conception: (1) inarticulate cries of emotion; (2) assertions of sameness or similarity; (3) assertions of conjunction or union; (4) assertions of a wish, desire, a longing. Brinton adds that "these same notions are those which underlie the majority of the words of love in the great Aryan family of languages." The remarkable fact emerges, however, that the peoples of Aryan tongue were slow in developing their conception of sexual love. Brinton remarks that the American Mayas must be placed above the peoples of early Aryan culture, in that they possessed a radical word for the joy of love which was in significance purely psychical, referring strictly to a mental state, and neither to similarity nor desire. Even the Greeks were late in developing any ideal of sexual love. This has been well brought out by E.F.M. Benecke in his _Antimachus of Colophon and the Position of Women in Greek Poetry_, a book which contains some hazardous assertions, but is highly instructive from the present point of view. The Greek lyric poets wrote practically no love poems at all to women before Anacreon, and his were only written in old age. True love for the Greeks was nearly always homosexual. The Ionian lyric poets of early Greece regarded woman as only an instrument of pleasure and the founder of the family. Theognis compares marriage to cattle-breeding; Alcman, when he wishes to be complimentary to the Spartan girls, speaks of them as his "female boy-friends." Æschylus makes even a father assume that his daughters will misbehave if left to themselves. There is no sexual love in Sophocles, and in Euripides it is only the women who fall in love. Benecke concludes (p. 67) that in Greece sexual love, down to a comparatively later period, was looked down on, and held to be unworthy of public discussion and representation. It was in Magna Græcia rather than in Greece itself that men took interest in women, and it was not until the Alexandrian period, and notably in Asclepiades, Benecke maintains, that the love of women was regarded as a matter of life and death. Thereafter the conception of sexual love, in its romantic aspects, appears in European life. With the Celtic story of Tristram, as Gaston Paris remarks, it finally appears in the Christian European world of poetry as the chief point in human life, the great motive force of conduct.

Romantic love failed, however, to penetrate the masses in Europe. In the sixteenth century, or whenever it was that the ballad of "Glasgerion" was written, we see it is assumed that a churl's relation to his mistress is confined to the mere act of sexual intercourse; he fails to kiss her on arriving or departing; it is only the knight, the man of upper class, who would think of offering that tender civility. And at the present day in, for instance, the region between East Friesland and the Alps, Bloch states (_Sexualleben unserer Zeit_, p. 29), following E.H. Meyer, that the word "love" is unknown among the masses, and only its coarse counterpart recognized.

On the other side of the world, in Japan, sexual love seems to be in as great disrepute as it was in ancient Greece; thus Miss Tsuda, a Japanese head-mistress, and herself a Christian, remarks (as quoted by Mrs. Eraser in _World's Work and Play_,

Dec., 1906): "That word 'love' has been hitherto a word unknown among our girls, in the foreign sense. Duty, submission, kindness--these were the sentiments which a girl was expected to bring to the husband who had been chosen for her--and many happy, harmonious marriages were the result. Now, your dear sentimental foreign women say to our girls: 'It is wicked to marry without love; the obedience to parents in such a case is an outrage against nature and Christianity. If you love a man you must sacrifice everything to marry him.'"

When, however, love is fully developed it becomes an enormously extended, highly complex emotion, and lust, even in the best sense of that word, becomes merely a coördinated element among many other elements. Herbert Spencer, in an interesting passage of his _Principles of Psychology_ (Part IV, Ch. VIII), has analyzed love into as many as nine distinct and important elements: (1) the physical impulse of sex; (2) the feeling for beauty; (3) affection; (4) admiration and respect; (5) love of approbation; (6) self-esteem; (7) proprietary feeling; (8) extended liberty of action from the absence of personal barriers; (9) exaltation of the sympathies. "This passion," he concludes, "fuses into one immense aggregate most of the elementary excitations of which we are capable."

It is scarcely necessary to say that to define sexual love, or even to analyze its components, is by no means to explain its mystery. We seek to satisfy our intelligence by means of a coherent picture of love, but the gulf between that picture and the emotional reality must always be incommensurable and impassable. "There is no word more often pronounced than that of love," wrote Bonstetten many years ago, "yet there is no subject more mysterious. Of that which touches us most nearly we know least. We measure the march of the stars and we do not know how we love." And however expert we have become in detecting and analyzing the causes, the concomitants, and the results of love, we must still make the same confession to-day. We may, as some have done, attempt to explain love as a form of hunger and thirst, or as a force analogous to electricity, or as a kind of magnetism, or as a variety of chemical affinity, or as a vital tropism, but these explanations are nothing more than ways of expressing to ourselves the magnitude of the phenomenon we are in the presence of.

What has always baffled men in the contemplation of sexual love is the seeming inadequacy of its cause, the immense discrepancy between the necessarily circumscribed region of mucous membrane which is the final goal of such love and the sea of world-embracing emotions to which it seems as the door, so that, as Remy de Gourmont has said, "the mucous membranes, by an ineffable mystery, enclose in their obscure folds all the riches of the infinite." It is a mystery before which the thinker and the artist are alike overcome. Donnay, in his play _L'Escalade_, makes a cold and stern man of science, who regards love as a mere mental disorder which can be cured like other disorders, at last fall desperately in love himself. He forces his way into the girl's room, by a ladder, at dead of night, and breaks into a long and passionate speech: "Everything that touches you becomes to me mysterious and sacred. Ah! to think that a thing so well known as a woman's body, which sculptors have modelled, which poets have sung of, which men of science like myself have

dissected, that such a thing should suddenly become an unknown mystery and an infinite joy merely because it is the body of one particular woman--what insanity! And yet that is what I feel."[64]

That love is a natural insanity, a temporary delusion which the individual is compelled to suffer for the sake of the race, is indeed an explanation that has suggested itself to many who have been baffled by this mystery. That, as we know, was the explanation offered by Schopenhauer. When a youth and a girl fall into each other's arms in the ecstacy of love they imagine that they are seeking their own happiness. But it is not so, said Schopenhauer; they are deluded by the genius of the race into the belief that they are seeking a personal end in order that they may be induced to effect a far greater impersonal end: the creation of the future race. The intensity of their passion is not the measure of the personal happiness they will secure but the measure of their aptitude for producing offspring. In accepting passion and renouncing the counsels of cautious prudence the youth and the girl are really sacrificing their chances of selfish happiness and fulfilling the larger ends of Nature. As Schopenhauer saw the matter, there was here no vulgar illusion. The lovers thought that they were reaching towards a boundlessly immense personal happiness; they were probably deceived. But they were deceived not because the reality was less than their imagination, but because it was more; instead of pursuing, as they thought, a merely personal end they were carrying on the creative work of the world, a task better left undone, as Schopenhauer viewed it, but a task whose magnitude he fully recognized.[65]

It must be remembered that in the lower sense of deception, love may be, and frequently is, a delusion. A man may deceive himself, or be deceived by the object of his attraction, concerning the qualities that she possesses or fails to possess. In first love, occurring in youth, such deception is perhaps entirely normal, and in certain suggestible and inflammable types of people it is peculiarly apt to occur. This kind of deception, although far more frequent and conspicuous in matters of love--and more serious because of the tightness of the marriage bond--is liable to occur in any relation of life. For most people, however, and those not the least sane or the least wise, the memory of the exaltation of love, even when the period of that exaltation is over, still remains as, at the least, the memory of one of the most real and essential facts of life.[66]

Some writers seem to confuse the liability in matters of love to deception or disappointment with the larger question of a metaphysical illusion in Schopenhauer's sense. To some extent this confusion perhaps exists in the discussion of love by Renouvier and Prat in _La Nouvelle Monadologie_ (pp. 216 _et seq._). In considering whether love is or is not a delusion, they answer that it is or is not according as we are, or are not, dominated by selfishness and injustice. "It was not an essential error which presided over the creation of the _idol_, for the idol is only what in all things the _ideal_ is. But to realize the ideal in love two persons are needed, and therein is the great difficulty. We are never justified," they conclude, "in casting contempt on our love, or even on its object, for if it is true that we have not gained possession of the sovereign beauty of the world it is equally true that we have not attained a degree

of perfection that would have entitled us justly to claim so great a prize." And perhaps most of us, it may be added, must admit in the end, if we are honest with ourselves, that the prizes of love we have gained in the world, whatever their flaws, are far greater than we deserved.

We may well agree that in a certain sense not love alone but all the passions and desires of men are illusions. In that sense the Gospel of Buddha is justified, and we may recognize the inspiration of Shakespeare (in the _Tempest_) and of Calderon (in _La Vida es Sueño_), who felt that ultimately the whole world is an insubstantial dream. But short of that large and ultimate vision we cannot accept illusion; we cannot admit that love is a delusion in some special and peculiar sense that men's other cravings and aspirations escape. On the contrary, it is the most solid of realities. All the progressive forms of life are built up on the attraction of sex. If we admit the action of sexual selection--as we can scarcely fail to do if we purge it from its unessential accretions[67]--love has moulded the precise shape and color, the essential beauty, alike of animal and human life.

If we further reflect that, as many investigators believe, not only the physical structure of life but also its spiritual structure--our social feelings, our morality, our religion, our poetry and art--are, in some degree at least, also built up on the impulse of sex, and would have been, if not non-existent, certainly altogether different had other than sexual methods of propagation prevailed in the world, we may easily realize that we can only fall into confusion by dismissing love as a delusion. The whole edifice of life topples down, for as the idealist Schiller long since said, it is entirely built up on hunger and on love. To look upon love as in any special sense a delusion is merely to fall into the trap of a shallow cynicism. Love is only a delusion in so far as the whole of life is a delusion, and if we accept the fact of life it is unphilosophical to refuse to accept the fact of love.

It is unnecessary here to magnify the functions of love in the world; it is sufficient to investigate its workings in its own proper sphere. It may, however, be worth while to quote a few expressions of thinkers, belonging to various schools, who have pointed out what seemed to them the far-ranging significance of the sexual emotions for the moral life. "The passions are the heavenly fire which gives life to the moral world," wrote Helvétius long since in _De l'Esprit_. "The activity of the mind depends on the activity of the passions, and it is at the period of the passions, from the age of twenty-five to thirty-five or forty that men are capable of the greatest efforts of virtue or of genius." "What touches sex," wrote Zola, "touches the centre of social life." Even our regard for the praise and blame of others has a sexual origin, Professor Thomas argues (_Psychological Review_, Jan., 1904, pp. 61-67), and it is love which is the source of susceptibility generally and of the altruistic side of life. "The appearance of sex," Professor Woods Hutchinson attempts to show ("Love as a Factor in Evolution," _Monist_, 1898), "the development of maleness and femaleness, was not only the birthplace of affection, the well-spring of all morality, but an enormous economic advantage to the race and an absolute necessity of progress. In it first we find any conscious longing for or active impulse toward a fellow creature." "Were man robbed of the instinct of procreation, and of all that spiritually springs therefrom," exclaimed

Maudsley in his _Physiology of Mind_, "that moment would all poetry, and perhaps also his whole moral sense, be obliterated from his life." "One seems to oneself transfigured, stronger, richer, more complete; one _is_ more complete," says Nietzsche (_Der Wille zur Macht_, p. 389), "we find here art as an organic function: we find it inlaid in the most angelic instinct of 'love:' we find it as the greatest stimulant of life.... It is not merely that it changes the feeling of values: the lover _is_ worth more, is stronger. In animals this condition produces new weapons, pigments, colors, and forms, above all new movements, new rhythms, a new seductive music. It is not otherwise in man.... Even in art the door is opened to him. If we subtract from lyrical work in words and sounds the suggestions of that intestinal fever, what is left over in poetry and music? _L'Art pour l'art_ perhaps, the quacking virtuosity of cold frogs who perish in their marsh. All the rest is created by love."

It would be easy to multiply citations tending to show how many diverse thinkers have come to the conclusion that sexual love (including therewith parental and especially maternal love) is the source of the chief manifestations of life. How far they are justified in that conclusion, it is not our business now to inquire.

It is undoubtedly true that, as we have seen when discussing the erratic and imperfect distribution of the conception of love, and even of words for love, over the world, by no means all people are equally apt for experiencing, even at any time in their lives, the emotions of sexual exaltation. The difference between the knight and the churl still subsists, and both may sometimes be found in all social strata. Even the refinements of sexual enjoyment, it is unnecessary to insist, quite commonly remain on a merely physical basis, and have little effect on the intellectual and emotional nature.[68] But this is not the case with the people who have most powerfully influenced the course of the world's thought and feeling. The personal reality of love, its importance for the individual life, are facts that have been testified to by some of the greatest thinkers, after lives devoted to the attainment of intellectual labor. The experience of Renan, who toward the end of his life set down in his remarkable drama _L'Abbesse de Jouarre_, his conviction that, even from the point of view of chastity, love is, after all, the supreme thing in the world, is far from standing alone. "Love has always appeared as an inferior mode of human music, ambition as the superior mode," wrote Tarde, the distinguished sociologist, at the end of his life. "But will it always be thus? Are there not reasons for thinking that the future perhaps reserves for us the ineffable surprise of an inversion of that secular order?" Laplace, half an hour before his death, took up a volume of his own _Mécanique Celeste_, and said: "All that is only trifles, there is nothing true but love." Comte, who had spent his life in building up a Positive Philosophy which should be absolutely real, found (as indeed it may be said the great English Positivist Mill also found) the culmination of all his ideals in a woman, who was, he said, Egeria and Beatrice and Laura in one, and he wrote: "There is nothing real in the world but love. One grows tired of thinking, and even of acting; one never grows tired of loving, nor of saying so. In the worst tortures of affection I have never ceased to feel that the essential of happiness is that the heart should be worthily filled--even with pain, yes, even with pain, the bitterest pain." And Sophie Kowalewsky, after intellectual achievements which have placed her among the most distinguished of her sex, pathetically wrote: "Why can no one love

me? I could give more than most women, and yet the most insignificant women are loved and I am not." Love, they all seem to say, is the one thing that is supremely worth while. The greatest and most brilliant of the world's intellectual giants, in their moments of final insight, thus reach the habitual level of the humble and almost anonymous persons, cloistered from the world, who wrote _The Imitation of Christ_ or _The Letters of a Portuguese Nun_. And how many others!

FOOTNOTES:

[45] _Meditationes Piissimæ de Cognitione Humanæ Conditionis_, Migne's _Patrologia_, vol. clxxiv, p. 489, cap. III, "De Dignitate Animæ et Vilitate Corporis." It may be worth while to quote more at length the vigorous language of the original. "Si diligenter consideres quid per os et nares cæterosque corporis meatus egrediatur, vilius sterquilinum numquam vidisti.... Attende, homo, quid fuisti ante ortum, et quid es ab ortu usque ad occasum, atque quid eris post hanc vitam. Profecto fuit quand non eras: postea de vili materia factus, et vilissimo panno involutus, menstruali sanguine in utero materno fuisti nutritus, et tunica tua fuit pellis secundina. Nihil aliud est homo quam sperma fetidum, saccus stercorum, cibus vermium.... Quid superbis, pulvis et cinis, cujus conceptus cula, nasci miseria, vivere poena, mori angustia?"

[46] See (in Mignes' edition) _S. Odonis abbatis Cluniacensis Collationes_, lib. ii, cap. IX.

[47] Dühren (_Neue Forshungen über die Marquis de Sade_, pp. 432 et seq.) shows how the ascetic view of woman's body persisted, for instance, in Schopenhauer and De Sade.

[48] In "The Evolution of Modesty," in the first volume of these _Studies_, and again in the fifth volume in discussing urolagnia in the study of "Erotic Symbolism," the mutual reactions of the sexual and excretory centres were fully dealt with.

[49] "La Morale Sexuelle," _Archives d'Anthropologie Criminelle_, Jan., 1907.

[50] The above passage, now slightly modified, originally formed an unpublished part of an essay on Walt Whitman in _The New Spirit_, first issued in 1889.

[51] Even in the ninth century, however, when the monastic movement was rapidly developing, there were some who withstood the tendencies of the new ascetics. Thus, in 850, Ratramnus, the monk of Corbie, wrote a treatise (_Liber de eo quod Christus ex Virgine natus est_) to prove that Mary really gave birth to Jesus through her sexual organs, and not, as some high-strung persons were beginning to think could alone be possible, through the more conventionally decent breasts. The sexual organs were sanctified. "Spiritus sanctus ... et thalamum tanto dignum sponso sanctificavit et portam" (Achery, _Spicilegium_, vol. i, p. 55).

[52] _Pædagogus_, lib. ii, cap. X. Elsewhere (id., lib. ii, Ch. VI) he makes a more detailed statement to the same effect.

[53] See, e.g., Wilhelm Capitaine, _Die Moral des Clemens von Alexandrien_, pp. 112 et seq.

[54] _De Civitate Dei_, lib. xxii, cap. XXIV. "There is no need," he says again (id., lib. xiv, cap. V) "that in our sins and vices we accuse the nature of the flesh to the injury of the Creator, for in its own kind and degree the flesh is good."

[55] St. Augustine, _De Civitate Dei_, lib. xiv, cap. XXIII-XXVI. Chrysostom and Gregory, of Nyssa, thought that in Paradise human beings would have multiplied by special creation, but such is not the accepted Catholic doctrine.

[56] W. Capitaine, _Die Moral des Clemens von Alexandrien_, pp. 112 et seq. Without the body, Tertullian declared, there could be no virginity and no salvation. The soul itself is corporeal. He carries, indeed, his idea of the omnipresence of the body to the absurd.

[57] Rufinus, _Commentarius in Symbolum Apostolorum_, cap. XII.

[58] Migne, _Patrologia Græca_, vol. xxvi, pp. 1170 et seq.

[59] Even in physical conformation the human sexual organs, when compared with those of the lower animals, show marked differences (see "The Mechanism of Detumescence," in the fifth volume of these _Studies_).

[60] It may perhaps be as well to point out, with Forel (_Die Sexuelle Frage_, p. 208), that the word "bestial" is generally used quite incorrectly in this connection. Indeed, not only for the higher, but also for the lower manifestation of the sexual impulse, it would usually be more correct to use instead the qualification "human."

[61] _Loc. cit._, _Archives d'Anthropologie Criminelle_, Jan., 1907.

[62] It has, however, become colored and suspect from an early period in the history of Christianity. St. Augustine (_De Civitate Dei_, lib. xiv, cap. XV), while admitting that libido or lust is merely the generic name for all desire, adds that, as specially applied to the sexual appetite, it is justly and properly mixed up with ideas of shame.

[63] Hinton well illustrates this feeling. "We call by the name of lust," he declares in his MSS., "the most simple and natural desires. We might as well term hunger and thirst 'lust' as so call sex-passion, when expressing simply Nature's prompting. We miscall it 'lust,' cruelly libelling those to whom we ascribe it, and introduce absolute disorder. For, by foolishly confounding Nature's demands with lust, we insist upon restraint upon her."

[64] Several centuries earlier another French writer, the distinguished physician, A. Laurentius (Des Laurens) in his _Historia Anatomica Humani Corporis_ (lib. viii, Quæstio vii) had likewise puzzled over "the incredible desire of coitus," and asked how it was that "that divine animal, full of reason and judgment, which we call Man, should be attracted to those obscene parts of women, soiled with filth, which are placed, like a sewer, in the lowest part of the body." It is noteworthy that, from the first, and equally among men of religion, men of science, and men of letters, the mystery of this problem has peculiarly appealed to the French mind.

[65] Schopenhauer, _Die Welt als Wille und Vorstellung_, vol. ii, pp. 608 et seq.

[66] "Perhaps there is scarcely a man," wrote Malthus, a clergyman as well as one of the profoundest thinkers of his day (_Essay on the Principle of Population_, 1798, Ch. XI), "who has once experienced the genuine delight of virtuous love, however great his intellectual pleasures may have been, that does not look back to the period as the sunny spot in his whole life, where his imagination loves to bask, which he recollects and contemplates with the fondest regrets, and which he would most wish to live over again. The superiority of intellectual to sexual pleasures consists rather in their filling up more time, in their having a larger range, and in their being less liable to satiate, than in their being more real and essential."

[67] The whole argument of the fourth volume of these _Studies_, on "Sexual Selection in Man," points in this direction.

[68] "Perhaps most average men," Forel remarks (_Die Sexuelle Frage_, p. 307), "are but slightly receptive to the intoxication of love; they are at most on the level of the _gourmet_, which is by no means necessarily an immoral plane, but is certainly not that of poetry."

CHAPTER V.

THE FUNCTION OF CHASTITY.

Chastity Essential to the Dignity of Love--The Eighteenth Century Revolt Against the Ideal of Chastity--Unnatural Forms of Chastity--The Psychological Basis of Asceticism--Asceticism and Chastity as Savage Virtues--The Significance of Tahiti--Chastity Among Barbarous Peoples--Chastity Among the Early Christians--Struggles of the Saints with the Flesh--The Romance of Christian Chastity--Its Decay in Mediæval Times--_Aucassin et Nicolette_ and the new Romance of Chaste Love--The Unchastity of the Northern Barbarians--The Penitentials--Influence of the Renaissance and the Reformation--The Revolt Against Virginity as a Virtue--The Modern Conception of Chastity as a Virtue--The Influences That Favor the Virtue of Chastity--Chastity as a Discipline--The Value of Chastity for the Artist--Potency and Impotence in Popular Estimation--The Correct Definitions of Asceticism and Chastity.

The supreme importance of chastity, and even of asceticism, has never at any time, or in any greatly vital human society, altogether failed of recognition. Sometimes chastity has been exalted in human estimation, sometimes it has been debased; it has frequently changed the nature of its manifestations; but it has always been there. It is even a part of the beautiful vision of all Nature. "The glory of the world is seen only by a chaste mind," said Thoreau with his fine extravagance. "To whomsoever this fact is not an awful but beautiful mystery there are no flowers in Nature." Without chastity it is impossible to maintain the dignity of sexual love. The society in which its estimation sinks to a minimum is in the last stages of degeneration. Chastity has for sexual love an importance which it can never lose, least of all to-day.

It is quite true that during the eighteenth and nineteenth centuries many men of high moral and intellectual distinction pronounced very decidedly their condemnation of the ideal of chastity. The great Buffon refused to recognize chastity as an ideal and referred scornfully to "that kind of insanity which has turned a girl's virginity into a thing with a real existence," while William Morris, in his downright manner, once declared at a meeting of the Fellowship of the New Life, that asceticism is "the most disgusting vice that afflicted human nature." Blake, though he seems always to have been a strictly moral man in the most conventional sense, felt nothing but contempt for chastity, and sometimes confers a kind of religious solemnity on the idea of unchastity. Shelley, who may have been unwise in sexual matters but can scarcely be called unchaste, also often seems to associate religion and morality, not with chastity, but with unchastity, and much the same may be said of James Hinton.[69]

But all these men--with other men of high character who have pronounced similar opinions--were reacting against false, decayed, and conventional forms of chastity. They were not rebelling against an ideal; they were seeking to set up an ideal in a place where they realized that a mischievous pretense was masquerading as a moral reality.

We cannot accept an ideal of chastity unless we ruthlessly cast aside all the unnatural and empty forms of chastity. If chastity is merely a fatiguing effort to emulate in the sexual sphere the exploits of professional fasting men, an effort using up all the energies of the organism and resulting in no achievement greater than the abstinence it involves, then it is surely an unworthy ideal. If it is a feeble submission to an external conventional law which there is no courage to break, then it is not an ideal at all. If it is a rule of morality imposed by one sex on the opposite sex, then it is an injustice and provocative of revolt. If it is an abstinence from the usual forms of sexuality, replaced by more abnormal or more secret forms, then it is simply an unreality based on misconception. And if it is merely an external acceptance of conventions without any further acceptance, even in act, then it is a contemptible farce. These are the forms of chastity which during the past two centuries many fine-souled men have vigorously rejected.

The fact that chastity, or asceticism, is a real virtue, with fine uses, becomes evident when we realize that it has flourished at all times, in connection with all kinds of religions and the most various moral codes. We find it pronounced among savages, and the special virtues of savagery--hardness, endurance, and bravery--are intimately connected with the cultivation of chastity and asceticism.[70] It is true that savages seldom have any ideal of chastity in the degraded modern sense, as a state of permanent abstinence from sexual relationships having a merit of its own apart from any use. They esteem chastity for its values, magical or real, as a method of self-control which contributes towards the attainment of important ends. The ability to bear pain and restraint is nearly always a main element in the initiation of youths at puberty. The custom of refraining from sexual intercourse before expeditions of war and hunting, and other serious concerns involving great muscular and mental strain, whatever the motives assigned, is a sagacious method of economizing energy. The extremely widespread habit of avoiding intercourse during pregnancy and

suckling, again, is an admirable precaution in sexual hygiene which it is extremely difficult to obtain the observance of in civilization. Savages, also, are perfectly well aware how valuable sexual continence is, in combination with fasting and solitude, to acquire the aptitude for abnormal spiritual powers.

Thus C. Hill Tout (_Journal Anthropological Institute_, Jan.-June, 1905, pp. 143-145) gives an interesting account of the self-discipline undergone by those among the Salish Indians of British Columbia, who seek to acquire shamanistic powers. The psychic effects of such training on these men, says Hill Tout, is undoubted. "It enables them to undertake and accomplish feats of abnormal strength, agility, and endurance; and gives them at times, besides a general exaltation of the senses, undoubted clairvoyant and other supernormal mental and bodily powers." At the other end of the world, as shown by the _Reports of the Anthropological Expedition to Torres Straits_ (vol. v, p. 321), closely analogous methods of obtaining supernatural powers are also customary.

There are fundamental psychological reasons for the wide prevalence of asceticism and for the remarkable manner in which it involves self-mortification, even acute physical suffering. Such pain is an actual psychic stimulant, more especially in slightly neurotic persons. This is well illustrated by a young woman, a patient of Janet's, who suffered from mental depression and was accustomed to find relief by slightly burning her hands and feet. She herself clearly understood the nature of her actions. "I feel," she said, "that I make an effort when I hold my hands on the stove, or when I pour boiling water on my feet; it is a violent act and it awakens me: I feel that it is really done by myself and not by another.... To make a mental effort by itself is too difficult for me; I have to supplement it by physical efforts. I have not succeeded in any other way; that is all: when I brace myself up to burn myself I make my mind freer, lighter and more active for several days. Why do you speak of my desire for mortification? My parents believe that, but it is absurd. It would be a mortification if it brought any suffering, but I enjoy this suffering, it gives me back my mind; it prevents my thoughts from stopping: what would one not do to attain such happiness?" (P. Janet, "The Pathogenesis of Some Impulsions," _Journal of Abnormal Psychology_, April, 1906.) If we understand this psychological process we may realize how it is that even in the higher religions, however else they may differ, the practical value of asceticism and mortification as the necessary door to the most exalted religious state is almost universally recognized, and with complete cheerfulness. "Asceticism and ecstacy are inseparable," as Probst-Biraben remarks at the outset of an interesting paper on Mahommedan mysticism ("L'Extase dans le Mysticisme Musulman," _Revue Philosophique_, Nov., 1906). Asceticism is the necessary ante-chamber to spiritual perfection.

It thus happens that savage peoples largely base their often admirable enforcement of asceticism not on the practical grounds that would justify it, but on religious grounds that with the growth of intelligence fall into discredit.[71] Even, however, when the scrupulous observances of savages, whether in sexual or in non-sexual matters, are without any obviously sound basis it cannot be said that they are entirely useless if they tend to encourage self-control and the sense of

reverence.[72] The would-be intelligent and practical peoples who cast aside primitive observances because they seem baseless or even ridiculous, need a still finer practical sense and still greater intelligence in order to realize that, though the reasons for the observances have been wrong, yet the observances themselves may have been necessary methods of attaining personal and social efficiency. It constantly happens in the course of civilization that we have to revive old observances and furnish them with new reasons.

In considering the moral quality of chastity among savages, we must carefully separate that chastity which among semi-primitive peoples is exclusively imposed upon women. This has no moral quality whatever, for it is not exercised as a useful discipline, but merely enforced in order to heighten the economic and erotic value of the women. Many authorities believe that the regard for women as property furnishes the true reason for the widespread insistence on virginity in brides. Thus A.B. Ellis, speaking of the West Coast of Africa (_Yoruba-Speaking Peoples_, pp. 183 _et seq._), says that girls of good class are betrothed as mere children, and are carefully guarded from men, while girls of lower class are seldom betrothed, and may lead any life they choose. "In this custom of infant or child betrothals we probably find the key to that curious regard for ante-nuptial chastity found not only among the tribes of the Gold and Slave Coasts, but also among many other uncivilized peoples in different parts of the world." In a very different part of the world, in Northern Siberia, "the Yakuts," Sieroshevski states (_Journal Anthropological Institute_, Jan.-June, 1901, p. 96), "see nothing immoral in illicit love, providing only that nobody suffers material loss by it. It is true that parents will scold a daughter if her conduct threatens to deprive them of their gain from the bride-price; but if once they have lost hope of marrying her off, or if the bride-price has been spent, they manifest complete indifference to her conduct. Maidens who no longer expect marriage are not restrained at all, if they observe decorum it is only out of respect to custom." Westermarck (_History of Human Marriage_, pp. 123 et seq.) also shows the connection between the high estimates of virginity and the conception of woman as property, and returning to the question in his later work, _The Origin and Development of the Moral Ideas_ (vol. ii, Ch. XLII), after pointing out that "marriage by purchase has thus raised the standard of female chastity," he refers (p. 437) to the significant fact that the seduction of an unmarried girl "is chiefly, if not exclusively, regarded as an offense against the parents or family of the girl," and there is no indication that it is ever held by savages that any wrong has been done to the woman herself. Westermarck recognizes at the same time that the preference given to virgins has also a biological basis in the instinctive masculine feeling of jealousy in regard to women who have had intercourse with other men, and especially in the erotic charm for men of the emotional state of shyness which accompanies virginity. (This point has been dealt with in the discussion of Modesty in vol. i of these _Studies_.)

It is scarcely necessary to add that the insistence on the virginity of brides is by no means confined, as A.B. Ellis seems to imply, to uncivilized peoples, nor is it necessary that wife-purchase should always accompany it. The preference still persists, not only by virtue of its natural biological basis, but as a refinement and

extension of the idea of woman as property, among those civilized peoples who, like ourselves, inherit a form of marriage to some extent based on wife-purchase. Under such conditions a woman's chastity has an important social function to perform, being, as Mrs. Mona Caird has put it (_The Morality of Marriage_, 1897, p. 88), the watch-dog of man's property. The fact that no element of ideal morality enters into the question is shown by the usual absence of any demand for ante-nuptial chastity in the husband.

It must not be supposed that when, as is most usually the case, there is no complete and permanent prohibition of extra-nuptial intercourse, mere unrestrained license prevails. That has probably never happened anywhere among uncontaminated savages. The rule probably is that, as among the tribes at Torres Straits (_Reports Cambridge Anthropological Expedition_, vol. v, p. 275), there is no complete continence before marriage, but neither is there any unbridled license.

The example of Tahiti is instructive as regards the prevalence of chastity among peoples of what we generally consider low grades of civilization. Tahiti, according to all who have visited it, from the earliest explorers down to that distinguished American surgeon, the late Dr. Nicholas Senn, is an island possessing qualities of natural beauty and climatic excellence, which it is impossible to rate too highly. "I seemed to be transported into the garden of Eden," said Bougainville in 1768. But, mainly under the influence of the early English missionaries who held ideas of theoretical morality totally alien to those of the inhabitants of the islands, the Tahitians have become the stock example of a population given over to licentiousness and all its awful results. Thus, in his valuable _Polynesian Researches_ (second edition, 1832, vol. i, Ch. IX) William Ellis says that the Tahitians practiced "the worst pollutions of which it was possible for man to be guilty," though not specifying them. When, however, we carefully examine the narratives of the early visitors to Tahiti, before the population became contaminated by contact with Europeans, it becomes clear that this view needs serious modification. "The great plenty of good and nourishing food," wrote an early explorer, J.R. Forster (_Observations Made on a Voyage Round the World_, 1778, pp. 231, 409, 422), "together with the fine climate, the beauty and unreserved behavior of their females, invite them powerfully to the enjoyments and pleasures of love. They begin very early to abandon themselves to the most libidinous scenes. Their songs, their dances, and dramatic performances, breathe a spirit of luxury." Yet he is over and over again impelled to set down facts which bear testimony to the virtues of these people. Though rather effeminate in build, they are athletic, he says. Moreover, in their wars they fight with great bravery and valor. They are, for the rest, hospitable. He remarks that they treat their married women with great respect, and that women generally are nearly the equals of men, both in intelligence and in social position; he gives a charming description of the women. "In short, their character," Forster concludes, "is as amiable as that of any nation that ever came unimproved out of the hands of Nature," and he remarks that, as was felt by the South Sea peoples generally, "whenever we came to this happy island we could evidently perceive the opulence and happiness of its inhabitants." It is noteworthy also, that, notwithstanding the high importance which the Tahitians attached to the erotic side of life, they were not deficient in regard for chastity. When

Cook, who visited Tahiti many times, was among "this benevolent humane" people, he noted their esteem for chastity, and found that not only were betrothed girls strictly guarded before marriage, but that men also who had refrained from sexual intercourse for some time before marriage were believed to pass at death immediately into the abode of the blessed. "Their behavior, on all occasions, seems to indicate a great openness and generosity of disposition. I never saw them, in any misfortune, labor under the appearance of anxiety, after the critical moment was past. Neither does care ever seem to wrinkle their brow. On the contrary, even the approach of death does not appear to alter their usual vivacity" (_Third Voyage of Discovery_, 1776-1780). Turnbull visited Tahiti at a later period (_A Voyage Round the World in 1800_, etc., pp. 374-5), but while finding all sorts of vices among them, he is yet compelled to admit their virtues: "Their manner of addressing strangers, from the king to the meanest subject, is courteous and affable in the extreme.... They certainly live amongst each other in more harmony than is usual amongst Europeans. During the whole time I was amongst them I never saw such a thing as a battle.... I never remember to have seen an Otaheitean out of temper. They jest upon each other with greater freedom than the Europeans, but these jests are never taken in ill part.... With regard to food, it is, I believe, an invariable law in Otaheite that whatever is possessed by one is common to all." Thus we see that even among a people who are commonly referred to as the supreme example of a nation given up to uncontrolled licentiousness, the claims of chastity were admitted, and many other virtues vigorously flourished. The Tahitians were brave, hospitable, self-controlled, courteous, considerate to the needs of others, chivalrous to women, even appreciative of the advantages of sexual restraint, to an extent which has rarely, if ever, been known among those Christian nations which have looked down upon them as abandoned to unspeakable vices.

As we turn from savages towards peoples in the barbarous and civilized stages we find a general tendency for chastity, in so far as it is a common possession of the common people, to be less regarded, or to be retained only as a traditional convention no longer strictly observed. The old grounds for chastity in primitive religions and _tabu_ have decayed and no new grounds have been generally established. "Although the progress of civilization," wrote Gibbon long ago, "has undoubtedly contributed to assuage the fiercer passions of human nature, it seems to have been less favorable to the virtue of chastity," and Westermarck concludes that "irregular connections between the sexes have, on the whole, exhibited a tendency to increase along with the progress of civilization."

The main difference in the social function of chastity as we pass from savagery to higher stages of culture seems to be that it ceases to exist as a general hygienic measure or a general ceremonial observance, and, for the most part, becomes confined to special philosophic or religious sects which cultivate it to an extreme degree in a more or less professional way. This state of things is well illustrated by the Roman Empire during the early centuries of the Christian era.[73] Christianity itself was at first one of these sects enamored of the ideal of chastity; but by its superior vitality it replaced all the others and finally imposed its ideals, though by no means its primitive practices, on European society generally.

Chastity manifested itself in primitive Christianity in two different though not necessarily opposed ways. On the one hand it took a stern and practical form in vigorous men and women who, after being brought up in a society permitting a high degree of sexual indulgence, suddenly found themselves convinced of the sin of such indulgence. The battle with the society they had been born into, and with their own old impulses and habits, became so severe that they often found themselves compelled to retire from the world altogether. Thus it was that the parched solitudes of Egypt were peopled with hermits largely occupied with the problem of subduing their own flesh. Their pre-occupation, and indeed the pre-occupation of much early Christian literature, with sexual matters, may be said to be vastly greater than was the case with the pagan society they had left. Paganism accepted sexual indulgence and was then able to dismiss it, so that in classic literature we find very little insistence on sexual details except in writers like Martial, Juvenal and Petronius who introduce them mainly for satirical ends. But the Christians could not thus escape from the obsession of sex; it was ever with them. We catch interesting glimpses of their struggles, for the most part barren struggles, in the Epistles of St. Jerome, who had himself been an athlete in these ascetic contests.

"Oh, how many times," wrote St. Jerome to Eustochium, the virgin to whom he addressed one of the longest and most interesting of his letters, "when in the desert, in that vast solitude which, burnt up by the heart of the sun, offers but a horrible dwelling to monks, I imagined myself among the delights of Rome! I was alone, for my soul was full of bitterness. My limbs were covered by a wretched sack and my skin was as black as an Ethiopian's. Every day I wept and groaned, and if I was unwillingly overcome by sleep my lean body lay on the bare earth. I say nothing of my food and drink, for in the desert even invalids have no drink but cold water, and cooked food is regarded as a luxury. Well, I, who, out of fear of hell, had condemned myself to this prison, companion of scorpions and wild beasts, often seemed in imagination among bands of girls. My face was pale with fasting and my mind within my frigid body was burning with desire; the fires of lust would still flare up in a body that already seemed to be dead. Then, deprived of all help, I threw myself at the feet of Jesus, washing them with my tears and drying them with my hair, subjugating my rebellious flesh by long fasts. I remember that more than once I passed the night uttering cries and striking my breast until God sent me peace." "Our century," wrote St. Chrysostom in his _Discourse to Those Who Keep Virgins in Their Houses_, "has seen many men who have bound their bodies with chains, clothed themselves in sacks, retired to the summits of mountains where they have lived in constant vigil and fasting, giving the example of the most austere discipline and forbidding all women to cross the thresholds of their humble dwellings; and yet, in spite of all the severities they have exercised on themselves, it was with difficulty they could repress the fury of their passions." Hilarion, says Jerome, saw visions of naked women when he lay down on his solitary couch and delicious meats when he sat down to his frugal table. Such experiences rendered the early saints very scrupulous. "They used to say," we are told in an interesting history of the Egyptian anchorites, Palladius's _Paradise of the Holy Fathers_, belonging to the fourth century (A.W. Budge, _The Paradise_, vol. ii, p. 129), "that Abbâ Isaac went out and found the footprint of a woman on the road, and

he thought about it in his mind and destroyed it saying, 'If a brother seeth it he may fall.'" Similarly, according to the rules of St. Cæsarius of Aries for nuns, no male clothing was to be taken into the convent for the purpose of washing or mending. Even in old age, a certain anxiety about chastity still remained. One of the brothers, we are told in _The Paradise_ (p. 132) said to Abbâ Zeno, "Behold thou hast grown old, how is the matter of fornication?" The venerable saint replied, "It knocketh, but it passeth on."

As the centuries went by the same strenuous anxiety to guard chastity still remained, and the old struggle constantly reappeared (see, e.g., Migne's _Dictionnaire d'Ascétisme_, art. "Démon, Tentation du"). Some saints, it is true, like Luigi di Gonzaga, were so angelically natured that they never felt the sting of sexual desire. These seem to have been the exception. St. Benedict and St. Francis experienced the difficulty of subduing the flesh. St. Magdalena de Pozzi, in order to dispel sexual desires, would roll on thorny bushes till the blood came. Some saints kept a special cask of cold water in their cells to stand in (Lea, _Sacerdotal Celibacy_, vol. i, p. 124). On the other hand, the Blessed Angela de Fulginio tells us in her _Visiones_ (cap. XIX) that, until forbidden by her confessor, she would place hot coals in her secret parts, hoping by material fire to extinguish the fire of concupiscence. St. Aldhelm, the holy Bishop of Sherborne, in the eighth century, also adopted a homeopathic method of treatment, though of a more literal kind, for William of Malmsbury states that when tempted by the flesh he would have women to sit and lie by him until he grew calm again; the method proved very successful, for the reason, it was thought, that the Devil felt he had been made a fool of.

In time the Catholic practice and theory of asceticism became more formalized and elaborated, and its beneficial effects were held to extend beyond the individual himself. "Asceticism from the Christian point of view," writes Brénier de Montmorand in an interesting study ("Ascétisme et Mysticisme," _Revue Philosophique_, March, 1904) "is nothing else than all the therapeutic measures making for moral purification. The Christian ascetic is an athlete struggling to transform his corrupt nature and make a road to God through the obstacles due to his passions and the world. He is not working in his own interests alone, but--by virtue of the reversibility of merit which compensates that of solidarity in error--for the good and for the salvation of the whole of society."

This is the aspect of early Christian asceticism most often emphasized. But there is another aspect which may be less familiar, but has been by no means less important. Primitive Christian chastity was on one side a strenuous discipline. On another side it was a romance, and this indeed was its most specifically Christian side, for athletic asceticism has been associated with the most various religious and philosophic beliefs. If, indeed, it had not possessed the charm of a new sensation, of a delicious freedom, of an unknown adventure, it would never have conquered the European world. There are only a few in that world who have in them the stuff of moral athletes; there are many who respond to the attraction of romance.

The Christians rejected the grosser forms of sexual indulgence, but in doing so they entered with a more delicate ardor into the more refined forms of sexual

intimacy. They cultivated a relationship of brothers and sisters to each other, they kissed one another; at one time, in the spiritual orgy of baptism, they were not ashamed to adopt complete nakedness.[74]

A very instructive picture of the forms which chastity assumed among the early Christians is given us in the treatise of Chrysostom _Against Those who Keep Virgins in their Houses_. Our fathers, Chrysostom begins, only knew two forms of sexual intimacy, marriage and fornication. Now a third form has appeared: men introduce young girls into their houses and keep them there permanently, respecting their virginity. "What," Chrysostom asks, "is the reason? It seems to me that life in common with a woman is sweet, even outside conjugal union and fleshly commerce. That is my feeling; and perhaps it is not my feeling alone; it may also be that of these men. They would not hold their honor so cheap nor give rise to such scandals if this pleasure were not violent and tyrannical.... That there should really be a pleasure in this which produces a love more ardent than conjugal union may surprise you at first. But when I give you the proofs you will agree that it is so." The absence of restraint to desire in marriage, he continues, often leads to speedy disgust, and even apart from this, sexual intercourse, pregnancy, delivery, lactation, the bringing up of children, and all the pains and anxieties that accompany these things soon destroy youth and dull the point of pleasure. The virgin is free from these burdens. She retains her vigor and youthfulness, and even at the age of forty may rival the young nubile girl. "A double ardor thus burns in the heart of him who lives with her, and the gratification of desire never extinguishes the bright flame which ever continues to increase in strength." Chrysostom describes minutely all the little cares and attentions which the modern girls of his time required, and which these men delighted to expend on their virginal sweethearts whether in public or in private. He cannot help thinking, however, that the man who lavishes kisses and caresses on a woman whose virginity he retains is putting himself somewhat in the position of Tantalus. But this new refinement of tender chastity, which came as a delicious discovery to the early Christians who had resolutely thrust away the licentiousness of the pagan world, was deeply rooted, as we discover from the frequency with which the grave Fathers of the Church, apprehensive of scandal, felt called upon to reprove it, though their condemnation is sometimes not without a trace of secret sympathy.[75]

There was one form in which the new Christian chastity flourished exuberantly and unchecked: it conquered literature. The most charming, and, we may be sure, the most popular literature of the early Church lay in the innumerable romances of erotic chastity--to some extent, it may well be, founded on fact--which are embodied to-day in the _Acta Sanctorum_. We can see in even the most simple and non-miraculous early Christian records of the martyrdom of women that the writers were fully aware of the delicate charm of the heroine who, like Perpetua at Carthage, tossed by wild cattle in the arena, rises to gather her torn garment around her and to put up her disheveled hair.[76] It was an easy step to the stories of romantic adventure. Among these delightful stories I may refer especially to the legend of Thekla, which has been placed, incorrectly it may be, as early as the first century, "The Bride and Bridegroom of India" in _Judas Thomas's Acts_, "The Virgin of Antioch" as narrated by St. Ambrose, the history of "Achilleus and Nereus," "Mygdonia and Karish," and "Two

Lovers of Auvergne" as told by Gregory of Tours. Early Christian literature abounds in the stories of lovers who had indeed preserved their chastity, and had yet discovered the most exquisite secrets of love.

Thekla's day is the twenty-third of September. There is a very good Syriac version (by Lipsius and others regarded as more primitive than the Greek version) of the _Acts of Paul and Thekla_ (see, e.g., Wright's _Apocryphal Acts_). These _Acts_ belong to the latter part of the second century. The story is that Thekla, refusing to yield to the passion of the high priest of Syria, was put, naked but for a girdle (_subligaculum_) into the arena on the back of a lioness, which licked her feet and fought for her against the other beasts, dying in her defense. The other beasts, however, did her no harm, and she was finally released. A queen loaded her with money, she modified her dress to look like a man, travelled to meet Paul, and lived to old age. Sir W.M. Ramsay has written an interesting study of these _Acts_ (_The Church in the Roman Empire_, Ch. XVI). He is of opinion that the _Acts_ are based on a first century document, and is able to disentangle many elements of truth from the story. He states that it is the only evidence we possess of the ideas and actions of women during the first century in Asia Minor, where their position was so high and their influence so great. Thekla represents the assertion of woman's rights, and she administered the rite of baptism, though in the existing versions of the _Acts_ these features are toned down or eliminated.

Some of the most typical of these early Christian romances are described as Gnostical in origin, with something of the germs of Manichæan dualism which were held in the rich and complex matrix of Gnosticism, while the spirit of these romances is also largely Montanist, with the combined chastity and ardor, the pronounced feminine tone due to its origin in Asia Minor, which marked Montanism. It cannot be denied, however, that they largely passed into the main stream of Christian tradition, and form an essential and important part of that tradition. (Renan, in his _Marc-Aurèle_, Chs. IX and XV, insists on the immense debt of Christianity to Gnostic and Montanist contributions). A characteristic example is the story of "The Betrothed of India" in _Judas Thomas's Acts_ (Wright's _Apocryphal Acts_). Judas Thomas was sold by his master Jesus to an Indian merchant who required a carpenter to go with him to India. On disembarking at the city of Sandaruk they heard the sounds of music and singing, and learnt that it was the wedding-feast of the King's daughter, which all must attend, rich and poor, slaves and freemen, strangers and citizens. Judas Thomas went, with his new master, to the banquet and reclined with a garland of myrtle placed on his head. When a Hebrew flute-player came and stood over him and played, he sang the songs of Christ, and it was seen that he was more beautiful than all that were there and the King sent for him to bless the young couple in the bridal chamber. And when all were gone out and the door of the bridal chamber closed, the bridegroom approached the bride, and saw, as it were, Judas Thomas still talking with her. But it was our Lord who said to him, "I am not Judas, but his brother." And our Lord sat down on the bed beside the young people and began to say to them: "Remember, my children, what my brother spake with you, and know to whom he committed you, and know that if ye preserve yourselves from this filthy intercourse ye become pure temples, and are saved from afflictions manifest and hidden, and from

the heavy care of children, the end whereof is bitter sorrow. For their sakes ye will become oppressors and robbers, and ye will be grievously tortured for their injuries. For children are the cause of many pains; either the King falls upon them or a demon lays hold of them, or paralysis befalls them. And if they be healthy they come to ill, either by adultery, or theft, or fornication, or covetousness, or vain-glory. But if ye will be persuaded by me, and keep yourselves purely unto God, ye shall have living children to whom not one of these blemishes and hurts cometh nigh; and ye shall be without care and without grief and without sorrow, and ye shall hope for the time when ye shall see the true wedding-feast." The young couple were persuaded, and refrained from lust, and our Lord vanished. And in the morning, when it was dawn, the King had the table furnished early and brought in before the bridegroom and bride. And he found them sitting the one opposite the other, and the face of the bride was uncovered and the bridegroom was very cheerful. The mother of the bride saith to her: "Why art thou sitting thus, and art not ashamed, but art as if, lo, thou wert married a long time, and for many a day?" And her father, too, said; "Is it thy great love for thy husband that prevents thee from even veiling thyself?" And the bride answered and said: "Truly, my father, I am in great love, and am praying to my Lord that I may continue in this love which I have experienced this night. I am not veiled, because the veil of corruption is taken from me, and I am not ashamed, because the deed of shame has been removed far from me, and I am cheerful and gay, and despise this deed of corruption and the joys of this wedding-feast, because I am invited to the true wedding-feast. I have not had intercourse with a husband, the end whereof is bitter repentance, because I am betrothed to the true Husband." The bridegroom answered also in the same spirit, very naturally to the dismay of the King, who sent for the sorcerer whom he had asked to bless his unlucky daughter. But Judas Thomas had already left the city and at his inn the King's stewards found only the flute-player, sitting and weeping because he had not taken her with him. She was glad, however, when she heard what had happened, and hastened to the young couple, and lived with them ever afterwards. The King also was finally reconciled, and all ended chastely, but happily.

In these same _Judas Thomas's Acts_, which are not later than the fourth century, we find (eighth act) the story of Mygdonia and Karish. Mygdonia, the wife of Karish, is converted by Thomas and flees from her husband, naked save for the curtain of the chamber door which she has wrapped around her, to her old nurse. With the nurse she goes to Thomas, who pours holy oil over her head, bidding the nurse to anoint her all over with it; then a cloth is put round her loins and he baptizes her; then she is clothed and he gives her the sacrament. The young rapture of chastity grows lyrical at times, and Judas Thomas breaks out: "Purity is the athlete who is not overcome. Purity is the truth that blencheth not. Purity is worthy before God of being to Him a familiar handmaiden. Purity is the messenger of concord which bringeth the tidings of peace."

Another romance of chastity is furnished by the episode of Drusiana in _The History of the Apostles_ traditionally attributed to Abdias, Bishop of Babylon (Bk. v, Ch. IV, _et seq._). Drusiana is the wife of Andronicus, and is so pious that she will not have intercourse with him. The youth Callimachus falls madly in love with her, and

his amorous attempts involve many exciting adventures, but the chastity of Drusiana is finally triumphant.

A characteristic example of the literature we are here concerned with is St. Ambrose's story of "The Virgin in the Brothel" (narrated in his _De Virginibus_, Migne's edition of Ambrose's Works, vols. iii-iv, p. 211). A certain virgin, St. Ambrose tells us, who lately lived at Antioch, was condemned either to sacrifice to the gods or to go to the brothel. She chose the latter alternative. But the first man who came in to her was a Christian soldier who called her "sister," and bade her have no fear. He proposed that they should exchange clothes. This was done and she escaped, while the soldier was led away to death. At the place of execution, however, she ran up and exclaimed that it was not death she feared but shame. He, however, maintained that he had been condemned to death in her place. Finally the crown of martyrdom for which they contended was adjudged to both.

We constantly observe in the early documents of this romantic literature of chastity that chastity is insisted on by no means chiefly because of its rewards after death, nor even because the virgin who devotes herself to it secures in Christ an ever-young lover whose golden-haired beauty is sometimes emphasized. Its chief charm is represented as lying in its own joy and freedom and the security it involves from all the troubles, inconveniences and bondages of matrimony. This early Christian movement of romantic chastity was clearly, in large measure, a revolt of women against men and marriage. This is well brought out in the instructive story, supposed to be of third century origin, of the eunuchs Achilleus and Nereus, as narrated in the _Acta Sanctorum_, May 12th. Achilleus and Nereus were Christian eunuchs of the bedchamber to Domitia, a virgin of noble birth, related to the Emperor Domitian and betrothed to Aurelian, son of a Consul. One day, as their mistress was putting on her jewels and her purple garments embroidered with gold, they began in turn to talk to her about all the joys and advantages of virginity, as compared to marriage with a mere man. The conversation is developed at great length and with much eloquence. Domitia was finally persuaded. She suffered much from Aurelian in consequence, and when he obtained her banishment to an island she went thither with Achilleus and Nereus, who were put to death. Incidentally, the death of Felicula, another heroine of chastity, is described. When elevated on the rack because she would not marry, she constantly refused to deny Jesus, whom she called her lover. "Ego non nego amatorem meum!"

A special department of this literature is concerned with stories of the conversions or the penitence of courtesans. St. Martinianus, for instance (Feb. 13), was tempted by the courtesan Zoe, but converted her. The story of St. Margaret of Cortona (Feb. 22), a penitent courtesan, is late, for she belongs to the thirteenth century. The most delightful document in this literature is probably the latest, the fourteenth century Italian devotional romance called _The Life of Saint Mary Magdalen_, commonly associated with the name of Frate Domenico Cavalca. (It has been translated into English). It is the delicately and deliciously told romance of the chaste and passionate love of the sweet sinner, Mary Magdalene, for her beloved Master.

As time went on the insistence on the joys of chastity in this life became less marked, and chastity is more and more regarded as a state only to be fully rewarded in a future life. Even, however, in Gregory of Tours's charming story of "The Two Lovers of Auvergne," in which this attitude is clear, the pleasures of chaste love in this life are brought out as clearly as in any of the early romances (_Historia Francorum_, lib. i, cap. XLII). Two senators of Auvergne each had an only child, and they betrothed them to each other. When the wedding day came and the young couple were placed in bed, the bride turned to the wall and wept bitterly. The bridegroom implored her to tell him what was the matter, and, turning towards him, she said that if she were to weep all her days she could never wash away her grief for she had resolved to give her little body immaculate to Christ, untouched by men, and now instead of immortal roses she had only had on her brow faded roses, which deformed rather than adorned it, and instead of the dowry of Paradise which Christ had promised her she had become the consort of a merely mortal man. She deplored her sad fate at considerable length and with much gentle eloquence. At length the bridegroom, overcome by her sweet words, felt that eternal life had shone before him like a great light, and declared that if she wished to abstain from carnal desires he was of the same mind. She was grateful, and with clasped hands they fell asleep. For many years they thus lived together, chastely sharing the same bed. At length she died and was buried, her lover restoring her immaculate to the hands of Christ. Soon afterwards he died also, and was placed in a separate tomb. Then a miracle happened which made manifest the magnitude of this chaste love, for the two bodies were found mysteriously placed together. To this day, Gregory concludes (writing in the sixth century), the people of the place call them "The Two Lovers."

Although Renan (_Marc-Aurèle_, Ch. XV) briefly called attention to the existence of this copious early Christian literature setting forth the romance of chastity, it seems as yet to have received little or no study. It is, however, of considerable importance, not merely for its own sake, but on account of its psychological significance in making clear the nature of the motive forces which made chastity easy and charming to the people of the early Christian world, even when it involved complete abstinence from sexual intercourse. The early Church anathematized the eroticism of the Pagan world, and exorcized it in the most effectual way by setting up a new and more exquisite eroticism of its own.

During the Middle Ages the primitive freshness of Christian chastity began to lose its charm. No more romances of chastity were written, and in actual life men no longer sought daring adventures in the field of chastity. So far as the old ideals survived at all it was in the secular field of chivalry. The last notable figure to emulate the achievements of the early Christians was Robert of Arbrissel in Normandy.

Robert of Arbrissel, who founded, in the eleventh century, the famous and distinguished Order of Fontevrault for women, was a Breton. This Celtic origin is doubtless significant, for it may explain his unfailing ardor and gaiety, and his enthusiastic veneration for womanhood. Even those of his friends who deprecated what they considered his scandalous conduct bear testimony to his unfailing and cheerful temperament, his alertness in action, his readiness for any deed of humanity,

and his entire freedom from severity. He attracted immense crowds of people of all conditions, especially women, including prostitutes, and his influence over women was great. Once he went into a brothel to warm his feet, and, incidentally, converted all the women there. "Who are you?" asked one of them, "I have been here twenty-five years and nobody has ever come here to talk about God." Robert's relation with his nuns at Fontevrault was very intimate, and he would often sleep with them. This is set forth precisely in letters written by friends of his, bishops and abbots, one of whom remarks that Robert had "discovered a new but fruitless form of martyrdom." A royal abbess of Fontevrault in the seventeenth century, pretending that the venerated founder of the order could not possibly have been guilty of such scandalous conduct, and that the letters must therefore be spurious, had the originals destroyed, so far as possible. The Bollandists, in an unscholarly and incomplete account of the matter (_Acta Sanctorum_, Feb. 25), adopted this view. J. von Walter, however, in a recent and thorough study of Robert of Arbrissel (_Die Ersten Wanderprediger Frankreichs_, Theil I), shows that there is no reason whatever to doubt the authentic and reliable character of the impugned letters.

The early Christian legends of chastity had, however, their successors. _Aucassin et Nicolette_, which was probably written in Northern France towards the end of the twelfth century, is above all the descendant of the stories in the _Acta Sanctorum_ and elsewhere. It embodied their spirit and carried it forward, uniting their delicate feeling for chastity and purity with the ideal of monogamic love. _Aucassin et Nicolette_ was the death-knell of the primitive Christian romance of chastity. It was the discovery that the chaste refinements of delicacy and devotion were possible within the strictly normal sphere of sexual love.

There were at least two causes which tended to extinguish the primitive Christian attraction to chastity, even apart from the influence of the Church authorities in repressing its romantic manifestations. In the first place, the submergence of the old pagan world, with its practice and, to some extent, ideal of sexual indulgence, removed the foil which had given grace and delicacy to the tender freedom of the young Christians. In the second place, the austerities which the early Christians had gladly practised for the sake of their soul's health, were robbed of their charm and spontaneity by being made a formal part of codes of punishment for sin, first in the Penitentials and afterwards at the discretion of confessors. This, it may be added, was rendered the more necessary because the ideal of Christian chastity was no longer largely the possession of refined people who had been rendered immune to Pagan license by being brought up in its midst, and even themselves steeped in it. It was clearly from the first a serious matter for the violent North Africans to maintain the ideal of chastity, and when Christianity spread to Northern Europe it seemed almost a hopeless task to acclimatize its ideals among the wild Germans. Hereafter it became necessary for celibacy to be imposed on the regular clergy by the stern force of ecclesiastical authority, while voluntary celibacy was only kept alive by a succession of religious enthusiasts perpetually founding new Orders. An asceticism thus enforced could not always be accompanied by the ardent exaltation necessary to maintain it, and in its artificial efforts at self-preservation it frequently fell from its insecure heights to the depths of unrestrained license.[77] This fatality of all

hazardous efforts to overpass humanity's normal limits begun to be realized after the Middle Ages were over by clear-sighted thinkers. "Qui veut faire l'ange," said Pascal, pungently summing up this view of the matter, "fait la bête." That had often been illustrated in the history of the Church.

The Penitentials began to come into use in the seventh century, and became of wide prevalence and authority during the ninth and tenth centuries. They were bodies of law, partly spiritual and partly secular, and were thrown into the form of catalogues of offences with the exact measure of penance prescribed for each offence. They represented the introduction of social order among untamed barbarians, and were codes of criminal law much more than part of a system of sacramental confession and penance. In France and Spain, where order on a Christian basis already existed, they were little needed. They had their origin in Ireland and England, and especially flourished in Germany; Charlemagne supported them (see, e.g., Lea, _History of Auricular Confession_, vol. ii, p. 96, also Ch. XVII; Hugh Williams, edition of Gildas, Part II, Appendix 3; the chief Penitentials are reproduced in Wasserschleben's _Bussordnungen_).

In 1216 the Lateran Council, under Innocent III, made confession obligatory. The priestly prerogative of regulating the amount of penance according to circumstances, with greater flexibility than the rigid Penitentials admitted, was first absolutely asserted by Peter of Poitiers. Then Alain de Lille threw aside the Penitentials as obsolete, and declared that the priest himself must inquire into the circumstances of each sin and weigh precisely its guilt (Lea, op. cit., vol. ii, p. 171).

Long before this period, however, the ideals of chastity, so far as they involved any considerable degree of continence, although they had become firmly hardened into the conventional traditions and ideals of the Christian Church, had ceased to have any great charm or force for the people living in Christendom. Among the Northern barbarians, with different traditions of a more vigorous and natural order behind them, the demands of sex were often frankly exhibited. The monk Ordericus Vitalis, in the eleventh century, notes what he calls the "lasciviousness" of the wives of the Norman conquerors of England who, when left alone at home, sent messages that if their husbands failed to return speedily they would take new ones. The celibacy of the clergy was only established with the very greatest difficulty, and when it was established, priests became unchaste. Archbishop Odo of Rouen, in the thirteenth century, recorded in the diary of his diocesan visitations that there was one unchaste priest in every five parishes, and even as regards the Italy of the same period the friar Salimbene in his remarkable autobiography shows how little chastity was regarded in the religious life. Chastity could now only be maintained by force, usually the moral force of ecclesiastical authority, which was itself undermined by unchastity, but sometimes even physical force. It was in the thirteenth century, in the opinion of some, that the girdle of chastity (_cingula castitatis_) first begins to appear, but the chief authority, Caufeynon (_La Ceinture de Chasteté_, 1904) believes it only dates from the Renaissance (Schultz, _Das Höfische Leben zur Zeit der Minnesänger_, vol. i, p. 595; Dufour, _Histoire de la Prostitution_, vol. v, p. 272; Krauss, _Anthropophyteia_, vol. iii, p. 247). In the sixteenth century convents were liable to

become almost brothels, as we learn on the unimpeachable authority of Burchard, a Pope's secretary, in his _Diarium_, edited by Thuasne who brings together additional authorities for this statement in a footnote (vol. ii, p. 79); that they remained so in the eighteenth century we see clearly in the pages of Casanova's _Mémoires_, and in many other documents of the period.

The Renaissance and the rise of humanism undoubtedly affected the feeling towards asceticism and chastity. On the one hand a new and ancient sanction was found for the disregard of virtues which men began to look upon as merely monkish, and on the other hand the finer spirits affected by the new movement began to realize that chastity might be better cultivated and observed by those who were free to do as they would than by those who were under the compulsion of priestly authority. That is the feeling that prevails in Montaigne, and that is the idea of Rabelais when he made it the only rule of his Abbey of Thelème: "Fay ce que vouldras."

A little later this doctrine was repeated in varying tones by many writers more or less tinged by the culture brought into fashion by the Renaissance. "As long as Danae was free," remarks Ferrand in his sixteenth century treatise, _De la Maladie d'Amour_, "she was chaste." And Sir Kenelm Digby, the latest representative of the Renaissance spirit, insists in his _Private Memoirs_ that the liberty which Lycurgus, "the wisest human law-maker that ever was," gave to women to communicate their bodies to men to whom they were drawn by noble affection, and the hope of generous offspring, was the true cause why "real chastity flourished in Sparta more than in any other part of the world."

In Protestant countries the ascetic ideal of chastity was still further discredited by the Reformation movement which was in considerable part a revolt against compulsory celibacy. Religion was thus no longer placed on the side of chastity. In the eighteenth century, if not earlier, the authority of Nature also was commonly invoked against chastity. It has thus happened that during the past two centuries serious opinion concerning chastity has only been partially favorable to it. It began to be felt that an unhappy and injurious mistake had been perpetrated by attempting to maintain a lofty ideal which encouraged hypocrisy. "The human race would gain much," as Sénancour wrote early in the nineteenth century in his remarkable book on love, "if virtue were made less laborious. The merit would not be so great, but what is the use of an elevation which can rarely be sustained?"[78]

There can be no doubt that the undue discredit into which the idea of chastity began to fall from the eighteenth century onwards was largely due to the existence of that merely external and conventional physical chastity which was arbitrarily enforced so far as it could be enforced,--and is indeed in some degree still enforced, nominally or really,--upon all respectable women outside marriage. The conception of the physical virtue of virginity had degraded the conception of the spiritual virtue of chastity. A mere routine, it was felt, prescribed to a whole sex, whether they would or not, could never possess the beauty and charm of a virtue. At the same time it began to be realized that, as a matter of fact, the state of compulsory virginity is not only not a state especially favorable to the cultivation of real virtues, but that it is bound up with qualities which are no longer regarded as of high value.[79]

"How arbitrary, artificial, contrary to Nature, is the life now imposed upon women in this matter of chastity!" wrote James Hinton forty years ago. "Think of that line: 'A woman who deliberates is lost.' We _make_ danger, making all womanhood hang upon a point like this, and surrounding it with unnatural and preternatural dangers. There is a wanton unreason embodied in the life of woman now; the present 'virtue' is a morbid unhealthy plant. Nature and God never poised the life of a woman upon such a needle's point. The whole modern idea of chastity has in it sensual exaggeration, surely, in part, remaining to us from other times, with what was good in it in great part gone."

"The whole grace of virginity," wrote another philosopher, Guyau, "is ignorance. Virginity, like certain fruits, can only be preserved by a process of desiccation."

Mérimée pointed out the same desiccating influence of virginity. In a letter dated 1859 he wrote: "I think that nowadays people attach far too much importance to chastity. Not that I deny that chastity is a virtue, but there are degrees in virtues just as there are in vices. It seems to be absurd that a woman should be banished from society for having had a lover, while a woman who is miserly, double-faced and spiteful goes everywhere. The morality of this age is assuredly not that which is taught in the Gospel. In my opinion it is better to love too much than not enough. Nowadays dry hearts are stuck up on a pinnacle" (_Revue des Deux Mondes_, April, 1896).

Dr. H. Paul has developed an allied point. She writes: "There are girls who, even as children, have prostituted themselves by masturbation and lascivious thoughts. The purity of their souls has long been lost and nothing remains unknown to them, but--they have preserved their hymens! That is for the sake of the future husband. Let no one dare to doubt their innocence with that unimpeachable evidence! And if another girl, who has passed her childhood in complete purity, now, with awakened senses and warm impetuous womanliness, gives herself to a man in love or even only in passion, they all stand up and scream that she is 'dishonored!' And, not least, the prostituted girl with the hymen. It is she indeed who screams loudest and throws the biggest stones. Yet the 'dishonored' woman, who is sound and wholesome, need not fear to tell what she has done to the man who desires her in marriage, speaking as one human being to another. She has no need to blush, she has exercised her human rights, and no reasonable man will on that account esteem her the less" (Dr. H. Paul, "Die Ueberschätzung der Jungfernschaft," _Geschlecht und Gesellschaft_, Bd. ii, p. 14, 1907).

In a similar spirit writes F. Erhard (_Geschlecht und Gesellschaft_, Bd. i, p. 408): "Virginity in one sense has its worth, but in the ordinary sense it is greatly overestimated. Apart from the fact that a girl who possesses it may yet be thoroughly perverted, this over-estimation of virginity leads to the girl who is without it being despised, and has further resulted in the development of a special industry for the preparation, by means of a prudishly cloistral education, of girls who will bring to their husbands the peculiar dainty of a bride who knows nothing about anything. Naturally, this can only be achieved at the expense of any rational education. What the undeveloped little goose may turn into, no man can foresee."

Freud (_Sexual-Probleme_, March, 1908) also points out the evil results of the education for marriage which is given to girls on the basis of this ideal of virginity. "Education undertakes the task of repressing the girl's sensuality until the time of betrothal. It not only forbids sexual relations and sets a high premium on innocence, but it also withdraws the ripening womanly individuality from temptation, maintaining a state of ignorance concerning the practical side of the part she is intended to play in life, and enduring no stirring of love which cannot lead to marriage. The result is that when she is suddenly permitted to fall in love by the authority of her elders, the girl cannot bring her psychic disposition to bear, and goes into marriage uncertain of her own feelings. As a consequence of this artificial retardation of the function of love she brings nothing but deception to the husband who has set all his desires upon her, and manifests frigidity in her physical relations with him."

Sénancour (_De l'Amour_, vol. i, p. 285) even believes that, when it is possible to leave out of consideration the question of offspring, not only will the law of chastity become equal for the two sexes, but there will be a tendency for the situation of the sexes to be, to some extent, changed. "Continence becomes a counsel rather than a precept, and it is in women that the voluptuous inclination will be regarded with most indulgence. Man is made for work; he only meets pleasure in passing; he must be content that women should occupy themselves with it more than he. It is men whom it exhausts, and men must always, in part, restrain their desires."

As, however, we liberate ourselves from the bondage of a compulsory physical chastity, it becomes possible to rehabilitate chastity as a virtue. At the present day it can no longer be said that there is on the part of thinkers and moralists any active hostility to the idea of chastity; there is, on the contrary, a tendency to recognize the value of chastity. But this recognition has been accompanied by a return to the older and sounder conception of chastity. The preservation of a rigid sexual abstinence, an empty virginity, can only be regarded as a pseudo-chastity. The only positive virtue which Aristotle could have recognized in this field was a temperance involving restraint of the lower impulses, a wise exercise and not a non-exercise.[80] The best thinkers of the Christian Church adopted the same conception; St. Basil in his important monastic rules laid no weight on self-discipline as an end in itself, but regarded it as an instrument for enabling the spirit to gain power over the flesh. St. Augustine declared that continence is only excellent when practised in the faith of the highest good,[81] and he regarded chastity as "an orderly movement of the soul subordinating lower things to higher things, and specially to be manifested in conjugal relationships"; Thomas Aquinas, defining chastity in much the same way, defined impurity as the enjoyment of sexual pleasure not according to right reason, whether as regards the object or the conditions.[82] But for a time the voices of the great moralists were unheard. The virtue of chastity was swamped in the popular Christian passion for the annihilation of the flesh, and that view was, in the sixteenth century, finally consecrated by the Council of Trent, which formally pronounced an anathema upon anyone who should declare that the state of virginity and celibacy was not better than the state of matrimony. Nowadays the pseudo-chastity that was of value on the simple ground that any kind of continence is of higher spiritual worth

than any kind of sexual relationship belongs to the past, except for those who adhere to ancient ascetic creeds. The mystic value of virginity has gone; it seems only to arouse in the modern man's mind the idea of a piquancy craved by the hardened rake;[83] it is men who have themselves long passed the age of innocence who attach so much importance to the innocence of their brides. The conception of life-long continence as an ideal has also gone; at the best it is regarded as a mere matter of personal preference. And the conventional simulation of universal chastity, at the bidding of respectability, is coming to be regarded as a hindrance rather than a help to the cultivation of any real chastity.[84]

The chastity that is regarded by the moralist of to-day as a virtue has its worth by no means in its abstinence. It is not, in St. Theresa's words, the virtue of the tortoise which withdraws its limbs under its carapace. It is a virtue because it is a discipline in self-control, because it helps to fortify the character and will, and because it is directly favorable to the cultivation of the most beautiful, exalted, and effective sexual life. So viewed, chastity may be opposed to the demands of debased mediæval Catholicism, but it is in harmony with the demands of our civilized life to-day, and by no means at variance with the requirements of Nature.

There is always an analogy between the instinct of reproduction and the instinct of nutrition. In the matter of eating it is the influence of science, of physiology, which has finally put aside an exaggerated asceticism, and made eating "pure." The same process, as James Hinton well pointed out, has been made possible in the sexual relationships; "science has in its hands the key to purity."[85]

Many influences have, however, worked together to favor an insistence on chastity. There has, in the first place, been an inevitable reaction against the sexual facility which had come to be regarded as natural. Such facility was found to have no moral value, for it tended to relaxation of moral fibre and was unfavorable to the finest sexual satisfaction. It could not even claim to be natural in any broad sense of the word, for, in Nature generally, sexual gratification tends to be rare and difficult.[86] Courtship is arduous and long, the season of love is strictly delimited, pregnancy interrupts sexual relationships. Even among savages, so long as they have been untainted by civilization, virility is usually maintained by a fine asceticism; the endurance of hardship, self-control and restraint, tempered by rare orgies, constitute a discipline which covers the sexual as well as every other department of savage life. To preserve the same virility in civilized life, it may well be felt, we must deliberately cultivate a virtue which under savage conditions of life is natural.[87]

The influence of Nietzsche, direct and indirect, has been on the side of the virtue of chastity in its modern sense. The command: "Be hard," as Nietzsche used it, was not so much an injunction to an unfeeling indifference towards others as an appeal for a more strenuous attitude towards one's self, the cultivation of a self-control able to gather up and hold in the forces of the soul for expenditure on deliberately accepted ends. "A relative chastity," he wrote, "a fundamental and wise foresight in the face of erotic things, even in thought, is part of a fine reasonableness in life, even in richly endowed and complete natures."[88] In this matter Nietzsche is a typical representative of the modern movement for the restoration of chastity to its proper

place as a real and beneficial virtue, and not a mere empty convention. Such a movement could not fail to make itself felt, for all that favors facility and luxurious softness in sexual matters is quickly felt to degrade character as well as to diminish the finest erotic satisfaction. For erotic satisfaction, in its highest planes, is only possible when we have secured for the sexual impulse a high degree of what Colin Scott calls "irradiation," that is to say a wide diffusion through the whole of the psychic organism. And that can only be attained by placing impediments in the way of the swift and direct gratification of sexual desire, by compelling it to increase its force, to take long circuits, to charge the whole organism so highly that the final climax of gratified love is not the trivial detumescence of a petty desire but the immense consummation of a longing in which the whole soul as well as the whole body has its part. "Only the chaste can be really obscene," said Huysmans. And on a higher plane, only the chaste can really love.

"Physical purity," remarks Hans Menjago ("Die Ueberschätzung der Physischen Reinheit," _Geschlecht und Gesellschaft_, vol. ii, Part VIII) "was originally valued as a sign of greater strength of will and firmness of character, and it marked a rise above primitive conditions. This purity was difficult to preserve in those unsure days; it was rare and unusual. From this rarity rose the superstition of supernatural power residing in the virgin. But this has no meaning as soon as such purity becomes general and a specially conspicuous degree of firmness of character is no longer needed to maintain it.... Physical purity can only possess value when it is the result of individual strength of character, and not when it is the result of compulsory rules of morality."

Konrad Höller, who has given special attention to the sexual question in schools, remarks in relation to physical exercise: "The greatest advantage of physical exercises, however, is not the development of the active and passive strength of the body and its skill, but the establishment and fortification of the authority of the will over the body and its needs, so much given up to indolence. He who has learnt to endure and overcome, for the sake of a definite aim, hunger and thirst and fatigue, will be the better able to withstand sexual impulses and the temptation to gratify them, when better insight and æsthetic feeling have made clear to him, as one used to maintain authority over his body, that to yield would be injurious or disgraceful" (K. Höller, "Die Aufgabe der Volksschule," _Sexualpädagogik_, p. 70). Professor Schäfenacker (id., p. 102), who also emphasizes the importance of self-control and self-restraint, thinks a youth must bear in mind his future mission, as citizen and father of a family.

A subtle and penetrative thinker of to-day, Jules de Gaultier, writing on morals without reference to this specific question, has discussed what new internal inhibitory motives we can appeal to in replacing the old external inhibition of authority and belief which is now decayed. He answers that the state of feeling on which old faiths were based still persists. "May not," he asks, "the desire for a thing that we love and wish for beneficently replace the belief that a thing is by divine will, or in the nature of things? Will not the presence of a bridle on the frenzy of instinct reveal itself as a useful attitude adopted by instinct itself for its own conservation, as

a symptom of the force and health of instinct? Is not empire over oneself, the power of regulating one's acts, a mark of superiority and a motive for self-esteem? Will not this joy of pride have the same authority in preserving the instincts as was once possessed by religious fear and the pretended imperatives of reason?" (Jules de Gaultier, _La Dépendance de la Morale et l'Indépendance des Moeurs_, p. 153.)

H.G. Wells (in _A Modern Utopia_), pointing out the importance of chastity, though rejecting celibacy, invokes, like Jules de Gaultier, the motive of pride. "Civilization has developed far more rapidly than man has modified. Under the unnatural perfection of security, liberty, and abundance our civilization has attained, the normal untrained human being is disposed to excess in almost every direction; he tends to eat too much and too elaborately, to drink too much, to become lazy faster than his work can be reduced, to waste his interest upon displays, and to make love too much and too elaborately. He gets out of training, and concentrates upon egoistic or erotic broodings. Our founders organized motives from all sorts of sources, but I think the chief force to give men self-control is pride. Pride may not be the noblest thing in the soul, but it is the best king there, for all that. They looked to it to keep a man clean and sound and sane. In this matter, as in all matters of natural desire, they held no appetite must be glutted, no appetite must have artificial whets, and also and equally that no appetite should be starved. A man must come from the table satisfied, but not replete. And, in the matter of love, a straight and clean desire for a clean and straight fellow-creature was our founders' ideal. They enjoined marriage between equals as the duty to the race, and they framed directions of the precisest sort to prevent that uxorious inseparableness, that connubiality, that sometimes reduces a couple of people to something jointly less than either."

With regard to chastity as an element of erotic satisfaction, Edward Carpenter writes (_Love's Coming of Age_, p. 11): "There is a kind of illusion about physical desire similar to that which a child suffers from when, seeing a beautiful flower, it instantly snatches the same, and destroys in a few moments the form and fragrance which attracted it. He only gets the full glory who holds himself back a little, and truly possesses, who is willing, if need be, not to possess. He is indeed a master of life who, accepting the grosser desires as they come to his body, and not refusing them, knows how to transform them at will into the most rare and fragrant flowers of human emotion."

Beyond its functions in building up character, in heightening and ennobling the erotic life, and in subserving the adequate fulfilment of family and social duties, chastity has a more special value for those who cultivate the arts. We may not always be inclined to believe the writers who have declared that their verse alone is wanton, but their lives chaste. It is certainly true, however, that a relationship of this kind tends to occur. The stuff of the sexual life, as Nietzsche says, is the stuff of art; if it is expended in one channel it is lost for the other. The masters of all the more intensely emotional arts have frequently cultivated a high degree of chastity. This is notably the case as regards music; one thinks of Mozart,[89] of Beethoven, of Schubert, and many lesser men. In the case of poets and novelists chastity may usually seem to be less prevalent but it is frequently well-marked, and is not seldom disguised by the

resounding reverberations which even the slightest love-episode often exerts on the poetic organism. Goethe's life seems, at a first glance, to be a long series of continuous love-episodes. Yet when we remember that it was the very long life of a man whose vigor remained until the end, that his attachments long and profoundly affected his emotional life and his work, and that with most of the women he has immortalized he never had actual sexual relationships at all, and when we realize, moreover, that, throughout, he accomplished an almost inconceivably vast amount of work, we shall probably conclude that sexual indulgence had a very much smaller part in Goethe's life than in that of many an average man on whom it leaves no obvious emotional or intellectual trace whatever. Sterne, again, declared that he must always have a Dulcinea dancing in his head, yet the amount of his intimate relations with women appears to have been small. Balzac spent his life toiling at his desk and carrying on during many years a love correspondence with a woman he scarcely ever saw and at the end only spent a few months of married life with. The like experience has befallen many artistic creators. For, in the words of Landor, "absence is the invisible and incorporeal mother of ideal beauty."

We do well to remember that, while the auto-erotic manifestations through the brain are of infinite variety and importance, the brain and the sexual organs are yet the great rivals in using up bodily energy, and that there is an antagonism between extreme brain vigor and extreme sexual vigor, even although they may sometimes both appear at different periods in the same individual.[90] In this sense there is no paradox in the saying of Ramon Correa that potency is impotence and impotence potency, for a high degree of energy, whether in athletics or in intellect or in sexual activity, is unfavorable to the display of energy in other directions. Every high degree of potency has its related impotencies.

It may be added that we may find a curiously inconsistent proof of the excessive importance attached to sexual function by a society which systematically tries to depreciate sex, in the disgrace which is attributed to the lack of "virile" potency. Although civilized life offers immense scope for the activities of sexually impotent persons, the impotent man is made to feel that, while he need not be greatly concerned if he suffers from nervous disturbances of digestion, if he should suffer just as innocently from nervous disturbances of the sexual impulse, it is almost a crime. A striking example of this was shown, a few years ago, when it was plausibly suggested that Carlyle's relations with his wife might best be explained by supposing that he suffered from some trouble of sexual potency. At once admirers rushed forward to "defend" Carlyle from this "disgraceful" charge; they were more shocked than if it had been alleged that he was a syphilitic. Yet impotence is, at the most, an infirmity, whether due to some congenital anatomical defect or to a disturbance of nervous balance in the delicate sexual mechanism, such as is apt to occur in men of abnormally sensitive temperament. It is no more disgraceful to suffer from it than from dyspepsia, with which, indeed, it may be associated. Many men of genius and high moral character have been sexually deformed. This was the case with Cowper (though this significant fact is suppressed by his biographers); Ruskin was divorced for a reason of this kind; and J.S. Mill, it is said, was sexually of little more than infantile development.

Up to this point I have been considering the quality of chastity and the quality of asceticism in their most general sense and without any attempt at precise differentiation.[91] But if we are to accept these as modern virtues, valid to-day, it is necessary that we should be somewhat more precise in defining them. It seems most convenient, and most strictly accordant also with etymology, if we agree to mean by asceticism or _ascesis_, the athlete quality of self-discipline, controlling, by no means necessarily for indefinitely prolonged periods, the gratification of the sexual impulse. By chastity, which is primarily the quality of purity, and secondarily that of holiness, rather than of abstinence, we may best understand a due proportion between erotic claims and the other claims of life. "Chastity," as Ellen Key well says, "is harmony between body and soul in relation to love." Thus comprehended, asceticism is the virtue of control that leads up to erotic gratification, and chastity is the virtue which exerts its harmonizing influence in the erotic life itself.

It will be seen that asceticism by no means necessarily involves perpetual continence. Properly understood, asceticism is a discipline, a training, which has reference to an end not itself. If it is compulsorily perpetual, whether at the dictates of a religious dogma, or as a mere fetish, it is no longer on a natural basis, and it is no longer moral, for the restraint of a man who has spent his whole life in a prison is of no value for life. If it is to be natural and to be moral asceticism must have an end outside itself, it must subserve the ends of vital activity, which cannot be subserved by a person who is engaged in a perpetual struggle with his own natural instincts. A man may, indeed, as a matter of taste or preference, live his whole life in sexual abstinence, freely and easily, but in that case he is not an ascetic, and his abstinence is neither a subject for applause nor for criticism.

In the same way chastity, far from involving sexual abstinence, only has its value when it is brought within the erotic sphere. A purity that is ignorance, when the age of childish innocence is once passed, is mere stupidity; it is nearer to vice than to virtue. Nor is purity consonant with effort and struggle; in that respect it differs from asceticism. "We conquer the bondage of sex," Rosa Mayreder says, "by acceptance, not by denials, and men can only do this with the help of women." The would-be chastity of cold calculation is equally unbeautiful and unreal, and without any sort of value. A true and worthy chastity can only be supported by an ardent ideal, whether, as among the early Christians, this is the erotic ideal of a new romance, or, as among ourselves, a more humanly erotic ideal. "Only erotic idealism," says Ellen Key, "can arouse enthusiasm for chastity." Chastity in a healthily developed person can thus be beautifully exercised only in the actual erotic life; in part it is the natural instinct of dignity and temperance; in part it is the art of touching the things of sex with hands that remember their aptness for all the fine ends of life. Upon the doorway of entrance to the inmost sanctuary of love there is thus the same inscription as on the doorway to the Epidaurian Sanctuary of Aesculapius: "None but the pure shall enter here."

It will be seen that the definition of chastity remains somewhat lacking in precision. That is inevitable. We cannot grasp purity tightly, for, like snow, it will merely melt in our hands. "Purity itself forbids too minute a system of rules for the

observance of purity," well says Sidgwick (_Methods of Ethics_, Bk. iii, Ch. IX). Elsewhere (op. cit., Bk. iii, Ch. XI) he attempts to answer the question: What sexual relations are essentially impure? and concludes that no answer is possible. "There appears to be no distinct principle, having any claim to self-evidence, upon which the question can be answered so as to command general assent." Even what is called "Free Love," he adds, "in so far as it is earnestly advocated as a means to a completer harmony of sentiment between men and women, cannot be condemned as impure, for it seems paradoxical to distinguish purity from impurity merely by less rapidity of transition."

Moll, from the standpoint of medical psychology, reaches the same conclusion as Sidgwick from that of ethics. In a report on the "Value of Chastity for Men," published as an appendix to the third edition (1899) of his _Konträre Sexualempfindung_, the distinguished Berlin physician discusses the matter with much vigorous common sense, insisting that "chaste and unchaste are _relative ideas_." We must not, he states, as is so often done, identify "chaste" with "sexually abstinent." He adds that we are not justified in describing all extra-marital sexual intercourse as unchaste, for, if we do so, we shall be compelled to regard nearly all men, and some very estimable women, as unchaste. He rightly insists that in this matter we must apply the same rule to women as to men, and he points out that even when it involves what may be technically adultery sexual intercourse is not necessarily unchaste. He takes the case of a girl who, at eighteen, when still mentally immature, is married to a man with whom she finds it impossible to live and a separation consequently occurs, although a divorce may be impossible to obtain. If she now falls passionately in love with a man her love may be entirely chaste, though it involves what is technically adultery.

In thus understanding asceticism and chastity, and their beneficial functions in life, we see that they occupy a place midway between the artificially exaggerated position they once held and that to which they were degraded by the inevitable reaction of total indifference or actual hostility which followed. Asceticism and chastity are not rigid categorical imperatives; they are useful means to desirable ends; they are wise and beautiful arts. They demand our estimation, but not our over-estimation. For in over-estimating them, it is too often forgotten, we over-estimate the sexual instinct. The instinct of sex is indeed extremely important. Yet it has not that all-embracing and supereminent importance which some, even of those who fight against it, are accustomed to believe. That artificially magnified conception of the sexual impulse is fortified by the artificial emphasis placed upon asceticism. We may learn the real place of the sexual impulse in learning how we may reasonably and naturally view the restraints on that impulse.

FOOTNOTES:

[69] For Blake and for Shelley, as well as, it may be added, for Hinton, chastity, as Todhunter remarks in his _Study of Shelley_, is "a type of submission to the actual, a renunciation of the infinite, and is therefore hated by them. The chaste man, i.e., the man of prudence and self-control, is the man who has lost the nakedness of his primitive innocence."

[70] For evidence of the practices of savages in this matter, see Appendix _A_ to the third volume of these _Studies_, "The Sexual Instinct in Savages." Cf. also Chs. IV and VII of Westermarck's _History of Human Marriage_, and also Chs. XXXVIII and XLI of the same author's _Origin and Development of the Moral Ideas_, vol. ii; Frazer's _Golden Bough_ contains much bearing on this subject, as also Crawley's _Mystic Rose_.

[71] See, e.g., Westermarck, _Origin and Development of the Moral Ideas_, vol. ii, pp. 412 et seq.

[72] Thus an old Maori declared, a few years ago, that the decline of his race has been entirely due to the loss of the ancient religious faith in the _tabu_. "For," said he (I quote from an Auckland newspaper), "in the olden-time our _tapu_ ramified the whole social system. The head, the hair, spots where apparitions appeared, places which the _tohungas_ proclaimed as sacred, we have forgotten and disregarded. Who nowadays thinks of the sacredness of the head? See when the kettle boils, the young man jumps up, whips the cap off his head, and uses it for a kettle-holder. Who nowadays but looks on with indifference when the barber of the village, if he be near the fire, shakes the loose hair off his cloth into it, and the joke and the laughter goes on as if no sacred operation had just been concluded. Food is consumed on places which, in bygone days, it dared not even be carried over."

[73] Thus, long before Christian monks arose, the ascetic life of the cloister on very similar lines existed in Egypt in the worship of Serapis (Dill, _Roman Society_, p. 79).

[74] At night, in the baptistry, with lamps dimly burning, the women were stripped even of their tunics, plunged three times in the pool, then anointed, dressed in white, and kissed.

[75] Thus Jerome, in his letter to Eustochium, refers to those couples who "share the same room, often even the same bed, and call us suspicious if we draw any conclusions," while Cyprian (_Epistola_, 86) is unable to approve of those men he hears of, one a deacon, who live in familiar intercourse with virgins, even sleeping in the same bed with them, for, he declares, the feminine sex is weak and youth is wanton.

[76] Perpetua (_Acta Sanctorum_, March 7) is termed by Hort and Mayor "that fairest flower in the garden of post-Apostolic Christendom." She was not, however, a virgin, but a young mother with a baby at her breast.

[77] The strength of early Christian asceticism lay in its spontaneous and voluntary character. When, in the ninth century, the Carlovingians attempted to enforce monastic and clerical celibacy, the result was a great outburst of unchastity and crime; nunneries became brothels, nuns were frequently guilty of infanticide, monks committed unspeakable abominations, the regular clergy formed incestuous relations with their nearest female relatives (Lea, _History of Sacerdotal Celibacy_, vol. i, pp, 155 et seq.).

[78] Sénancour, _De l'Amour_, vol. ii, p. 233. Islam has placed much less stress on chastity than Christianity, but practically, it would appear, there is often more regard

for chastity under Mohammedan rule than under Christian rule. Thus it is stated by "Viator" (_Fortnightly Review_, Dec., 1908) that formerly, under Turkish Moslem rule, it was impossible to buy the virtue of women in Bosnia, but that now, under the Christian rule of Austria, it is everywhere possible to buy women near the Austrian frontier.

[79] The basis of this feeling was strengthened when it was shown by scholars that the physical virtue of "virginity" had been masquerading under a false name. To remain a virgin seems to have meant at the first, among peoples of early Aryan culture, by no means to take a vow of chastity, but to refuse to submit to the yoke of patriarchal marriage. The women who preferred to stand outside marriage were "virgins," even though mothers of large families, and Æschylus speaks of the Amazons as "virgins," while in Greek the child of an unmarried girl was always "the virgin's son." The history of Artemis, the most primitive of Greek deities, is instructive from this point of view. She was originally only virginal in the sense that she rejected marriage, being the goddess of a nomadic and matriarchal hunting people who had not yet adopted marriage, and she was the goddess of childbirth, worshipped with orgiastic dances and phallic emblems. It was by a late transformation that Artemis became the goddess of chastity (Farnell, _Cults of the Greek States_, vol. ii, pp. 442 et seq.; Sir W.M. Ramsay, _Cities of Phrygia_, vol. i, p. 96; Paul Lafargue, "Les Mythes Historiques," _Revue des Idées_, Dec., 1904).

[80] See, e.g., Nicomachean Ethics, Bk. iii, Ch. XIII.

[81] _De Civitate Dei_, lib. xv, cap. XX. A little further on (lib. xvi, cap. XXV) he refers to Abraham as a man able to use women as a man should, his wife temperately, his concubine compliantly, neither immoderately.

[82] _Summa_, Migne's edition, vol. iii, qu. 154, art. I.

[83] See the Study of Modesty in the first volume of these _Studies_.

[84] The majority of chaste youths, remarks an acute critic of modern life (Hellpach, _Nervosität und Kultur_, p. 175), are merely actuated by traditional principles, or by shyness, fear of venereal infections, lack of self-confidence, want of money, very seldom by any consideration for a future wife, and that indeed would be a tragi-comic error, for a woman lays no importance on intact masculinity. Moreover, he adds, the chaste man is unable to choose a wife wisely, and it is among teachers and clergymen--the chastest class--that most unhappy marriages are made. Milton had already made this fact an argument for facility of divorce.

[85] "In eating," said Hinton, "we have achieved the task of combining pleasure with an absence of 'lust.' The problem for man and woman is so to use and possess the sexual passion as to make it the minister to higher things, with no restraint on it but that. It is essentially connected with things of the spiritual order, and would naturally revolve round them. To think of it as merely bodily is a mistake."

[86] See "Analysis of the Sexual Impulse," and Appendix, "The Sexual Instinct in Savages," in vol. iii of these _Studies_.

[87] I have elsewhere discussed more at length the need in modern civilized life of a natural and sincere asceticism (see _Affirmations_, 1898) "St. Francis and Others."

[88] _Der Wille zur Macht_, p. 392.

[89] At the age of twenty-five, when he had already produced much fine work, Mozart wrote in his letters that he had never touched a woman, though he longed for love and marriage. He could not afford to marry, he would not seduce an innocent girl, a venial relation was repulsive to him.

[90] Reibmayr, _Die Entwicklungsgeschichte des Talentes und Genies._, Bd. i, p. 437.

[91] We may exclude altogether, it is scarcely necessary to repeat, the quality of virginity--that is to say, the possession of an intact hymen--since this is a merely physical quality with no necessary ethical relationships. The demand for virginity in women is, for the most part, either the demand for a better marketable article, or for a more powerful stimulant to masculine desire. Virginity involves no moral qualities in its possessor. Chastity and asceticism, on the other hand, are meaningless terms, except as demands made by the spirit on itself or on the body it controls.

CHAPTER VI.

THE PROBLEM OF SEXUAL ABSTINENCE.

The Influence of Tradition--The Theological Conception of Lust--Tendency of These Influences to Degrade Sexual Morality--Their Result in Creating the Problem of Sexual Abstinence--The Protests Against Sexual Abstinence--Sexual Abstinence and Genius--Sexual Abstinence in Women--The Advocates of Sexual Abstinence--Intermediate Attitude--Unsatisfactory Nature of the Whole Discussion--Criticism of the Conception of Sexual Abstinence--Sexual Abstinence as Compared to Abstinence from Food--No Complete Analogy--The Morality of Sexual Abstinence Entirely Negative--Is It the Physician's Duty to Advise Extra-Conjugal Sexual Intercourse?--Opinions of Those Who Affirm or Deny This Duty--The Conclusion Against Such Advice--The Physician Bound by the Social and Moral Ideas of His Age--The Physician as Reformer--Sexual Abstinence and Sexual Hygiene--Alcohol--The Influence of Physical and Mental Exercise--The Inadequacy of Sexual Hygiene in This Field--The Unreal Nature of the Conception of Sexual Abstinence--The Necessity of Replacing It by a More Positive Ideal.

When we look at the matter from a purely abstract or even purely biological point of view, it might seem that in deciding that asceticism and chastity are of high value for the personal life we have said all that is necessary to say. That, however, is very far from being the case. We soon realize here, as at every point in the practical application of sexual psychology, that it is not sufficient to determine the abstractly right course along biological lines. We have to harmonize our biological demands with social demands. We are ruled not only by natural instincts but by inherited traditions, that in the far past were solidly based on intelligible grounds, and that even still, by the mere fact of their existence, exert a force which we cannot and

ought not to ignore.

In discussing the valuation of the sexual impulse we found that we had good ground for making a very high estimate of love. In discussing chastity and asceticism we found that they also are highly to be valued. And we found that, so far from any contradiction being here involved, love and chastity are intertwined in all their finest developments, and that there is thus a perfect harmony in apparent opposition. But when we come to consider the matter in detail, in its particular personal applications, we find that a new factor asserts itself. We find that our inherited social and religious traditions exert a pressure, all on one side, which makes it impossible to place the relations of love and chastity simply on the basis of biology and reason. We are confronted at the outset by our traditions. On the one side these traditions have weighted the word "lust"--considered as expressing all the manifestations of the sexual impulse which are outside marriage or which fail to have marriage as their direct and ostentatious end--with deprecatory and sinister meanings. And on the other side these traditions have created the problem of "sexual abstinence," which has nothing to do with either asceticism or chastity as these have been defined in the previous chapter, but merely with the purely negative pressure on the sexual impulse, exerted, independently of the individual's wishes, by his religious and social environment.

The theological conception of "lust," or "libido," as sin, followed logically the early Christian conception of "the flesh," and became inevitable as soon as that conception was firmly established. Not only, indeed, had early Christian ideals a degrading influence on the estimation of sexual desire _per se_, but they tended to depreciate generally the dignity of the sexual relationship. If a man made sexual advances to a woman outside marriage, and thus brought her within the despised circle of "lust," he was injuring her because he was impairing her religious and moral value.[92] The only way he could repair the damage done was by paying her money or by entering into a forced and therefore probably unfortunate marriage with her. That is to say that sexual relationships were, by the ecclesiastical traditions, placed on a pecuniary basis, on the same level as prostitution. By its well-meant intentions to support the theological morality which had developed on an ascetic basis, the Church was thus really undermining even that form of sexual relationship which it sanctified.

Gregory the Great ordered that the seducer of a virgin shall marry her, or, in case of refusal, be severely punished corporally and shut up in a monastery to perform penance. According to other ecclesiastical rules, the seducer of a virgin, though held to no responsibility by the civil forum, was required to marry her, or to find a husband and furnish a dowry for her. Such rules had their good side, and were especially equitable when seduction had been accomplished by deceit. But they largely tended in practice to subordinate all questions of sexual morality to a money question. The reparation to the woman, also, largely became necessary because the ecclesiastical conception of lust caused her value to be depreciated by contact with lust, and the reparation might be said to constitute a part of penance. Aquinas held that lust, in however slight a degree, is a mortal sin, and most of the more influential theologians took a view nearly or quite as rigid. Some, however, held that a certain degree of

delectation is possible in these matters without mortal sin, or asserted, for instance, that to feel the touch of a soft and warm hand is not mortal sin so long as no sexual feeling is thereby aroused. Others, however, held that such distinctions are impossible, and that all pleasures of this kind are sinful. Tomás Sanchez endeavored at much length to establish rules for the complicated problems of delectation that thus arose, but he was constrained to admit that no rules are really possible, and that such matters must be left to the judgment of a prudent man. At that point casuistry dissolves and the modern point of view emerges (see, e.g., Lea, _History of Auricular Confession_, vol. ii, pp. 57, 115, 246, etc.).

Even to-day the influence of the old traditions of the Church still unconsciously survives among us. That is inevitable as regards religious teachers, but it is found also in men of science, even in Protestant countries. The result is that quite contradictory dogmas are found side by side, even in the same writer. On the one hand, the manifestations of the sexual impulse are emphatically condemned as both unnecessary and evil; on the other hand, marriage, which is fundamentally (whatever else it may also be) a manifestation of the sexual impulse, receives equally emphatic approval as the only proper and moral form of living.[93] There can be no reasonable doubt whatever that it is to the surviving and pervading influence of the ancient traditional theological conception of _libido_ that we must largely attribute the sharp difference of opinions among physicians on the question of sexual abstinence and the otherwise unnecessary acrimony with which these opinions have sometimes been stated.

On the one side, we find the emphatic statement that sexual intercourse is necessary and that health cannot be maintained unless the sexual activities are regularly exercised.

"All parts of the body which are developed for a definite use are kept in health, and in the enjoyment of fair growth and of long youth, by the fulfilment of that use, and by their appropriate exercise in the employment to which they are accustomed." In that statement, which occurs in the great Hippocratic treatise "On the Joints," we have the classic expression of the doctrine which in ever varying forms has been taught by all those who have protested against sexual abstinence. When we come down to the sixteenth century outbreak of Protestantism we find that Luther's revolt against Catholicism was in part a protest against the teaching of sexual abstinence. "He to whom the gift of continence is not given," he said in his _Table Talk_, "will not become chaste by fasting and vigils. For my own part I was not excessively tormented [though elsewhere he speaks of the great fires of lust by which he had been troubled], but all the same the more I macerated myself the more I burnt." And three hundred years later, Bebel, the would-be nineteenth century Luther of a different Protestantism, took the same attitude towards sexual abstinence, while Hinton the physician and philosopher, living in a land of rigid sexual conventionalism and prudery, and moved by keen sympathy for the sufferings he saw around him, would break into passionate sarcasm when confronted by the doctrine of sexual abstinence. "There are innumerable ills--terrible destructions, madness even, the ruin of lives--for which the embrace of man and woman would be a remedy. No one thinks of

questioning it. Terrible evils and a remedy in a delight and joy! And man has chosen so to muddle his life that he must say: 'There, that would be a remedy, but I cannot use it. I _must be virtuous!_'"

If we confine ourselves to modern times and to fairly precise medical statements, we find in Schurig's _Spermatologia_ (1720, pp. 274 et seq.), not only a discussion of the advantages of moderate sexual intercourse in a number of disorders, as witnessed by famous authorities, but also a list of results--including anorexia, insanity, impotence, epilepsy, even death--which were believed to have been due to sexual abstinence. This extreme view of the possible evils of sexual abstinence seems to have been part of the Renaissance traditions of medicine stiffened by a certain opposition between religion and science. It was still rigorously stated by Lallemand early in the nineteenth century. Subsequently, the medical statements of the evil results of sexual abstinence became more temperate and measured, though still often pronounced. Thus Gyurkovechky believes that these results may be as serious as those of sexual excess. Krafft-Ebing showed that sexual abstinence could produce a state of general nervous excitement (_Jahrbuch für Psychiatrie_, Bd. viii, Heft 1 and 2). Schrenck-Notzing regards sexual abstinence as a cause of extreme sexual hyperæsthesia and of various perversions (in a chapter on sexual abstinence in his _Kriminalpsychologische und Psychopathologische Studien_, 1902, pp. 174-178). He records in illustration the case of a man of thirty-six who had masturbated in moderation as a boy, but abandoned the practice entirely, on moral grounds, twenty years ago, and has never had sexual intercourse, feeling proud to enter marriage a chaste man, but now for years has suffered greatly from extreme sexual hyperæsthesia and concentration of thought on sexual subjects, notwithstanding a strong will and the resolve not to masturbate or indulge in illicit intercourse. In another case a vigorous and healthy man, not inverted, and with strong sexual desires, who remained abstinent up to marriage, suffers from psychic impotence, and his wife remains a virgin notwithstanding all her affection and caresses. Ord considered that sexual abstinence might produce many minor evils. "Most of us," he wrote (_British Medical Journal_, Aug. 2, 1884) "have, no doubt, been consulted by men, chaste in act, who are tormented by sexual excitement. They tell one stories of long-continued local excitement, followed by intense muscular weariness, or by severe aching pain in the back and legs. In some I have had complaints of swelling and stiffness in the legs, and of pains in the joints, particularly in the knees;" he gives the case of a man who suffered after prolonged chastity from inflammatory conditions of knees and was only cured by marriage. Pearce Gould, it may be added, finds that "excessive ungratified sexual desire" is one of the causes of acute orchitis. Remondino ("Some Observations on Continence as a Factor in Health and Disease," _Pacific Medical Journal_, Jan., 1900) records the case of a gentleman of nearly seventy who, during the prolonged illness of his wife, suffered from frequent and extreme priapism, causing insomnia. He was very certain that his troubles were not due to his continence, but all treatment failed and there were no spontaneous emissions. At last Remondino advised him to, as he expresses it, "imitate Solomon." He did so, and all the symptoms at once disappeared. This case is of special interest, because the symptoms were not accompanied by any conscious sexual desire. It is no

longer generally believed that sexual abstinence tends to produce insanity, and the occasional cases in which prolonged and intense sexual desire in young women is followed by insanity will usually be found to occur on a basis of hereditary degeneration. It is held by many authorities, however, that minor mental troubles, of a more or less vague character, as well as neurasthenia and hysteria, are by no means infrequently due to sexual abstinence. Thus Freud, who has carefully studied angstneurosis, the obsession of anxiety, finds that it is a result of sexual abstinence, and may indeed be considered as a vicarious form of such abstinence (Freud, _Sammlung Kleiner Schriften zur Neurosenlehre_, 1906, pp. 76 et seq.).

The whole subject of sexual abstinence has been discussed at length by Nyström, of Stockholm, in _Das Geschlechtsleben und seine Gesetze_, Ch. III. He concludes that it is desirable that continence should be preserved as long as possible in order to strengthen the physical health and to develop the intelligence and character. The doctrine of permanent sexual abstinence, however, he regards as entirely false, except in the case of a small number of religious or philosophic persons. "Complete abstinence during a long period of years cannot be borne without producing serious results both on the body and the mind.... Certainly, a young man should repress his sexual impulses as long as possible and avoid everything that may artificially act as a sexual stimulant. If, however, he has done so, and still suffers from unsatisfied normal sexual desires, and if he sees no possibility of marriage within a reasonable time, no one should dare to say that he is committing a sin if, with mutual understanding, he enters into sexual relations with a woman friend, or forms temporary sexual relationships, provided, that is, that he takes the honorable precaution of begetting no children, unless his partner is entirely willing to become a mother, and he is prepared to accept all the responsibilities of fatherhood." In an article of later date ("Die Einwirkung der Sexuellen Abstinenz auf die Gesundheit," _Sexual-Probleme_, July, 1908) Nyström vigorously sums up his views. He includes among the results of sexual abstinence orchitis, frequent involuntary seminal emissions, impotence, neurasthenia, depression, and a great variety of nervous disturbances of vaguer character, involving diminished power of work, limited enjoyment of life, sleeplessness, nervousness, and pre-occupation with sexual desires and imaginations. More especially there is heightened sexual irritability with erections, or even seminal emissions on the slightest occasion, as on gazing at an attractive woman or in social intercourse with her, or in the presence of works of art representing naked figures. Nyström has had the opportunity of investigating and recording ninety cases of persons who have presented these and similar symptoms as the result, he believes, of sexual abstinence. He has published some of these cases (_Zeitschrift für Sexualwissenschaft_, Oct., 1908), but it may be added that Rohleder ("Die Abstinentia Sexualis," ib., Nov., 1908) has criticized these cases, and doubts whether any of them are conclusive. Rohleder believes that the bad results of sexual abstinence are never permanent, and also that no anatomically pathological states (such as orchitis) can be thereby produced. But he considers, nevertheless, that even incomplete and temporary sexual abstinence may produce fairly serious results, and especially neurasthenic disturbances of various kinds, such as nervous irritability, anxiety, depression, disinclination for work; also diurnal emissions, premature ejaculations,

and even a state approaching satyriasis; and in women hysteria, hystero-epilepsy, and nymphomaniacal manifestations; all these symptoms may, however, he believes, be cured when the abstinence ceases.

Many advocates of sexual abstinence have attached importance to the fact that men of great genius have apparently been completely continent throughout life. This is certainly true (see _ante_, p. 173). But this fact can scarcely be invoked as an argument in favor of the advantages of sexual abstinence among the ordinary population. J.F. Scott selects Jesus, Newton, Beethoven, and Kant as "men of vigor and mental acumen who have lived chastely as bachelors." It cannot, however, be said that Dr. Scott has been happy in the four figures whom he has been able to select from the whole history of human genius as examples of life-long sexual abstinence. We know little with absolute certainty of Jesus, and even if we reject the diagnosis which Professor Binet-Sanglé (in his _Folie de Jesus_) has built up from a minute study of the Gospels, there are many reasons why we should refrain from emphasizing the example of his sexual abstinence; Newton, apart from his stupendous genius in a special field, was an incomplete and unsatisfactory human being who ultimately reached a condition very like insanity; Beethoven was a thoroughly morbid and diseased man, who led an intensely unhappy existence; Kant, from first to last, was a feeble valetudinarian. It would probably be difficult to find a healthy normal man who would voluntarily accept the life led by any of these four, even as the price of their fame. J.A. Godfrey (_Science of Sex_, pp. 139-147) discusses at length the question whether sexual abstinence is favorable to ordinary intellectual vigor, deciding that it is not, and that we cannot argue from the occasional sexual abstinence of men of genius, who are often abnormally constituted, and physically below the average, to the normally developed man. Sexual abstinence, it may be added, is by no means always a favorable sign, even in men who stand intellectually above the average. "I have not obtained the impression," remarks Freud (_Sexual-Probleme_, March, 1908), "that sexual abstinence is helpful to energetic and independent men of action or original thinkers, to courageous liberators or reformers. The sexual conduct of a man is often symbolic of his whole method of reaction in the world. The man who energetically grasps the object of his sexual desire may be trusted to show a similarly relentless energy in the pursuit of other aims."

Many, though not all, who deny that prolonged sexual abstinence is harmless, include women in this statement. There are some authorities indeed who believe that, whether or not any conscious sexual desire is present, sexual abstinence is less easily tolerated by women than by men.[94]

Cabanis, in his famous and pioneering work, _Rapports du Physique et du Moral_, said in 1802, that women not only bear sexual excess more easily than men, but sexual privations with more difficulty, and a cautious and experienced observer of to-day, Löwenfeld (_Sexualleben und Nervenleiden_, 1899, p. 53), while not considering that normal women bear sexual abstinence less easily than men, adds that this is not the case with women of neuropathic disposition, who suffer much more from this cause, and either masturbate when sexual intercourse is impossible or

fall into hystero-neurasthenic states. Busch stated (_Das Geschlechtsleben des Weibes_, 1839, vol. i, pp. 69, 71) that not only is the working of the sexual functions in the organism stronger in women than in men, but that the bad results of sexual abstinence are more marked in women. Sir Benjamin Brodie said long ago that the evils of continence to women are perhaps greater than those of incontinence, and to-day Hammer (_Die Gesundheitlichen Gefahren der Geschlechtlichen Enthaltsamkeit_, 1904) states that, so far as reasons of health are concerned, sexual abstinence is no more to be recommended to women than to men. Nyström is of the same opinion, though he thinks that women bear sexual abstinence better than men, and has discussed this special question at length in a section of his _Geschlechtsleben und seine Gesetze_. He agrees with the experienced Erb that a large number of completely chaste women of high character, and possessing distinguished qualities of mind and heart, are more or less disordered through their sexual abstinence; this is specially often the case with women married to impotent men, though it is frequently not until they approach the age of thirty, Nyström remarks, that women definitely realize their sexual needs.

A great many women who are healthy, chaste, and modest, feel at times such powerful sexual desire that they can scarcely resist the temptation to go into the street and solicit the first man they meet. Not a few such women, often of good breeding, do actually offer themselves to men with whom they may have perhaps only the slightest acquaintance. Routh records such cases (_British Gynæcological Journal_, Feb., 1887), and most men have met with them at some time. When a woman of high moral character and strong passions is subjected for a very long period to the perpetual strain of such sexual craving, especially if combined with love for a definite individual, a chain of evil results, physical and moral, may be set up, and numerous distinguished physicians have recorded such cases, which terminated at once in complete recovery as soon as the passion was gratified. Lauvergne long since described a case. A fairly typical case of this kind was reported in detail by Brachet (_De l'Hypochondrie_, p. 69) and embodied by Griesinger in his classic work on "Mental Pathology." It concerned a healthy married lady, twenty-six years old, having three children. A visiting acquaintance completely gained her affections, but she strenuously resisted the seducing influence, and concealed the violent passion that he had aroused in her. Various serious symptoms, physical and mental, slowly began to appear, and she developed what seemed to be signs of consumption. Six months' stay in the south of France produced no improvement, either in the bodily or mental symptoms. On returning home she became still worse. Then she again met the object of her passion, succumbed, abandoned her husband and children, and fled with him. Six months later she was scarcely recognizable; beauty, freshness and plumpness had taken the place of emaciation; while the symptoms of consumption and all other troubles had entirely disappeared. A somewhat similar case is recorded by Camill Lederer, of Vienna (_Monatsschrift für Harnkrankheiten und Sexuelle Hygiene_, 1906, Heft 3). A widow, a few months after her husband's death, began to cough, with symptoms of bronchial catarrh, but no definite signs of lung disease. Treatment and change of climate proved entirely unavailing to effect a cure. Two years later, as no signs of disease had appeared in the lungs, though the symptoms continued, she

married again. Within a very few weeks all symptoms had disappeared, and she was entirely fresh and well.

Numerous distinguished gynæcologists have recorded their belief that sexual excitement is a remedy for various disorders of the sexual system in women, and that abstinence is a cause of such disorders. Matthews Duncan said that sexual excitement is the only remedy for amenorrhoea; "the only emmenagogue medicine that I know of," he wrote (_Medical Times_, Feb. 2, 1884), "is not to be found in the Pharmacopoeia: it is erotic excitement. Of the value of erotic excitement there is no doubt." Anstie, in his work on _Neuralgia_, refers to the beneficial effect of sexual intercourse on dysmenorrhoea, remarking that the necessity of the full natural exercise of the sexual function is shown by the great improvement in such cases after marriage, and especially after childbirth. (It may be remarked that not all authorities find dysmenorrhoea benefited by marriage, and some consider that the disease is often thereby aggravated; see, e.g., Wythe Cook, _American Journal Obstetrics_, Dec., 1893.) The distinguished gynæcologist, Tilt, at a somewhat earlier date (_On Uterine and Ovarian Inflammation_, 1862, p. 309), insisted on the evil results of sexual abstinence in producing ovarian irritation, and perhaps subacute ovaritis, remarking that this was specially pronounced in young widows, and in prostitutes placed in penitentiaries. Intense desire, he pointed out, determines organic movements resembling those required for the gratification of the desire. These burning desires, which can only be quenched by their legitimate satisfaction, are still further heightened by the erotic influence of thoughts, books, pictures, music, which are often even more sexually stimulating than social intercourse with men, but the excitement thus produced is not relieved by that natural collapse which should follow a state of vital turgescence. After referring to the biological facts which show the effect of psychic influences on the formative powers of the ovario-uterine organs in animals, Tilt continues: "I may fairly infer that similar incitements on the mind of females may have a stimulating effect on the organs of ovulation. I have frequently known menstruation to be irregular, profuse, or abnormal in type during courtship in women in whom nothing similar had previously occurred, and that this protracted the treatment of chronic ovaritis and of uterine inflammation." Bonnifield, of Cincinnati (_Medical Standard_, Dec., 1896), considers that unsatisfied sexual desire is an important cause of catarrhal endometritis. It is well known that uterine fibroids bear a definite relation to organic sexual activity, and that sexual abstinence, more especially the long-continued deprivation of pregnancy, is a very important cause of the disease. This is well shown by an analysis by A.E. Giles (_Lancet_, March 2, 1907) of one hundred and fifty cases. As many as fifty-six of these cases, more than a third, were unmarried women, though nearly all were over thirty years of age. Of the ninety-four married women, thirty-four had never been pregnant; of those who had been pregnant, thirty-six had not been so for at least ten years. Thus eighty-four per cent, had either not been pregnant at all, or had had no pregnancy for at least ten years. It is, therefore, evident that deprivation of sexual function, whether or not involving abstinence from sexual intercourse, is an important cause of uterine fibroid tumors. Balls-Headley, of Victoria (_Evolution of the Diseases of Women_, 1894, and "Etiology of Diseases of Female Genital Organs," Allbutt and Playfair, _System of

Gynæcology_,) believes that unsatisfied sexual desire is a factor in very many disorders of the sexual organs in women. "My views," he writes in a private letter, "are founded on a really special gynæcological practice of twenty years, during which I have myself taken about seven thousand most careful records. The normal woman is sexually well-formed and her sexual feelings require satisfaction in the direction of the production of the next generation, but under the restrictive and now especially abnormal conditions of civilization some women undergo hereditary atrophy, and the uterus and sexual feelings are feeble; in others of good average local development the feeling is in restraint; in others the feelings, as well as the organs, are strong, and if normal use be withheld evils ensue. Bearing in mind these varieties of congenital development in relation to the respective condition of virginity, or sterile or parous married life, the mode of occurrence and of progress of disease grows on the physician's mind, and there is no more occasion for bewilderment than to the mathematician studying conic sections, when his knowledge has grown from the basis of the science. The problem is suggested: Has a crowd of unassociated diseases fallen as through a sieve on woman, or have these affections almost necessarily ensued from the circumstances of her unnatural environment?" It may be added that Kisch (_Sexual Life of Woman_), while protesting against any exaggerated estimate of the effects of sexual abstinence, considers that in women it may result, not only in numerous local disorders, but also in nervous disturbance, hysteria, and even insanity, while in neurasthenic women "regulated sexual intercourse has an actively beneficial effect which is often striking."

It is important to remark that the evil results of sexual abstinence in women, in the opinion of many of those who insist upon their importance, are by no means merely due to unsatisfied sexual desire. They may be pronounced even when the woman herself has not the slightest consciousness of sexual needs. This was clearly pointed out forty years ago by the sagacious Anstie (_op. cit._) In women, especially, he remarks, "a certain restless hyperactivity of mind, and perhaps of body also, seems to be the expression of Nature's unconscious resentment of the _neglect of sexual functions_." Such women, he adds, have kept themselves free from masturbation "at the expense of a perpetual and almost fierce activity of mind and muscle." Anstie had found that some of the worst cases of the form of nervosity and neurasthenia which he termed "spinal irritation," often accompanied by irritable stomach and anæmia, get well on marriage. "There can be no question," he continues, "that a very large proportion of these cases in single women (who form by far the greater number of subjects of spinal irritation) are due to this conscious or unconscious irritation kept up by an unsatisfied sexual want. It is certain that very many young persons (women more especially) are tormented by the irritability of the sexual organs without having the least consciousness of sexual desire, and present the sad spectacle of a _vie manquée_ without ever knowing the true source of the misery which incapacitates them for all the active duties of life. It is a singular fact that in occasional instances one may even see two sisters, inheriting the same kind of nervous organization, both tormented with the symptoms of spinal irritation and both probably suffering from repressed sexual functions, but of whom one shall be pure-minded and entirely unconscious of the real source of her troubles, while the other is a victim to conscious

and fruitless sexual irritation." In this matter Anstie may be regarded as a forerunner of Freud, who has developed with great subtlety and analytic power the doctrine of the transformation of repressed sexual instinct in women into morbid forms. He considers that the nervosity of to-day is largely due to the injurious action on the sexual life of that repression of natural instincts on which our civilization is built up. (Perhaps the clearest brief statement of Freud's views on the matter is to be found in a very suggestive article, "Die 'Kulturelle' Sexualmoral und die Moderne Nervosität," in _Sexual-Probleme_, March, 1908, reprinted in the second series of Freud's _Sammlung Kleiner Schriften zur Neurosenlehre_, 1909). We possess the aptitude, he says, of sublimating and transforming our sexual activities into other activities of a psychically related character, but non-sexual. This process cannot, however, be carried out to an unlimited extent any more than can the conversion of heat into mechanical work in our machines. A certain amount of direct sexual satisfaction is for most organizations indispensable, and the renunciation of this individually varying amount is punished by manifestations which we are compelled to regard as morbid. The process of sublimation, under the influence of civilization, leads both to sexual perversions and to psycho-neuroses. These two conditions are closely related, as Freud views the process of their development; they stand to each other as positive and negative, sexual perversions being the positive pole and psycho-neuroses the negative. It often happens, he remarks, that a brother may be sexually perverse, while his sister, with a weaker sexual temperament, is a neurotic whose symptoms are a transformation of her brother's perversion; while in many families the men are immoral, the women pure and refined but highly nervous. In the case of women who have no defect of sexual impulse there is yet the same pressure of civilized morality pushing them into neurotic states. It is a terribly serious injustice, Freud remarks, that the civilized standard of sexual life is the same for all persons, because though some, by their organization, may easily accept it, for others it involves the most difficult psychic sacrifices. The unmarried girl, who has become nervously weak, cannot be advised to seek relief in marriage, for she must be strong in order to "bear" marriage, while we urge a man on no account to marry a girl who is not strong. The married woman who has experienced the deceptions of marriage has usually no way of relief left but by abandoning her virtue. "The more strenuously she has been educated, and the more completely she has been subjected to the demands of civilization, the more she fears this way of escape, and in the conflict between her desires and her sense of duty, she also seeks refuge--in neurosis. Nothing protects her virtue so surely as disease." Taking a still wider view of the influence of the narrow "civilized" conception of sexual morality on women, Freud finds that it is not limited to the production of neurotic conditions; it affects the whole intellectual aptitude of women. Their education denies them any occupation with sexual problems, although such problems are so full of interest to them, for it inculcates the ancient prejudice that any curiosity in such matters is unwomanly and a proof of wicked inclinations. They are thus terrified from thinking, and knowledge is deprived of worth. The prohibition to think extends, automatically and inevitably, far beyond the sexual sphere. "I do not believe," Freud concludes, "that there is any opposition between intellectual work and sexual activity such as was supposed by Möbius. I am of opinion that the unquestionable fact of the intellectual inferiority of so many

women is due to the inhibition of thought imposed upon them for the purpose of sexual repression."

It is only of recent years that this problem has been realized and faced, though solitary thinkers, like Hinton, have been keenly conscious of its existence; for "sorrowing virtue," as Mrs. Ella Wheeler Wilcox puts it, "is more ashamed of its woes than unhappy sin, because the world has tears for the latter and only ridicule for the former." "It is an almost cynical trait of our age," Hellpach wrote a few years ago, "that it is constantly discussing the theme of prostitution, of police control, of the age of consent, of the 'white slavery,' and passes over the moral struggle of woman's soul without an attempt to answer her burning questions."

On the other hand we find medical writers not only asserting with much moral fervor that sexual intercourse outside marriage is always and altogether unnecessary, but declaring, moreover, the harmlessness or even the advantages of sexual abstinence.

Ribbing, the Swedish professor, in his _Hygiène Sexuelle_, advocates sexual abstinence outside marriage, and asserts its harmlessness. Gilles de la Tourette, Féré, and Augagneur in France agree. In Germany Fürbringer (Senator and Kaminer, _Health and Disease in Relation to Marriage_, vol. i, p. 228) asserts that continence is possible and necessary, though admitting that it may, however, mean serious mischief in exceptional cases. Eulenburg (_Sexuale Neuropathie_, p. 14) doubts whether anyone, who otherwise lived a reasonable life, ever became ill, or more precisely neurasthenic, through sexual abstinence. Hegar, replying to the arguments of Bebel in his well-known book on women, denies that sexual abstinence can ever produce satyriasis or nymphomania. Näcke, who has frequently discussed the problem of sexual abstinence (e.g., _Archiv für Kriminal-Anthropologie_, 1903, Heft 1, and _Sexual-Probleme_, June, 1908), maintains that sexual abstinence can, at most, produce rare and slight unfavorable results, and that it is no more likely to produce insanity, even in predisposed individuals, than are the opposite extremes of sexual excess and masturbation. He adds that, so far as his own observations are concerned, the patients in asylums suffer scarcely at all from their compulsory sexual abstinence.

It is in England, however, that the virtues of sexual abstinence have been most loudly and emphatically proclaimed, sometimes indeed with considerable lack of cautious qualification. Acton, in his _Reproductive Organs_, sets forth the traditional English view, as well as Beale in his _Morality and the Moral Question_. A more distinguished representative of the same view was Paget, who, in his lecture on "Sexual Hypochondriasis," coupled sexual intercourse with "theft or lying." Sir William Gowers (_Syphilis and the Nervous System_, 1892, p. 126) also proclaims the advantages of "unbroken chastity," more especially as a method of avoiding syphilis. He is not hopeful, however, even as regards his own remedy, for he adds: "We can trace small ground for hope that the disease will thus be materially reduced." He would still, however, preach chastity to the individual, and he does so with all the ascetic ardor of a mediæval monk. "With all the force that any knowledge I possess, and any authority I have, can give, I assert that no man ever yet was in the slightest degree or way the worse for continence or better for incontinence. From the latter all

are worse morally; a clear majority are worse physically; and in no small number the result is, and ever will be, utter physical shipwreck on one of the many rocks, sharp, jagged-edged, which beset the way, or on one of the many beds of festering slime which no care can possibly avoid." In America the same view widely prevails, and Dr. J.F. Scott, in his _Sexual-Instinct_ (second edition, 1908, Ch. III), argues very vigorously and at great length in favor of sexual abstinence. He will not even admit that there are two sides to the question, though if that were the case, the length and the energy of his arguments would be unnecessary.

Among medical authorities who have discussed the question of sexual abstinence at length it is not, indeed, usually possible to find such unqualified opinions in its favor as those I have quoted. There can be no doubt, however, that a large proportion of physicians, not excluding prominent and distinguished authorities, when casually confronted with the question whether sexual abstinence is harmless, will at once adopt the obvious path of least resistance and reply: Yes. In only a few cases will they even make any qualification of this affirmative answer. This tendency is very well illustrated by an inquiry made by Dr. Ludwig Jacobsohn, of St. Petersburgh ("Die Sexuelle Enthaltsamkeit im Lichte der Medizin," _St. Petersburger Medicinische Wochenschrift_, March 17, 1907). He wrote to over two hundred distinguished Russian and German professors of physiology, neurology, psychiatry, etc., asking them if they regarded sexual abstinence as harmless. The majority returned no answer; eleven Russian and twenty-eight Germans replied, but four of them merely said that "they had no personal experience," etc.; there thus remained thirty-five. Of these E. Pflüger, of Bonn, was skeptical of the advantage of any propaganda of abstinence: "if all the authorities in the world declared the harmlessness of abstinence that would have no influence on youth. Forces are here in play that break through all obstacles." The harmlessness of abstinence was affirmed by Kräpelin, Cramer, Gärtner, Tuczek, Schottelius, Gaffky, Finkler, Selenew, Lassar, Seifert, Gruber; the last, however, added that he knew very few abstinent young men, and himself only considered abstinence good before full development, and intercourse not dangerous in moderation even before then. Brieger knew cases of abstinence without harmful results, but himself thought that no general opinion could be given. Jürgensen said that abstinence _in itself_ is not harmful, but that in some cases intercourse exerts a more beneficial influence. Hoffmann said that abstinence is harmless, adding that though it certainly leads to masturbation, that is better than gonorrhoea, to say nothing of syphilis, and is easily kept within bounds. Strümpell replied that sexual abstinence is harmless, and indirectly useful as preserving from the risk of venereal disease, but that sexual intercourse, being normal, is always more desirable. Hensen said that abstinence is not to be unconditionally approved. Rumpf replied that abstinence was not harmful for most before the age of thirty, but after that age there was a tendency to mental obsessions, and marriage should take place at twenty-five. Leyden also considered abstinence harmless until towards thirty, when it leads to psychic anomalies, especially states of anxiety, and a certain affectation. Hein replied that abstinence is harmless for most, but in some leads to hysterical manifestations and indirectly to bad results from masturbation, while for the normal man abstinence cannot be directly beneficial, since intercourse is natural.

Grützner thought that abstinence is almost never harmful. Nescheda said it is harmless in itself, but harmful in so far as it leads to unnatural modes of gratification. Neisser believes that more prolonged abstinence than is now usual would be beneficial, but admitted the sexual excitations of our civilization; he added that of course he saw no harm for healthy men in intercourse. Hoche replied that abstinence is quite harmless in normal persons, but not always so in abnormal persons. Weber thought it had a useful influence in increasing will-power. Tarnowsky said it is good in early manhood, but likely to be unfavorable after twenty-five. Orlow replied that, especially in youth, it is harmless, and a man should be as chaste as his wife. Popow said that abstinence is good at all ages and preserves the energy. Blumenau said that in adult age abstinence is neither normal nor beneficial, and generally leads to masturbation, though not generally to nervous disorders; but that even masturbation is better than syphilis. Tschiriew saw no harm in abstinence up to thirty, and thought sexual weakness more likely to follow excess than abstinence. Tschish regarded abstinence as beneficial rather than harmful up to twenty-five or twenty-eight, but thought it difficult to decide after that age when nervous alterations seem to be caused. Darkschewitcz regarded abstinence as harmless up to twenty-five. Fränkel said it was harmless for most, but that for a considerable proportion of people intercourse is a necessity. Erb's opinion is regarded by Jacobsohn as standing alone; he placed the age below which abstinence is harmless at twenty; after that age he regarded it as injurious to health, seriously impeding work and capacity, while in neurotic persons it leads to still more serious results. Jacobsohn concludes that the general opinion of those answering the inquiry may thus be expressed: "Youth should be abstinent. Abstinence can in no way injure them; on the contrary, it is beneficial. If our young people will remain abstinent and avoid extra-conjugal intercourse they will maintain a high ideal of love and preserve themselves from venereal diseases."

The harmlessness of sexual abstinence was likewise affirmed in America in a resolution passed by the American Medical Association in 1906. The proposition thus formally accepted was thus worded: "Continence is not incompatible with health." It ought to be generally realized that abstract propositions of this kind are worthless, because they mean nothing. Every sane person, when confronted by the demand to boldly affirm or deny the proposition, "Continence is not incompatible with health," is bound to affirm it. He might firmly believe that continence is incompatible with the health of most people, and that prolonged continence is incompatible with anyone's health, and yet, if he is to be honest in the use of language, it would be impossible for him to deny the vague and abstract proposition that "Continence is not incompatible with health." Such propositions are therefore not only without value, but actually misleading.

It is obvious that the more extreme and unqualified opinions in favor of sexual abstinence are based not on medical, but on what the writers regard as moral considerations. Moreover, as the same writers are usually equally emphatic in regard to the advantages of sexual intercourse in marriage, it is clear that they have committed themselves to a contradiction. The same act, as Näcke rightly points out, cannot become good or bad according as it is performed in or out of marriage. There is no magic efficacy in a few words pronounced by a priest or a government official.

Remondino (loc. cit.) remarks that the authorities who have committed themselves to declarations in favor of the unconditional advantages of sexual abstinence tend to fall into three errors: (1) they generalize unduly, instead of considering each case individually, on its own merits; (2) they fail to realize that human nature is influenced by highly mixed and complex motives and cannot be assumed to be amenable only to motives of abstract morality; (3) they ignore the great army of masturbators and sexual perverts who make no complaint of sexual suffering, but by maintaining a rigid sexual abstinence, so far as normal relationships are concerned, gradually drift into currents whence there is no return.

Between those who unconditionally affirm or deny the harmlessness of sexual abstinence we find an intermediate party of authorities whose opinions are more qualified. Many of those who occupy this more guarded position are men whose opinions carry much weight, and it is probable that with them rather than with the more extreme advocates on either side the greater measure of reason lies. So complex a question as this cannot be adequately investigated merely in the abstract, and settled by an unqualified negative or affirmative. It is a matter in which every case requires its own special and personal consideration.

"Where there is such a marked opposition of opinion truth is not exclusively on one side," remarks Löwenfeld (_Sexualleben und Nervenleiden_, second edition, p. 40). Sexual abstinence is certainly often injurious to neuropathic persons. (This is now believed by a large number of authorities, and was perhaps first decisively stated by Krafft-Ebing, "Ueber Neurosen durch Abstinenz," _Jahrbuch für Psychiatrie_, 1889, p. 1). Löwenfeld finds no special proclivity to neurasthenia among the Catholic clergy, and when it does occur, there is no reason to suppose a sexual causation. "In healthy and not hereditarily neuropathic men complete abstinence is possible without injury to the nervous system." Injurious effects, he continues, when they appear, seldom occur until between twenty-four and thirty-six years of age, and even then are not usually serious enough to lead to a visit to a doctor, consisting mainly in frequency of nocturnal emissions, pain in testes or rectum, hyperæsthesia in the presence of women or of sexual ideas. If, however, conditions arise which specially stimulate the sexual emotions, neurasthenia may be produced. Löwenfeld agrees with Freud and Gattel that the neurosis of anxiety tends to occur in the abstinent, careful examination showing that the abstinence is a factor in its production in both sexes. It is common among young women married to much older men, often appearing during the first years of marriage. Under special circumstances, therefore, abstinence can be injurious, but on the whole the difficulties due to such abstinence are not severe, and they only exceptionally call forth actual disturbance in the nervous or psychic spheres. Moll takes a similar temperate and discriminating view. He regards sexual abstinence before marriage as the ideal, but points out that we must avoid any doctrinal extremes in preaching sexual abstinence, for such preaching will merely lead to hypocrisy. Intercourse with prostitutes, and the tendency to change a woman like a garment, induce loss of sensitiveness to the spiritual and personal element in woman, while the dangers of sexual abstinence must no more be exaggerated than the dangers of sexual intercourse (Moll, _Libido Sexualis_, 1898, vol. i, p. 848; id., _Konträre Sexualempfindung_, 1899, p. 588). Bloch also (in a chapter on the question

of sexual abstinence in his _Sexualleben unserer Zeit_, 1908) takes a similar standpoint. He advocates abstention during early life and temporary abstention in adult life, such abstention being valuable, not only for the conservation and transformation of energy, but also to emphasize the fact that life contains other matters to strive for beyond the ends of sex. Redlich (_Medizinische Klinik_, 1908, No. 7) also, in a careful study of the medical aspects of the question, takes an intermediate standpoint in relation to the relative advantages and disadvantages of sexual abstinence. "We may say that sexual abstinence is not a condition which must, under all circumstances and at any price, be avoided, though it is true that for the majority of healthy adult persons regular sexual intercourse is advantageous, and sometimes is even to be recommended."

It may be added that from the standpoint of Christian religious morality this same attitude, between the extremes of either party, recognizing the advantages of sexual abstinence, but not insisting that they shall be purchased at any price, has also found representation. Thus, in England, an Anglican clergyman, the Rev. H. Northcote (_Christianity and Sex Problems_, pp. 58, 60) deals temperately and sympathetically with the difficulties of sexual abstinence, and is by no means convinced that such abstinence is always an unmixed advantage; while in Germany a Catholic priest, Karl Jentsch (_Sexualethik, Sexualjustiz, Sexualpolizei_, 1900) sets himself to oppose the rigorous and unqualified assertions of Ribbing in favor of sexual abstinence. Jentsch thus expresses what he conceives ought to be the attitude of fathers, of public opinion, of the State and the Church towards the young man in this matter: "Endeavor to be abstinent until marriage. Many succeed in this. If you can succeed, it is good. But, if you cannot succeed, it is unnecessary to cast reproaches on yourself and to regard yourself as a scoundrel or a lost sinner. Provided that you do not abandon yourself to mere enjoyment or wantonness, but are content with what is necessary to restore your peace of mind, self-possession, and cheerful capacity for work, and also that you observe the precautions which physicians or experienced friends impress upon you."

When we thus analyze and investigate the the three main streams of expert opinions in regard to this question of sexual abstinence--the opinions in favor of it, the opinions in opposition to it, and the opinions which take an intermediate course--we can scarcely fail to conclude how unsatisfactory the whole discussion is. The state of "sexual abstinence" is a completely vague and indefinite state. The indefinite and even meaningless character of the expression "sexual abstinence" is shown by the frequency with which those who argue about it assume that it can, may, or even must, involve masturbation. That fact alone largely deprives it of value as morality and altogether as abstinence. At this point, indeed, we reach the most fundamental criticism to which the conception of "sexual abstinence" lies open. Rohleder, an experienced physician and a recognized authority on questions of sexual pathology, has submitted the current views on "sexual abstinence" to a searching criticism in a lengthy and important paper.[95] He denies altogether that strict sexual abstinence exists at all. "Sexual abstinence," he points out, in any strict scenes of the term, must involve abstinence not merely from sexual intercourse but from auto-erotic manifestations, from masturbation, from homosexual acts, from all sexually perverse

practices. It must further involve a permanent abstention from indulgence in erotic imaginations and voluptuous reverie. When, however, it is possible thus to render the whole psychic field a _tabula rasa_ so far as sexual activity is concerned--and if it fails to be so constantly and consistently there is no strict sexual abstinence--then, Rohleder points out, we have to consider whether we are not in presence of a case of sexual anæsthesia, of _anaphrodisia sexualis_. That is a question which is rarely, if ever, faced by those who discuss sexual abstinence. It is, however, an extremely pertinent question, because, as Rohleder insists, if sexual anæsthesia exists the question of sexual abstinence falls to the ground, for we can only "abstain" from actions that are in our power. Complete sexual anæsthesia is, however, so rare a state that it may be practically left out of consideration, and as the sexual impulse, if it exists, must by physiological necessity sometimes become active in some shape--even if only, according to Freud's view, by transformation into some morbid neurotic condition--we reach the conclusion that "sexual abstinence" is strictly impossible. Rohleder has met with a few cases in which there seemed to him no escape from the conclusion that sexual abstinence existed, but in all of these he subsequently found that he was mistaken, usually owing to the practice of masturbation, which he believes to be extremely common and very frequently accompanied by a persistent attempt to deceive the physician concerning its existence. The only kind of "sexual abstinence" that exists is a partial and temporary abstinence. Instead of saying, as some say, "Permanent abstinence is unnatural and cannot exist without physical and mental injury," we ought to say, Rohleder believes, "Permanent abstinence is unnatural and has never existed."

It is impossible not to feel as we contemplate this chaotic mass of opinions, that the whole discussion is revolving round a purely negative idea, and that fundamental fact is responsible for what at first seem to be startling conflicts of statement. If indeed we were to eliminate what is commonly regarded as the religious and moral aspect of the matter--an aspect, be it remembered, which has no bearing on the essential natural facts of the question--we cannot fail to perceive that these ostentatious differences of conviction would be reduced within very narrow and trifling limits.

We cannot strictly coordinate the impulse of reproduction with the impulse of nutrition. There are very important differences between them, more especially the fundamental difference that while the satisfaction of the one impulse is absolutely necessary both to the life of the individual and of the race, the satisfaction of the other is absolutely necessary only to the life of the race. But when we reduce this question to one of "sexual abstinence" we are obviously placing it on the same basis as that of abstinence from food, that is to say at the very opposite pole to which we place it when (as in the previous chapter) we consider it from the point of view of asceticism and chastity. It thus comes about that on this negative basis there really is an interesting analogy between nutritive abstinence, though necessarily only maintained incompletely and for a short time, and sexual abstinence, maintained more completely and for a longer time. A patient of Janet's seems to bring out clearly this resemblance. Nadia, whom Janet was able to study during five years, was a young woman of twenty-seven, healthy and intelligent, not suffering from hysteria nor

from anorexia, for she had a normal appetite. But she had an idea; she was anxious to be slim and to attain this end she cut down her meals to the smallest size, merely a little soup and a few eggs. She suffered much from the abstinence she thus imposed on herself, and was always hungry, though sometimes her hunger was masked by the inevitable stomach trouble caused by so long a persistence in this _régime_. At times, indeed, she had been so hungry that she had devoured greedily whatever she could lay her hands on, and not infrequently she could not resist the temptation to eat a few biscuits in secret. Such actions caused her horrible remorse, but, all the same, she would be guilty of them again. She realized the great efforts demanded by her way of life, and indeed looked upon herself as a heroine for resisting so long. "Sometimes," she told Janet, "I passed whole hours in thinking about food, I was so hungry. I swallowed my saliva, I bit my handkerchief, I rolled on the ground, I wanted to eat so badly. I searched books for descriptions of meals and feasts, I tried to deceive my hunger by imagining that I too was enjoying all these good things. I was really famished, and in spite of a few weaknesses for biscuits I know that I showed much courage."[96] Nadia's motive idea, that she wished to be slim, corresponds to the abstinent man's idea that he wishes to be "moral," and only differs from it by having the advantage of being somewhat more positive and personal, for the idea of the person who wishes to avoid sexual indulgence because it is "not right" is often not merely negative but impersonal and imposed by the social and religious environment. Nadia's occasional outbursts of reckless greediness correspond to the sudden impulses to resort to prostitution, and her secret weaknesses for biscuits, followed by keen remorse, to lapses into the habit of masturbation. Her fits of struggling and rolling on the ground are precisely like the outbursts of futile desire which occasionally occur to young abstinent men and women in health and strength. The absorption in thoughts about meals and in literary descriptions of meals is clearly analogous to the abstinent man's absorption in wanton thoughts and erotic books. Finally, Nadia's conviction that she is a heroine corresponds exactly to the attitude of self-righteousness which often marks the sexually abstinent.

If we turn to Freud's penetrating and suggestive study of the problem of sexual abstinence in relation to "civilized" sexual morality, we find that, though he makes no reference to the analogy with abstinence from food, his words would for the most part have an equal application to both cases. "The task of subduing so powerful an instinct as the sexual impulse, otherwise than by giving it satisfaction," he writes, "is one which may employ the whole strength of a man. Subjugation through sublimation, by guiding the sexual forces into higher civilizational paths, may succeed with a minority, and even with these only for a time, least easily during the years of ardent youthful energy. Most others become neurotic or otherwise come to grief. Experience shows that the majority of people constituting our society are constitutionally unequal to the task of abstinence. We say, indeed, that the struggle with this powerful impulse and the emphasis the struggle involves on the ethical and æsthetic forces in the soul's life 'steels' the character, and for a few favorably organized natures this is true; it must also be acknowledged that the differentiation of individual character so marked in our time only becomes possible through sexual limitations. But in by far the majority of cases the struggle with sensuality uses up the

available energy of character, and this at the very time when the young man needs all his strength in order to win his place in the world."[97]

When we have put the problem on this negative basis of abstinence it is difficult to see how we can dispute the justice of Freud's conclusions. They hold good equally for abstinence from food and abstinence from sexual love. When we have placed the problem on a more positive basis, and are able to invoke the more active and fruitful motives of asceticism and chastity this unfortunate fight against a natural impulse is abolished. If chastity is an ideal of the harmonious play of all the organic impulses of the soul and body, if asceticism, properly understood, is the athletic striving for a worthy object which causes, for the time, an indifference to the gratification of sexual impulses, we are on wholesome and natural ground, and there is no waste of energy in fruitless striving for a negative end, whether imposed artificially from without, as it usually is, or voluntarily chosen by the individual himself.

For there is really no complete analogy between sexual desire and hunger, between abstinence from sexual relations and abstinence from food. When we put them both on the basis of abstinence we put them on a basis which covers the impulse for food but only half covers the impulse for sexual love. We confer no pleasure and no service on our food when we eat it. But the half of sexual love, perhaps the most important and ennobling half, lies in what we give and not in what we take. To reduce this question to the low level of abstinence, is not only to centre it in a merely negative denial but to make it a solely self-regarding question. Instead of asking: How can I bring joy and strength to another? we only ask: How can I preserve my empty virtue?

Therefore it is that from whatever aspect we consider the question,--whether in view of the flagrant contradiction between the authorities who have discussed this question, or of the illegitimate mingling here of moral and physiological considerations, or of the merely negative and indeed unnatural character of the "virtue" thus set up, or of the failure involved to grasp the ennoblingly altruistic and mutual side of sexual love,--from whatever aspect we approach the problem of "sexual abstinence" we ought only to agree to do so under protest.

If we thus decide to approach it, and if we have reached the conviction--which, in view of all the evidence we can scarcely escape--that, while sexual abstinence in so far as it may be recognized as possible is not incompatible with health, there are yet many adults for whom it is harmful, and a very much larger number for whom when prolonged it is undesirable, we encounter a serious problem. It is a problem which confronts any person, and especially the physician, who may be called upon to give professional advice to his fellows on this matter. If sexual relationships are sometimes desirable for unmarried persons, or for married persons who, for any reason, are debarred from conjugal union, is a physician justified in recommending such sexual relationships to his patient? This is a question that has frequently been debated and decided in opposing senses.

Various distinguished physicians, especially in Germany, have proclaimed the duty of the doctor to recommend sexual intercourse to his patient whenever he considers

it desirable. Gyurkovechky, for instance, has fully discussed this question, and answered it in the affirmative. Nyström (_Sexual-Probleme_, July, 1908, p. 413) states that it is the physician's duty, in some cases of sexual weakness, when all other methods of treatment have failed, to recommend sexual intercourse as the best remedy. Dr. Max Marcuse stands out as a conspicuous advocate of the unconditional duty of the physician to advocate sexual intercourse in some cases, both to men and to women, and has on many occasions argued in this sense (e.g., _Darf der Arzt zum Ausserehelichen Geschlechtsverkehr raten?_ 1904). Marcuse is strongly of opinion that a physician who, allowing himself to be influenced by moral, sociological, or other considerations, neglects to recommend sexual intercourse when he considers it desirable for the patient's health, is unworthy of his profession, and should either give up medicine or send his patients to other doctors. This attitude, though not usually so emphatically stated, seems to be widely accepted. Lederer goes even further when he states (_Monatsschrift für Harnkrankheiten und Sexuelle Hygiene_, 1906, Heft 3) that it is the physician's duty in the case of a woman who is suffering from her husband's impotence, to advise her to have intercourse with another man, adding that "whether she does so with her husband's consent is no affair of the physician's, for he is not the guardian of morality, but the guardian of health." The physicians who publicly take this attitude are, however, a small minority. In England, so far as I am aware, no physician of eminence has openly proclaimed the duty of the doctor to advise sexual intercourse outside marriage, although, it is scarcely necessary to add, in England, as elsewhere, it happens that doctors, including women doctors, from time to time privately point out to their unmarried and even married patients, that sexual intercourse would probably be beneficial.

The duty of the physician to recommend sexual intercourse has been denied as emphatically as it has been affirmed. Thus Eulenburg (_Sexuale Neuropathie_, p. 43), would by no means advise extra-conjugal relations to his patient; "such advice is quite outside the physician's competence." It is, of course, denied by those who regard sexual abstinence as always harmless, if not beneficial. But it is also denied by many who consider that, under some circumstances, sexual intercourse would do good.

Moll has especially, and on many occasions, discussed the duty of the physician in relation to the question of advising sexual intercourse outside marriage (e.g., in his comprehensive work, _Aerztliche Ethik_, 1902; also _Zeitschrift für Aerztliche Fortbildung_, 1905, Nos. 12-15; _Mutterschutz_, 1905, Heft 3; _Geschlecht und Gesellschaft_, vol. ii, Heft 8). At the outset Moll had been disposed to assert the right of the physician to recommend sexual intercourse under some circumstances; "so long as marriage is unduly delayed and sexual intercourse outside marriage exists," he wrote (_Die Conträre Sexualempfindung_, second edition, p. 287), "so long, I think, we may use such intercourse therapeutically, provided that the rights of no third person (husband or wife) are injured." In all his later writings, however, Moll ranges himself clearly and decisively on the opposite side. He considers that the physician has no right to overlook the possible results of his advice in inflicting venereal disease, or, in the case of a woman, pregnancy, on his patient, and he believes that these serious results are far more likely to happen than is always admitted by those who defend the legitimacy of such advice. Nor will Moll admit that the physician is

entitled to overlook the moral aspects of the question. A physician may know that a poor man could obtain many things good for his health by stealing, but he cannot advise him to steal. Moll takes the case of a Catholic priest who is suffering from neurasthenia due to sexual abstinence. Even although the physician feels certain that the priest may be able to avoid all the risks of disease as well as of publicity, he is not entitled to urge him to sexual intercourse. He has to remember that in thus causing a priest to break his vows of chastity he may induce a mental conflict and a bitter remorse which may lead to the worst results, even on his patient's physical health. Similar results, Moll remarks, may follow such advice when given to a married man or woman, to say nothing of possible divorce proceedings and accompanying evils.

Rohleder (_Vorlesungen über Geschlechtstrieb und Gesamtes Geschlechtsleben der Menschen_) adopts a somewhat qualified attitude in this matter. As a general rule he is decidedly against recommending sexual intercourse outside marriage to those who are suffering from partial or temporary abstinence (the only form of abstinence he recognizes), partly on the ground that the evils of abstinence are not serious or permanent, and partly because the patient is fairly certain to exercise his own judgment in the matter. But in some classes of cases he recommends such intercourse, and notably to bisexual persons, on the ground that he is thus preserving his patient from the criminal risks of homosexual practices.

It seems to me that there should be no doubt whatever as to the correct professional attitude of the physician in relation to this question of advice concerning sexual intercourse. The physician is never entitled to advise his patient to adopt sexual intercourse outside marriage nor any method of relief which is commonly regarded as illegitimate. It is said that the physician has nothing to do with considerations of conventional morality. If he considers that champagne would be good for a poor patient he ought to recommend him to take champagne; he is not called upon to consider whether the patient will beg, borrow, or steal the champagne. But, after all, even if that be admitted, it must still be said that the physician knows that the champagne, however obtained, is not likely to be poisonous. When, however, he prescribes sexual intercourse, with the same lofty indifference to practical considerations, he has no such knowledge. In giving such a prescription the physician has in fact not the slightest knowledge of what he may be prescribing. He may be giving his patient a venereal disease; he may be giving the anxieties and responsibilities of an illegitimate child; the prescriber is quite in the dark. He is in the same position as if he had prescribed a quack medicine of which the composition was unknown to him, with the added disadvantage that the medicine may turn out to be far more potently explosive than is the case with the usually innocuous patent medicine. The utmost that a physician can properly permit himself to do is to put the case impartially before his patient and to present to him all the risks. The solution must be for the patient himself to work out, as best he can, for it involves social and other considerations which, while they are indeed by no means outside the sphere of medicine, are certainly entirely outside the control of the individual private practitioner of medicine.

Moll also is of opinion that this impartial presentation of the case for and against sexual intercourse corresponds to the physician's duty in the matter. It is, indeed, a duty which can scarcely be escaped by the physician in many cases. Moll points out that it can by no means be assimilated, as some have supposed, with the recommendation of sexual intercourse. It is, on the contrary, he remarks, much more analogous to the physician's duty in reference to operations. He puts before the patient the nature of the operation, its advantages and its risks, but he leaves it to the patient's judgment to accept or reject the operation. Lewitt also (_Geschlechtliche Enthaltsamkeit und Gesundheitsstörungen_, 1905), after discussing the various opinions on this question, comes to the conclusion that the physician, if he thinks that intercourse outside marriage might be beneficial, should explain the difficulties and leave the patient himself to decide.

There is another reason why, having regard to the prevailing moral opinions at all events among the middle classes, a physician should refrain from advising extra-conjugal intercourse: he places himself in a false relation to his social environment. He is recommending a remedy the nature of which he could not publicly avow, and so destroying the public confidence in himself. The only physician who is morally entitled to advise his patients to enter into extra-conjugal relationships is one who openly acknowledges that he is prepared to give such advice. The doctor who is openly working for social reform has perhaps won the moral right to give advice in accordance with the tendency of his public activity, but even then his advice may be very dubiously judicious, and he would be better advised to confine his efforts at social reform to his public activities. The voice of the physician, as Professor Max Flesch of Frankfort observes, is more and more heard in the development and new growth of social institutions; he is a natural leaders in such movements, and proposals for reform properly come from him. "But," as Flesch continues, "publicly to accept the excellence of existing institutions and in the privacy of the consulting-room to give advice which assumes the imperfection of those institutions is illogical and confusing. It is the physician's business to give advice which is in accordance with the interests of the community as a whole, and those interests require that sexual relationships should be entered into between healthy men and women who are able and willing to accept the results of their union. That should be the physician's rule of conduct. Only so can he become, what to-day he is often proclaimed to be, the leader of the nation."[98] This view is not, as we see, entirely in accord with that which assumes that the physician's duty is solely and entirely to his patient, without regard to the bearing of his advice on social conduct. The patient's interests are primary, but they are not entitled to be placed in antagonism to the interests of society. The advice given by the wise physician must always be in harmony with the social and moral tone of his age. Thus it is that the tendency among the younger generation of physicians to-day to take an active interest in raising that tone and in promoting social reform--a tendency which exists not only in Germany where such interests have long been acute, but also in so conservative a land as England--is full of promise for the future.

The physician is usually content to consider his duty to his patient in relationship to sexual abstinence as sufficiently fulfilled when he attempts to allay sexual

hyperæsthesia by medical or hygienic treatment. It can scarcely be claimed, however, that the results of such treatment are usually satisfactory, and sometimes indeed the treatment has a result which is the reverse of that intended. The difficulty generally is that in order to be efficacious the treatment must be carried to an extreme which exhausts or inhibits not only the genital activities alone but the activities of the whole organism, and short of that it may prove a stimulant rather than a sedative. It is difficult and usually impossible to separate out a man's sexual activities and bring influence to bear on these activities alone. Sexual activity is so closely intertwined with the other organic activities, erotic exuberance is so much a flower which is rooted in the whole organism, that the blow which crushes it may strike down the whole man. The bromides are universally recognized as powerful sexual sedatives, but their influence in this respect only makes itself felt when they have dulled all the finest energies of the organism. Physical exercise is universally recommended to sexually hyperæsthetic patients. Yet most people, men and women, find that physical exercise is a positive stimulus to sexual activity. This is notably so as regards walking, and exuberantly energetic young women who are troubled by the irritant activity of their healthy sexual emotions sometimes spend a large part of their time in the vain attempt to lull their activity by long walks. Physical exercise only proves efficacious in this respect when it is carried to an extent which produces general exhaustion. Then indeed the sexual activity is lulled; but so are all the mental and physical activities. It is undoubtedly true that exercises and games of all sorts for young people of both sexes have a sexually hygienic as well as a generally hygienic influence which is undoubtedly beneficial. They are, on all grounds, to be preferred to prolonged sedentary occupations. But it is idle to suppose that games and exercises will suppress the sexual impulses, for in so far as they favor health, they favor all the impulses that are the result of health. The most that can be expected is that they may tend to restrain the manifestations of sex by dispersing the energy they generate.

There are many physical rules and precautions which are advocated, not without reason, as tending to inhibit or diminish sexual activity. The avoidance of heat and the cultivation of cold is one of the most important of these. Hot climates, a close atmosphere, heavy bed-clothing, hot baths, all tend powerfully to excite the sexual system, for that system is a peripheral sensory organ, and whatever stimulates the skin generally, stimulates the sexual system.[99] Cold, which contracts the skin, also deadens the sexual feelings, a fact which the ascetics of old knew and acted upon. The garments and the posture of the body are not without influence. Constriction or pressure in the neighborhood of the sexual region, even tight corsets, as well as internal pressure, as from a distended bladder, are sources of sexual irritation. Sleeping on the back, which congests the spinal centres, also acts in the same way, as has long been known by those who attend to sexual hygiene; thus it is stated that in the Franciscan order it is prohibited to lie on the back. Food and drink are, further, powerful sexual stimulants. This is true even of the simplest and most wholesome nourishment, but it is more especially true of flesh meat, and, above all, of alcohol in its stronger forms such as spirits, liqueurs, sparkling and heavy wines, and even many English beers. This has always been clearly realized by those who cultivate asceticism, and it is one of the powerful reasons why alcohol should not be given in

early youth. As St. Jerome wrote, when telling Eustochium that she must avoid wine like poison, "wine and youth are the two fires of lust. Why add oil to the flame?"[100] Idleness, again, especially when combined with rich living, promotes sexual activity, as Burton sets forth at length in his _Anatomy of Melancholy_, and constant occupation, on the other hand, concentrates the wandering activities.

Mental exercise, like physical exercise, has sometimes been advocated as a method of calming sexual excitement, but it seems to be equally equivocal in its action. If it is profoundly interesting and exciting it may stir up rather than lull the sexual emotions. If it arouses little interest it is unable to exert any kind of influence. This is true even of mathematical occupations which have been advocated by various authorities, including Broussais, as aids to sexual hygiene.[101] "I have tried mechanical mental work," a lady writes, "such as solving arithmetical or algebraic problems, but it does no good; in fact it seems only to increase the excitement." "I studied and especially turned my attention to mathematics," a clergyman writes, "with a view to check my sexual tendencies. To a certain extent I was successful. But at the approach of an old friend, a voice or a touch, these tendencies came back again with renewed strength. I found mathematics, however, the best thing on the whole to take off my attention from women, better than religious exercises which I tried when younger (twenty-two to thirty)." At the best, however, such devices are of merely temporary efficacy.

It is easier to avoid arousing the sexual impulses than to impose silence on them by hygienic measures when once they are aroused. It is, therefore, in childhood and youth that all these measures may be most reasonably observed in order to avoid any premature sexual excitement. In one group of stolidly normal children influences that might be expected to act sexually pass away unperceived. At the other extreme, another group of children are so neurotically and precociously sensitive that no precautions will preserve them from such influences. But between these groups there is another, probably much the largest, who resist slight sexual suggestions but may succumb to stronger or longer influences, and on these the cares of sexual hygiene may profitably be bestowed.[102]

After puberty, when the spontaneous and inner voice of sex may at any moment suddenly make itself heard, all hygienic precautions are liable to be flung to the winds, and even the youth or maiden most anxious to retain the ideals of chastity can often do little but wait till the storm has passed. It sometimes happens that a prolonged period of sexual storm and stress occurs soon after puberty, and then dies away although there has been little or no sexual gratification, to be succeeded by a period of comparative calm. It must be remembered that in many, and perhaps most, individuals, men and women, the sexual appetite, unlike hunger or thirst, can after a prolonged struggle, be reduced to a more or less quiescent state which, far from injuring, may even benefit the physical and psychic vigor generally. This may happen whether or not sexual gratification has been obtained. If there has never been any such gratification, the struggle is less severe and sooner over, unless the individual is of highly erotic temperament. If there has been gratification, if the mind is filled not merely with desires but with joyous experience to which the body also has grown accustomed, then the struggle is longer and more painfully absorbing. The

succeeding relief, however, if it comes, is sometimes more complete and is more likely to be associated with a state of psychic health. For the fundamental experiences of life, under normal conditions, bring not only intellectual sanity, but emotional pacification. A conquest of the sexual appetites which has never at any period involved a gratification of these appetites seldom produces results that commend themselves as rich and beautiful.

In these combats there are, however, no permanent conquests. For a very large number of people, indeed, though there may be emotional changes and fluctuations dependent on a variety of circumstances, there can scarcely be said to be any conquest at all. They are either always yielding to the impulses that assail them, or always resisting those impulses, in the first case with remorse, in the second with dissatisfaction. In either case much of their lives, at the time when life is most vigorous, is wasted. With women, if they happen to be of strong passions and reckless impulses to abandonment, the results may be highly enervating, if not disastrous to the general psychic life. It is to this cause, indeed, that some have been inclined to attribute the frequent mediocrity of women's work in artistic and intellectual fields. Women of intellectual force are frequently if not generally women of strong passions, and if they resist the tendency to merge themselves in the duties of maternity their lives are often wasted in emotional conflict and their psychic natures impoverished.[103]

The extent to which sexual abstinence and the struggles it involves may hamper and absorb the individual throughout life is well illustrated in the following case. A lady, vigorous, robust, and generally healthy, of great intelligence and high character, has reached middle life without marrying, or ever having sexual relationships. She was an only child, and when between three and four years of age, a playmate some six years older, initiated her into the habit of playing with her sexual parts. She was, however, at this age quite devoid of sexual feelings, and the habit dropped naturally, without any bad effects, as soon as she left the neighborhood of this girl a year or so later. Her health was good and even brilliant, and she developed vigorously at puberty. At the age of sixteen, however, a mental shock caused menstruation to diminish in amount during some years, and simultaneously with this diminution persistent sexual excitement appeared spontaneously, for the first time. She regarded such feelings as abnormal and unhealthy, and exerted all her powers of self-control in resisting them. But will power had no effect in diminishing the feelings. There was constant and imperious excitement, with the sense of vibration, tension, pressure, dilatation and tickling, accompanied, it may be, by some ovarian congestion, for she felt that on the left side there was a network of sexual nerves, and retroversion of the uterus was detected some years later. Her life was strenuous with many duties, but no occupation could be pursued without this undercurrent of sexual hyperæsthesia involving perpetual self-control. This continued more or less acutely for many years, when menstruation suddenly stopped altogether, much before the usual period of the climacteric. At the same time the sexual excitement ceased, and she became calm, peaceful, and happy. Diminished menstruation was associated with sexual excitement, but abundant menstruation and its complete absence were both accompanied by the relief of excitement. This lasted for two years. Then, for the

treatment of a trifling degree of anæmia, she was subjected to a long, and, in her case, injudicious course of hypodermic injections of strychnia. From that time, five years ago, up to the present, there has been constant sexual excitement, and she has always to be on guard lest she should be overtaken by a sexual spasm. Her torture is increased by the fact that her traditions make it impossible for her (except under very exceptional circumstances) to allude to the cause of her sufferings. "A woman is handicapped," she writes. "She may never speak to anyone on such a subject. She must live her tragedy alone, smiling as much as she can under the strain of her terrible burden." To add to her trouble, two years ago, she felt impelled to resort to masturbation, and has done so about once a month since; this not only brings no real relief, and leaves irritability, wakefulness, and dark marks under the eyes, but is a cause of remorse to her, for she regards masturbation as entirely abnormal and unnatural. She has tried to gain benefit, not merely by the usual methods of physical hygiene, but by suggestion, Christian Science, etc., but all in vain. "I may say," she writes, "that it is the most passionate desire of my heart to be freed from this bondage, that I may relax the terrible years-long tension of resistance, and be happy in my own way. If I had this affliction once a month, once a week, even twice a week, to stand against it would be child's play. I should scorn to resort to unnatural means, however moderately. But self-control itself has its revenges, and I sometimes feel as if it is no longer to be borne."

Thus while it is an immense benefit in physical and psychic development if the eruption of the disturbing sexual emotions can be delayed until puberty or adolescence, and while it is a very great advantage, after that eruption has occurred, to be able to gain control of these emotions, to crush altogether the sexual nature would be a barren, if not, indeed, a perilous victory, bringing with it no satisfaction. "If I had only had three weeks' happiness," said a woman, "I would not quarrel with Fate, but to have one's whole life so absolutely empty is horrible." If such vacuous self-restraint may, by courtesy, be termed a virtue, it is but a negative virtue. The persons who achieve it, as the result of congenitally feeble sexual aptitudes, merely (as Gyurkovechky, Fürbringer, and Löwenfeld have all alike remarked) made a virtue of their weakness. Many others, whose instincts were less weak, when they disdainfully put to flight the desires of sex in early life, have found that in later life that foe returns in tenfold force and perhaps in unnatural shapes.[104]

The conception of "sexual abstinence" is, we see, an entirely false and artificial conception. It is not only ill-adjusted to the hygienic facts of the case but it fails even to invoke any genuinely moral motive, for it is exclusively self-regarding and self-centred. It only becomes genuinely moral, and truly inspiring, when we transform it into the altruistic virtue of self-sacrifice. When we have done so we see that the element of abstinence in it ceases to be essential, "Self-sacrifice," writes the author of a thoughtful book on the sexual life, "is acknowledged to be the basis of virtue; the noblest instances of self-sacrifice are those dictated by sexual affection. Sympathy is the secret of altruism; nowhere is sympathy more real and complete than in love. Courage, both moral and physical, the love of truth and honor, the spirit of enterprise, and the admiration of moral worth, are all inspired by love as by nothing else in human nature. Celibacy denies itself that inspiration or restricts its influence,

according to the measure of its denial of sexual intimacy. Thus the deliberate adoption of a consistently celibate life implies the narrowing down of emotional and moral experience to a degree which is, from the broad scientific standpoint, unjustified by any of the advantages piously supposed to accrue from it."[105]

In a sane natural order all the impulses are centred in the fulfilment of needs and not in their denial. Moreover, in this special matter of sex, it is inevitable that the needs of others, and not merely the needs of the individual himself, should determine action. It is more especially the needs of the female which are the determining factor; for those needs are more various, complex and elusive, and in his attentiveness to their gratification the male finds a source of endless erotic satisfaction. It might be thought that the introduction of an altruistic motive here is merely the claim of theoretical morality insisting that there shall be a firm curb on animal instinct. But, as we have again and again seen throughout the long course of these _Studies_, it is not so. The animal instinct itself makes this demand. It is a biological law that rules throughout the zoölogical world and has involved the universality of courtship. In man it is only modified because in man sexual needs are not entirely concentrated in reproduction, but more or less penetrate the whole of life.

While from the point of view of society, as from that of Nature, the end and object of the sexual impulse is procreation, and nothing beyond procreation, that is by no means true for the individual, whose main object it must be to fulfil himself harmoniously with that due regard for others which the art of living demands. Even if sexual relationships had no connection with procreation whatever--as some Central Australian tribes believe--they would still be justifiable, and are, indeed, an indispensable aid to the best moral development of the individual, for it is only in so intimate a relationship as that of sex that the finest graces and aptitudes of life have full scope. Even the saints cannot forego the sexual side of life. The best and most accomplished saints from Jerome to Tolstoy--even the exquisite Francis of Assisi--had stored up in their past all the experiences that go to the complete realization of life, and if it were not so they would have been the less saints.

The element of positive virtue thus only enters when the control of the sexual impulse has passed beyond the stage of rigid and sterile abstinence and has become not merely a deliberate refusal of what is evil in sex, but a deliberate acceptance of what is good. It is only at that moment that such control becomes a real part of the great art of living. For the art of living, like any other art, is not compatible with rigidity, but lies in the weaving of a perpetual harmony between refusing and accepting, between giving and taking.[106]

The future, it is clear, belongs ultimately to those who are slowly building up sounder traditions into the structure of life. The "problem of sexual abstinence" will more and more sink into insignificance. There remain the great solid fact of love, the great solid fact of chastity. Those are eternal. Between them there is nothing but harmony. The development of one involves the development of the other.

It has been necessary to treat seriously this problem of "sexual abstinence" because we have behind us the traditions of two thousand years based on certain

ideals of sexual law and sexual license, together with the long effort to build up practices more or less conditioned by those ideals. We cannot immediately escape from these traditions even when we question their validity for ourselves. We have not only to recognize their existence, but also to accept the fact that for some time to come they must still to a considerable extent control the thoughts and even in some degree the actions of existing communities.

It is undoubtedly deplorable. It involves the introduction of an artificiality into a real natural order. Love is real and positive; chastity is real and positive. But sexual abstinence is unreal and negative, in the strict sense perhaps impossible. The underlying feelings of all those who have emphasized its importance is that a physiological process can be good or bad according as it is or is not carried out under certain arbitrary external conditions, which render it licit or illicit. An act of sexual intercourse under the name of "marriage" is beneficial; the very same act, under the name of "incontinence," is pernicious. No physiological process, and still less any spiritual process, can bear such restriction. It is as much as to say that a meal becomes good or bad, digestible or indigestible, according as a grace is or is not pronounced before the eating of it.

It is deplorable because, such a conception being essentially unreal, an element of unreality is thus introduced into a matter of the gravest concern alike to the individual and to society. Artificial disputes have been introduced where no matter of real dispute need exist. A contest has been carried on marked by all the ferocity which marks contests about metaphysical or pseudo-metaphysical differences having no concrete basis in the actual world. As will happen in such cases, there has, after all, been no real difference between the disputants because the point they quarreled over was unreal. In truth each side was right and each side was wrong.

It is necessary, we see, that the balance should be held even. An absolute license is bad; an absolute abstinence--even though some by nature or circumstances are urgently called to adopt it--is also bad. They are both alike away from the gracious equilibrium of Nature. And the force, we see, which naturally holds this balance even is the biological fact that the act of sexual union is the satisfaction of the erotic needs, not of one person, but of two persons.

FOOTNOTES:

[92] This view was an ambiguous improvement on the view, universally prevalent, as Westermarck has shown, among primitive peoples, that the sexual act involves indignity to a woman or depreciation of her only in so far as she is the property of another person who is the really injured party.

[93] This implicit contradiction has been acutely pointed out from the religious side by the Rev. H. Northcote, _Christianity and Sex Problems_, p. 53.

[94] It has already been necessary to discuss this point briefly in "The Sexual Impulse in Women," vol. iii of these _Studies_.

[95] "Die Abstinentia Sexualis," _Zeitschrift für Sexualwissenschaft_, Nov., 1908.

[96] P. Janet, "La Maladie du Scrupule," _Revue Philosophique_, May, 1901.

[97] S. Freud, _Sexual-Probleme_, March, 1908. As Adele Schreiber also points out (_Mutterschutz_, Jan., 1907, p. 30), it is not enough to prove that abstinence is not dangerous; we have to remember that the spiritual and physical energy used up in repressing this mighty instinct often reduces a joyous and energetic nature to a weary and faded shadow. Similarly, Helene Stöcker (_Die Liebe und die Frauen_, p. 105) says: "The question whether abstinence is harmful is, to say the truth, a ridiculous question. One needs to be no nervous specialist to know, as a matter of course, that a life of happy love and marriage is the healthy life, and its complete absence cannot fail to lead to severe psychic depression, even if no direct physiological disturbances can be demonstrated."

[98] Max Flesch, "Ehe, Hygine und Sexuelle Moral," _Mutterschutz_, 1905, Heft 7.

[99] See the Section on Touch in the fourth volume of these _Studies_.

[100] "I have had two years' close experience and connexion with the Trappists," wrote Dr. Butterfield, of Natal (_British Medical Journal_, Sept. 15, 1906, p. 668), "both as medical attendant and as being a Catholic in creed myself. I have studied them and investigated their life, habits and diet, and though I should be very backward in adopting it myself, as not suited to me individually, the great bulk of them are in absolute ideal health and strength, seldom ailing, capable of vast work, mental and physical. Their life is very simple and very regular. A healthier body of men and women, with perfect equanimity of temper--this latter I lay great stress on--it would be difficult to find. Health beams in their eyes and countenance and actions. Only in sickness or prolonged journeys are they allowed any strong foods--meats, eggs, etc.--or any alcohol."

[101] Féré, _L'Instinct Sexuel_, second edition, p. 332.

[102] Rural life, as we have seen when discussing its relation to sexual precocity, _is_ on one side the reverse of a safeguard against sexual influences. But, on the other hand, in so far as it involves hard work and simple living under conditions that are not nervously stimulating, it is favorable to a considerably delayed sexual activity in youth and to a relative continence. Ammon, in the course of his anthropological investigations of Baden conscripts, found that sexual intercourse was rare in the country before twenty, and even sexual emissions during sleep rare before nineteen or twenty. It is said, also, he repeats, that no one has a right to run after girls who does not yet carry a gun, and the elder lads sometimes brutally ill-treat any younger boy found going about with a girl. No doubt this is often preliminary to much license later.

[103] The numerical preponderance which celibate women teachers have now gained in the American school system has caused much misgiving among many sagacious observers, and is said to be unsatisfactory in its results on the pupils of both sexes. A distinguished authority, Professor McKeen Cattell ("The School and the Family," _Popular Science Monthly_, Jan., 1909), referring to this preponderance of "devitalized and unsexed spinsters," goes so far as to say that "the ultimate result of letting the celibate female be the usual teacher has been such as to make it a

question whether it would not be an advantage to the country if the whole school plant could be scrapped."

[104] Corre (_Les Criminels_, p. 351) mentions that of thirteen priests convicted of crime, six were guilty of sexual attempts on children, and of eighty-three convicted lay teachers, forty-eight had committed similar offenses. This was at a time when lay teachers were in practice almost compelled to live a celibate life; altered conditions have greatly diminished this class of offense among them. Without going so far as crime, many moral and religious men, clergymen and others, who have led severely abstinent lives in youth, sometimes experience in middle age or later the eruption of almost uncontrollable sexual impulses, normal or abnormal. In women such manifestations are apt to take the form of obsessional thoughts of sexual character, as e.g., the case (_Comptes-Rendus Congrès International de Médecine_, Moscow, 1897, vol. iv, p. 27) of a chaste woman who was compelled to think about and look at the sexual organs of men.

[105] J.A. Godfrey, _The Science of Sex_, p. 138.

[106] See, e.g., Havelock Ellis, "St. Francis and Others," _Affirmations_.

CHAPTER VII.

PROSTITUTION.

I. _The Orgy:_--The Religious Origin of the Orgy--The Feast of Fools--Recognition of the Orgy by the Greeks and Romans--The Orgy Among Savages--The Drama--The Object Subserved by the Orgy.

II. _The Origin and Development of Prostitution:_--The Definition of Prostitution--Prostitution Among Savages--The Conditions Under Which Professional Prostitution Arises--Sacred Prostitution--The Rite of Mylitta--The Practice of Prostitution to Obtain a Marriage Portion--The Rise of Secular Prostitution in Greece--Prostitution in the East--India, China, Japan, etc.--Prostitution in Rome--The Influence of Christianity on Prostitution--The Effort to Combat Prostitution--The Mediæval Brothel--The Appearance of the Courtesan--Tullia D'Aragona--Veronica Franco--Ninon de Lenclos--Later Attempts to Eradicate Prostitution--The Regulation of Prostitution--Its Futility Becoming Recognized.

III. _The Causes of Prostitution:_--Prostitution as a Part of the Marriage System--The Complex Causation of Prostitution--The Motives Assigned by Prostitutes--(1) Economic Factor of Prostitution--Poverty Seldom the Chief Motive for Prostitution--But Economic Pressure Exerts a Real Influence--The Large Proportion of Prostitutes Recruited from Domestic Service--Significance of This Fact--(2) The Biological Factor of Prostitution--The So-called Born-Prostitute--Alleged Identity with the Born-Criminal--The Sexual Instinct in Prostitutes--The Physical and Psychic Characters of Prostitutes--(3) Moral Necessity as a Factor in the Existence of Prostitution--The Moral Advocates of Prostitution--The Moral Attitude of Christianity Towards Prostitution--The Attitude of Protestantism--Recent Advocates of the Moral Necessity of Prostitution--(4) Civilizational Value as a Factor of Prostitution--The

Influence of Urban Life--The Craving for Excitement--Why Servant-girls so Often Turn to Prostitution--The Small Part Played by Seduction--Prostitutes Come Largely from the Country--The Appeal of Civilization Attracts Women to Prostitution--The Corresponding Attraction Felt by Men--The Prostitute as Artist and Leader of Fashion--The Charm of Vulgarity.

IV. _The Present Social Attitude Towards Prostitution:_--The Decay of the Brothel--The Tendency to the Humanization of Prostitution--The Monetary Aspects of Prostitution--The Geisha--The Hetaira--The Moral Revolt Against Prostitution--Squalid Vice Based on Luxurious Virtue--The Ordinary Attitude Towards Prostitutes--Its Cruelty Absurd--The Need of Reforming Prostitution--The Need of Reforming Marriage--These These Two Needs Closely Correlated--The Dynamic Relationships Involved.

I. The Orgy.

Traditional morality, religion, and established convention combine to promote not only the extreme of rigid abstinence but also that of reckless license. They preach and idealize the one extreme; they drive those who cannot accept it to adopt the opposite extreme. In the great ages of religion it even happens that the severity of the rule of abstinence is more or less deliberately tempered by the permission for occasional outbursts of license. We thus have the orgy, which flourished in mediæval days and is, indeed, in its largest sense, a universal manifestation, having a function to fulfil in every orderly and laborious civilization, built up on natural energies that are bound by more or less inevitable restraints.

The consideration of the orgy, it may be said, lifts us beyond the merely sexual sphere, into a higher and wider region which belongs to religion. The Greek _orgeia_ referred originally to ritual things done with a religious purpose, though later, when dances of Bacchanals and the like lost their sacred and inspiring character, the idea was fostered by Christianity that such things were immoral.[107] Yet Christianity was itself in its origin an orgy of the higher spiritual activities released from the uncongenial servitude of classic civilization, a great festival of the poor and the humble, of the slave and the sinner. And when, with the necessity for orderly social organization, Christianity had ceased to be this it still recognized, as Paganism had done, the need for an occasional orgy. It appears that in 743 at a Synod held in Hainault reference was made to the February debauch (_de Spurcalibus in februario_) as a pagan practice; yet it was precisely this pagan festival which was embodied in the accepted customs of the Christian Church as the chief orgy of the ecclesiastical year, the great Carnival prefixed to the long fast of Lent. The celebration on Shrove Tuesday and the previous Sunday constituted a Christian Bacchanalian festival in which all classes joined. The greatest freedom and activity of physical movement was encouraged; "some go about naked without shame, some crawl on all fours, some on stilts, some imitate animals."[108] As time went on the Carnival lost its most strongly marked Bacchanalian features, but it still retains its essential character as a permitted and temporary relaxation of the tension of customary restraints and conventions. The Mediæval Feast of Fools--a New Year's Revel well established by the twelfth century, mainly in France--presented an

expressive picture of a Christian orgy in its extreme form, for here the most sacred ceremonies of the Church became the subject of fantastic parody. The Church, according to Nietzsche's saying, like all wise legislators, recognized that where great impulses and habits have to be cultivated, intercalary days must be appointed in which these impulses and habits may be denied, and so learn to hunger anew.[109] The clergy took the leading part in these folk-festivals, for to the men of that age, as Méray remarks, "the temple offered the complete notes of the human gamut; they found there the teaching of all duties, the consolation of all sorrows, the satisfaction of all joys. The sacred festivals of mediæval Christianity were not a survival from Roman times; they leapt from the very heart of Christian society."[110] But, as Méray admits, all great and vigorous peoples, of the East and the West, have found it necessary sometimes to play with their sacred things.

Among the Greeks and Romans this need is everywhere visible, not only in their comedy and their literature generally, but in everyday life. As Nietzsche truly remarks (in his _Geburt der Tragödie_) the Greeks recognized all natural impulses, even those that are seemingly unworthy, and safeguarded them from working mischief by providing channels into which, on special days and in special rites, the surplus of wild energy might harmlessly flow. Plutarch, the last and most influential of the Greek moralists, well says, when advocating festivals (in his essay "On the Training of Children"), that "even in bows and harps we loosen their strings that we may bend and wind them up again." Seneca, perhaps the most influential of Roman if not of European moralists, even recommended occasional drunkenness. "Sometimes," he wrote in his _De Tranquillilate_, "we ought to come even to the point of intoxication, not for the purpose of drowning ourselves but of sinking ourselves deep in wine. For it washes away cares and raises our spirits from the lowest depths. The inventor of wine is called _Liber_ because he frees the soul from the servitude of care, releases it from slavery, quickens it, and makes it bolder for all undertakings." The Romans were a sterner and more serious people than the Greeks, but on that very account they recognized the necessity of occasionally relaxing their moral fibres in order to preserve their tone, and encouraged the prevalence of festivals which were marked by much more abandonment than those of Greece. When these festivals began to lose their moral sanction and to fall into decay the decadence of Rome had begun.

All over the world, and not excepting the most primitive savages--for even savage life is built up on systematic constraints which sometimes need relaxation--the principle of the orgy is recognized and accepted. Thus Spencer and Gillen describe[111] the Nathagura or fire-ceremony of the Warramunga tribe of Central Australia, a festival taken part in by both sexes, in which all the ordinary rules of social life are broken, a kind of Saturnalia in which, however, there is no sexual license, for sexual license is, it need scarcely be said, no essential part of the orgy, even when the orgy lightens the burden of sexual constraints. In a widely different part of the world, in British Columbia, the Salish Indians, according to Hill Tout,[112] believed that, long before the whites came, their ancestors observed a Sabbath or seventh day ceremony for dancing and praying, assembling at sunrise and dancing till noon. The Sabbath, or periodically recurring orgy,--not a day of tension and

constraint but a festival of joy, a rest from all the duties of everyday life,--has, as we know, formed an essential part of many of the orderly ancient civilizations on which our own has been built;[113] it is highly probable that the stability of these ancient civilizations was intimately associated with their recognition of the need of a Sabbath orgy. Such festivals are, indeed, as Crawley observes, processes of purification and reinvigoration, the effort to put off "the old man" and put on "the new man," to enter with fresh energy on the path of everyday life.[114]

The orgy is an institution which by no means has its significance only for the past. On the contrary, the high tension, the rigid routine, the gray monotony of modern life insistently call for moments of organic relief, though the precise form that that orgiastic relief takes must necessarily change with other social changes. As Wilhelm von Humboldt said, "just as men need suffering in order to become strong so they need joy in order to become good." Charles Wagner, insisting more recently (in his _Jeunesse_) on the same need of joy in our modern life, regrets that dancing in the old, free, and natural manner has gone out of fashion or become unwholesome. Dancing is indeed the most fundamental and primitive form of the orgy, and that which most completely and healthfully fulfils its object. For while it is undoubtedly, as we see even among animals, a process by which sexual tumescence is accomplished,[115] it by no means necessarily becomes focused in sexual detumescence but it may itself become a detumescent discharge of accumulated energy. It was on this account that, at all events in former days, the clergy in Spain, on moral grounds, openly encouraged the national passion for dancing. Among cultured people in modern times, the orgy tends to take on a purely cerebral form, which is less wholesome because it fails to lead to harmonious discharge along motor channels. In these comparatively passive forms, however, the orgy tends to become more and more pronounced under the conditions of civilization. Aristotle's famous statement concerning the function of tragedy as "purgation" seems to be a recognition of the beneficial effects of the orgy.[116] Wagner's music-dramas appeal powerfully to this need; the theatre, now as ever, fulfils a great function of the same kind, inherited from the ancient days when it was the ordered expression of a sexual festival.[117] The theatre, indeed, tends at the present time to assume a larger importance and to approximate to the more serious dramatic performances of classic days by being transferred to the day-time and the open-air. France has especially taken the initiative in these performances, analogous to the Dionysiac festivals of antiquity and the Mysteries and Moralities of the Middle Ages. The movement began some years ago at Orange. In 1907 there were, in France, as many as thirty open-air theatres ("Théâtres de la Nature," "Théâtres du Soleil," etc.,) while it is in Marseilles that the first formal open-air theatre has been erected since classic days.[118] In England, likewise, there has been a great extension of popular interest in dramatic performances, and the newly instituted Pageants, carried out and taken part in by the population of the region commemorated in the Pageant, are festivals of the same character. In England, however, at the present time, the real popular orgiastic festivals are the Bank holidays, with which may be associated the more occasional celebrations, "Maffekings," etc., often called out by comparatively insignificant national events but still adequate to arouse orgiastic emotions as genuine as those of

antiquity, though they are lacking in beauty and religious consecration. It is easy indeed for the narrowly austere person to view such manifestations with a supercilious smile, but in the eyes of the moralist and the philosopher these orgiastic festivals exert a salutary and preservative function. In every age of dull and monotonous routine--and all civilization involves such routine--many natural impulses and functions tend to become suppressed, atrophied, or perverted. They need these moments of joyous exercise and expression, moments in which they may not necessarily attain their full activity but in which they will at all events be able, as Cyples expresses it, to rehearse their great possibilities.[119]

II. The Origin and Development of Prostitution.

The more refined forms of the orgy flourish in civilization, although on account of their mainly cerebral character they are not the most beneficent or the most effective. The more primitive and muscular forms of the orgy tend, on the other hand, under the influence of civilization, to fall into discredit and to be so far as possible suppressed altogether. It is partly in this way that civilization encourages prostitution. For the orgy in its primitive forms, forbidden to show itself openly and reputably, seeks the darkness, and allying itself with a fundamental instinct to which civilized society offers no complete legitimate satisfaction, it firmly entrenches itself in the very centre of civilized life, and thereby constitutes a problem of immense difficulty and importance.[120]

It is commonly said that prostitution has existed always and everywhere. That statement is far from correct. A kind of amateur prostitution is occasionally found among savages, but usually it is only when barbarism is fully developed and is already approaching the stage of civilization that well developed prostitution is found. It exists in a systematic form in every civilization.

What is prostitution? There has been considerable discussion as to the correct definition of prostitution.[121] The Roman Ulpian said that a prostitute was one who openly abandons her body to a number of men without choice, for money.[122] Not all modern definitions have been so satisfactory. It is sometimes said a prostitute is a woman who gives herself to numerous men. To be sound, however, a definition must be applicable to both sexes alike and we should certainly hesitate to describe a man who had sexual intercourse with many women as a prostitute. The idea of venality, the intention to sell the favors of the body, is essential to the conception of prostitution. Thus Guyot defines a prostitute as "any person for whom sexual relationships are subordinated to gain."[123] It is not, however, adequate to define a prostitute simply as a woman who sells her body. That is done every day by women who become wives in order to gain a home and a livelihood, yet, immoral as this conduct may be from any high ethical standpoint, it would be inconvenient and even misleading to call it prostitution.[124] It is better, therefore, to define a prostitute as a woman who temporarily sells her sexual favors to various persons. Thus, according to Wharton's _Law-lexicon_ a prostitute is "a woman who indiscriminately consorts with men for hire"; Bonger states that "those women are prostitutes who sell their bodies for the exercise of sexual acts and make of this a profession";[125] Richard again states that "a prostitute is a woman who publicly gives herself to the first comer

in return for a pecuniary remuneration."[126] As, finally, the prevalence of homosexuality has led to the existence of male prostitutes, the definition must be put in a form irrespective of sex, and we may, therefore, say that a prostitute is a person who makes it a profession to gratify the lust of various persons of the opposite sex or the same sex.

It is essential that the act of prostitution should be habitually performed with "various persons." A woman who gains her living by being mistress to a man, to whom she is faithful, is not a prostitute, although she often becomes one afterwards, and may have been one before. The exact point at which a woman begins to be a prostitute is a question of considerable importance in countries in which prostitutes are subject to registration. Thus in Berlin, not long ago, a girl who was mistress to a rich cavalry officer and supported by him, during the illness of the officer accidentally met a man whom she had formerly known, and once or twice invited him to see her, receiving from him presents in money. This somehow came to the knowledge of the police, and she was arrested and sentenced to one day's imprisonment as an unregistered prostitute. On appeal, however, the sentence was annulled. Liszt, in his _Strafrecht_, lays it down that a girl who obtains whole or part of her income from "fixed relationships" is not practicing unchastity for gain in the sense of the German law (_Geschlecht und Gesellschaft_, Jahrgang 1, Heft 9, p. 345).

It is not altogether easy to explain the origin of the systematized professional prostitution with the existence of which we are familiar in civilization. The amateur kind of prostitution which has sometimes been noted among primitive peoples--the fact, that is, that a man may give a woman a present in seeking to persuade her to allow him to have intercourse with her--is really not prostitution as we understand it. The present in such a case is merely part of a kind of courtship leading to a temporary relationship. The woman more or less retains her social position and is not forced to make an avocation of selling herself because henceforth no other career is possible to her. When Cook came to New Zealand his men found that the women were not impregnable, "but the terms and manner of compliance were as decent as those in marriage among us," and according "to their notions the agreement was as innocent." The consent of the woman's friends was necessary, and when the preliminaries were settled it was also necessary to treat this "Juliet of a night" with "the same delicacy as is here required with the wife for life, and the lover who presumed to take any liberties by which this was violated was sure to be disappointed."[127] In some of the Melanesian Islands, it is said that women would sometimes become prostitutes, or on account of their bad conduct be forced to become prostitutes for a time; they were not, however, particularly despised, and when they had in this way accumulated a certain amount of property they could marry well, after which it would not be proper to refer to their former career.[128]

When prostitution first arises among a primitive people it sometimes happens that little or no stigma is attached to it for the reason that the community has not yet become accustomed to attach any special value to the presence of virginity. Schurtz quotes from the old Arabic geographer Al-Bekri some interesting remarks about the Slavs: "The women of the Slavs, after they have married, are faithful to their

husbands. If, however, a young girl falls in love with a man she goes to him and satisfies her passion. And if a man marries and finds his wife a virgin he says to her: 'If you were worth anything men would have loved you, and you would have chosen one who would have taken away your virginity.' Then he drives her away and renounces her." It is a feeling of this kind which, among some peoples, leads a girl to be proud of the presents she has received from her lovers and to preserve them as a dowry for her marriage, knowing that her value will thus be still further heightened. Even among the Southern Slavs of modern Europe, who have preserved much of the primitive sexual freedom, this freedom, as Krauss, who has minutely studied the manners and customs of these peoples, declares, is fundamentally different from vice, licentiousness, or immodesty.[129]

Prostitution tends to arise, as Schurtz has pointed out, in every society in which early marriage is difficult and intercourse outside marriage is socially disapproved. "Venal women everywhere appear as soon as the free sexual intercourse of young people is repressed, without the necessary consequences being impeded by unusually early marriages."[130] The repression of sexual intimacies outside marriage is a phenomenon of civilization, but it is not itself by any means a measure of a people's general level, and may, therefore, begin to appear at an early period. But it is important to remember that the primitive and rudimentary forms of prostitution, when they occur, are merely temporary, and frequently--though not invariably--involve no degrading influence on the woman in public estimation, sometimes indeed increasing her value as a wife. The woman who sells herself for money purely as a professional matter, without any thought of love or passion, and who, by virtue of her profession, belongs to a pariah class definitely and rigidly excluded from the main body of her sex, is a phenomenon which can seldom be found except in developed civilization. It is altogether incorrect to speak of prostitutes as a mere survival from primitive times.

On the whole, while among savages sexual relationships are sometimes free before marriage, as well as on the occasion of special festivals, they are rarely truly promiscuous and still more rarely venal. When savage women nowadays sell themselves, or are sold by their husbands, it has usually been found that we are concerned with the contamination of European civilization.

The definite ways in which professional prostitution may arise are no doubt many.[131] We may assent to the general principle, laid down by Schurtz, that whenever the free union of young people is impeded under conditions in which early marriage is also difficult prostitution must certainly arise. There are, however, different ways in which this principle may take shape. So far as our western civilization is concerned--the civilization, that is to say, which has its cradle in the Mediterranean basin--it would seem that the origin of prostitution is to be found primarily in a religious custom, religion, the great conserver of social traditions, preserving in a transformed shape a primitive freedom that was passing out of general social life.[132] The typical example is that recorded by Herodotus, in the fifth century before Christ, at the temple of Mylitta, the Babylonian Venus, where every woman once in her life had to come and give herself to the first stranger who

threw a coin in her lap, in worship of the goddess. The money could not be refused, however small the amount, but it was given as an offertory to the temple, and the woman, having followed the man and thus made oblation to Mylitta, returned home and lived chastely ever afterwards.[133] Very similar customs existed in other parts of Western Asia, in North Africa, in Cyprus and other islands of the Eastern Mediterranean, and also in Greece, where the Temple of Aphrodite on the fort at Corinth possessed over a thousand hierodules, dedicated to the service of the goddess, from time to time, as Strabo states, by those who desired to make thank-offering for mercies vouchsafed to them. Pindar refers to the hospitable young Corinthian women ministrants whose thoughts often turn towards Ourania Aphrodite[134] in whose temple they burned incense; and Athenæus mentions the importance that was attached to the prayers of the Corinthian prostitutes in any national calamity.[135]

We seem here to be in the presence, not merely of a religiously preserved survival of a greater sexual freedom formerly existing,[136] but of a specialized and ritualized development of that primitive cult of the generative forces of Nature which involves the belief that all natural fruitfulness is associated with, and promoted by, acts of human sexual intercourse which thus acquire a religious significance. At a later stage acts of sexual intercourse having a religious significance become specialized and localized in temples, and by a rational transition of ideas it becomes believed that such acts of sexual intercourse in the service of the god, or with persons devoted to the god's service, brought benefits to the individual who performed them, more especially, if a woman, by insuring her fertility. Among primitive peoples generally this conception is embodied mainly in seasonal festivals, but among the peoples of Western Asia who had ceased to be primitive, and among whom traditional priestly and hieratic influences had acquired very great influence, the earlier generative cult had thus, it seems probable, naturally changed its form in becoming attached to the temples.[137]

The theory that religious prostitution developed, as a general rule, out of the belief that the generative activity of human beings possessed a mysterious and sacred influence in promoting the fertility of Nature generally seems to have been first set forth by Mannhardt in his _Antike Wald- und Feldkulte_ (pp. 283 et seq.). It is supported by Dr. F.S. Krauss ("Beischlafausübung als Kulthandlung," _Anthropophyteia_, vol. iii, p. 20), who refers to the significant fact that in Baruch's time, at a period long anterior to Herodotus, sacred prostitution took place under the trees. Dr. J.G. Frazer has more especially developed this conception of the origin of sacred prostitution in his _Adonis, Attis, Osiris_. He thus summarizes his lengthy discussion: "We may conclude that a great Mother Goddess, the personification of all the reproductive energies of nature, was worshipped under different names, but with a substantial similarity of myth and ritual by many peoples of western Asia; that associated with her was a lover, or rather series of lovers, divine yet mortal, with whom she mated year by year, their commerce being deemed essential to the propagation of animals and plants, each in their several kind; and further, that the fabulous union of the divine pair was simulated, and, as it were, multiplied on earth by the real, though temporary, union of the human sexes at the sanctuary of the

goddess for the sake of thereby ensuring the fruitfulness of the ground and the increase of man and beast. In course of time, as the institution of individual marriage grew in favor, and the old communism fell more and more into discredit, the revival of the ancient practice, even for a single occasion in a woman's life, became ever more repugnant to the moral sense of the people, and accordingly they resorted to various expedients for evading in practice the obligation which they still acknowledged in theory.... But while the majority of women thus contrived to observe the form of religion without sacrificing their virtue, it was still thought necessary to the general welfare that a certain number of them should discharge the old obligation in the old way. These became prostitutes, either for life or for a term of years, at one of the temples: dedicated to the service of religion, they were invested with a sacred character, and their vocation, far from being deemed infamous, was probably long regarded by the laity as an exercise of more than common virtue, and rewarded with a tribute of mixed wonder, reverence, and pity, not unlike that which in some parts of the world is still paid to women who seek to honor their Creator in a different way by renouncing the natural functions of their sex and the tenderest relations of humanity" (J.G. Frazer, _Adonis, Attis, Osiris_, 1907, pp. 23 et seq.).

It is difficult to resist the conclusion that this theory represents the central and primitive idea which led to the development of sacred prostitution. It seems equally clear, however, that as time went on, and especially as temple cults developed and priestly influence increased, this fundamental and primitive idea tended to become modified, and even transformed. The primitive conception became specialized in the belief that religious benefits, and especially the gift of fruitfulness, were gained _by the worshipper_, who thus sought the goddess's favor by an act of unchastity which might be presumed to be agreeable to an unchaste deity. The rite of Mylitta, as described by Herodotus, was a late development of this kind in an ancient civilization, and the benefit sought was evidently for the worshipper herself. This has been pointed out by Dr. Westermarck, who remarks that the words spoken to the woman by her partner as he gives her the coin--"May the goddess be auspicious to thee!"--themselves indicate that the object of the act was to insure her fertility, and he refers also to the fact that strangers frequently had a semi-supernatural character, and their benefits a specially efficacious character (Westermarck, _Origin and Development of the Moral Ideas_, vol. ii, p. 446). It may be added that the rite of Mylitta thus became analogous with another Mediterranean rite, in which the act of simulating intercourse with the representative of a god, or his image, ensured a woman's fertility. This is the rite practiced by the Egyptians of Mendes, in which a woman went through the ceremony of simulated intercourse with the sacred goat, regarded as the representative of a deity of Pan-like character (Herodotus, Bk. ii, Ch. XLVI; and see Dulaure, _Des Divinités Génératrices_, Ch. II; cf. vol. v of these _Studies_, "Erotic Symbolism," Sect. IV). This rite was maintained by Roman women, in connection with the statues of Priapus, to a very much later date, and St. Augustine mentions how Roman matrons placed the young bride on the erect member of Priapus (_De Civitate Dei_, Bk. iii, Ch. IX). The idea evidently running through this whole group of phenomena is that the deity, or the representative or even mere image of the deity, is able, through a real or simulated act of intercourse,

to confer on the worshipper a portion of its own exalted generative activity.

At a later period, in Corinth, prostitutes were still the priestesses of Venus, more or less loosely attached to her temples, and so long as that was the case they enjoyed a considerable degree of esteem. At this stage, however, we realize that religious prostitution was developing a utilitarian side. These temples flourished chiefly in sea-coast towns, in islands, in large cities to which many strangers and sailors came. The priestesses of Cyprus burnt incense on her altars and invoked her sacred aid, but at the same time Pindar addresses them as "young girls who welcome all strangers and give them hospitality." Side by side with the religious significance of the act of generation the needs of men far from home were already beginning to be definitely recognized. The Babylonian woman had gone to the temple of Mylitta to fulfil a personal religious duty; the Corinthian priestess had begun to act as an avowed minister to the sexual needs of men in strange cities.

The custom which Herodotus noted in Lydia of young girls prostituting themselves in order to acquire a marriage portion which they may dispose of as they think fit (Bk. I, Ch. 93) may very well have developed (as Frazer also believes) out of religious prostitution; we can indeed trace its evolution in Cyprus where eventually, at the period when Justinian visited the island, the money given by strangers to the women was no longer placed on the altar but put into a chest to form marriage-portions for them. It is a custom to be found in Japan and various other parts of the world, notably among the Ouled-Nail of Algeria,[138] and is not necessarily always based on religious prostitution; but it obviously cannot exist except among peoples who see nothing very derogatory in free sexual intercourse for the purpose of obtaining money, so that the custom of Mylitta furnished a natural basis for it.[139]

As a more spiritual conception of religion developed, and as the growth of civilization tended to deprive sexual intercourse of its sacred halo, religious prostitution in Greece was slowly abolished, though on the coasts of Asia Minor both religious prostitution and prostitution for the purpose of obtaining a marriage portion persisted to the time of Constantine, who put an end to these ancient customs.[140] Superstition was on the side of the old religious prostitution; it was believed that women who had never sacrificed to Aphrodite became consumed by lust, and according to the legend recorded by Ovid--a legend which seems to point to a certain antagonism between sacred and secular prostitution--this was the case with the women who first became public prostitutes. The decay of religious prostitution, doubtless combined with the cravings always born of the growth of civilization, led up to the first establishment, attributed by legend to Solon, of a public brothel, a purely secular establishment for a purely secular end: the safeguarding of the virtue of the general population and the increase of the public revenue. With that institution the evolution of prostitution, and of the modern marriage system of which it forms part, was completed. The Athenian _dikterion_ is the modern brothel; the _dikteriade_ is the modern state-regulated prostitute. The free _hetairæ_, indeed, subsequently arose, educated women having no taint of the _dikterion_, but they likewise had no official part in public worship.[141] The primitive conception of the sanctity of sexual intercourse in the divine service had been utterly lost.

A fairly typical example of the conditions existing among savages is to be found in the South Sea Island of Rotuma, where "prostitution for money or gifts was quite unknown." Adultery after marriage was also unknown. But there was great freedom in the formation of sexual relationships before marriage (J. Stanley Gardiner, _Journal Anthropological Institute_, February, 1898, p. 409). Much the same is said of the Bantu Ba mbola of Africa (_op. cit._, July-December, 1905, p. 410).

Among the early Cymri of Wales, representing a more advanced social stage, prostitution appears to have been not absolutely unknown, but public prostitution was punished by loss of valuable privileges (R.B. Holt, "Marriage Laws and Customs of the Cymri," _Journal Anthropological Institute_, August-November, 1898, pp. 161-163).

Prostitution was practically unknown in Burmah, and regarded as shameful before the coming of the English and the example of the modern Hindus. The missionaries have unintentionally, but inevitably, favored the growth of prostitution by condemning free unions (_Archives d'Anthropologie Criminelle_, November, 1903, p. 720). The English brought prostitution to India. "That was not specially the fault of the English," said a Brahmin to Jules Bois, "it is the crime of your civilization. We have never had prostitutes. I mean by that horrible word the brutalized servants of the gross desire of the passerby. We had, and we have, castes of singers and dancers who are married to trees--yes, to trees--by touching ceremonies which date from Vedic times; our priests bless them and receive much money from them. They do not refuse themselves to those who love them and please them. Kings have made them rich. They represent all the arts; they are the visible beauty of the universe" (Jules Bois, _Visions de l'Inde_, p. 55).

Religious prostitutes, it may be added, "the servants of the god," are connected with temples in Southern India and the Deccan. They are devoted to their sacred calling from their earliest years, and it is their chief business to dance before the image of the god, to whom they are married (though in Upper India professional dancing girls are married to inanimate objects), but they are also trained in arousing and assuaging the desires of devotees who come on pilgrimage to the shrine. For the betrothal rites by which, in India, sacred prostitutes are consecrated, see, e.g., A. Van Gennep, _Rites de Passage_, p. 142.

In many parts of Western Asia, where barbarism had reached a high stage of development, prostitution was not unknown, though usually disapproved. The Hebrews knew it, and the historical Biblical references to prostitutes imply little reprobation. Jephtha was the son of a prostitute, brought up with the legitimate children, and the story of Tamar is instructive. But the legal codes were extremely severe on Jewish maidens who became prostitutes (the offense was quite tolerable in strange women), while Hebrew moralists exercised their invectives against prostitution; it is sufficient to refer to a well-known passage in the Book of Proverbs (see art. "Harlot," by Cheyne, in the _Encyclopædia Biblica_). Mahomed also severely condemned prostitution, though somewhat more tolerant to it in slave women; according to Haleby, however, prostitution was practically unknown in Islam during the first centuries after the Prophet's time.

The Persian adherents of the somewhat ascetic _Zendavesta_ also knew prostitution, and regarded it with repulsion: "It is the Gahi [the courtesan, as an incarnation of the female demon, Gahi], O Spitama Zarathustra! who mixes in her the seed of the faithful and the unfaithful, of the worshipper of Mazda and the worshipper of the Dævas, of the wicked and the righteous. Her look dries up one-third of the mighty floods that run from the mountains, O Zarathustra; her look withers one-third of the beautiful, golden-hued, growing plants, O Zarathustra; her look withers one-third of the strength of Spenta Armaiti [the earth]; and her touch withers in the faithful one-third of his good thoughts, of his good words, of his good deeds, one-third of his strength, of his victorious power, of his holiness. Verily I say unto thee, O Spitama Zarathustra! such creatures ought to be killed even more than gliding snakes, than howling wolves, than the she-wolf that falls upon the fold, or than the she-frog that falls upon the waters with her thousandfold brood" (_Zend-Avesta, the Vendidad_, translated by James Darmesteter, Farfad XVIII).

In practice, however, prostitution is well established in the modern East. Thus in the Tartar-Turcoman region houses of prostitution lying outside the paths frequented by Christians have been described by a writer who appears to be well informed ("Orientalische Prostitution," _Geschlecht und Gesellschaft_, 1907, Bd. ii, Heft 1). These houses are not regarded as immoral or forbidden, but as places in which the visitor will find a woman who gives him for a few hours the illusion of being in his own home, with the pleasure of enjoying her songs, dances, and recitations, and finally her body. Payment is made at the door, and no subsequent question of money arises; the visitor is henceforth among friends, almost as if in his own family. He treats the prostitute almost as if she were his wife, and no indecorum or coarseness of speech occurs. "There is no obscenity in the Oriental brothel." At the same time there is no artificial pretence of innocence.

In Eastern Asia, among the peoples of Mongolian stock, especially in China, we find prostitution firmly established and organized on a practical business basis. Prostitution is here accepted and viewed with no serious disfavor, but the prostitute herself is, nevertheless, treated with contempt. Young children are frequently sold to be trained to a life of prostitution, educated accordingly, and kept shut up from the world. Young widows (remarriage being disapproved) frequently also slide into a life of prostitution. Chinese prostitutes often end through opium and the ravages of syphilis (see, e.g., Coltman's _The Chinese_, 1900, Ch. VII). In ancient China, it is said prostitutes were a superior class and occupied a position somewhat similar to that of the _hetairæ_ in Greece. Even in modern China, however, where they are very numerous, and the flower boats, in which in towns by the sea they usually live, very luxurious, it is chiefly for entertainment, according to some writers, that they are resorted to. Tschang Ki Tong, military attaché in Paris (as quoted by Ploss and Bartels), describes the flower boat as less analogous to a European brothel than to a _café chantant_; the young Chinaman comes here for music, for tea, for agreeable conversation with the flower-maidens, who are by no means necessarily called upon to minister to the lust of their visitors.

In Japan, the prostitute's lot is not so degraded as in China. The greater refinement of Japanese civilization allows the prostitute to retain a higher degree of self-respect. She is sometimes regarded with pity, but less often with contempt. She may associate openly with men, ultimately be married, even to men of good social class, and rank as a respectable woman. "In riding from Tokio to Yokohama, the past winter," Coltman observes (_op. cit._, p. 113), "I saw a party of four young men and three quite pretty and gaily-painted prostitutes, in the same car, who were having a glorious time. They had two or three bottles of various liquors, oranges, and fancy cakes, and they ate, drank and sang, besides playing jokes on each other and frolicking like so many kittens. You may travel the whole length of the Chinese Empire and never witness such a scene." Yet the history of Japanese prostitutes (which has been written in an interesting and well-informed book, _The Nightless City_, by an English student of sociology who remains anonymous) shows that prostitution in Japan has not only been severely regulated, but very widely looked down upon, and that Japanese prostitutes have often had to suffer greatly; they were at one time practically slaves and often treated with much hardship. They are free now, and any condition approaching slavery is strictly prohibited and guarded against. It would seem, however, that the palmiest days of Japanese prostitution lay some centuries back. Up to the middle of the eighteenth century Japanese prostitutes were highly accomplished in singing, dancing, music, etc. Towards this period, however, they seem to have declined in social consideration and to have ceased to be well educated. Yet even to-day, says Matignon ("La Prostitution au Japon," _Archives d'Anthropologie Criminelle_, October, 1906), less infamy attaches to prostitution in Japan than in Europe, while at the same time there is less immorality in Japan than in Europe. Though prostitution is organized like the postal or telegraph service, there is also much clandestine prostitution. The prostitution quarters are clean, beautiful and well-kept, but the Japanese prostitutes have lost much of their native good taste in costume by trying to imitate European fashions. It was when prostitution began to decline two centuries ago, that the geishas first appeared and were organized in such a way that they should not, if possible, compete as prostitutes with the recognized and licensed inhabitants of the Yoshiwara, as the quarter is called to which prostitutes are confined. The geishas, of course, are not prostitutes, though their virtue may not always be impregnable, and in social position they correspond to actresses in Europe.

In Korea, at all events before Korea fell into the hands of the Japanese, it would seem that there was no distinction between the class of dancing girls and prostitutes. "Among the courtesans," Angus Hamilton states, "the mental abilities are trained and developed with a view to making them brilliant and entertaining companions. These 'leaves of sunlight' are called _gisaing_, and correspond to the geishas of Japan. Officially, they are attached to a department of government, and are controlled by a bureau of their own, in common with the Court musicians. They are supported from the national treasury, and they are in evidence at official dinners and all palace entertainments. They read and recite; they dance and sing; they become accomplished artists and musicians. They dress with exceeding grace; they are delicate in appearance, very frail and very human,

very tender, sympathetic, and imaginative." But though they are certainly the prettiest women in Korea, move in the highest society, and might become concubines of the Emperor, they are not allowed to marry men of good class (Angus Hamilton, _Korea_, p. 52).

The history of European prostitution, as of so many other modern institutions, may properly be said to begin in Rome. Here at the outset we already find that inconsistently mixed attitude towards prostitution which to-day is still preserved. In Greece it was in many respects different. Greece was nearer to the days of religious prostitution, and the sincerity and refinement of Greek civilization made it possible for the better kind of prostitute to exert, and often be worthy to exert, an influence in all departments of life which she has never been able to exercise since, except perhaps occasionally, in a much slighter degree, in France. The course, vigorous, practical Roman was quite ready to tolerate the prostitute, but he was not prepared to carry that toleration to its logical results; he never felt bound to harmonize inconsistent facts of life. Cicero, a moralist of no mean order, without expressing approval of prostitution, yet could not understand how anyone should wish to prohibit youths from commerce with prostitutes, such severity being out of harmony with all the customs of the past or the present.[142] But the superior class of Roman prostitutes, the _bonæ mulieres_, had no such dignified position as the Greek _hetairæ_. Their influence was indeed immense, but it was confined, as it is in the case of their European successors to-day, to fashions, customs, and arts. There was always a certain moral rigidity in the Roman which prevented him from yielding far in this direction. He encouraged brothels, but he only entered them with covered head and face concealed in his cloak. In the same way, while he tolerated the prostitute, beyond a certain point he sharply curtailed her privileges. Not only was she deprived of all influence in the higher concerns of life, but she might not even wear the _vitta_ or the _stola_; she could indeed go almost naked if she pleased, but she must not ape the emblems of the respectable Roman matron.[143]

The rise of Christianity to political power produced on the whole less change of policy than might have been anticipated. The Christian rulers had to deal practically as best they might with a very mixed, turbulent, and semi-pagan world. The leading fathers of the Church were inclined to tolerate prostitution for the avoidance of greater evils, and Christian emperors, like their pagan predecessors, were willing to derive a tax from prostitution. The right of prostitution to exist was, however, no longer so unquestionably recognized as in pagan days, and from time to time some vigorous ruler sought to repress prostitution by severe enactments. The younger Theodosius and Valentinian definitely ordained that there should be no more brothels and that anyone giving shelter to a prostitute should be punished. Justinian confirmed that measure and ordered that all panders were to be exiled on pain of death. These enactments were quite vain. But during a thousand years they were repeated again and again in various parts of Europe, and invariably with the same fruitless or worse than fruitless results. Theodoric, king of the Visigoths, punished with death those who promoted prostitution, and Recared, a Catholic king of the same people in the sixth century, prohibited prostitution altogether and ordered that a prostitute, when found, should receive three hundred strokes of the whip and be driven out of the city.

Charlemagne, as well as Genserich in Carthage, and later Frederick Barbarossa in Germany, made severe laws against prostitution which were all of no effect, for even if they seemed to be effective for the time the reaction was all the greater afterwards.[144]

It is in France that the most persistent efforts have been made to combat prostitution. Most notable of all were the efforts of the King and Saint, Louis IX. In 1254 St. Louis ordained that prostitutes should be driven out altogether and deprived of all their money and goods, even to their mantles and gowns. In 1256 he repeated this ordinance and in 1269, before setting out for the Crusades, he ordered the destruction of all places of prostitution. The repetition of those decrees shows how ineffectual they were. They even made matters worse, for prostitutes were forced to mingle with the general population and their influence was thus extended. St. Louis was unable to put down prostitution even in his own camp in the East, and it existed outside his own tent. His legislation, however, was frequently imitated by subsequent rulers of France, even to the middle of the seventeenth century, always with the same ineffectual and worse results. In 1560 an edict of Charles IX abolished brothels, but the number of prostitutes was thereby increased rather than diminished, while many new kinds of brothels appeared in unsuspected shapes and were more dangerous than the more recognized brothels which had been suppressed.[145] In spite of all such legislation, or because of it, there has been no country in which prostitution has played a more conspicuous part.[146]

At Mantua, so great was the repulsion aroused by prostitutes that they were compelled to buy in the markets any fruit or bread that had been soiled by the mere touch of their hands. It was so also in Avignon in 1243. In Catalonia they could not sit at the same table as a lady or a knight or kiss any honorable person.[147] Even in Venice, the paradise of prostitution, numerous and severe regulations were passed against it, and it was long before the Venetian rulers resigned themselves to its toleration and regulation.[148]

The last vigorous attempt to uproot prostitution in Europe was that of Maria Theresa at Vienna in the middle of the eighteenth century. Although of such recent date it may be mentioned here because it was mediæval alike in its conception and methods. Its object indeed, was to suppress not only prostitution, but fornication generally, and the means adopted were fines, imprisonment, whipping and torture. The supposed causes of fornication were also dealt with severely; short dresses were prohibited; billiard rooms and cafés were inspected; no waitresses were allowed, and when discovered, a waitress was liable to be handcuffed and carried off by the police. The Chastity Commission, under which these measures were rigorously carried out, was, apparently, established in 1751 and was quietly abolished by the Emperor Joseph II, in the early years of his reign. It was the general opinion that this severe legislation was really ineffective, and that it caused much more serious evils than it cured.[149] It is certain in any case that, for a long time past, illegitimacy has been more prevalent in Vienna than in any other great European capital.

Yet the attitude towards prostitutes was always mixed and inconsistent at different places or different times, or even at the same time and place. Dufour has aptly

compared their position to that of the mediæval Jews; they were continually persecuted, ecclesiastically, civilly, and socially, yet all classes were glad to have recourse to them and it was impossible to do without them. In some countries, including England in the fourteenth century, a special costume was imposed on prostitutes as a mark of infamy.[150] Yet in many respects no infamy whatever attached to prostitution. High placed officials could claim payment of their expenses incurred in visiting prostitutes when traveling on public business. Prostitution sometimes played an official part in festivities and receptions accorded by great cities to royal guests, and the brothel might form an important part of the city's hospitality. When the Emperor Sigismund came to Ulm in 1434 the streets were illuminated at such times as he or his suite desired to visit the common brothel. Brothels under municipal protection are found in the thirteenth century in Augsburg, in Vienna, in Hamburg.[151] In France the best known _abbayes_ of prostitutes were those of Toulouse and Montpellier.[152] Durkheim is of opinion that in the early middle ages, before this period, free love and marriage were less severely differentiated. It was the rise of the middle class, he considers, anxious to protect their wives and daughters, which led to a regulated and publicly recognized attempt to direct debauchery into a separate channel, brought under control.[153] These brothels constituted a kind of public service, the directors of them being regarded almost as public officials, bound to keep a certain number of prostitutes, to charge according to a fixed tariff, and not to receive into their houses girls belonging to the neighborhood. The institutions of this kind lasted for three centuries. It was, in part, perhaps, the impetus of the new Protestant movement, but mainly the terrible devastation produced by the introduction of syphilis from America at the end of the fifteenth century which, as Burckhardt and others have pointed out, led to the decline of the mediæval brothels.[154]

The superior modern prostitute, the "courtesan" who had no connection with the brothel, seems to have been the outcome of the Renaissance and made her appearance in Italy at the end of the fifteenth century. "Courtesan" or "cortegiana" meant a lady following the court, and the term began at this time to be applied to a superior prostitute observing a certain degree of decorum and restraint.[155] In the papal court of Alexander Borgia the courtesan flourished even when her conduct was not altogether dignified. Burchard, the faithful and unimpeachable chronicler of this court, describes in his diary how, one evening, in October, 1501, the Pope sent for fifty courtesans to be brought to his chamber; after supper, in the presence of Cæsar Borgia and his young sister Lucrezia, they danced with the servitors and others who were present, at first clothed, afterwards naked. The candlesticks with lighted candles were then placed upon the floor and chestnuts thrown among them, to be gathered by the women crawling between the candlesticks on their hands and feet. Finally a number of prizes were brought forth to be awarded to those men "qui pluries dictos meretrices carnaliter agnoscerent," the victor in the contest being decided according to the judgment of the spectators.[156] This scene, enacted publicly in the Apostolic palace and serenely set forth by the impartial secretary, is at once a notable episode in the history of modern prostitution and one of the most illuminating illustrations we possess of the paganism of the Renaissance.

Before the term "courtesan" came into repute, prostitutes were even in Italy commonly called "sinners," _peccatrice_. The change, Graf remarks in a very interesting study of the Renaissance prostitute ("Una Cortigiana fra Mille," _Attraverso il Cinquecento_, pp. 217-351), "reveals a profound alteration in ideas and in life;" a term that suggested infamy gave place to one that suggested approval, and even honor, for the courts of the Renaissance period represented the finest culture of the time. The best of these courtesans seem to have been not altogether unworthy of the honor they received. We can detect this in their letters. There is a chapter on the letters of Renaissance prostitutes, especially those of Camilla de Pisa which are marked by genuine passion, in Lothar Schmidt's _Frauenbriefe der Renaissance_. The famous Imperia, called by a Pope in the early years of the sixteenth century "nobilissimum Romæ scortum," knew Latin and could write Italian verse. Other courtesans knew Italian and Latin poetry by heart, while they were accomplished in music, dancing, and speech. We are reminded of ancient Greece, and Graf, discussing how far the Renaissance courtesans resembled the hetairæ, finds a very considerable likeness, especially in culture and influence, though with some differences due to the antagonism between religion and prostitution at the later period.

The most distinguished figure in every respect among the courtesans of that time was certainly Tullia D'Aragona. She was probably the daughter of Cardinal D'Aragona (an illegitimate scion of the Spanish royal family) by a Ferrarese courtesan who became his mistress. Tullia has gained a high reputation by her verse. Her best sonnet is addressed to a youth of twenty, whom she passionately loved, but who did not return her love. Her _Guerrino Meschino_, a translation from the Spanish, is a very pure and chaste work. She was a woman of refined instincts and aspirations, and once at least she abandoned her life of prostitution. She was held in high esteem and respect. When, in 1546, Cosimo, Duke of Florence, ordered all prostitutes to wear a yellow veil or handkerchief as a public badge of their profession, Tullia appealed to the Duchess, a Spanish lady of high character, and received permission to dispense with this badge on account of her "rara scienzia di poesia et filosofia." She dedicated her _Rime_ to the Duchess. Tullia D'Aragona was very beautiful, with yellow hair, and remarkably large and bright eyes, which dominated those who came near her. She was of proud bearing and inspired unusual respect (G. Biagi, "Un' Etera Romana," _Nuova Antologia_, vol. iv, 1886, pp. 655-711; S. Bongi, _Rivista critica della Letteratura Italiana_, 1886, IV, p. 186).

Tullia D'Aragona was clearly not a courtesan at heart. Perhaps the most typical example of the Renaissance courtesan at her best is furnished by Veronica Franco, born in 1546 at Venice, of middle class family and in early life married to a doctor. Of her also it has been said that, while by profession a prostitute, she was by inclination a poet. But she appears to have been well content with her profession, and never ashamed of it. Her life and character have been studied by Arturo Graf, and more slightly in a little book by Tassini. She was highly cultured, and knew several languages; she also sang well and played on many instruments. In one of her letters she advises a youth who was madly in love with her that if he wishes to obtain her favors he must leave off importuning her and devote himself tranquilly to study. "You know well," she adds, "that all those who claim to be able to gain my love, and who

are extremely dear to me, are strenuous in studious discipline.... If my fortune allowed it I would spend all my time quietly in the academies of virtuous men." The Diotimas and Aspasias of antiquity, as Graf comments, would not have demanded so much of their lovers. In her poems it is possible to trace some of her love histories, and she often shows herself torn by jealousy at the thought that perhaps another woman may approach her beloved. Once she fell in love with an ecclesiastic, possibly a bishop, with whom she had no relationships, and after a long absence, which healed her love, she and he became sincere friends. Once she was visited by Henry III of France, who took away her portrait, while on her part she promised to dedicate a book to him; she so far fulfilled this as to address some sonnets to him and a letter; "neither did the King feel ashamed of his intimacy with the courtesan," remarks Graf, "nor did she suspect that he would feel ashamed of it." When Montaigne passed through Venice she sent him a little book of hers, as we learn from his _Journal_, though they do not appear to have met. Tintoret was one of her many distinguished friends, and she was a strenuous advocate of the high qualities of modern, as compared with ancient, art. Her friendships were affectionate, and she even seems to have had various grand ladies among her friends. She was, however, so far from being ashamed of her profession of courtesan that in one of her poems she affirms she has been taught by Apollo other arts besides those he is usually regarded as teaching:

"Cosi dolce e gustevole divento, Quando mi trovo con persona in letto Da cui amata e gradita mi sento."

In a certain _catalogo_ of the prices of Venetian courtesans Veronica is assigned only 2 scudi for her favors, while the courtesan to whom the catalogue is dedicated is set down at 25 scudi. Graf thinks there may be some mistake or malice here, and an Italian gentleman of the time states that she required not less than 50 scudi from those to whom she was willing to accord what Montaigne called the "negotiation entière."

In regard to this matter it may be mentioned that, as stated by Bandello, it was the custom for a Venetian prostitute to have six or seven gentlemen at a time as her lovers. Each was entitled to come to sup and sleep with her on one night of the week, leaving her days free. They paid her so much per month, but she always definitely reserved the right to receive a stranger passing through Venice, if she wished, changing the time of her appointment with her lover for the night. The high and special prices which we find recorded are, of course, those demanded from the casual distinguished stranger who came to Venice as, once in the sixteenth century, Montaigne came.

In 1580 (when not more than thirty-four) Veronica confessed to the Holy Office that she had had six children. In the same year she formed the design of founding a home, which should not be a monastery, where prostitutes who wished to abandon their mode of life could find a refuge with their children, if they had any. This seems to have led to the establishment of a Casa del Soccorso. In 1591 she died of fever, reconciled with God and blessed by many unfortunates. She had a good heart and a sound intellect, and was the last of the great Renaissance courtesans who revived

Greek hetairism (Graf, _Attraverso il Cinquecento_, pp. 217-351). Even in sixteenth century Venice, however, it will be seen, Veronica Franco seems to have been not altogether at peace in the career of a courtesan. She was clearly not adapted for ordinary marriage, yet under the most favorable conditions that the modern world has ever offered it may still be doubted whether a prostitute's career can offer complete satisfaction to a woman of large heart and brain.

Ninon de Lenclos, who is frequently called "the last of the great courtesans," may seem an exception to the general rule as to the inability of a woman of good heart, high character, and fine intelligence to find satisfaction in a prostitute's life. But it is a total misconception alike of Ninon de Lenclos's temperament and her career to regard her as in any true sense a prostitute at all. A knowledge of even the barest outlines of her life ought to prevent such a mistake. Born early in the seventeenth century, she was of good family on both sides; her mother was a woman of severe life, but her father, a gentleman of Touraine, inspired her with his own Epicurean philosophy as well as his love of music. She was extremely well educated. At the age of sixteen or seventeen she had her first lover, the noble and valiant Gaspard de Coligny; he was followed for half a century by a long succession of other lovers, sometimes more than one at a time; three years was the longest period during which she was faithful to one lover. Her attractions lasted so long that, it is said, three generations of Sévignés were among her lovers. Tallemant des Réaux enables us to study in detail her _liaisons_.

It is not, however, the abundance of lovers which makes a woman a prostitute, but the nature of her relationships with them. Sainte-Beuve, in an otherwise admirable study of Ninon de Lenclos (_Causeries du Lundi_, vol. iv), seems to reckon her among the courtesans. But no woman is a prostitute unless she uses men as a source of pecuniary gain. Not only is there no evidence that this was the case with Ninon, but all the evidence excludes such a relationship. "It required much skill," said Voltaire, "and a great deal of love on her part, to induce her to accept presents." Tallemant, indeed, says that she sometimes took money from her lovers, but this statement probably involves nothing beyond what is contained in Voltaire's remark, and, in any case, Tallemant's gossip, though usually well-informed, was not always reliable. All are agreed as to her extreme disinterestedness.

When we hear precisely of Ninon de Lenclos in connection with money, it is not as receiving a gift, but only as repaying a debt to an old lover, or restoring a large sum left with her for safe keeping when the owner was exiled. Such incidents are far from suggesting the professional prostitute of any age; they are rather the relationships which might exist between men friends. Ninon de Lenclos's character was in many respects far from perfect, but she combined many masculine virtues, and especially probity, with a temperament which, on the whole, was certainly feminine; she hated hypocrisy, and she was never influenced by pecuniary considerations. She was, moreover, never reckless, but always retained a certain self-restraint and temperance, even in eating and drinking, and, we are told, she never drank wine. She was, as Sainte-Beuve has remarked, the first to realize that there must be the same virtues for men and for women, and that it is absurd to reduce all feminine virtues to

one. "Our sex has been burdened with all the frivolities," she wrote, "and men have reserved to themselves the essential qualities: I have made myself a man." She sometimes dressed as a man when riding (see, e.g., _Correspondence Authentique_ of Ninon de Lenclos, with a good introduction by Emile Colombey). Consciously or not, she represented a new feminine idea at a period when--as we may see in many forgotten novels written by the women of that time--ideas were beginning to emerge in the feminine sphere. She was the first, and doubtless, from one point of view, the most extreme representative of a small and distinguished group of French women among whom Georges Sand is the finest personality.

Thus it is idle to attempt to adorn the history of prostitution with the name of Ninon de Lenclos. A debauched old prostitute would never, like Ninon towards the end of her long life, have been able to retain or to conquer the affection and the esteem of many of the best men and women of her time; even to the austere Saint-Simon it seemed that there reigned in her little court a decorum which the greatest princesses cannot achieve. She was not a prostitute, but a woman of unique personality with a little streak of genius in it. That she was inimitable we need not perhaps greatly regret. In her old age, in 1699, her old friend and former lover, Saint-Evremond, wrote to her, with only a little exaggeration, that there were few princesses and few saints who would not leave their courts and their cloisters to change places with her. "If I had known beforehand what my life would be I would have hanged myself," was her oft-quoted answer. It is, indeed, a solitary phrase that slips in, perhaps as the expression of a momentary mood; one may make too much of it. More truly characteristic is the fine saying in which her Epicurean philosophy seems to stretch out towards Nietzsche: "La joie de l'esprit en marque la force."

The frank acceptance of prostitution by the spiritual or even the temporal power has since the Renaissance become more and more exceptional. The opposite extreme of attempting to uproot prostitution has also in practice been altogether abandoned. Sporadic attempts have indeed been made, here and there, to put down prostitution with a strong hand even in quite modern times. It is now, however, realized that in such a case the remedy is worse than the disease.

In 1860 a Mayor of Portsmouth felt it his duty to attempt to suppress prostitution. "In the early part of his mayoralty," according to a witness before the Select Committee on the Contagious Diseases Acts (p. 393), "there was an order passed that every beerhouse-keeper and licensed victualer in the borough known to harbor these women would be dealt with, and probably lose his license. On a given day about three hundred or four hundred of these forlorn outcasts were bundled wholesale into the streets, and they formed up in a large body, many of them with only a shift and a petticoat on, and with a lot of drunken men and boys with a fife and fiddle they paraded the streets for several days. They marched in a body to the workhouse, but for many reasons they were refused admittance.... These women wandered about for two or three days shelterless, and it was felt that the remedy was very much worse than the disease, and the women were allowed to go back to their former places."

Similar experiments have been made even more recently in America. "In Pittsburg, Pennsylvania, in 1891, the houses of prostitutes were closed, the inmates turned out

upon the streets, and were refused lodging and even food by the citizens of that place. A wave of popular remonstrance, all over the country, at the outrage on humanity, created a reaction which resulted in a last condition by no means better than the first." In the same year also a similar incident occurred in New York with the same unfortunate results (Isidore Dyer, "The Municipal Control of Prostitution in the United States," report presented to the Brussels International Conference in 1899).

There grew up instead the tendency to regulate prostitution, to give it a semi-official toleration which enabled the authorities to exercise a control over it, and to guard as far as possible against its evil by medical and police inspection. The new brothel system differed from the ancient mediæval houses of prostitution in important respects; it involved a routine of medical inspection and it endeavored to suppress any rivalry by unlicensed prostitutes outside. Bernard Mandeville, the author of the _Fable of the Bees_, and an acute thinker, was a pioneer in the advocacy of this system. In 1724, in his _Modest Defense of Publick Stews_, he argues that "the encouraging of public whoring will not only prevent most of the mischievous effects of this vice, but even lessen the quantity of whoring in general, and reduce it to the narrowest bounds which it can possibly be contained in." He proposed to discourage private prostitution by giving special privileges and immunities to brothels by Act of Parliament. His scheme involved the erection of one hundred brothels in a special quarter of the city, to contain two thousand prostitutes and one hundred matrons of ability and experience with physicians and surgeons, as well as commissioners to oversee the whole. Mandeville was regarded merely as a cynic or worse, and his scheme was ignored or treated with contempt. It was left to the genius of Napoleon, eighty years later, to establish the system of "maisons de tolérance," which had so great an influence over modern European practice during a large part of the last century and even still in its numerous survivals forms the subject of widely divergent opinions.

On the whole, however, it must be said that the system of registering, examining, and regularizing prostitutes now belongs to the past. Many great battles have been fought over this question; the most important is that which raged for many years in England over the Contagious Diseases Acts, and is embodied in the 600 pages of a Report by a Select Committee on these Acts issued in 1882. The majority of the members of the Committee reported favorably to the Acts which were, notwithstanding, repealed in 1886, since which date no serious attempt has been made in England to establish them again.

At the present time, although the old system still stands in many countries with the inert stolidity of established institutions, it no longer commands general approval. As Paul and Victor Margueritte have truly stated, in the course of an acute examination of the phenomena of state-regulated prostitution as found in Paris, the system is "barbarous to start with and almost inefficacious as well." The expert is every day more clearly demonstrating its inefficacy while the psychologist and the sociologist are constantly becoming more convinced that it is barbarous.

It can indeed by no means be said that any unanimity has been attained. It is obviously so urgently necessary to combat the flood of disease and misery which

proceeds directly from the spread of syphilis and gonorrhoea, and indirectly from the prostitution which is the chief propagator of these diseases, that we cannot be surprised that many should eagerly catch at any system which seems to promise a palliation of the evils. At the present time, however, it is those best acquainted with the operation of the system of control who have most clearly realized that the supposed palliation is for the most part illusory,[157] and in any case attained at the cost of the artificial production of other evils. In France, where the system of the registration and control of prostitutes has been established for over a century,[158] and where consequently its advantages, if such there are, should be clearly realized, it meets with almost impassioned opposition from able men belonging to every section of the community. In Germany the opposition to regularized control has long been led by well-equipped experts, headed by Blaschko of Berlin. Precisely the same conclusions are being reached in America. Gottheil, of New York, finds that the municipal control of prostitution is "neither successful nor desirable." Heidingsfeld concludes that the regulation and control system in force in Cincinnati has done little good and much harm; under the system among the private patients in his own clinic the proportion of cases of both syphilis and gonorrhoea has increased; "suppression of prostitutes is impossible and control is impracticable."[159]

It is in Germany that the attempt to regulate prostitution still remains most persistent, with results that in Germany itself are regarded as unfortunate. Thus the German law inflicts a penalty on householders who permit illegitimate sexual intercourse in their houses. This is meant to strike the unlicensed prostitute, but it really encourages prostitution, for a decent youth and girl who decide to form a relationship which later may develop into marriage, and which is not illegal (for extra-marital sexual intercourse _per se_ is not in Germany, as it is by the antiquated laws of several American States, a punishable offense), are subjected to so much trouble and annoyance by the suspicious police that it is much easier for the girl to become a prostitute and put herself under the protection of the police. The law was largely directed against those who live on the profits of prostitution. But in practice it works out differently. The prostitute simply has to pay extravagantly high rents, so that her landlord really lives on the fruits of her trade, while she has to carry on her business with increased activity and on a larger scale in order to cover her heavy expenses (P. Hausmeister, "Zur Analyse der Prostitution," _Geschlecht und Gesellschaft_, vol. ii, 1907, p. 294).

In Italy, opinion on this matter is much divided. The regulation of prostitution has been successively adopted, abandoned, and readopted. In Switzerland, the land of governmental experiments, various plans are tried in different cantons. In some there is no attempt to interfere with prostitution, except under special circumstances; in others all prostitution, and even fornication generally, is punishable; in Geneva only native prostitutes are permitted to practice; in Zurich, since 1897, prostitution is prohibited, but care is taken to put no difficulties in the path of free sexual relationships which are not for gain. With these different regulations, morals in Switzerland generally are said to be much on the same level as elsewhere (Moreau-Christophe, _Du Problème de la Misère_, vol. iii, p. 259). The same conclusion holds good of London. A disinterested observer, Félix Remo (_La Vie

Galante en Angleterre_, 1888, p. 237), concluded that, notwithstanding its free trade in prostitution, its alcoholic excesses, its vices of all kinds, "London is one of the most moral capitals in Europe." The movement towards freedom in this matter has been evidenced in recent years by the abandonment of the system of regulation by Denmark in 1906.

Even the most ardent advocates of the registration of prostitutes recognize that not only is the tendency of civilization opposed rather than favorable to the system, but that in the numerous countries where the system persists registered prostitutes are losing ground in the struggle against clandestine prostitutes. Even in France, the classic land of police-controlled prostitutes, the "maisons de tolérance" have long been steadily decreasing in number, by no means because prostitution is decreasing but because low-class _brasseries_ and small _cafés-chantants_, which are really unlicensed brothels, are taking their place.[160]

The wholesale regularization of prostitution in civilized centres is nowadays, indeed, advocated by few, if any, of the authorities who belong to the newer school. It is at most claimed as desirable in certain places under special circumstances.[161] Even those who would still be glad to see prostitution thoroughly in the control of the police now recognize that experience shows this to be impossible. As many girls begin their career as prostitutes at a very early age, a sound system of regulation should be prepared to enroll as permanent prostitutes even girls who are little more than children. That, however, is a logical conclusion against which the moral sense, and even the common sense, of a community instinctively revolts. In Paris girls may not be inscribed as prostitutes until they have reached the age of sixteen and some consider even that age too low.[162] Moreover, whenever she becomes diseased, or grows tired of her position, the registered woman may always slip out of the hands of the police and establish herself elsewhere as a clandestine prostitute. Every rigid attempt to keep prostitution within the police ring leads to offensive interference with the actions and the freedom of respectable women which cannot fail to be intolerable in any free community. Even in a city like London, where prostitution is relatively free, the supervision of the police has led to scandalous police charges against women who have done nothing whatever which should legitimately arouse suspicion of their behavior. The escape of the infected woman from the police cordon has, it is obvious, an effect in raising the apparent level of health of registered women, and the police statistics are still further fallaciously improved by the fact that the inmates of brothels are older on the average than clandestine prostitutes and have become immune to disease.[163] These facts are now becoming fairly obvious and well recognized. The state regulation of prostitution is undesirable, on moral grounds for the oft-emphasized reason that it is only applied to one sex, and on practical grounds because it is ineffective. Society allows the police to harass the prostitute with petty persecutions under the guise of charges of "solicitation," "disorderly conduct," etc., but it is no longer convinced that she ought to be under the absolute control of the police.

The problem of prostitution, when we look at it narrowly, seems to be in the same position to-day as at any time in the course of the past three thousand years. In order,

however, to comprehend the real significance of prostitution, and to attain a reasonable attitude towards it, we must look at it from a broader point of view; we must consider not only its evolution and history, but its causes and its relation to the wider aspects of modern social life. When we thus view the problem from a broader standpoint we shall find that there is no conflict between the claims of ethics and those of social hygiene, and that the coördinated activity of both is involved in the progressive refinement and purification of civilized sexual relationships.

III. The Causes of Prostitution.

The history of the rise and development of prostitution enables us to see that prostitution is not an accident of our marriage system, but an essential constituent which appears concurrently with its other essential constituents. The gradual development of the family on a patriarchal and largely monogamic basis rendered it more and more difficult for a woman to dispose of her own person. She belongs in the first place to her father, whose interest it was to guard her carefully until a husband appeared who could afford to purchase her. In the enhancement of her value the new idea of the market value of virginity gradually developed, and where a "virgin" had previously meant a woman who was free to do as she would with her own body its meaning was now reversed and it came to mean a woman who was precluded from having intercourse with men. When she was transferred from her father to a husband, she was still guarded with the same care; husband and father alike found their interest in preserving their women from unmarried men. The situation thus produced resulted in the existence of a large body of young men who were not yet rich enough to obtain wives, and a large number of young women, not yet chosen as wives, and many of whom could never expect to become wives. At such a point in social evolution prostitution is clearly inevitable; it is not so much the indispensable concomitant of marriage as an essential part of the whole system. Some of the superfluous or neglected women, utilizing their money value and perhaps at the same time reviving traditions of an earlier freedom, find their social function in selling their favors to gratify the temporary desires of the men who have not yet been able to acquire wives. Thus every link in the chain of the marriage system is firmly welded and the complete circle formed.

But while the history of the rise and development of prostitution shows us how indestructible and essential an element prostitution is of the marriage system which has long prevailed in Europe--under very varied racial, political, social, and religious conditions--it yet fails to supply us in every respect with the data necessary to reach a definite attitude towards prostitution to-day. In order to understand the place of prostitution in our existing system, it is necessary that we should analyze the chief factors of prostitution. We may most conveniently learn to understand these if we consider prostitution, in order, under four aspects. These are: (1) _economic_ necessity; (2) _biological_ predisposition; (3) _moral_ advantages; and (4) what may be called its _civilizational_ value.

While these four factors of prostitution seem to me those that here chiefly concern us, it is scarcely necessary to point out that many other causes contribute to produce and modify prostitution. Prostitutes themselves often seek to lead other girls to adopt

the same paths; recruits must be found for brothels, whence we have the "white slave trade," which is now being energetically combated in many parts of the world; while all the forms of seduction towards this life are favored and often predisposed to by alcoholism. It will generally be found that several causes have combined to push a girl into the career of prostitution.

The ways in which various factors of environment and suggestion unite to lead a girl into the paths of prostitution are indicated in the following statement in which a correspondent has set forth his own conclusions on this matter as a man of the world: "I have had a somewhat varied experience among loose women, and can say, without hesitation, that not more than 1 per cent, of the women I have known could be regarded as educated. This indicates that almost invariably they are of humble origin, and the terrible cases of overcrowding that are daily brought to light suggest that at very early ages the sense of modesty becomes extinct, and long before puberty a familiarity with things sexual takes place. As soon as they are old enough these girls are seduced by their sweethearts; the familiarity with which they regard sexual matters removes the restraint which surrounds a girl whose early life has been spent in decent surroundings. Later they go to work in factories and shops; if pretty and attractive, they consort with managers and foremen. Then the love of finery, which forms so large a part of the feminine character, tempts the girl to become the 'kept' woman of some man of means. A remarkable thing in this connection is the fact that they rarely enjoy excitement with their protectors, preferring rather the coarser embraces of some man nearer their own station in life, very often a soldier. I have not known many women who were seduced and deserted, though this is a fiction much affected by prostitutes. Barmaids supply a considerable number to the ranks of prostitution, largely on account of their addiction to drink; drunkenness invariably leads to laxness of moral restraint in women. Another potent factor in the production of prostitutes lies in the flare of finery flaunted by some friend who has adopted the life. A girl, working hard to live, sees some friend, perhaps making a call in the street where the hard-working girl lives, clothed in finery, while she herself can hardly get enough to eat. She has a conversation with her finely-clad friend who tells her how easily she can earn money, explaining what a vital asset the sexual organs are, and soon another one is added to the ranks."

There is some interest in considering the reasons assigned for prostitutes entering their career. In some countries this has been estimated by those who come closely into official or other contact with prostitutes. In other countries, it is the rule for girls, before they are registered as prostitutes, to state the reasons for which they desire to enter the career.

Parent-Duchâtelet, whose work on prostitutes in Paris is still an authority, presented the first estimate of this kind. He found that of over five thousand prostitutes, 1441 were influenced by poverty, 1425 by seduction of lovers who had abandoned them, 1255 by the loss of parents from death or other cause. By such an estimate, nearly the whole number are accounted for by wretchedness, that is by economic causes, alone (Parent-Duchâtelet, _De la Prostitution_, 1857, vol. i, p. 107).

In Brussels during a period of twenty years (1865-1884) 3505 women were inscribed as prostitutes. The causes they assigned for desiring to take to this career present a different picture from that shown by Parent-Duchâtelet, but perhaps a more reliable one, although there are some marked and curious discrepancies. Out of the 3505, 1523 explained that extreme poverty was the cause of their degradation; 1118 frankly confessed that their sexual passions were the cause; 420 attributed their fall to evil company; 316 said they were disgusted and weary of their work, because the toil was so arduous and the pay so small; 101 had been abandoned by their lovers; 10 had quarrelled with their parents; 7 were abandoned by their husbands; 4 did not agree with their guardians; 3 had family quarrels; 2 were compelled to prostitute themselves by their husbands, and 1 by her parents (_Lancet_, June 28, 1890, p. 1442).

In London, Merrick found that of 16,022 prostitutes who passed through his hands during the years he was chaplain at Millbank prison, 5061 voluntarily left home or situation for "a life of pleasure;" 3363 assigned poverty as the cause; 3154 were "seduced" and drifted on to the street; 1636 were betrayed by promises of marriage and abandoned by lover and relations. On the whole, Merrick states, 4790, or nearly one-third of the whole number, may be said to owe the adoption of their career directly to men, 11,232 to other causes. He adds that of those pleading poverty a large number were indolent and incapable (G.P. Merrick, _Work Among the Fallen_, p. 38).

Logan, an English city missionary with an extensive acquaintance with prostitutes, divided them into the following groups: (1) One-fourth of the girls are servants, especially in public houses, beer shops, etc., and thus led into the life; (2) one-fourth come from factories, etc.; (3) nearly one-fourth are recruited by procuresses who visit country towns, markets, etc.; (4) a final group includes, on the one hand, those who are induced to become prostitutes by destitution, or indolence, or a bad temper, which unfits them for ordinary avocations, and, on the other hand, those who have been seduced by a false promise of marriage (W. Logan, _The Great Social Evil_, 1871, p. 53).

In America Sanger has reported the results of inquiries made of two thousand New York prostitutes as to the causes which induced them to take up their avocation:

Destitution 525 Inclination 513 Seduced and abandoned 258 Drink and desire for drink 181 Ill-treatment by parents, relations, or husbands 164 As an easy life 124 Bad company 84 Persuaded by prostitutes 71 Too idle to work 29 Violated 27 Seduced on emigrant ship 16 Seduced in emigrant boarding homes 8 ----- 2,000

(Sanger, _History of Prostitution_, p. 488.)

In America, again, more recently, Professor Woods Hutchinson put himself into communication with some thirty representative men in various great metropolitan centres, and thus summarizes the answers as regards the etiology of prostitution:

Per cent.

Love of display, luxury and idleness 42.1 Bad family surroundings 23.8 Seduction in which they were innocent victims 11.3 Lack of employment 9.4 Heredity 7.8 Primary sexual appetite 5.6

(Woods Hutchinson, "The Economics of Prostitution," _American Gynæcologic and Obstetric Journal_, September, 1895; _Id., The Gospel According to Darwin_, p. 194.)

In Italy, in 1881, among 10,422 inscribed prostitutes from the age of seventeen upwards, the causes of prostitution were classified as follows:

Vice and depravity 2,752 Death of parents, husband, etc. 2,139 Seduction by lover 1,653 Seduction by employer 927 Abandoned by parents, husband, etc. 794 Love of luxury 698 Incitement by lover or other persons outside family 666 Incitement by parents or husband 400 To support parents or children 393

(Ferriani, _Minorenni Delinquenti_, p. 193.) The reasons assigned by Russian prostitutes for taking up their career are (according to Federow) as follows:

38.5 per cent. insufficient wages. 21. per cent. desire for amusement. 14. per cent. loss of place. 9.5 per cent. persuasion by women friends. 6.5 per cent. loss of habit of work. 5.5 per cent. chagrin, and to punish lover. .5 per cent. drunkenness.

(Summarized in _Archives d'Anthropologie Criminelle_, Nov. 15, 1901.)

1. _The Economic Causation of Prostitution_.--Writers on prostitution frequently assert that economic conditions lie at the root of prostitution and that its chief cause is poverty, while prostitutes themselves often declare that the difficulty of earning a livelihood in other ways was a main cause in inducing them to adopt this career. "Of all the causes of prostitution," Parent-Duchâtelet wrote a century ago, "particularly in Paris, and probably in all large cities, none is more active than lack of work and the misery which is the inevitable result of insufficient wages." In England, also, to a large extent, Sherwell states, "morals fluctuate with trade."[164] It is equally so in Berlin where the number of registered prostitutes increases during bad years.[165] It is so also in America. It is the same in Japan; "the cause of causes is poverty."[166]

Thus the broad and general statement that prostitution is largely or mainly an economic phenomenon, due to the low wages of women or to sudden depressions in trade, is everywhere made by investigators. It must, however, be added that these general statements are considerably qualified in the light of the detailed investigations made by careful inquirers. Thus Ströhmberg, who minutely investigated 462 prostitutes, found that only one assigned destitution as the reason for adopting her career, and on investigation this was found to be an impudent lie.[167] Hammer found that of ninety registered German prostitutes not one had entered on the career out of want or to support a child, while some went on the street while in the possession of money, or without wishing to be paid.[168] Pastor Buschmann, of the Teltow Magdalene Home in Berlin, finds that it is not want but indifference to moral considerations which leads girls to become prostitutes. In Germany, before a girl is put on the police register, due care is always taken to give her a chance of entering a Home and getting work; in Berlin, in the course of ten years, only two girls--out of thousands--were willing to take advantage of this

opportunity. The difficulty experienced by English Rescue Homes in finding girls who are willing to be "rescued" is notorious. The same difficulty is found in other cities, even where entirely different conditions prevail; thus it is found in Madrid, according to Bernaldo de Quirós and Llanas Aguilaniedo, that the prostitutes who enter the Homes, notwithstanding all the devotion of the nuns, on leaving at once return to their old life. While the economic factor in prostitution undoubtedly exists, the undue frequency and emphasis with which it is put forward and accepted is clearly due, in part to ignorance of the real facts, in part to the fact that such an assumption appeals to those whose weakness it is to explain all social phenomena by economic causes, and in part to its obvious plausibility.[169]

Prostitutes are mainly recruited from the ranks of factory girls, domestic servants, shop girls, and waitresses. In some of these occupations it is difficult to obtain employment all the year round. In this way many milliners, dressmakers and tailoresses become prostitutes when business is slack, and return to business when the season begins. Sometimes the regular work of the day is supplemented concurrently by prostitution in the street in the evening. It is said, possibly with some truth, that amateur prostitution of this kind is extremely prevalent in England, as it is not checked by the precautions which, in countries where prostitution is regulated, the clandestine prostitute must adopt in order to avoid registration. Certain public lavatories and dressing-rooms in central London are said to be used by the girls for putting on, and finally washing off before going home, the customary paint.[170] It is certain that in England a large proportion of parents belonging to the working and even lower middle class ranks are unacquainted with the nature of the lives led by their own daughters. It must be added, also, that occasionally this conduct of the daughter is winked at or encouraged by the parents; thus a correspondent writes that he "knows some towns in England where prostitution is not regarded as anything disgraceful, and can remember many cases where the mother's house has been used by the daughter with the mother's knowledge."

Acton, in a well-informed book on London prostitution, written in the middle of the last century, said that prostitution is "a transitory stage, through which an untold number of British women are ever on their passage."[171] This statement was strenuously denied at the time by many earnest moralists who refused to admit that it was possible for a woman who had sunk into so deep a pit of degradation ever to climb out again, respectably safe and sound. Yet it is certainly true as regards a considerable proportion of women, not only in England, but in other countries also. Thus Parent-Duchâtelet, the greatest authority on French prostitution, stated that "prostitution is for the majority only a transitory stage; it is quitted usually during the first year; very few prostitutes continue until extinction." It is difficult, however, to ascertain precisely of how large a proportion this is true; there are no data which would serve as a basis for exact estimation,[172] and it is impossible to expect that respectable married women would admit that they had ever been "on the streets"; they would not, perhaps, always admit it even to themselves.

The following case, though noted down over twenty years ago, is fairly typical of a certain class, among the lower ranks of prostitution, in which the economic factor

counts for much, but in which we ought not too hastily to assume that it is the sole factor.

Widow, aged thirty, with two children. Works in an umbrella manufactory in the East End of London, earning eighteen shillings a week by hard work, and increasing her income by occasionally going out on the streets in the evenings. She haunts a quiet side street which is one of the approaches to a large city railway terminus. She is a comfortable, almost matronly-looking woman, quietly dressed in a way that is only noticeable from the skirts being rather short. If spoken to she may remark that she is "waiting for a lady friend," talks in an affected way about the weather, and parenthetically introduces her offers. She will either lead a man into one of the silent neighboring lanes filled with warehouses, or will take him home with her. She is willing to accept any sum the man may be willing or able to give; occasionally it is a sovereign, sometimes it is only a sixpence; on an average she earns a few shillings in an evening. She had only been in London for ten months; before that she lived in Newcastle. She did not go on the streets there; "circumstances alter cases," she sagely remarks. Though not speaking well of the police, she says they do not interfere with her as they do with some of the girls. She never gives them money, but hints that it is sometimes necessary to gratify their desires in order to keep on good terms with them.

It must always be remembered, for it is sometimes forgotten by socialists and social reformers, that while the pressure of poverty exerts a markedly modifying influence on prostitution, in that it increases the ranks of the women who thereby seek a livelihood and may thus be properly regarded as a factor of prostitution, no practicable raising of the rate of women's wages could possibly serve, directly and alone, to abolish prostitution. De Molinari, an economist, after remarking that "prostitution is an industry" and that if other competing industries can offer women sufficiently high pecuniary inducements they will not be so frequently attracted to prostitution, proceeds to point out that that by no means settles the question. "Like every other industry prostitution is governed by the demand of the need to which it responds. As long as that need and that demand persist, they will provoke an offer. It is the need and the demand that we must act on, and perhaps science will furnish us the means to do so."[173] In what way Molinari expects science to diminish the demand for prostitutes, however, is not clearly brought out.

Not only have we to admit that no practicable rise in the rate of wages paid to women in ordinary industries can possibly compete with the wages which fairly attractive women of quite ordinary ability can earn by prostitution,[174] but we have also to realize that a rise in general prosperity--which alone can render a rise of women's wages healthy and normal--involves a rise in the wages of prostitution, and an increase in the number of prostitutes. So that if good wages is to be regarded as the antagonist of prostitution, we can only say that it more than gives back with one hand what it takes with the other. To so marked a degree is this the case that Després in a detailed moral and demographic study of the distribution of prostitution in France comes to the conclusion that we must reverse the ancient doctrine that "poverty engenders prostitution" since prostitution regularly increases with

wealth,[175] and as a département rises in wealth and prosperity, so the number both of its inscribed and its free prostitutes rises also. There is indeed a fallacy here, for while it is true, as Després argues, that wealth demands prostitution, it is also true that a wealthy community involves the extreme of poverty as well as of riches and that it is among the poorer elements that prostitution chiefly finds its recruits. The ancient dictum that "poverty engenders prostitution" still stands, but it is complicated and qualified by the complex conditions of civilization. Bonger, in his able discussion of the economic side of the question, has realized the wide and deep basis of prostitution when he reaches the conclusion that it is "on the one hand the inevitable complement of the existing legal monogamy, and on the other hand the result of the bad conditions in which many young girls grow up, the result of the physical and psychical wretchedness in which the women of the people live, and the consequence also of the inferior position of women in our actual society."[176] A narrowly economic consideration of prostitution can by no means bring us to the root of the matter.

One circumstance alone should have sufficed to indicate that the inability of many women to secure "a living wage," is far from being the most fundamental cause of prostitution: a large proportion of prostitutes come from the ranks of domestic service. Of all the great groups of female workers, domestic servants are the freest from economic anxieties; they do not pay for food or for lodging; they often live as well as their mistresses, and in a large proportion of cases they have fewer money anxieties than their mistresses. Moreover, they supply an almost universal demand, so that there is never any need for even very moderately competent servants to be in want of work. They constitute, it is true, a very large body which could not fail to supply a certain contingent of recruits to prostitution. But when we see that domestic service is the chief reservoir from which prostitutes are drawn, it should be clear that the craving for food and shelter is by no means the chief cause of prostitution.

It may be added that, although the significance of this predominance of servants among prostitutes is seldom realized by those who fancy that to remove poverty is to abolish prostitution, it has not been ignored by the more thoughtful students of social questions. Thus Sherwell, while pointing out truly that, to a large extent, "morals fluctuate with trade," adds that, against the importance of the economic factor, it is a suggestive and in every way impressive fact that the majority of the girls who frequent the West End of London (88 per cent., according to the Salvation Army's Registers) are drawn from domestic service where the economic struggle is not severely felt (Arthur Sherwell, _Life in West London_, Ch. V, "Prostitution").

It is at the same time worthy of note that by the conditions of their lives servants, more than any other class, resemble prostitutes (Bernaldo de Quirós and Llanas Aguilaniedo have pointed this out in _La Mala Vida en Madrid_, p. 240). Like prostitutes, they are a class of women apart; they are not entitled to the considerations and the little courtesies usually paid to other women; in some countries they are even registered, like prostitutes; it is scarcely surprising that when they suffer from so many of the disadvantages of the prostitute, they should sometimes desire to possess also some of her advantages. Lily Braun (_Frauenfrage_,

pp. 389 et seq.) has set forth in detail these unfavorable conditions of domestic labor as they bear on the tendency of servant-girls to become prostitutes. R. de Ryckère, in his important work, _La Servante Criminelle_ (1907, pp. 460 et seq.; cf., the same author's article, "La Criminalité Ancillaire," _Archives d'Anthropologie Criminelle_, July and December, 1906), has studied the psychology of the servant-girl. He finds that she is specially marked by lack of foresight, vanity, lack of invention, tendency to imitation, and mobility of mind. These are characters which ally her to the prostitute. De Ryckère estimates the proportion of former servants among prostitutes generally as fifty per cent., and adds that what is called the "white slavery" here finds its most complacent and docile victims. He remarks, however, that the servant prostitute is, on the whole, not so much immoral as non-moral.

In Paris Parent-Duchâtelet found that, in proportion to their number, servants furnished the largest contingent to prostitution, and his editors also found that they head the list (Parent-Duchâtelet, edition 1857, vol. i, p. 83). Among clandestine prostitutes at Paris, Commenge has more recently found that former servants constitute forty per cent. In Bordeaux Jeannel (_De le Prostitution Publique_, p. 102) also found that in 1860 forty per cent, of prostitutes had been servants, seamstresses coming next with thirty-seven per cent.

In Germany and Austria it has long been recognized that domestic service furnishes the chief number of recruits to prostitution. Lippert, in Germany, and Gross-Hoffinger, in Austria, pointed out this predominance of maid-servants and its significance before the middle of the nineteenth century, and more recently Blaschko has stated ("Hygiene der Syphilis" in Weyl's _Handbuch der Hygiene_, Bd. ii, p. 40) that among Berlin prostitutes in 1898 maid-servants stand at the head with fifty-one per cent. Baumgarten has stated that in Vienna the proportion of servants is fifty-eight per cent.

In England, according to the Report of a Select Committee of the Lords on the laws for the protection of children, sixty per cent, of prostitutes have been servants. F. Remo, in his _Vie Galante en Angleterre_, states the proportion as eighty per cent. It would appear to be even higher as regards the West End of London. Taking London as a whole the extensive statistics of Merrick (_Work Among the Fallen_), chaplain of the Millbank Prison, showed that out of 14,790 prostitutes, 5823, or about forty per cent., had previously been servants, laundresses coming next, and then dressmakers; classifying his data somewhat more summarily and roughly, Merrick found that the proportion of servants was fifty-three per cent.

In America, among two thousand prostitutes, Sanger states that forty-three per cent, had been servants, dressmakers coming next, but at a long interval, with six per cent. (Sanger, _History of Prostitution_, p. 524). Among Philadelphia prostitutes, Goodchild states that "domestics are probably in largest proportion," although some recruits may be found from almost any occupation.

It is the same in other countries. In Italy, according to Tammeo (_La Prostituzione_, p. 100), servants come first among prostitutes with a proportion of twenty-eight per cent., followed by the group of dressmakers, tailoresses and milliners, seventeen per

cent. In Sardinia, A Mantegazza states, most prostitutes are servants from the country. In Russia, according to Fiaux, the proportion is forty-five per cent. In Madrid, according to Eslava (as quoted by Bernaldo de Quirós and Llanas Aguilaniedo (_La Mala Vida, en Madrid_, p. 239)), servants come at the head of registered prostitutes with twenty-seven per cent.--almost the same proportion as in Italy--and are followed by dressmakers. In Sweden, according to Welander (_Monatshefte für Praktische Dermatologie_, 1899, p. 477) among 2541 inscribed prostitutes, 1586 (or sixty-two per cent.) were domestic servants; at a long interval followed 210 seamstresses, then 168 factory workers, etc.

2. _The Biological Factor of Prostitution_.--Economic considerations, as we see, have a highly important modificatory influence on prostitution, although it is by no means correct to assert that they form its main cause. There is another question which has exercised many investigators: To what extent are prostitutes predestined to this career by organic constitution? It is generally admitted that economic and other conditions are an exciting cause of prostitution; in how far are those who succumb predisposed by the possession of abnormal personal characteristics? Some inquirers have argued that this predisposition is so marked that prostitution may fairly be regarded as a feminine equivalent for criminality, and that in a family in which the men instinctively turn to crime, the women instinctively turn to prostitution. Others have as strenuously denied this conclusion.

Lombroso has more especially advocated the doctrine that prostitution is the vicarious equivalent of criminality. In this he was developing the results reached, in the important study of the Jukes family, by Dugdale, who found that "there where the brothers commit crime, the sisters adopt prostitution;" the fines and imprisonments of the women of the family were not for violations of the right of property, but mainly for offences against public decency. "The psychological as well as anatomical identity of the criminal and the born prostitute," Lombroso and Ferrero concluded, "could not be more complete: both are identical with the moral insane, and therefore, according to the axiom, equal to each other. There is the same lack of moral sense, the same hardness of heart, the same precocious taste for evil, the same indifference to social infamy, the same volatility, love of idleness, and lack of foresight, the same taste for facile pleasures, for the orgy and for alcohol, the same, or almost the same, vanity. Prostitution is only the feminine side of criminality. And so true is it that prostitution and criminality are two analogous, or, so to say, parallel, phenomena, that at their extremes they meet. The prostitute is, therefore, psychologically a criminal: if she commits no offenses it is because her physical weakness, her small intelligence, the facility of acquiring what she wants by more easy methods, dispenses her from the necessity of crime, and on these very grounds prostitution represents the specific form of feminine criminality." The authors add that "prostitution is, in a certain sense, socially useful as an outlet for masculine sexuality and a preventive of crime" (Lombroso and Ferrero, _La Donna Delinquente_, 1893, p. 571).

Those who have opposed this view have taken various grounds, and by no means always understood the position they are attacking. Thus W. Fischer (in _Die Prostitution_) vigorously argues that prostitution is not an inoffensive equivalent of

criminality, but a factor of criminality. Féré, again (in _Dégénérescence et Criminalité_), asserts that criminality and prostitution are not equivalent, but identical. "Prostitutes and criminals," he holds, "have as a common character their unproductiveness, and consequently they are both anti-social. Prostitution thus constitutes a form of criminality." The essential character of criminals is not, however, their unproductiveness, for that they share with a considerable proportion of the wealthiest of the upper classes; it must be added, also, that the prostitute, unlike the criminal, is exercising an activity for which there is a demand, for which she is willingly paid, and for which she has to work (it has sometimes been noted that the prostitute looks down on the thief, who "does not work"); she is carrying on a profession, and is neither more nor less productive than those who carry on many more reputable professions. Aschaffenburg, also believing himself in opposition to Lombroso, argues, somewhat differently from Féré, that prostitution is not indeed, as Féré said, a form of criminality, but that it is too frequently united with criminality to be regarded as an equivalent. Mönkemöller has more recently supported the same view. Here, however, as usual, there is a wide difference of opinion as to the proportion of prostitutes of whom this is true. It is recognized by all investigators to be true of a certain number, but while Baumgarten, from an examination of eight thousand prostitutes, only found a minute proportion who were criminals, Ströhmberg found that among 462 prostitutes there were as many as 175 thieves. From another side, Morasso (as quoted in _Archivio di Psichiatria_, 1896, fasc. I), on the strength of his own investigations, is more clearly in opposition to Lombroso, since he protests altogether against any purely degenerative view of prostitutes which would in any way assimilate them with criminals.

The question of the sexuality of prostitutes, which has a certain bearing on the question of their tendency to degeneration, has been settled by different writers in different senses. While some, like Morasso, assert that sexual impulse is a main cause inducing women to adopt a prostitute's career, others assert that prostitutes are usually almost devoid of sexual impulse. Lombroso refers to the prevalence of sexual frigidity among prostitutes.[177] In London, Merrick, speaking from a knowledge of over 16,000 prostitutes, states that he has met with "only a very few cases" in which gross sexual desire has been the motive to adopt a life of prostitution. In Paris, Raciborski had stated at a much earlier period that "among prostitutes one finds very few who are prompted to libertinage by sexual ardor."[178] Commenge, again, a careful student of the Parisian prostitute, cannot admit that sexual desire is to be classed among the serious causes of prostitution. "I have made inquiries of thousands of women on this point," he states, "and only a very small number have told me that they were driven to prostitution for the satisfaction of sexual needs. Although girls who give themselves to prostitution are often lacking in frankness, on this point, I believe, they have no wish to deceive. When they have sexual needs they do not conceal them, but, on the contrary, show a certain _amour-propre_ in acknowledging them, as a sufficient sort of justification for their life; so that if only a very small minority avow this motive the reason is that for the great majority it has no existence."

There can be no doubt that the statements made regarding the sexual frigidity of prostitutes are often much too unqualified. This is in part certainly due to the fact that they are usually made by those who speak from a knowledge of old prostitutes whose habitual familiarity with normal sexual intercourse in its least attractive aspects has resulted in complete indifference to such intercourse, so far as their clients are concerned.[179] It may be stated with truth that to the woman of deep passions the ephemeral and superficial relationships of prostitution can offer no temptation. And it may be added that the majority of prostitutes begin their career at a very early age, long before the somewhat late period at which in women the tendency for passion to become strong, has yet arrived.[180] It may also be said that an indifference to sexual relationships, a tendency to attach no personal value to them, is often a predisposing cause in the adoption of a prostitute's career; the general mental shallowness of prostitutes may well be accompanied by shallowness of physical emotion. On the other hand, many prostitutes, at all events early in their careers, appear to show a marked degree of sensuality, and to women of coarse sexual fibre the career of prostitution has not been without attractions from this point of view; the gratification of physical desire is known to act as a motive in some cases and is clearly indicated in others.[181] This is scarcely surprising when we remember that prostitutes are in a very large proportion of cases remarkably robust and healthy persons in general respects.[182] They withstand without difficulty the risks of their profession, and though under its influence the manifestations of sexual feeling can scarcely fail to become modified or perverted in course of time, that is no proof of the original absence of sexual sensibility. It is not even a proof of its loss, for the real sexual nature of the normal prostitute, and her possibilities of sexual ardor, are chiefly manifested, not in her professional relations with her clients, but in her relations with her "fancy boy" or "bully."[183] It is quite true that the conditions of her life often make it practically advantageous to the prostitute to have attached to her a man who is devoted to her interests and will defend them if necessary, but that is only a secondary, occasional, and subsidiary advantage of the "fancy boy," so far as prostitutes generally are concerned. She is attracted to him primarily because he appeals to her personally and she wants him for herself. The motive of her attachment is, above all, erotic, in the full sense, involving not merely sexual relations but possession and common interests, a permanent and intimate life led together. "You know that what one does in the way of business cannot fill one's heart," said a German prostitute; "Why should we not have a husband like other women? I, too, need love. If that were not so we should not want a bully." And he, on his part, reciprocates this feeling and is by no means merely moved by self-interest.[184]

One of my correspondents, who has had much experience of prostitutes, not only in Britain, but also in Germany, France, Belgium and Holland, has found that the normal manifestations of sexual feeling are much more common in British than in continental prostitutes. "I should say," he writes, "that in normal coitus foreign women are generally unconscious of sexual excitement. I don't think I have ever known a foreign woman who had any semblance of orgasm. British women, on the other hand, if a man is moderately kind, and shows that he has some feelings beyond mere sensual gratification, often abandon themselves to the wildest delights of sexual excitement.

Of course in this life, as in others, there is keen competition, and a woman, to vie with her competitors, must please her gentlemen friends; but a man of the world can always distinguish between real and simulated passion." (It is possible, however, that he may be most successful in arousing the feelings of his own fellow-country women.) On the other hand, this writer finds that the foreign women are more anxious to provide for the enjoyment of their temporary consorts and to ascertain what pleases them. "The foreigner seems to make it the business of her life to discover some abnormal mode of sexual gratification for her consort." For their own pleasure also foreign prostitutes frequently ask for _cunnilinctus_, in preference to normal coitus, while anal coitus is also common. The difference evidently is that the British women, when they seek gratification, find it in normal coitus, while the foreign women prefer more abnormal methods. There is, however, one class of British prostitutes which this correspondent finds to be an exception to the general rule: the class of those who are recruited from the lower walks of the stage. "Such women are generally more licentious--that is to say, more acquainted with the bizarre in sexualism--than girls who come from shops or bars; they show a knowledge of _fellatio_, and even anal coitus, and during menstruation frequently suggest inter-mammary coitus."

On the whole it would appear that prostitutes, though not usually impelled to their life by motives of sensuality, on entering and during the early part of their career possess a fairly average amount of sexual impulse, with variations in both directions of excess and deficiency as well as of perversion. At a somewhat later period it is useless to attempt to measure the sexual impulse of prostitutes by the amount of pleasure they take in the professional performance of sexual intercourse. It is necessary to ascertain whether they possess sexual instincts which are gratified in other ways. In a large proportion of cases this is found to be so. Masturbation, especially, is extremely common among prostitutes everywhere; however prevalent it may be among women who have no other means of obtaining sexual gratification it is admitted by all to be still more prevalent among prostitutes, indeed almost universal.[185]

Homosexuality, though not so common as masturbation, is very frequently found among prostitutes--in France, it would seem, more frequently than in England--and it may indeed be said that it occurs more often among prostitutes than among any other class of women. It is favored by the acquired distaste for normal coitus due to professional intercourse with men, which leads homosexual relationships to be regarded as pure and ideal by comparison. It would appear also that in a considerable proportion of cases prostitutes present a congenital condition of sexual inversion, such a condition, with an accompanying indifference to intercourse with men, being a predisposing cause of the adoption of a prostitute's career. Kurella even regards prostitutes as constituting a sub-variety of congenital inverts. Anna Rüling in Germany states that about twenty per cent. prostitutes are homosexual; when asked what induced them to become prostitutes, more than one inverted woman of the street has replied to her that it was purely a matter of business, sexual feeling not coming into the question except with a friend of the same sex.[186]

The occurrence of congenital inversion among prostitutes--although we need not regard prostitutes as necessarily degenerate as a class--suggests the question whether we are likely to find an unusually large number of physical and other anomalies among them. It cannot be said that there is unanimity of opinion on this point. For some authorities prostitutes are merely normal ordinary women of low social rank, if indeed their instincts are not even a little superior to those of the class in which they were born. Other investigators find among them so large a proportion of individuals deviating from the normal that they are inclined to place prostitutes generally among one or other of the abnormal classes.[187]

Baumgarten, in Vienna, from a knowledge of over 8000 prostitutes, concluded that only a very minute proportion are either criminal or psychopathic in temperament or organization (_Archiv für Kriminal-Anthropologie_, vol. xi, 1902). It is not clear, however, that Baumgarten carried out any detailed and precise investigations. Mr. Lane, a London police magistrate, has stated as the result of his own observation, that prostitution is "at once a symptom and outcome of the same deteriorated physique and decadent moral fibre which determine the manufacture of male tramps, petty thieves, and professional beggars, of whom the prostitute is in general the female analogue" (_Ethnological Journal_, April, 1905, p. 41). This estimate is doubtless correct as regards a considerable proportion of the women, often enfeebled by drink, who pass through the police courts, but it could scarcely be applied without qualification to prostitutes generally.

Morasso (_Archivio di Psichiatria_, 1896, fasc. I) has protested against a purely degenerative view of prostitutes on the strength of his own observations. There is, he states, a category of prostitutes, unknown to scientific inquirers, which he calls that of the _prostitute di alto bordo_. Among these the signs of degeneration, physical or moral, are not to be found in greater number than among women who do not belong to prostitution. They reveal all sorts of characters, some of them showing great refinement, and are chiefly marked off by the possession of an unusual degree of sexual appetite. Even among the more degraded group of the _bassa prostituzione_, he asserts, we find a predominance of sexual, as well as professional, characters, rather than the signs of degeneration. It is sufficient to quote one more testimony, as set down many years ago by a woman of high intelligence and character, Mrs. Craik, the novelist: "The women who fall are by no means the worst of their station," she wrote. "I have heard it affirmed by more than one lady--by one in particular whose experience was as large as her benevolence--that many of them are of the very best, refined, intelligent, truthful, and affectionate. 'I don't know how it is,' she would say, 'whether their very superiority makes them dissatisfied with their own rank--such brutes or clowns as laboring men often are!--so that they fall easier victims to the rank above them; or whether, though this theory will shock many people, other virtues can exist and flourish entirely distinct from, and after the loss of, that which we are accustomed to believe the indispensable prime virtue of our sex--chastity. I cannot explain it; I can only say that it is so, that some of my most promising village girls have been the first to come to harm; and some of the best and most faithful servants I ever had, have been girls who have fallen into shame, and who, had I not gone to the rescue and put them in the way to do well, would infallibly have become

"lost women"'" (_A Woman's Thoughts About Women_, 1858, p. 291). Various writers have insisted on the good moral qualities of prostitutes. Thus in France, Despine first enumerates their vices as (1) greediness and love of drink, (2) lying, (3) anger, (4) want of order and untidiness, (5) mobility of character, (6) need of movement, (7) tendency to homosexuality; and then proceeds to detail their good qualities: their maternal and filial affection, their charity to each other; and their refusal to denounce each other; while they are frequently religious, sometimes modest, and generally very honest (Despine, _Psychologie Naturelle_, vol. iii, pp. 207 et seq.; as regards Sicilian prostitutes, cf. Callari, _Archivio di Psichiatria_, fasc. IV, 1903). The charity towards each other, often manifested in distress, is largely neutralized by a tendency to professional suspicion and jealousy of each other.

Lombroso believes that the basis of prostitution must be found in moral idiocy. If by moral idiocy we are to understand a condition at all closely allied with insanity, this assertion is dubious. There seems no clear relationship between prostitution and insanity, and Tammeo has shown (_La Prostituzione_, p. 76) that the frequency of prostitutes in the various Italian provinces is in inverse ratio to the frequency of insane persons; as insanity increases, prostitution decreases. But if we mean a minor degree of moral imbecility--that is to say, a bluntness of perception for the ordinary moral considerations of civilization which, while it is largely due to the hardening influence of an unfavorable early environment, may also rest on a congenital predisposition--there can be no doubt that moral imbecility of slight degree is very frequently found among prostitutes. It would be plausible, doubtless, to say that every woman who gives her virginity in exchange for an inadequate return is an imbecile. If she gives herself for love, she has, at the worst, made a foolish mistake, such as the young and inexperienced may at any time make. But if she deliberately proposes to sell herself, and does so for nothing or next to nothing, the case is altered. The experiences of Commenge in Paris are instructive on this point. "For many young girls," he writes, "modesty has no existence, they experience no emotion in showing themselves completely undressed, they abandon themselves to any chance individual whom they will never see again. They attach no importance to their virginity; they are deflowered under the strangest conditions, without the least thought or care about the act they are accomplishing. No sentiment, no calculation, pushes them into a man's arms. They let themselves go without reflexion and without motive, in an almost animal manner, from indifference and without pleasure." He was acquainted with forty-five girls between the ages of twelve and seventeen who were deflowered by chance strangers whom they never met again; they lost their virginity, in Dumas's phrase, as they lost their milk-teeth, and could give no plausible account of the loss. A girl of fifteen, mentioned by Commenge, living with her parents who supplied all her wants, lost her virginity by casually meeting a man who offered her two francs if she would go with him; she did so without demur and soon begun to accost men on her own account. A girl of fourteen, also living comfortably with her parents, sacrificed her virginity at a fair in return for a glass of beer, and henceforth begun to associate with prostitutes. Another girl of the same age, at a local fête, wishing to go round on the hobby horse, spontaneously offered herself to the man directing the machinery for the pleasure of a ride. Yet another girl, of fifteen, at

another fête, offered her virginity in return for the same momentary joy (Commenge, _Prostitution Clandestine_, 1897, pp. 101 et seq.). In the United States, Dr. W. Travis Gibb, examining physician to the New York Society for the Prevention of Cruelty to Children, bears similar testimony to the fact that in a fairly large proportion of "rape" cases the child is the willing victim. "It is horribly pathetic," he says (_Medical Record_, April 20, 1907), "to learn how far a nickel or a quarter will go towards purchasing the virtue of these children."

In estimating the tendency of prostitutes to display congenital physical anomalies, the crudest and most obvious test, though not a precise or satisfactory one, is the general impression produced by the face. In France, when nearly 1000 prostitutes were divided into five groups from the point of view of their looks, only from seven to fourteen per cent, were found to belong to the first group, or that of those who could be said to possess youth and beauty (Jeannel, _De la Prostitution Publique_, 1860, p. 168). Woods Hutchinson, again, judging from an extensive acquaintance with London, Paris, Vienna, New York, Philadelphia, and Chicago, asserts that a handsome or even attractive-looking prostitute, is rare, and that the general average of beauty is lower than in any other class of women. "Whatever other evils," he remarks, "the fatal power of beauty may be responsible for, it has nothing to do with prostitution" (Woods Hutchinson, "The Economics of Prostitution," _American Gynæcological and Obstetric Journal_, September, 1895). It must, of course, be borne in mind that these estimates are liable to be vitiated through being based chiefly on the inspection of women who most obviously belong to the class of prostitutes and have already been coarsened by their profession.

If we may conclude--and the fact is probably undisputed--that beautiful, agreeable, and harmoniously formed faces are rare rather than common among prostitutes, we may certainly say that minute examination will reveal a large number of physical abnormalities. One of the earliest important physical investigations of prostitutes was that of Dr. Pauline Tarnowsky in Russia (first published in the _Vratch_ in 1887, and afterwards as _Etudes anthropométriques sur les Prostituées et les Voleuses_). She examined fifty St. Petersburg prostitutes who had been inmates of a brothel for not less than two years, and also fifty peasant women of, so far as possible, the same age and mental development. She found that (1) the prostitute showed shorter anterior-posterior and transverse diameters of skull; (2) a proportion equal to eighty-four per cent. showed various signs of physical degeneration (irregular skull, asymmetry of face, anomalies of hard palate, teeth, ears, etc.). This tendency to anomaly among the prostitutes was to some extent explained when it was found that about four-fifths of them had parents who were habitual drunkards, and nearly one-fifth were the last survivors of large families; such families have been often produced by degenerate parents.

The frequency of hereditary degeneration has been noted by Bonhoeffer among German prostitutes. He investigated 190 Breslau prostitutes in prison, and therefore of a more abnormal class than ordinary prostitutes, and found that 102 were hereditarily degenerate, and mostly with one or both parents who were drunkards; 53 also showed feeble-mindedness (_Zeitschrift für die Gesamte Strafwissenschaft_, Bd.

xxiii, p. 106).

The most detailed examinations of ordinary non-criminal prostitutes, both anthropometrically and as regards the prevalence of anomalies, have been made in Italy, though not on a sufficiently large number of subjects to yield absolutely decisive results. Thus Fornasari made a detailed examination of sixty prostitutes belonging chiefly to Emilia and Venice, and also of twenty-seven others belonging to Bologna, the latter group being compared with a third group of twenty normal women belonging to Bologna (_Archivio di Psichiatria_, 1892, fasc. VI). The prostitutes were found to be of lower type than the normal individuals, having smaller heads and larger faces. As the author himself points out, his subjects were not sufficiently numerous to justify far-reaching generalizations, but it may be worth while to summarize some of his results. At equal heights the prostitutes showed greater weight; at equal ages they were of shorter stature than other women, not only of well-to-do, but of the poor class: height of face, bi-zygomatic diameter (though not the distance between zygomas), the distance from chin to external auditory meatus, and the size of the jaw were all greater in the prostitutes; the hands were longer and broader, compared to the palm, than in ordinary women; the foot also was longer in prostitutes, and the thigh, as compared to the calf, was larger. It is noteworthy that in most particulars, and especially in regard to head measurements, the variations were much greater among the prostitutes than among the other women examined; this is to some extent, though not entirely, to be accounted for by the slightly greater number of the former.

Ardu (in the same number of the _Archivio_) gave the result of observations (undertaken at Lombroso's suggestion) as to the frequency of abnormalities among prostitutes. The subjects were seventy-four in number and belonged to Professor Giovannini's _Clinica Sifilopatica_ at Turin. The abnormalities investigated were virile distribution of hair on pubes, chest, and limbs, hypertrichosis on forehead, left-handedness, atrophy of nipple, and tattooing (which was only found once). Combining Ardu's observations with another series of observations on fifty-five prostitutes examined by Lombroso, it is found that virile disposition of hair is found in fifteen per cent. as against six per cent. in normal women; some degree of hypertrichosis in eighteen per cent.; left-handedness in eleven per cent. (but in normal women as high as twelve per cent. according to Gallia); and atrophy of nipple in twelve per cent.

Giuffrida-Ruggeri, again (_Atti della, Società Romana di Antropologia_, 1897, p. 216), on examining eighty-two prostitutes found anomalies in the following order of decreasing frequency: tendency of eyebrows to meet, lack of cranial symmetry, depression at root of nose, defective development of calves, hypertrichosis and other anomalies of hair, adherent or absent lobule, prominent zigoma, prominent forehead or frontal bones, bad implantation of teeth, Darwinian tubercle of ear, thin vertical lips. These signs are separately of little or no importance, though together not without significance as an indication of general anomaly.

More recently Ascarilla, in an elaborate study (_Archivio di Psichiatria_, 1906, fasc. VI, p. 812) of the finger prints of prostitutes, comes to the conclusion that even in this

respect prostitutes tend to form a class showing morphological inferiority to normal women. The patterns tend to show unusual simplicity and uniformity, and the significance of this is indicated by the fact that a similar uniformity is shown by the finger prints of the insane and deaf-mutes (De Sanctis and Toscano, _Atti Società Romana Antropologia_, vol. viii, 1901, fasc. II).

In Chicago Dr. Harriet Alexander, in conjunction with Dr. E.S. Talbot and Dr. J.G. Kiernan, examined thirty prostitutes in the Bridewell, or House of Correction; only the "obtuse" class of professional prostitutes reach this institution, and it is not therefore surprising that they were found to exhibit very marked stigmata of degeneracy. In race nearly half of those examined were Celtic Irish. In sixteen the zygomatic processes were unequal and very prominent. Other facial asymmetries were common. In three cases the heads were of Mongoloid type; sixteen were epignathic, and eleven prognathic; five showed arrest of development of face. Brachycephaly predominated (seventeen cases); the rest were mesaticephalic; there were no dolichocephals. Abnormalities in shape of the skull were numerous, and twenty-nine had defective ears. Four were demonstrably insane, and one was an epileptic (H.C.B. Alexander, "Physical Abnormalities in Prostitutes," Chicago Academy of Medicine, April, 1893; E.S. Talbot, _Degeneracy_, p. 320; _Id., Irregularities of the Teeth_, fourth edition, p. 141).

It would seem, on the whole, so far as the evidence at present goes, that prostitutes are not quite normal representatives of the ranks into which they were born. There has been a process of selection of individuals who slightly deviate congenitally from the normal average and are, correspondingly, slightly inapt for normal life.[188] The psychic characteristics which accompany such deviation are not always necessarily of an obviously unfavorable nature; the slightly neurotic girl of low class birth--disinclined for hard work, through defective energy, and perhaps greedy and selfish--may even seem to possess a refinement superior to her station. While, however, there is a tendency to anomaly among prostitutes, it must be clearly recognized that that tendency remains slight so long as we consider impartially the whole class of prostitutes. Those investigators who have reached the conclusion that prostitutes are a highly degenerate and abnormal class have only observed special groups of prostitutes, more especially those who are frequently found in prison. It is not possible to form a just conception of prostitutes by studying them only in prison, any more than it would be possible to form a just conception of clergymen, doctors, or lawyers by studying them exclusively in prison, and this remains true even although a much larger proportion of prostitutes than of members of the more reputable professions pass through prisons; that fact no doubt partly indicates the greater abnormality of prostitutes.

It has, of course, to be remembered that the special conditions of the lives of prostitutes tend to cause in them the appearance of certain professional characteristics which are entirely acquired and not congenital. In that way we may account for the gradual modification of the feminine secondary and tertiary sexual characters, and the appearance of masculine characters, such as the frequent deep voice, etc.[189] But with all due allowance for these acquired characters, it remains

true that such comparative investigations as have so far been made, although inconclusive, seem to indicate that, even apart from the prevalence of acquired anomalies, the professional selection of their avocation tends to separate out from the general population of the same social class, individuals who possess anthropometrical characters varying in a definite direction. The observations thus made seem, in this way, to indicate that prostitutes tend to be in weight over the average, though not in stature, that in length of arm they are inferior though the hands are longer (this has been found alike in Italy and Russia); they have smaller ankles and larger calves, and still larger thighs in proportion to their large calves. The estimated skull capacity and the skull circumference and diameters are somewhat below the normal, not only when compared with respectable women but also with thieves; there is a tendency to brachycephaly (both in Italy and Russia); the cheek-bones are usually prominent and the jaws developed; the hair is darker than in respectable women though less so than in thieves; it is also unusually abundant, not only on the head but also on the pudenda and elsewhere; the eyes have been found to be decidedly darker than those of either respectable women or criminals.[190]

So far as the evidence goes it serves to indicate that prostitutes tend to approximate to the type which, as was shown in the previous volume, there is reason to regard as specially indicative of developed sexuality. It is, however, unnecessary to discuss this question until our anthropometrical knowledge of prostitutes is more extended and precise.

3. _The Moral Justification of Prostitution_.--There are and always have been moralists--many of them people whose opinions are deserving of the most serious respect--who consider that, allowing for the need of improved hygienic conditions, the existence of prostitution presents no serious problem for solution. It is, at most, they say, a necessary evil, and, at best, a beneficent institution, the bulwark of the home, the inevitable reverse of which monogamy is the obverse. "The immoral guardian of public morality," is the definition of prostitutes given by one writer, who takes the humble view of the matter, and another, taking the loftier ground, writes: "The prostitute fulfils a social mission. She is the guardian of virginal modesty, the channel to carry off adulterous desire, the protector of matrons who fear late maternity; it is her part to act as the shield of the family." "Female Decii," said Balzac in his _Physiologie du Mariage_ of prostitutes, "they sacrifice themselves for the republic and make of their bodies a rampart for the protection of respectable families." In the same way Schopenhauer called prostitutes "human sacrifices on the altar of monogamy." Lecky, again, in an oft-quoted passage of rhetoric,[191] may be said to combine both the higher and the lower view of the prostitute's mission in human society, to which he even seeks to give a hieratic character. "The supreme type of vice," he declared, "she is ultimately the most efficient guardian of virtue. But for her, the unchallenged purity of countless happy homes would be polluted, and not a few who, in the pride of their untempted chastity, think of her with an indignant shudder, would have known the agony of remorse and of despair. On that one degraded and ignoble form are concentrated the passions that might have filled the world with shame. She remains, while creeds and civilizations rise and fall, the eternal priestess of humanity, blasted for the sins of the people."[192]

I am not aware that the Greeks were greatly concerned with the moral justification of prostitution. They had not allowed it to assume very offensive forms and for the most part they were content to accept it. The Romans usually accepted it, too, but, we gather, not quite so easily. There was an austerely serious, almost Puritanic, spirit in the Romans of the old stock and they seem sometimes to have felt the need to assure themselves that prostitution really was morally justifiable. It is significant to note that they were accustomed to remember that Cato was said to have expressed satisfaction on seeing a man emerge from a brothel, for otherwise he might have gone to lie with his neighbor's wife.[193]

The social necessity of prostitution is the most ancient of all the arguments of moralists in favor of the toleration of prostitutes; and if we accept the eternal validity of the marriage system with which prostitution developed, and of the theoretical morality based on that system, this is an exceedingly forcible, if not an unanswerable, argument.

The advent of Christianity, with its special attitude towards the "flesh," necessarily caused an enormous increase of attention to the moral aspects of prostitution. When prostitution was not morally denounced, it became clearly necessary to morally justify it; it was impossible for a Church, whose ideals were more or less ascetic, to be benevolently indifferent in such a matter. As a rule we seem to find throughout that while the more independent and irresponsible divines take the side of denunciation, those theologians who have had thrust upon them the grave responsibilities of ecclesiastical statesmanship have rather tended towards the reluctant moral justification of prostitution. Of this we have an example of the first importance in St. Augustine, after St. Paul the chief builder of the Christian Church. In a treatise written in 386 to justify the Divine regulation of the world, we find him declaring that just as the executioner, however repulsive he may be, occupies a necessary place in society, so the prostitute and her like, however sordid and ugly and wicked they may be, are equally necessary; remove prostitutes from human affairs and you would pollute the world with lust: "Aufer meretrices de rebus humanis, turbaveris omnia libidinibus."[194] Aquinas, the only theological thinker of Christendom who can be named with Augustine, was of the same mind with him on this question of prostitution. He maintained the sinfulness of fornication but he accepted the necessity of prostitution as a beneficial part of the social structure, comparing it to the sewers which keep a palace pure.[195] "Prostitution in towns is like the sewer in a palace; take away the sewers and the palace becomes an impure and stinking place." Liguori, the most influential theologian of more modern times, was of the like opinion.

This wavering and semi-indulgent attitude towards prostitution was indeed generally maintained by theologians. Some, following Augustine and Aquinas, would permit prostitution for the avoidance of greater evils; others were altogether opposed to it; others, again, would allow it in towns but nowhere else. It was, however, universally held by theologians that the prostitute has a right to her wages, and is not obliged to make restitution.[196] The earlier Christian moralists found no difficulty in maintaining that there is no sin in renting a house to a prostitute for the purposes of

her trade; absolution was always granted for this and abstention not required.[197] Fornication, however, always remained a sin, and from the twelfth century onwards the Church made a series of organized attempts to reclaim prostitutes. All Catholic theologians hold that a prostitute is bound to confess the sin of prostitution, and most, though not all, theologians have believed that a man also must confess intercourse with a prostitute. At the same time, while there was a certain indulgence to the prostitute herself, the Church was always very severe on those who lived on the profits of promoting prostitution, on the _lenones_. Thus the Council of Elvira, which was ready to receive without penance the prostitute who married, refused reconciliation, even at death, to persons who had been guilty of _lenocinium_.[198]

Protestantism, in this as in many other matters of sexual morality, having abandoned the confessional, was usually able to escape the necessity for any definite and responsible utterances concerning the moral status of prostitution. When it expressed any opinion, or sought to initiate any practical action, it naturally founded itself on the Biblical injunctions against fornication, as expressed by St. Paul, and showed no mercy for prostitutes and no toleration for prostitution. This attitude, which was that of the Puritans, was the more easy since in Protestant countries, with the exception of special districts at special periods--such as Geneva and New England in the seventeenth and eighteenth centuries--theologians have in these matters been called upon to furnish religious exhortation rather than to carry out practical policies. The latter task they have left to others, and a certain confusion and uncertainty has thus often arisen in the lay Protestant mind. This attitude in a thoughtful and serious writer, is well illustrated in England by Burton, writing a century after the Reformation. He refers with mitigated approval to "our Pseudo-Catholics," who are severe with adultery but indulgent to fornication, being perhaps of Cato's mind that it should be encouraged to avoid worse mischiefs at home, and who holds brothels "as necessary as churches" and "have whole Colleges of Courtesans in their towns and cities." "They hold it impossible," he continues, "for idle persons, young, rich and lusty, so many servants, monks, friars, to live honest, too tyrannical a burden to compel them to be chaste, and most unfit to suffer poor men, younger brothers and soldiers at all to marry, as also diseased persons, votaries, priests, servants. Therefore as well to keep and ease the one as the other, they tolerate and wink at these kind of brothel-houses and stews. Many probable arguments they have to prove the lawfulness, the necessity, and a toleration of them, as of usery; and without question in policy they are not to be contradicted, but altogether in religion."[199]

It was not until the beginning of the following century that the ancient argument of St. Augustine for the moral justification of prostitution was boldly and decisively stated in Protestant England, by Bernard Mandeville in his _Fable of the Bees_, and at its first promulgation it seemed so offensive to the public mind that the book was suppressed. "If courtesans and strumpets were to be prosecuted with as much rigor as some silly people would have it," Mandeville wrote, "what locks or bars would be sufficient to preserve the honor of our wives and daughters?... It is manifest that there is a necessity of sacrificing one part of womankind to preserve the other, and prevent a filthiness of a more heinous nature. From whence I think I may justly conclude that chastity may be supported by incontinence, and the best of virtues

want the assistance of the worst of vices."[200] After Mandeville's time this view of prostitution began to become common in Protestant as well as in other countries, though it was not usually so clearly expressed.

It may be of interest to gather together a few more modern examples of statements brought forward for the moral justification of prostitution.

Thus in France Meusnier de Querlon, in his story of _Psaphion_, written in the middle of the eighteenth century, puts into the mouth of a Greek courtesan many interesting reflections concerning the life and position of the prostitute. She defends her profession with much skill, and argues that while men imagine that prostitutes are merely the despised victims of their pleasures, these would-be tyrants are really dupes who are ministering to the needs of the women they trample beneath their feet, and themselves equally deserve the contempt they bestow. "We return disgust for disgust, as they must surely perceive. We often abandon to them merely a statue, and while inflamed by their own desires they consume themselves on insensible charms, our tranquil coldness leisurely enjoys their sensibility. Then it is we resume all our rights. A little hot blood has brought these proud creatures to our feet, and rendered us mistresses of their fate. On which side, I ask, is the advantage?" But all men, she adds, are not so unjust towards the prostitute, and she proceeds to pronounce a eulogy, not without a slight touch of irony in it, of the utility, facility, and convenience of the brothel.

A large number of the modern writers on prostitution insist on its socially beneficial character. Thus Charles Richard concludes his book on the subject with the words: "The conduct of society with regard to prostitution must proceed from the principle of gratitude without false shame for its utility, and compassion for the poor creatures at whose expense this is attained" (_La Prostitution devant le Philosophe_, 1882, p. 171). "To make marriage permanent is to make it difficult," an American medical writer observes; "to make it difficult is to defer it; to defer it is to maintain in the community an increasing number of sexually perfect individuals, with normal, or, in cases where repression is prolonged, excessive sexual appetites. The social evil is the natural outcome of the physical nature of man, his inherited impulses, and the artificial conditions under which he is compelled to live" ("The Social Evil," _Medicine_, August and September, 1906). Woods Hutchinson, while speaking with strong disapproval of prostitution and regarding prostitutes as "the worst specimens of the sex," yet regards prostitution as a social agency of the highest value. "From a medico-economic point of view I venture to claim it as one of the grand selective and eliminative agencies of nature, and of highest value to the community. It may be roughly characterized as a safety valve for the institution of marriage" (_The Gospel According to Darwin_, p. 193; cf. the same author's article on "The Economics of Prostitution," summarized in _Boston Medical and Surgical Journal_, November 21, 1895). Adolf Gerson, in a somewhat similar spirit, argues ("Die Ursache der Prostitution," _Sexual-Probleme_, September, 1908) that "prostitution is one of the means used by Nature to limit the procreative activity of men, and especially to postpone the period of sexual maturity." Molinari considers that the social benefits of prostitution have been manifested in various ways from the first; by sterilizing, for

instance, the more excessive manifestations of the sexual impulse prostitution suppressed the necessity for the infanticide of superfluous children, and led to the prohibition of that primitive method of limiting the population (G. de Molinari, _La Viriculture_, p. 45). In quite another way than that mentioned by Molinari, prostitution has even in very recent times led to the abandonment of infanticide. In the Chinese province of Ping-Yang, Matignon states, it was usual not many years ago for poor parents to kill forty per cent. of the girl children, or even all of them, at birth, for they were too expensive to rear and brought nothing in, since men who wished to marry could easily obtain a wife in the neighboring province of Wenchu, where women were very easy to obtain. Now, however, the line of steamships along the coast makes it very easy for girls to reach the brothels of Shang-Hai, where they can earn money for their families; the custom of killing them has therefore died out (Matignon, _Archives d'Anthropologie Criminelle_, 1896, p. 72). "Under present conditions," writes Dr. F. Erhard ("Auch ein Wort zur Ehereform," _Geschlecht und Gesellschaft_, Jahrgang I, Heft 9), "prostitution (in the broadest sense, including free relationships) is necessary in order that young men may, in some degree, learn to know women, for conventional conversation cannot suffice for this; an exact knowledge of feminine thought and action is, however, necessary for a proper choice, since it is seldom possible to rely on the certainty of instinct. It is good also that men should wear off their horns before marriage, for the polygamous tendency will break through somewhere. Prostitution will only spoil those men in whom there is not much to spoil, and if the desire for marriage is thus lost, the man's unbegotten children may have cause to thank him." Neisser, Näcke, and many others, have pleaded for prostitution, and even for brothels, as "necessary evils."

It is scarcely necessary to add that many, among even the strongest upholders of the moral advantages of prostitution, believe that some improvement in method is still desirable. Thus Bérault looks forward to a time when regulated brothels will become less contemptible. Various improvements may, he thinks, in the near future, "deprive them of the barbarous attributes which mark them out for the opprobrium of the skeptical or ignorant multitude, while their recognizable advantages will put an end to the contempt aroused by their cynical aspect" (_La Maison de Tolérance_, Thèse de Paris, 1904).

4. _The Civilizational Value of Prostitution._--The moral argument for prostitution is based on the belief that our marriage system is so infinitely precious that an institution which serves as its buttress must be kept in existence, however ugly or otherwise objectionable it may in itself be. There is, however, another argument in support of prostitution which scarcely receives the emphasis it deserves. I refer to its influence in adding an element, in some form or another necessary, of gaiety and variety to the ordered complexity of modern life, a relief from the monotony of its mechanical routine, a distraction from its dull and respectable monotony. This is distinct from the more specific function of prostitution as an outlet for superfluous sexual energy, and may even affect those who have little or no commerce with prostitutes. This element may be said to constitute the civilizational value of prostitution.

It is not merely the general conditions of civilization, but more specifically the conditions of urban life, which make this factor insistent. Urban life imposes by the stress of competition a very severe and exacting routine of dull work. At the same time it makes men and women more sensitive to new impressions, more enamored of excitement and change. It multiplies the opportunities of social intercourse; it decreases the chances of detection of illegitimate intercourse while at the same time it makes marriage more difficult, for, by heightening social ambitions and increasing the expenses of living, it postpones the time when a home can be created. Urban life delays marriage and yet renders the substitutes for marriage more imperative.[201]

There cannot be the slightest doubt that it is this motive--the effort to supplement the imperfect opportunities for self-development offered by our restrained, mechanical, and laborious civilization--which plays one of the chief parts in inducing women to adopt, temporarily or permanently, a prostitute's life. We have seen that the economic factor is not, as was once supposed, by any means predominant in this choice. Nor, again, is there any reason to suppose that an over-mastering sexual impulse is a leading factor. But a large number of young women turn instinctively to a life of prostitution because they are moved by an obscure impulse which they can scarcely define to themselves or express, and are often ashamed to confess. It is, therefore, surprising that this motive should find so large a place even in the formal statistics of the factors of prostitution. Merrick, in London, found that 5000, or nearly a third, of the prostitutes he investigated, voluntarily gave up home or situation "for a life of pleasure," and he puts this at the head of the causes of prostitution.[202] In America Sanger found that "inclination" came almost at the head of the causes of prostitution, while Woods Hutchinson found "love of display, luxury and idleness" by far at the head. "Disgusted and wearied with work" is the reason assigned by a large number of Belgian girls when stating to the police their wish to be enrolled as prostitutes. In Italy a similar motive is estimated to play an important part. In Russia "desire for amusement" comes second among the causes of prostitution. There can, I think, be little doubt that, as a thoughtful student of London life has concluded, the problem of prostitution is "at bottom a mad and irresistible craving for excitement, a serious and wilful revolt against the monotony of commonplace ideals, and the uninspired drudgery of everyday life."[203] It is this factor of prostitution, we may reasonably conclude, which is mainly responsible for the fact, pointed out by F. Schiller,[204] that with the development of civilization the supply of prostitutes tends to outgrow the demand.

Charles Booth seems to be of the same opinion, and quotes (_Life and Labor of the People_, Third Series, vol. vii, p. 364) from a Rescue Committee Report: "The popular idea is, that these women are eager to leave a life of sin. The plain and simple truth is that, for the most part, they have no desire at all to be rescued. So many of these women do not, and will not, regard prostitution as a sin. 'I am taken out to dinner and to some place of amusement every night; why should I give it up?'" Merrick, who found that five per cent. of 14,000 prostitutes who passed through Millbank Prison, were accustomed to combine religious observance with the practice of their profession, also remarks in regard to their feelings about morality: "I am convinced that there are many poor men and women who do not in the least understand what is

implied in the term 'immorality.' Out of courtesy to you, they may assent to what you say, but they do not comprehend your meaning when you talk of virtue or purity; you are simply talking over their heads" (Merrick, op. cit., p. 28). The same attitude may be found among prostitutes everywhere. In Italy Ferriani mentions a girl of fifteen who, when accused of indecency with a man in a public garden, denied with tears and much indignation. He finally induced her to confess, and then asked her: "Why did you try to make me believe you were a good girl?" She hesitated, smiled, and said: "Because _they say_ girls ought not to do what I do, but ought to work. But I am what I am, and it is no concern of theirs." This attitude is often more than an instinctive feeling; in intelligent prostitutes it frequently becomes a reasoned conviction. "I can bear everything, if so it must be," wrote the author of the _Tagebuch einer Verlorenen_ (p. 291), "even serious and honorable contempt, but I cannot bear scorn. Contempt--yes, if it is justified. If a poor and pretty girl with sick and bitter heart stands alone in life, cast off, with temptations and seductions offering on every side, and, in spite of that, out of inner conviction she chooses the grey and monotonous path of renunciation and middle-class morality, I recognize in that girl a personality, who has a certain justification in looking down with contemptuous pity on weaker girls. But those geese who, under the eyes of their shepherds and life-long owners, have always been pastured in smooth green fields, have certainly no right to laugh scornfully at others who have not been so fortunate." Nor must it be supposed that there is necessarily any sophistry in the prostitute's justification of herself. Some of our best thinkers and observers have reached a conclusion that is not dissimilar. "The actual conditions of society are opposed to any high moral feeling in women," Marro observes (_La Pubertà_, p. 462), "for between those who sell themselves to prostitution and those who sell themselves to marriage, the only difference is in price and duration of the contract."

We have already seen how very large a part in prostitution is furnished by those who have left domestic service to adopt this life (_ante_ p. 264). It is not difficult to find in this fact evidence of the kind of impulse which impels a woman to adopt the career of prostitution. "The servant, in our society of equality," wrote Goncourt, recalling somewhat earlier days when she was often admitted to a place in the family life, "has become nothing but a paid pariah, a machine for doing household work, and is no longer allowed to share the employer's human life."[205] And in England, even half a century ago, we already find the same statements concerning the servant's position: "domestic service is a complete slavery," with early hours and late hours, and constant running up and down stairs till her legs are swollen; "an amount of ingenuity appears too often to be exercised, worthy of a better cause, in obtaining the largest possible amount of labor out of the domestic machine"; in addition she is "a kind of lightning conductor," to receive the ill-temper and morbid feelings of her mistress and the young ladies; so that, as some have said, "I felt so miserable I did not care what became of me, I wished I was dead."[206] The servant is deprived of all human relationships; she must not betray the existence of any simple impulse, or natural need. At the same time she lives on the fringe of luxury; she is surrounded by the tantalizing visions of pleasure and amusement for which her fresh young nature craves.[207] It is not surprising that, repelled by unrelieved drudgery and attracted

by idle luxury, she should take the plunge which will alone enable her to enjoy the glittering aspects of civilization which seem so desirable to her.[208]

It is sometimes stated that the prevalence of prostitution among girls who were formerly servants is due to the immense numbers of servants who are seduced by their masters or the young men of the family, and are thus forced on to the streets. Undoubtedly in a certain proportion of cases, perhaps sometimes a fairly considerable proportion, this is a decisive factor in the matter, but it scarcely seems to be the chief factor. The existence of relationships between servants and masters, it must be remembered, by no means necessarily implies seduction. In a large number of cases the servant in a household is, in sexual matters, the teacher rather than the pupil. (In "The Sexual Impulse in Women," in the third volume of these _Studies_, I have discussed the part played by servants as sexual initiators of the young boys in the households in which they are placed.) The more precise statistics of the causes of prostitution seldom assign seduction as the main determining factor in more than about twenty per cent. of cases, though this is obviously one of the most easily avowable motives (see _ante_, p. 256). Seduction by any kind of employer constitutes only a proportion (usually less than half) even of these cases. The special case of seduction of servants by masters can thus play no very considerable part as a factor of prostitution.

The statistics of the parentage of illegitimate children have some bearing on this question. In a series of 180 unmarried mothers assisted by the Berlin Bund für Mutterschutz, particulars are given of the occupations both of the mothers, and, as far as possible, of the fathers. The former were one-third servant-girls, and the great majority of the remainder assistants in trades or girls carrying on work at home. At the head of the fathers (among 120 cases) came artisans (33), followed by tradespeople (22); only a small proportion (20 to 25) could be described as "gentlemen," and even this proportion loses some of its significance when it is pointed out that some of the girls were also of the middle-class; in nineteen cases the fathers were married men (_Mutterschutz_, January, 1907, p. 45).

Most authorities in most countries are of opinion that girls who eventually (usually between the ages of fifteen and twenty) become prostitutes have lost their virginity at an early age, and in the great majority of cases through men of their own class. "The girl of the people falls by the people," stated Reuss in France (_La Prostitution_, p. 41). "It is her like, workers like herself, who have the first fruits of her beauty and virginity. The man of the world who covers her with gold and jewels only has their leavings." Martineau, again (_De la Prostitution Clandestine_, 1885), showed that prostitutes are usually deflowered by men of their own class. And Jeannel, in Bordeaux, found reason for believing that it is not chiefly their masters who lead servants astray; they often go into service because they have been seduced in the country, while lazy, greedy, and unintelligent girls are sent from the country into the town to service. In Edinburgh, W. Tait (_Magdalenism_, 1842) found that soldiers more than any other class in the community are the seducers of women, the Highlanders being especially notorious in this respect. Soldiers have this reputation everywhere, and in Germany especially it is constantly found that the presence of the

soldiery in a country district, as at the annual manoeuvres, is the cause of unchastity and illegitimate births; it is so also in Austria, where, long ago, Gross-Hoffinger stated that soldiers were responsible for at least a third of all illegitimate births, a share out of all proportion to their numbers. In Italy, Marro, investigating the occasion of the loss of virginity in twenty-two prostitutes, found that ten gave themselves more or less spontaneously to lovers or masters, ten yielded in the expectation of marriage, and two were outraged (_La Pubertà_, p. 461). The loss of virginity, Marro adds, though it may not be the direct cause of prostitution, often leads on to it. "When a door has once been broken in," a prostitute said to him, "it is difficult to keep it closed." In Sardinia, as A. Mantegazza and Ciuffo found, prostitutes are very largely servants from the country who have already been deflowered by men of their own class.

This civilizational factor of prostitution, the influence of luxury and excitement and refinement in attracting the girl of the people, as the flame attracts the moth, is indicated by the fact that it is the country-dwellers who chiefly succumb to the fascination. The girls whose adolescent explosive and orgiastic impulses, sometimes increased by a slight congenital lack of nervous balance, have been latent in the dull monotony of country life and heightened by the spectacle of luxury acting on the unrelieved drudgery of town life, find at last their complete gratification in the career of a prostitute. To the town girl, born and bred in the town, this career has not usually much attraction, unless she has been brought up from the first in an environment that predisposes her to adopt it. She is familiar from childhood with the excitements of urban civilization and they do not intoxicate her; she is, moreover, more shrewd to take care of herself than the country girl, and too well acquainted with the real facts of the prostitute's life to be very anxious to adopt her career. Beyond this, also, it is probable that the stocks she belongs to possess a native or acquired power of resistance to unbalancing influences which has enabled them to survive in urban life. She has become immune to the poisons of that life.[209]

In all great cities a large proportion, if not the majority, of the inhabitants have usually been born outside the city (in London only about fifty per cent. of heads of households are definitely reported as born in London); and it is not therefore surprising that prostitutes also should often be outsiders. Still it remains a significant fact that so typically urban a phenomenon as prostitution should be so largely recruited from the country. This is everywhere the case. Merrick enumerates the regions from which came some 14,000 prostitutes who passed through Millbank Prison. Middlesex, Kent, Surrey, Essex and Devon are the counties that stand at the head, and Merrick estimates that the contingent of London from the four counties which make up London was 7000, or one-half of the whole; military towns like Colchester and naval ports like Plymouth supply many prostitutes to London; Ireland furnished many more than Scotland, and Germany far more than any other European country, France being scarcely represented at all (Merrick, _Work Among the Fallen_, 1890, pp. 14-18). It is, of course, possible that the proportions among those who pass through a prison do not accurately represent the proportions among prostitutes generally. The registers of the London Salvation Army Rescue Home show that sixty per cent. of the girls and women come from the provinces (A. Sherwell,

Life in West London, Ch. V). This is exactly the same proportion as Tait found among prostitutes generally, half a century earlier, in Edinburgh. Sanger found that of 2000 prostitutes in New York as many as 1238 were born abroad (706 in Ireland), while of the remaining 762 only half were born in the State of New York, and clearly (though the exact figures are not given) a still smaller proportion in New York City. Prostitutes come from the North--where the climate is uncongenial, and manufacturing and sedentary occupations prevail--much more than from the South; thus Maine, a cold bleak maritime State, sent twenty-four of these prostitutes to New York, while equidistant Virginia, which at the same rate should have sent seventy-two, only sent nine; there was a similar difference between Rhode Island and Maryland (Sanger, _History of Prostitution_, p. 452). It is instructive to see here the influence of a dreary climate and monotonous labor in stimulating the appetite for a "life of pleasure." In France, as shown by a map in Parent-Duchâtelet's work (vol. i, pp. 37-64, 1857), if the country is divided into five zones, on the whole running east and west, there is a steady and progressive decrease in the number of prostitutes each zone sends to Paris, as we descend southwards. Little more than a third seem to belong to Paris, and, as in America, it is the serious and hard-working North, with its relatively cold climate, which furnishes the largest contingent; even in old France, Dufour remarks (_op. cit._, vol. iv, Ch. XV), prostitution, as the _fabliaux_ and _romans_ show, was less infamous in the _langue d'oil_ than in the _langue d'oc_, so that they were doubtless rare in the South. At a later period Reuss states (_La Prostitution_, p. 12) that "nearly all the prostitutes of Paris come from the provinces." Jeannel found that of one thousand Bordeaux prostitutes only forty-six belonged to the city itself, and Potton (Appendix to Parent-Duchâtelet, vol. ii, p. 446) states that of nearly four thousand Lyons prostitutes only 376 belonged to Lyons. In Vienna, in 1873, Schrank remarks that of over 1500 prostitutes only 615 were born in Vienna. The general rule, it will be seen, though the variations are wide, is that little more than a third of a city's prostitutes are children of the city.

It is interesting to note that this tendency of the prostitute to reach cities from afar, this migratory tendency--which they nowadays share with waiters--is no merely modern phenomenon. "There are few cities in Lombardy, or France, or Gaul," wrote St. Boniface nearly twelve centuries ago, "in which there is not an adulteress or prostitute of the English nation," and the Saint attributes this to the custom of going on pilgrimage to foreign shrines. At the present time there is no marked English element among Continental prostitutes. Thus in Paris, according to Reuss (_La Prostitution_, p. 12), the foreign prostitutes in decreasing order are Belgian, German (Alsace-Lorraine), Swiss (especially Geneva), Italian, Spanish, and only then English. Connoisseurs in this matter say, indeed, that the English prostitute, as compared with her Continental (and especially French) sister, fails to show to advantage, being usually grasping as regards money and deficient in charm.

It is the appeal of civilization, though not of what is finest and best in civilization, which more than any other motive, calls women to the career of a prostitute. It is now necessary to point out that for the man also, the same appeal makes itself felt in the person of the prostitute. The common and ignorant assumption that prostitution exists to satisfy the gross sensuality of the young unmarried man, and that if he is

taught to bridle gross sexual impulse or induced to marry early the prostitute must be idle, is altogether incorrect. If all men married when quite young, not only would the remedy be worse than the disease--a point which it would be out of place to discuss here--but the remedy would not cure the disease. The prostitute is something more than a channel to drain off superfluous sexual energy, and her attraction by no means ceases when men are married, for a large number of the men who visit prostitutes, if not the majority, are married. And alike whether they are married or unmarried the motive is not one of uncomplicated lust.

In England, a well-informed writer remarks that "the value of marriage as a moral agent is evidenced by the fact that all the better-class prostitutes in London are almost entirely supported by married men," while in Germany, as stated in the interesting series of reminiscences by a former prostitute, Hedwig Hard's _Beichte einer Gefallenen_, (p. 208), the majority of the men who visit prostitutes are married. The estimate is probably excessive. Neisser states that only twenty-five per cent. of cases of gonorrhoea occur in married men. This indication is probably misleading in the opposite direction, as the married would be less reckless than the young and unmarried. As regards the motives which lead married men to prostitutes, Hedwig Hard narrates from her own experiences an incident which is instructive and no doubt typical. In the town in which she lived quietly as a prostitute a man of the best social class was introduced by a friend, and visited her habitually. She had often seen and admired his wife, who was one of the beauties of the place, and had two charming children; husband and wife seemed devoted to each other, and every one envied their happiness. He was a man of intellect and culture who encouraged Hedwig's love of books; she became greatly attached to him, and one day ventured to ask him how he could leave his lovely and charming wife to come to one who was not worthy to tie her shoe-lace. "Yes, my child," he answered, "but all her beauty and culture brings nothing to my heart. She is cold, cold as ice, proper, and, above all, phlegmatic. Pampered and spoilt, she lives only for herself; we are two good comrades, and nothing more. If, for instance, I come back from the club in the evening and go to her bed, perhaps a little excited, she becomes nervous and she thinks it improper to wake her. If I kiss her she defends herself, and tells me that I smell horribly of cigars and wine. And if perhaps I attempt more, she jumps out of bed, bristles up as though I were assaulting her, and threatens to throw herself out of the window if I touch her. So, for the sake of peace, I leave her alone and come to you." There can be no doubt whatever that this is the experience of many married men who would be well content to find the sweetheart as well as the friend in their wives. But the wives, from a variety of causes, have proved incapable of becoming the sexual mates of their husbands. And the husbands, without being carried away by any impulse of strong passion or any desire for infidelity, seek abroad what they cannot find at home.

This is not the only reason why married men visit prostitutes. Even men who are happily married to women in all chief respects fitted to them, are apt to find, after some years of married life, a mysterious craving for variety. They are not tired of their wives, they have not the least wish or intention to abandon them, they will not, if they can help it, give them the slightest pain. But from time to time they are led by an

almost irresistible and involuntary impulse to seek a temporary intimacy with women to whom nothing would persuade them to join themselves permanently. Pepys, whose _Diary_, in addition to its other claims upon us, is a psychological document of unique importance, furnishes a very characteristic example of this kind of impulse. He had married a young and charming wife, to whom he is greatly attached, and he lives happily with her, save for a few occasional domestic quarrels soon healed by kisses; his love is witnessed by his jealousy, a jealousy which, as he admits, is quite unreasonable, for she is a faithful and devoted wife. Yet a few years after marriage, and in the midst of a life of strenuous official activity, Pepys cannot resist the temptation to seek the temporary favors of other women, seldom prostitutes, but nearly always women of low social class--shop women, workmen's wives, superior servant-girls. Often he is content to invite them to a quiet ale-house, and to take a few trivial liberties. Sometimes they absolutely refuse to allow more than this; when that happens he frequently thanks Almighty God (as he makes his entry in his _Diary_ at night) that he has been saved from temptation and from loss of time and money; in any case, he is apt to vow that it shall never occur again. It always does occur again. Pepys is quite sincere with himself; he makes no attempt at justification or excuse; he knows that he has yielded to a temptation; it is an impulse that comes over him at intervals, an impulse that he seems unable long to resist. Throughout it all he remains an estimable and diligent official, and in most respects a tolerably virtuous man, with a genuine dislike of loose people and loose talk. The attitude of Pepys is brought out with incomparable simplicity and sincerity because he is setting down these things for his own eyes only, but his case is substantially that of a vast number of other men, perhaps indeed of the typical _homme moyen sensuel_ (see Pepys, _Diary_, ed. Wheatley; e.g., vol. iv, passim).

There is a third class of married men, less considerable in number but not unimportant, who are impelled to visit prostitutes: the class of sexually perverted men. There are a great many reasons why such men may desire to be married, and in some cases they marry women with whom they find it possible to obtain the particular form of sexual gratification they crave. But in a large proportion of cases this is not possible. The conventionally bred woman often cannot bring herself to humor even some quite innocent fetishistic whim of her husband's, for it is too alien to her feelings and too incomprehensible to her ideas, even though she may be genuinely in love with him; in many cases the husband would not venture to ask, and scarcely even wish, that his wife should lend herself to play the fantastic or possibly degrading part his desires demand. In such a case he turns naturally to the prostitute, the only woman whose business it is to fulfil his peculiar needs. Marriage has brought no relief to these men, and they constitute a noteworthy proportion of a prostitute's clients in every great city. The most ordinary prostitute of any experience can supply cases from among her own visitors to illustrate a treatise of psychopathic sexuality. It may suffice here to quote a passage from the confessions of a young London (Strand) prostitute as written down from her lips by a friend to whom I am indebted for the document; I have merely turned a few colloquial terms into more technical forms. After describing how, when she was still a child of thirteen in the country, a rich old gentleman would frequently come and exhibit himself before her

and other girls, and was eventually arrested and imprisoned, she spoke of the perversities she had met with since she had become a prostitute. She knew a young man, about twenty-five, generally dressed in a sporting style, who always came with a pair of live pigeons, which he brought in a basket. She and the girl with whom she lived had to undress and take the pigeons and wring their necks; he would stand in front of them, and as the necks were wrung orgasm occurred. Once a man met her in the street and asked her if he might come with her and lick her boots. She agreed, and he took her to a hotel, paid half a guinea for a room, and, when she sat down, got under the table and licked her boots, which were covered with mud; he did nothing more. Then there were some things, she said, that were too dirty to repeat; well, one man came home with her and her friend and made them urinate into his mouth. She also had stories of flagellation, generally of men who whipped the girls, more rarely of men who liked to be whipped by them. One man, who brought a new birch every time, liked to whip her friend until he drew blood. She knew another man who would do nothing but smack her nates violently. Now all these things, which come into the ordinary day's work of the prostitute, are rooted in deep and almost irresistible impulses (as will be clear to any reader of the discussion of Erotic Symbolism in the previous volume of these _Studies_). They must find some outlet. But it is only the prostitute who can be relied upon, through her interests and training, to overcome the natural repulsion to such actions, and gratify desires which, without gratification, might take on other and more dangerous forms.

Although Woods Hutchinson quotes with approval the declaration of a friend, "Out of thousands I have never seen one with good table manners," there is still a real sense in which the prostitute represents, however inadequately, the attraction of civilization. "There was no house in which I could habitually see a lady's face and hear a lady's voice," wrote the novelist Anthony Trollope in his _Autobiography_, concerning his early life in London. "No allurement to decent respectability came in my way. It seems to me that in such circumstances the temptations of loose life will almost certainly prevail with a young man. The temptation at any rate prevailed with me." In every great city, it has been said, there are thousands of men who have no right to call any woman but a barmaid by her Christian name.[210] All the brilliant fever of civilization pulses round them in the streets but their lips never touch it. It is the prostitute who incarnates this fascination of the city, far better than the virginal woman, even if intimacy with her were within reach. The prostitute represents it because she herself feels it, because she has even sacrificed her woman's honor in the effort to identify herself with it. She has unbridled feminine instincts, she is a mistress of the feminine arts of adornment, she can speak to him concerning the mysteries of womanhood and the luxuries of sex with an immediate freedom and knowledge the innocent maiden cloistered in her home would be incapable of. She appeals to him by no means only because she can gratify the lower desires of sex, but also because she is, in her way, an artist, an expert in the art of feminine exploitation, a leader of feminine fashions. For she is this, and there are, as Simmel has stated in his _Philosophie der Mode_, good psychological reasons why she always should be this. Her uncertain social position makes all that is conventional and established hateful to her, while her temperament makes perpetual novelty delightful. In new

fashions she finds "an æsthetic form of that instinct of destruction which seems peculiar to all pariah existences, in so far as they are not completely enslaved in spirit."

"However surprising it may seem to some," a modern writer remarks, "prostitutes must be put on the same level as artists. Both use their gifts and talents for the joy and pleasure of others, and, as a rule, for payment. What is the essential difference between a singer who gives pleasure to hearers by her throat and a prostitute who gives pleasure to those who seek her by another part of her body? All art works on the senses." He refers to the significant fact that actors, and especially actresses, were formerly regarded much as prostitutes are now (R. Hellmann, _Ueber Geschlechtsfreiheit_, pp. 245-252).

Bernaldo de Quirós and Llanas Aguilaniedo (_La Mala Vida en Madrid_, p. 242) trace the same influence still lower in the social scale. They are describing the more squalid kind of _café chantant_, in which, in Spain and elsewhere, the most vicious and degenerate feminine creatures become waitresses (and occasionally singers and dancers), playing the part of amiable and distinguished _hetairæ_ to the public of carmen and shop-boys who frequent these resorts. "Dressed with what seems to the youth irreproachable taste, with hair elaborately prepared, and clean face adorned with flowers or trinkets, affable and at times haughty, superior in charm and in finery to the other women he is able to know, the waitresses become the most elevated example of the _femme galante_ whom he is able to contemplate and talk to, the courtesan of his sphere."

But while to the simple, ignorant, and hungry youth the prostitute appeals as the embodiment of many of the refinements and perversities of civilization, on many more complex and civilized men she exerts an attraction of an almost reverse kind. She appeals by her fresh and natural coarseness, her frank familiarity with the crudest facts of life; and so lifts them for a moment out of the withering atmosphere of artificial thought and unreal sentiment in which so many civilized persons are compelled to spend the greater part of their lives. They feel in the words which the royal friend of a woman of this temperament is said to have used in explaining her incomprehensible influence over him: "She is so splendidly vulgar!"

In illustration of this aspect of the appeal of prostitution, I may quote a passage in which the novelist, Hermant, in his _Confession d'un Enfant d'Hier_ (Lettre VII), has set down the reasons which may lead the super-refined child of a cultured age, yet by no means radically or completely vicious, to find satisfaction in commerce with prostitutes: "As long as my heart was not touched the object of my satisfaction was completely indifferent to me. I was, moreover, a great lover of absolute liberty, which is only possible in the circle of these anonymous creatures and in their reserved dwelling. There everything became permissible. With other women, however low we may seek them, certain convenances must be observed, a kind of protocol. To these one can say everything: one is protected by incognito and assured that nothing will be divulged. I profited by this freedom, which suited my age, but with a perverse fancy which was not characteristic of my years. I scarcely know where I found what I said to them, for it was the opposite of my tastes, which were simple, and, if I may

venture to say so, classic. It is true that, in matters of love, unrestrained naturalism always tends to perversion, a fact that can only seem paradoxical at first sight. Primitive peoples have many traits in common with degenerates. It was, however, only in words that I was unbridled; and that was the only occasion on which I can recollect seriously lying. But that necessity, which I then experienced, of expelling a lower depth of ignoble instincts, seems to me characteristic and humiliating. I may add that even in the midst of these dissipations I retained a certain reserve. The contacts to which I exposed myself failed to soil me; nothing was left when I had crossed the threshold. I have always retained, from that forcible and indifferent commerce, the habit of attributing no consequence to the action of the flesh. The amorous function, which religion and morality have surrounded with mystery or seasoned with sin, seems to me a function like any other, a little vile, but agreeable, and one to which the usual epilogue is too long.... This kind of companionship only lasted for a short time." This analysis of the attitude of a certain common type of civilized modern man seems to be just, but it may perhaps occur to some readers that a commerce which led to "the action of the flesh" being regarded as of no consequence can scarcely be said to have left no taint.

In a somewhat similar manner, Henri de Régnier, in his novel, _Les Rencontres de Monsieur Bréot_ (p. 50), represents Bercaillé as deliberately preferring to take his pleasures with servant-girls rather than with ladies, for pleasure was, to his mind, a kind of service, which could well be accommodated with the services they are accustomed to give; and then they are robust and agreeable, they possess the _naïveté_ which is always charming in the common people, and they are not apt to be repelled by those little accidents which might offend the fastidious sensibilities of delicately bred ladies.

Bloch, who has especially emphasized this side of the appeal of prostitution (_Das Sexualleben unserer Zeit_, pp. 359-362), refers to the delicate and sensitive young Danish writer, J.P. Jakobsen, who seems to have acutely felt the contrast between the higher and more habitual impulses, and the occasional outburst of what he felt to be lower instincts; in his _Niels Lyhne_ he describes the kind of double life in which a man is true for a fortnight to the god he worships, and is then overcome by other powers which madly bear him in their grip towards what he feels to be humiliating, perverse, and filthy. "At such moments," Bloch remarks, "the man is another being. The 'two souls' in the breast become a reality. Is that the famous scholar, the lofty idealist, the fine-souled æsthetician, the artist who has given us so many splendid and pure works in poetry and painting? We no longer recognize him, for at such moments another being has come to the surface, another nature is moving within him, and with the power of an elementary force is impelling him towards things at which his 'upper consciousness,' the civilized man within him, would shudder." Bloch believes that we are here concerned with a kind of normal masculine masochism, which prostitution serves to gratify.

IV. The Present Social Attitude Towards Prostitution.

We have now surveyed the complex fact of prostitution in some of its most various and typical aspects, seeking to realise, intelligently and sympathetically, the

fundamental part it plays as an elementary constituent of our marriage system. Finally we have to consider the grounds on which prostitution now appears to a large and growing number of persons not only an unsatisfactory method of sexual gratification but a radically bad method.

The movement of antagonism towards prostitution manifests itself most conspicuously, as might beforehand have been anticipated, by a feeling of repugnance towards the most ancient and typical, once the most credited and best established prostitutional manifestation, the brothel. The growth of this repugnance is not confined to one or two countries but is international, and may thus be regarded as corresponding to a real tendency in our civilization. It is equally pronounced in prostitutes themselves and in the people who are their clients. The distaste on the one side increases the distaste on the other. Since only the most helpless or the most stupid prostitutes are nowadays willing to accept the servitude of the brothel, the brothel-keeper is forced to resort to extraordinary methods for entrapping victims, and even to take part in that cosmopolitan trade in "white slaves" which exists solely to feed brothels.[211] This state of things has a natural reaction in prejudicing the clients of prostitution against an institution which is going out of fashion and out of credit. An even more fundamental antipathy is engendered by the fact that the brothel fails to respond to the high degree of personal freedom and variety which civilization produces, and always demands even when it fails to produce. On one side the prostitute is disinclined to enter into a slavery which usually fails even to bring her any reward; on the other side her client feels it as part of the fascination of prostitution under civilized conditions that he shall enjoy a freedom and choice the brothel cannot provide.[212] Thus it comes about that brothels which once contained nearly all the women who made it a business to minister to the sexual needs of men, now contain only a decreasing minority, and that the transformation of cloistered prostitution into free prostitution is approved by many social reformers as a gain to the cause of morality.[213]

The decay of brothels, whether as cause or as effect, has been associated with a vast increase of prostitution outside brothels. But the repugnance to brothels in many essential respects also applies to prostitution generally, and, as we shall see, it is exerting a profoundly modifying influence on that prostitution.

The changing feeling in regard to prostitution seems to express itself mainly in two ways. On the one hand there are those who, without desiring to abolish prostitution, resent the abnegation which accompanies it, and are disgusted by its sordid aspects. They may have no moral scruples against prostitution, and they know no reason why a woman should not freely do as she will with her own person. But they believe that, if prostitution is necessary, the relationships of men with prostitutes should be humane and agreeable to each party, and not degrading to either. It must be remembered that under the conditions of civilized urban life, the discipline of work is often too severe, and the excitements of urban existence too constant, to render an abandonment to orgy a desirable recreation. The gross form of orgy appeals, not to the town-dweller but to the peasant, and to the sailor or soldier who reaches the town after long periods of dreary routine and emotional abstinence. It is a mistake, even, to

suppose that the attraction of prostitution is inevitably associated with the fulfilment of the sexual act. So far is this from being the case that the most attractive prostitute may be a woman who, possessing few sexual needs of her own, desires to please by the charm of her personality; these are among those who most often find good husbands. There are many men who are even well content merely to have a few hours' free intimacy with an agreeable woman, without any further favor, although that may be open to them. For a very large number of men under urban conditions of existence the prostitute is ceasing to be the degraded instrument of a moment's lustful desire; they seek an agreeable human person with whom they may find relaxation from the daily stress or routine of life. When an act of prostitution is thus put on a humane basis, although it by no means thereby becomes conducive to the best development of either party, it at least ceases to be hopelessly degrading. Otherwise it would not have been possible for religious prostitution to flourish for so long in ancient days among honorable women of good birth on the shores of the Mediterranean, even in regions like Lydia, where the position of women was peculiarly high.[214]

It is true that the monetary side of prostitution would still exist. But it is possible to exaggerate its importance. It must be pointed out that, though it is usual to speak of the prostitute as a woman who "sells herself," this is rather a crude and inexact way of expressing, in its typical form, the relationship of a prostitute to her client. A prostitute is not a commodity with a market-price, like a loaf or a leg of mutton. She is much more on a level with people belonging to the professional classes, who accept fees in return for services rendered; the amount of the fee varies, on the one hand in accordance with professional standing, on the other hand in accordance with the client's means, and under special circumstances may be graciously dispensed with altogether. Prostitution places on a venal basis intimate relationships which ought to spring up from natural love, and in so doing degrades them. But strictly speaking there is in such a case no "sale." To speak of a prostitute "selling herself" is scarcely even a pardonable rhetorical exaggeration; it is both inexact and unjust.[215]

This tendency in an advanced civilization towards the humanization of prostitution is the reverse process, we may note, to that which takes place at an earlier stage of civilization when the ancient conception of the religious dignity of prostitution begins to fall into disrepute. When men cease to reverence women who are prostitutes in the service of a goddess they set up in their place prostitutes who are merely abject slaves, flattering themselves that they are thereby working in the cause of "progress" and "morality." On the shores of the Mediterranean this process took place more than two thousand years ago, and is associated with the name of Solon. To-day we may see the same process going on in India. In some parts of India (as at Jejuri, near Poonah) first born girls are dedicated to Khandoba or other gods; they are married to the god and termed _muralis_. They serve in the temple, sweep it, and wash the holy vessels, also they dance, sing and prostitute themselves. They are forbidden to marry, and they live in the homes of their parents, brothers, or sisters; being consecrated to religious service, they are untouched by degradation. Nowadays, however, Indian "reformers," in the name of "civilization and science," seek to persuade the _muralis_ that they are "plunged in a career of degradation." No doubt in time the would-be

moralists will drive the _muralis_ out of their temples and their homes, deprive them of all self-respect, and convert them into wretched outcasts, all in the cause of "science and civilization" (see, e.g., an article by Mrs. Kashibai Deodhar, _The New Reformer_, October, 1907). So it is that early reformers create for the reformers of a later day the task of humanizing prostitution afresh.

There can be no doubt that this more humane conception of prostitution is to-day beginning to be realized in the actual civilized life of Europe. Thus in writing of prostitution in Paris, Dr. Robert Michels ("Erotische Streifzüge," _Mutterschutz_, 1906, Heft 9, p. 368) remarks: "While in Germany the prostitute is generally considered as an 'outcast' creature, and treated accordingly, an instrument of masculine lust to be used and thrown away, and whom one would under no circumstances recognize in public, in France the prostitute plays in many respects the part which once give significance and fame to the _hetairæ_ of Athens." And after describing the consideration and respect which the Parisian prostitute is often able to require of her friends, and the non-sexual relation of comradeship which she can enter into with other men, the writer continues: "A girl who certainly yields herself for money, but by no means for the first comer's money, and who, in addition to her 'business friends,' feels the need of, so to say, non-sexual companions with whom she can associate in a free comrade-like way, and by whom she is treated and valued as a free human being, is not wholly lost for the moral worth of humanity." All prostitution is bad, Michels concludes, but we should have reason to congratulate ourselves if love-relationships of this Parisian species represented the lowest known form of extra-conjugal sexuality. (As bearing on the relative consideration accorded to prostitutes I may mention that a Paris prostitute remarked to a friend of mine that Englishmen would ask her questions which no Frenchman would venture to ask.)

It is not, however, only in Paris, although here more markedly and prominently, that this humanizing change in prostitution is beginning to make itself felt. It is manifested, for instance, in the greater openness of a man's sexual life. "While he formerly slinked into a brothel in a remote street," Dr. Willy Hellpach remarks (_Nervosität und Kultur_, p. 169), "he now walks abroad with his 'liaison,' visiting the theatres and cafés, without indeed any anxiety to meet his acquaintances, but with no embarrassment on that point. The thing is becoming more commonplace, more--natural." It is also, Hellpach proceeds to point out, thus becoming more moral also, and much unwholesome prudery and pruriency is being done away with.

In England, where change is slow, this tendency to the humanization of prostitution may be less pronounced. But it certainly exists. In the middle of the last century Lecky wrote (_History of European Morals_, vol. ii, p. 285) that habitual prostitution "is in no other European country so hopelessly vicious or so irrevocable." That statement, which was also made by Parent-Duchâtelet and other foreign observers, is fully confirmed by the evidence on record. But it is a statement which would hardly be made to-day, except perhaps, in reference to special confined areas of our cities. It is the same in America, and we may doubtless find this tendency reflected in the report on _The Social Evil_ (1902), drawn up by a committee in New York, who gave it (p. 176) as one of their chief recommendations that prostitution

should no longer be regarded as a crime, in which light, one gathers, it had formerly been regarded in New York. That may seem but a small step in the path of humanization, but it is in the right direction.

It is by no means only in lands of European civilization that we may trace with developing culture the refinement and humanization of the slighter bonds of relationship with women. In Japan exactly the same demands led, several centuries ago, to the appearance of the geisha. In the course of an interesting and precise study of the geisha Mr. R.T. Farrer remarks (_Nineteenth Century_, April, 1904): "The geisha is in no sense necessarily a courtesan. She is a woman educated to attract; perfected from her childhood in all the intricacies of Japanese literature; practiced in wit and repartee; inured to the rapid give-and-take of conversation on every topic, human and divine. From her earliest youth she is broken into an inviolable charm of manner incomprehensible to the finest European, yet she is almost invariably a blossom of the lower classes, with dumpy claws, and squat, ugly nails. Her education, physical and moral, is far harder than that of the _ballerina_, and her success is achieved only after years of struggle and a bitter agony of torture.... And the geisha's social position may be compared with that of the European actress. The Geisha-house offers prizes as desirable as any of the Western stage. A great geisha with twenty nobles sitting round her, contending for her laughter, and kept in constant check by the flashing bodkin of her wit, holds a position no less high and famous than that of Sarah Bernhardt in her prime. She is equally sought, equally flattered, quite as madly adored, that quiet little elderly plain girl in dull blue. But she is prized thus primarily for her tongue, whose power only ripens fully as her physical charms decline. She demands vast sums for her owners, and even so often appears and dances only at her own pleasure. Few, if any, Westerners ever see a really famous geisha. She is too great to come before a European, except for an august or imperial command. Finally she may, and frequently does, marry into exalted places. In all this there is not the slightest necessity for any illicit relation."

In some respects the position of the ancient Greek _hetaira_ was more analogous to that of the Japanese _geisha_ than to that of the prostitute in the strict sense. For the Greeks, indeed, the _hetaira_, was not strictly a _porne_ or prostitute at all. The name meant friend or companion, and the woman to whom the name was applied held an honorable position, which could not be accorded to the mere prostitute. Athenæus (Bk. xiii, Chs. XXVIII-XXX) brings together passages showing that the _hetaira_ could be regarded as an independent citizen, pure, simple, and virtuous, altogether distinct from the common crew of prostitutes, though these might ape her name. The _hetairæ_ "were almost the only Greek women," says Donaldson (_Woman_, p. 59), "who exhibited what was best and noblest in women's nature." This fact renders it more intelligible why a woman of such intellectual distinction as Aspasia should have been a _hetaira_. There seems little doubt as to her intellectual distinction. "Æschines, in his dialogue entitled 'Aspasia,'" writes Gomperz, the historian of Greek philosophy (_Greek Thinkers_, vol. iii, pp. 124 and 343), "puts in the mouth of that distinguished woman an incisive criticism of the mode of life traditional for her sex. It would be exceedingly strange," Gomperz adds, in arguing that an inference may thus be drawn concerning the historical Aspasia, "if three

authors--Plato, Xenophon and Æschines--had agreed in fictitiously enduing the companion of Pericles with what we might very reasonably have expected her to possess--a highly cultivated mind and intellectual influence." It is even possible that the movement for woman's right which, as we dimly divine through the pages of Aristophanes, took place in Athens in the fourth century B.C., was led by _hetairæ_. According to Ivo Bruns (_Frauenemancipation in Athen_, 1900, p. 19) "the most certain information which we possess concerning Aspasia bears a strong resemblance to the picture which Euripides and Aristophanes present to us of the leaders of the woman movement." It was the existence of this movement which made Plato's ideas on the community of women appear far less absurd than they do to us. It may perhaps be thought by some that this movement represented on a higher plane that love of distruction, or, as we should better say, that spirit of revolt and aspiration, which Simmel finds to mark the intellectual and artistic activity of those who are unclassed or dubiously classed in the social hierarchy. Ninon de Lenclos, as we have seen, was not strictly a courtesan, but she was a pioneer in the assertion of woman's rights. Aphra Behn who, a little later in England, occupied a similarly dubious social position, was likewise a pioneer in generous humanitarian aspirations, which have since been adopted in the world at large.

These refinements of prostitution may be said to be chiefly the outcome of the late and more developed stages in civilization. As Schurtz has put it (_Altersklassen und Männerbünde_, p. 191): "The cheerful, skilful and artistically accomplished _hetaira_ frequently stands as an ideal figure in opposition to the intellectually uncultivated wife banished to the interior of the house. The courtesan of the Italian Renaissance, Japanese geishas, Chinese flower-girls, and Indian bayaderas, all show some not unnoble features, the breath of a free artistic existence. They have achieved--with, it is true, the sacrifice of their highest worth--an independence from the oppressive rule of man and of household duties, and a part of the feminine endowment which is so often crippled comes in them to brilliant development. Prostitution in its best form may thus offer a path by which these feminine characteristics may exert a certain influence on the development of civilization. We may also believe that the artistic activity of women is in some measure able to offer a counterpoise to the otherwise less pleasant results of sexual abandonment, preventing the coarsening and destruction of the emotional life; in his _Magda_ Sudermann has described a type of woman who, from the standpoint of strict morality, is open to condemnation, but in her art finds a foothold, the strength of which even ill-will must unwillingly recognize." In his _Sex and Character_, Weininger has developed in a more extreme and extravagant manner the conception of the prostitute as a fundamental and essential part of life, a permanent feminine type.

There are others, apparently in increasing numbers, who approach the problem of prostitution not from an æsthetic standpoint but from a moral standpoint. This moral attitude is not, however, that conventionalized morality of Cato and St. Augustine and Lecky, set forth in previous pages, according to which the prostitute in the street must be accepted as the guardian of the wife in the home. These moralists reject indeed the claim of that belief to be considered moral at all. They hold that it is not morally possible that the honor of some women shall be purchaseable at the price of

the dishonor of other women, because at such a price virtue loses all moral worth. When they read that, as Goncourt stated, "the most luxurious articles of women's _trousseaux_, the bridal chemises of girls with dowries of six hundred thousand francs, are made in the prison of Clairvaux,"[216] they see the symbol of the intimate dependence of our luxurious virtue on our squalid vice. And while they accept the historical and sociological evidence which shows that prostitution is an inevitable part of the marriage system which still survives among us, they ask whether it is not possible so to modify our marriage system that it shall not be necessary to divide feminine humanity into "disreputable" women, who make sacrifices which it is dishonorable to make, and "respectable" women, who take sacrifices which it cannot be less dishonorable to accept.

Prostitutes, a distinguished man of science has said (Duclaux, _L'Hygiène Sociale_, p. 243), "have become things which the public uses when it wants them, and throws on the dungheap when it has made them vile. In its pharisaism it even has the insolence to treat their trade as shameful, as though it were not just as shameful to buy as to sell in this market." Bloch (_Sexualleben unserer Zeit_, Ch. XV) insists that prostitution must be ennobled, and that only so can it be even diminished. Isidore Dyer, of New Orleans, also argues that we cannot check prostitution unless we create "in the minds of men and women a spirit of tolerance instead of intolerance of fallen women." This point may be illustrated by a remark by the prostitute author of the _Tagebuch einer Verlorenen_. "If the profession of yielding the body ceased to be a shameful one," she wrote, "the army of 'unfortunates' would diminish by four-fifths--I will even say nine-tenths. Myself, for example! How gladly would I take a situation as companion or governess!" "One of two things," wrote the eminent sociologist Tarde ("La Morale Sexuelle," _Archives d'Anthropologie Criminelle_, January, 1907), "either prostitution will disappear through continuing to be dishonorable and will be replaced by some other institution which will better remedy the defects of monogamous marriage, or it will survive by becoming respectable, that is to say, by making itself respected, whether liked or disliked." Tarde thought this might perhaps come about by a better organization of prostitutes, a more careful selection among those who desired admission to their ranks and the cultivation of professional virtues which would raise their moral level. "If courtesans fulfil a need," Balzac had already said in his _Physiologie du Mariage_, "they must become an institution."

This moral attitude is supported and enforced by the inevitable democratic tendency of civilization which, although it by no means destroys the idea of class, undermines that idea as the mark of fundamental human distinctions and renders it superficial. Prostitution no longer makes a woman a slave; it ought not to make her even a pariah: "My body is my own," said the young German prostitute of to-day, "and what I do with it is nobody else's concern." When the prostitute was literally a slave moral duty towards her was by no means necessarily identical with moral duty towards the free woman. But when, even in the same family, the prostitute may be separated by a great and impassable social gulf from her married sister, it becomes possible to see, and in the opinion of many imperatively necessary to see, that a readjustment of moral values is required. For thousands of years prostitution has been defended on the ground that the prostitute is necessary to ensure the "purity of

women." In a democratic age it begins to be realized that prostitutes also are women.

The developing sense of a fundamental human equality underlying the surface divisions of class tends to make the usual attitude towards the prostitute, the attitude of her clients even more than that of society generally, seem painfully cruel. The callous and coarsely frivolous tone of so many young men about prostitutes, it has been said, is "simply cruelty of a peculiarly brutal kind," not to be discerned in any other relation of life.[217] And if this attitude is cruel even in speech it is still more cruel in action, whatever attempts may be made to disguise its cruelty.

Canon Lyttelton's remarks may be taken to refer chiefly to young men of the upper middle class. Concerning what is perhaps the usual attitude of lower middle class people towards prostitution, I may quote from a remarkable communication which has reached me from Australia: "What are the views of a young man brought up in a middle-class Christian English family on prostitutes? Take my father, for instance. He first mentioned prostitutes to me, if I remember rightly, when speaking of his life before marriage. And he spoke of them as he would speak of a horse he had hired, paid for, and dismissed from his mind when it had rendered him service. Although my mother was so kind and good she spoke of abandoned women with disgust and scorn as of some unclean animal. As it flatters vanity and pride to be able with good countenance and universal consent to look down on something, I soon grasped the situation and adopted an attitude which is, in the main, that of most middle-class Christian Englishmen towards prostitutes. But as puberty develops this attitude has to be accommodated with the wish to make use of this scum, these moral lepers. The ordinary young man, who likes a spice of immorality and has it when in town, and thinks it is not likely to come to his mother's or sisters' ears, does not get over his arrogance and disgust or abate them in the least. He takes them with him, more or less disguised, to the brothel, and they color his thoughts and actions all the time he is sleeping with prostitutes, or kissing them, or passing his hands over them, as he would over a mare, getting as much as he can for his money. To tell the truth, on the whole, that was my attitude too. But if anyone had asked me for the smallest reason for this attitude, for this feeling of superiority, pride, _hauteur_, and prejudice, I should, like any other 'respectable' young man, have been entirely at a loss, and could only have gaped foolishly."

From the modern moral standpoint which now concerns us, not only is the cruelty involved in the dishonor of the prostitute absurd, but not less absurd, and often not less cruel, seems the honor bestowed on the respectable women on the other side of the social gulf. It is well recognized that men sometimes go to prostitutes to gratify the excitement aroused by fondling their betrothed.[218] As the emotional and physical results of ungratified excitement are not infrequently more serious in women than in men, the betrothed women in these cases are equally justified in seeking relief from other men, and the vicious circle of absurdity might thus be completed.

From the point of view of the modern moralist there is another consideration which was altogether overlooked in the conventional and traditional morality we have inherited, and was indeed practically non-existent in the ancient days when that morality was still a living reality. Women are no longer divided only into the two

groups of wives who are to be honored, and prostitutes who are the dishonored guardians of that honor; there is a large third class of women who are neither wives nor prostitutes. For this group of the unmarried virtuous the traditional morality had no place at all; it simply ignored them. But the new moralist, who is learning to recognize both the claims of the individual and the claims of society, begins to ask whether on the one hand these women are not entitled to the satisfaction of their affectional and emotional impulses if they so desire, and on the other hand whether, since a high civilization involves a diminished birthrate, the community is not entitled to encourage every healthy and able-bodied woman to contribute to maintain the birthrate when she so desires.

All the considerations briefly indicated in the preceding pages--the fundamental sense of human equality generated by our civilization, the repugnance to cruelty which accompanies the refinement of urban life, the ugly contrast of extremes which shock our developing democratic tendencies, the growing sense of the rights of the individual to authority over his own person, the no less strongly emphasized right of the community to the best that the individual can yield--all these considerations are every day more strongly influencing the modern moralist to assume towards the prostitute an attitude altogether different from that of the morality which we derived from Cato and Augustine. He sees the question in a larger and more dynamic manner. Instead of declaring that it is well worth while to tolerate and at the same time to condemn the prostitute, in order to preserve the sanctity of the wife in her home, he is not only more inclined to regard each as the proper guardian of her own moral freedom, but he is less certain about the time-honored position of the prostitute, and moreover, by no means sure that the wife in the home may not be fully as much in need of rescuing as the prostitute in the street; he is prepared to consider whether reform in this matter is not most likely to take place in the shape of a fairer apportionment of sexual privileges and sexual duties to women generally, with an inevitably resultant elevation in the sexual lives of men also.

The revolt of many serious reformers against the injustice and degradation now involved by our system of prostitution is so profound that some have declared themselves ready to accept any revolution of ideas which would bring about a more wholesome transmutation of moral values. "Better indeed were a saturnalia of _free_ men and women," exclaims Edward Carpenter (_Love's Coming of Age_, p. 62), "than the spectacle which, as it is, our great cities present at night."

Even those who would be quite content with as conservative a treatment as possible of social institutions still cannot fail to realize that prostitution is unsatisfactory, unless we are content to make very humble claims of the sexual act. "The act of prostitution," Godfrey declares (_The Science of Sex_, p. 202), "may be physiologically complete, but it is complete in no other sense. All the moral and intellectual factors which combine with physical desire to form the perfect sexual attraction are absent. All the higher elements of love--admiration, respect, honor, and self-sacrificing devotion--are as foreign to prostitution as to the egoistic act of masturbation. The principal drawbacks to the morality of the act lie in its associations more than in the act itself. Any affectional quality which a more or less promiscuous

connection might possess is at once destroyed by the intrusion of the monetary element. In the resulting degradation the woman has the largest share, since it makes her a pariah and involves her in all the hardening and depraving influences of social ostracism. But her degradation only serves to render her influence on her partners more demoralizing. Prostitution," he concludes, "has a strong tendency towards emphasizing the naturally selfish attitude of men towards women, and encouraging them in the delusion, born of unregulated passions, that the sexual act itself is the aim and end of the sex life. Prostitution can therefore make no claim to afford even a temporary solution to the sex problem. It fulfils only that mission which has made it a 'necessary evil'--the mission of palliative to the physical rigors of celibacy and monogamy. It does so at the cost of a considerable amount of physical and moral deterioration, much of which is undoubtedly due to the action of society in completing the degradation of the prostitute by persistent ostracism. Prostitution was not so great an evil when it was not thought so great, yet even at its best it was a real evil, a melancholy and sordid travesty of sincere and natural passional relations. It is an evil which we are bound to have with us so long as celibacy is a custom and monogamy a law." It is the wife as well as the prostitute who is degraded by a system which makes venal love possible. "The time has gone past," the same writer remarks elsewhere (p. 195) "when a mere ceremony can really sanctify what is base and transform lust and greed into the sincerity of sexual affection. If, to enter into sexual connections with a man for a solely material end is a disgrace to humanity, it is a disgrace under the marriage bond just as much as apart from the hypocritical blessing of the church or the law. If the public prostitute is a being who deserves to be treated as a pariah, it is hopelessly irrational to withhold every sort of moral opprobrium from the woman who leads a similar life under a different set of external circumstances. Either the prostitute wife must come under the moral ban, or there must be an end to the complete ostracism under which the prostitute labors."

The thinker who more clearly and fundamentally than others, and first of all, realized the dynamical relationships of prostitution, as dependent upon a change in the other social relationships of life, was James Hinton. More than thirty years ago, in fragmentary writings that still remain unpublished, since he never worked them into an orderly form, Hinton gave vigorous and often passionate expression to this fundamental idea. It may be worth while to quote a few brief passages from Hinton's MSS.: "I feel that the laws of force should hold also amid the waves of human passion, that the relations of mechanics are true, and will rule also in human life.... There is a tension, a crushing of the soul, by our modern life, and it is ready for a sudden spring to a different order in which the forces shall rearrange themselves. It is a dynamical question presented in moral terms.... Keeping a portion of the woman population without prospect of marriage means having prostitutes, that is women as instruments of man's mere sensuality, and this means the killing, in many of them, of all pure love or capacity of it. This is the fact we have to face.... To-day I saw a young woman whose life was being consumed by her want of love, a case of threatened utter misery: now see the price at which we purchase her ill-health; for her ill-health we pay the crushing of another girl into hell. We give that for it; her wretchedness of soul and body are bought by prostitution; we have prostitutes made for that.... We devote

some women recklessly to perdition to make a hothouse Heaven for the rest.... One wears herself out in vainly trying to endure pleasures she is not strong enough to enjoy, while other women are perishing for lack of these very pleasures. If marriage is this, is it not embodied lust? The happy Christian homes are the true dark places of the earth.... Prostitution for man, restraint for woman--they are two sides of the same thing, and both are denials of love, like luxury and asceticism. The mountains of restraint must be used to fill up the abysses of luxury."

Some of Hinton's views were set forth by a writer intimately acquainted with him in a pamphlet entitled _The Future of Marriage: An Eirenicon for a Question of To-day_, by a Respectable Woman (1885). "When once the conviction is forced home upon the 'good' women," the writer remarks, "that their place of honor and privilege rests upon the degradation of others as its basis, they will never rest till they have either abandoned it or sought for it some other pedestal. If our inflexible marriage system has for its essential condition the existence side by side with it of prostitution, then one of two things follows: either prostitution must be shown to be compatible with the well-being, moral and physical, of the women who practice it, or our marriage system must be condemned. If it was clearly put before anyone, he could not seriously assert that to be 'virtue' which could only be practiced at the expense of another's vice.... Whilst the laws of physics are becoming so universally recognized that no one dreams of attempting to annihilate a particle of matter, or of force, yet we do not instinctively apply the same conception to moral forces, but think and act as if we could simply do away with an evil, while leaving unchanged that which gives it its strength. This is the only view of the social problem which can give us hope. That prostitution should simply cease, leaving everything else as it is, would be disastrous if it were possible. But it is not possible. The weakness of all existing efforts to put down prostitution is that they are directed against it as an isolated thing, whereas it is only one of the symptoms proceeding from a common disease."

Ellen Key, who during recent years has been the chief apostle of a gospel of sexual morality based on the needs of women as the mothers of the race, has, in a somewhat similar spirit, denounced alike prostitution and rigid marriage, declaring (in her _Essays on Love and Marriage_) that "the development of erotic personal consciousness is as much hindered by socially regulated 'morality' as by socially regulated 'immorality,'" and that "the two lowest and socially sanctioned expressions of sexual dualism, rigid marriage and prostitution, will gradually become impossible, because with the conquest of the idea of erotic unity they will no longer correspond to human needs."

We may sum up the present situation as regards prostitution by saying that on the one hand there is a tendency for its elevation, in association with the growing humanity and refinement of civilization, characteristics which must inevitably tend to mark more and more both those women who become prostitutes and those men who seek them; on the other hand, but perhaps through the same dynamic force, there is a tendency towards the slow elimination of prostitution by the successful competition of higher and purer methods of sexual relationship freed from pecuniary considerations. This refinement and humanization, this competition by better forms

of sexual love, are indeed an essential part of progress as civilization becomes more truly sound, wholesome, and sincere.

This moral change cannot, it seems probable, fail to be accompanied by the realization that the facts of human life are more important than the forms. For all changes from lower to higher social forms, from savagery to civilization, are accompanied--in so far as they are vital changes--by a slow and painful groping towards the truth that it is only in natural relations that sanity and sanctity can be found, for, as Nietzsche said, the "return" to Nature should rather be called the "ascent." Only so can we achieve the final elimination from our hearts of that clinging tradition that there is any impurity or dishonor in acts of love for which the reasonable, and not merely the conventional, conditions have been fulfilled. For it is vain to attempt to cleanse our laws, or even our by-laws, until we have first cleansed our hearts.

It would be out of place here to push further the statement of the moral question as it is to-day beginning to shape itself in the sphere of sex. In a psychological discussion we are only concerned to set down the actual attitude of the moralist, and of civilization. The practical outcome of that attitude must be left to moralists and sociologists and the community generally to work out.

Our inquiry has also, it may be hoped, incidentally tended to show that in practically dealing with the question of prostitution it is pre-eminently necessary to remember the warning which, as regards many other social problems, has been embodied by Herbert Spencer in his famous illustration of the bent iron plate. In trying to make the bent plate smooth, it is useless, Spencer pointed out, to hammer directly on the buckled up part; if we do so we merely find that we have made matters worse; our hammering, to be effective, must be around, and not directly on, the offensive elevation we wish to reduce; only so can the iron plate be hammered smooth.[219] But this elementary law has not been understood by moralists. The plain, practical, common-sense reformer, as he fancied himself to be--from the time of Charlemagne onwards--has over and over again brought his heavy fist directly down on to the evil of prostitution and has always made matters worse. It is only by wisely working outside and around the evil that we can hope to lessen it effectually. By aiming to develop and raise the relationships of men to women, and of women to women, by modifying our notions of sexual relationships, and by introducing a saner and truer conception of womanhood and of the responsibilities of women as well as of men, by attaining, socially as well as economically, a higher level of human living--it is only by such methods as these that we can reasonably expect to see any diminution and alleviation of the evil of prostitution. So long as we are incapable of such methods we must be content with the prostitution we deserve, learning to treat it with the pity, and the respect, which so intimate a failure of our civilization is entitled to.

FOOTNOTES:

[107] See, e.g., Cheetham's Hulsean Lectures, _The Mysteries, Pagan and Christian_, pp. 123, 136.

[108] Hormayr's _Taschenbuch_, 1835, p. 255. Hagelstange, in a chapter on mediæval festivals in his _Süddeutsches Bauernleben im Mittelalter_, shows how, in these Christian orgies which were really of pagan origin, the German people reacted with tremendous and boisterous energy against the laborious and monotonous existence of everyday life.

[109] This was clearly realized by the more intelligent upholders of the Feast of Fools. Austere persons wished to abolish this Feast, and in a remarkable petition sent up to the Theological Faculty of Paris (and quoted by Flogel, _Geschichte des Grotesk-Komischen_, fourth edition, p. 204) the case for the Feast is thus presented: "We do this according to ancient custom, in order that folly, which is second nature to man and seems to be inborn, may at least once a year have free outlet. Wine casks would burst if we failed sometimes to remove the bung and let in air. Now we are all ill-bound casks and barrels which would let out the wine of wisdom if by constant devotion and fear of God we allowed it to ferment. We must let in air so that it may not be spoilt. Thus on some days we give ourselves up to sport, so that with the greater zeal we may afterwards return to the worship of God." The Feast of Fools was not suppressed until the middle of the sixteenth century, and relics of it persisted (as at Aix) till near the end of the eighteenth century.

[110] A Méray, _La Vie au Temps des Libres Prêcheurs_, vol. ii, Ch. X. A good and scholarly account of the Feast of Fools is given by E.K. Chambers, _The Mediæval Stage_, Ch. XIII. It is true that the Church and the early Fathers often anathematized the theatre. But Gregory of Nazianzen wished to found a Christian theatre; the Mediæval Mysteries were certainly under the protection of the clergy; and St. Thomas Aquinas, the greatest of the schoolmen, only condemns the theatre with cautious qualifications.

[111] Spencer and Gillen, _Northern Tribes of Central Australia_, Ch. XII.

[112] _Journal Anthropological Institute_, July-Dec., 1904, p. 329.

[113] Westermarck (_Origin and Development of the Moral Ideas_, vol. ii, pp. 283-9) shows how widespread is the custom of setting apart a periodical rest day.

[114] A.E. Crawley, _The Mystic Rose_, pp. 273 et seq., Crawley brings into association with this function of great festivals the custom, found in some parts of the world, of exchanging wives at these times. "It has nothing whatever to do with the marriage system, except as breaking it for a season, women of forbidden degree being lent, on the same grounds as conventions and ordinary relations are broken at festivals of the Saturnalia type, the object being to change life and start afresh, by exchanging every thing one can, while the very act of exchange coincides with the other desire, to weld the community together" (Ib., p. 479).

[115] See "The Analysis of the Sexual Impulse" in vol. iii of these _Studies_.

[116] G. Murray, _Ancient Greek Literature_, p. 211.

[117] The Greek drama probably arose out of a folk-festival of more or less sexual character, and it is even possible that the mediæval drama had a somewhat similar origin (see Donaldson, _The Greek Theatre_; Gilbert Murray, loc. cit.; Karl Pearson,

The Chances of Death, vol. ii, pp. 135-6, 280 et seq.).

[118] R. Canudo, "Les Chorèges Français," _Mercure de France_, May 1, 1907, p. 180.

[119] "This is, in fact," Cyples declares (_The Process of Human Experience_, p. 743), "Art's great function--to rehearse within us greater egoistic possibilities, to habituate us to larger actualizations of personality in a rudimentary manner," and so to arouse, "aimlessly but splendidly, the sheer as yet unfulfilled possibilities within us."

[120] Even when monotonous labor is intellectual, it is not thereby protected against degrading orgiastic reactions. Prof. L. Gurlitt shows (_Die Neue Generation_, January, 1909, pp. 31-6) how the strenuous, unremitting intellectual work of Prussian seminaries leads among both teachers and scholars to the worst forms of the orgy.

[121] Rabutaux discusses various definitions of prostitution, _De la Prostitution en Europe_, pp. 119 et seq. For the origin of the names to designate the prostitute, see Schrader, _Reallexicon_, art. "Beischläferin."

[122] _Digest_, lib. xxiii, tit. ii, p. 43. If she only gave herself to one or two persons, though for money, it was not prostitution.

[123] Guyot, _La Prostitution_, p. 8. The element of venality is essential, and religious writers (like Robert Wardlaw, D.D., of Edinburgh, in his _Lectures on Female Prostitution_, 1842, p. 14) who define prostitution as "the illicit intercourse of the sexes," and synonymous with theological "fornication," fall into an absurd confusion.

[124] "Such marriages are sometimes stigmatized as 'legalized prostitution,'" remarks Sidgwick (_Methods of Ethics_, Bk. iii, Ch. XI), "but the phrase is felt to be extravagant and paradoxical."

[125] Bonger, _Criminalité et Conditions Economiques_, p. 378. Bonger believes that the act of prostitution is "intrinsically equal to that of a man or woman who contracts a marriage for economical reasons."

[126] E. Richard, _La Prostitution à Paris_, 1890, p. 44. It may be questioned whether publicity or notoriety should form an essential part of the definition; it seems, however, to be involved, or the prostitute cannot obtain clients. Reuss states that she must, in addition, be absolutely without means of subsistence; that is certainly not essential. Nor is it necessary, as the _Digest_ insisted, that the act should be performed "without pleasure;" that may be as it will, without affecting the prostitutional nature of the act.

[127] Hawkesworth, _Account of the Voyages_, etc., 1775, vol. ii, p. 254.

[128] R.W. Codrington, _The Melanesians_, p. 235.

[129] F.S. Krauss, _Romanische Forschungen_, 1903, p. 290.

[130] H. Schurtz, _Altersklassen und Männerbünde_, 1902, p. 190. In this work Schurtz brings together (pp. 189-201) some examples of the germs of prostitution

among primitive peoples. Many facts and references are given by Westermarck (_History of Human Marriage_, pp. 66 et seq., and _Origin and Development of the Moral Ideas_, vol. ii, pp. 441 _et seq._).

[131] Bachofen (more especially in his _Mutterrecht_ and _Sage von Tanaquil_) argued that even religious prostitution sprang from the resistance of primitive instincts to the individualization of love. Cf. Robertson Smith, _Religion of Semites_, second edition, p. 59.

[132] Whatever the reason may be, there can be no doubt that there is a widespread tendency for religion and prostitution to be associated; it is possibly to some extent a special case of that general connection between the religious and sexual impulses which has been discussed elsewhere (Appendix C to vol. i of these _Studies_). Thus A.B. Ellis, in his book on _The Ewe-speaking Peoples of West Africa_ (pp. 124, 141) states that here women dedicated to a god become promiscuous prostitutes. W.G. Sumner (_Folkways_, Ch. XVI) brings together many facts concerning the wide distribution of religious prostitution.

[133] Herodotus, Bk. I, Ch. CXCIX; Baruch, Ch. VI, p. 43. Modern scholars confirm the statements of Herodotus from the study of Babylonian literature, though inclined to deny that religious prostitution occupied so large a place as he gives it. A tablet of the Gilgamash epic, according to Morris Jastrow, refers to prostitutes as attendants of the goddess Ishtar in the city Uruk (or Erech), which was thus a centre, and perhaps the chief centre, of the rites described by Herodotus (Morris Jastrow, _The Religion of Babylonia and Assyria_, 1898, p. 475). Ishtar was the goddess of fertility, the great mother goddess, and the prostitutes were priestesses, attached to her worship, who took part in ceremonies intended to symbolize fertility. These priestesses of Ishtar were known by the general name Kadishtu, "the holy ones" (op. cit., pp. 485, 660).

[134] It is usual among modern writers to associate Aphrodite Pandemos, rather than Ourania, with venal or promiscuous sexuality, but this is a complete mistake, for the Aphrodite Pandemos was purely political and had no sexual significance. The mistake was introduced, perhaps intentionally, by Plato. It has been suggested that that arch-juggler, who disliked democratic ideas, purposely sought to pervert and vulgarize the conception of Aphrodite Pandemos (Farnell, _Cults of Greek States_, vol. ii, p. 660).

[135] Athenæus, Bk. xiii, cap. XXXII. It appears that the only other Hellenic community where the temple cult involved unchastity was a city of the Locri Epizephyrii (Farnell, op. cit., vol. ii, p. 636).

[136] I do not say an earlier "promiscuity," for the theory of a primitive sexual promiscuity is now widely discredited, though there can be no reasonable doubt that the early prevalence of mother-right was more favorable to the sexual freedom of women than the later patriarchal system. Thus in very early Egyptian days a woman could give her favors to any man she chose by sending him her garment, even if she were married. In time the growth of the rights of men led to this being regarded as criminal, but the priestesses of Amen retained the privilege to the last, as being

under divine protection (Flinders Petrie, _Egyptian Tales_, pp. 10, 48).

[137] It should be added that Farnell ("The Position of Women in Ancient Religion," _Archiv für Religionswissenschaft_, 1904, p. 88) seeks to explain the religious prostitution of Babylonia as a special religious modification of the custom of destroying virginity before marriage in order to safeguard the husband from the mystic dangers of defloration. E.S. Hartland, also ("Concerning the Rite at the Temple of Mylitta," _Anthropological Essays Presented to E.B. Tyler_, p. 189), suggests that this was a puberty rite connected with ceremonial defloration. This theory is not, however, generally accepted by Semitic scholars.

[138] The girls of this tribe, who are remarkably pretty, after spending two or three years in thus amassing a little dowry, return home to marry, and are said to make model wives and mothers. They are described by Bertherand in Parent-Duchâtelet, _La Prostitution à Paris_, vol. ii, p. 539.

[139] In Abyssinia (according to Fiaschi, _British Medical Journal_, March 13, 1897), where prostitution has always been held in high esteem, the prostitutes, who are now subject to medical examination twice a week, still attach no disgrace to their profession, and easily find husbands afterwards. Potter (_Sohrab and Rustem_, pp. 168 et seq.) gives references as regards peoples, widely dispersed in the Old World and the New, among whom the young women have practiced prostitution to obtain a dowry.

[140] At Tralles, in Lydia, even in the second century A.D., as Sir W.M. Ramsay notes (_Cities of Phrygia_, vol. i, pp. 94, 115), sacred prostitution was still an honorable practice for women of good birth who "felt themselves called upon to live the divine life under the influence of divine inspiration."

[141] The gradual secularization of prostitution from its earlier religious form has been traced by various writers (see, e.g., Dupouey, _La Prostitution dans l'Antiquité_). The earliest complimentary reference to the _Hetaira_ in literature is to be found, according to Benecke (_Antimachus of Colophon_, p. 36), in Bacchylides.

[142] Cicero, _Oratio prô Coelio_, Cap. XX.

[143] Pierre Dufour, _Histoire de la Prostitution_, vol. ii, Chs. XIX-XX. The real author of this well-known history of prostitution, which, though not scholarly in its methods, brings together a great mass of interesting information, is said to be Paul Lacroix.

[144] Rabutaux, in his _Histoire de la Prostitution en Europe_, describes many attempts to suppress prostitution; cf. Dufour, _op. cit._, vol. iii.

[145] Dufour, op. cit., vol. vi, Ch. XLI. It was in the reign of the homosexual Henry III that the tolerance of brothels was established.

[146] In the eighteenth century, especially, houses of prostitution in Paris attained to an astonishing degree of elaboration and prosperity. Owing to the constant watchful attention of the police a vast amount of detailed information concerning these establishments was accumulated, and during recent years much of it has been

published. A summary of this literature will be found in Dühren's _Neue Forshungen über den Marquis de Sade und seine Zeit_, 1904, pp. 97 et seq.

[147] Rabutaux, op. cit., p. 54.

[148] Calza has written the history of Venetian prostitution; and some of the documents he found have been reproduced by Mantegazza, _Gli Amori degli Uomimi_, cap. XIV. At the beginning of the seventeenth century, a comparatively late period, Coryat visited Venice, and in his _Crudities_ gives a full and interesting account of its courtesans, who then numbered, he says, at least 20,000; the revenue they brought into the State maintained a dozen galleys.

[149] J. Schrank, _Die Prostitution in Wien_, Bd. I, pp. 152-206.

[150] U. Robert, _Les Signes d'Infamie au Moyen Age_, Ch. IV.

[151] Rudeck (_Geschichte der öffentlichen Sittlichkeit in Deutschland_, pp. 26-36) gives many details concerning the important part played by prostitutes and brothels in mediæval German life.

[152] They are described by Rabutaux, op. cit., pp. 90 _et seq._

[153] _L'Année Sociologique_, seventh year, 1904, p. 440.

[154] Bloch, _Der Ursprung der Syphilis_. As regards the German "Frauenhausen" see Max Bauer, _Das Geschlechtsleben in der Deutschen Vergangenheit_, pp. 133-214. In Paris, Dufour states (op. cit., vol. v, Ch. XXXIV), brothels under the ordinances of St. Louis had many rights which they lost at last in 1560, when they became merely tolerated houses, without statutes, special costumes, or confinement to special streets.

[155] "Cortegiana, hoc est meretrix honesta," wrote Burchard, the Pope's Secretary, at the beginning of the sixteenth century, _Diarium_, ed. Thuasne, vol. ii, p. 442; other authorities are quoted by Thuasne in a note.

[156] Burchard, _Diarium_, vol. iii, p. 167. Thuasne quotes other authorities in confirmation.

[157] The example of Holland, where some large cities have adopted the regulation of prostitution and others have not, is instructive as regards the illusory nature of the advantages of regulation. In 1883 Dr. Després brought forward figures, supplied by Dutch officials, showing that in Rotterdam, where prostitution was regulated, both prostitution and venereal diseases were more prevalent than in Amsterdam, a city without regulation (A. Després, _La Prostitution en France_, p. 122).

[158] It was in 1802 that the medical inspection of prostitutes in Paris brothels was introduced, though not until 1825 fully established and made general.

[159] M.L. Heidingsfeld, "The Control of Prostitution," _Journal American Medical Association_, January 30, 1904.

[160] See, e.g., G. Bérault, _La Maison de Tolérance_, Thèse de Paris, 1904.

[161] Thus the circumstances of the English army in India are of a special character. A number of statements (from the reports of committees, official publications, etc.) regarding the good influence of regulation in reducing venereal diseases in India are brought together by Surgeon-Colonel F.H. Welch, "The Prevention of Syphilis," _Lancet_, August 12, 1899. The system has been abolished, but only as the result of a popular outcry and not on the question of its merits.

[162] Thus Richard, who accepts regulation and was instructed to report on it for the Paris Municipal Council, would not have girls inscribed as professional prostitutes until they are of age and able to realize what they are binding themselves to (E. Richard, _La Prostitution à Paris_, p. 147). But at that age a large proportion of prostitutes have been practicing their profession for years.

[163] In Germany, where the cure of infected prostitutes under regulation is nearly everywhere compulsory, usually at the cost of the community, it is found that 18 is the average age at which they are affected by syphilis; the average age of prostitutes in brothels is higher than that of those outside, and a much larger proportion have therefore become immune to disease (Blaschko, "Hygiene der Syphilis," in Weyl's _Handbuch der Hygiene_, Bd. ii, p. 62, 1900).

[164] A. Sherwell, _Life in West London_, 1897, Ch. V.

[165] Bonger brings together statistics illustrating this point, op. cit., pp. 402-6.

[166] _The Nightless City_, p. 125.

[167] Ströhmberg, as quoted by Aschaffenburg, _Das Verbrechen_, 1903, p. 77.

[168] _Monatsschrift für Harnkrankheiten und Sexuelle Hygiene_, 1906. Heft 10, p. 460. But this cause is undoubtedly effective in some cases of unmarried women in Germany unable to get work (see article by Sister Henrietta Arendt, Police-Assistant at Stuttgart, _Sexual-Probleme_, December, 1908).

[169] Thus, for instance, we find Irma von Troll-Borostyáni saying in her book, _Im Freien Reich_ (p. 176): "Go and ask these unfortunate creatures if they willingly and freely devoted themselves to vice. And nearly all of them will tell you a story of need and destitution, of hunger and lack of work, which compelled them to it, or else of love and seduction and the fear of the discovery of their false step which drove them out of their homes, helpless and forsaken, into the pool of vice from which there is hardly any salvation." It is, of course, quite true that the prostitute is frequently ready to tell such stories to philanthropic persons who expect to hear them, and sometimes even put the words into her mouth.

[170] C. Booth, _Life and Labour_, final volume, p. 125. Similarly in Sweden, Kullberg states that girls of thirteen to seventeen, living at home with their parents in comfortable circumstances, have often been found on the streets.

[171] W. Acton, _Prostitution_, 1870, pp. 39, 49.

[172] In Lyons, according to Potton, of 3884 prostitutes, 3194 abandoned, or apparently abandoned, their profession; in Paris a very large number became servants, dressmakers, or tailoresses, occupations which, in many cases, doubtless,

they had exercised before (Parent-Duchâtelet, _De la Prostitution_, 1857, vol. i, p. 584; vol. ii, p. 451). Sloggett (quoted by Acton) stated that at Davenport, 250 of the 1775 prostitutes there married. It is well known that prostitutes occasionally marry extremely well. It was remarked nearly a century ago that marriages of prostitutes to rich men were especially frequent in England, and usually turned out well; the same seems to be true still. In their own social rank they not infrequently marry cabmen and policemen, the two classes of men with whom they are brought most closely in contact in the streets. As regards Germany, C.K. Schneider (_Die Prostituirte und die Gesellschaft_), states that young prostitutes take up all sorts of occupations and situations, sometimes, if they have saved a little money, establishing a business, while old prostitutes become procuresses, brothel-keepers, lavatory women, and so on. Not a few prostitutes marry, he adds, but the proportion among inscribed German prostitutes is very small, less than 2 per cent.

[173] G. de Molinari, _La Viriculture_, 1897, p. 155.

[174] Reuss and other writers have reproduced typical extracts from the private account books of prostitutes, showing the high rate of their earnings. Even in the common brothels, in Philadelphia (according to Goodchild, "The Social Evil in Philadelphia," _Arena_, March, 1896), girls earn twenty dollars or more a week, which is far more than they could earn in any other occupation open to them.

[175] A. Després, _La Prostitution en France_, 1883.

[176] Bonger, _Criminalité et Conditions Economiques_, 1905, pp. 378-414.

[177] _La Donna Delinquente_, p. 401.

[178] Raciborski, _Traité de l'Impuissance_, p. 20. It may be added that Bergh, a leading authority on the anatomical peculiarities of the external female sexual organs, who believe that strong development of the external genital organs accompanies libidinous tendencies, has not found such development to be common among prostitutes.

[179] Hammer, who has had much opportunity of studying the psychology of prostitutes, remarks that he has seen no reason to suspect sexual coldness (_Monatsschrift für Harnkrankheiten und Sexuelle Hygiene_, 1906, Heft 2, p. 85), although, as he has elsewhere stated, he is of opinion that indolence, rather than excess of sensuality, is the chief cause of prostitution.

[180] See "The Sexual Impulse in Women," in the third volume of these _Studies_.

[181] Tait stated that in Edinburgh many married women living with their husbands in comfortable circumstances, and having children, were found to be acting as prostitutes, that is, in the regular habit of making assignations with strangers (W. Tait, _Magdalenism in Edinburgh_, 1842, p. 16).

[182] Janke brings together opinions to this effect, _Die Willkürliche Hervorbringen des Geschlechts_, p. 275. "If we compare a prostitute of thirty-five with her respectable sister," Acton remarked (_Prostitution_, 1870, p. 39), "we seldom find that the constitutional ravages often thought to be necessary

consequences of prostitution exceed those attributable to the cares of a family and the heart-wearing struggles of virtuous labor."

[183] Hirschfeld states (_Wesen der Liebe_, p. 35) that the desire for intercourse with a sympathetic person is heightened, and not decreased, by a professional act of coitus.

[184] This has been clearly shown by Hans Ostwald (from whom I take the above-quoted observation of a prostitute), one of the best authorities on prostitute life and character; see, e.g., his article, "Die erotischen Beziehungen zwischen Dirne und Zuhälter," _Sexual-Probleme_, June, 1908. In the subsequent number of the same periodical (July, 1908, p. 393) Dr. Max Marcuse supports Ostwald's experiences, and says that the letters of prostitutes and their bullies are love-letters exactly like those of respectable people of the same class, and with the same elements of love and jealousy; these relationships, he remarks, often prove very enduring. The prostitute author of the _Tagebuch einer Verlorenen_ (p. 147) also has some remarks on the prostitute's relations to her bully, stating that it is simply the natural relationship of a girl to her lover.

[185] Thus Moraglia found that among 180 prostitutes in North Italian brothels, and among 23 elegant Italian and foreign cocottes, every one admitted that she masturbated, preferably by friction of the clitoris; 113 of them, the majority, declared that they preferred solitary or mutual masturbation to normal coitus. Hammer states (_Zehn Lebensläufe Berliner Kontrollmädchen_ in Ostwald's series of "Grosstadt Dokumente," 1905) that when in hospital all but three or four of sixty prostitutes masturbate, and those who do not are laughed at by the rest.

[186] _Jahrbuch für Sexuelle Zwischenstufen_, Jahrgang VII, 1905, p. 148; "Sexual Inversion," vol. ii of these _Studies_, Ch. IV. Hammer found that of twenty-five prostitutes in a reformatory as many as twenty-three were homosexual, or, on good grounds, suspected to be such. Hirschfeld (_Berlins Drittes Geschlecht_, p. 65) mentions that prostitutes sometimes accost better-class women who, from their man-like air, they take to be homosexual; from persons of their own sex prostitutes will accept a smaller remuneration, and sometimes refuse payment altogether.

[187] With prostitution, as with criminality, it is of course difficult to disentangle the element of heredity from that of environment, even when we have good grounds for believing that the factor of heredity here, as throughout the whole of life, cannot fail to carry much weight. It is certain, in any case, that prostitution frequently runs in families. "It has often been my experience," writes a former prostitute (Hedwig Hard, _Beichte einer Gefallenen_, p. 156) "that when in a family a girl enters this path, her sister soon afterwards follows her: I have met with innumerable cases; sometimes three sisters will all be on the register, and I knew a case of four sisters, whose mother, a midwife, had been in prison, and the father drank. In this case, all four sisters, who were very beautiful, married, one at least very happily, to a rich doctor who took her out of the brothel at sixteen and educated her."

[188] This fact is not contradicted by the undoubted fact that prostitutes are by no means always contented with the life they choose.

[189] This point has been discussed by Bloch, _Sexualleben unserer Zeit_, Ch. XIII.

[190] Various series of observations are summarized by Lombroso and Ferrero, _La Donna Delinquente_, 1893, Part III, cap. IV.

[191] _History of European Morals_, vol. iii, p. 283.

[192] Similarly Lord Morley has written (_Diderot_, vol. ii, p. 20): "The purity of the family, so lovely and dear as it is, has still only been secured hitherto by retaining a vast and dolorous host of female outcasts ... upon whose heads, as upon the scapegoat of the Hebrew ordinance, we put all the iniquities of the children of the house, and all their transgressions in all their sins, and then banish them with maledictions into the foul outer wilderness and the land not inhabited."

[193] Horace, _Satires_, lib. i, 2.

[194] Augustine, _De Ordine_, Bk. II, Ch. IV.

[195] _De Regimine Principum_ (_Opuscula XX_), lib. iv, cap. XIV. I am indebted to the Rev. H. Northcote for the reference to the precise place where this statement occurs; it is usually quoted more vaguely.

[196] Lea, _History of Auricular Confession_, vol. ii, p. 69. There was even, it seems, an eccentric decision of the Salamanca theologians that a nun might so receive money, "licite et valide."

[197] Lea, op. cit., vol. ii, pp. 263, 399.

[198] Rabutaux, _De la Prostitution en Europe_, pp. 22 et seq.

[199] Burton, _Anatomy of Melancholy_, Part III, Sect. III, Mem. IV, Subs. II.

[200] B. Mandeville, _Remarks to Fable of the Bees_, 1714, pp. 93-9; cf. P. Sakmann, _Bernard de Mandeville_, pp. 101-4.

[201] These conditions favor temporary free unions, but they also favor prostitution. The reason is, according to Adolf Gerson (_Sexual-Probleme_, September, 1908), that the woman of good class will not have free unions. Partly moved by moral traditions, and partly by the feeling that a man should be legally her property, she will not give herself out of love to a man; and he therefore turns to the lower-class woman who gives herself for money.

[202] Many girls, said Ellice Hopkins, get into mischief merely because they have in them an element of the "black kitten," which must frolic and play, but has no desire to get into danger. "Do you not think it a little hard," she added, "that men should have dug by the side of her foolish dancing feet a bottomless pit, and that she cannot have her jump and fun in safety, and put on her fine feathers like the silly bird-witted thing she is, without a single false step dashing her over the brink, and leaving her with the very womanhood dashed out of her?"

[203] A. Sherwell, _Life in West London_, 1897, Ch. V.

[204] As quoted by Bloch, _Sexualleben Unserer Zeit_, p. 358. In Berlin during recent years the number of prostitutes has increased at nearly double the rate at

which the general population has increased. It is no doubt probable that the supply tends to increase the demand.

[205] Goncourt, _Journal_, vol. iii, p. 49.

[206] Vanderkiste, _The Dens of London_, 1854, p. 242.

[207] Bonger (_Criminalité et Conditions Economiques_, p. 406) refers to the prevalence of prostitution among dressmakers and milliners, as well as among servants, as showing the influence of contact with luxury, and adds that the rich women, who look down on prostitution, do not always realize that they are themselves an important factor of prostitution, both by their luxury and their idleness; while they do not seem to be aware that they would themselves act in the same way if placed under the same conditions.

[208] H. Lippert, in his book on prostitution in Hamburg, laid much stress on the craving for dress and adornment as a factor of prostitution, and Bloch (_Das Sexualleben unsurer Zeit_, p. 372) considers that this factor is usually underestimated, and that it exerts an especially powerful influence on servants.

[209] Since this was written the influence of several generations of town-life in immunizing a stock to the evils of that life (though without reference to prostitution) has been set forth by Reibmayr, _Die Entwicklungsgeschichte des Talentes und Genies_, 1908, vol. ii, pp. 73 _et seq._

[210] In France this intimacy is embodied in the delicious privilege of _tutoiement_. "The mystery of _tutoiement!_" exclaims Ernest La Jennesse in _L'Holocauste:_ "Barriers broken down, veils drawn away, and the ease of existence! At a time when I was very lonely, and trying to grow accustomed to Paris and to misfortune, I would go miles--on foot, naturally--to see a girl cousin and an aunt, merely to have something to _tutoyer_. Sometimes they were not at home, and I had to come back with my _tu_, my thirst for confidence and familiarity and brotherliness."

[211] For some facts and references to the extensive literature concerning this trade, see, e.g., Bloch, _Das Sexualleben Unserer Zeit_, pp. 374-376; also K.M. Baer, _Zeitschrift für Sexualwissenschaft_, Sept., 1908; Paulucci de Calboli, _Nuova Antologia_, April, 1902.

[212] These considerations do not, it is true, apply to many kinds of sexual perverts who form an important proportion of the clients of brothels. These can frequently find what they crave inside a brothel much more easily than outside.

[213] Thus Charles Booth, in his great work on _Life and Labor in London_, final volume (p. 128), recommends that "houses of accommodation," instead of being hunted out, should be tolerated as a step towards the suppression of brothels.

[214] "Towns like Woolwich, Aldershot, Portsmouth, Plymouth," it has been said, "abound with wretched, filthy monsters that bear no resemblance to women; but it is drink, scorn, brutality and disease which have reduced them to this state, not the mere fact of associating with men."

[215] "The contract of prostitution in the opinion of prostitutes themselves," Bernaldo de Quirós and Llanas Aguilaniedo remark (_La Mala Vida en Madrid_, p. 254), "cannot be assimilated to a sale, nor to a contract of work, nor to any other form of barter recognized by the civil law. They consider that in these pacts there always enters an element which makes it much more like a gift in a matter in which no payment could be adequate. 'A woman's body is without price' is an axiom of prostitution. The money placed in the hands of her who procures the satisfaction of sexual desire is not the price of the act, but an offering which the priestess of Venus applies to her maintenance." To the Spaniard, it is true, every transaction which resembles trade is repugnant, but the principle underlying this feeling holds good of prostitution generally.

[216] _Journal des Goncourt_, vol. iii; this was in 1866.

[217] Rev. the Hon. C. Lyttelton, _Training of the Young in Laws of Sex_, p. 42.

[218] See, e.g., R.W. Taylor, _Treatise on Sexual Disorders_, 1897, pp. 74-5. Georg Hirth (_Wege zur Heimat_, 1909, p. 619) narrates the case of a young officer who, being excited by the caresses of his betrothed and having too much respect for her to go further than this, and too much respect for himself to resort to masturbation, knew nothing better than to go to a prostitute. Syphilis developed a few days after the wedding. Hirth adds, briefly, that the results were terrible.

[219] It is an oft-quoted passage, but can scarcely be quoted too often: "You see that this wrought-iron plate is not quite flat: it sticks up a little, here towards the left--'cockles,' as we say. How shall we flatten it? Obviously, you reply, by hitting down on the part that is prominent. Well, here is a hammer, and I give the plate a blow as you advise. Harder, you say. Still no effect. Another stroke? Well, there is one, and another, and another. The prominence remains, you see: the evil is as great as ever--greater, indeed. But that is not all. Look at the warp which the plate has got near the opposite edge. Where it was flat before it is now curved. A pretty bungle we have made of it. Instead of curing the original defect we have produced a second. Had we asked an artisan practiced in 'planishing,' as it is called, he would have told us that no good was to be done, but only mischief, by hitting down on the projecting part. He would have taught us how to give variously-directed and specially-adjusted blows with a hammer elsewhere: so attacking the evil, not by direct, but by indirect actions. The required process is less simple than you thought. Even a sheet of metal is not to be successfully dealt with after those common-sense methods in which you have so much confidence. What, then, shall we say about a society?... Is humanity more readily straightened than an iron plate?" (_The Study of Sociology_, p. 270.)

CHAPTER VIII.

THE CONQUEST OF THE VENEREAL DISEASES.

The Significance of the Venereal Diseases--The History of Syphilis--The Problem of Its Origin--The Social Gravity of Syphilis--The Social Dangers of Gonorrhoea--The Modern Change in the Methods of Combating Venereal Diseases--Causes of the

Decay of the System of Police Regulation--Necessity of Facing the Facts--The Innocent Victims of Venereal Diseases--Diseases Not Crimes--The Principle of Notification--The Scandinavian System--Gratuitous Treatment--Punishment for Transmitting Venereal Diseases--Sexual Education in Relation to Venereal Diseases--Lectures, Etc.--Discussion in Novels and on the Stage--The "Disgusting" Not the "Immoral."

It may, perhaps, excite surprise that in the preceding discussion of prostitution scarcely a word has been said of venereal diseases. In the eyes of many people, the question of prostitution is simply the question of syphilis. But from the psychological point of view with which we are directly concerned, as from the moral point of view with which we cannot fail to be indirectly concerned, the question of the diseases which may be, and so frequently are, associated with prostitution cannot be placed in the first line of significance. The two questions, however intimately they may be mingled, are fundamentally distinct. Not only would venereal diseases still persist even though prostitution had absolutely ceased, but, on the other hand, when we have brought syphilis under the same control as we have brought the somewhat analogous disease of leprosy, the problem of prostitution would still remain.

Yet, even from the standpoint which we here occupy, it is scarcely possible to ignore the question of venereal disease, for the psychological and moral aspects of prostitution, and even the whole question of the sexual relationships, are, to some extent, affected by the existence of the serious diseases which are specially liable to be propagated by sexual intercourse.

Fournier, one of the leading authorities on this subject, has well said that syphilis, alcoholism, and tuberculosis are the three modern plagues. At a much earlier period (1851) Schopenhauer in _Parerga und Paralipomena_ had expressed the opinion that the two things which mark modern social life, in distinction from that of antiquity, and to the advantage of the latter, are the knightly principle of honor and venereal disease; together, he added, they have poisoned life, and introduced a hostile and even diabolical element into the relations of the sexes, which has indirectly affected all other social relationships.[220] It is like a merchandise, says Havelburg, of syphilis, which civilization has everywhere carried, so that only a very few remote districts of the globe (as in Central Africa and Central Brazil) are to-day free from it.[221]

It is undoubtedly true that in the older civilized countries the manifestations of syphilis, though still severe and a cause of physical deterioration in the individual and the race, are less severe than they were even a generation ago.[222] This is partly the result of earlier and better treatment, partly, it is possible, the result also of the syphilization of the race, some degree of immunity having now become an inherited possession, although it must be remembered that an attack of syphilis does not necessarily confer immunity from the actual attack of the disease even in the same individual. But it must be added that, even though it has become less severe, syphilis, in the opinion of many, is nevertheless still spreading, even in the chief centres of civilization; this has been noted alike in Paris and in London.[223]

According to the belief which is now tending to prevail, syphilis was brought to Europe at the end of the fifteenth century by the first discoverers of America. In Seville, the chief European port for America, it was known as the Indian disease, but when Charles VIII and his army first brought it to Italy in 1495, although this connection with the French was only accidental, it was called the Gallic disease, "a monstrous disease," said Cataneus, "never seen in previous centuries and altogether unknown in the world."

The synonyms of syphilis were at first almost innumerable. It was in his Latin poem _Syphilis sive Morbus Gallicus_, written before 1521 and published at Verona in 1530, that Fracastorus finally gave the disease its now universally accepted name, inventing a romantic myth to account for its origin.

Although the weight of authoritative opinion now seems to incline towards the belief that syphilis was brought to Europe from America, on the discovery of the New World, it is only within quite recent years that that belief has gained ground, and it scarcely even yet seems certain that what the Spaniards brought back from America was really a disease absolutely new to the Old World, and not a more virulent form of an old disease of which the manifestations had become benign. Buret, for instance (_Le Syphilis Aujourd'hui et chez les Anciens_, 1890), who some years ago reached "the deep conviction that syphilis dates from the creation of man," and believed, from a minute study of classic authors, that syphilis existed in Rome under the Cæsars, was of opinion that it has broken out at different places and at different times, in epidemic bursts exhibiting different combinations of its manifold symptoms, so that it passed unnoticed at ordinary times, and at the times of its more intense manifestation was looked upon as a hitherto unknown disease. It was thus regarded in classic times, he considers, as coming from Egypt, though he looked upon its real home as Asia. Leopold Glück has likewise quoted (_Archiv für Dermatologie und Syphilis_, January, 1899) passages from the medical epigrams of a sixteenth century physician, Gabriel Ayala, declaring that syphilis is not really a new disease, though popularly supposed to be so, but an old disease which has broken out with hitherto unknown violence. There is, however, no conclusive reason for believing that syphilis was known at all in classic antiquity. A.V. Notthaft ("Die Legende von der Althertums-syphilis," in the Rindfleisch _Festschrift_, 1907, pp. 377-592) has critically investigated the passages in classic authors which were supposed by Rosenbaum, Buret, Proksch and others to refer to syphilis. It is quite true, Notthaft admits, that many of these passages might possibly refer to syphilis, and one or two would even better fit syphilis than any other disease. But, on the whole, they furnish no proof at all, and no syphilologist, he concludes, has ever succeeded in demonstrating that syphilis was known in antiquity. That belief is a legend. The most damning argument against it, Notthaft points out, is the fact that, although in antiquity there were great physicians who were keen observers, not one of them gives any description of the primary, secondary, tertiary, and congenital forms of this disease. China is frequently mentioned as the original home of syphilis, but this belief is also quite without basis, and the Japanese physician, Okamura, has shown (_Monatsschrift für praktische Dermatologie_, vol. xxviii, pp. 296 et seq.) that Chinese records reveal nothing relating to syphilis earlier than the sixteenth century. At the Paris Academy of Medicine in 1900 photographs

from Egypt were exhibited by Fouquet of human remains which date from B.C. 2400, showing bone lesions which seemed to be clearly syphilitic; Fournier, however, one of the greatest of authorities, considered that the diagnosis of syphilis could not be maintained until other conditions liable to produce somewhat similar bone lesions had been eliminated (_British Medical Journal_, September 29, 1900, p. 946). In Florida and various regions of Central America, in undoubtedly pre-Columbian burial places, diseased bones have been found which good authorities have declared could not be anything else than syphilitic (e.g., _British Medical Journal_, November 20, 1897, p. 1487), though it may be noted that so recently as 1899 the cautious Virchow stated that pre-Columbian syphilis in America was still for him an open question (_Zeitschrift für Ethnologie_, Heft 2 and 3, 1899, p. 216). From another side, Seler, the distinguished authority on Mexican antiquity, shows (_Zeitschrift für Ethnologie_, 1895, Heft 5, p. 449) that the ancient Mexicans were acquainted with a disease which, as they described it, might well have been syphilis. It is obvious, however, that while the difficulty of demonstrating syphilitic diseased bones in America is as great as in Europe, the demonstration, however complete, would not suffice to show that the disease had not already an existence also in the Old World. The plausible theory of Ayala that fifteenth century syphilis was a virulent recrudescence of an ancient disease has frequently been revived in more modern times. Thus J. Knott ("The Origin of Syphilis," _New York Medical Journal_, October 31, 1908) suggests that though not new in fifteenth century Europe, it was then imported afresh in a form rendered more aggravated by coming from an exotic race, as is believed often to be the case.

It was in the eighteenth century that Jean Astruc began the rehabilitation of the belief that syphilis is really a comparatively modern disease of American origin, and since then various authorities of weight have given their adherence to this view. It is to the energy and learning of Dr. Iwan Bloch, of Berlin (the first volume of whose important work, _Der Ursprung der Syphilis_, was published in 1901) that we owe the fullest statement of the evidence in favor of the American origin of syphilis. Bloch regards Ruy Diaz de Isla, a distinguished Spanish physician, as the weightiest witness for the Indian origin of the disease, and concludes that it was brought to Europe by Columbus's men from Central America, more precisely from the Island of Haiti, to Spain in 1493 and 1494, and immediately afterwards was spread by the armies of Charles VIII in an epidemic fashion over Italy and the other countries of Europe.

It may be added that even if we have to accept the theory that the central regions of America constitute the place of origin of European syphilis, we still have to recognize that syphilis has spread in the North American continent very much more slowly and partially than it has in Europe, and even at the present day there are American Indian tribes among whom it is unknown. Holder, on the basis of his own experiences among Indian tribes, as well as of wide inquiries among agency physicians, prepared a table showing that among some thirty tribes and groups of tribes, eighteen were almost or entirely free from venereal disease, while among thirteen it was very prevalent. Almost without exception, the tribes where syphilis is rare or unknown refuse sexual intercourse with strangers, while those among whom such disease is prevalent are morally lax. It is the whites who are the source of infection among these tribes (A.B. Holder, "Gynecic Notes Among the American

Indians," _American Journal of Obstetrics_, 1892, No. 1).

Syphilis is only one, certainly the most important, of a group of three entirely distinct "venereal diseases" which have only been distinguished in recent times, and so far as their precise nature and causation are concerned, are indeed only to-day beginning to be understood, although two of them were certainly known in antiquity. It is but seventy years ago since Ricord, the great French syphilologist, following Bassereau, first taught the complete independence of syphilis both from gonorrhoea and soft chancre, at the same time expounding clearly the three stages, primary, secondary and tertiary, through which syphilitic manifestations tend to pass, while the full extent of tertiary syphilitic symptoms is scarcely yet grasped, and it is only to-day beginning to be generally realized that two of the most prevalent and serious diseases of the brain and nervous system--general paralysis and tabes dorsalis or locomotor ataxia--have their predominant though not sole and exclusive cause in the invasion of the syphilitic poison many years before. In 1879 a new stage of more precise knowledge of the venereal diseases began with Neisser's discovery of the gonococcus which is the specific cause of gonorrhoea. This was followed a few years later by the discovery by Ducrey and Unna of the bacillus of soft chancre, the least important of the venereal diseases because exclusively local in its effects. Finally, in 1905--after Metchnikoff had prepared the way by succeeding in carrying syphilis from man to monkey, and Lassar, by inoculation, from monkey to monkey--Fritz Schaudinn made his great discovery of the protozoal _Spirochoeta pallida_ (since sometimes called _Treponema pallidum_), which is now generally regarded as the cause of syphilis, and thus revealed the final hiding place of one of the most dangerous and insidious foes of humanity.[224]

There is no more subtle poison than that of syphilis. It is not, like smallpox or typhoid, a disease which produces a brief and sudden storm, a violent struggle with the forces of life, in which it tends, even without treatment, provided the organism is healthy, to succumb, leaving little or no traces of its ravages behind. It penetrates ever deeper and deeper into the organism, with the passage of time leading to ever new manifestations, and no tissue is safe from its attack. And so subtle is this all-pervading poison that though its outward manifestations are amenable to prolonged treatment, it is often difficult to say that the poison has been finally killed out.[225]

The immense importance of syphilis, and the chief reason why it is necessary to consider it here, lies in the fact that its results are not confined to the individual himself, nor even to the persons to whom he may impart it by the contagion due to contact in or out of sexual relationships: it affects the offspring, and it affects the power to produce offspring. It attacks men and women at the centre of life, as the progenitors of the coming race, inflicting either sterility or the tendency to aborted and diseased products of conception. The father alone can perhaps transmit syphilis to his child, even though the mother escapes infection, and the child born of syphilitic parents may come into the world apparently healthy only to reveal its syphilitic origin after a period of months or even years. Thus syphilis is probably a main cause of the enfeeblement of the race.[226]

Alike in the individual and in his offspring syphilis shows its deteriorating effects on all the structures of the body, but especially on the brain and nervous system. There are, as has been pointed out by Mott, a leading authority in this matter,[227] five ways in which syphilis affects the brain and nervous system: (1) by moral shock; (2) by the effects of the poison in producing anæmia and impaired general nutrition; (3) by causing inflammation of the membranes and tissues of the brain; (4) by producing arterial degeneration, leading on to brain-softening, paralysis, and dementia; (5) as a main cause of the para-syphilitic affections of general paralysis and tabes dorsalis.

It is only within recent years that medical men have recognized the preponderant part played by acquired or inherited syphilis in producing general paralysis, which so largely helps to fill lunatic asylums, and tabes dorsalis which is the most important disease of the spinal cord. Even to-day it can scarcely be said that there is complete agreement as to the supreme importance of the factor of syphilis in these diseases. There can, however, be little doubt that in about ninety-five per cent. at least of cases of general paralysis syphilis is present.[228]

Syphilis is not indeed by itself an adequate cause of general paralysis for among many savage peoples syphilis is very common while general paralysis is very rare. It is, as Krafft-Ebing was accustomed to say, syphilization and civilization working together which produce general paralysis, perhaps in many cases, there is reason for thinking, on a nervous soil that is hereditarily degenerated to some extent; this is shown by the abnormal prevalence of congenital stigmata of degeneration found in general paralytics by Näcke and others. "Paralyticus nascitur atque fit," according to the dictum of Obersteiner. Once undermined by syphilis, the deteriorated brain is unable to resist the jars and strains of civilized life, and the result is general paralysis, truly described as "one of the most terrible scourges of modern times." In 1902 the Psychological Section of the British Medical Association, embodying the most competent English authority on this question, unanimously passed a resolution recommending that the attention of the Legislature and other public bodies should be called to the necessity for immediate action in view of the fact that "general paralysis, a very grave and frequent form of brain disease, together with other varieties of insanity, is largely due to syphilis, and is therefore preventable." Yet not a single step has yet been taken in this direction.

The dangers of syphilis lie not alone in its potency and its persistence but also in its prevalence. It is difficult to state the exact incidence of syphilis, but a great many partial investigations have been made in various countries, and it would appear that from five to twenty per cent. of the population in European countries is syphilitic, while about fifteen per cent. of the syphilitic cases die from causes directly or indirectly due to the disease.[229] In France generally, Fournier estimates that seventeen per cent. of the whole population have had syphilis, and at Toulouse, Audry considers that eighteen per cent. of all his patients are syphilitic. In Copenhagen, where notification is obligatory, over four per cent. of the population are said to be syphilitic. In America a committee of the Medical Society of New York, appointed to investigate the question, reported as the result of exhaustive inquiry that in the city

of New York not less than a quarter of a million of cases of venereal disease occurred every year, and a leading New York dermatologist has stated that among the better class families he knows intimately at least one-third of the sons have had syphilis. In Germany eight hundred thousand cases of venereal disease are by one authority estimated to occur yearly, and in the larger universities twenty-five per cent. of the students are infected every term, venereal disease being, however, specially common among students. The yearly number of men invalided in the German army by venereal diseases equals a third of the total number wounded in the Franco-Prussian war. Yet the German army stands fairly high as regards freedom from venereal disease when compared with the British army which is more syphilized than any other European army.[230] The British army, however, being professional and not national, is less representative of the people than is the case in countries where some form of conscription prevails. At one London hospital it could be ascertained that ten per cent. of the patients had had syphilis; this probably means a real proportion of about fifteen per cent., a high though not extremely high ratio. Yet it is obvious that even if the ratio is really lower than this the national loss in life and health, in defective procreation and racial deterioration, must be enormous and practically incalculable. Even in cash the venereal budget is comparable in amount to the general budget of a great nation. Stritch estimates that the cost to the British nation of venereal diseases in the army, navy and Government departments alone, amounts annually to £3,000,000, and when allowance is made for superannuations and sick-leave indirectly occasioned through these diseases, though not appearing in the returns as such, the more accurate estimate of the cost to the nation is stated to be £7,000,000. The adoption of simple hygienic measures for the prevention and the speedy cure of venereal diseases will be not only indirectly but even directly a source of immense wealth to the nation.

Syphilis is the most obviously and conspicuously appalling of the venereal diseases. Yet it is less frequent and in some respects less dangerously insidious than the other chief venereal disease, gonorrhoea.[231] At one time the serious nature of gonorrhoea, especially in women, was little realized. Men accepted it with a light heart as a trivial accident; women ignored it. This failure to realize the gravity of gonorrhoea, even sometimes on the part of the medical profession--so that it has been popularly looked upon, in Grandin's words, as of little more significance than a cold in the nose--has led to a reaction on the part of some towards an opposite extreme, and the risks and dangers of gonorrhoea have been even unduly magnified. This is notably the case as regards sterility. The inflammatory results of gonorrhoea are indubitably a potent cause of sterility in both sexes; some authorities have stated that not only eighty per cent. of the deaths from inflammatory diseases of the pelvic organs and the majority of the cases of chronic invalidism in women, but ninety per cent. of involuntary sterile marriages, are due to gonorrhoea. Neisser, a great authority, ascribes to this disease without doubt fifty per cent, of such marriages. Even this estimate is in the experience of some observers excessive. It is fully proved that the great majority of men who have had gonorrhoea, even if they marry within two years of being infected, fail to convey the disease to their wives, and even of the women infected by their husbands more than half have children. This is, for instance,

the result of Erb's experience, and Kisch speaks still more strongly in the same sense. Bumm, again, although regarding gonorrhoea as one of the two chief causes of sterility in women, finds that it is not the most frequent cause, being only responsible for about one-third of the cases; the other two-thirds are due to developmental faults in the genital organs. Dunning in America has reached results which are fairly concordant with Bumm's.

With regard to another of the terrible results of gonorrhoea, the part it plays in producing life-long blindness from infection of the eyes at birth, there has long been no sort of doubt. The Committee of the Ophthalmological Society in 1884, reported that thirty to forty-one per cent. of the inmates of four asylums for the blind in England owed their blindness to this cause.[232] In German asylums Reinhard found that thirty per cent. lost their sight from the same cause. The total number of persons blind from gonorrhoeal infection from their mothers at birth is enormous. The British Royal Commission on the Condition of the Blind estimated there were about seven thousand persons in the United Kingdom alone (or twenty-two per cent. of the blind persons in the country) who became blind as the result of this disease, and Mookerji stated in his address on Ophthalmalogy at the Indian Medical Congress of 1894 that in Bengal alone there were six hundred thousand totally blind beggars, forty per cent. of whom lost their sight at birth through maternal gonorrhoea; and this refers to the beggar class alone.

Although gonorrhoea is liable to produce many and various calamities,[233] there can be no doubt that the majority of gonorrhoeal persons escape either suffering or inflicting any very serious injury. The special reason why gonorrhoea has become so peculiarly serious a scourge is its extreme prevalence. It is difficult to estimate the proportion of men and women in the general population who have had gonorrhoea, and the estimates vary within wide limits. They are often set too high. Erb, of Heidelberg, anxious to disprove exaggerated estimates of the prevalence of gonorrhoea, went over the records of two thousand two hundred patients in his private practice (excluding all hospital patients) and found the proportion of those who had suffered from gonorrhoea was 48.5 per cent.

Among the working classes the disease is much less prevalent than among higher-class people. In a Berlin Industrial Sick Club, 412 per 10,000 men and 69 per 10,000 women had gonorrhoea in a year; taking a series of years the Club showed a steady increase in the number of men, and decrease in the number of women, with venereal infection; this seems to indicate that the laboring classes are beginning to have intercourse more with prostitutes and less with respectable girls.[234] In America Wood Ruggles has given (as had Noggerath previously, for New York), the prevalence of gonorrhoea among adult males as from 75 to 80 per cent.; Tenney places it much lower, 20 per cent. for males and 5 per cent. for females. In England, a writer in the _Lancet_, some years ago,[235] found as the result of experience and inquiries that 75 per cent. adult males have had gonorrhoea once, 40 per cent. twice, 15 per cent. three or more times. According to Dulberg about twenty per cent. of new cases occur in married men of good social class, the disease being comparatively rare among married men of the working class in England.

Gonorrhoea in its prevalence is thus only second to measles and in the gravity of its results scarcely second to tuberculosis. "And yet," as Grandin remarks in comparing gonorrhoea to tuberculosis, "witness the activity of the crusade against the latter and the criminal apathy displayed when the former is concerned."[236] The public must learn to understand, another writer remarks, that "gonorrhoea is a pest that concerns its highest interests and most sacred relations as much as do smallpox, cholera, diphtheria, or tuberculosis."[237]

It cannot fairly be said that no attempts have been made to beat back the flood of venereal disease. On the contrary, such attempts have been made from the first. But they have never been effectual;[238] they have never been modified to changed condition; at the present day they are hopelessly unscientific and entirely opposed alike to the social and the individual demands of modern peoples. At the various conferences on this question which have been held during recent years the only generally accepted conclusion which has emerged is that all the existing systems of interference or non-interference with prostitution are unsatisfactory.[239]

The character of prostitution has changed and the methods of dealing with it must change. Brothels, and the systems of official regulation which grew up with special reference to brothels, are alike out of date; they have about them a mediæval atmosphere, an antiquated spirit, which now render them unattractive and suspected. The conspicuously distinctive brothel is falling into disrepute; the liveried prostitute absolutely under municipal control can scarcely be said to exist. Prostitution tends to become more diffused, more intimately mingled with social life generally, less easily distinguished as a definitely separable part of life. We can nowadays only influence it by methods of permeation which bear upon the whole of our social life.

The objection to the regulation of prostitution is still of slow growth, but it is steadily developing everywhere, and may be traced equally in scientific opinion and in popular feeling. In France the municipalities of some of the largest cities have either suppressed the system of regulation entirely or shown their disapproval of it, while an inquiry among several hundred medical men showed that less than one-third were in favor of maintaining regulation (_Die Neue Generation_, June, 1909, p. 244). In Germany, where there is in some respects more patient endurance of interference with the liberty of the individual than in France, England, or America, various elaborate systems for organizing prostitution and dealing with venereal disease continue to be maintained, but they cannot be completely carried out, and it is generally admitted that in any case they could not accomplish the objects sought. Thus in Saxony no brothels are officially tolerated, though as a matter of fact they nevertheless exist. Here, as in many other parts of Germany, most minute and extensive regulations are framed for the use of prostitutes. Thus at Leipzig they must not sit on the benches in public promenades, nor go to picture galleries, or theatres, or concerts, or restaurants, nor look out of their windows, nor stare about them in the street, nor smile, nor wink, etc., etc. In fact, a German prostitute who possesses the heroic self-control to carry out conscientiously all the self-denying ordinances officially decreed for her guidance would seem to be entitled to a Government

pension for life.

Two methods of dealing with prostitution prevail in Germany. In some cities public houses of prostitution are tolerated (though not licensed); in other cities prostitution is "free," though "secret." Hamburg is the most important city where houses of prostitution are tolerated and segregated. But, it is stated, "everywhere, by far the larger proportion of the prostitutes belong to the so-called 'secret' class." In Hamburg, alone, are suspected men, when accused of infecting women, officially examined; men of every social class must obey a summons of this kind, which is issued secretly, and if diseased, they are bound to go under treatment, if necessary under compulsory treatment in the city hospital, until no longer dangerous to the community.

In Germany it is only when a woman has been repeatedly observed to act suspiciously in the streets that she is quietly warned; if the warning is disregarded she is invited to give her name and address to the police, and interviewed. It is not until these methods fail that she is officially inscribed as a prostitute. The inscribed women, in some cities at all events, contribute to a sick benefit fund which pays their expenses when in hospital. The hesitation of the police to inscribe a woman on the official list is legitimate and inevitable, for no other course would be tolerated; yet the majority of prostitutes begin their careers very young, and as they tend to become infected very early after their careers begin, it is obvious that this delay contributes to render the system of regulation ineffective. In Berlin, where there are no officially recognized brothels, there are some six thousand inscribed prostitutes, but it is estimated that there are over sixty thousand prostitutes who are not inscribed. (The foregoing facts are taken from a series of papers describing personal investigations in Germany made by Dr. F. Bierhoff, of New York, "Police Methods for the Sanitary Control of Prostitution," _New York Medical Journal_, August, 1907.) The estimation of the amount of clandestine prostitution can indeed never be much more than guesswork; exactly the same figure of sixty thousand is commonly brought forward as the probable number of prostitutes not only in Berlin, but also in London and in New York. It is absolutely impossible to say whether it is under or over the real number, for secret prostitution is quite intangible. Even if the facts were miraculously revealed there would still remain the difficulty of deciding what is and what is not prostitution. The avowed and public prostitute is linked by various gradations on the one side to the respectable girl living at home who seeks some little relief from the oppression of her respectability, and on the other hand to the married woman who has married for the sake of a home. In any case, however, it is very certain that public prostitutes living entirely on the earnings of prostitution form but a small proportion of the vast army of women who may be said, in a wide sense of the word, to be prostitutes, i.e., who use their attractiveness to obtain from men not love alone, but money or goods.

"The struggle against syphilis is only possible if we agree to regard its victims as unfortunate and not as guilty.... We must give up the prejudice which has led to the creation of the term 'shameful diseases,' and which commands silence concerning this scourge of the family and of humanity." In these words of Duclaux, the

distinguished successor of Pasteur at the Pasteur Institute, in his noble and admirable work _L'Hygiène Sociale_, we have indicated to us, I am convinced, the only road by which we can approach the rational and successful treatment of the great social problem of venereal disease.

The supreme importance of this key to the solution of a problem which has often seemed insoluble is to-day beginning to become recognized in all quarters, and in every country. Thus a distinguished German authority, Professor Finger (_Geschlecht und Gesellschaft_, Bd. i, Heft 5) declares that venereal disease must not be regarded as the well-merited punishment for a debauched life, but as an unhappy accident. It seems to be in France, however, that this truth has been proclaimed with most courage and humanity, and not alone by the followers of science and medicine, but by many who might well be excused from interfering with so difficult and ungrateful a task. Thus the brothers, Paul and Victor Margueritte, who occupy a brilliant and honorable place in contemporary French letters, have distinguished themselves by advocating a more humane attitude towards prostitutes, and a more modern method of dealing with the question of venereal disease. "The true method of prevention is that which makes it clear to all that syphilis is not a mysterious and terrible thing, the penalty of the sin of the flesh, a sort of shameful evil branded by Catholic malediction, but an ordinary disease which may be treated and cured." It may be remarked that the aversion to acknowledge venereal disease is at least as marked in France as in any other country; "maladies honteuses" is a consecrated French term, just as "loathsome disease" is in English; "in the hospital," says Landret, "it requires much trouble to obtain an avowal of gonorrhoea, and we may esteem ourselves happy if the patient acknowledges the fact of having had syphilis."

No evils can be combated until they are recognized, simply and frankly, and honestly discussed. It is a significant and even symbolic fact that the bacteria of disease rarely flourish when they are open to the free currents of pure air. Obscurity, disguise, concealment furnish the best conditions for their vigor and diffusion, and these favoring conditions we have for centuries past accorded to venereal diseases. It was not always so, as indeed the survival of the word 'venereal' itself in this connection, with its reference to a goddess, alone suffices to show. Even the name "syphilis" itself, taken from a romantic poem in which Fracastorus sought a mythological origin for the disease, bears witness to the same fact. The romantic attitude is indeed as much out of date as that of hypocritical and shamefaced obscurantism. We need to face these diseases in the same simple, direct, and courageous way which has already been adopted successfully in the ease of smallpox, a disease which, of old, men thought analogous to syphilis and which was indeed once almost as terrible in its ravages.

At this point, however, we encounter those who say that it is unnecessary to show any sort of recognition of venereal diseases, and immoral to do anything that might seem to involve indulgence to those who suffer from such diseases; they have got what they deserve and may well be left to perish. Those who take this attitude place themselves so far outside the pale of civilization--to say nothing of morality or religion--that they might well be disregarded. The progress of the race, the

development of humanity, in fact and in feeling, has consisted in the elimination of an attitude which it is an insult to primitive peoples to term savage. Yet it is an attitude which should not be ignored for it still carries weight with many who are too weak to withstand those who juggle with fine moral phrases. I have even seen in a medical quarter the statement that venereal disease cannot be put on the same level with other infectious diseases because it is "the result of voluntary action." But all the diseases, indeed all the accidents and misfortunes of suffering human beings, are equally the involuntary results of voluntary actions. The man who is run over in crossing the street, the family poisoned by unwholesome food, the mother who catches the disease of the child she is nursing, all these suffer as the involuntary result of the voluntary act of gratifying some fundamental human instinct--the instinct of activity, the instinct of nutrition, the instinct of affection. The instinct of sex is as fundamental as any of these, and the involuntary evils which may follow the voluntary act of gratifying it stand on exactly the same level. This is the essential fact: a human being in following the human instincts implanted within him has stumbled and fallen. Any person who sees, not this essential fact but merely some subsidiary aspect of it, reveals a mind that is twisted and perverted; he has no claim to arrest our attention.

But even if we were to adopt the standpoint of the would-be moralist, and to agree that everyone must be left to suffer his deserts, it is far indeed from being the fact that all those who contract venereal diseases are in any sense receiving their deserts. In a large number of cases the disease has been inflicted on them in the most absolutely involuntary manner. This is, of course, true in the case of the vast number of infants who are infected at conception or at birth. But it is also true in a scarcely less absolute manner of a large proportion of persons infected in later life.

Syphilis insontium, or syphilis of the innocent, as it is commonly called, may be said to fall into five groups: (1) the vast army of congenitally syphilitic infants who inherit the disease from father or mother; (2) the constantly occurring cases of syphilis contracted, in the course of their professional duties, by doctors, midwives and wet-nurses; (3) infection as a result of affection, as in simple kissing; (4) accidental infection from casual contacts and from using in common the objects and utensils of daily life, such as cups, towels, razors, knives (as in ritual circumcision), etc; (5) the infection of wives by their husbands.[240]

Hereditary congenital syphilis belongs to the ordinary pathology of the disease and is a chief element in its social danger since it is responsible for an enormous infantile mortality.[241] The risks of extragenital infection in the professional activity of doctors, midwives and wet-nurses is also universally recognized. In the case of wet-nurses infected by their employers' syphilitic infants at their breast, the penalty inflicted on the innocent is peculiarly harsh and unnecessary. The influence of infected low-class midwives is notably dangerous, for they may inflict widespread injury in ignorance; thus the case has been recorded of a midwife, whose finger became infected in the course of her duties, and directly or indirectly contaminated one hundred persons. Kissing is an extremely common source of syphilitic infection, and of all extragenital regions the mouth is by far the most frequent seat of primary syphilitic sores. In some cases, it is true, especially in prostitutes, this is the result of

abnormal sexual contacts. But in the majority of cases it is the result of ordinary and slight kisses as between young children, between parents and children, between lovers and friends and acquaintances. Fairly typical examples, which have been reported, are those of a child, kissed by a prostitute, who became infected and subsequently infected its mother and grandmother; of a young French bride contaminated on her wedding-day by one of the guests who, according to French custom, kissed her on the cheek after the ceremony; of an American girl who, returning from a ball, kissed, at parting, the young man who had accompanied her home, thus acquiring the disease which she not long afterwards imparted in the same way to her mother and three sisters. The ignorant and unthinking are apt to ridicule those who point out the serious risks of miscellaneous kissing. But it remains nevertheless true that people who are not intimate enough to know the state of each other's health are not intimate enough to kiss each other. Infection by the use of domestic utensils, linen, etc., while comparatively rare among the better social classes, is extremely common among the lower classes and among the less civilized nations; in Russia, according to Tarnowsky, the chief authority, seventy per cent. of all cases of syphilis in the rural districts are due to this cause and to ordinary kissing, and a special conference in St. Petersburg in 1897, for the consideration of the methods of dealing with venereal disease, recorded its opinion to the same effect; much the same seems to be true regarding Bosnia and various parts of the Balkan peninsula where syphilis is extremely prevalent among the peasantry. As regards the last group, according to Bulkley in America, fifty per cent. of women generally contract syphilis innocently, chiefly from their husbands, while Fournier states that in France seventy-five per cent. of married women with syphilis have been infected by their husbands, most frequently (seventy per cent.) by husbands who were themselves infected before marriage and supposed that they were cured. Among men the proportion of syphilitics who have been accidentally infected, though less than among women, is still very considerable; it is stated to be at least ten per cent., and possibly it is a much larger proportion of cases. The scrupulous moralist who is anxious that all should have their deserts cannot fail to be still more anxious to prevent the innocent from suffering in place of the guilty. But it is absolutely impossible for him to combine these two aims; syphilis cannot be at the same time perpetuated for the guilty and abolished for the innocent.

I have been taking only syphilis into account, but nearly all that is said of the accidental infection of syphilis applies with equal or greater force to gonorrhoea, for though gonorrhoea does not enter into the system by so many channels as syphilis, it is a more common as well as a more subtle and elusive disease.

The literature of Syphilis Insontium is extremely extensive. There is a bibliography at the end of Duncan Bulkley's _Syphilis in the Innocent_, and a comprehensive summary of the question in a Leipzig Inaugural Dissertation by F. Moses, _Zur Kasuistik der Extragenitalen Syphilis-infektion_, 1904.

Even, however, when we have put aside the vast number of venereally infected people who may be said to be, in the narrowest and most conventionally moral sense, "innocent" victims of the diseases they have contracted, there is still much to be said

on this question. It must be remembered that the majority of those who contract venereal diseases by illegitimate sexual intercourse are young. They are youths, ignorant of life, scarcely yet escaped from home, still undeveloped, incompletely educated, and easily duped by women; in many cases they have met, as they thought, a "nice" girl, not indeed strictly virtuous but, it seemed to them, above all suspicion of disease, though in reality she was a clandestine prostitute. Or they are young girls who have indeed ceased to be absolutely chaste, but have not yet lost all their innocence, and who do not consider themselves, and are not by others considered, prostitutes; that indeed, is one of the rocks on which the system of police regulation of prostitution comes to grief, for the police cannot catch the prostitute at a sufficiently early stage. Of women who become syphilitic, according to Fournier, twenty per cent. are infected before they are nineteen; in hospitals the proportion is as high as forty per cent.; and of men fifteen per cent. cases occur between eleven and twenty-one years of age. The age of maximum frequency of infection is for women twenty years (in the rural population eighteen), and for men twenty-three years. In Germany Erb finds that as many as eighty-five per cent men with gonorrhoea contracted the disease between the ages of sixteen and twenty-five, a very small percentage being infected after thirty. These young things for the most part fell into a trap which Nature had baited with her most fascinating lure; they were usually ignorant; not seldom they were deceived by an attractive personality; often they were overcome by passion; frequently all prudence and reserve had been lost in the fumes of wine. From a truly moral point of view they were scarcely less innocent than children.

"I ask," says Duclaux, "whether when a young man, or a young girl, abandon themselves to a dangerous caress society has done what it can to warn them. Perhaps its intentions were good, but when the need came for precise knowledge a silly prudery has held it back, and it has left its children without _viaticum_.... I will go further, and proclaim that in a large number of cases the husbands who contaminate their wives are innocent. No one is responsible for the evil which he commits without knowing it and without willing it." I may recall the suggestive fact, already referred to, that the majority of husbands who infect their wives contracted the disease before marriage. They entered on marriage believing that their disease was cured, and that they had broken with their past. Doctors have sometimes (and quacks frequently) contributed to this result by too sanguine an estimate of the period necessary to destroy the poison. So great an authority as Fournier formerly believed that the syphilitic could safely be allowed to marry three or four years after the date of infection, but now, with increased experience, he extends the period to four or five years. It is undoubtedly true that, especially when treatment has been thorough and prompt, the diseased constitution, in a majority of cases, can be brought under complete control in a shorter period than this, but there is always a certain proportion of cases in which the powers of infection persist for many years, and even when the syphilitic husband is no longer capable of infecting his wife he may still perhaps be in a condition to effect a disastrous influence on the offspring.

In nearly all these cases there was more or less ignorance--which is but another word for innocence as we commonly understand innocence--and when at last, after

the event, the facts are more or less bluntly explained to the victim he frequently exclaims: "Nobody told me!" It is this fact which condemns the pseudo-moralist. If he had seen to it that mothers began to explain the facts of sex to their little boys and girls from childhood, if he had (as Dr. Joseph Price urges) taught the risks of venereal disease in the Sunday-school, if he had plainly preached on the relations of the sexes from the pulpit, if he had seen to it that every youth at the beginning of adolescence received some simple technical instruction from his family doctor concerning sexual health and sexual disease--then, though there would still remain the need of pity for those who strayed from a path that must always be difficult to walk in, the would-be moralist at all events would in some measure be exculpated. But he has seldom indeed lifted a finger to do any of these things.

Even those who may be unwilling to abandon an attitude of private moral intolerance towards the victims of venereal diseases may still do well to remember that since the public manifestation of their intolerance is mischievous, and at the best useless, it is necessary for them to restrain it in the interests of society. They would not be the less free to order their own personal conduct in the strictest accordance with their superior moral rigidity; and that after all is for them the main thing. But for the sake of society it is necessary for them to adopt what they may consider the convention of a purely hygienic attitude towards these diseases. The erring are inevitably frightened by an attitude of moral reprobation into methods of concealment, and these produce an endless chain of social evils which can only be dissipated by openness. As Duclaux has so earnestly insisted, it is impossible to grapple successfully with venereal disease unless we consent not to introduce our prejudices, or even our morals and religion, into the question, but treat it purely and simply as a sanitary question. And if the pseudo-moralist still has difficulty in coöperating towards the healing of this social sore he may be reminded that he himself--like every one of us little though we may know it--has certainly had a great army of syphilitic and gonorrhoeal persons among his own ancestors during the past four centuries. We are all bound together, and it is absurd, even when it is not inhuman, to cast contempt on our own flesh and blood.

I have discussed rather fully the attitude of those who plead morality as a reason for ignoring the social necessity of combating venereal disease, because although there may not be many who seriously and understandingly adopt so anti-social and inhuman an attitude there are certainly many who are glad at need of the existence of so fine an excuse for their moral indifference or their mental indolence.[242] When they are confronted by this great and difficult problem they find it easy to offer the remedy of conventional morality, although they are well aware that on a large scale that remedy has long been proved to be ineffectual. They ostentatiously affect to proffer the useless thick end of the wedge at a point where it is only possible with much skill and prudence to insinuate the thin working end.

The general acceptance of the fact that syphilis and gonorrhoea are diseases, and not necessarily crimes or sins, is the condition for any practical attempt to deal with this question from the sanitary point of view which is now taking the place of the antiquated and ineffective police point of view. The Scandinavian countries of Europe

have been the pioneers in practical modern hygienic methods of dealing with venereal disease. There are several reasons why this has come about. All the problems of sex--of sexual love as well as of sexual disease--have long been prominent in these countries, and an impatience with prudish hypocrisy seems here to have been more pronounced than elsewhere; we see this spirit, for instance, emphatically embodied in the plays of Ibsen, and to some extent in Björnson's works. The fearless and energetic temper of the people impels them to deal practically with sexual difficulties, while their strong instincts of independence render them averse to the bureaucratic police methods which have flourished in Germany and France. The Scandinavians have thus been the natural pioneers of the methods of combating venereal diseases which are now becoming generally recognized to be the methods of the future, and they have fully organized the system of putting venereal diseases under the ordinary law and dealing with them as with other contagious diseases.

The first step in dealing with a contagious disease is to apply to it the recognized principles of notification. Every new application of the principle, it is true, meets with opposition. It is without practical result, it is an unwarranted inquisition into the affairs of the individual, it is a new tax on the busy medical practitioner, etc. Certainly notification by itself will not arrest the progress of any infectious disease. But it is an essential element in every attempt to deal with the prevention of disease. Unless we know precisely the exact incidence, local variations, and temporary fluctuations of a disease we are entirely in the dark and can only beat about at random. All progress in public hygiene has been accompanied by the increased notification of disease, and most authorities are agreed that such notification must be still further extended, any slight inconvenience thus caused to individuals being of trifling importance compared to the great public interests at stake. It is true that so great an authority as Neisser has expressed doubt concerning the extension of notification to gonorrhoea; the diagnosis cannot be infallible, and the patients often give false names. These objections, however, seem trivial; diagnosis can very seldom be infallible (though in this field no one has done so much for exact diagnosis as Neisser himself), and names are not necessary for notification, and are not indeed required in the form of compulsory notification of venereal disease which existed a few years ago in Norway.

The principle of the compulsory notification of venereal diseases seems to have been first established in Prussia, where it dates from 1835. The system here, however, is only partial, not being obligatory in all cases but only when in the doctor's opinion secrecy might be harmful to the patient himself or to the community; it is only obligatory when the patient is a soldier. This method of notification is indeed on a wrong basis, it is not part of a comprehensive sanitary system but merely an auxiliary to police methods of dealing with prostitution. According to the Scandinavian system, notification, though not an essential part of this system, rests on an entirely different basis.

The Scandinavian plan in a modified form has lately been established in Denmark. This little country, so closely adjoining Germany, for some time followed in this matter the example of its great neighbor and adopted the police regulation of prostitution and venereal disease. The more fundamental Scandinavian affinities of

Denmark were, however, eventually asserted, and in 1906, the system of regulation was entirely abandoned and Denmark resolved to rely on thorough and systematic application of the sanitary principle already accepted in the country, although something of German influence still persists in the strict regulation of the streets and the penalties imposed upon brothel-keepers, leaving prostitution itself free. The decisive feature of the present system is, however, that the sanitary authorities are now exclusively medical. Everyone, whatever his social or financial position, is entitled to the free treatment of venereal disease. Whether he avails himself of it or not, he is in any case bound to undergo treatment. Every diseased person is thus, so far as it can be achieved, in a doctor's hands. All doctors have their instructions in regard to such cases, they have not only to inform their patients that they cannot marry so long as risks of infection are estimated to be present, but that they are liable for the expenses of treatment, as well as the dangers suffered, by any persons whom they may infect. Although it has not been possible to make the system at every point thoroughly operative, its general success is indicated by the entire reliance now placed on it, and the abandonment of the police regulation of prostitution. A system very similar to that of Denmark was established some years previously in Norway. The principle of the treatment of venereal disease at the public expense exists also in Sweden as well as in Finland, where treatment is compulsory.[243]

It can scarcely be said that the principle of notification has yet been properly applied on a large scale to venereal diseases. But it is constantly becoming more widely advocated, more especially in England and the United States,[244] where national temperament and political traditions render the system of the police regulation of prostitution impossible--even if it were more effective than it practically is--and where the system of dealing with venereal disease on the basis of public health has to be recognized as not only the best but the only possible system.[245]

In association with this, it is necessary, as is also becoming ever more widely recognized, that there should be the most ample facilities for the gratuitous treatment of venereal diseases; the general establishment of free dispensaries, open in the evenings, is especially necessary, for many can only seek advice and help at this time. It is largely to the systematic introduction of facilities for gratuitous treatment that the enormous reduction in venereal disease in Sweden, Norway, and Bosnia is attributed. It is the absence of the facilities for treatment, the implied feeling that the victims of venereal disease are not sufferers but merely offenders not entitled to care, that has in the past operated so disastrously in artificially promoting the dissemination of preventable diseases which might be brought under control.

If we dispense with the paternal methods of police regulation, if we rely on the general principles of medical hygiene, and for the rest allow the responsibility for his own good or bad actions to rest on the individual himself, there is a further step, already fully recognized in principle, which we cannot neglect to take: We must look on every person as accountable for the venereal diseases he transmits. So long as we refuse to recognize venereal diseases as on the same level as other infectious diseases, and so long as we offer no full and fair facilities for their treatment, it is unjust to bring the individual to account for spreading them. But if we publicly

recognize the danger of infectious venereal diseases, and if we leave freedom to the individual, we must inevitably declare, with Duclaux, that every man or woman must be held responsible for the diseases he or she communicates.

According to the Oldenburg Code of 1814 it was a punishable offence for a venereally diseased person to have sexual intercourse with a healthy person, whether or not infection resulted. In Germany to-day, however, there is no law of this kind, although eminent German legal authorities, notably Von Liszt, are of opinion that a paragraph should be added to the Code declaring that sexual intercourse on the part of a person who knows that he is diseased should be punishable by imprisonment for a period not exceeding two years, the law not to be applied as between married couples except on the application of one of the parties. At the present time in Germany the transmission of venereal disease is only punishable as a special case of the infliction of bodily injury.[246] In this matter Germany is behind most of the Scandinavian countries where individual responsibility for venereal infection is well recognized and actively enforced.

In France, though the law is not definite and satisfactory, actions for the transmission of syphilis are successfully brought before the courts. Opinion seems to be more decisively in favor of punishment for this offense than it is in Germany. In 1883 Després discussed the matter and considered the objections. Few may avail themselves of the law, he remarks, but all would be rendered more cautious by the fear of infringing it; while the difficulties of tracing and proving infection are not greater, he points out, than those of tracing and proving paternity in the case of illegitimate children. Després would punish with imprisonment for not more than two years any person, knowing himself to be diseased, who transmitted a venereal disease, and would merely fine those who communicated the contagion by imprudence, not realizing that they were diseased.[247] The question has more recently been discussed by Aurientis in a Paris thesis. He states that the present French law as regards the transmission of sexual diseases is not clearly established and is difficult to act upon, but it is certainly just that those who have been contaminated and injured in this way should easily be able to obtain reparation. Although it is admitted in principle that the communication of syphilis is an offence even under common law he is in agreement with those who would treat it as a special offence, making a new and more practical law.[248] Heavy damages are even at the present time obtained in the French courts from men who have infected young women in sexual intercourse, and also from the doctors as well as the mothers of syphilitic infants who have infected the foster-mothers they were entrusted to. Although the French Penal Code forbids in general the disclosure of professional secrets, it is the duty of the medical practitioner to warn the foster-mother in such a case of the danger she is incurring, but without naming the disease; if he neglects to give this warning he may be held liable.

In England, as well as in the United States, the law is more unsatisfactory and more helpless, in relation to this class of offences, than it is in France. The mischievous and barbarous notion, already dealt with, according to which venereal disease is the result of illicit intercourse and should be tolerated as a just visitation of

God, seems still to flourish in these countries with fatal persistency. In England the communication of venereal disease by illicit intercourse is not an actionable wrong if the act of intercourse has been voluntary, even although there has been wilful and intentional concealment of the disease. _Ex turpi causâ non oritur actio_, it is sententiously said; for there is much dormitative virtue in a Latin maxim. No legal offence has still been committed if a husband contaminates his wife, or a wife her husband.[249] The "freedom" enjoyed in this matter by England and the United States is well illustrated by an American case quoted by Dr. Isidore Dyer, of New Orleans, in his report to the Brussels Conference on the Prevention of Venereal Diseases, in 1899: "A patient with primary syphilis refused even charitable treatment and carried a book wherein she kept the number of men she had inoculated. When I first saw her she declared the number had reached two hundred and nineteen and that she would not be treated until she had had revenge on five hundred men." In a community where the most elementary rules of justice prevailed facilities would exist to enable this woman to obtain damages from the man who had injured her or even to secure his conviction to a term of imprisonment. In obtaining some indemnity for the wrong done her, and securing the "revenge" she craved, she would at the same time have conferred a benefit on society. She is shut out from any action against the one person who injured her; but as a sort of compensation she is allowed to become a radiating focus of disease, to shorten many lives, to cause many deaths, to pile up incalculable damages; and in so doing she is to-day perfectly within her legal rights. A community which encourages this state of things is not only immoral but stupid.

There seems, however, to be a growing body of influential opinion, both in England and in the United States, in favor of making the transmission of venereal disease an offence punishable by heavy fine or by imprisonment.[250] In any enactment no stress should be put on the infection being conveyed "knowingly." Any formal limitation of this kind is unnecessary, as in such a case the Court always takes into account the offender's ignorance or mere negligence, and it is mischievous because it tends to render an enactment ineffective and to put a premium on ignorance; the husbands who infect their wives with gonorrhoea immediately after marriage have usually done so from ignorance, and it should be at least necessary for them to prove that they have been fortified in their ignorance by medical advice. It is sometimes said that the existing law could be utilized for bringing actions of this kind, and that no greater facilities should be offered for fear of increasing attempts at blackmail. The inutility of the law at present for this purpose is shown by the fact that it seldom or never happens that any attempt is made to utilize it, while not only are there a number of existing punishable offences which form the subject of attempts at blackmail, but blackmail can still be demanded even in regard to disreputable actions that are not legally punishable at all. Moreover, the attempt to levy blackmail is itself an offence always sternly dealt with in the courts.

It is possible to trace the beginning of a recognition that the transmission of a venereal disease is a matter of which legal cognizance may be taken in the English law courts. It is now well settled that the infection of a wife by her husband may be held to constitute the legal cruelty which, according to the present law, must be proved, in addition to adultery, before a wife can obtain divorce from her husband. In

1777 Restif de la Bretonne proposed in his _Gynographes_ that the communication of a venereal disease should itself be an adequate ground for divorce; this, however, is not at present generally accepted.[251]

It is sometimes said that it is very well to make the individual legally responsible for the venereal disease he communicates, but that the difficulties of bringing that responsibility home would still remain. And those who admit these difficulties frequently reply that at the worst we should have in our hands a means of educating responsibility; the man who deliberately ran the risk of transmitting such infection would be made to feel that he was no longer fairly within his legal rights but had done a bad action. We are thus led on finally to what is now becoming generally recognized as the chief and central method of combating venereal disease, if we are to accept the principle of individual responsibility as ruling in this sphere of life. Organized sanitary and medical precautions, and proper legal protection for those who have been injured, are inoperative without the educative influence of elementary hygienic instruction placed in the possession of every young man and woman. In a sphere that is necessarily so intimate medical organization and legal resort can never be all-sufficing; knowledge is needed at every step in every individual to guide and even to awaken that sense of personal moral responsibility which must here always rule. Wherever the importance of these questions is becoming acutely realized--and notably at the Congresses of the German Society for Combating Venereal Disease--the problem is resolving itself mainly into one of education.[252] And although opinion and practice in this matter are to-day more advanced in Germany than elsewhere the conviction of this necessity is becoming scarcely less pronounced in all other civilized countries, in England and America as much as in France and the Scandinavian lands.

A knowledge of the risks of disease by sexual intercourse, both in and out of marriage,--and indeed, apart from sexual intercourse altogether,--is a further stage of that sexual education which, as we have already seen, must begin, so far as the elements are concerned, at a very early age. Youths and girls should be taught, as the distinguished Austrian economist, Anton von Menger wrote, shortly before his death, in his excellent little book, _Neue Sittenlehre_, that the production of children is a crime when the parents are syphilitic or otherwise incompetent through transmissible chronic diseases. Information about venereal disease should not indeed be given until after puberty is well established. It is unnecessary and undesirable to impart medical knowledge to young boys and girls and to warn them against risks they are yet little liable to be exposed to. It is when the age of strong sexual instinct, actual or potential, begins that the risks, under some circumstances, of yielding to it, need to be clearly present to the mind. No one who reflects on the actual facts of life ought to doubt that it is in the highest degree desirable that every adolescent youth and girl ought to receive some elementary instruction in the general facts of venereal disease, tuberculosis, and alcoholism. These three "plagues of civilization" are so widespread, so subtle and manifold in their operation, that everyone comes in contact with them during life, and that everyone is liable to suffer, even before he is aware, perhaps hopelessly and forever, from the results of that contact. Vague declamation about immorality and vaguer warnings against it have no effect and possess no

meaning, while rhetorical exaggeration is unnecessary. A very simple and concise statement of the actual facts concerning the evils that beset life is quite sufficient and adequate, and quite essential. To ignore this need is only possible to those who take a dangerously frivolous view of life.

It is the young woman as much as the youth who needs this enlightenment. There are still some persons so ill-informed as to believe that though it may be necessary to instruct the youth it is best to leave his sister unsullied, as they consider it, by a knowledge of the facts of life. This is the very reverse of the truth. It is desirable indeed that all should be acquainted with facts so vital to humanity, even although not themselves personally concerned. But the girl is even more concerned than the youth. A man has the matter more within his own grasp, and if he so chooses he may avoid all the grosser risks of contact with venereal disease. But it is not so with the woman. Whatever her own purity, she cannot be sure that she may not have to guard against the possibility of disease in her future husband as well as in those to whom she may entrust her child. It is a possibility which the educated woman, so far from being dispensed from, is more liable to encounter than is the working-class woman, for venereal disease is less prevalent among the poor than the rich.[253] The careful physician, even when his patient is a minister of religion, considers it his duty to inquire if he has had syphilis, and the clergyman of most severely correct life recognizes the need of such inquiry and may perhaps smile, but seldom feels himself insulted. The relationship between husband and wife is even much more intimate and important than that between doctor and patient, and a woman is not dispensed from the necessity of such inquiry concerning her future husband by the conviction that the reply must surely be satisfactory. Moreover, it may well be in some cases that, if she is adequately enlightened, she may be the means of saving him, before it is too late, from the guilt of premature marriage and its fateful consequences, so deserving to earn his everlasting gratitude. Even if she fails in winning that, she still has her duty to herself and to the future race which her children will help to form.

In most countries there is a growing feeling in favor of the enlightenment of young women equally with young men as regards venereal diseases. Thus in Germany Max Flesch, in his _Prostitution und Frauenkrankheiten_, considers that at the end of their school days all girls should receive instruction concerning the grave physical and social dangers to which women are exposed in life. In France Duclaux (in his _L'Hygiène Sociale_) is emphatic that women must be taught. "Already," he states, "doctors who by custom have been made, in spite of themselves, the husband's accomplices, will tell you of the ironical gaze they sometimes encounter when they seek to lead a wife astray concerning the causes of her ills. The day is approaching of a revolt against the social lie which has made so many victims, and you will be obliged to teach women what they need to know in order to guard themselves against you." It is the same in America. Reform in this field, Isidore Dyer declares, must emblazon on its flag the motto, "Knowledge is Health," as well of mind as of body, for women as well as for men. In a discussion introduced by Denslow Lewis at the annual meeting of the American Medical Association in 1901 on the limitation of venereal diseases (_Medico-Legal Journal_, June and September, 1903), there was a fairly general agreement among all the speakers that almost or quite the chief method of

prevention lay in education, the education of women as much as of men. "Education lies at the bottom of the whole thing," declared one speaker (Seneca Egbert, of Philadelphia), "and we will never gain much headway until every young man, and every young woman, even before she falls in love and becomes engaged, knows what these diseases are, and what it will mean if she marries a man who has contracted them." "Educate father and mother, and they will educate their sons and daughters," exclaims Egbert Grandin, more especially in regard to gonorrhoea (_Medical Record_, May 26, 1906); "I lay stress on the daughter because she becomes the chief sufferer from inoculation, and it is her right to know that she should protect herself against the gonorrhoeic as well as against the alcoholic."

We must fully face the fact that it is the woman herself who must be accounted responsible, as much as a man, for securing the right conditions of a marriage she proposes to enter into. In practice, at the outset, that responsibility may no doubt be in part delegated to parents or guardians. It is unreasonable that any false delicacy should be felt about this matter on either side. Questions of money and of income are discussed before marriage, and as public opinion grows sounder none will question the necessity of discussing the still more serious question of health, alike that of the prospective bridegroom and of the bride. An incalculable amount of disease and marital unhappiness would be prevented if before an engagement was finally concluded each party placed himself or herself in the hands of a physician and authorized him to report to the other party. Such a report would extend far beyond venereal disease. If its necessity became generally recognized it would put an end to much fraud which now takes place when entering the marriage bond. It constantly happens at present that one party or the other conceals the existence of some serious disease or disability which is speedily discovered after marriage, sometimes with a painful and alarming shock--as when a man discovers his wife in an epileptic fit on the wedding night--and always with the bitter and abiding sense of having been duped. There can be no reasonable doubt that such concealment is an adequate cause of divorce. Sir Thomas More doubtless sought to guard against such frauds when he ordained in his _Utopia_ that each party should before marriage be shown naked to the other. The quaint ceremony he describes was based on a reasonable idea, for it is ludicrous, if it were not often tragic in its results, that any person should be asked to undertake to embrace for life a person whom he or she has not so much as seen.

It may be necessary to point out that every movement in this direction must be the spontaneous action of individuals directing their own lives according to the rules of an enlightened conscience, and cannot be initiated by the dictation of the community as a whole enforcing its commands by law. In these matters law can only come in at the end, not at the beginning. In the essential matters of marriage and procreation laws are primarily made in the brains and consciences of individuals for their own guidance. Unless such laws are already embodied in the actual practice of the great majority of the community it is useless for parliaments to enact them by statute. They will be ineffective or else they will be worse than ineffective by producing undesigned mischiefs. We can only go to the root of the matter by insisting on education in moral responsibility and instruction, in matters of fact.

The question arises as to the best person to impart this instruction. As we have seen there can be little doubt that before puberty the parents, and especially the mother, are the proper instructors of their children in esoteric knowledge. But after puberty the case is altered. The boy and the girl are becoming less amenable to parental influence, there is greater shyness on both sides, and the parents rarely possess the more technical knowledge that is now required. At this stage it seems that the assistance of the physician, of the family doctor if he has the proper qualities for the task, should be called in. The plan usually adopted, and now widely carried out, is that of lectures setting forth the main facts concerning venereal diseases, their dangers, and allied topics.[254] This method is quite excellent. Such lectures should be delivered at intervals by medical lecturers at all urban, educational, manufacturing, military, and naval centres, wherever indeed a large number of young persons are gathered together. It should be the business of the central educational authority either to carry them out or to enforce on those controlling or employing young persons the duty of providing such lectures. The lectures should be free to all who have attained the age of sixteen.

In Germany the principle of instruction by lectures concerning venereal diseases seems to have become established, at all events so far as young men are concerned, and such lectures are constantly becoming more usual. In 1907 the Minister of Education established courses of lectures by doctors on sexual hygiene and venereal diseases for higher schools and educational institutions, though attendance was not made compulsory. The courses now frequently given by medical men to the higher classes in German secondary schools on the general principles of sexual anatomy and physiology nearly always include sexual hygiene with special reference to venereal diseases (see, e.g., _Sexualpädagogik_, pp. 131-153). In Austria, also, lectures on personal hygiene and the dangers of venereal disease are delivered to students about to leave the gymnasium for the university; and the working men's clubs have instituted regular courses of lectures on the same subjects delivered by physicians. In France many distinguished men, both inside and outside the medical profession, are working for the cause of the instruction of the young in sexual hygiene, though they have to contend against a more obstinate degree of prejudice and prudery on the part of the middle class than is to be found in the Germanic lands. The Commission Extraparlementaire du Régime des Moeurs, with the conjunction of Augagneur, Alfred Fournier, Yves Guyot, Gide, and other distinguished professors, teachers, etc., has lately pronounced in favor of the official establishment of instruction in sexual hygiene, to be given in the highest classes at the lycées, or in the earliest class at higher educational colleges; such instruction, it is argued, would not only furnish needed enlightenment, but also educate the sense of moral responsibility. There is in France, also, an active and distinguished though unofficial Société Française de Prophylaxie Sanitaire et Morale, which delivers public lectures on sexual hygiene. Fournier, Pinard, Burlureaux and other eminent physicians have written pamphlets on this subject for popular distribution (see, e.g., _Le Progrès Médical_ of September, 1907). In England and the United States very little has yet been done in this direction, but in the United States, at all events, opinion in favor of action is rapidly growing (see, e.g., W.A. Funk, "The Venereal Peril," _Medical Record_, April 13,

1907). The American Society of Sanitary and Moral Prophylaxis (based on the parent society founded in Paris in 1900 by Fournier) was established in New York in 1905. There are similar societies in Chicago and Philadelphia. The main object is to study venereal diseases and to work toward their social control. Doctors, laymen, and women are members. Lectures and short talks are now given under the auspices of these societies to small groups of young women in social settlements, and in other ways, with encouraging success; it is found to be an excellent method of reaching the young women of the working classes. Both men and women physicians take part in the lectures (Clement Cleveland, Presidential Address on "Prophylaxis of Venereal Diseases," _Transactions American Gynecological Society_, Philadelphia, vol. xxxii, 1907).

An important auxiliary method of carrying out the task of sexual hygiene, and at the same time of spreading useful enlightenment, is furnished by the method of giving to every syphilitic patient in clinics where such cases are treated a card of instruction for his guidance in hygienic matters, together with a warning of the risks of marriage within four or five years after infection, and in no case without medical advice. Such printed instruction, in clear, simple, and incisive language, should be put into the hands of every syphilitic patient as a matter of routine, and it might be as well to have a corresponding card for gonorrhoeal patients. This plan has already been introduced at some hospitals, and it is so simple and unobjectionable a precaution that it will, no doubt, be generally adopted. In some countries this measure is carried out on a wider scale. Thus in Austria, as the result of a movement in which several university professors have taken an active part, leaflets and circulars, explaining briefly the chief symptoms of venereal diseases and warning against quacks and secret remedies, are circulated among young laborers and factory hands, matriculating students, and scholars who are leaving trade schools.

In France, where great social questions are sometimes faced with a more chivalrous daring than elsewhere, the dangers of syphilis, and the social position of the prostitute, have alike been dealt with by distinguished novelists and dramatists. Huysmans inaugurated this movement with his first novel, _Marthe_, which was immediately suppressed by the police. Shortly afterwards Edmond de Goncourt published _La Fille Elisa_, the first notable novel of the kind by a distinguished author. It was written with much reticence, and was not indeed a work of high artistic value, but it boldly faced a great social problem and clearly set forth the evils of the common attitude towards prostitution. It was dramatized and played by Antoine at the Théâtre Libre, but when, in 1891, Antoine wished to produce it at the Porte-Saint-Martin Theatre, the censor interfered and prohibited the play on account of its "contexture générale." The Minister of Education defended this decision on the ground that there was much in the play that might arouse repugnance and disgust. "Repugnance here is more moral than attraction," exclaimed M. Paul Déroulède, and the newspapers criticized a censure which permitted on the stage all the trivial indecencies which favor prostitution, but cannot tolerate any attack on prostitution. In more recent years the brothers Margueritte, both in novels and in journalism, have largely devoted their distinguished abilities and high literary skill to the courageous and enlightened advocacy of many social reforms. Victor Margueritte, in his

Prostituée (1907)--a novel which has attracted wide attention and been translated into various languages--has sought to represent the condition of women in our actual society, and more especially the condition of the prostitute under what he regards as the odious and iniquitous system still prevailing. The book is a faithful picture of the real facts, thanks to the assistance the author received from the Paris Préfecture of Police, and largely for that reason is not altogether a satisfactory work of art, but it vividly and poignantly represents the cruelty, indifference, and hypocrisy so often shown by men towards women, and is a book which, on that account, cannot be too widely read. One of the most notable of modern plays is Brieux's _Les Avariés_ (1902). This distinguished dramatist, himself a medical man, dedicates his play to Fournier, the greatest of syphilographers. "I think with you," he writes here, "that syphilis will lose much of its danger when it is possible to speak openly of an evil which is neither a shame nor a punishment, and when those who suffer from it, knowing what evils they may propagate, will better understand their duties towards others and towards themselves." The story developed in the drama is the old and typical story of the young man who has spent his bachelor days in what he considers a discrete and regular manner, having only had two mistresses, neither of them prostitutes, but at the end of this period, at a gay supper at which he bids farewell to his bachelor life, he commits a fatal indiscretion and becomes infected by syphilis; his marriage is approaching and he goes to a distinguished specialist who warns him that treatment takes time, and that marriage is impossible for several years; he finds a quack, however, who undertakes to cure him in six months; at the end of the time he marries; a syphilitic child is born; the wife discovers the state of things and forsakes her home to return to her parents; her indignant father, a deputy in Parliament, arrives in Paris; the last word is with the great specialist who brings finally some degree of peace and hope into the family. The chief morals Brieux points out are that it is the duty of the bride's parents before marriage to ascertain the bridegroom's health; that the bridegroom should have a doctor's certificate; that at every marriage the part of the doctors is at least as important as that of the lawyers. Even if it were a less accomplished work of art than it is, _Les Avariés_ is a play which, from the social and educative point of view alone, all who have reached the age of adolescence should be compelled to see.

Another aspect of the same problem has been presented in _Plus Fort que le Mal_, a book written in dramatic form (though not as a properly constituted play intended for the stage) by a distinguished French medical author who here adopts the name of Espy de Metz. The author (who is not, however, pleading _pro domo_) calls for a more sympathetic attitude towards those who suffer from syphilis, and though he writes with much less dramatic skill than Brieux, and scarcely presents his moral in so unequivocal a form, his work is a notable contribution to the dramatic literature of syphilis.

It will probably be some time before these questions, poignant as they are from the dramatic point of view, and vitally important from the social point of view, are introduced on the English or the American stage. It is a remarkable fact that, notwithstanding the Puritanic elements which still exist in Anglo-Saxon thought and feeling generally, the Puritanic aspect of life has never received embodiment in the

English or American drama. On the English stage it is never permitted to hint at the tragic side of wantonness; vice must always be made seductive, even though a _deus ex machina_ causes it to collapse at the end of the performance. As Mr. Bernard Shaw has said, the English theatrical method by no means banishes vice; it merely consents that it shall be made attractive; its charms are advertised and its penalties suppressed. "Now, it is futile to plead that the stage is not the proper place for the representation and discussion of illegal operations, incest, and venereal disease. If the stage is the proper place for the exhibition and discussion of seduction, adultery, promiscuity, and prostitution, it must be thrown open to all the consequences of these things, or it will demoralize the nation."

The impulse to insist that vice shall always be made attractive is not really, notwithstanding appearances, a vicious impulse. It arises from a mental confusion, a common psychic tendency, which is by no means confined to Anglo-Saxon lands, and is even more well marked among the better educated in the merely literary sense, than among the worse educated people. The æsthetic is confused with the moral, and what arouses disgust is thus regarded as immoral. In France the novels of Zola, the most pedestrianally moralistic of writers, were for a long time supposed to be immoral because they were often disgusting. The same feeling is still more widespread in England. If a prostitute is brought on the stage, and she is pretty, well-dressed, seductive, she may gaily sail through the play and every one is satisfied. But if she were not particularly pretty, well-dressed, or seductive, if it were made plain that she was diseased and was reckless in infecting others with that disease, if it were hinted that she could on occasion be foul-mouthed, if, in short, a picture were shown from life--then we should hear that the unfortunate dramatist had committed something that was "disgusting" and "immoral." Disgusting it might be, but, on that very account, it would be moral. There is a distinction here that the psychologist cannot too often point out or the moralist too often emphasize.

It is not for the physician to complicate and confuse his own task as teacher by mixing it up with considerations which belong to the spiritual sphere. But in carrying out impartially his own special work of enlightenment he will always do well to remember that there is in the adolescent mind, as it has been necessary to point out in a previous chapter, a spontaneous force working on the side of sexual hygiene. Those who believe that the adolescent mind is merely bent on sensual indulgence are not less false and mischievous in their influence than are those who think it possible and desirable for adolescents to be preserved in sheer sexual ignorance. However concealed, suppressed, or deformed--usually by the misplaced and premature zeal of foolish parents and teachers--there arise at puberty ideal impulses which, even though they may be rooted in sex, yet in their scope transcend sex. These are capable of becoming far more potent guides of the physical sex impulse than are merely material or even hygienic considerations.

It is time to summarize and conclude this discussion of the prevention of venereal disease, which, though it may seem to the superficial observer to be merely a medical and sanitary question outside the psychologist's sphere, is yet seen on closer view to be intimately related even to the most spiritual conception of the sexual relationships.

Not only are venereal diseases the foes to the finer development of the race, but we cannot attain to any wholesome and beautiful vision of the relationships of sex so long as such relationships are liable at every moment to be corrupted and undermined at their source. We cannot yet precisely measure the interval which must elapse before, so far as Europe at least is concerned, syphilis and gonorrhoea are sent to that limbo of monstrous old dead diseases to which plague and leprosy have gone and smallpox is already drawing near. But society is beginning to realize that into this field also must be brought the weapons of light and air, the sword and the breastplate with which all diseases can alone be attacked. As we have seen, there are four methods by which in the more enlightened countries venereal disease is now beginning to be combated.[255] (1) By proclaiming openly that the venereal diseases are diseases like any other disease, although more subtle and terrible than most, which may attack anyone from the unborn baby to its grandmother, and that they are not, more than other diseases, the shameful penalties of sin, from which relief is only to be sought, if at all, by stealth, but human calamities; (2) by adopting methods of securing official information concerning the extent, distribution, and variation of venereal disease, through the already recognized plan of notification and otherwise, and by providing such facilities for treatment, especially for free treatment, as may be found necessary; (3) by training the individual sense of moral responsibility, so that every member of the community may realize that to inflict a serious disease on another person, even only as a result of reckless negligence, is a more serious offence than if he or she had used the knife or the gun or poison as the method of attack, and that it is necessary to introduce special legal provision in every country to assist the recovery of damages for such injuries and to inflict penalties by loss of liberty or otherwise; (4) by the spread of hygienic knowledge, so that all adolescents, youths and girls alike, may be furnished at the outset of adult life with an equipment of information which will assist them to avoid the grosser risks of contamination and enable them to recognize and avoid danger at the earliest stages.

A few years ago, when no method of combating venereal disease was known except that system of police regulation which is now in its decadence, it would have been impossible to bring forward such considerations as these; they would have seemed Utopian. To-day they are not only recognizable as practical, but they are being actually put into practice, although, it is true, with very varying energy and insight in different countries. Yet it is certain that in the competition of nationalities, as Max von Niessen has well said, "that country will best take a leading place in the march of civilization which has the foresight and courage to introduce and carry through those practical movements of sexual hygiene which have so wide and significant a bearing on its own future, and that of the human race generally."[256]

FOOTNOTES:

[220] It is probable that Schopenhauer felt a more than merely speculative interest in this matter. Bloch has shown good reason for believing that Schopenhauer himself contracted syphilis in 1813, and that this was a factor in constituting his conception of the world and in confirming his constitutional pessimism (_Medizinische Klinik_,

Nos. 25 and 26, 1906).

[221] Havelburg, in Senator and Kaminer, _Health and Disease in Relation to Marriage_, vol. i, pp. 186-189.

[222] This is the very definite opinion of Lowndes after an experience of fifty-four years in the treatment of venereal diseases in Liverpool (_British Medical Journal_, Feb. 9, 1907, p. 334). It is further indicated by the fact (if it is a real fact) that since 1876 there has been a decline of both the infantile and general mortality from syphilis in England.

[223] "There is no doubt whatever that syphilis is on the increase in London, judging from hospital work alone," says Pernet (_British Medical Journal_, March 30, 1907). Syphilis was evidently very prevalent, however, a century or two ago, and there is no ground for asserting positively that it is more prevalent to-day.

[224] See, e.g., A. Neisser, _Die experimentelle Syphilisforschung_, 1906, and E. Hoffmann (who was associated with Schaudinn's discovery), _Die Aetiologie der Syphilis_, 1906; D'Arcy Power, _A System of Syphilis_, 1908, etc.; F.W. Mott, "Pathology of Syphilis in the Light of Modern Research," _British Medical Journal_, February 20, 1909; also, _Archives of Neurology and Psychiatry_, vol. iv, 1909.

[225] There is some difference of opinion on this point, and though it seems probable that early and thorough treatment usually cures the disease in a few years and renders further complications highly improbable, it is not possible, even under the most favorable circumstances, to speak with absolute certainty as to the future.

[226] "That syphilis has been, and is, one of the chief causes of physical degeneration in England cannot be denied, and it is a fact that is acknowledged on all sides," writes Lieutenant-Colonel Lambkin, the medical officer in command of the London Military Hospital for Venereal Diseases. "To grapple with the treatment of syphilis among the civil population of England ought to be the chief object of those interested in that most burning question, the physical degeneration of our race" (_British Medical Journal_, August 19, 1905).

[227] F.W. Mott, "Syphilis as a Cause of Insanity," _British Medical Journal_, October 18, 1902.

[228] It can seldom be proved in more than eighty per cent. of cases, but in twenty per cent. of old syphilitic cases it is commonly impossible to find traces of the disease or to obtain a history of it. Crocker found that it was only in eighty per cent. of cases of absolutely certain syphilitic skin diseases that he could obtain a history of syphilitic infection, and Mott found exactly the same percentage in absolutely certain syphilitic lesions of the brain; Mott believes (e.g., "Syphilis in Relation to the Nervous System," _British Medical Journal_, January 4, 1908) that syphilis is the essential cause of general paralysis and tabes.

[229] Audry. _La Semaine Médicale_, June 26, 1907. When Europeans carry syphilis to lands inhabited by people of lower race, the results are often very much worse than this. Thus Lambkin, as a result of a special mission to investigate syphilis in Uganda, found that in some districts as many as ninety per cent, of the people

suffer from syphilis, and fifty to sixty per cent, of the infant mortality is due to this cause. These people are Baganda, a highly intelligent, powerful, and well-organized tribe before they received, in the gift of syphilis, the full benefit of civilization and Christianity, which (Lambkin points out) has been largely the cause of the spread of the disease by breaking down social customs and emancipating the women. Christianity is powerful enough to break down the old morality, but not powerful enough to build up a new morality (_British Medical Journal_, October 3, 1908, p. 1037).

[230] Even within the limits of the English army it is found In India (H.C. French, _Syphilis in the Army_, 1907) that venereal disease is ten times more frequent among British troops than among Native troops. Outside of national armies it is found, by admission to hospital and death rates, that the United States stands far away at the head for frequency of venereal disease, being followed by Great Britain, then France and Austria-Hungary, Russia, and Germany.

[231] There is no dispute concerning the antiquity of gonorrhoea in the Old World as there is regarding syphilis. The disease was certainly known at a very remote period. Even Esarhaddon, the famous King of Assyria, referred to in the Old Testament, was treated by the priests for a disorder which, as described in the cuneiform documents of the time, could only have been gonorrhoea. The disease was also well known to the ancient Egyptians, and evidently common, for they recorded many prescriptions for its treatment (Oefele, "Gonorrhoe 1350 vor Christi Geburt," _Monatshefte für Praktische Dermatologie_, 1899, p. 260).

[232] Cf. Memorandum by Sydney Stephenson, Report of Ophthalmia Neonatorum Committee, _British Medical Journal_, May 8, 1909.

[233] The extent of these evils is set forth, e.g., in a comprehensive essay by Taylor, _American Journal Obstetrics_, January, 1908.

[234] Neisser brings together figures bearing on the prevalence of gonorrhoea in Germany, Senator and Kaminer, _Health and Disease in Relation to Marriage_, vol. ii, pp. 486-492.

[235] _Lancet_, September 23, 1882. As regards women, Dr. Frances Ivens (_British Medical Journal_, June 19, 1909) has found at Liverpool that 14 per cent. of gynæcological cases revealed the presence of gonorrhoea. They were mostly poor respectable married women. This is probably a high proportion, as Liverpool is a busy seaport, but it is less than Sänger's estimate of 18 per cent.

[236] E.H. Grandin, _Medical Record_, May 26, 1906.

[237] E.W. Cushing, "Sociological Aspects of Gonorrhoea," _Transactions American Gynecological Society_, vol. xxii, 1897.

[238] It is only in very small communities ruled by an autocratic power with absolute authority to control conditions and to examine persons of both sexes that reglementation becomes in any degree effectual. This is well shown by Dr. W.E. Harwood, who describes the system he organized in the mines of the Minnesota Iron Company (_Journal American Medical Association_, December 22, 1906). The women

in the brothels on the company's estate were of the lowest class, and disease was very prevalent. Careful examination of the women was established, and control of the men, who, immediately on becoming diseased, were bound to declare by what woman they had been infected. The woman was responsible for the medical bill of the man she infected, and even for his board, if incapacitated, and the women were compelled to maintain a fund for their own hospital expenses when required. In this way venereal disease, though not entirely uprooted, was very greatly diminished.

[239] A clear and comprehensive statement of the present position of the question is given by Iwan Bloch, _Das Sexualleben Unserer Zeit_, Chs. XIII-XV. How ineffectual the system of police regulation is, even in Germany, where police interference is tolerated to so marked a degree, may be illustrated by the case of Mannheim. Here the regulation of prostitution is very severe and thorough, yet a careful inquiry in 1905 among the doctors of Mannheim (ninety-two of whom sent in detailed returns) showed that of six hundred cases of venereal disease in men, nearly half had been contracted from prostitutes. About half the remaining cases (nearly a quarter of the whole) were due to waitresses and bar-maids; then followed servant-girls (Lion and Loeb, in _Sexualpädagogik_, the Proceedings of the Third German Congress for Combating Venereal Diseases, 1907, p. 295).

[240] A sixth less numerous class might be added of the young girls, often no more than children, who have been practically raped by men who believe that intercourse with a virgin is a cure for obstinate venereal disease. In America this belief is frequently held by Italians, Chinese, negroes, etc. W. Travis Gibb, Examining Physician of the New York Society for the Prevention of Cruelty to Children, has examined over 900 raped children (only a small proportion, he states, of the cases actually occurring), and finds that thirteen per cent have venereal diseases. A fairly large proportion of these cases, among girls from twelve to sixteen, are, he states, willing victims. Dr. Flora Pollack, also, of the Johns Hopkins Hospital Dispensary, estimates that in Baltimore alone from 800 to 1,000 children between the ages of one and fifteen are venereally infected every year. The largest number, she finds, is at the age of six, and the chief cause appears to be, not lust, but superstition.

[241] For a discussion of inherited syphilis, see, e.g., Clement Lucas, _Lancet_, February 1, 1908.

[242] Much harm has been done in some countries by the foolish and mischievous practice of friendly societies and sick clubs of ignoring venereal diseases, and not according free medical aid or sick pay to those members who suffer from them. This practice prevailed, for instance, in Vienna until 1907, when a more humane and enlightened policy was inaugurated, venereal diseases being placed on the same level as other diseases.

[243] Active measures against venereal disease were introduced in Sweden early in the last century, and compulsory and gratuitous treatment established. Compulsory notification was introduced many years ago in Norway, and by 1907 there was a great diminution in the prevalence of venereal diseases; there is compulsory treatment.

[244] See, e.g., Morrow, _Social Diseases and Marriage_, Ch. XXXVII.

[245] A committee of the Medical Society of New York, appointed in 1902 to consider this question, reported in favor of notification without giving names and addresses, and Dr. C.R. Drysdale, who took an active part in the Brussels International Conference of 1899, advocated a similar plan in England, _British Medical Journal_, February 3, 1900.

[246] Thus in Munich, in 1908, a man who had given gonorrhoea to a servant-girl was sent to prison for ten months on this ground. The state of German opinion to-day on this subject is summarized by Bloch, _Sexualleben unserer Zeit_, p. 424.

[247] A. Després, _La Prostitution à Paris_, p. 191.

[248] F. Aurientis, _Etude Medico-légale sur la jurisprudence actuelle à propos de la Transmission des Maladies Vénériennes_, Thèse de Paris, 1906.

[249] In England at present "a husband knowingly and wilfully infecting his wife with the venereal disease, cannot be convicted criminally, either under a charge of assault or of inflicting grievous bodily harm" (N. Geary, _The Law of Marriage_, p. 479). This was decided in 1888 in the case of _R. v. Clarence_ by nine judges to four judges in the Court for the Consideration of Crown Cases Reserved.

[250] Modern democratic sentiment is opposed to the sequestration of a prostitute merely because she is diseased. But there can be no reasonable doubt whatever that if a diseased prostitute infects another person, and is unable to pay the very heavy damages which should be demanded in such a case, she ought to be secluded and subjected to treatment. That is necessary in the interests of the community. But it is also necessary, to avoid placing a premium on the commission of an offence which would ensure gratuitous treatment and provision for a prostitute without means, that she should be furnished with facilities for treatment in any case.

[251] It has, however, been decided by the Paris Court of Appeal that for a husband to marry when knowingly suffering from a venereal disease and to communicate that disease to his wife is a sufficient cause for divorce (_Semaine Médicale_, May, 1896).

[252] The large volume, entitled _Sexualpädagogik_, containing the Proceedings of the Third of these Congresses, almost ignores the special subject of venereal disease, and is devoted to the questions involved by the general sexual education of the young, which, as many of the speakers maintained, must begin with the child at his mother's knee.

[253] "Workmen, soldiers, and so on," Neisser remarks (Senator and Kaminer, _Health and Disease in Relation to Marriage_, vol. ii, p. 485), "can more easily find non-prostitute girls of their own class willing to enter into amorous relations with them which result in sexual intercourse, and they are therefore less exposed to the danger of infection than those men who have recourse almost exclusively to prostitutes" (see also Bloch, _Sexualleben unserer Zeit_, p. 437).

[254] The character and extent of such lectures are fully discussed in the Proceedings of the Third Congress of the German Society for Combating Venereal Diseases, _Sexualpädagogik_, 1907.

[255] I leave out of account, as beyond the scope of the present work, the auxiliary aids to the suppression of venereal diseases furnished by the promising new methods, only now beginning to be understood, of treating or even aborting such diseases (see, e.g., Metchnikoff, _The New Hygiene_, 1906).

[256] Max von Niessen, "Herr Doktor, darf ich heiraten?" _Mutterschutz_, 1906, p. 352.

CHAPTER IX.

SEXUAL MORALITY.

Prostitution in Relation to Our Marriage System--Marriage and Morality--The Definition of the Term "Morality"--Theoretical Morality--Its Division Into Traditional Morality and Ideal Morality--Practical Morality--Practical Morality Based on Custom--The Only Subject of Scientific Ethics--The Reaction Between Theoretical and Practical Morality--Sexual Morality in the Past an Application of Economic Morality--The Combined Rigidity and Laxity of This Morality--The Growth of a Specific Sexual Morality and the Evolution of Moral Ideals--Manifestations of Sexual Morality--Disregard of the Forms of Marriage--Trial Marriage--Marriage After Conception of Child--Phenomena in Germany, Anglo-Saxon Countries, Russia, etc.--The Status of Woman--The Historical Tendency Favoring Moral Equality of Women with Men--The Theory of the Matriarchate--Mother-Descent--Women in Babylonia--Egypt--Rome--The Eighteenth and Nineteenth Centuries--The Historical Tendency Favoring Moral Inequality of Woman--The Ambiguous Influence of Christianity--Influence of Teutonic Custom and Feudalism--Chivalry--Woman in England--The Sale of Wives--The Vanishing Subjection of Woman--Inaptitude of the Modern Man to Domineer--The Growth of Moral Responsibility in Women--The Concomitant Development of Economic Independence--The Increase of Women Who Work--Invasion of the Modern Industrial Field by Women--In How Far This Is Socially Justifiable--The Sexual Responsibility of Women and Its Consequences--The Alleged Moral Inferiority of Women--The "Self-Sacrifice" of Women--Society Not Concerned with Sexual Relationships--Procreation the Sole Sexual Concern of the State--The Supreme Importance of Maternity.

It has been necessary to deal fully with the phenomena of prostitution because, however aloof we may personally choose to hold ourselves from those phenomena, they really bring us to the heart of the sexual question in so far as it constitutes a social problem. If we look at prostitution from the outside, as an objective phenomenon, as a question of social dynamics, it is seen to be not a merely accidental and eliminable incident of our present marriage system but an integral part of it, without which it would fall to pieces. This will probably be fairly clear to all who have followed the preceding exposition of prostitutional phenomena. There is, however, more than this to be said. Not only is prostitution to-day, as it has been for more than

two thousand years, the buttress of our marriage system, but if we look at marriage, not from the outside as a formal institution, but from the inside with relation to the motives that constitute it, we find that marriage in a large proportion of cases is itself in certain respects a form of prostitution. This has been emphasized so often and from so many widely different standpoints that it may seem hardly necessary to labor the point here. But the point is one of extreme importance in relation to the question of sexual morality. Our social conditions are unfavorable to the development of a high moral feeling in woman. The difference between the woman who sells herself in prostitution and the woman who sells herself in marriage, according to the saying of Marro already quoted, "is only a difference in price and duration of the contract." Or, as Forel puts it, marriage is "a more fashionable form of prostitution," that is to say, a mode of obtaining, or disposing of, for monetary considerations, a sexual commodity. Marriage is, indeed, not merely a more fashionable form of prostitution, it is a form sanctified by law and religion, and the question of morality is not allowed to intrude. Morality may be outraged with impunity provided that law and religion have been invoked. The essential principle of prostitution is thus legalized and sanctified among us. That is why it is so difficult to arouse any serious indignation, or to maintain any reasoned objections, against our prostitution considered by itself. The most plausible ground is that of those[257] who, bringing marriage down to the level of prostitution, maintain that the prostitute is a "blackleg" who is accepting less than the "market rate of wages," i.e., marriage, for the sexual services she renders. But even this low ground is quite unsafe. The prostitute is really paid extremely well considering how little she gives in return; the wife is really paid extremely badly considering how much she often gives, and how much she necessarily gives up. For the sake of the advantage of economic dependence on her husband, she must give up, as Ellen Key observes, those rights over her children, her property, her work, and her own person which she enjoys as an unmarried woman, even, it may be added, as a prostitute. The prostitute never signs away the right over her own person, as the wife is compelled to do; the prostitute, unlike the wife, retains her freedom and her personal rights, although these may not often be of much worth. It is the wife rather than the prostitute who is the "blackleg."

It is by no means only during recent years that our marriage system has been arraigned before the bar of morals. Forty years ago James Hinton exhausted the vocabulary of denunciation in describing the immorality and selfish licentiousness which our marriage system covers with the cloak of legality and sanctity. "There is an unsoundness in our marriage relations," Hinton wrote. "Not only practically are they dreadful, but they do not answer to feelings and convictions far too widespread to be wisely ignored. Take the case of women of marked eminence consenting to be a married man's mistress; of pure and simple girls saying they cannot see why they should have a marriage by law; of a lady saying that if she were in love she would not have any legal tie; of its being necessary--or thought so by good and wise men--to keep one sex in bitter and often fatal ignorance. These things (and how many more) show some deep unsoundness in the marriage relations. This must be probed and searched to the bottom."

At an earlier date, in 1847, Gross-Hoffinger, in his _Die Schicksale der Frauen und die Prostitution_--a remarkable book which Bloch, with little exaggeration, describes as possessing an epoch-marking significance--vigorously showed that the problem of prostitution is in reality the problem of marriage, and that we can only reform away prostitution by reforming marriage, regarded as a compulsory institution resting on an antiquated economic basis. Gross-Hoffinger was a pioneering precursor of Ellen Key.

More than a century and a half earlier a man of very different type scathingly analyzed the morality of his time, with a brutal frankness, indeed, that seemed to his contemporaries a revoltingly cynical attitude towards their sacred institutions, and they felt that nothing was left to them save to burn his books. Describing modern marriage in his _Fable of the Bees_ (1714, p. 64), and what that marriage might legally cover, Mandeville wrote: "The fine gentleman I spoke of need not practice any greater self-denial than the savage, and the latter acted more according to the laws of nature and sincerity than the first. The man that gratifies his appetite after the manner the custom of the country allows of, has no censure to fear. If he is hotter than goats or bulls, as soon as the ceremony is over, let him sate and fatigue himself with joy and ecstasies of pleasure, raise and indulge his appetite by turns, as extravagantly as his strength and manhood will give him leave. He may, with safety, laugh at the wise men that should reprove him: all the women and above nine in ten of the men are of his side; nay, he has the liberty of valuing himself upon the fury of his unbridled passions, and the more he wallows in lust and strains every faculty to be abandonedly voluptuous, the sooner he shall have the good-will and gain the affection of the women, not the young, vain, and lascivious only, but the prudent, grave, and most sober matrons."

Thus the charge brought against our marriage system from the point of view of morality is that it subordinates the sexual relationship to considerations of money and of lust. That is precisely the essence of prostitution.

The only legitimately moral end of marriage--whether we regard it from the wider biological standpoint or from the narrower standpoint of human society--is as a sexual selection, effected in accordance with the laws of sexual selection, and having as its direct object a united life of complete mutual love and as its indirect object the procreation of the race. Unless procreation forms part of the object of marriage, society has nothing whatever to do with it and has no right to make its voice heard. But if procreation is one of the ends of marriage, then it is imperative from the biological and social points of view that no influences outside the proper natural influence of sexual selection should be permitted to affect the choice of conjugal partners, for in so far as wholesome sexual selection is interfered with the offspring is likely to be injured and the interests of the race affected.

It must, of course, be clearly understood that the idea of marriage as a form of sexual union based not on biological but on economic considerations, is very ancient, and is sometimes found in societies that are almost primitive. Whenever, however, marriage on a purely property basis, and without due regard to sexual selection, has occurred among comparatively primitive and vigorous peoples, it has been largely

deprived of its evil results by the recognition of its merely economic character, and by the absence of any desire to suppress, even nominally, other sexual relationships on a more natural basis which were outside this artificial form of marriage. Polygamy especially tended to conciliate unions on an economic basis with unions on a natural sexual basis. Our modern marriage system has, however, acquired an artificial rigidity which excludes the possibility of this natural safeguard and compensation. Whatever its real moral content may be, a modern marriage is always "legal" and "sacred." We are indeed so accustomed to economic forms of marriage that, as Sidgwick truly observed (_Method of Ethics_, Bk. ii, Ch. XI), when they are spoken of as "legalized prostitution" it constantly happens that "the phrase is felt to be extravagant and paradoxical."

A man who marries for money or for ambition is departing from the biological and moral ends of marriage. A woman who sells herself for life is morally on the same level as one who sells herself for a night. The fact that the payment seems larger, that in return for rendering certain domestic services and certain personal complacencies--services and complacencies in which she may be quite inexpert--she will secure an almshouse in which she will be fed and clothed and sheltered for life makes no difference in the moral aspect of her case. The moral responsibility is, it need scarcely be said, at least as much the man's as the woman's. It is largely due to the ignorance and even the indifference of men, who often know little or nothing of the nature of women and the art of love. The unintelligence with which even men who might, one thinks, be not without experience, select as a mate, a woman who, however fine and charming she may be, possesses none of the qualities which her wooer really craves, is a perpetual marvel. To refrain from testing and proving the temper and quality of the woman he desires for a mate is no doubt an amiable trait of humility on a man's part. But it is certain that a man should never be content with less than the best of what a woman's soul and body have to give, however unworthy he may feel himself of such a possession. This demand, it must be remarked, is in the highest interests of the woman herself. A woman can offer to a man what is a part at all events of the secret of the universe. The woman degrades herself who sinks to the level of a candidate for an asylum for the destitute.

Our discussion of the psychic facts of sex has thus, it will be seen, brought us up to the question of morality. Over and over again, in setting forth the phenomena of prostitution, it has been necessary to use the word "moral." That word, however, is vague and even, it may be, misleading because it has several senses. So far, it has been left to the intelligent reader, as he will not fail to perceive, to decide from the context in what sense the word was used. But at the present point, before we proceed to discuss sexual psychology in relation to marriage, it is necessary, in order to avoid ambiguity, to remind the reader what precisely are the chief main senses in which the word "morality" is commonly used.

The morality with which ethical treatises are concerned is _theoretical morality_. It is concerned with what people "ought"--or what is "right" for them--to do. Socrates in the Platonic dialogues was concerned with such theoretical morality: what "ought" people to seek in their actions? The great bulk of ethical literature, until recent times

one may say the whole of it, is concerned with that question. Such theoretical morality is, as Sidgwick said, a study rather than a science, for science can only be based on what is, not on what ought to be.

Even within the sphere of theoretical morality there are two very different kinds of morality, so different indeed that sometimes each regards the other as even inimical or at best only by courtesy, with yet a shade of contempt, "moral." These two kinds of theoretical morality are _traditional morality_ and _ideal morality_. Traditional morality is founded on the long established practices of a community and possesses the stability of all theoretical ideas based in the past social life and surrounding every individual born into the community from his earliest years. It becomes the voice of conscience which speaks automatically in favor of all the rules that are thus firmly fixed, even when the individual himself no longer accepts them. Many persons, for example, who were brought up in childhood to the Puritanical observance of Sunday, will recall how, long after they had ceased to believe that such observances were "right," they yet in the violation of them heard the protest of the automatically aroused voice of "conscience," that is to say the expression within the individual of customary rules which have indeed now ceased to be his own but were those of the community in which he was brought up.

Ideal morality, on the other hand, refers not to the past of the community but to its future. It is based not on the old social actions that are becoming antiquated, and perhaps even anti-social in their tendency, but on new social actions that are as yet only practiced by a small though growing minority of the community. Nietzsche in modern times has been a conspicuous champion of ideal morality, the heroic morality of the pioneer, of the individual of the coming community, against traditional morality, or, as he called it, herd-morality, the morality of the crowd. These two moralities are necessarily opposed to each other, but, we have to remember, they are both equally sound and equally indispensable, not only to those who accept them but to the community which they both contribute to hold in vital theoretical balance. We have seen them both, for instance, applied to the question of prostitution; traditional morality defends prostitution, not for its own sake, but for the sake of the marriage system which it regards as sufficiently precious to be worth a sacrifice, while ideal morality refuses to accept the necessity of prostitution, and looks forward to progressive changes in the marriage system which will modify and diminish prostitution.

But altogether outside theoretical morality, or the question of what people "ought" to do, there remains _practical morality_, or the question of what, as a matter of fact, people actually do. This is the really fundamental and essential morality. Latin _mores_ and Greek aethos both refer to _custom_, to the things that are, and not to the things that "ought" to be, except in the indirect and secondary sense that whatever the members of the community, in the mass, actually do, is the thing that they feel they ought to do. In the first place, however, a moral act was not done because it was felt that it ought to be done, but for reasons of a much deeper and more instinctive character.[258] It was not first done because it was felt it ought to be done, but it was felt it "ought" to be done because it had actually become the

custom to do it.

The actions of a community are determined by the vital needs of a community under the special circumstances of its culture, time, and land. When it is the general custom for children to kill their aged parents that custom is always found to be the best not only for the community but even for the old people themselves, who desire it; the action is both practically moral and theoretically moral.[259] And when, as among ourselves, the aged are kept alive, that action is also both practically and theoretically moral; it is in no wise dependent on any law or rule opposed to the taking of life, for we glory in the taking of life under the patriotic name of "war," and are fairly indifferent to it when involved by the demands of our industrial system; but the killing of the aged no longer subserves any social need and their preservation ministers to our civilized emotional needs. The killing of a man is indeed notoriously an act which differs widely in its moral value at different periods and in different countries. It was quite moral in England two centuries ago and less, to kill a man for trifling offences against property, for such punishment commended itself as desirable to the general sense of the educated community. To-day it would be regarded as highly immoral. We are even yet only beginning to doubt the morality of condemning to death and imprisoning for life an unmarried girl who destroyed her infant at birth, solely actuated, against all her natural impulses, by the primitive instinct of self-defense. It cannot be said that we have yet begun to doubt the morality of killing men in war, though we no longer approve of killing women and children, or even non-combatants generally. Every age or land has its own morality.

"Custom, in the strict sense of the word," well says Westermarck, "involves a moral rule.... Society is the school in which men learn to distinguish between right and wrong. The headmaster is custom."[260] Custom is not only the basis of morality but also of law. "Custom is law."[261] The field of theoretical morality has been found so fascinating a playground for clever philosophers that there has sometimes been a danger of forgetting that, after all, it is not theoretical morality but practical morality, the question of what men in the mass of a community actually do, which constitutes the real stuff of morals.[262] If we define more precisely what we mean by morals, on the practical side, we may say that it is constituted by those customs which the great majority of the members of a community regard as conducive to the welfare of the community at some particular time and place. It is for this reason--i.e., because it is a question of what is and not of merely what some think ought to be--that practical morals form the proper subject of science. "If the word 'ethics' is to be used as the name for a science," Westermarck says, "the object of that science can only be to study the moral consciousness as a fact."[263]

Lecky's _History of European Morals_ is a study in practical rather than in theoretical morals. Dr. Westermarck's great work, _The Origin and Development of the Moral Ideas_, is a more modern example of the objectively scientific discussion of morals, although this is not perhaps clearly brought out by the title. It is essentially a description of the actual historical facts of what has been, and not of what "ought" to be. Mr. L.T. Hobhouse's _Morals in Evolution_, published almost at the same time, is similarly a work which, while professedly dealing with ideas, i.e., with rules and

regulations, and indeed disclaiming the task of being "the history of conduct," yet limits itself to those rules which are "in fact, the normal conduct of the average man" (vol. i, p. 26). In other words, it is essentially a history of practical morality, and not of theoretical morality. One of the most subtle and suggestive of living thinkers, M. Jules de Gaultier, in several of his books, and notably in _La Dépendance de la Morale et l'Indépendance des Moeurs_ (1907), has analyzed the conception of morals in a somewhat similar sense. "Phenomena relative to conduct," as he puts it (op. cit., p. 58), "are given in experience like other phenomena, so that morality, or the totality of the laws which at any given moment of historic evolution are applied to human practice, is dependent on customs." I may also refer to the masterly exposition of this aspect of morality in Lévy-Bruhl's _La Morale et la Science des Moeurs_ (there is an English translation).

Practical morality is thus the solid natural fact which forms the biological basis of theoretical morality, whether traditional or ideal. The excessive fear, so widespread among us, lest we should injure morality is misplaced. We cannot hurt morals though we can hurt ourselves. Morals is based on nature and can at the most only be modified. As Crawley rightly insists,[264] even the categorical imperatives of our moral traditions, so far from being, as is often popularly supposed, attempts to suppress Nature, arise in the desire to assist Nature; they are simply an attempt at the rigid formulation of natural impulses. The evil of them only lies in the fact that, like all things that become rigid and dead, they tend to persist beyond the period when they were a beneficial vital reaction to the environment. They thus provoke new forms of ideal morality; and practical morals develops new structures, in accordance with new vital relationships, to replace older and desiccated traditions.

There is clearly an intimate relationship between theoretical morals and practical morals or morality proper. For not only is theoretical morality the outcome in consciousness of realized practices embodied in the general life of the community, but, having thus become conscious, it reacts on those practices and tends to support them or, by its own spontaneous growth, to modify them. This action is diverse, according as we are dealing with one or the other of the strongly marked divisions of theoretical morality: traditional and posterior morality, retarding the vital growth of moral practice, or ideal and anterior morality, stimulating the vital growth of moral practice. Practical morality, or morals proper, may be said to stand between these two divisions of theoretical morality. Practice is perpetually following after anterior theoretical morality, in so far of course as ideal morality really is anterior and not, as so often happens, astray up a blind alley. Posterior or traditional morality always follows after practice. The result is that while the actual morality, in practice at any time or place, is always closely related to theoretical morality, it can never exactly correspond to either of its forms. It always fails to catch up with ideal morality; it is always outgrowing traditional morality.

It has been necessary at this point to formulate definitely the three chief forms in which the word "moral" is used, although under one shape or another they cannot but be familiar to the reader. In the discussion of prostitution it has indeed been easily possible to follow the usual custom of allowing the special sense in which the word

was used to be determined by the context. But now, when we are, for the moment, directly concerned with the specific question of the evolution of sexual morality, it is necessary to be more precise in formulating the terms we use. In this chapter, except when it is otherwise stated, we are concerned primarily with morals proper, with actual conduct as it develops among the masses of a community, and only secondarily with anterior morality or with posterior morality.

Sexual morality, like all other kinds of morality, is necessarily constituted by inherited traditions modified by new adaptations to the changing social environment. If the influence of tradition becomes unduly pronounced the moral life tends to decay and lose its vital adaptability. If adaptability becomes too facile the moral life tends to become unstable and to lose authority. It is only by a reasonable synthesis of structure and function--of what is called the traditional with what is called the ideal--that the moral life can retain its authority without losing its reality. Many, even among those who call themselves moralists, have found this hard to understand. In a vain desire for an impossible logicality they have over-emphasized either the ideal influence on practical morals or, still more frequently, the traditional influence, which has appealed to them because of the impressive authority its _dicta_ seem to convey. The results in the sphere we are here concerned with have often been unfortunate, for no social impulse is so rebellious to decayed traditions, so volcanically eruptive, as that of sex.

We are accustomed to identify our present marriage system with "morality" in the abstract, and for many people, perhaps for most, it is difficult to realize that the slow and insensible movement which is always affecting social life at the present time, as at every other time, is profoundly affecting our sexual morality. A transference of values is constantly taking place; what was once the very standard of morality becomes immoral, what was once without question immoral becomes a new standard. Such a process is almost as bewildering as for the European world two thousand years ago was the great struggle between the Roman city and the Christian Church, when it became necessary to realize that what Marcus Aurelius, the great pattern of morality, had sought to crush as without question immoral,[265] was becoming regarded as the supreme standard of morality. The classic world considered love and pity and self-sacrifice as little better than weakness and sometimes worse; the Christian world not only regarded them as moralities but incarnated them in a god. Our sexual morality has likewise disregarded natural human emotions, and is incapable of understanding those who declare that to retain unduly traditional laws that are opposed to the vital needs of human societies is not a morality but an immorality.

The reason why the gradual evolution of moral ideals, which is always taking place, tends in the sexual sphere, at all events among ourselves, to reach a stage in which there seems to be an opposition between different standards lies in the fact that as yet we really have no specific sexual morality at all.[266] That may seem surprising at first to one who reflects on the immense weight which is usually attached to "sexual morality." And it is undoubtedly true that we have a morality which we apply to the sphere of sex. But that morality is one which belongs mainly to the sphere of property

and was very largely developed on a property basis. All the historians of morals in general, and of marriage in particular, have set forth this fact, and illustrated it with a wealth of historical material. We have as yet no generally recognized sexual morality which has been based on the specific sexual facts of life. That becomes clear at once when we realize the central fact that the sexual relationship is based on love, at the very least on sexual desire, and that that basis is so deep as to be even physiological, for in the absence of such sexual desire it is physiologically impossible for a man to effect intercourse with a woman. Any specific sexual morality must be based on that fact. But our so-called "sexual morality," so far from being based on that fact, attempts to ignore it altogether. It makes contracts, it arranges sexual relationships beforehand, it offers to guarantee permanency of sexual inclinations. It introduces, that is, considerations of a kind that is perfectly sound in the economic sphere to which such considerations rightly belong, but ridiculously incongruous in the sphere of sex to which they have solemnly been applied. The economic relationships of life, in the large sense, are, as we shall see, extremely important in the evolution of any sound sexual morality, but they belong to the conditions of its development and do not constitute its basis.[267]

The fact that, from the legal point of view, marriage is primarily an arrangement for securing the rights of property and inheritance is well illustrated by the English divorce law to-day. According to this law, if a woman has sexual intercourse with any man beside her husband, he is entitled to divorce her; if, however, the husband has intercourse with another woman beside his wife, she is not entitled to a divorce; that is only accorded if, in addition, he has also been cruel to her, or deserted her, and from any standpoint of ideal morality such a law is obviously unjust, and it has now been discarded in nearly all civilized lands except England.

But from the standpoint of property and inheritance it is quite intelligible, and on that ground it is still supported by the majority of Englishmen. If the wife has intercourse with other men there is a risk that the husband's property will be inherited by a child who is not his own. But the sexual intercourse of the husband with other women is followed by no such risk. The infidelity of the wife is a serious offence against property; the infidelity of the husband is no offence against property, and cannot possibly, therefore, be regarded as a ground for divorce from our legal point of view. The fact that his adultery complicated by cruelty is such a ground, is simply a concession to modern feeling. Yet, as Helena Stöcker truly points out ("Verschiedenheit im Liebesleben des Weibes und des Mannes," _Zeitschrift für Sexualwissenschaft_, Dec., 1908), a married man who has an unacknowledged child with a woman outside of marriage, has committed an act as seriously anti-social as a married woman who has a child without acknowledging that the father is not her husband. In the first case, the husband, and in the second case, the wife, have placed an undue amount of responsibility on another person. (The same point is brought forward by the author of _The Question of English Divorce_, p. 56.)

I insist here on the economic element in our sexual morality, because that is the element which has given it a kind of stability and become established in law. But if we take a wider view of our sexual morality, we cannot ignore the ancient element of

asceticism, which has given religious passion and sanction to it. Our sexual morality is thus, in reality, a bastard born of the union of property-morality with primitive ascetic morality, neither in true relationship to the vital facts of the sexual life. It is, indeed, the property element which, with a few inconsistencies, has become finally the main concern of our law, but the ascetic element (with, in the past, a wavering relationship to law) has had an important part in moulding popular sentiment and in creating an attitude of reprobation towards sexual intercourse _per se_, although such intercourse is regarded as an essential part of the property-based and religiously sanctified institution of legal marriage.

The glorification of virginity led by imperceptible stages to the formulation of "fornication" as a deadly sin, and finally as an actual secular "crime." It is sometimes stated that it was not until the Council of Trent that the Church formally anathematized those who held that the state of marriage was higher than that of virginity, but the opinion had been more or less formally held from almost the earliest ages of Christianity, and is clear in the epistles of Paul. All the theologians agree that fornication is a mortal sin. Caramuel, indeed, the distinguished Spanish theologian, who made unusual concessions to the demands of reason and nature, held that fornication is only evil because it is forbidden, but Innocent XI formally condemned that proposition. Fornication as a mortal sin became gradually secularized into fornication as a crime. Fornication was a crime in France even as late as the eighteenth century, as Tarde found in his historical investigations of criminal procedure in Périgord; adultery was also a crime and severely punished quite independently of any complaint from either of the parties (Tarde, "Archéologie Criminelle en Périgord," _Archives de l'Anthropologie Criminelle_, Nov. 15, 1898).

The Puritans of the Commonwealth days in England (like the Puritans of Geneva) followed the Catholic example and adopted ecclesiastical offences against chastity into the secular law. By an Act passed in 1653 fornication became punishable by three months' imprisonment inflicted on both parties. By the same Act the adultery of a wife (nothing is said of a husband) was made felony, both for her and her partner in guilt, and therefore punishable by death (Scobell, _Acts and Ordinances_, p. 121).

The action of a pseudo-morality, such as our sexual morality has been, is double-edged. On the one side it induces a secret and shamefaced laxity, on the other it upholds a rigid and uninspiring theoretical code which so few can consistently follow that theoretical morality is thereby degraded into a more or less empty form. "The human race would gain much," said the wise Sénancour, "if virtue were made less laborious. The merit would not be so great, but what is the use of an elevation which can rarely be sustained?"[268] At present, as a more recent moralist, Ellen Key, puts it, we only have an immorality which favors vice and makes virtue irrealizable, and, as she exclaims with pardonable extravagance, to preach a sounder morality to the young, without at the same time condemning the society which encourages the prevailing immorality, is "worse than folly, it is crime."

It is on the lines along which Sénancour a century ago and Ellen Key to-day are great pioneers that the new forms of anterior or ideal theoretical morality are now moving, in advance, according to the general tendency in morals, of traditional

morality and even of practice.

There is one great modern movement of a definite kind which will serve to show how clearly sexual morality is to-day moving towards a new standpoint. This is the changing attitude of the bulk of the community towards both State marriage and religious marriage, and the growing tendency to disallow State interference with sexual relationships, apart from the production of children.

There has no doubt always been a tendency among the masses of the population in Europe to dispense with the official sanction of sexual relationships until such relationships have been well established and the hope of offspring has become justifiable. This tendency has been crystallized into recognized customs among numberless rural communities little touched either by the disturbing influences of the outside world or the controlling influences of theological Christian conceptions. But at the present day this tendency is not confined to the more primitive and isolated communities of Europe among whom, on the contrary, it has tended to die out. It is an unquestionable fact, says Professor Bruno Meyer, that far more than the half of sexual intercourse now takes place outside legal marriage.[269] It is among the intelligent classes and in prosperous and progressive communities that this movement is chiefly marked. We see throughout the world the practical common sense of the people shaping itself in the direction which has been pioneered by the ideal moralists who invariably precede the new growth of practical morality.

The voluntary childless marriages of to-day have served to show the possibility of such unions outside legal marriage, and such free unions are becoming, as Mrs. Parsons points out, "a progressive substitute for marriage."[270] The gradual but steady rise in the age for entering on legal marriage also points in the same direction, though it indicates not merely an increase of free unions but an increase of all forms of normal and abnormal sexuality outside marriage. Thus in England and Wales, in 1906, only 43 per 1,000 husbands and 146 per 1,000 wives were under age, while the average age for husbands was 28.6 years and for wives 26.4 years. For men the age has gone up some eight months during the past forty years, for women more than this. In the large cities, like London, where the possibilities of extra-matrimonial relationships are greater, the age for legal marriage is higher than in the country.

If we are to regard the age of legal marriage as, on the whole, the age at which the population enters into sexual unions, it is undoubtedly too late. Beyer, a leading German neurologist, finds that there are evils alike in early and in late marriage, and comes to the conclusion that in temperate zones the best age for women to marry is the twenty-first year, and for men the twenty-fifth year.

Yet, under bad economic conditions and with a rigid marriage law, early marriages are in every respect disastrous. They are among the poor a sign of destitution. The very poorest marry first, and they do so through the feeling that their condition cannot be worse. (Dr. Michael Ryan brought together much interesting evidence concerning the causes of early marriage in Ireland in his _Philosophy of Marriage_, 1837, pp. 58-72). Among the poor, therefore, early marriage is always a misfortune. "Many good people," says Mr. Thomas Holmes, Secretary of the Howard Association

and missionary at police courts (in an interview, _Daily Chronicle_, Sept. 8, 1906), "advise boys and girls to get married in order to prevent what they call a 'disgrace.' This I consider to be absolutely wicked, and it leads to far greater evils than it can possibly avert."

Early marriages are one of the commonest causes both of prostitution and divorce. They lead to prostitution in innumerable cases, even when no outward separation takes place. The fact that they lead to divorce is shown by the significant circumstance that in England, although only 146 per 1,000 women are under twenty-one at marriage, of the wives concerned in divorce cases, 280 per 1,000 were under twenty-one at marriage, and this discrepancy is even greater than it appears, for in the well-to-do class, which can alone afford the luxury of divorce, the normal age at marriage is much higher than for the population generally. Inexperience, as was long ago pointed out by Milton (who had learnt this lesson to his cost), leads to shipwreck in marriage. "They who have lived most loosely," he wrote, "prove most successful in their matches, because their wild affections, unsettling at will, have been so many divorces to teach them experience."

Miss Clapperton, referring to the educated classes, advocates very early marriage, even during student life, which might then be to some extent carried on side by side (_Scientific Meliorism_, Ch. XVII). Ellen Key, also, advocates early marriage. But she wisely adds that it involves the necessity for easy divorce. That, indeed, is the only condition which can render early marriage generally desirable. Young people--unless they possess very simple and inert natures--can neither foretell the course of their own development and their own strongest needs, nor estimate accurately the nature and quality of another personality. A marriage formed at an early age very speedily ceases to be a marriage in anything but name. Sometimes a young girl applies for a separation from her husband even on the very day after marriage.

The more or less permanent free unions formed among us in Europe are usually to be regarded merely as trial-marriages. That is to say they are a precaution rendered desirable both by uncertainty as to either the harmony or the fruitfulness of union until actual experiment has been made, and by the practical impossibility of otherwise rectifying any mistake in consequence of the antiquated rigidity of most European divorce laws. Such trial marriages are therefore demanded by prudence and caution, and as foresight increases with the development of civilization, and constantly grows among us, we may expect that there will be a parallel development in the frequency of trial marriage and in the social attitude towards such unions. The only alternative--that a radical reform in European marriage laws should render the divorce of a legal marriage as economical and as convenient as the divorce of a free marriage--cannot yet be expected, for law always lags behind public opinion and public practice.

If, however, we take a wider historical view, we find that we are in presence of a phenomenon which, though favored by modern conditions, is very ancient and widespread, dating, so far as Europe is concerned, from the time when the Church first sought to impose ecclesiastical marriage, so that it is practically a continuation of the ancient European custom of private marriage.

Trial-marriages pass by imperceptible gradations into the group of courtship customs which, while allowing the young couple to spend the night together, in a position of more or less intimacy, exclude, as a rule, actual sexual intercourse. Night-courtship flourishes in stable and well-knit European communities not liable to disorganization by contact with strangers. It seems to be specially common in Teutonic and Celtic lands, and is known by various names, as _Probenächte, fensterln, Kiltgang, hand-fasting, bundling, sitting-up, courting on the bed, etc_. It is well known in Wales; it is found in various English counties as in Cheshire; it existed in eighteenth century Ireland (according to Richard Twiss's _Travels_); in New England it was known as _tarrying_; in Holland it is called _questing_. In Norway, where it is called _night-running_, on account of the long distance between the homesteads, I am told that it is generally practiced, though the clergy preach against it; the young girl puts on several extra skirts and goes to bed, and the young man enters by door or window and goes to bed with her; they talk all night, and are not bound to marry unless it should happen that the girl becomes pregnant.

Rhys and Brynmor-Jones (_Welsh People_, pp. 582-4) have an interesting passage on this night-courtship with numerous references. As regards Germany see, e.g., Rudeck, _Geschichte der öffentlichen Sittlichkeit_, pp. 146-154. With reference to trial-marriage generally many facts and references are given by M.A. Potter (_Sohrab and Rustem_, pp. 129-137).

The custom of free marriage unions, usually rendered legal before or after the birth of children, seems to be fairly common in many, or perhaps all, rural parts of England. The union is made legal, if found satisfactory, even when there is no prospect of children. In some counties it is said to be almost a universal practice for the women to have sexual relationships before legal marriage; sometimes she marries the first man whom she tries; sometimes she tries several before finding the man who suits her. Such marriages necessarily, on the whole, turn out better than marriages in which the woman, knowing nothing of what awaits her and having no other experiences for comparison, is liable to be disillusioned or to feel that she "might have done better." Even when legal recognition is not sought until after the birth of children, it by no means follows that any moral deterioration is involved. Thus in some parts of Staffordshire where it is the custom of the women to have a child before marriage, notwithstanding this "corruption," we are told (Burton, _City of the Saints_, Appendix IV), the women are "very good neighbors, excellent, hard-working, and affectionate wives and mothers."

"The lower social classes, especially peasants," remarks Dr. Ehrhard ("Auch Ein Wort zur Ehereform," _Geschlecht und Gesellschaft_, Jahrgang I, Heft 10), "know better than we that the marriage bed is the foundation of marriage. On that account they have retained the primitive custom of trial-marriage which, in the Middle Ages, was still practiced even in the best circles. It has the further advantage that the marriage is not concluded until it has shown itself to be fruitful. Trial-marriage assumes, of course, that virginity is not valued beyond its true worth." With regard to this point it may be mentioned that in many parts of the world a woman is more highly esteemed if she has had intercourse before marriage (see, e.g., Potter, op. cit.,

pp. 163 et seq.). While virginity is one of the sexual attractions a woman may possess, an attraction that is based on a natural instinct (see "The Evolution of Modesty," in vol. i of these _Studies_), yet an exaggerated attention to virginity can only be regarded as a sexual perversion, allied to _paidophilia_, the sexual attraction to children.

In very small coördinated communities the primitive custom of trial-marriage tends to decay when there is a great invasion of strangers who have not been brought up to the custom (which seems to them indistinguishable from the license of prostitution), and who fail to undertake the obligations which trial-marriage involves. This is what happened in the case of the so-called "island custom" of Portland, which lasted well on into the nineteenth century; according to this custom a woman before marriage lived with her lover until pregnant and then married him; she was always strictly faithful to him while living with him, but if no pregnancy occurred the couple might decide that they were not meant for each other, and break off relations. The result was that for a long period of years no illegitimate children were born, and few marriages were childless. But when the Portland stone trade was developed, the workmen imported from London took advantage of the "island custom," but refused to fulfil the obligation of marriage when pregnancy occurred. The custom consequently fell into disuse (see, e.g., translator's note to Bloch's _Sexual Life of Our Time_, p. 237, and the quotation there given from Hutchins, _History and Antiquities of Dorset_, vol. ii, p. 820).

It is, however, by no means only in rural districts, but in great cities also that marriages are at the outset free unions. Thus in Paris Després stated more than thirty years ago (_La Prostitution à Paris_, p. 137) that in an average arrondissement nine out of ten legal marriages are the consolidation of a free union; though, while that was an average, in a few arrondissements it was only three out of ten. Much the same conditions prevail in Paris to-day; at least half the marriages, it is stated, are of this kind.

In Teutonic lands the custom of free unions is very ancient and well-established. Thus in Sweden, Ellen Key states (_Liebe und Ehe_, p. 123), the majority of the population begin married life in this way. The arrangement is found to be beneficial, and "marital fidelity is as great as pre-marital freedom is unbounded." In Denmark, also, a large number of children are conceived before the unions of the parents are legalized (Rubin and Westergaard, quoted by Gaedeken, _Archives d'Anthropologie Criminelle_, Feb. 15, 1909).

In Germany not only is the proportion of illegitimate births very high, since in Berlin it is 17 per cent., and in some towns very much higher, but ante-nuptial conceptions take place in nearly half the marriages, and sometimes in the majority. Thus in Berlin more than 40 per cent, of all legitimate firstborn children are conceived before marriage, while in some rural provinces (where the proportion of illegitimate births is lower) the percentage of marriages following ante-nuptial conceptions is much higher than in Berlin. The conditions in rural Germany have been especially investigated by a committee of Lutheran pastors, and were set forth a few years ago in two volumes, _Die Geschlecht-sittlich Verhältnisse im Deutschen

Reiche_, which are full of instruction concerning German sexual morality. In Hanover, it is said in this work, the majority of authorities state that intercourse before marriage is the rule. At the very least, a _probe_, or trial, is regarded as a matter-of-course preliminary to a marriage, since no one wishes "to buy a pig in a poke." In Saxony, likewise, we are told, it is seldom that a girl fails to have intercourse before marriage, or that her first child is not born, or at all events conceived, outside marriage. This is justified as a proper proving of a bride before taking her for good. "One does not buy even a penny pipe without trying it," a German pastor was informed. Around Stettin, in twelve districts (nearly half the whole), sexual intercourse before marriage is a recognized custom, and in the remainder, if not exactly a custom, it is very common, and is not severely or even at all condemned by public opinion. In some districts marriage immediately follows pregnancy. In the Dantzig neighborhood, again, according to the Lutheran Committee, intercourse before marriage occurs in more than half the cases, but marriage by no means always follows pregnancy. Nearly all the girls who go as servants have lovers, and country people in engaging servants sometimes tell them that at evening and night they may do as they like. This state of things is found to be favorable to conjugal fidelity. The German peasant girl, as another authority remarks (E.H. Meyer, _Deutsche Volkskunde_, 1898, pp. 154, 164), has her own room; she may receive her lover; it is no great shame if she gives herself to him. The number of women who enter legal marriage still virgins is not large (this refers more especially to Baden), but public opinion protects them, and such opinion is unfavorable to the disregard of the responsibilities involved by sexual relationships. The German woman is less chaste before marriage than her French or Italian sister. But, Meyer adds, she is probably more faithful after marriage than they are.

It is assumed by many that this state of German morality as it exists to-day is a new phenomenon, and the sign of a rapid national degeneration. That is by no means the case. In this connection we may accept the evidence of Catholic priests, who, by the experience of the confessional, are enabled to speak with authority. An old Bavarian priest thus writes (_Geschlecht und Gesellschaft_, 1907, Bd. ii, Heft I): "At Moral Congresses we hear laudation of 'the good old times' when, faith and morality prevailed among the people. Whether that is correct is another question. As a young priest I heard of as many and as serious sins as I now hear of as an old man. The morality of the people is not greater nor is it less. The error is the belief that immorality goes out of the towns and poisons the country. People talk as though the country were a pure Paradise of innocence. I will by no means call our country people immoral, but from an experience of many years I can say that in sexual respects there is no difference between town and country. I have learnt to know more than a hundred different parishes, and in the most various localities, in the mountain and in the plain, on poor land and on rich land. But everywhere I find the same morals and lack of morals. There are everywhere the same men, though in the country there are often better Christians than in the towns."

If, however, we go much farther back than the memories of a living man it seems highly probable that the sexual customs of the German people of the present day are not substantially different--though it may well be that at different periods different

circumstances have accentuated them--from what they were in the dawn of Teutonic history. This is the opinion of one of the profoundest students of Indo-Germanic origins. In his _Reallexicon_ (art. "Keuschheit") O. Schrader points out that the oft-quoted Tacitus, strictly considered, can only be taken to prove that women were chaste after marriage, and that no prostitution existed. There can be no doubt, he adds, and the earliest historical evidence shows, that women in ancient Germany were not chaste before marriage. This fact has been disguised by the tendency of the old classic writers to idealize the Northern peoples.

Thus we have to realize that the conception of "German virtue," which has been rendered so familiar to the world by a long succession of German writers, by no means involves any special devotion to the virtue of chastity. Tacitus, indeed, in the passage more often quoted in Germany than any other passage in classic literature, while correctly emphasizing the late puberty of the Germans and their brutal punishment of conjugal infidelity on the part of the wife, seemed to imply that they were also chaste. But we have always to remark that Tacitus wrote as a satirizing moralist as well as a historian, and that, as he declaimed concerning the virtues of the German barbarians, he had one eye on the Roman gallery whose vices he desired to lash. Much the same perplexing confusion has been created by Gildas, who, in describing the results of the Saxon Conquest of Britain, wrote as a preacher as well as a historian, and the same moral purpose (as Dill has pointed out) distorts Salvian's picture of the vices of fifth century Gaul. (I may add that some of the evidence in favor of the sexual freedom involved by early Teutonic faiths and customs is brought together in the study of "Sexual Periodicity" in the first volume of these _Studies_; cf. also, Rudeck, _Geschichte der öffentlichen Sittlichkeit in Deutschland_, 1897, pp. 146 et seq.).

The freedom and tolerance of Russian sexual customs is fairly well-known. As a Russian correspondent writes to me, "the liberalism of Russian manners enables youths and girls to enjoy complete independence. They visit each other alone, they walk out alone, and they return home at any hour they please. They have a liberty of movement as complete as that of grown-up persons; some avail themselves of it to discuss politics and others to make love. They are able also to procure any books they please; thus on the table of a college girl I knew I saw the _Elements of Social Science_, then prohibited in Russia; this girl lived with her aunt, but she had her own room, which only her friends were allowed to enter: her aunt or other relations never entered it. Naturally, she went out and came back at what hours she pleased. Many other college girls enjoy the same freedom in their families. It is very different in Italy, where girls have no freedom of movement, and can neither go out alone nor receive gentlemen alone, and where, unlike Russia, a girl who has sexual intercourse outside marriage is really 'lost' and 'dishonored'" (cf. _Sexual-Probleme_, Aug., 1908, p. 506).

It would appear that freedom of sexual relationships in Russia--apart from the influence of ancient custom--has largely been rendered necessary by the difficulty of divorce. Married couples, who were unable to secure divorce, separated and found new partners without legal marriage. In 1907, however, an attempt was made to

remedy this defect in the law; a liberal divorce law has been introduced, mutual consent with separation for a period of over a year being recognized as adequate ground for divorce (Beiblatt to _Geschlecht und Gesellschaft_, Bd. ii, Heft 5, p. 145).

During recent years there has developed among educated young men and women in Russia a movement of sexual license, which, though it is doubtless supported by the old traditions of sexual freedom, must by no means be confused with that freedom, since it is directly due to causes of an entirely different order. The strenuous revolutionary efforts made during the last years of the past century to attain political freedom absorbed the younger and more energetic section of the educated classes, involved a high degree of mental tension, and were accompanied by a tendency to asceticism. The prospect of death was constantly before their eyes, and any pre-occupation with sexual matters would have been felt as out of harmony with the spirit of revolution. But during the present century revolutionary activity has largely ceased. It has been, to a considerable extent, replaced by a movement of interest in sexual problems and of indulgence in sexual unrestraint, often taking on a somewhat licentious and sensual character. "Free love" unions have been formed by the students of both sexes for the cultivation of these tendencies. A novel, Artzibascheff's _Ssanin_, has had great influence in promoting these tendencies. It is not likely that this movement, in its more extravagant forms, will be of long duration. (For some account of this movement, see, e.g., Werner Daya, "Die Sexuelle Bewegung in Russland," _Zeitschrift für Sexualwissenschaft_, Aug., 1908; also, "Les Associations Erotiques en Russe," _Journal du Droit International Privé_, Jan., 1909, fully summarized in _Revue des Idées_, Feb., 1909.)

The movement of sexual freedom in Russia lies much deeper, however, than this fashion of sensual license; it is found in remote and uncontaminated parts of the country, and is connected with very ancient customs.

There is considerable interest in realizing the existence of long-continued sexual freedom--by some incorrectly termed "immorality," for what is in accordance with the customs or _mores_ of a people cannot be immoral--among peoples so virile and robust, so eminently capable of splendid achievements, as the Germans and the Russians. There is, however, a perhaps even greater interest in tracing the development of the same tendency among new prosperous and highly progressive communities who have either not inherited the custom of sexual freedom or are now only reviving it. We may, for instance, take the case of Australia and New Zealand. This development may not, indeed, be altogether recent. The frankness of sexual freedom in Australia and the tolerance in regard to it were conspicuous thirty years ago to those who came from England to live in the Southern continent, and were doubtless equally visible at an earlier date. It seems, however, to have developed with the increase of self-conscious civilization. "After careful inquiry," says the Rev. H. Northcote, who has lived for many years in the Southern hemisphere (_Christianity and Sex Problems_, Ch. VIII), "the writer finds sufficient evidence that of recent years intercourse out of wedlock has tended towards an actual increase in parts of Australia." Coghlan, the chief authority on Australian statistics, states more precisely in his _Childbirth in New South Wales_, published a few years ago: "The prevalence

of births of ante-nuptial conception--a matter hitherto little understood--has now been completely investigated. In New South Wales, during six years, there were 13,366 marriages, in respect of which there was ante-nuptial conception, and, as the total number of marriages was 49,641, at least twenty-seven marriages in a hundred followed conception. During the same period the illegitimate births numbered 14,779; there were, therefore, 28,145 cases of conception amongst unmarried women; in 13,366 instances marriage preceded the birth of the child, so that the children were legitimatized in rather more than forty-seven cases out of one hundred. A study of the figures of births of ante-nuptial conception makes it obvious that in a very large number of instances pre-marital intercourse is not an anticipation of marriage already arranged, but that the marriages are forced upon the parties, and would not be entered into were it not for the condition of the woman" (cf. Powys, _Biometrika_, vol. i, 1901-2, p. 30). That marriage should be, as Coghlan puts it, "forced upon the parties," is not, of course, desirable in the general moral interests, and it is also a sign of imperfect moral responsibility in the parties themselves.

The existence of such a state of things, in a young country belonging to a part of the world where the general level of prosperity, intelligence, morality and social responsibility may perhaps be said to be higher than in any other region inhabited by people of white race, is a fact of the very first significance when we are attempting to forecast the direction in which civilized morality is moving.

It is sometimes said, or at least implied, that in this movement women are taking only a passive part, and that the initiative lies with men who are probably animated by a desire to escape the responsibilities of marriage. This is very far from being the case.

The active part taken by German girls in sexual matters is referred to again and again by the Lutheran pastors in their elaborate and detailed report. Of the Dantzig district it is said "the young girls give themselves to the youths, or even seduce them." The military manoeuvres are frequently a source of unchastity in rural districts. "The fault is not merely with the soldiers, but chiefly with the girls, who become half mad as soon as they see a soldier," it is reported from the Dresden district. And in summarizing conditions in East Germany the report states: "In sexual wantonness girls are not behind the young men; they allow themselves to be seduced only too willingly; even grown-up girls often go with half-grown youths, and girls frequently give themselves to several men, one after the other. It is by no means always the youth who effects the seduction, it is very frequently the girls who entice the youth to sexual intercourse; they do not always wait till the men come to their rooms, but will go to the men's rooms and await them in their beds. With this inclination to sexual intercourse, it is not surprising that many believe that after sixteen no girl is a virgin. Unchastity among the rural laboring classes is universal, and equally pronounced in both sexes" (op. cit., vol. i, 218).

Among women of the educated classes the conditions are somewhat different. Restraints, both internal and external, are very much greater. Virginity, at all events in its physical fact, is retained, for the most part, till long past girlhood, and when it is lost that loss is concealed with a scrupulous care and prudence unknown to the

working-classes. Yet the fundamental tendencies remain the same. So far as England is concerned, Geoffrey Mortimer quite truly writes (_Chapters on Human Love_, 1898, p. 117) that the two groups of (1) women who live in constant secret association with a single lover, and (2) women who give themselves to men, without fear, from the force of their passions, are "much larger than is generally supposed. In all classes of society there are women who are only virgins by repute. Many have borne children without being even suspected of cohabitation; but the majority adopt methods of preventing conception. A doctor in a small provincial town declared to me that such irregular intimacies were the rule, and not by any means the exception in his district." As regards Germany, a lady doctor, Frau Adams-Lehmann, states in a volume of the Transactions of the German Society for Combating Venereal Disease (_Sexualpädagogik_, p. 271): "I can say that during consultation hours I see very few virgins over thirty. These women," she adds, "are sensible, courageous and natural, often the best of their sex; and we ought to give them our moral support. They are working towards a new age."

It is frequently stated that the pronounced tendency witnessed at the present time to dispense as long as possible with the formal ceremony of binding marriage is unfortunate because it places women in a disadvantageous position. In so far as the social environment in which she lives views with disapproval sexual relationship without formal marriage, the statement is obviously to that extent true, though it must be remarked, on the other hand, that when social opinion strongly favors legal marriage it acts as a compelling force in the direction of legitimating free unions. But if the absence of the formal marriage bond constituted a real and intrinsic disadvantage to women in sexual relations they would not show themselves so increasingly ready to dispense with it. And, as a matter of fact, those who are intimately acquainted with the facts declare that the absence of formal marriage tends to give increased consideration to women and is even favorable to fidelity and to the prolongation of the union. This seems to be true as regards people of the most different social classes and even of different races. It is probably based on fundamental psychological facts, for the sense of compulsion always tends to produce a movement of exasperation and revolt. We are not here concerned with the question as to how far formal marriage also is based on natural facts; that is a question which will come up for discussion at a later stage.

The advantage for women of free sexual unions over compulsory marriage is well recognized in the case of the working classes of London, among whom sexual relationships before marriage are not unusual, and are indulgently regarded. It is, for instance, clearly asserted in the monumental work of C. Booth, _Life and Labour of the People_. "It is even said of rough laborers," we read, for instance, in the final volume of this work (p. 41), "that they behave best if not married to the woman with whom they live." The evidence on this point is often the more impressive because brought forward by people who are very far indeed from being anxious to base any general conclusions on it. Thus in the same volume a clergyman is quoted as saying: "These people manage to live together fairly peaceably so long as they are not married, but if they marry it always seems to lead to blows and rows."

It may be said that in such a case we witness not so much the operation of a natural law as the influences of a great centre of civilization exerting its moralizing effects even on those who stand outside the legally recognized institution of marriage. That contention may, however, be thrust aside. We find exactly the same tendency in Jamaica where the population is largely colored, and the stress of a high civilization can scarcely be said to exist. Legal marriage is here discarded to an even greater extent than in London, for little care is taken to legitimate children by marriage. It was found by a committee appointed to inquire into the marriage laws of Jamaica, that three out of every five births are illegitimate, that is to say that legal illegitimacy has ceased to be immoral, having become the recognized custom of the majority of the inhabitants. There is no social feeling against illegitimacy. The men approve of the decay of legal marriage, because they say the women work better in the house when they are not married; the women approve of it, because they say that men are more faithful when not bound by legal marriage. This has been well brought out by W.P. Livingstone in his interesting book, _Black Jamaica_ (1899). The people recognize, he tells us (p. 210), that "faithful living together constitutes marriage;" they say that they are "married but not parsoned." One reason against legal marriage is that they are disinclined to incur the expense of the official sanction. (In Venezuela, it may be added, where also the majority of births take place outside official marriage, the chief reason is stated to be, not moral laxity, but the same disinclination to pay the expenses of legal weddings.) Frequently in later life, sometimes when they have grown up sons and daughters, couples go through the official ceremony. (In Abyssinia, also, it is stated by Hugues Le Roux, where the people are Christian and marriage is indissoluble and the ceremony expensive, it is not usual for married couples to make their unions legal until old age is coming on, _Sexual-Probleme_, April, 1908, p. 217.) It is significant that this condition of things in Jamaica, as elsewhere, is associated with the superiority of women. "The women of the peasant class," remarks Livingstone (p. 212), "are still practically independent of the men, and are frequently their superiors, both in physical and mental capacity." They refuse to bind themselves to a man who may turn out to be good for nothing, a burden instead of a help and protection. So long as the unions are free they are likely to be permanent. If made legal, the risk is that they will become intolerable, and cease by one of the parties leaving the other. "The necessity for mutual kindness and forbearance establishes a condition that is the best guarantee of permanency" (p. 214). It is said, however, that under the influence of religious and social pressure the people are becoming more anxious to adopt "respectable" ideas of sexual relationships, though it seems evident, in view of Livingstone's statement, that such respectability is likely to involve a decrease of real morality. Livingstone points out, however, one serious defect in the present conditions which makes it easy for immoral men to escape paternal responsibilities, and this is the absence of legal provision for the registration of the father's name on birth certificates (p. 256). In every country where the majority of births are illegitimate it is an obvious social necessity that the names of both parents should be duly registered on all birth certificates. It has been an unpardonable failure on the part of the Jamaican Government to neglect the simple measure needed to give "each child born in the country a legal father" (p. 258).

We thus see that we have to-day reached a position in which--partly owing to economic causes and partly to causes which are more deeply rooted in the tendencies involved by civilization--women are more often detached than of old from legal sexual relationship with men and both sexes are less inclined than in earlier stages of civilization to sacrifice their own independence even when they form such relationships. "I never heard of a woman over sixteen years of age who, prior to the breakdown of aboriginal customs after the coming of the whites, had not a husband," wrote Curr of the Australian Blacks.[271] Even as regards some parts of Europe, it is still possible to-day to make almost the same statement. But in all the richer, more energetic, and progressive countries very different conditions prevail. Marriage is late and a certain proportion of men, and a still larger proportion of women (who exceed the men in the general population) never marry at all.[272]

Before we consider the fateful significance of this fact of the growing proportion of adult unmarried women whose sexual relationships are unrecognized by the state and largely unrecognized altogether, it may be well to glance summarily at the two historical streams of tendency, both still in action among us, which affect the status of women, the one favoring the social equality of the sexes, the other favoring the social subjection of women. It is not difficult to trace these two streams both in conduct and opinion, in practical morality and in theoretical morality.

At one time it was widely held that in early states of society, before the establishment of the patriarchal stage which places women under the protection of men, a matriarchal stage prevailed in which women possessed supreme power.[273] Bachofen, half a century ago, was the great champion of this view. He found a typical example of a matriarchal state among the ancient Lycians of Asia Minor with whom, Herodotus stated, the child takes the name of the mother, and follows her status, not that of the father.[274] Such peoples, Bachofen believed, were gynæcocratic; power was in the hands of women. It can no longer be said that this opinion, in the form held by Bachofen, meets with any considerable support. As to the widespread prevalence of descent through the mother, there is no doubt whatever that it has prevailed very widely. But such descent through the mother, it has become recognized, by no means necessarily involves the power of the mother, and mother-descent may even be combined with a patriarchal system.[275] There has even been a tendency to run to the opposite extreme from Bachofen and to deny that mother-descent conferred any special claim for consideration on women. That, however, seems scarcely in accordance with the evidence and even in the absence of evidence could scarcely be regarded as probable. It would seem that we may fairly take as a type of the matriarchal family that based on the _ambil anak_ marriage of Sumatra, in which the husband lives in the wife's family, paying nothing and occupying a subordinate position. The example of the Lycians is here in point, for although, as reported by Herodotus, there is nothing to show that there was anything of the nature of a gynæcocracy in Lycia, we know that women in all these regions of Asia Minor enjoyed high consideration and influence, traces of which may be detected in the early literature and history of Christianity. A decisive and better known example of the favorable influence of mother-descent on the status of woman is afforded by the _beena_ marriage of early Arabia. Under such a system the wife is not only preserved

from the subjection involved by purchase, which always casts upon her some shadow of the inferiority belonging to property, but she herself is the owner of the tent and the household property, and enjoys the dignity always involved by the possession of property and the ability to free herself from her husband.[276]

It is also impossible to avoid connecting the primitive tendency to mother-descent, and the emphasis it involved on maternal rather than paternal generative energy, with the tendency to place the goddess rather than the god in the forefront of primitive pantheons, a tendency which cannot possibly fail to reflect honor on the sex to which the supreme deity belongs, and which may be connected with the large part which primitive women often play in the functions of religion. Thus, according to traditions common to all the central tribes of Australia, the woman formerly took a much greater share in the performance of sacred ceremonies which are now regarded as coming almost exclusively within the masculine province, and in at least one tribe which seems to retain ancient practices the women still actually take part in these ceremonies.[277] It seems to have been much the same in Europe. We observe, too, both in the Celtic pantheon and among Mediterranean peoples, that while all the ancient divinities have receded into the dim background yet the goddesses loom larger than the gods.[278] In Ireland, where ancient custom and tradition have always been very tenaciously preserved, women retained a very high position, and much freedom both before and after marriage. "Every woman," it was said, "is to go the way she willeth freely," and after marriage she enjoyed a better position and greater freedom of divorce than was afforded either by the Christian Church or the English common law.[279] There is less difficulty in recognizing that mother-descent was peculiarly favorable to the high status of women when we realize that even under very unfavorable conditions women have been able to exert great pressure on the men and to resist successfully the attempts to tyrannize over them.[280]

If we consider the status of woman in the great empires of antiquity we find on the whole that in their early stage, the stage of growth, as well as in their final stage, the stage of fruition, women tend to occupy a favorable position, while in their middle stage, usually the stage of predominating military organization on a patriarchal basis, women occupy a less favorable position. This cyclic movement seems to be almost a natural law of the development of great social groups. It was apparently well marked in the very stable and orderly growth of Babylonia. In the earliest times a Babylonian woman had complete independence and equal rights with her brothers and her husband; later (as shown by the code of Hamurabi) a woman's rights, though not her duties, were more circumscribed; in the still later Neo-Babylonian periods, she again acquired equal rights with her husband.[281]

In Egypt the position of women stood highest at the end, but it seems to have been high throughout the whole of the long course of Egyptian history, and continuously improving, while the fact that little regard was paid to prenuptial chastity and that marriage contracts placed no stress on virginity indicate the absence of the conception of women as property. More than three thousand five hundred years ago men and women were recognized as equal in Egypt. The high position of the Egyptian woman is significantly indicated by the fact that her child was never illegitimate;

illegitimacy was not recognized even in the case of a slave woman's child.[282] "It is the glory of Egyptian morality," says Amélineau, "to have been the first to express the Dignity of Woman."[283] The idea of marital authority was altogether unknown in Egypt. There can be no doubt that the high status of woman in two civilizations so stable, so vital, so long-lived, and so influential on human culture as Babylonia and Egypt, is a fact of much significance.

Among the Jews there seems to have been no intermediate stage of subordination of women, but instead a gradual progress throughout from complete subjection of the woman as wife to ever greater freedom. At first the husband could repudiate his wife at will without cause. (This was not an extension of patriarchal authority, but a purely marital authority.) The restrictions on this authority gradually increased, and begin to be observable already in the Book of Deuteronomy. The Mishnah went further and forbade divorce whenever the wife's condition inspired pity (as in insanity, captivity, etc.). By A.D. 1025, divorce was no longer possible except for legitimate reasons or by the wife's consent. At the same time, the wife also began to acquire the right of divorce in the form of compelling the husband to repudiate her on penalty of punishment in case of refusal. On divorce the wife became an independent woman in her own right, and was permitted to carry off the dowry which her husband gave her on marriage. Thus, notwithstanding Jewish respect for the letter of the law, the flexible jurisprudence of the Rabbis, in harmony with the growth of culture, accorded an ever-growing measure of sexual justice and equality to women (D.W. Amram, _The Jewish Law of Divorce_).

Among the Arabs the tendency of progress has also been favorable to women in many respects, especially as regards inheritance. Before Mahommed, in accordance with the system prevailing at Medina, women had little or no right of inheritance. The legislation of the Koran modified this rule, without entirely abolishing it, and placed women in a much better position. This is attributed largely to the fact that Mahommed belonged not to Medina, but to Mecca, where traces of matriarchal custom still survived (W. Marçais, _Des Parents et des Alliés Successibles en Droit Musulman_).

It may be pointed out--for it is not always realized--that even that stage of civilization--when it occurs--which involves the subordination and subjection of woman and her rights really has its origin in the need for the protection of women, and is sometimes even a sign of the acquirement of new privileges by women. They are, as it were, locked up, not in order to deprive them of their rights, but in order to guard those rights. In the later more stable phase of civilization, when women are no longer exposed to the same dangers, this motive is forgotten and the guardianship of woman and her rights seems, and indeed has really become, a hardship rather than an advantage.

Of the status of women at Rome in the earliest periods we know little or nothing; the patriarchal system was already firmly established when Roman history begins to become clear and it involved unusually strict subordination of the woman to her father first and then to her husband. But nothing is more certain than that the status of women in Rome rose with the rise of civilization, exactly in the same way as in

Babylonia and in Egypt. In the case of Rome, however, the growing refinement of civilization, and the expansion of the Empire, were associated with the magnificent development of the system of Roman law, which in its final forms consecrated the position of women. In the last days of the Republic women already began to attain the same legal level as men, and later the great Antonine jurisconsults, guided by their theory of natural law, reached the conception of the equality of the sexes as a principle of the code of equity. The patriarchal subordination of women fell into complete discredit, and this continued until, in the days of Justinian, under the influence of Christianity, the position of women began to suffer.[284] In the best days the older forms of Roman marriage gave place to a form (apparently old but not hitherto considered reputable) which amounted in law to a temporary deposit of the woman by her family. She was independent of her husband (more especially as she came to him with her own dowry) and only nominally dependent on her family. Marriage was a private contract, accompanied by a religious ceremony if desired, and being a contract it could be dissolved, for any reason, in the presence of competent witnesses and with due legal forms, after the advice of the family council had been taken. Consent was the essence of this marriage and no shame, therefore, attached to its dissolution. Nor had it any evil effect either on the happiness or the morals of Roman women.[285] Such a system is obviously more in harmony with modern civilized feeling than any system that has ever been set up in Christendom.

In Rome, also, it is clear that this system was not a mere legal invention but the natural outgrowth of an enlightened public feeling in favor of the equality of men and women, often even in the field of sexual morality. Plautus, who makes the old slave Syra ask why there is not the same law in this respect for the husband as for the wife,[286] had preceded the legist Ulpian who wrote: "It seems to be very unjust that a man demands chastity of his wife while he himself shows no example of it."[287] Such demands lie deeper than social legislation, but the fact that these questions presented themselves to typical Roman men indicates the general attitude towards women. In the final stage of Roman society the bond of the patriarchal system so far as women were concerned dwindled to a mere thread binding them to their fathers and leaving them quite free face to face with their husbands. "The Roman matron of the Empire," says Hobhouse, "was more fully her own mistress than the married woman of any earlier civilization, with the possible exception of a certain period of Egyptian history, and, it must be added, than the wife of any later civilization down to our own generation."[288]

On the strength of the statements of two satirical writers, Juvenal and Tacitus, it has been supposed by many that Roman women of the late period were given up to license. It is, however, idle to seek in satirists any balanced picture of a great civilization. Hobhouse (loc. cit., p. 216) concludes that on the whole, Roman women worthily retained the position of their husbands' companions, counsellors and friends which they had held when an austere system placed them legally in his power. Most authorities seem now to be of this opinion, though at an earlier period Friedländer expressed himself more dubiously. Thus Dill, in his judicious _Roman Society_ (p. 163), states that the Roman woman's position, both in law and in fact, rose during the Empire; without being less virtuous or respected, she became far more accomplished

and attractive; with fewer restraints she had greater charm and influence, even in public affairs, and was more and more the equal of her husband. "In the last age of the Western Empire there is no deterioration in the position and influence of women." Principal Donaldson, also, in his valuable historical sketch, _Woman_, considers (p. 113) that there was no degradation of morals in the Roman Empire; "the licentiousness of Pagan Rome is nothing to the licentiousness of Christian Africa, Rome, and Gaul, if we can put any reliance on the description of Salvian." Salvian's description of Christendom is probably exaggerated and one-sided, but exactly the same may be said in an even greater degree of the descriptions of ancient Rome left by clever Pagan satirists and ascetic Christian preachers.

It thus becomes necessary to leap over considerably more than a thousand years before we reach a stage of civilization in any degree approaching in height the final stage of Roman society. In the eighteenth and nineteenth centuries, at first in France, then in England, we find once more the moral and legal movement tending towards the equalization of women with men. We find also a long series of pioneers of that movement foreshadowing its developments: Mary Astor, "Sophia, a Lady of Quality," Ségur, Mrs. Wheeler, and very notably Mary Wollstonecraft in _A Vindication of the Rights of Woman_, and John Stuart Mill in _The Subjection of Women_.[289]

The main European stream of influences in this matter within historical times has involved, we can scarcely doubt when we take into consideration its complex phenomena as a whole, the maintenance of an inequality to the disadvantage of women. The fine legacy of Roman law to Europe was indeed favorable to women, but that legacy was dispersed and for the most part lost in the more predominating influence of tenacious Teutonic custom associated with the vigorously organized Christian Church. Notwithstanding that the facts do not all point in the same direction, and that there is consequently some difference of opinion, it seems evident that on the whole both Teutonic custom and Christian religion were unfavorable to the equality of women with men. Teutonic custom in this matter was determined by two decisive factors: (1) the existence of marriage by purchase which although, as Crawley has pointed out, it by no means necessarily involves the degradation of women, certainly tends to place them in an inferior position, and (2) pre-occupation with war which is always accompanied by a depreciation of peaceful and feminine occupations and an indifference to love. Christianity was at its origin favorable to women because it liberated and glorified the most essentially feminine emotions, but when it became an established and organized religion with definitely ascetic ideals, its whole emotional tone grew unfavorable to women. It had from the first excluded them from any priestly function. It now regarded them as the special representatives of the despised element of sex in life.[290] The eccentric Tertullian had once declared that woman was _janua Diaboli_; nearly seven hundred years later, even the gentle and philosophic Anselm wrote: _Femina fax est Satanæ_.[291]

Thus among the Franks, with whom the practice of monogamy prevailed, a woman was never free; she could not buy or sell or inherit without the permission of those to whom she belonged. She passed into the possession of her husband by acquisition, and when he fixed the wedding day he gave her parents coins of small money as

arrha, and the day after the wedding she received from him a present, the _morgengabe_. A widow belonged to her parents again (Bedollière, _Histoire de Moeurs des Français_, vol. i, p. 180). It is true that the Salic law ordained a pecuniary fine for touching a woman, even for squeezing her finger, but it is clear that the offence thus committed was an offence against property, and by no means against the sanctity of a woman's personality. The primitive German husband could sell his children, and sometimes his wife, even into slavery. In the eleventh century cases of wife-selling are still heard of, though no longer recognized by law.

The traditions of Christianity were more favorable to sexual equality than were Teutonic customs, but in becoming amalgamated with those customs they added their own special contribution as to woman's impurity. This spiritual inferiority of woman was significantly shown by the restrictions sometimes placed on women in church, and even in the right to enter a church; in some places they were compelled to remain in the narthex, even in non-monastic churches (see for these rules, Smith and Cheetham, _Dictionary of Christian Antiquities_, art. "Sexes, Separation of").

By attempting to desexualize the idea of man and to oversexualize the idea of woman, Christianity necessarily degraded the position of woman and the conception of womanhood. As Donaldson well remarks, in pointing this out (op. cit., p. 182), "I may define man as a male human being and woman as a female human being.... What the early Christians did was to strike the 'male' out of the definition of man, and 'human being' out of the definition of woman." Religion generally appears to be a powerfully depressing influence on the position of woman notwithstanding the appeal which it makes to woman. Westermarck considers, indeed (_Origin and Development of the Moral Ideas_, vol. i, p. 669), that religion "has probably been the most persistent cause of the wife's subjection to her husband's rule."

It is sometimes said that the Christian tendency to place women in an inferior spiritual position went so far that a church council formally denied that women have souls. This foolish story has indeed been repeated in a parrot-like fashion by a number of writers. The source of the story is probably to be found in the fact, recorded by Gregory of Tours, in his history (lib. viii, cap. XX), that at the Council of Mâcon, in 585, a bishop was in doubt as to whether the term "man" included woman, but was convinced by the other members of the Council that it did. The same difficulty has presented itself to lawyers in more modern times, and has not always been resolved so favorably to woman as by the Christian Council of Mâcon.

The low estimate of women that prevailed even in the early Church is admitted by Christian scholars. "We cannot but notice," writes Meyrick (art. "Marriage," Smith and Cheetham, _Dictionary of Christian Antiquities_), "even in the greatest of the Christian fathers a lamentably low estimate of woman, and consequently of the marriage relationship. Even St. Augustine can see no justification for marriage, except in a grave desire deliberately adopted of having children; and in accordance with this view, all married intercourse, except for this single purpose, is harshly condemned. If marriage is sought after for the sake of children, it is justifiable; if entered into as a _remedium_ to avoid worse evils, it is pardonable; the idea of the mutual society, help, and comfort that the one ought to have of the other, both in

prosperity and adversity, hardly existed, and could hardly yet exist."

From the woman's point of view, Lily Braun, in her important work on the woman question (_Die Frauenfrage_, 1901, pp. 28 et seq.) concludes that, in so far as Christianity was favorable to women, we must see that favorable influence in the placing of women on the same moral level as men, as illustrated in the saying of Jesus, "Let him who is without sin amongst you cast the first stone," implying that each sex owes the same fidelity. It reached, she adds, no further than this. "Christianity, which women accepted as a deliverance with so much enthusiasm, and died for as martyrs, has not fulfilled their hopes."

Even as regards the moral equality of the sexes in marriage, the position of Christian authorities was sometimes equivocal. One of the greatest of the Fathers, St. Basil, in the latter half of the fourth century, distinguished between adultery and fornication as committed by a married man; if with a married woman, it was adultery; if with an unmarried woman, it was merely fornication. In the former case, a wife should not receive her husband back; in the latter case, she should (art. "Adultery," Smith and Cheetham, _Dictionary of Christian Antiquities_). Such a decision, by attaching supreme importance to a distinction which could make no difference to the wife, involved a failure to recognize her moral personality. Many of the Fathers in the Western Church, however, like Jerome, Augustine, and Ambrose, could see no reason why the moral law should not be the same for the husband as for the wife, but as late Roman feeling both on the legal and popular side was already approximating to that view, the influence of Christianity was scarcely required to attain it. It ultimately received formal sanction in the Roman Canon Law, which decreed that adultery is equally committed by either conjugal party in two degrees: (1) _simplex_, of the married with the unmarried, and (2) _duplex_, of the married with the married.

It can scarcely be said, however, that Christianity succeeded in attaining the inclusion of this view of the moral equality of the sexes into actual practical morality. It was accepted in theory; it was not followed in practice. W.G. Sumner, discussing this question (_Folkways_, pp. 359-361), concludes: "Why are these views not in the _mores?_ Undoubtedly it is because they are dogmatic in form, invented or imposed by theological authority or philosophical speculation. They do not grow out of the experience of life, and cannot be verified by it. The reasons are in ultimate physiological facts, by virtue of which one is a woman and the other is a man." There is, however, more to be said on this point later.

It was probably, however, not so much the Church as Teutonic customs and the development of the feudal system, with the masculine and military ideals it fostered, that was chiefly decisive in fixing the inferior position of women in the mediæval world. Even the ideas of chivalry, which have often been supposed to be peculiarly favorable to women, so far as they affected women seem to have been of little practical significance.

In his great work on chivalry Gautier brings forward much evidence to show that the feudal spirit, like the military spirit always and everywhere, on the whole involved at bottom a disdain for women, even though it occasionally idealized them. "Go into

your painted and gilded rooms," we read in _Renaus de Montauban_, "sit in the shade, make yourselves comfortable, drink, eat, work tapestry, dye silk, but remember that you must not occupy yourselves with our affairs. Our business is to strike with the steel sword. Silence!" And if the woman insists she is struck on the face till the blood comes. The husband had a legal right to beat his wife, not only for adultery, but even for contradicting him. Women were not, however, entirely without power, and in a thirteenth century collection of _Coutumes_, it is set down that a husband must only beat his wife reasonably, _resnablement_. (As regards the husband's right to chastise his wife, see also Hobhouse, _Morals in Evolution_, vol. i, p. 234. In England it was not until the reign of Charles II, from which so many modern movements date, that the husband was deprived of this legal right.)

In the eyes of a feudal knight, it may be added, the beauty of a horse competed, often successfully, with the beauty of a woman. In _Girbers de Metz_, two knights, Garin and his cousin Girbert, ride by a window at which sits a beautiful girl with the face of a rose and the white flesh of a lily. "Look, cousin Girbert, look! By Saint Mary, a beautiful woman!" "Ah," Girbert replies, "a beautiful beast is my horse!" "I have never seen anything so charming as that young girl with her fresh color and her dark eyes," says Garin. "I know no steed to compare with mine," retorts Girbert. When the men were thus absorbed in the things that pertain to war, it is not surprising that amorous advances were left to young girls to make. "In all the _chansons de geste_," Gautier remarks, "it is the young girls who make the advances, often with effrontery," though, he adds, wives are represented as more virtuous (L. Gautier, _La Chevalerie_, pp. 236-8, 348-50).

In England Pollock and Maitland (_History of English Law_, vol. ii, p. 437) do not believe that a life-long tutela of women ever existed as among other Teutonic peoples. "From the Conquest onwards," Hobhouse states (op. cit., vol. i, p. 224), "the unmarried English woman, on attaining her majority, becomes fully equipped with all legal and civil rights, as much a legal personality as the Babylonian woman had been three thousand years before." But the developed English law more than made up for any privileges thus accorded to the unmarried by the inconsistent manner in which it swathed up the wife in endless folds of irresponsibility, except when she committed the supreme offence of injuring her lord and master. The English wife, as Hobhouse continues (loc. cit.) was, if not her husband's slave, at any rate his liege subject; if she killed him it was "petty treason," the revolt of a subject against a sovereign in a miniature kingdom, and a more serious offence than murder. Murder she could not commit in his presence, for her personality was merged in him; he was responsible for most of her crimes and offences (it was that fact which gave him the right to chastise her), and he could not even enter into a contract with her, for that would be entering into a contract with himself. "The very being and legal existence of a woman is suspended during marriage," said Blackstone, "or at least is incorporated and consolidated into that of her husband, under whose wing, protection and cover she performs everything. So great a favorite," he added, "is the female sex of the laws of England." "The strength of woman," says Hobhouse, interpreting the sense of the English law, "was her weakness. She conquered by yielding. Her gentleness had to be guarded from the turmoil of the world, her fragrance to be kept sweet and fresh,

away from the dust and the smoke of battle. Hence her need of a champion and guardian."

In France the wife of the mediæval and Renaissance periods occupied much the same position in her husband's house. He was her absolute master and lord, the head and soul of "the feminine and feeble creature" who owed to him "perfect love and obedience." She was his chief servant, the eldest of his children, his wife and subject; she signed herself "your humble obedient daughter and friend," when she wrote to him. The historian, De Maulde la Clavière, who has brought together evidence on this point in his _Femmes de la Renaissance_, remarks that even though the husband enjoyed this lofty and superior position in marriage, it was still generally he, and not the wife, who complained of the hardships of marriage.

Law and custom assumed that a woman should be more or less under the protection of a man, and even the ideals of fine womanhood which arose in this society, during feudal and later times, were necessarily tinged by the same conception. It involved the inequality of women as compared with men, but under the social conditions of a feudal society such inequality was to woman's advantage. Masculine force was the determining factor in life and it was necessary that every woman should have a portion of this force on her side. This sound and reasonable idea naturally tended to persist even after the growth of civilization rendered force a much less decisive factor in social life. In England in Queen Elizabeth's time no woman must be masterless, although the feminine subjects of Queen Elizabeth had in their sovereign the object lesson of a woman who could play a very brilliant and effective part in life and yet remain absolutely masterless. Still later, in the eighteenth century, even so fine a moralist as Shaftesbury, in his _Characteristics_, refers to lovers of married women as invaders of property. If such conceptions still ruled even in the best minds, it is not surprising that in the same century, even in the following century, they were carried out into practice by less educated people who frankly bought and sold women.

Schrader, in his _Reallexicon_ (art. "Brautkauf"), points out that, originally, the purchase of a wife was the purchase of her person, and not merely of the right of protecting her. The original conception probably persisted long in Great Britain on account of its remoteness from the centres of civilization. In the eleventh century Gregory VII desired Lanfranc to stop the sale of wives in Scotland and elsewhere in the island of the English (Pike, _History of Crime in England_, vol. i, p. 99). The practice never quite died out, however, in remote country districts.

Such transactions have taken place even in London. Thus in the _Annual Register_ for 1767 (p. 99) we read: "About three weeks ago a bricklayer's laborer at Marylebone sold a woman, whom he had cohabited with for several years, to a fellow-workman for a quarter guinea and a gallon of beer. The workman went off with the purchase, and she has since had the good fortune to have a legacy of £200, and some plate, left her by a deceased uncle in Devonshire. The parties were married last Friday."

The Rev. J. Edward Vaux (_Church Folk-lore_, second edition, p. 146) narrates two authentic cases in which women had been bought by their husbands in open market in the nineteenth century. In one case the wife, with her own full consent, was brought to market with a halter round her neck, sold for half a crown, and led to her new home, twelve miles off by the new husband who had purchased her; in the other case a publican bought another man's wife for a two-gallon jar of gin.

It is the same conception of woman as property which, even to the present, has caused the retention in many legal codes of clauses rendering a man liable to pay pecuniary damages to a woman, previously a virgin, whom he has intercourse with and subsequently forsakes (Natalie Fuchs, "Die Jungfernschaft im Recht und Sitte," _Sexual-Probleme_, Feb., 1908). The woman is "dishonored" by sexual intercourse, depreciated in her market value, exactly as a new garment becomes "second-hand," even if it has but once been worn. A man, on the other hand, would disdain the idea that his personal value could be diminished by any number of acts of sexual intercourse.

This fact has even led some to advocate the "abolition of physical virginity." Thus the German authoress of _Una Poenitentium_ (1907), considering that the protection of a woman is by no means so well secured by a little piece of membrane as by the presence of a true and watchful soul inside, advocates the operation of removal of the hymen in childhood. It is undoubtedly true that the undue importance attached to the hymen has led to a false conception of feminine "honor," and to an unwholesome conception of feminine purity.

Custom and law are slowly changing in harmony with changed social conditions which no longer demand the subjection of women either in their own interests or in the interests of the community. Concomitantly with these changes a different ideal of womanly personality is developing. It is true that the ancient ideal of the lordship of the husband over the wife is still more or less consciously affirmed around us. The husband frequently dictates to the wife what avocations she may not pursue, what places she may not visit, what people she may not know, what books she may not read. He assumes to control her, even in personal matters having no direct concern with himself, by virtue of the old masculine prerogative of force which placed a woman under the hand, as the ancient patriarchal legists termed it, of a man. It is, however, becoming more and more widely recognized that such a part is not suited to the modern man. The modern man, as Rosa Mayreder has pointed out in a thoughtful essay,[292] is no longer equipped to play this domineering part in relation to his wife. The "noble savage," leading a wild life on mountain and in forest, hunting dangerous beasts and scalping enemies when necessary, may occasionally bring his club gently and effectively on to the head of his wife, even, it may be, with grateful appreciation on her part.[293] But the modern man, who for the most part spends his days tamely at a desk, who has been trained to endure silently the insults and humiliations which superior officials or patronizing clients may inflict upon him, this typical modern man is no longer able to assume effectually the part of the "noble savage" when he returns to his home. He is indeed so unfitted for the part that his wife resents his attempts to play it. He is gradually recognizing this, even apart from any consciousness of the

general trend of civilization. The modern man of ideas recognizes that, as a matter of principle, his wife is entitled to equality with himself; the modern man of the world feels that it would be both ridiculous and inconvenient not to accord his wife much the same kind of freedom which he himself possesses. And, moreover, while the modern man has to some extent acquired feminine qualities, the modern woman has to a corresponding extent acquired masculine qualities.

Brief and summary as the preceding discussion has necessarily been, it will have served to bring us face to face with the central fact in the sexual morality which the growth of civilization has at the present day rendered inevitable: personal responsibility. "The responsible human being, man or woman, is the centre of modern ethics as of modern law;" that is the conclusion reached by Hobhouse in his discussion of the evolution of human morality.[294] The movement which is taking place among us to liberate sexual relationships from an excessive bondage to fixed and arbitrary regulations would have been impossible and mischievous but for the concomitant growth of a sense of personal responsibility in the members of the community. It could not indeed have subsisted for a single year without degenerating into license and disorder. Freedom in sexual relations involves mutual trust and that can only rest on a basis of personal responsibility. Where there can be no reliance on personal responsibility there can be no freedom. In most fields of moral action this sense of personal responsibility is acquired at a fairly early stage of social progress. Sexual morality is the last field of morality to be brought within the sphere of personal responsibility. The community imposes the most varied, complicated, and artificial codes of sexual morality on its members, especially its feminine members, and, naturally enough, it is always very suspicious of their ability to observe these codes, and is careful to allow them, so far as possible, no personal responsibility in the matter. But a training in restraint, when carried through a long series of generations, is the best preparation for freedom. The law laid on the earlier generations, as old theology stated the matter, has been the schoolmaster to bring the later generations to Christ; or, as new science expresses exactly the same idea, the later generations have become immunized and have finally acquired a certain degree of protection against the virus which would have destroyed the earlier generations.

The process by which a people acquires the sense of personal responsibility is slow, and perhaps it cannot be adequately acquired at all by races lacking a high grade of nervous organization. This is especially the case as regards sexual morality, and has often been illustrated on the contact of a higher with a lower civilization. It has constantly happened that missionaries--entirely against their own wishes, it need not be said--by overthrowing the strict moral system they have found established, and by substituting the freedom of European customs among people entirely unprepared for such freedom, have exerted the most disastrous effects on morality. This has been the case among the formerly well-organized and highly moral Baganda of Central Africa, as recorded in an official report by Colonel Lambkin (_British Medical Journal_, Oct. 3, 1908).

As regards Polynesia, also, R.L. Stevenson, in his interesting book, _In the South Seas_ (Ch. V), pointed out that, while before the coming of the whites the Polynesians were, on the whole, chaste, and the young carefully watched, now it is far otherwise.

Even in Fiji, where, according to Lord Stanmore--who was High Commissioner of the Pacific, and an independent critic--missionary effort has been "wonderfully successful," where all own at least nominal allegiance to Christianity, which has much modified life and character, yet chastity has suffered. This was shown by a Royal Commission on the condition of the native races in Fiji. Mr. Fitchett, commenting on this report (Australasian _Review of Reviews_, Oct., 1897) remarks: "Not a few witnesses examined by the commission declare that the moral advance in Fiji is of a curiously patchy type. The abolition of polygamy, for example, they say, has not told at every point in favor of women. The woman is the toiler in Fiji; and when the support of the husband was distributed over four wives, the burden on each wife was less than it is now, when it has to be carried by one. In heathen times female chastity was guarded by the club; a faithless wife, an unmarried mother, was summarily put to death. Christianity has abolished club-law, and purely moral restraints, or the terror of the penalties of the next world, do not, to the limited imagination of the Fijian, quite take its place. So the standard of Fijian chastity is distressingly low."

It must always be remembered that when the highly organized primitive system of mixed spiritual and physical restraints is removed, chastity becomes more delicately and unstably poised. The controlling power of personal responsibility, valuable and essential as it is, cannot permanently and unremittingly restrain the volcanic forces of the passion of love even in high civilizations. "No perfection of moral constitution in a woman," Hinlon has well said, "no power of will, no wish and resolution to be 'good,' no force of religion or control of custom, can secure what is called the virtue of woman. The emotion of absolute devotion with which some man may inspire her will sweep them all away. Society, in choosing to erect itself on that basis, chooses inevitable disorder, and so long as it continues to choose it will continue to have that result."

It is necessary to insist for a while on this personal responsibility in matters of sexual morality, in the form in which it is making itself felt among us, and to search out its implications. The most important of these is undoubtedly economic independence. That is indeed so important that moral responsibility in any fine sense can scarcely be said to have any existence in its absence. Moral responsibility and economic independence are indeed really identical; they are but two sides of the same social fact. The responsible person is the person who is able to answer for his actions and, if need be, to pay for them. The economically dependent person can accept a criminal responsibility; he can, with an empty purse, go to prison or to death. But in the ordinary sphere of everyday morality that large penalty is not required of him; if he goes against the wishes of his family or his friends or his parish, they may turn their backs on him but they cannot usually demand against him the last penalties of the law. He can exert his own personal responsibility, he can freely choose to go his own way and to maintain himself in it before his fellowmen on one condition, that he is able to pay for it. His personal responsibility has little or no

meaning except in so far as it is also economic independence.

In civilized societies as they attain maturity, the women tend to acquire a greater and greater degree alike of moral responsibility and economic independence. Any freedom and seeming equality of women, even when it actually assumes the air of superiority, which is not so based, is unreal. It is only on sufferance; it is the freedom accorded to the child, because it asks for it so prettily or may scream if it is refused. This is merely parasitism.[295] The basis of economic independence ensures a more real freedom. Even in societies which by law and custom hold women in strict subordination, the woman who happens to be placed in possession of property enjoys a high degree alike of independence and of responsibility.[296] The growth of a high civilization seems indeed to be so closely identified with the economic freedom and independence of women that it is difficult to say which is cause and which effect. Herodotus, in his fascinating account of Egypt, a land which he regarded as admirable beyond all other lands, noted with surprise that, totally unlike the fashion of Greece, women left the men at home to the management of the loom and went to market to transact the business of commerce.[297] It is the economic factor in social life which secures the moral responsibility of women and which chiefly determines the position of the wife in relation to her husband.[298] In this respect in its late stages civilization returns to the same point it had occupied at the beginning, when, as has already been noted, we find greater equality with men and at the same time greater economic independence.[299]

In all the leading modern civilized countries, for a century past, custom and law have combined to give an ever greater economic independence to women. In some respects England took the lead by inaugurating the great industrial movement which slowly swept women into its ranks,[300] and made inevitable the legal changes which, by 1882, insured to a married woman the possession of her own earnings. The same movement, with its same consequences, is going on elsewhere. In the United States, just as in England, there is a vast army of five million women, rapidly increasing, who earn their own living, and their position in relation to men workers is even better than in England. In France from twenty-five to seventy-five per cent. of the workers in most of the chief industries--the liberal professions, commerce, agriculture, factory industries--are women, and in some of the very largest, such as home industries and textile industries, more women are employed than men. In Japan, it is said, three-fifths of the factory workers are women, and all the textile industries are in the hands of women.[301] This movement is the outward expression of the modern conception of personal rights, personal moral worth, and personal responsibility, which, as Hobhouse has remarked, has compelled women to take their lives into their own hands, and has at the same time rendered the ancient marriage laws an anachronism, and the ancient ideals of feminine innocence shrouded from the world a mere piece of false sentiment.[302]

There can be no doubt that the entrance of women into the field of industrial work, in rivalry with men and under somewhat the same conditions as men, raises serious questions of another order. The general tendency of civilization towards the economic independence and the moral responsibility of women is unquestionable. But it is by

no means absolutely clear that it is best for women, and, therefore, for the community, that women should exercise all the ordinary avocations and professions of men on the same level as men. Not only have the conditions of the avocations and professions developed in accordance with the special aptitudes of men, but the fact that the sexual processes by which the race is propagated demand an incomparably greater expenditure of time and energy on the part of women than of men, precludes women in the mass from devoting themselves so exclusively as men to industrial work. For some biologists, indeed, it seems clear that outside the home and the school women should not work at all. "Any nation that works its women is damned," says Woods Hutchinson (_The Gospel According to Darwin_, p. 199). That view is extreme. Yet from the economic side, also, Hobson, in summing up this question, regards the tendency of machine-industry to drive women away from the home as "a tendency antagonistic to civilization." The neglect of the home, he states, is, "on the whole, the worst injury modern industry has inflicted on our lives, and it is difficult to see how it can be compensated by any increase of material products. Factory life for women, save in extremely rare cases, saps the physical and moral health of the family. The exigencies of factory life are inconsistent with the position of a good mother, a good wife, or the maker of a home. Save in extreme circumstances, no increase of the family wage can balance these losses, whose values stand upon a higher qualitative level" (J.A. Hobson, _Evolution of Modern Capitalism_, Ch. XII; cf. what has been said in Ch. I of the present volume). It is now beginning to be recognized that the early pioneers of the "woman's movement" in working to remove the "subjection of woman" were still dominated by the old ideals of that subjection, according to which the masculine is in all main respects the superior sex. Whatever was good for man, they thought, must be equally good for woman. That has been the source of all that was unbalanced and unstable, sometimes both a little pathetic and a little absurd, in the old "woman's movement." There was a failure to perceive that, first of all, women must claim their right to their own womanhood as mothers of the race, and thereby the supreme law-givers in the sphere of sex and the large part of life dependent on sex. This special position of woman seems likely to require a readjustment of economic conditions to their needs, though it is not likely that such readjustment would be permitted to affect their independence or their responsibility. We have had, as Madame Juliette Adam has put it, the rights of men sacrificing women, followed by the rights of women sacrificing the child; that must be followed by the rights of the child reconstituting the family. It has already been necessary to touch on this point in the first chapter of this volume, and it will again be necessary in the last chapter.

The question as to the method by which the economic independence of women will be completely insured, and the part which the community may be expected to take in insuring it, on the ground of woman's special child-bearing functions, is from the present point of view subsidiary. There can be no doubt, however, as to the reality of the movement in that direction, whatever doubt there may be as to the final adjustment of the details. It is only necessary in this place to touch on some of the general and more obvious respects in which the growth of woman's responsibility is affecting sexual morality.

The first and most obvious way in which the sense of moral responsibility works is in an insistence on reality in the relationships of sex. Moral irresponsibility has too often combined with economic dependence to induce a woman to treat the sexual event in her life which is biologically of most fateful gravity as a merely gay and trivial event, at the most an event which has given her a triumph over her rivals and over the superior male, who, on his part, willingly condescends, for the moment, to assume the part of the vanquished. "Gallantry to the ladies," we are told of the hero of the greatest and most typical of English novels, "was among his principles of honor, and he held it as much incumbent on him to accept a challenge to love as if it had been a challenge to fight;" he heroically goes home for the night with a lady of title he meets at a masquerade, though at the time very much in love with the girl whom he eventually marries.[303] The woman whose power lies only in her charms, and who is free to allow the burden of responsibility to fall on a man's shoulder,[304] could lightly play the seducing part, and thereby exert independence and authority in the only shapes open to her. The man on his part, introducing the misplaced idea of "honor" into the field from which the natural idea of responsibility has been banished, is prepared to descend at the lady's bidding into the arena, according to the old legend, and rescue the glove, even though he afterwards flings it contemptuously in her face. The ancient conception of gallantry, which Tom Jones so well embodies, is the direct outcome of a system involving the moral irresponsibility and economic dependence of women, and is as opposed to the conceptions, prevailing in the earlier and later civilized stages, of approximate sexual equality as it is to the biological traditions of natural courtship in the world generally.

In controlling her own sexual life, and in realizing that her responsibility for such control can no longer be shifted on to the shoulders of the other sex, women will also indirectly affect the sexual lives of men, much as men already affect the sexual lives of women. In what ways that influence will in the main be exerted it is still premature to say. According to some, just as formerly men bought their wives and demanded prenuptial virginity in the article thus purchased, so nowadays, among the better classes, women are able to buy their husbands, and in their turn are disposed to demand continence.[305] That, however, is too simple-minded a way of viewing the question. It is enough to refer to the fact that women are not attracted to virginal innocence in men and that they frequently have good ground for viewing such innocence with suspicion.[306] Yet it may well be believed that women will more and more prefer to exert a certain discrimination in the approval of their husbands' past lives. However instinctively a woman may desire that her husband shall be initiated in the art of making love to her, she may often well doubt whether the finest initiation is to be secured from the average prostitute. Prostitution, as we have seen, is ultimately as incompatible with complete sexual responsibility as is the patriarchal marriage system with which it has been so closely associated. It is an arrangement mainly determined by the demands of men, to whatever extent it may have incidentally subserved various needs of women. Men arranged that one group of women should be set apart to minister exclusively to their sexual necessities, while another group should be brought up in asceticism as candidates for the privilege of ministering to their household and family necessities. That this has been in many respects a most

excellent arrangement is sufficiently proved by the fact that it has nourished for so long a period, notwithstanding the influences that are antagonistic to it. But it is obviously only possible during a certain stage of civilization and in association with a certain social organization. It is not completely congruous with a democratic stage of civilization involving the economic independence and the sexual responsibility of both sexes alike in all social classes. It is possible that women may begin to realize this fact earlier than men.

It is also believed by many that women will realize that a high degree of moral responsibility is not easily compatible with the practice of dissimulation and that economic independence will deprive deceit--which is always the resort of the weak--of whatever moral justification it may possess. Here, however, it is necessary to speak with caution or we may be unjust to women. It must be remarked that in the sphere of sex men also are often the weak, and are therefore apt to resort to the refuge of the weak. With the recognition of that fact we may also recognize that deception in women has been the cause of much of the age-long blunders of the masculine mind in the contemplation of feminine ways. Men have constantly committed the double error of overlooking the dissimulation of women and of over-estimating it. This fact has always served to render more difficult still the inevitably difficult course of women through the devious path of sexual behavior. Pepys, who represents so vividly and so frankly the vices and virtues of the ordinary masculine mind, tells how one day when he called to see Mrs. Martin her sister Doll went out for a bottle of wine and came back indignant because a Dutchman had pulled her into a stable and tumbled and tossed her. Pepys having been himself often permitted to take liberties with her, it seemed to him that her indignation with the Dutchman was "the best instance of woman's falseness in the world."[307] He assumes without question that a woman who has accorded the privilege of familiarity to a man she knows and, one hopes, respects, would be prepared to accept complacently the brutal attentions of the first drunken stranger she meets in the street.

It was the assumption of woman's falseness which led the ultra-masculine Pepys into a sufficiently absurd error. At this point, indeed, we encounter what has seemed to some a serious obstacle to the full moral responsibility of women. Dissimulation, Lombroso and Ferrero argue, is in woman "almost physiological," and they give various grounds for this conclusion.[308] The theologians, on their side, have reached a similar conclusion. "A confessor must not immediately believe a woman's words," says Father Gury, "for women are habitually inclined to lie."[309] This tendency, which seems to be commonly believed to affect women as a sex, however free from it a vast number of individual women are, may be said, and with truth, to be largely the result of the subjection of women and therefore likely to disappear as that subjection disappears. In so far, however, as it is "almost physiological," and based on radical feminine characters, such as modesty, affectability, and sympathy, which have an organic basis in the feminine constitution and can therefore never altogether be changed, feminine dissimulation seems scarcely likely to disappear. The utmost that can be expected is that it should be held in check by the developed sense of moral responsibility, and, being reduced to its simply natural proportions, become recognizably intelligible.

It is unnecessary to remark that there can be no question here as to any inherent moral superiority of one sex over the other. The answer to that question was well stated many years ago by one of the most subtle moralists of love. "Taken altogether," concluded Sénancour (_De l'Amour_, vol. ii, p. 85), "we have no reason to assert the moral superiority of either sex. Both sexes, with their errors and their good intentions, very equally fulfil the ends of nature. We may well believe that in either of the two divisions of the human species the sum of evil and that of good are about equal. If, for instance, as regards love, we oppose the visibly licentious conduct of men to the apparent reserve of women, it would be a vain valuation, for the number of faults committed by women with men is necessarily the same as that of men with women. There exist among us fewer scrupulous men than perfectly honest women, but it is easy to see how the balance is restored. If this question of the moral preëminence of one sex over the other were not insoluble it would still remain very complicated with reference to the whole of the species, or even the whole of a nation, and any dispute here seems idle."

This conclusion is in accordance with the general compensatory and complementary relationship of women to men (see, e.g., Havelock Ellis, _Man and Woman_, fourth edition, especially pp. 448 et seq.).

In a recent symposium on the question whether women are morally inferior to men, with special reference to aptitude for loyalty (_La Revue_, Jan. 1, 1909), to which various distinguished French men and women contributed their opinions, some declared that women are usually superior; others regarded it as a question of difference rather than of superiority or inferiority; all were agreed that when they enjoy the same independence as men, women are quite as loyal as men.

It is undoubtedly true that--partly as a result of ancient traditions and education, partly of genuine feminine characteristics--many women are diffident as to their right to moral responsibility and unwilling to assume it. And an attempt is made to justify their attitude by asserting that woman's part in life is naturally that of self-sacrifice, or, to put the statement in a somewhat more technical form, that women are naturally masochistic; and that there is, as Krafft-Ebing argues, a natural "sexual subjection" of woman. It is by no means clear that this statement is absolutely true, and if it were true it would not serve to abolish the moral responsibility of women.

Bloch (_Beiträge zur Ætiologie der Psychopathia Sexualis_, Part II, p. 178), in agreement with Eulenburg, energetically denies that there is any such natural "sexual subjection" of women, regarding it as artificially produced, the result of the socially inferior position of women, and arguing that such subjection is in much higher degree a physiological characteristic of men than of women. (It has been necessary to discuss this question in dealing with "Love and Pain" in the third volume of these _Studies_.) It seems certainly clear that the notion that women are especially prone to self-sacrifice has little biological validity. Self-sacrifice by compulsion, whether physical or moral compulsion, is not worthy of the name; when it is deliberate it is simply the sacrifice of a lesser good for the sake of a greater good. Doubtless a man who eats a good dinner may be said to "sacrifice" his hunger. Even within the sphere of traditional morality a woman who sacrifices her "honor" for the

sake of her love to a man has, by her "sacrifice," gained something that she values more. "What a triumph it is to a woman," a woman has said, "to give pleasure to a man she loves!" And in a morality on a sound biological basis no "sacrifice" is here called for. It may rather be said that the biological laws of courtship fundamentally demand self-sacrifice of the male rather than of the female. Thus the lioness, according to Gérard the lion-hunter, gives herself to the most vigorous of her lion wooers; she encourages them to fight among themselves for superiority, lying on her belly to gaze at the combat and lashing her tail with delight. Every female is wooed by many males, but she only accepts one; it is not the female who is called upon for erotic self-sacrifice, but the male. That is indeed part of the divine compensation of Nature, for since the heavier part of the burden of sex rests on the female, it is fitting that she should be less called upon for renunciation.

It thus seems probable that the increase of moral responsibility may tend to make a woman's conduct more intelligible to others;[310] it will in any case certainly tend to make it less the concern of others. This is emphatically the case as regards the relations of sex. In the past men have been invited to excel in many forms of virtue; only one virtue has been open to women. That is no longer possible. To place upon a woman the main responsibility for her own sexual conduct is to deprive that conduct of its conspicuously public character as a virtue or a vice. Sexual union, for a woman as much as for a man, is a physiological fact; it may also be a spiritual fact; but it is not a social act. It is, on the contrary, an act which, beyond all other acts, demands retirement and mystery for its accomplishment. That indeed is a general human, almost zoölogical, fact. Moreover, this demand of mystery is more especially made by woman in virtue of her greater modesty which, we have found reason to believe, has a biological basis. It is not until a child is born or conceived that the community has any right to interest itself in the sexual acts of its members. The sexual act is of no more concern to the community than any other private physiological act. It is an impertinence, if not an outrage, to seek to inquire into it. But the birth of a child is a social act. Not what goes into the womb but what comes out of it concerns society. The community is invited to receive a new citizen. It is entitled to demand that that citizen shall be worthy of a place in its midst and that he shall be properly introduced by a responsible father and a responsible mother. The whole of sexual morality, as Ellen Key has said, revolves round the child.

At this final point in our discussion of sexual morality we may perhaps be able to realize the immensity of the change which has been involved by the development in women of moral responsibility. So long as responsibility was denied to women, so long as a father or a husband, backed up by the community, held himself responsible for a woman's sexual behavior, for her "virtue," it was necessary that the whole of sexual morality should revolve around the entrance to the vagina. It became absolutely essential to the maintenance of morality that all eyes in the community should be constantly directed on to that point, and the whole marriage law had to be adjusted accordingly. That is no longer possible. When a woman assumes her own moral responsibility, in sexual as in other matters, it becomes not only intolerable but meaningless for the community to pry into her most intimate physiological or spiritual acts. She is herself directly responsible to society as soon as she performs a

social act, and not before.

In relation to the fact of maternity the realization of all that is involved in the new moral responsibility of women is especially significant. Under a system of morality by which a man is left free to accept the responsibility for his sexual acts while a woman is not equally free to do the like, a premium is placed on sexual acts which have no end in procreation, and a penalty is placed on the acts which lead to procreation. The reason is that it is the former class of acts in which men find chief gratification; it is the latter class in which women find chief gratification. For the tragic part of the old sexual morality in its bearing on women was that while it made men alone morally responsible for sexual acts in which both a man and a woman took part, women were rendered both socially and legally incapable of availing themselves of the fact of masculine responsibility unless they had fulfilled conditions which men had laid down for them, and yet refrained from imposing upon themselves. The act of sexual intercourse, being the sexual act in which men found chief pleasure, was under all circumstances an act of little social gravity; the act of bringing a child into the world, which is for women the most massively gratifying of all sexual acts, was counted a crime unless the mother had before fulfilled the conditions demanded by man. That was perhaps the most unfortunate and certainly the most unnatural of the results of the patriarchal regulation of society. It has never existed in any great State where women have possessed some degree of regulative power.

It has, of course, been said by abstract theorists that women have the matter in their own hands. They must never love a man until they have safely locked him up in the legal bonds of matrimony. Such an argument is absolutely futile, for it ignores the fact that, while love and even monogamy are natural, legal marriage is merely an external form, with a very feeble power of subjugating natural impulses, except when those impulses are weak, and no power at all of subjugating them permanently. Civilization involves the growth of foresight, and of self-control in both sexes; but it is foolish to attempt to place on these fine and ultimate outgrowths of civilization a strain which they could never bear. How foolish it is has been shown, once and for all, by Lea in his admirable _History of Sacerdotal Celibacy_.

Moreover, when we compare the respective aptitudes of men and women in this particular region, it must be remembered that men possess a greater power of forethought and self-control than women, notwithstanding the modesty and reserve of women. The sexual sphere is immensely larger in women, so that when its activity is once aroused it is much more difficult to master or control. (The reasons were set out in detail in the discussion of "The Sexual Impulse in Women" in volume iii of these _Studies_.) It is, therefore, unfair to women, and unduly favors men, when too heavy a premium is placed on forethought and self-restraint in sexual matters. Since women play the predominant part in the sexual field their natural demands, rather than those of men, must furnish the standard.

With the realization of the moral responsibility of women the natural relations of life spring back to their due biological adjustment. Motherhood is restored to its natural sacredness. It becomes the concern of the woman herself, and not of society nor of any individual, to determine the conditions under which the child shall be

conceived. Society is entitled to require that the father shall in every case acknowledge the fact of his paternity, but it must leave the chief responsibility for all the circumstances of child-production to the mother. That is the point of view which is now gaining ground in all civilized lands both in theory and in practice.[311]

FOOTNOTES:

[257] E.g., E. Belfort Bax, _Outspoken Essays_, p. 6.

[258] Such reasons are connected with communal welfare. "All immoral acts result in communal unhappiness, all moral acts in communal happiness," as Prof. A. Mathews remarks, "Science and Morality," _Popular Science Monthly_, March, 1909.

[259] See Westermarck, _Origin and Development of the Moral Ideas_, vol. i, pp. 386-390, 522.

[260] Westermarck, _Origin and Development of the Moral Ideas_, pp. 9, 159; also the whole of Ch. VII. Actions that are in accordance with custom call forth public approval, actions that are opposed to custom call forth public resentment, and Westermarck powerfully argues that such approval and such resentment are the foundation of moral judgments.

[261] This is well recognized by legal writers (e.g., E.A. Schroeder, _Das Recht in der Geschlechtlichen Ordnung_, p. 5).

[262] W.G. Sumner (_Folkways_, p. 418) even considers it desirable to change the form of the word in order to emphasize the real and fundamental meaning of morals, and proposes the word _mores_ to indicate "popular usages and traditions conducive to societal reform." "'Immoral,'" he points out, "never means anything but contrary to the _mores_ of the time and place." There is, however, no need whatever to abolish or to supplement the good old ancient word "morality," so long as we clearly realize that, on the practical side, it means essentially custom.

[263] Westermarck, op. cit., vol. i, p. 19.

[264] See, e.g., "Exogamy and the Mating of Cousins," in _Essays Presented to E.B. Tylor_, 1907, p. 53. "In many departments of primitive life we find a naïve desire to, as it were, assist Nature, to affirm what is normal, and later to confirm it by the categorical imperative of custom and law. This tendency still flourishes in our civilized communities, and, as the worship of the normal, is often a deadly foe to the abnormal and eccentric, and too often paralyzes originality."

[265] The spirit of Christianity, as illustrated by Paulinus, in his _Epistle XXV_, was from the Roman point of view, as Dill remarks (_Roman Society_, p. 11), "a renunciation, not only of citizenship, but of all the hard-won fruits of civilization and social life."

[266] It thus happens that, as Lecky said in his _History of European Morals_, "of all the departments of ethics the questions concerning the relations of the sexes and the proper position of woman are those upon the future of which there rests the greatest uncertainty." Some progress has perhaps been made since these words were

written, but they still hold true for the majority of people.

[267] Concerning economic marriage as a vestigial survival, see, e.g., Bloch, _The Sexual Life of Our Time_, p. 212.

[268] Sénancour, _De l'Amour_, vol. ii, p. 233. The author of _The Question of English Divorce_ attributes the absence of any widespread feeling against sexual license to the absurd rigidity of the law.

[269] Bruno Meyer, "Etwas von Positiver Sexualreform," _Sexual-Probleme_, Nov., 1908.

[270] Elsie Clews Parsons, _The Family_, p. 351. Dr. Parsons rightly thinks such unions a social evil when they check the development of personality.

[271] For evidence regarding the general absence of celibacy among both savage and barbarous peoples, see, e.g., Westermarck, _History of Human Marriage_, Ch. VII.

[272] There are, for instance, two millions of unmarried women in France, while in Belgium 30 per cent, of the women, and in Germany sometimes even 50 per cent, are unmarried.

[273] Such a position would not be biologically unreasonable, in view of the greatly preponderant part played by the female in the sexual process which insures the conservation of the race. "If the sexual instinct is regarded solely from the physical side," says D.W.H. Busch (_Das Geschlechtsleben des Weibes_, 1839, vol. i, p. 201), "the woman cannot be regarded as the property of the man, but with equal and greater reason the man may be regarded as the property of the woman."

[274] Herodotus, Bk. i, Ch. CLXXIII.

[275] That power and relationship are entirely distinct was pointed out many years ago by L. von Dargun, _Mutterrecht und Vaterrecht_, 1892. Westermarck (_Origin and Development of the Moral Ideas_, vol. i, p. 655), who is inclined to think that Steinmetz has not proved conclusively that mother-descent involves less authority of husband over wife, makes the important qualification that the husband's authority is impaired when he lives among his wife's kinsfolk.

[276] Robertson Smith, _Kinship and Marriage in Early Arabia_; J.G. Frazer has pointed out (_Academy_, March 27, 1886) that the partially Semitic peoples on the North frontier of Abyssinia, not subjected to the revolutionary processes of Islam, preserve a system closely resembling _beena_ marriage, as well as some traces of the opposite system, by Robertson Smith called _ba'al_ marriage, in which the wife is acquired by purchase and becomes a piece of property.

[277] Spencer and Gillen, _Northern Tribes of Central Australia_, p. 358.

[278] Rhys and Brynmor-Jones, _The Welsh People_, pp. 55-6; cf. Rhys, _Celtic Heathendom_, p. 93.

[279] Rhys and Brynmor-Jones, op. cit., p. 214.

[280] Crawley (_The Mystic Rose_, p. 41 et seq.) gives numerous instances.

[281] Revillout, "La Femme dans l'Antiquité," _Journal Asiatique_, 1906, vol. vii, p. 57. See, also, Victor Marx, _Beiträge zur Assyriologie_, 1899, Bd. iv, Heft 1.

[282] Donaldson, _Woman_, pp. 196, 241 et seq. Nietzold, (_Die Ehe in_ "_Agypten_," p. 17), thinks the statement of Diodorus that no children were illegitimate, needs qualification, but that certainly the illegitimate child in Egypt was at no social disadvantage.

[283] Amélineau, _La Morale Egyptienne_, p. 194; Hobhouse, _Morals in Evolution_, vol. i, p. 187; Flinders Petrie, _Religion and Conscience in Ancient Egypt_, pp. 131 et seq.

[284] Maine, _Ancient Law_, Ch. V.

[285] Donaldson, _Woman_, pp. 109, 120.

[286] _Mercator_, iv, 5.

[287] Digest XLVIII, 13, 5.

[288] Hobhouse, _Morals in Evolution_, vol. i, p. 213.

[289] For an account of the work of some of the less known of these pioneers, see a series of articles by Harriet McIlquham in the _Westminster Review_, especially Nov., 1898, and Nov., 1903.

[290] The influence of Christianity on the position of women has been well discussed by Lecky, _History of European Morals_, vol. ii, pp. 316 et seq., and more recently by Donaldson, _Woman_, Bk. iii.

[291] Migne, _Patrologia_, vol. clviii, p. 680.

[292] Rosa Mayreder, "Einiges über die Starke Faust," _Zur Kritik der Weiblichkeit_, 1905.

[293] Rasmussen (_People of the Polar North_, p. 56), describes a ferocious quarrel between husband and wife, who each in turn knocked the other down. "Somewhat later, when I peeped in, they were lying affectionately asleep, with their arms around each other."

[294] Hobhouse, _Morals in Evolution_, vol. ii, p. 367. Dr. Stöcker, in _Die Liebe und die Frauen_, also insists on the significance of this factor of personal responsibility.

[295] Olive Schreiner has especially emphasized the evils of parasitism for women. "The increased wealth of the male," she remarks ("The Woman's Movement of Our Day," _Harper's Bazaar_, Jan., 1902), "no more of necessity benefits and raises the female upon whom he expends it, than the increased wealth of his mistress necessarily benefits, mentally or physically, a poodle, because she can then give him a down cushion in place of one of feathers, and chicken in place of beef." Olive Schreiner believes that feminine parasitism is a danger which really threatens society at the present time, and that if not averted "the whole body of females in civilized

societies must sink into a state of more or less absolute dependence."

[296] In Rome and in Japan, Hobhouse notes (op. cit., vol. i, pp. 169, 176), the patriarchal system reached its fullest extension, yet the laws of both these countries placed the husband in a position of practical subjugation to a rich wife.

[297] Herodotus, Bk. ii, Ch. XXXV. Herodotus noted that it was the woman and not the man on whom the responsibility for supporting aged parents rested. That alone involved a very high economic position of women. It is not surprising that to some observers, as to Diodorus Siculus, it seemed that the Egyptian woman was mistress over her husband.

[298] Hobhouse (loc. cit.), Hale, and also Grosse, believe that good economic position of a people involves high position of women. Westermarck (_Moral Ideas_, vol. i, p. 661), here in agreement with Olive Schreiner, thinks this statement cannot be accepted without modification, though agreeing that agricultural life has a good effect on woman's position, because they themselves become actively engaged in it. A good economic position has no real effect in raising woman's position, unless women themselves take a real and not merely parasitic part in it.

[299] Westermarck (_Moral Ideas_, vol. i, Ch. XXVI, vol. ii, p. 29) gives numerous references with regard to the considerable proprietary and other privileges of women among savages which tend to be lost at a somewhat higher stage of culture.

[300] The steady rise in the proportion of women among English workers in machine industries began in 1851. There are now, it is estimated, three and a half million women employed in industrial occupations, beside a million and a half domestic servants. (See for details, James Haslam, in a series of papers in the _Englishwoman_ 1909.)

[301] See, e.g., J.A. Hobson, _The Evolution of Modern Capitalism_, second edition, 1907, Ch. XII, "Women in Modern Industry."

[302] Hobhouse, op. cit., vol. i, p. 228.

[303] Fielding, _Tom Jones_, Bk. iii, Ch. VII.

[304] Even the Church to some extent adopted this allotment of the responsibility, and "solicitation," i.e., the sin of a confessor in seducing his female penitent, is constantly treated as exclusively the confessor's sin.

[305] Adolf Gerson, _Sexual-Probleme_, Sept., 1908, p. 547.

[306] It has already been necessary to refer to the unfortunate results which may follow the ignorance of husbands (see, e.g., "The Sexual Impulse in Women," vol. iii of these _Studies_), and will be necessary again in Ch. XI of the present volume.

[307] Pepys, _Diary_, ed. Wheatley, vol. vii, p. 10.

[308] Lombroso and Ferrero, _La Donna Delinquente_; cf. Havelock Ellis, _Man and Woman_, fourth edition, p. 196.

[309] Gury, _Théologie Morale_, art. 381.

[310] "Men will not learn what women are," remarks Rosa Mayreder (_Zur Kritik der Weiblichkeit_, p. 199), "until they have left off prescribing what they ought to be."

[311] It has been set out, for instance, by Professor Wahrmund in _Ehe und Eherecht_, 1908. I need scarcely refer again to the writings of Ellen Key, which may be said to be almost epoch-making in their significance, especially (in German translation) _Ueber Liebe und Ehe_ (also French translation), and (in English translation, Putnam, 1909), the valuable, though less important work, _The Century of the Child_. See also Edward Carpenter, _Love's Coming of Age_; Forel, _Die Sexuelle Frage_ (English translation, abridged, _The Sexual Question_, Rebman, 1908); Bloch, _Sexualleben unsere Zeit_ (English translation, _The Sexual Life of Our Time_, Rebman, 1908); Helene Stöcker, _Die Liebe und die Frauen_, 1906; and Paul Lapie, _La Femme dans la Famille_, 1908.

CHAPTER X.

MARRIAGE.

The Definition of Marriage--Marriage Among Animals--The Predominance of Monogamy--The Question of Group Marriage--Monogamy a Natural Fact, Not Based on Human Law--The Tendency to Place the Form of Marriage Above the Fact of Marriage--The History of Marriage--Marriage in Ancient Rome--Germanic Influence on Marriage--Bride-Sale--The Ring--The Influence of Christianity on Marriage--The Great Extent of This Influence--The Sacrament of Matrimony--Origin and Growth of the Sacramental Conception--The Church Made Marriage a Public Act--Canon Law--Its Sound Core--Its Development--Its Confusions and Absurdities--Peculiarities of English Marriage Law--Influence of the Reformation on Marriage--The Protestant Conception of Marriage as a Secular Contract--The Puritan Reform of Marriage--Milton as the Pioneer of Marriage Reform--His Views on Divorce--The Backward Position of England in Marriage Reform--Criticism of the English Divorce Law--Traditions of the Canon Law Still Persistent--The Question of Damages for Adultery--Collusion as a Bar to Divorce--Divorce in France, Germany, Austria, Russia, etc.--The United States--Impossibility of Deciding by Statute the Causes for Divorce--Divorce by Mutual Consent--Its Origin and Development--Impeded by the Traditions of Canon Law--Wilhelm von Humboldt--Modern Pioneer Advocates of Divorce by Mutual Consent--The Arguments Against Facility of Divorce--The Interests of the Children--The Protection of Women--The Present Tendency of the Divorce Movement--Marriage Not a Contract--The Proposal of Marriage for a Term of Years--Legal Disabilities and Disadvantages in the Position of the Husband and the Wife--Marriage Not a Contract But a Fact--Only the Non-Essentials of Marriage, Not the Essentials, a Proper Matter for Contract--The Legal Recognition of Marriage as a Fact Without Any Ceremony--Contracts of the Person Opposed to Modern Tendencies--The Factor of Moral Responsibility--Marriage as an Ethical Sacrament--Personal Responsibility Involves Freedom--Freedom the Best Guarantee of Stability--False Ideas of Individualism--Modern Tendency of Marriage--With the Birth of a Child Marriage Ceases to be a Private Concern--Every Child Must Have a Legal Father and Mother--How This Can be Effected--The Firm Basis of

Monogamy--The Question of Marriage Variations--Such Variations Not Inimical to Monogamy--The Most Common Variations--The Flexibility of Marriage Holds Variations in Check--Marriage Variations _versus_ Prostitution--Marriage on a Reasonable and Humane Basis--Summary and Conclusion.

The discussion in the previous chapter of the nature of sexual morality, with the brief sketch it involved of the direction in which that morality is moving, has necessarily left many points vague. It may still be asked what definite and precise forms sexual unions are tending to take among us, and what relation these unions bear to the religious, social, and legal traditions we have inherited. These are matters about which a very considerable amount of uncertainty seems to prevail, for it is not unusual to hear revolutionary or eccentric opinions concerning them.

Sexual union, involving the cohabitation, temporary or permanent, of two or more persons, and having for one of its chief ends the production and care of offspring, is commonly termed marriage. The group so constituted forms a family. This is the sense in which the words "marriage" and the "family" are most properly used, whether we speak of animals or of Man. There is thus seen to be room for variation as regards both the time during which the union lasts, and the number of individuals who form it, the chief factor in the determination of these points being the interests of the offspring. In actual practice, however, sexual unions, not only in Man but among the higher animals, tend to last beyond the needs of the offspring of a single season, while the fact that in most species the numbers of males and females are approximately equal makes it inevitable that both among animals and in Man the family is produced by a single sexual couple, that is to say that monogamy is, with however many exceptions, necessarily the fundamental rule.

It will thus be seen that marriage centres in the child, and has at the outset no reason for existence apart from the welfare of the offspring. Among those animals of lowly organization which are able to provide for themselves from the beginning of existence there is no family and no need for marriage. Among human races, when sexual unions are not followed by offspring, there may be other reasons for the continuance of the union but they are not reasons in which either Nature or society is in the slightest degree directly concerned. The marriage which grew up among animals by heredity on the basis of natural selection, and which has been continued by the lower human races through custom and tradition, by the more civilized races through the superimposed regulative influence of legal institutions, has been marriage for the sake of the offspring.[312] Even in civilized races among whom the proportion of sterile marriages is large, marriage tends to be so constituted as always to assume the procreation of children and to involve the permanence required by such procreation.

Among birds, which from the point of view of erotic development stand at the head of the animal world, monogamy frequently prevails (according to some estimates among 90 per cent.), and unions tend to be permanent; there is an approximation to the same condition among some of the higher mammals, especially the anthropoid apes; thus among gorillas and oran-utans permanent monogamic marriages take place, the young sometimes remaining with the parents to the age of six, while any

approach to loose behavior on the part of the wife is severely punished by the husband. The variations that occur are often simply matters of adaptation to circumstances; thus, according to J.G. Millais (_Natural History of British Ducks_, pp. 8, 63), the Shoveler duck, though normally monogamic, will become polyandric when males are in excess, the two males being in constant and amicable attendance on the female without signs of jealousy; among the monogamic mallards, similarly, polygyny and polyandry may also occur. See also R.W. Shufeldt, "Mating Among Birds," _American Naturalist_, March, 1907; for mammal marriages, a valuable paper by Robert Müller, "Säugethierehen," _Sexual-Probleme_, Jan., 1909, and as regards the general prevalence of monogamy, Woods Hutchinson, "Animal Marriage," _Contemporary Review_, Oct., 1904, and Sept., 1905.

There has long been a dispute among the historians of marriage as to the first form of human marriage. Some assume a primitive promiscuity gradually modified in the direction of monogamy; others argue that man began where the anthropoid apes left off, and that monogamy has prevailed, on the whole, throughout. Both these opposed views, in an extreme form, seem untenable, and the truth appears to lie midway. It has been shown by various writers, and notably Westermarck (_History of Human Marriage_, Chs. IV-VI), that there is no sound evidence in favor of primitive promiscuity, and that at the present day there are few, if any, savage peoples living in genuine unrestricted sexual promiscuity. This theory of a primitive promiscuity seems to have been suggested, as J.A. Godfrey has pointed out (_Science of Sex_, p. 112), by the existence in civilized societies of promiscuous prostitution, though this kind of promiscuity was really the result, rather than the origin, of marriage. On the other hand, it can scarcely be said that there is any convincing evidence of primitive strict monogamy beyond the assumption that early man continued the sexual habits of the anthropoid apes. It would seem probable, however, that the great forward step involved in passing from ape to man was associated with a change in sexual habits involving the temporary adoption of a more complex system than monogamy. It is difficult to see in what other social field than that of sex primitive man could find exercise for the developing intellectual and moral aptitudes, the subtle distinctions and moral restraints, which the strict monogamy practiced by animals could afford no scope for. It is also equally difficult to see on what basis other than that of a more closely associated sexual system the combined and harmonious efforts needed for social progress could have developed. It is probable that at least one of the motives for exogamy, or marriage outside the group, is (as was probably first pointed out by St. Augustine in his _De Civitate Dei_) the need of creating a larger social circle, and so facilitating social activities and progress. Exactly the same end is effected by a complex marriage system binding a large number of people together by common interests. The strictly small and confined monogamic family, however excellently it subserved the interests of the offspring, contained no promise of a wider social progress. We see this among both ants and bees, who of all animals, have attained the highest social organization; their progress was only possible through a profound modification of the systems of sexual relationship. As Espinas said many years ago (in his suggestive work, _Des Sociétés Animales_): "The cohesion of the family and the probabilities for the birth of societies are inverse." Or, as Schurtz more recently

pointed out, although individual marriage has prevailed more or less from the first, early social institutions, early ideas and early religion involved sexual customs which modified a strict monogamy.

The most primitive form of complex human marriage which has yet been demonstrated as still in existence is what is called group-marriage, in which all the women of one class are regarded as the actual, or at all events potential, wives of all the men in another class. This has been observed among some central Australian tribes, a people as primitive and as secluded from external influence as could well be found, and there is evidence to show that it was formerly more widespread among them. "In the Urabunna tribe, for example," say Spencer and Gillen, "a group of men actually do have, continually and as a normal condition, marital relations with a group of women. This state of affairs has nothing whatever to do with polygamy any more than it has with polyandry. It is simply a question of a group of men and a group of women who may lawfully have what we call marital relations. There is nothing whatever abnormal about it, and, in all probability, this system of what has been called group marriage, serving as it does to bind more or less closely together groups of individuals who are mutually interested in one another's welfare, has been one of the most powerful agents in the early stages of the upward development of the human race" (Spencer and Gillen, _Northern Tribes of Central Australia_, p. 74; cf. A.W. Howitt, _The Native Tribes of South-East Australia_). Group-marriage, with female descent, as found in Australia, tends to become transformed by various stages of progress into individual marriage with descent in the male line, a survival of group-marriage perhaps persisting in the much-discussed _jus primæ noctis_. (It should be added that Mr. N.W. Thomas, in his book on _Kinship and Marriage in Australia_, 1908, concludes that group-marriage in Australia has not been demonstrated, and that Professor Westermarck, in his _Origin and Development of the Moral Ideas_, as in his previous _History of Human Marriage_, maintains a skeptical opinion in regard to group-marriage generally; he thinks the Urabunna custom may have developed out of ordinary individual marriage, and regards the group-marriage theory as "the residuary legatee of the old theory of promiscuity." Durkheim also believes that the Australian marriage system is not primitive, "Organisation Matrimoniale Australienne," _L'Année Sociologique_, eighth year, 1905). With the attainment of a certain level of social progress it is easy to see that a wide and complicated system of sexual relationships ceases to have its value, and a more or less qualified monogamy tends to prevail as more in harmony with the claims of social stability and executive masculine energy.

The best historical discussion of marriage is still probably Westermarck's _History of Human Marriage_, though at some points it now needs to be corrected or supplemented; among more recent books dealing with primitive sexual conceptions may be specially mentioned Crawley's _Mystic Rose_, while the facts concerning the transformation of marriage among the higher human races are set forth in G.E. Howard's _History of Matrimonial Institutions_ (3 vols.), which contains copious bibliographical references. There is an admirably compact, but clear and comprehensive, sketch of the development of modern marriage in Pollock and Maitland, _History of English Law_, vol. ii.

It is necessary to make allowance for variations, thereby shunning the extreme theorists who insist on moulding all facts to their theories, but we may conclude that--as the approximately equal number of the sexes indicates--in the human species, as among many of the higher animals, a more or less permanent monogamy has on the whole tended to prevail. That is a fact of great significance in its implications. For we have to realize that we are here in the presence of a natural fact. Sexual relationships, in human as in animal societies, follow a natural law, oscillating on each side of the norm, and there is no place for the theory that that law was imposed artificially. If all artificial "laws" could be abolished the natural order of the sexual relationships would continue to subsist substantially as at present. Virtue, said Cicero, is but Nature carried out to the utmost. Or, as Holbach put it, arguing that our institutions tend whither Nature tends, "art is only Nature acting by the help of the instruments she has herself made." Shakespeare had already seen much the same truth when he said that the art which adds to Nature "is an art that Nature makes." Law and religion have buttressed monogamy; it is not based on them but on the needs and customs of mankind, and these constitute its completely adequate sanctions.[313] Or, as Cope put it, marriage is not the creation of law but the law is its creation.[314] Crawley, again, throughout his study of primitive sex relationships, emphasizes the fact that our formal marriage system is not, as so many religious and moral writers once supposed, a forcible repression of natural impulses, but merely the rigid crystallization of those natural impulses, which in a more fluid form have been in human nature from the first. Our conventional forms, we must believe, have not introduced any elements of value, while in some respects they have been mischievous.

It is necessary to bear in mind that the conclusion that monogamic marriage is natural, and represents an order which is in harmony with the instincts of the majority of people, by no means involves agreement with the details of any particular legal system of monogamy. Monogamic marriage is a natural biological fact, alike in many animals and in man. But no system of legal regulation is a natural biological fact. When a highly esteemed alienist, Dr. Clouston, writes (_The Hygiene of Mind_, p. 245) "there is only one natural mode of gratifying sexual _nisus_ and reproductive instinct, that of marriage," the statement requires considerable exegesis before it can be accepted, or even receive an intelligible meaning, and if we are to understand by "marriage" the particular form and implications of the English marriage law, or even of the somewhat more enlightened Scotch law, the statement is absolutely false. There is a world of difference, as J.A. Godfrey remarks (_The Science of Sex_, 1901, p. 278), between natural monogamous marriage and our legal system; "the former is the outward expression of the best that lies in the sexuality of man; the latter is a creation in which religious and moral superstitions have played a most important part, not always to the benefit of individual and social health."

We must, therefore, guard against the tendency to think that there is anything rigid or formal in the natural order of monogamy. Some sociologists would even limit the naturalness of monogamy still further. Thus Tarde ("La Morale Sexuelle," _Archives d'Anthropologie Criminelle_, Jan., 1907), while accepting as natural under present conditions the tendency for monogamy, mitigated by more or less clandestine

concubinage, to prevail over all other forms of marriage, considers that this is not due to any irresistible influence, but merely to the fact that this kind of marriage is practiced by the majority of people, including the most civilized.

With the acceptance of the tendency to monogamy we are not at the end of sexual morality, but only at the beginning. It is not monogamy that is the main thing, but the kind of lives that people lead in monogamy. The mere acceptance of a monogamic rule carries us but a little way. That is a fact which cannot fail to impress itself on those who approach the questions of sex from the psychological side.

If monogamy is thus firmly based it is unreasonable to fear, or to hope for, any radical modification in the institution of marriage, regarded, not under its temporary religious and legal aspects but as an order which appeared on the earth even earlier than man. Monogamy is the most natural expression of an impulse which cannot, as a rule, be so adequately realized in full fruition under conditions involving a less prolonged period of mutual communion and intimacy. Variations, regarded as inevitable oscillations around the norm, are also natural, but union in couples must always be the rule because the numbers of the sexes are always approximately equal, while the needs of the emotional life, even apart from the needs of offspring, demand that such unions based on mutual attraction should be so far as possible permanent.

It must here again be repeated that it is the reality, and not the form or the permanence of the marriage union, which is its essential and valuable part. It is not the legal or religious formality which sanctifies marriage, it is the reality of the marriage which sanctifies the form. Fielding has satirized in Nightingale, Tom Jones's friend, the shallow-brained view of connubial society which degrades the reality of marriage to exalt the form. Nightingale has the greatest difficulty in marrying a girl with whom he has already had sexual relations, although he is the only man who has had relations with her. To Jones's arguments he replies: "Common-sense warrants all you say, but yet you well know that the opinion of the world is so contrary to it, that were I to marry a whore, though my own, I should be ashamed of ever showing my face again." It cannot be said that Fielding's satire is even yet out of date. Thus in Prussia, according to Adele Schreiber ("Heirathsbeschränkungen," _Die Neue Generation_, Feb., 1909), it seems to be still practically impossible for a military officer to marry the mother of his own illegitimate child.

The glorification of the form at the expense of the reality of marriage has even been attempted in poetry by Tennyson in the least inspired of his works, _The Idylls of the King_. In "Lancelot and Elaine" and "Guinevere" (as Julia Magruder points out, _North American Review_, April, 1905) Guinevere is married to King Arthur, whom she has never seen, when already in love with Lancelot, so that the "marriage" was merely a ceremony, and not a real marriage (cf., May Child, "The Weird of Sir Lancelot," _North American Review_, Dec., 1908).

It may seem to some that so conservative an estimate of the tendencies of civilization in matters of sexual love is due to a timid adherence to mere tradition. That is not the case. We have to recognize that marriage is firmly held in position by the pressure of two opposing forces. There are two currents in the stream of our

civilization: one that moves towards an ever greater social order and cohesion, the other that moves towards an ever greater individual freedom. There is real harmony underlying the apparent opposition of these two tendencies, and each is indeed the indispensable complement of the other. There can be no real freedom for the individual in the things that concern that individual alone unless there is a coherent order in the things that concern him as a social unit. Marriage in one of its aspects only concerns the two individuals involved; in another of its aspects it chiefly concerns society. The two forces cannot combine to act destructively on marriage, for the one counteracts the other. They combine to support monogamy, in all essentials, on its immemorial basis.

It must be added that in the circumstances of monogamy that are not essential there always has been, and always must be, perpetual transformation. All traditional institutions, however firmly founded on natural impulses, are always growing dead and rigid at some points and putting forth vitally new growths at other points. It is the effort to maintain their vitality, and to preserve their elastic adjustment to the environment, which involves this process of transformation in non-essentials.

The only way in which we can fruitfully approach the question of the value of the transformations now taking place in our marriage-system is by considering the history of that system in the past. In that way we learn the real significance of the marriage-system, and we understand what transformations are, or are not, associated with a fine civilization. When we are acquainted with the changes of the past we are enabled to face more confidently the changes of the present.

The history of the marriage-system of modern civilized peoples begins in the later days of the Roman Empire at the time when the foundations were being laid of that Roman law which has exerted so large an influence in Christendom. Reference has already been made[315] to the significant fact that in late Rome women had acquired a position of nearly complete independence in relation to their husbands, while the patriarchal authority still exerted over them by their fathers had become, for the most part, almost nominal. This high status of women was associated, as it naturally tends to be, with a high degree of freedom in the marriage system. Roman law had no power of intervening in the formation of marriages and there were no legal forms of marriage. The Romans recognized that marriage is a fact and not a mere legal form; in marriage by _usus_ there was no ceremony at all; it was constituted by the mere fact of living together for a whole year; yet such marriage was regarded as just as legal and complete as if it had been inaugurated by the sacred rite of _confarreatio_. Marriage was a matter of simple private agreement in which the man and the woman approached each other on a footing of equality. The wife retained full control of her own property; the barbarity of admitting an action for restitution of conjugal rights was impossible, divorce was a private transaction to which the wife was as fully entitled as the husband, and it required no inquisitorial intervention of magistrate or court; Augustus ordained, indeed, that a public declaration was necessary, but the divorce itself was a private legal act of the two persons concerned.[316] It is interesting to note this enlightened conception of marriage prevailing in the greatest and most masterful Empire which has ever dominated the world, at the period not

indeed of its greatest force,--for the maximum of force and the maximum of expansion, the bud and the full flower, are necessarily incompatible,--but at the period of its fullest development. In the chaos that followed the dissolution of the Empire Roman law remained as a precious legacy to the new developing nations, but its influence was inextricably mingled with that of Christianity, which, though not at the first anxious to set up marriage laws of its own, gradually revealed a growing ascetic feeling hostile alike to the dignity of the married woman and the freedom of marriage and divorce.[317] With that influence was combined the influence, introduced through the Bible, of the barbaric Jewish marriage-system conferring on the husband rights in marriage and divorce which were totally denied to the wife; this was an influence which gained still greater force at the Reformation when the authority once accorded to the Church was largely transformed to the Bible. Finally, there was in a great part of Europe, including the most energetic and expansive parts, the influence of the Germans, an influence still more primitive than that of the Jews, involving the conception of the wife as almost her husband's chattel, and marriage as a purchase. All these influences clashed and often appeared side by side, though they could not be harmonized. The result was that the fifteen hundred years that followed the complete conquest of Christianity represent on the whole the most degraded condition to which the marriage system has ever been known to fall for so long a period during the whole course of human history.

At first indeed the beneficent influence of Rome continued in some degree to prevail and even exhibited new developments. In the time of the Christian Emperors freedom of divorce by mutual consent was alternately maintained, and abolished.[318] We even find the wise and far-seeing provision of the law enacting that a contract of the two parties never to separate could have no legal validity. Justinian's prohibition of divorce by consent led to much domestic unhappiness, and even crime, which appears to be the reason why it was immediately abrogated by his successor, Theodosius, still maintaining the late Roman tradition of the moral equality of the sexes, allowed the wife equally with the husband to obtain a divorce for adultery; that is a point we have not yet attained in England to-day.

It seems to be admitted on all sides that it was largely the fatal influence of the irruption of the barbarous Germans which degraded, when it failed to sweep away, the noble conception of the equality of women with men, and the dignity and freedom of marriage, slowly moulded by the organizing genius of the Roman into a great tradition which still retains a supreme value. The influence of Christianity had at the first no degrading influence of this kind; for the ascetic ideal was not yet predominant, priests married as a matter of course, and there was no difficulty in accepting the marriage order established in the secular world; it was even possible to add to it a new vitality and freedom. But the Germans, with all the primitively acquisitive and combative instincts of untamed savages, went far beyond even the early Romans in the subjection of their wives; they allowed indeed to their unmarried girls a large measure of indulgence and even sexual freedom,--just as the Christians also reverenced their virgins,[319]--but the German marriage system placed the wife, as compared to the wife of the Roman Empire, in a condition little better than that of a domestic slave. In one form or another, under one disguise or another, the system

of wife-purchase prevailed among the Germans, and, whenever that system is influential, even when the wife is honored her privileges are diminished.[320] Among the Teutonic peoples generally, as among the early English, marriage was indeed a private transaction but it took the form of a sale of the bride by the father, or other legal guardian, to the bridegroom. The _beweddung_ was a real contract of sale.[321] "Sale-marriage" was the most usual form of marriage. The ring, indeed, probably was not in origin, as some have supposed, a mark of servitude, but rather a form of bride-price, or _arrha_, that is to say, earnest money on the contract of marriage and so the symbol of it.[322] At first a sign of the bride's purchase, it was not till later that the ring acquired the significance of subjection to the bridegroom, and that significance, later in the Middle Ages, was further emphasized by other ceremonies. Thus in England the York and Sarum manuals in some of their forms direct the bride, after the delivery of the ring, to fall at her husband's feet, and sometimes to kiss his right foot. In Russia, also, the bride kissed her husband's feet. At a later period, in France, this custom was attenuated, and it became customary for the bride to let the ring fall in front of the altar and then stoop at her husband's feet to pick it up.[323] Feudalism carried on, and by its military character exaggerated, these Teutonic influences. A fief was land held on condition of military service, and the nature of its influence on marriage is implied in that fact. The woman was given with the fief and her own will counted for nothing.[324]

The Christian Church in the beginning accepted the forms of marriage already existing in those countries in which it found itself, the Roman forms in the lands of Latin tradition and the German forms in Teutonic lands. It merely demanded (as it also demanded for other civil contracts, such as an ordinary sale) that they should be hallowed by priestly benediction. But the marriage was recognized by the Church even in the absence of such benediction. There was no special religious marriage service, either in the East or the West, earlier than the sixth century. It was simply the custom for the married couple, after the secular ceremonies were completed, to attend the church, listen to the ordinary service and take the sacrament. A special marriage service was developed slowly, and it was no part of the real marriage. During the tenth century (at all events in Italy and France) it was beginning to become customary to celebrate the first part of the real nuptials, still a purely temporal act, outside the church door. Soon this was followed by the regular bride-mass, directly applicable to the occasion, inside the church. By the twelfth century the priest directed the ceremony, now involving an imposing ritual, which began outside the church and ended with the bridal mass inside. By the thirteenth century, the priest, superseding the guardians of the young couple, himself officiated through the whole ceremony. Up to that time marriage had been a purely private business transaction. Thus, after more than a millennium of Christianity, not by law but by the slow growth of custom, ecclesiastical marriage was established.[325]

It was undoubtedly an event of very great importance not merely for the Church but for the whole history of European marriage even down to to-day. The whole of our public method of celebrating marriage to-day is based on that of the Catholic Church as established in the twelfth century and formulated in the Canon law. Even the publication of banns has its origin here, and the fact that in our modern civil marriage

the public ceremony takes place in an office and not in a Church may disguise but cannot alter the fact that it is the direct and unquestionable descendant of the public ecclesiastical ceremony which embodied the slow and subtle triumph--so slow and subtle that its history is difficult to trace--of Christian priests over the private affairs of men and women. Before they set themselves to this task marriage everywhere was the private business of the persons concerned; when they had completed their task,--and it was not absolutely complete until the Council of Trent,--a private marriage had become a sin and almost a crime.[326]

It may seem a matter for surprise that the Church which, as we know, had shown an ever greater tendency to reverence virginity and to cast contumely on the sexual relationship, should yet, parallel with that movement and with the growing influence of asceticism, have shown so great an anxiety to capture marriage and to confer on it a public, dignified, and religious character. There was, however, no contradiction. The factors that were constituting European marriage, taken as a whole, were indeed of very diverse characters and often involved unreconciled contradictions. But so far as the central efforts of the ecclesiastical legislators were concerned, there was a definite and intelligible point of view. The very depreciation of the sexual instinct involved the necessity, since the instinct could not be uprooted, of constituting for it a legitimate channel, so that ecclesiastical matrimony was, it has been said, "analogous to a license to sell intoxicating liquors."[327] Moreover, matrimony exhibited the power of the Church to confer on the license a dignity and distinction which would clearly separate it from the general stream of lust. Sexual enjoyment is impure, the faithful cannot partake of it until it has been purified by the ministrations of the Church. The solemnization of marriage was the necessary result of the sanctification of virginity. It became necessary to sanctify marriage also, and hence was developed the indissoluble sacrament of matrimony. The conception of marriage as a religious sacrament, a conception of far-reaching influence, is the great contribution of the Catholic Church to the history of marriage.

It is important to remember that, while Christianity brought the idea of marriage as a sacrament into the main stream of the institutional history of Europe, that idea was merely developed, not invented, by the Church. It is an ancient and even primitive idea. The Jews believed that marriage is a magico-religious bond, having in it something mystical resembling a sacrament, and that idea, says Durkheim (_L'Année Sociologique_, eighth year, 1905, p. 419), is perhaps very archaic, and hangs on to the generally magic character of sex relations. "The mere act of union," Crawley remarks (_The Mystic Rose_, p. 318) concerning savages, "is potentially a marriage ceremony of the sacramental kind.... One may even credit the earliest animistic men with some such vague conception before any ceremony became crystallized." The essence of a marriage ceremony, the same writer continues, "is the 'joining together' of a man and a woman; in the words of our English service, 'for this cause shall a man leave his father and mother and shall be joined unto his wife; and they two shall be one flesh.' At the other side of the world, amongst the Orang Benuas, these words are pronounced by an elder, when a marriage is solemnized: 'Listen all ye that are present; those that were distant are now brought together; those that were separated are now united.' Marriage ceremonies in all stages of

culture may be called religious with as much propriety as any ceremony whatever. Those who were separated are now joined together, those who were mutually taboo now break the taboo." Thus marriage ceremonies prevent sin and neutralize danger.

The Catholic conception of marriage was, it is clear, in essentials precisely the primitive conception. Christianity drew the sacramental idea from the archaic traditions in popular consciousness, and its own ecclesiastical contribution lay in slowly giving that idea a formal and rigid shape, and in declaring it indissoluble. As among savages, it was in the act of consent that the essence of the sacrament lay; the intervention of the priest was not, in principle, necessary to give marriage its religiously binding character. The essence of the sacrament was mutual acceptance of each other by the man and the woman, as husband and wife, and technically the priest who presided at the ceremony was simply a witness of the sacrament. The essential fact being thus the mental act of consent, the sacrament of matrimony had the peculiar character of being without any outward and visible sign. Perhaps it was this fact, instinctively felt as a weakness, which led to the immense emphasis on the indissolubility of the sacrament of matrimony, already established by St. Augustine. The Canonists brought forward various arguments to account for that indissolubility, and a frequent argument has always been the Scriptural application of the term "one flesh" to married couples; but the favorite argument of the Canonists was that matrimony represents the union of Christ with the Church; that is indissoluble, and therefore its image must be indissoluble (Esmein, op. cit., vol. i, p. 64). In part, also, one may well believe, the idea of the indissolubility of marriage suggested itself to the ecclesiastical mind by a natural association of ideas: the vow of virginity in monasticism was indissoluble; ought not the vow of sexual relationship in matrimony to be similarly indissoluble? It appears that it was not until 1164, in Peter Lombard's _Sentences_, that clear and formal recognition is found of matrimony as one of the seven sacraments (Howard, op. cit., vol. i, p. 333).

The Church, however, had not only made marriage a religious act; it had also made it a public act. The officiating priest, who had now become the arbiter of marriage, was bound by all the injunctions and prohibitions of the Church, and he could not allow himself to bend to the inclinations and interests of individual couples or their guardians. It was inevitable that in this matter, as in other similar matters, a code of ecclesiastical regulations should be gradually developed for his guidance. This need of the Church, due to its growing control of the world's affairs, was the origin of Canon law. With the development of Canon law the whole field of the regulation of the sexual relationships, and the control of its aberrations, became an exclusively ecclesiastical matter. The secular law could take no more direct cognizance of adultery than of fornication or masturbation; bigamy, incest, and sodomy were not temporal crimes; the Church was supreme in the whole sphere of sex.

It was during the twelfth century that Canon law developed, and Gratian was the master mind who first moulded it. He belonged to the Bolognese school of jurisprudence which had inherited the sane traditions of Roman law. The Canons which Gratian compiled were, however, no more the mere result of legal traditions than they were the outcome of cloistered theological speculation. They were the

result of a response to the practical needs of the day before those needs had had time to form a foundation for fine-spun subtleties. At a somewhat later period, before the close of the century, the Italian jurists were vanquished by the Gallic theologians of Paris as represented by Peter Lombard. The result was the introduction of mischievous complexities which went far to rob Canon law alike of its certainty and its adaptation to human necessities.

Notwithstanding, however, all the parasitic accretions which swiftly began to form around the Canon law and to entangle its practical activity, that legislation embodied--predominantly at the outset and more obscurely throughout its whole period of vital activity--a sound core of real value. The Canon law recognized at the outset that the essential fact of marriage is the actual sexual union, accomplished with the intention of inaugurating a permanent relationship. The _copula carnalis_, the making of two "one flesh," according to the Scriptural phrase, a mystic symbol of the union of the Church to Christ, was the essence of marriage, and the mutual consent of the couple alone sufficed to constitute marriage, even without any religious benediction, or without any ceremony at all. The formless and unblessed union was still a real and binding marriage if the two parties had willed it so to be.[328]

Whatever hard things may be said about the Canon law, it must never be forgotten that it carried through the Middle Ages until the middle of the sixteenth century the great truth that the essence of marriage lies not in rites and forms, but in the mutual consent of the two persons who marry each other. When the Catholic Church, in its growing rigidity, lost that conception, it was taken up by the Protestants and Puritans in their first stage of ardent vital activity, though it was more or less dropped as they fell back into a state of subservience to forms. It continued to be maintained by moralists and poets. Thus George Chapman, the dramatist, who was both moralist and poet, in _The Gentleman Usher_ (1606), represents the riteless marriage of his hero and heroine, which the latter thus introduces:--

"May not we now Our contract make and marry before Heaven? Are not the laws of God and Nature more Than formal laws of men? Are outward rites More virtuous than the very substance is Of holy nuptials solemnized within? .... The eternal acts of our pure souls Knit us with God, the soul of all the world, He shall be priest to us; and with such rites As we can here devise we will express And strongly ratify our hearts' true vows, Which no external violence shall dissolve."

And to-day, Ellen Key, the distinguished prophet of marriage reform, declares at the end of her _Liebe und Ehe_ that the true marriage law contains only the paragraph: "They who love each other are husband and wife."

The establishment of marriage on this sound and naturalistic basis had the further excellent result that it placed the man and the woman, who could thus constitute marriage by their consent in entire disregard of the wishes of their parents or families, on the same moral level. Here the Church was following alike the later Romans and the early Christians like Lactantius and Jerome who had declared that what was licit for a man was licit for a woman. The Penitentials also attempted to set

up this same moral law for both sexes. The Canonists finally allowed a certain supremacy to the husband, though, on the other hand, they sometimes seemed to assign even the chief part in marriage to the wife, and the attempt was made to derive the word _matrimonium_ from _matris munium_, thereby declaring the maternal function to be the essential fact of marriage.[329]

The sound elements in the Canon law conception of marriage were, however, from a very early period largely if not altogether neutralized by the verbal subtleties by which they were overlaid, and even by its own fundamental original defects. Even in the thirteenth century it began to be possible to attach a superior force to marriage verbally formed _per verba de præsenti_ than to one constituted by sexual union, while so many impediments to marriage were set up that it became difficult to know what marriages were valid, an important point since a marriage even innocently contracted within the prohibited degrees was only a putative marriage. The most serious and the most profoundly unnatural feature of this ecclesiastical conception of marriage was the flagrant contradiction between the extreme facility with which the gate of marriage was flung open to the young couple, even if they were little more than children, and the extreme rigor with which it was locked and bolted when they were inside. That is still the defect of the marriage system we have inherited from the Church, but in the hands of the Canonists it was emphasized both on the side of its facility for entrance and of its difficulty for exit.[330] Alike from the standpoint of reason and of humanity the gate that is easy of ingress must be easy of egress; or if the exit is necessarily difficult then extreme care must be taken in admission. But neither of these necessary precautions was possible to the Canonists. Matrimony was a sacrament and all must be welcome to a sacrament, the more so since otherwise they may be thrust into the mortal sin of fornication. On the other side, since matrimony was a sacrament, when once truly formed, beyond the permissible power of verbal quibbles to invalidate, it could never be abrogated. The very institution that, in the view of the Church, had been set up as a bulwark against license became itself an instrument for artificially creating license. So that the net result of the Canon law in the long run was the production of a state of things which--in the eyes of a large part of Christendom--more than neutralized the soundness of its original conception.[331]

In England, where from the ninth century, marriage was generally accepted by the ecclesiastical and temporal powers as indissoluble, Canon law was, in the main, established as in the rest of Christendom. There were, however, certain points in which Canon law was not accepted by the law of England. By English law a ceremony before a priest was necessary to the validity of a marriage, though in Scotland the Canon law doctrine was accepted that simple consent of the parties, even exchanged secretly, sufficed to constitute marriage. Again, the issue of a void marriage contracted in innocence, and the issue of persons who subsequently marry each other, are legitimate by Canon law, but not by the common law of England (Geary, _Marriage and Family Relations_, p. 3; Pollock and Maitland, loc. cit.). The Canonists regarded the disabilities attaching to bastardy as a punishment inflicted on the offending parents, and considered, therefore, that no burden should fall on the children when there had been a ceremony in good faith on the part of one at least of

the parents. In this respect the English law is less reasonable and humane. It was at the Council of Merton, in 1236, that the barons of England rejected the proposal to make the laws of England harmonize with the Canon law, that is, with the ecclesiastical law of Christendom generally, in allowing children born before wedlock to be legitimated by subsequent marriage. Grosseteste poured forth his eloquence and his arguments in favor of the change, but in vain, and the law of England has ever since stood alone in this respect (Freeman, "Merton Priory," _English Towns and Districts_). The proposal was rejected in the famous formula, "Nolumus leges Angliæ mutare," a formula which merely stood for an unreasonable and inhumane obstinacy.

In the United States, while by common law subsequent marriage fails to legitimate children born before marriage, in many of the States the subsequent marriage of the parents effects by statute the legitimacy of the child, sometimes (as in Maine) automatically, more usually (as in Massachusetts) through special acknowledgment by the father.

The appearance of Luther and the Reformation involved the decay of the Canon law system so far as Europe as a whole was concerned. It was for many reasons impossible for the Protestant reformers to retain formally either the Catholic conception of matrimony or the precariously elaborate legal structure which the Church had built up on that conception. It can scarcely be said, indeed, that the Protestant attitude towards the Catholic idea of matrimony was altogether a clear, logical, or consistent attitude. It was a revolt, an emotional impulse, rather than a matter of reasoned principle. In its inevitable necessity, under the circumstances of the rise of Protestantism, lies its justification, and, on the whole, its wholesome soundness. It took the form, which may seem strange in a religious movement, of proclaiming that marriage is not a religious but a secular matter. Marriage is, said Luther, "a worldly thing," and Calvin put it on the same level as house-building, farming, or shoe-making. But while this secularization of marriage represents the general and final drift of Protestantism, the leaders of Protestantism were themselves not altogether confident and clear-sighted in the matter. Even Luther was a little confused on this point; sometimes he seems to call marriage "a sacrament," sometimes "a temporal business," to be left to the state.[332] It was the latter view which tended to prevail. But at first there was a period of confusion, if not of chaos, in the minds of the Reformers; not only were they not always convinced in their own minds; they were at variance with each other, especially on the very practical question of divorce. Luther on the whole belonged to the more rigid party, including Calvin and Beza, which would grant divorce only for adultery and malicious desertion; some, including many of the early English Protestants, were in favor of allowing the husband to divorce for adultery but not the wife. Another party, including Zwingli, were influenced by Erasmus in a more liberal direction, and--moving towards the standpoint of Roman Imperial legislation--admitted various causes of divorce. Some, like Bucer, anticipating Milton, would even allow divorce when the husband was unable to love his wife. At the beginning some of the Reformers adopted the principle of self-divorce, as it prevailed among the Jews and was accepted by some early Church Councils. In this way Luther held that the cause for the divorce itself effected the divorce without any judicial decree, though a

magisterial permission was needed for remarriage. This question of remarriage, and the treatment of the adulterer, were also matters of dispute. The remarriage of the innocent party was generally accepted; in England it began in the middle of the sixteenth century, was pronounced valid by the Archbishop of Canterbury, and confirmed by Parliament. Many Reformers were opposed, however, to the remarriage of the adulterous party. Beust, Beza, and Melancthon would have him hanged and so settle the question of remarriage; Luther and Calvin would like to kill him, but since the civil rulers were slack in adopting that measure they allowed him to remarry, if possible in some other part of the country.[333]

The final outcome was that Protestantism framed a conception of marriage mainly on the legal and economic factor--a factor not ignored but strictly subordinated by the Canonists--and regarded it as essentially a contract. In so doing they were on the negative side effecting a real progress, for they broke the power of an antiquated and artificial system, but on the positive side they were merely returning to a conception which prevails in barbarous societies, and is most pronounced when marriage is most assimilable to purchase. The steps taken by Protestantism involved a considerable change in the nature of marriage, but not necessarily any great changes in its form. Marriage was no longer a sacrament, but it was still a public and not a private function and was still, however inconsistently, solemnized in Church. And as Protestantism had no rival code to set up, both in Germany and England it fell back on the general principles of Canon law, modifying them to suit its own special attitude and needs.[334] It was the later Puritanic movement, first in the Netherlands (1580), then in England (1653), and afterwards in New England, which introduced a serious and coherent conception of Protestant marriage, and began to establish it on a civil base.

The English Reformers under Edward VI and his enlightened advisers, including Archbishop Cranmer, took liberal views of marriage, and were prepared to carry through many admirable reforms. The early death of that King exerted a profound influence on the legal history of English marriage. The Catholic reaction under Queen Mary killed off the more radical Reformers, while the subsequent accession of Queen Elizabeth, whose attitude towards marriage was grudging, illiberal, and old-fashioned, approximating to that of her father, Henry VIII (as witnessed, for instance, in her decided opposition to the marriage of the clergy), permanently affected English marriage law. It became less liberal than that of other Protestant countries, and closer to that of Catholic countries.

The reform of marriage attempted by the Puritans began in England in 1644, when an Act was passed asserting "marriage to be no sacrament, nor peculiar to the Church of God, but common to mankind and of public interest to every Commonwealth." The Act added, notwithstanding, that it was expedient marriage should be solemnized by "a lawful minister of the Word." The more radical Act of 1653 swept away this provision, and made marriage purely secular. The banns were to be published (by registrars specially appointed) in the Church, or (if the parties desired) the market-place. The marriage was to be performed by a Justice of the Peace; the age of consent to marriage for a man was made sixteen, for a woman

fourteen (Scobell's _Acts and Ordinances_, pp. 86, 236). The Restoration abolished this sensible Act, and reintroduced Canon-law traditions, but the Puritan conception of marriage was carried over to America, where it took root and flourished.

It was out of Puritanism, moreover, as represented by Milton, that the first genuinely modern though as yet still imperfect conception of the marriage relationship was destined to emerge. The early Reformers in this matter acted mainly from an obscure instinct of natural revolt in an environment of plebeian materialism. The Puritans were moved by their feeling for simplicity and civil order as the conditions for religious freedom. Milton, in his _Doctrine and Discipline of Divorce_, published in 1643, when he was thirty-five years of age, proclaimed the supremacy of the substance of marriage over the form of it, and the spiritual autonomy of the individual in the regulation of that form. He had grasped the meaning of that conception of personal responsibility which is the foundation of sexual relationships as they are beginning to appear to men to-day. If Milton had left behind him only his writings on marriage and divorce they would have sufficed to stamp him with the seal of genius. Christendom had to wait a century and a half before another man of genius of the first rank, Wilhelm von Humboldt, spoke out with equal authority and clearness in favor of free marriage and free divorce.

It is to the honor of Milton, and one of his chief claims on our gratitude, that he is the first great protagonist in Christendom of the doctrine that marriage is a private matter, and that, therefore, it should be freely dissoluble by mutual consent, or even at the desire of one of the parties. We owe to him, says Howard, "the boldest defence of the liberty of divorce which had yet appeared. If taken in the abstract, and applied to both sexes alike, it is perhaps the strongest defence which can be made through an appeal to mere authority;" though his arguments, being based on reason and experience, are often ill sustained by his authority; he is really speaking the language of the modern social reformer, and Milton's writings on this subject are now sometimes ranked in importance above all his other work (Masson, _Life of Milton_, vol. iii; Howard, op. cit., vol. ii, p. 86, vol. iii, p. 251; C.B. Wheeler, "Milton's Doctrine and Discipline of Divorce," _Nineteenth Century_, Jan., 1907).

Marriage, said Milton, "is not a mere carnal coition, but a human society; where that cannot be had there can be no true marriage" (_Doctrine of Divorce_, Bk. i, Ch. XIII); it is "a covenant, the very being whereof consists not in a forced cohabitation, and counterfeit performance of duties, but in unfeigned love and peace" (Ib., Ch. VI). Any marriage that is less than this is "an idol, nothing in the world." The weak point in Milton's presentation of the matter is that he never explicitly accords to the wife the same power of initiative in marriage and divorce as to the husband. There is, however, nothing in his argument to prevent its equal application to the wife, an application which, while never asserting he never denies; and it has been pointed out that he assumes that women are the equals of men and demands from them intellectual and spiritual companionship; however ready Milton may have been to grant complete equality of divorce to the wife, it would have been impossible for a seventeenth century Puritan to have obtained any hearing for such a doctrine; his arguments would have been received with, if that were possible, even more neglect

than they actually met. (Milton's scornful sonnet concerning the reception of his book is well known.)

Milton insists that in the conventional Christian marriage exclusive importance is attached to carnal connection. So long as that connection is possible, no matter what antipathy may exist between the couple, no matter how mistaken they may have been "through any error, concealment, or misadventure," no matter if it is impossible for them to "live in any union or contentment all their days," yet the marriage still holds good, the two must "fadge together" (op. cit., Bk. i). It is the Canon law, he says, which is at fault, "doubtless by the policy of the devil," for the Canon law leads to licentiousness (op. cit.). It is, he argues, the absence of reasonable liberty which causes license, and it is the men who desire to retain the privileges of license who oppose the introduction of reasonable liberty.

The just ground for divorce is "indisposition, unfitness, or contrariety of mind, arising from a cause in nature unchangeable, hindering, and ever likely to hinder, the main benefits of conjugal society, which are solace and peace." Without the "deep and serious verity" of mutual love, wedlock is "nothing but the empty husks of a mere outside matrimony," a mere hypocrisy, and must be dissolved (op. cit.).

Milton goes beyond the usual Puritan standpoint, and not only rejects courts and magistrates, but approves of self-divorce; for divorce cannot rightly belong to any civil or earthly power, since "ofttimes the causes of seeking divorce reside so deeply in the radical and innocent affections of nature, as is not within the diocese of law to tamper with." He adds that, for the prevention of injustice, special points may be referred to the magistrate, who should not, however, in any case, be able to forbid divorce (op. cit., Bk. ii, Ch. XXI). Speaking from a standpoint which we have not even yet attained, he protests against the absurdity of "authorizing a judicial court to toss about and divulge the unaccountable and secret reason of disaffection between man and wife."

In modern times Hinton was accustomed to compare the marriage law to the law of the Sabbath as broken by Jesus. We find exactly the same comparison in Milton. The Sabbath, he believes, was made for God. "Yet when the good of man comes into the scales, we have that voice of infinite goodness and benignity, that 'Sabbath was made for man and not man for Sabbath.' What thing ever was made more for man alone, and less for God, than marriage?" (_op. cit._, Bk. i, Ch. XI). "If man be lord of the Sabbath, can he be less than lord of marriage?"

Milton, in this matter as in others, stood outside the currents of his age. His conception of marriage made no more impression on contemporary life than his _Paradise Lost_. Even his own Puritan party who had passed the Act of 1653 had strangely failed to transfer divorce and nullity cases to the temporal courts, which would at least have been a step on the right road. The Puritan influence was transferred to America and constituted the leaven which still works in producing the liberal though too minutely detailed divorce laws of many States. The American secular marriage procedure followed that set up by the English Commonwealth, and the dictum of the great Quaker, George Fox, "We marry none, but are witnesses of

it,"[335] (which was really the sound kernel in the Canon law) is regarded as the spirit of the marriage law of the conservative but liberal State of Pennsylvania, where, as recently as 1885, a statute was passed expressly authorizing a man and woman to solemnize their own marriage.[336]

In England itself the reforms in marriage law effected by the Puritans were at the Restoration largely submerged. For two and a half centuries longer the English spiritual courts administered what was substantially the old Canon law. Divorce had, indeed, become more difficult than before the Reformation, and the married woman's lot was in consequence harder. From the sixteenth century to the second half of the nineteenth, English marriage law was peculiarly harsh and rigid, much less liberal than that of any other Protestant country. Divorce was unknown to the ordinary English law, and a special act of Parliament, at enormous expense, was necessary to procure it in individual cases.[337] There was even an attitude of self-righteousness in the maintenance of this system. It was regarded as moral. There was complete failure to realize that nothing is more immoral than the existence of unreal sexual unions, not only from the point of view of theoretical but also of practical morality, for no community could tolerate a majority of such unions.[338] In 1857 an act for reforming the system was at last passed with great difficulty. It was a somewhat incoherent and make-shift measure, and was avowedly put forward only as a step towards further reform; but it still substantially governs English procedure, and in the eyes of many has set a permanent standard of morality. The spirit of blind conservatism,--_Nolumus leges Angliæ mutare_,--which in this sphere had reasserted itself after the vital movement of Reform and Puritanism, still persists. In questions of marriage and divorce English legislation and English public feeling are behind alike both the Latin land of France and the Puritanically moulded land of the United States.

The author of an able and temperate essay on _The Question of English Divorce_, summing up the characteristics of the English divorce law, concludes that it is: (1) unequal, (2) immoral, (3) contradictory, (4) illogical, (5) uncertain, and (6) unsuited to present requirements. It was only grudgingly introduced in a bill, presented to Parliament in 1857, which was stubbornly resisted during a whole session, not only on religious grounds by the opponents of divorce, but also by the friends of divorce, who desired a more liberal measure. It dealt with the sexes unequally, granting the husband but not the wife divorce for adultery alone. In introducing the bill the Attorney-General apologized for this defect, stating that the measure was not intended to be final, but merely as a step towards further legislation. That was more than half a century ago, but the further step has not yet been taken. Incomplete and unsatisfactory as the measure was, it seems to have been regarded by many as revolutionary and dangerous in the highest degree. The author of an article on "Modern Divorce" in the _Universal Review_ for July, 1859, while approving in principle of the establishment of a special Divorce Court, yet declared that the new court was "tending to destroy marriage as a social institution and to sap female chastity," and that "everyone now is a husband and wife at will." "No one," he adds, "can now justly quibble at a deficiency of matrimonial vomitories."

Yet, according to this law, it is not even possible for a wife to obtain a divorce for her husband's adultery, unless he is also cruel or deserts her. At first "cruelty" meant physical cruelty and of a serious kind. But in course of time the meaning of the word was extended to pain inflicted on the mind, and now coldness and neglect may almost of themselves constitute cruelty, though the English court has sometimes had the greatest hesitation in accepting the most atrocious forms of refined cruelty, because it involved no "physical" element. "The time may very reasonably be looked forward to, however," a legal writer has stated (Montmorency, "The Changing Status of a Married Woman," _Law Quarterly Review_, April, 1897), "when almost any act of misconduct will, in itself, be considered to convey such mental agony to the innocent party as to constitute the cruelty requisite under the Act of 1857." (The question of cruelty is fully discussed in J.R. Bishop's _Commentaries on Marriage, Divorce and Separation_, 1891, vol. i, Ch. XLIX; cf. Howard, op. cit., vol. ii, p. 111).

There can be little doubt, however, that cruelty alone is a reasonable cause for divorce. In many American States, where the facilities for divorce are much greater than in England, cruelty is recognized as itself sufficient cause, whether the wife or the husband is the complainant. The acts of cruelty alleged have sometimes been seemingly very trivial. Thus divorces have been pronounced in America on the ground of the "cruel and inhuman conduct" of a wife who failed to sew her husband's buttons on, or because a wife "struck plaintiff a violent blow with her bustle," or because a husband does not cut his toe-nails, or because "during our whole married life my husband has never offered to take me out riding. This has been a source of great mental suffering and injury." In many other cases, it must be added, the cruelty inflicted by the husband, even by the wife--for though usually, it is not always, the husband who is the brute--is of an atrocious and heart-rending character (_Report on Marriage and Divorce in the United States_, issued by Hon. Carroll D. Wright, Commissioner of Labor, 1889). But even in many of the apparently trivial cases--as of a husband who will not wash, and a wife who is constantly evincing a hasty temper--it must be admitted that circumstances which, in the more ordinary relationships of life may be tolerated, become intolerable in the intimate relationship of sexual union. As a matter of fact, it has been found by careful investigation that the American courts weigh well the cases that come before them, and are not careless in the granting of decrees of divorce.

In 1859 an exaggerated importance was attached to the gross reasons for divorce, to the neglect of subtle but equally fatal impediments to the continuance of marriage. This was pointed out by Gladstone, who was opposed to making adultery a cause of divorce at all. "We have many causes," he said, "more fatal to the great obligation of marriage, as disease, idiocy, crime involving punishment for life." Nowadays we are beginning to recognize not only such causes as these, but others of a far more intimate character which, as Milton long ago realized, cannot be embodied in statutes, or pleaded in law courts. The matrimonial bond is not merely a physical union, and we have to learn that, as the author of _The Question of English Divorce_ (p. 49) remarks, "other than physical divergencies are, in fact, by far the most important of the originating causes of matrimonial disaster."

In England and Wales more husbands than wives petition for divorce, the wives who petition being about 40 per cent, of the whole. Divorces are increasing, though the number is not large, in 1907 about 1,300, of whom less than half remarried. The inadequacy of the divorce law is shown by the fact that during the same year about 7,000 orders for judicial separation were issued by magistrates. These separation orders not only do not give the right to remarry, but they make it impossible to obtain divorce. They are, in effect, an official permission to form relationships outside State marriage.

In the United States during the years 1887-1906 nearly 40 per cent, of the divorces granted were for "desertion," which is variously interpreted in different States, and must often mean a separation by mutual consent. Of the remainder, 19 per cent, were for unfaithfulness, and the same proportion for cruelty; but while the divorces granted to husbands for the infidelity of their wives are nearly three times as great proportionately as those granted to wives for their husband's adultery, with regard to cruelty it is the reverse, wives obtaining 27 per cent, of their divorces on that ground and husbands only 10 per cent.

In Prussia divorce is increasing. In 1907 there were eight thousand divorces, the cause in half the cases being adultery, and in about a thousand cases malicious desertion. In cases of desertion the husbands were the guilty parties nearly twice as often as the wives, in cases of adultery only a fifth to an eighth part.

There cannot be the slightest doubt that the difficulty, the confusion, the inconsistency, and the flagrant indecency which surround divorce and the methods of securing it are due solely and entirely to the subtle persistence of traditions based, on the one hand, on the Canon law doctrines of the indissolubility of marriage and the sin of sexual intercourse outside marriage, and, on the other hand, on the primitive idea of marriage as a contract which economically subordinates the wife to the husband and renders her person, or at all events her guardianship, his property. It is only when we realize how deeply these traditions have become embedded in the religious, legal, social and sentimental life of Europe that we can understand how it is that barbaric notions of marriage and divorce can to-day subsist in a stage of civilization which has, in many respects, advanced beyond such notions.

The Canon law conception of the abstract religious sanctity of matrimony, when transferred to the moral sphere, makes a breach of the marriage relationship seem a public wrong; the conception of the contractive subordination of the wife makes such a breach on her part, and even, by transference of ideas, on his part, seem a private wrong. These two ideas of wrong incoherently flourish side by side in the vulgar mind, even to-day.

The economic subordination of the wife as a species of property significantly comes into view when we find that a husband can claim, and often secure, large sums of money from the man who sexually approaches his property, by such trespass damaging it in its master's eyes.[339] To a psychologist it would be obvious that a husband who has lacked the skill so to gain and to hold his wife's love and respect that it is not perfectly easy and natural to her to reject the advances of any other man

owes at least as much damages to her as she or her partner owes to him; while if the failure is really on her side, if she is so incapable of responding to love and trust and so easy a prey to an outsider, then surely the husband, far from wishing for any money compensation, should consider himself more than fully compensated by being delivered from the necessity of supporting such a woman. In the absence of any false traditions that would be obvious. It might not, indeed, be unreasonable that a husband should pay heavily in order to free himself from a wife whom, evidently, he has made a serious mistake in choosing. But to ordain that a man should actually be indemnified because he has shown himself incapable of winning a woman's love is an idea that could not occur in a civilized society that was not twisted by inherited prejudice.[340] Yet as matters are to-day there are civilized countries in which it is legally possible for a husband to enter a prayer for damages against his wife's paramour in combination with either a petition for judicial separation or for dissolution of wedlock. In this way adultery is not a crime but a private injury.[341]

At the same time, however, the influence of Canon law comes inconsistently to the surface and asserts that a breach of matrimony is a public wrong, a sin transformed by the State into something almost or quite like a crime. This is clearly indicated by the fact that in some countries the adulterer is liable to imprisonment, a liability scarcely nowadays carried into practice. But exactly the same idea is beautifully illustrated by the doctrine of "collusion," which, in theory, is still strictly observed in many countries. According to the doctrine of "collusion" the conditions necessary to make the divorce possible must on no account be secured by mutual agreement. In practice it is impossible to prevent more or less collusion, but if proved in court it constitutes an absolute impediment to the granting of a divorce, however just and imperative the demand for divorce may be.

The English Divorce Act of 1857 refused divorce when there was collusion, as well as when there was any countercharge against the petitioner, and the Matrimonial Causes Act of 1860 provided the machinery for guaranteeing these bars to divorce. This question of collusion is discussed by G.P. Bishop (op. cit., vol. ii, Ch. IX). "However just a cause may be," Bishop remarks, "if parties collude in its management, so that in real fact both parties are plaintiffs, while by the record the one appears as plaintiff and the other as defendant, it cannot go forward. All conduct of this sort, disturbing to the course of justice, falls within the general idea of fraud on the court. Such is the doctrine in principle everywhere."

It is quite evident that from the social or the moral point of view, it is best that when a husband and wife can no longer live together, they should part amicably, and in harmonious agreement effect all the arrangements rendered necessary by their separation. The law ridiculously forbids them to do so, and declares that they must not part at all unless they are willing to part as enemies. In order to reach a still lower depth of absurdity and immorality the law goes on to say that if as a matter of fact they have succeeded in becoming enemies to each other to such an extent that each has wrongs to plead against the other party they cannot be divorced at all![342] That is to say that when a married couple have reached a degree of separation which makes it imperatively necessary, not merely in their own interests but in the moral

interests of society, that they should be separated and their relations to other parties concerned regularized, then they must on no account be separated.

It is clear how these provisions of the law are totally opposed to the demands of reason and morality. Yet at the same time it is equally clear how no efforts of the lawyers, however skilful or humane those efforts may be, can bring the present law into harmony with the demands of modern civilization. It is not the lawyers who are at fault; they have done their best, and, in England, it is entirely owing to the skilful and cautious way in which the judges have so far as possible pressed the law into harmony with modern needs, that our antiquated divorce laws have survived at all. It is the system which is wrong. That system is the illegitimate outgrowth of the Canon law which grew up around conceptions long since dead. It involves the placing of the person who imperils the theoretical indissolubility of the matrimonial bond in the position of a criminal, now that he can no longer be publicly condemned as a sinner. To aid and abet that criminal is itself an offence, and the aider and abettor of the criminal must, therefore, be inconsequently punished by the curious method of refraining from punishing the criminal. We do not openly assert that the defendant in a divorce case is a criminal; that would be to render the absurdity of it too obvious, and, moreover, would be hardly consistent with the permission to claim damages which is based on a different idea. We hover uncertainly between two conceptions of divorce, both of them bad, each inconsistent with the other, and neither of them capable of being pushed to its logical conclusions.

The result is that if a perfectly virtuous married couple comes forward to claim divorce, they are told that it is out of the question, for in such a case there must be a "defendant." They are to be punished for their virtue. If each commits adultery and they again come forward to claim divorce, they are told that it is still out of the question, for there must be a "plaintiff." Before they were punished for their virtue; now they are to be punished in exactly the same way for their lack of it. The couple must humor the law by adopting a course of action which may be utterly repugnant to both. If only the wife alone will commit adultery, if only the husband will commit adultery and also inflict some act of cruelty upon his wife, if the innocent party will descend to the degradation of employing detectives and hunting up witnesses, the law is at their feet and hastens to accord to both parties the permission to remarry. Provided, of course, that the parties have arranged this without "collusion." That is to say that our law, with its ecclesiastical traditions behind it, says to the wife: Be a sinner, or to the husband: Be a sinner and a criminal--then we will do all you wish. The law puts a premium on sin and on crime. In order to pile absurdity on absurdity it claims that this is done in the cause of "public morality." To those who accept this point of view it seems that the sweeping away of divorce laws would undermine the bases of morality. Yet there can be little doubt that the sooner such "morality" is undermined, and indeed utterly destroyed, the better it will be for true morality.

There is an influential movement in England for the reform of divorce, on the grounds that the present law is unjust, illogical, and immoral, represented by the Divorce Law Reform Union. Even the former president of the Divorce Court, Lord Gorell, declared from the bench in 1906 that the English law produces deplorable

results, and is "full of inconsistencies, anomalies and inequalities, amounting almost to absurdities." The points in the law which have aroused most protest, as being most behind the law of other nations, are the great expense of divorce, the inequality of the sexes, the failure to grant divorces for desertion and in cases of hopeless insanity, and the failure of separation orders to enable the separated parties to marry again. Separation orders are granted by magistrates for cruelty, adultery, and desertion. This "separation" is really the direct descendant of the Canon law divorce _a mensa et thoro_, and the inability to marry which it involves is merely a survival of the Canon law tradition. At the present time magistrates--exercising their discretion, it is admitted, in a careful and prudent manner--issue some 7,000 separation orders annually, so that every year the population is increased by 14,000 individuals mostly in the age of sexual vigor, and some little more than children, who are forbidden by law to form legal marriages. They contribute powerfully to the great forward movement which, as was shown in the previous chapter, marks the morality of our age. But it is highly undesirable that free marriages should be formed, helplessly, by couples who have no choice in the matter, for it is unlikely that under such circumstances any high level of personal responsibility can be reached. The matter could be easily remedied by dropping altogether a Canon law tradition which no longer has any vitality or meaning, and giving to the magistrate's separation order the force of a decree of divorce.

New Zealand and the Australian colonies, led by Victoria in 1889, have passed divorce laws which, while more or less framed on the English model, represent a distinct advance. Thus in New Zealand the grounds for divorce are adultery on either side, wilful desertion, habitual drunkenness, and conviction to imprisonment for a term of years.

It is natural that an Englishman should feel acutely sensitive to this blot in the law of England and desire the speedy disappearance of a system so open to scathing sarcasm. It is natural that every humane person should grow impatient of the spectacle of so many blighted lives, of so much misery inflicted on innocent persons--and on persons who even when technically guilty are often the victims of unnatural circumstances--by the persistence of a mediæval system of ecclesiastical tyranny and inquisitorial insolence into an age when sexual relationships are becoming regarded as the sacred secret of the persons intimately concerned, and when more and more we rely on the responsibility of the individual in making and maintaining such relationships.

When, however, we refrain from concentrating our attention on particular countries and embrace the general movement of civilization in the matter of divorce during recent times, there cannot be the slightest doubt as to the direction of that movement. England was a pioneer in the movement half a century ago, and to-day every civilized country is moving in the same direction. France broke with the old ecclesiastical tradition of the indissolubility of matrimony in 1885 by a divorce law in some respects very reasonable. The wife may obtain a divorce on an equality with the husband (though she is liable to imprisonment for adultery), the co-respondent occupies a very subordinate position in adultery charges, and facility is offered for

divorce on the ground of simple _injures graves_ (excluding as far as possible mere incompatibility of temper), while the judge has the power, which he often successfully exerts, to effect a reconciliation in private or to grant a decree without public trial. The influence of France has doubtless been influential in moulding the divorce laws of the other Latin countries.

In Prussia an enlightened divorce law formerly prevailed by which it was possible for a couple to separate without scandal when it was clearly shown that they could not live together in agreement. But the German Code of 1900 introduced provisions as regards divorce which--while in some respects more liberal than those of the English law, especially by permitting divorce for desertion and insanity--are, on the whole, retrograde as compared with the earlier Prussian law and place the matter on a cruder and more brutal basis. For two years after the Code came into operations the number of divorces sank; after that the public and the courts adapted themselves to the new provisions (more especially one which allowed divorce for serious neglect of conjugal duties) and the number of divorces began to increase with great rapidity. "But," remarks Hirschfeld, "how painful it has now become to read divorce cases! One side abuses the other, makes accusations of the grossest character, employs detectives to obtain the necessary proofs of 'dishonorable and immoral conduct,' whereas, before, both parties realized that they had been deceived in each other, that they failed to suit each other, and that they could no longer live together. Thus we see that the narrowing of individual responsibility in sexual matters has not only had no practical effect, but leads to injurious results of a serious kind."[343] In England a similar state of things has prevailed ever since divorce was established, but it seems to have become too familiar to excite either pain or disgust. Yet, as Adner has pointed out,[344] it has moved in a direction contrary to the general tendency of civilization, not only by increasing the inquisitorial authority of public courts but by emphasizing merely external causes of divorce and abolishing the more subtle internal causes which constantly grow in importance with the refinement of civilization.

In Austria until recent years, Canon law ruled absolutely, and matrimony was indissoluble, as it still remains for the Catholic population. The results as regards matrimonial happiness were in the highest degree deplorable. Half a century ago Gross-Hoffinger investigated the marital happiness of 100 Viennese couples of all social classes, without choice of cases, and presented the results in detail. He found that 48 couples were positively unhappy, only 16 were undoubtedly happy, and even among these there was only one case in which happiness resulted from mutual faithfulness, happiness in the other cases being only attained by setting aside the question of fidelity.[345] This picture, it is to be hoped, no longer remains true. There is an influential Austrian Marriage Reform Association, publishing a journal called _Die Fessel_, or The Fetter. "One was chained to another," we are told. "In certain circumstances this must have been the worst and most torturing penalty of all. The most bizarre and repulsive couplings took place. There were, it is true, many affectionate companionships of the chain. But there were many more which inflicted an eternity of suffering upon one of the pair." This quotation, it must be added, has nothing to do with what the Canonists, borrowing the technical term for a prisoner's shackles, suggestively termed the _vinculum matrimonii_; it was written many years

ago concerning the galleys of the old French convict system. It is, however, recalled to one's mind by the title which the Austrian Marriage Reform Association has given to its official organ.

Russia, where the marriage laws are arranged by the Holy Synod aided by jurists, stands almost alone among the great countries in the reasonable simplicity of its divorce provisions. Before 1907 divorce was very difficult to obtain in Russia, but in that year it became possible for a married couple to separate by mutual consent and after living apart for a year to become thereby entitled to a divorce enabling them to remarry. This provision is in accordance with the humane conception of the sexual relationship which has always tended to prevail in Russia, whither, it must be remembered, the stern and unnatural ideals of compulsory celibacy cherished by the Western Church never completely penetrated; the clergy of the Eastern Church are married, though the marriage must take place before they enter the priesthood, and they could not sympathize with the anti-sexual tone of the marriage regulations laid down by the celibate clergy of the west.

Switzerland, again, which has been regarded as the political laboratory of Europe, also stands apart in the liberality of its divorce legislation. A renewable divorce for two years may be obtained in Switzerland when there are "circumstances which seriously affect the maintenance of the conjugal tie." To the Grand Duchy of Luxembourg, finally, belongs the honor of having firmly maintained throughout the great principle of divorce by mutual consent under legal conditions, as established by Napoleon in his Code of 1803. The smaller countries generally are in advance of the large in matters of divorce law. The Norwegian law is liberal. The new Roumanian Code permits divorce by mutual consent, provided both parents grant equal shares of their property to the children. The little principality of Monaco has recently introduced the reasonable provision of granting divorce for, among other causes, alcoholism, syphilis, and epilepsy, so protecting the future race.

Outside Europe the most instructive example of the tendency of divorce is undoubtedly furnished by the United States of America. The divorce laws of the States are mainly on a Puritanic basis, and they retain not only the Puritanic love of individual freedom but the Puritanic precisianism.[346] In some States, notably Iowa, the statute-makers have been constantly engaged in adopting, changing, abrogating and re-enacting the provisions of their divorce laws, and Howard has shown how much confusion and awkwardness arise by such perpetual legislative fiddling over small details.

This restless precisianism has somewhat disguised the generally broad and liberal tendency of marriage law in America, and has encouraged foreign criticism of American social institutions. As a matter of fact the prevalence of divorce in America is enormously exaggerated. The proportion of divorced persons in the population appears to be less than one per cent., and, contrary to a frequent assertion, it is by no means the rule for divorced persons to remarry immediately. Taking into account the special conditions of life in the United States the prevalence of divorce is small and its character by no means reveals a low grade morality. An impartial and competent critic of the American people, Professor Münsterberg, remarks that the real ground

which mainly leads to divorce in the United States--not the mere legal pretexts made compulsory by the precisianism of the law--is the highly ethical objection to continuing externally in a marriage which has ceased to be spiritually congenial. "It is the women especially," he says, "and generally the very best women, who prefer to take the step, with all the hardships which it involves, to prolonging a marriage which is spiritually hypocritical and immoral."[347]

The people of the United States, above all others, cherish ideals of individualism; they are also the people among whom, above all others, there is the greatest amount of what Reibmayr calls "blood-chaos." Under such circumstances the difficulties of conjugal life are necessarily at a maximum, and marriage union is liable to subtle impediments which must forever elude the statute-book.[348] There can be little doubt that the practical sagacity of the American people will enable them sooner or later to recognize this fact, and that finally fulfilling the Puritanic drift of their divorce legislation--as foreshadowed in its outcome by Milton--they will agree to trust their own citizens with the responsibility of deciding so private a matter as their conjugal relationships, with, of course, authority in the courts to see that no injustice is committed. It is, indeed, surprising that the American people, usually intolerant of State interference, should in this matter so long have tolerated such interference in so private a matter.

The movement of divorce is not confined to Christendom; it is a mark of modern civilization. In Japan the proportion of divorces is higher than in any other country, not excluding the United States.[349] The most vigorous and progressive countries are those that insist most firmly on the purity of sexual unions. In the United States it was pointed out many years ago that divorce is most prevalent where the standard of education and morality is highest. It was the New England States, with strong Puritanic traditions of moral freedom, which took the lead in granting facility to divorce. The divorce movement is not, as some have foolishly supposed, a movement making for immorality.[350] Immorality is the inevitable accompaniment of indissoluble marriage; the emphasis on the sanctity of a merely formal union discourages the growth of moral responsibility as regards the hypothetically unholy unions which grow up beneath its shadow. To insist, on the other hand, by establishing facility of divorce, that sexual unions shall be real, is to work in the cause of morality. The lands in which divorce by mutual consent has prevailed longest are probably among the most, and not the least, moral of lands.

Surprise has been expressed that although divorce by mutual consent commended itself as an obviously just and reasonable measure two thousand years ago to the legally-minded Romans that solution has even yet been so rarely attained by modern states.[351] Wherever society is established on a solidly organized basis and the claims of reason and humanity receive due consideration--even when the general level of civilization is not in every respect high--there we find a tendency to divorce by mutual consent.

In Japan, according to the new Civil Code, much as in ancient Rome, marriage is effected by giving notice of the fact to the registrar in the presence of two witnesses, and with the consent (in the case of young couples) of the heads of their families.

There may be a ceremony, but it is not demanded by the law. Divorce is effected in exactly the same way, by simply having the registration cancelled, provided both husband and wife are over twenty-five years of age. For younger couples unhappily married, and for cases in which mutual consent cannot be obtained, judicial divorce exists. This is granted for various specific causes, of which the most important is "grave insult, such as to render living together unbearable" (Ernest W. Clement, "The New Woman in Japan," _American Journal Sociology_, March, 1903). Such a system, like so much else achieved by Japanese organization, seems reasonable, guarded, and effective.

In the very different and far more ancient marriage system of China, divorce by mutual consent is equally well-established. Such divorce by mutual consent takes place for incompatibility of temperament, or when both husband and wife desire it. There are, however, various antiquated and peculiar provisions in the Chinese marriage laws, and divorce is compulsory for the wife's adultery or serious physical injuries inflicted by either party on the other. (The marriage laws of China are fully set forth by Paul d'Enjoy, _La Revue_, Sept. 1, 1905.)

Among the Eskimo (who, as readers of Nansen's fascinating books on their morals will know, are in some respects a highly socialized people) the sexes are absolutely equal, marriages are perfectly free, and separation is equally free. The result is that there are no uncongenial unions, and that no unpleasant word is heard between man and wife (Stefánsson, _Harper's Magazine_, Nov., 1908).

Among the ancient Welsh, women, both before and after marriage, enjoyed great freedom, far more than was afforded either by Christianity or the English Common law. "Practically either husband or wife could separate when either one or both chose" (Rhys and Brynmor-Jones, _The Welsh People_, p. 214). It was so also in ancient Ireland. Women held a very high position, and the marriage tie was very free, so as to be practically, it would appear, dissoluble by mutual consent. So far as the Brehon laws show, says Ginnell (_The Brehon Laws_, p. 212), "the marriage relation was extremely loose, and divorce was as easy, and could be obtained on as slight ground, as is now the case in some of the States of the American Union. It appears to have been obtained more easily by the wife than by the husband. When obtained on her petition, she took away with her all the property she had brought her husband, all her husband had settled upon her on their marriage, and in addition so much of her husband's property as her industry appeared to have entitled her to."

Even in early French history we find that divorce by mutual consent was very common. It was sufficient to prepare in duplicate a formal document to this effect: "Since between N. and his wife there is discord instead of charity according to God, and that in consequence it is impossible for them to live together, it has pleased both to separate, and they have accordingly done so." Each of the parties was thus free either to retire into a cloister or to contract another union (E. de la Bedollière, _Histoire des Moeurs des Français_, vol. i, p. 317). Such a practice, however it might accord with the germinal principle of consent embodied in the Canon law, was far too opposed to the ecclesiastical doctrine of the sacramental indissolubility of matrimony to be permanently allowed, and it was completely crushed out.

The fact that we so rarely find divorce by mutual consent in Christendom until the beginning of the nineteenth century, that then it required a man of stupendous and revolutionary genius like Napoleon to reintroduce it, and that even he was unable to do so effectually, is clearly due to the immense victory which the ascetic spirit of Christianity, as firmly embodied in the Canon law, had gained over the souls and bodies of men. So subjugated were European traditions and institutions by this spirit that even the volcanic emotional uprising of the Reformation, as we have seen, could not shake it off. When Protestant States naturally resumed the control of secular affairs which had been absorbed by the Church, and rescued from ecclesiastical hands those things which belonged to the sphere of the individual conscience, it might have seemed that marriage and divorce would have been among the first concerns to be thus transferred. Yet, as we know, England was about as much enslaved to the spirit and even the letter of Canon law in the nineteenth as in the fourteenth century, and even to-day English law, though no longer supported by the feeling of the masses, clings to the same traditions.

There seems to be little doubt, however, that the modern movement for divorce must inevitably tend to reach the goal of separation by the will of both parties, or, under proper conditions and restrictions, by the will of one party. It now requires the will of two persons to form a marriage; law insists on that condition.[352] It is logical as well as just that law should take the next step involved by the historical evolution of marriage, and equally insist that it requires the will of two persons to maintain a marriage. This solution is, without doubt, the only way of deliverance from the crudities, the indecencies, the inextricable complexities which are introduced into law by the vain attempt to foresee in detail all the possibilities of conjugal disharmony which may arise under the conditions of modern civilization. It is, moreover, we may rest assured, the only solution which the growing modern sense of personal responsibility in sexual matters traced in the previous chapter--the responsibility of women as well as of men--will be content to accept.

The subtle and complex character of the sexual relationships in a high civilization and the unhappy results of their State regulation were well expressed by Wilhelm von Humboldt in his _Ideen zu einen Versuch die Grenzen der Wirksamkeit des Staates zu bestimmen_, so long ago as 1792. "A union so closely allied with the very nature of the respective individuals must be attended with the most hurtful consequences when the State attempts to regulate it by law, or, through the force of its institutions, to make it repose on anything save simple inclination. When we remember, moreover, that the State can only contemplate the final results of such regulations on the race, we shall be still more ready to admit the justice of this conclusion. It may reasonably be argued that a solicitude for the race only conducts to the same results as the highest solicitude for the most beautiful development of the inner man. For, after careful observation, it has been found that the uninterrupted union of one man with one woman is most beneficial to the race, and it is likewise undeniable that no other union springs from true, natural, harmonious love. And further, it may be observed, that such love leads to the same results as those very relations which law and custom tend to establish. The radical error seems to be that the law commands; whereas such a relation cannot mould itself according to external arrangements, but depends

wholly on inclination; and wherever coercion or guidance comes into collision with inclination, they divert it still farther from the proper path. Wherefore it appears to me that the State should not only loosen the bonds in this instance and leave ampler freedom to the citizen, but that it should entirely withdraw its active solicitude from the institution of marriage, and, both generally and in its particular modifications, should rather leave it wholly to the free choice of the individuals, and the various contracts they may enter into with respect to it. I should not be deterred from the adoption of this principle by the fear that all family relations might be disturbed, for, although such a fear might be justified by considerations of particular circumstances and localities, it could not fairly be entertained in an inquiry into the nature of men and States in general. For experience frequently convinces us that just where law has imposed no fetters, morality most surely binds; the idea of external coercion is one entirely foreign to an institution which, like marriage, reposes only on inclination and an inward sense of duty; and the results of such coercive institutions do not at all correspond to the intentions in which they originate."

A long succession of distinguished thinkers--moralists, sociologists, political reformers--have maintained the social advantages of divorce by mutual consent, or, under guarded circumstances, at the wish of one party. Mutual consent was the corner-stone of Milton's conception of marriage. Montesquieu said that true divorce must be the result of mutual consent and based on the impossibility of living together. Sénancour seems to agree with Montesquieu. Lord Morley (_Diderot_, vol. ii, Ch. I), echoing and approving the conclusions of Diderot's _Supplément au Voyage de Bougainville_ (1772), adds that the separation of husband and wife is "a transaction in itself perfectly natural and blameless, and often not only laudable, but a duty." Bloch (_Sexual Life of Our Time_, p. 240), with many other writers, emphasizes the truth of Shelley's saying, that the freedom of marriage is the guarantee of its durability. (That the facts of life point in the same direction has been shown in the previous chapter.) The learned Caspari (_Die Soziale Frage über die Freiheit der Ehe_), while disclaiming any prevision of the future, declares that if sexual relationships are to remain or to become moral, there must be an easier dissolution of marriage. Howard, at the conclusion of his exhaustive history of matrimonial institutions (vol. iii p. 220), though he himself believes that marriage is peculiarly in need of regulation by law, is yet constrained to admit that it is perfectly clear to the student of history that the modern divorce movement is "but a part of the mighty movement for social liberation which has been gaining in volume and strength since the Reformation." Similarly the cautious and judicial Westermarck concludes the chapter on marriage of his _Origin and Development of the Moral Ideas_ (vol. ii, p. 398) with the statement that "when both husband and wife desire to separate, it seems to many enlightened minds that the State has no right to prevent them from dissolving the marriage contract, provided the children are properly cared for; and that, for the children, also, it is better to have the supervision of one parent only than of two who cannot agree."

In France the leaders of the movement of social reform seem to be almost, or quite, unanimous in believing that the next step in regard to divorce is the establishment of divorce by mutual consent. This was, for instance, the result reached in a symposium

to which thirty-one distinguished men and women contributed. All were in favor of divorce by mutual consent; the only exception was Madame Adam, who said she had reached a state of skepticism with regard to political and social forms, but admitted that for nearly half a century she had been a strong advocate of divorce. A large number of the contributors were in favor of divorce at the desire of one party only (_La Revue_, March 1, 1901). In other countries, also, there is a growing recognition that this solution of the question, with due precautions to avoid any abuses to which it might otherwise be liable, is the proper and inevitable solution.

As to the exact method by which divorce by mutual consent should be effected, opinions differ, and the matter is likely to be differently arranged in different countries. The Japanese plan seems simple and judicious (see _ante_, p. 461). Paul and Victor Margueritte (_Quelques Idées_, pp. 3 et seq.), while realizing that the conflict of feeling in the matter of personal associations involves decisions which are entirely outside the competence of legal tribunals, recognize that such tribunals are necessary in order to deal with the property of divorced persons, and also, in the last resort, with the question of the care of the children. They should not act in public. These writers propose that each party should choose a representative, and that these two should choose a third; and that this tribunal should privately investigate, and if they agreed should register the divorce, which should take place six or twelve months later, or three years later, if only desired by one of the parties. Dr. Shufeldt ("Psychopathia Sexualis and Divorce") proposes that a divorce-court judge should conduct, alone, the hearing of any cases of marital discord, the husband and wife appearing directly before him, without counsel, though with their witnesses, if necessary; should medical experts be required the judge alone would be empowered to call them.

When we realize that the long delay in the acceptance of so just and natural a basis of divorce is due to an artificial tension created by the pressure of the dead hand of Canon law--a tension confined exclusively to Christendom--we may also realize that with the final disappearance of that tension the just and natural order in this relationship will spring back the more swiftly because that relief has been so long delayed. "Nature abhors a vacuum nowhere more than in a marriage," Ellen Key remarks in the language of antiquated physical metaphor; the vacuum will somehow be filled, and if it cannot be filled in a natural and orderly manner it will be filled in an unnatural and disorderly manner. It is the business of society to see that no laws stand in the way of the establishment of natural order.

Reform upon a reasonable basis has been made difficult by the unfortunate retention of the idea of delinquency. With the traditions of the Canonists at the back of our heads we have somehow persuaded ourselves that there cannot be a divorce unless there is a delinquent, a real serious delinquent who, if he had his deserts, would be imprisoned and consigned to infamy. But in the marriage relationship, as in all other relationships, it is only in a very small number of cases that one party stands towards the other as a criminal, even a defendant. This is often obvious in the early stages of conjugal alienation. But it remains true in the end. The wife commits adultery and the husband as a matter of course assumes the position of plaintiff. But

we do not inquire how it is that he has not so won her love that her adultery is out of the question; such inquiry might lead to the conclusion that the real defendant is the husband. And similarly when the husband is accused of brutal cruelty the law takes no heed to inquire whether in the infliction of less brutal but not less poignant wounds, the wife also should not be made defendant. There are a few cases, but only a few, in which the relationship of plaintiff and defendant is not a totally false and artificial relationship, an immoral legal fiction. In most cases, if the truth were fully known, husband and wife should come side by side to the divorce court and declare: "We are both in the wrong: we have not been able to fulfil our engagements to each other; we have erred in choosing each other." The long reports of the case in open court, the mutual recriminations, the detectives, the servant girls and other witnesses, the infamous inquisition into intimate secrets--all these things, which no necessity could ever justify, are altogether unnecessary.

It is said by some that if there were no impediments to divorce a man might be married in succession to half a dozen women. These simple-minded or ignorant persons do not seem to be aware that even when marriage is absolutely indissoluble a man can, and frequently does, carry on sexual relationships not merely successively, but, if he chooses, even simultaneously, with half a dozen women. There is, however, this important difference that, in the one case, the man is encouraged by the law to believe that he need only treat at most one of the six women with anything approaching to justice and humanity; in the other case the law insists that he shall fairly and openly fulfil his obligations towards all the six women. It is a very important difference, and there ought to be no question as to which state of things is moral and which immoral. It is no concern of the State to inquire into the number of persons with whom a man or a woman chooses to have sexual relationships; it is a private matter which may indeed affect their own finer spiritual development but which it is impertinent for the State to pry into. It is, however, the concern of the State, in its own collective interest and that of its members, to see that no injustice is done.

But what about the children? That is necessarily a very important question. The question of the arrangements made for the children in cases of divorce is always one to which the State must give its regulative attention, for it is only when there are children that the State has any real concern in the matter.

At one time it was even supposed by some that the existence of children was a serious argument against facility of divorce. A more reasonable view is now generally taken. It is, in the first place, recognized that a very large proportion of couples seeking divorce have no children. In England the proportion is about forty per cent.; in some other countries it is doubtless larger still. But even when there are children no one who realizes what the conditions are in families where the parents ought to be but are not divorced can have any doubt that usually those conditions are extremely bad for the children. The tension between the parents absorbs energy which should be devoted to the children. The spectacle of the grievances or quarrels of their parents is demoralizing for the children, and usually fatal to any respect towards them. At the best it is injuriously distressing to the children. One effective parent, there cannot be the slightest doubt, is far better for a child than two ineffective

parents. There is a further point, often overlooked, for consideration here. Two people when living together at variance--one of them perhaps, it is not rarely the case, nervously abnormal or diseased--are not fitted to become parents, nor in the best condition for procreation. It is, therefore, not merely an act of justice to the individual, but a measure called for in the interests of the State, that new citizens should not be brought into the community through such defective channels.[353] From this point of view all the interests of the State are on the side of facility of divorce.

There is a final argument which is often brought forward against facility of divorce. Marriage, it is said, is for the protection of women; facilitate divorce and women are robbed of that protection. It is obvious that this argument has little application as against divorce by mutual consent. Certainly it is necessary that divorce should only be arranged under conditions which in each individual case have received the approval of the law as just. But it must always be remembered that the essential fact of marriage is not naturally, and should never artificially be made, an economic question. It is possible--that is a question which society will have to consider--that a woman should be paid for being a mother on the ground that she is rearing new citizens for the State. But neither the State nor her husband nor anyone else ought to pay her for exercising conjugal rights. The fact that such an argument can be brought forward shows how far we are from the sound biological attitude towards sexual relationships. Equally unsound is the notion that the virgin bride brings her husband at marriage an important capital which is consumed in the first act of intercourse and can never be recovered. That is a notion which has survived into civilization, but it belongs to barbarism and not to civilization. So far as it has any validity it lies within a sphere of erotic perversity which cannot be taken into consideration in an estimation of moral values. For most men, however, in any case, whether they realize it or not, the woman who has been initiated into the mysteries of love has a higher erotic value than the virgin, and there need be no anxiety on this ground concerning the wife who has lost her virginity. It is probably a significant fact that this anxiety for the protection of women by the limitation of divorce is chiefly brought forward by men and not by women themselves. A woman at marriage is deprived by society and the law of her own name. She has been deprived until recently of the right to her own earnings. She is deprived of the most intimate rights in her own person. She is deprived under some circumstances of her own child, against whom she may have committed no offence whatever. It is perhaps scarcely surprising that she is not greatly appreciative of the protection afforded her by the withholding of the right to divorce her husband. "Ah, no, no protection!" a brilliant French woman has written. "We have been protected long enough. The only protection to grant women is to cease protecting them."[354] As a matter of fact the divorce movement appears to develop, on the whole, with that development of woman's moral responsibility traced in the previous chapter, and where divorce is freest women occupy the highest position.

We cannot fail to realize as we grasp the nature and direction of the modern movement of divorce that the final tendency of that movement is to efface itself. Necessary as the Divorce Court has been as the inevitable corollary of an impossible

ecclesiastical conception of marriage, no institution is now more hideous, more alien to the instinctive feelings generated by a fine civilization, and more opposed to the dignity of womanhood.[355] Its disappearance and its substitution by private arrangements, effected on their contractive sides, especially if there are children to provide for, under legal and if necessary judicial supervision, is, and always has been, the natural result of the attainment of a reasonably high stage of civilization. The Divorce Court has merely been a phase in the history of modern marriage, and a phase that has really been repugnant to all concerned in it. There is no need to view the project of its ultimate disappearance with anything but satisfaction. It was merely the outcome of an artificial conception of marriage. It is time to return to the consideration of that conception.

We have seen that when the Catholic development of the archaic conception of marriage as a sacrament, slowly elaborated and fossilized by the ingenuity of the Canonists, was at last nominally dethroned, though not destroyed, by the movement associated with the Reformation, it was replaced by the conception of marriage as a contract. This conception of marriage as a contract still enjoys a considerable amount of credit amongst us.

There must always be contractive elements, implicit or explicit, in a marriage; that was well recognized even by the Canonists. But when we treat marriage as all contract, and nothing but contract, we have to realize that we have set up a very peculiar form of contract, not voidable, like other contracts, by the agreement of the parties to it, but dissoluble as a sort of punishment of delinquency rather than by the voluntary annulment of a bond.[356] When the Protestant Reformers seized on the idea of marriage as a contract they were not influenced by any reasoned analysis of the special characteristics of a contract; they were merely anxious to secure a plausible ground, already admitted even by the Canonists to cover certain aspects of the matrimonial union, on which they could declare that marriage is a secular and not an ecclesiastical matter, a civil bond and not a sacramental process.[357]

Like so much else in the Protestant revolt, the strength of this attitude lay in the fact that it was a protest, based on its negative side on reasonable and natural grounds. But while Protestantism was right in its attempt--for it was only an attempt--to deny the authority of Canon law, that attempt was altogether unsatisfactory on the positive side. As a matter of fact marriage is not a true contract and no attempt has ever been made to convert it into a true contract.

Various writers have treated marriage as an actual contract or argued that it ought to be converted into a true contract. Mrs. Mona Caird, for instance ("The Morality of Marriage," _Fortnightly Review_, 1890), believes that when marriage becomes really a contract "a couple would draw up their agreement, or depute the task to their friends, as is now generally done as regards marriage settlements. They agree to live together on such and such terms, making certain stipulations within the limits of the code." The State, she holds, should, however, demand an interval of time between notice of divorce and the divorce itself, if still desired when that interval has passed. Similarly, in the United States Dr. Shufeldt ("Needed Revision of the Laws of Marriage and Divorce," _Medico-Legal Journal_, Dec., 1897) insists that marriage

must be entirely put into the hands of the legal profession and "made a civil contract, explicit in detail, and defining terms of divorce, in the event that a dissolution of the contract is subsequently desired." He adds that medical certificates of freedom from hereditary and acquired disease should be required, and properly regulated probationary marriages also be instituted.

In France, a deputy of the Chamber was, in 1891, so convinced that marriage is a contract, like any other contract, that he declared that "to perform music at the celebration of a marriage is as ridiculous as it would be to send for a tenor to a notary's to celebrate a sale of timber." He was of quite different mind from Pepys, who, a couple of centuries earlier, had been equally indignant at the absence of music from a wedding, which, he said, made it like a coupling of dog and bitch.

A frequent demand of those who insist that marriage must be regarded as a contract is marriage contracted for a term of years. Marriages could be contracted for a term of five years or less in old Japan, and it is said that they were rarely or never dissolved at the end of the term. Goethe, in his _Wahlverwandtschaften_ (Part I, Ch. X) incidentally introduced a proposal for marriages for a term of five years and attached much moral significance to the prolongation of the marriage beyond that term without external compulsion. (Bloch considers that Goethe had probably heard of the Japanese custom, _Sexual Life of Our Time_, p. 241.) Professor E.D. Cope ("The Marriage Problem," _Open Court_, Nov. 15 and 22, 1888), likewise, in order to remove matrimony from the domain of caprice and to permit full and fair trial, advocated "a system of civil marriage contracts which shall run for a definite time. These contracts should be of the same value and effect as the existing marriage contract. The time limits should be increased rapidly, so as to prevent women of mature years being deprived of support. The first contract ought not to run for less than five years, so as to give ample opportunity for acquaintance, and for the recovery from temporary disagreements." This first contract, Cope held, should be terminable at the wish of either party; the second contract, for ten or fifteen years, should only be terminable at the wish of both parties, and the third should be permanent and indissoluble. George Meredith, the distinguished novelist, also, more recently, threw out the suggestion that marriages should be contracted for a term of years.

It can scarcely be said that marriages for a term of years constitute a very satisfactory solution of the difficulties at present encountered. They would not commend themselves to young lovers, who believe that their love is eternal, nor, so long as the union proves satisfactory, is there any need to introduce the disturbing idea of a legal termination of the contract. On the other hand, if the union proves unhappy, it is not reasonable to insist on the continuation for ten or even five years of an empty form which corresponds to no real marriage union. Even if marriage is placed on the most prosaic contractive basis it is a mistake, and indeed an impossibility, to pre-ordain the length of its duration. The system of fixing the duration of marriage beforehand for a term of years involves exactly the same principle as the system of fixing it beforehand for life. It is open to the same objection that it is incompatible with any vital relationship. As the demand for vital reality and

effectiveness in social relationships grows, this fact is increasingly felt. We see exactly the same change among us in regard to the system of inflicting fixed sentences of imprisonment on criminals. To send a man to prison for five years or for life, without any regard to the unknown problem of the vital reaction of imprisonment on the man--a reaction which will be different in every individual case--is slowly coming to be regarded as an absurdity.

If marriage were really placed on the basis of a contract, not only would that contract be voidable at the will of the two parties concerned, without any question of delinquency coming into the question, but those parties would at the outset themselves determine the conditions regulating the contract. But nothing could be more unlike our actual marriage. The two parties are bidden to accept each other as husband and wife; they are not invited to make a contract; they are not even told that, little as they may know it, they have in fact made a very complicated and elaborate contract that was framed on lines laid down, for a large part, thousands of years before they were born. Unless they have studied law they are totally ignorant, also, that this contract contains clauses which under some circumstances may be fatal to either of them. All that happens is that a young couple, perhaps little more than children, momentarily dazed by emotion, are hurried before the clergyman or the civil registrar of marriages, to bind themselves together for life, knowing nothing of the world and scarcely more of each other, knowing nothing also of the marriage laws, not even perhaps so much as that there are any marriage laws, never realizing that--as has been truly said--from the place they are entering beneath a garland of flowers there is, on this side of death, no exit except through the trapdoor of a sewer.[358]

When a woman marries she gives up the right to her own person. Thus, according to the law of England, a man "cannot be guilty of a rape upon his lawful wife." Stephen, who, in the first edition of his _Digest of Criminal Law_, thought that under some circumstances a man might be indicted for rape upon his wife, in the last edition withdrew that opinion. A man may rape a prostitute, but he cannot rape his wife. Having once given her consent to sexual intercourse by the act of marrying a man, she has given it forever, whatever new circumstances may arise, and he has no need to ask her consent to sexual intercourse, not even if he is knowingly suffering at the time from a venereal disease (see, e.g., an article on "Sex Bias," _Westminster Review_, March, 1888).

The duty of the wife to allow "conjugal rights" to her husband is another aspect of her legal subjection to him. Even in the nineteenth century a Suffolk lady of good family was imprisoned in Ipswich Goal for many years and fed on bread and water, though suffering from various diseases, till she died, simply because she continued to disregard the decree requiring her to render conjugal rights to her husband. This state of things was partly reformed by the Matrimonial Causes Bill of 1884, and that bill was passed, not to protect women, but men, against punishment for refusal to restore conjugal rights. Undoubtedly, the modern tendency, although it has progressed very slowly, is against applying compulsion to either husband or wife to yield "conjugal rights;" and since the Jackson case it is not possible in England for a

husband to use force in attempting to compel his wife to live with him. This tendency is still more marked in the United States; thus the Iowa Supreme Court, a few years ago, decided that excessive demands for coitus constituted cruelty of a degree justifying divorce (J.G. Kiernan, _Alienist and Neurologist_, Nov. 1906, p. 466).

The slender tenure of the wife over her person is not confined to the sexual sphere, but even extends to her right to life. In England, if a wife kills her husband, it was formerly the very serious offence of "petit treason," and it is still murder. But, if a husband kills his wife and is able to plead her adultery and his jealousy, it is only manslaughter. (In France, where jealousy is regarded with extreme indulgence, even a wife who kills her husband is often acquitted.)

It must not, however, be supposed that all the legal inequalities involved by marriage are in favor of the husband. A large number of injustices are also inflicted on the husband. The husband, for instance, is legally responsible for the libels uttered by his wife, and he is equally responsible civilly for the frauds she commits, even if she is living apart from him. (This was, for instance, held by an English judge in 1908; "he could only say he regretted it, for it seems a hard case. But it was the law.") Belfort Bax has, in recent years, especially insisted on the hardships inflicted by English law in such ways as these. There can be no doubt that marriage, as at present constituted, inflicts serious wrongs on the husband as well as on the wife.

Marriage is, therefore, not only not a contract in the true sense,[359] but in the only sense in which it is a contract it is a contract of an exceedingly bad kind. When the Canonists superseded the old conception of marriage as a contract of purchase by their sacramental marriage, they were in many respects effecting a real progress, and the return to the idea of a contract, as soon as its temporary value as a protest has ceased, proves altogether out of harmony with any advanced stage of civilization. It was revived in days before the revolt against slavery had been inaugurated. Personal contracts are out of harmony with our modern civilization and our ideas of individual liberty. A man can no longer contract himself as a slave nor sell his wife. Yet marriage, regarded as a contract, is of precisely the same class as those transactions.[360] In every high stage of civilization this fact is clearly recognized, and young couples are not even allowed to contract themselves out in marriage unconditionally. We see this, for instance, in the wise legislation of the Romans. Even under the Christian Emperors that sound principle was maintained and the lawyer Paulus wrote:[361] "Marriage was so free, according to ancient opinion, that even agreements between the parties not to separate from one another could have no validity." In so far as the essence and not any accidental circumstance of the marital relationships is made a contract, it is a contract of a nature which the two parties concerned are not competent to make. Biologically and psychologically it cannot be valid, and with the growth of a humane civilization it is explicitly declared to be legally invalid.

For, there can be no doubt about it, the intimate and essential fact of marriage--the relationship of sexual intercourse--is not and cannot be a contract. It is not a contract but a fact; it cannot be effected by any mere act of will on the part of the parties concerned; it cannot be maintained by any mere act of will. To will such a contract is

merely to perform a worse than indecorous farce. Certainly many of the circumstances of marriage are properly the subject of contract, to be voluntarily and deliberately made by the parties to the contract. But the essential fact of marriage--a love strong enough to render the most intimate of relationships possible and desirable through an indefinite number of years--cannot be made a matter for contract. Alike from the physical point of view, and the psychical point of view, no binding contract--and a contract is worthless if it is not binding--can possibly be made. And the making of such pseudo-contracts concerning the future of a marriage, before it has even been ascertained that the marriage can ever become a fact at all, is not only impossible but absurd.

It is of course true that this impossibility, this absurdity, are never visible to the contracting parties. They have applied to the question all the very restricted tests that are conventionally permitted to them, and the satisfactory results of these tests, together with the consciousness of possessing an immense and apparently inexhaustible fund of loving emotion, seem to them adequate to the fulfilment of the contract throughout life, if not indeed eternity.

As a child of seven I chanced to be in a semi-tropical island of the Pacific supplied with fruit, especially grapes, from the mainland, and a dusky market woman always presented a large bunch of grapes to the little English stranger. But a day came when the proffered bunch was firmly refused; the superabundance of grapes had produced a reaction of disgust. A space of nearly forty years was needed to overcome the repugnance to grapes thus acquired. Yet there can be no doubt that if at the age of six that little boy had been asked to sign a contract binding him to accept grapes every day, to keep them always near him, to eat them and to enjoy them every day, he would have signed that contract as joyously as any radiant bridegroom or demure bride signs the register in the vestry. But is a complex man or woman, with unknown capacities for changing or deteriorating, and with incalculable aptitudes for inflicting torture and arousing loathing, is such a creature more easy to be bound to than an exquisite fruit? All the countries of the world in which the subtle influence of the Canon law of Christendom still makes itself felt, have not yet grasped a general truth which is well within the practical experience of a child of seven.[362]

The notion that such a relationship as that of marriage can rest on so fragile a basis as a pre-ordained contract has naturally never prevailed widely in its extreme form, and has been unknown altogether in many parts of the world. The Romans, as we know, explicitly rejected it, and even at a comparatively early period recognized the legality of marriage by _usus_, thus declaring in effect that marriage must be a fact, and not a mere undertaking. There has been a widespread legal tendency, especially where the traditions of Roman law have retained any influence, to regard the cohabitation of marriage as the essential fact of the relationship. It was an old rule even under the Catholic Church that marriage may be presumed from cohabitation (see, e.g., Zacchia, _Questionum Medico-legalium Opus_, edition of 1688, vol. iii, p. 234). Even in England cohabitation is already one of the presumptions in favor of the existence of marriage (though not necessarily by itself regarded as sufficient), provided the woman is of unblemished character, and does

not appear to be a common prostitute (Nevill Geary, _The Law of Marriage_, Ch. III). If, however, according to Lord Watson's judicial statement in the Dysart Peerage case, a man takes his mistress to a hotel or goes with her to a baby-linen shop and speaks of her as his wife, it is to be presumed that he is acting for the sake of decency, and this furnishes no evidence of marriage. In Scotland the presumption of marriage arises on much slighter grounds than in England. This may be connected with the ancient and deep-rooted custom in Scotland of marriage by exchange of consent (Geary, op. cit. Ch. XVIII; cf., Howard, _Matrimonial Institutions_, vol. i, p. 316).

In the Bredalbane case (Campbell _v._ Campbell, 1867), which was of great importance because it involved the succession to the vast estates of the Marquis of Bredalbane, the House of Lords decided than even an adulterous connection may, on ceasing to be adulterous, become matrimonial by the simple consent of the parties, as evidenced by habit and repute, without any need for the matrimonial character of the connection to be indicated by any public act, nor any necessity to prove the specific period when the consent was interchanged. This decision has been confirmed in the Dysart case (Geary, loc. cit.; cf. C.G. Garrison, "Limits of Divorce," _Contemporary Review_, Feb., 1894). Similarly, as decided by Justice Kekewich in the Wagstaff case in 1907, if a man leaves money to his "widow," on condition that she never marries again, although he has never been married to her, and though she has been legally married to another man, the testator's intentions must be upheld. Garrison, in his valuable discussion of this aspect of legal marriage (_loc. cit._), forcibly insists that by English law marriage is a fact and not a contract, and that where "conduct characterized by connubial purpose and constancy" exists, there marriage legally exists, marriage being simply "a name for an existing fact."

In the United States, marriage "by habit and repute" similarly exists, and in some States has even been confirmed and extended by statute (J.P. Bishop, _Commentaries_, vol. i, Ch. XV). "Whatever the form of the ceremony, and even if all ceremony was dispensed with," said Judge Cooley, of Michigan, in 1875 (in an opinion accepted as authoritative by the Federal courts), "if the parties agreed presently to take each other for husband and wife, and from that time lived together professedly in that relation, proof of these facts would be sufficient.... This has been the settled doctrine of the American courts." (Howard, op. cit., vol. iii, pp. 177 et seq. Twenty-three States sanction common-law marriage, while eighteen repudiate, or are inclined to repudiate, any informal agreement.)

This legal recognition by the highest judicial authorities, alike in Great Britain and the United States, that marriage is essentially a fact, and that no evidence of any form or ceremony of marriage is required for the most complete legal recognition of marriage, undoubtedly carries with it highly important implications. It became clear that the reform of marriage is possible even without change in the law, and that honorable sexual relationships, even when entered into without any legal forms, are already entitled to full legal recognition and protection. There are, however, it need scarcely be added here, other considerations which render reform along these lines incomplete.

It thus tends to come about that with the growth of civilization the conception of marriage as a contract falls more and more into discredit. It is realized, on the one hand, that personal contracts are out of harmony with our general and social attitude, for if we reject the idea of a human being contracting himself as a slave, how much more we should reject the idea of entering by contract into the still more intimate relationship of a husband or a wife; on the other hand it is felt that the idea of pre-ordained contracts on a matter over which the individual himself has no control is quite unreal and when any strict rules of equity prevail, necessarily invalid. It is true that we still constantly find writers sententiously asserting their notions of the duties or the privileges involved by the "contract" of marriage, with no more attempt to analyze the meaning of the term "contract" in this connection than the Protestant Reformers made, but it can scarcely be said that these writers have yet reached the alphabet of the subject they dogmatize about.

The transference of marriage from the Church to the State which, in the lands where it first occurred, we owe to Protestantism and, in the English-speaking lands, especially to Puritanism, while a necessary stage, had the unfortunate result of secularizing the sexual relationships. That is to say, it ignored the transcendent element in love which is really the essential part of such relationships, and it concentrated attention on those formal and accidental parts of marriage which can alone be dealt with in a rigid and precise manner, and can alone properly form the subject of contracts. The Canon law, fantastic and impossible as it became in many of its developments, at least insisted on the natural and actual fact of marriage as, above all, a bodily union, while, at the same time, it regarded that union as no mere secular business contract but a sacred and exalted function, a divine fact, and the symbol of the most divine fact in the world. We are returning to-day to the Canonist's conception of marriage on a higher and freer plane, bringing back the exalted conception of the Canon law, yet retaining the individualism which the Puritan wrongly thought he could secure on the basis of mere secularization, while, further, we recognize that the whole process belongs to the private sphere of moral responsibility. As Hobhouse has well said, in tracing the evolutionary history of the modern conception of marriage, the sacramental idea of marriage has again emerged but on a higher plane; "from being a sacrament in the magical, it has become one in the ethical, sense." We are thus tending towards, though we have not yet legally achieved, marriage made and maintained by consent, "a union between two free and responsible persons in which the equal rights of both are maintained."[363]

It is supposed by some that to look upon sexual union as a sacrament is necessarily to accept the ancient Catholic view, embodied in the Canon law, that matrimony is indissoluble. That is, however, a mistake. Even the Canonists themselves were never able to put forward any coherent and consistent ground for the indissolubility of matrimony which could commend itself rationally, while Luther and Milton and Wilhelm von Humboldt, who maintained the religious and sacred nature of sexual union--though they were cautious about using the term sacrament on account of its ecclesiastical implications--so far from believing that its sanctity involved indissolubility, argued in the reverse sense. This point of view may be defended even from a strictly Protestant standpoint. "I take it," Mr. G.C. Maberly says, "that the

Prayer Book definition of a sacrament, 'the outward and visible sign of an inward and spiritual grace,' is generally accepted. In marriage the legal and physical unions are the outward and visible signs, while the inward and spiritual grace is the God-given love that makes the union of heart and soul: and it is precisely because I take this view of marriage that I consider the legal and physical union should be dissolved whenever the spiritual union of unselfish, divine love and affection has ceased. It seems to me that the sacramental view of marriage compels us to say that those who continue the legal or physical union when the spiritual union has ceased, are--to quote again from the Prayer Book words applied to those who take the outward sign of another sacrament when the inward and spiritual grace is not present--'eating and drinking their own damnation.'"

If from the point we have now reached we look back at the question of divorce we see that, as the modern aspects of the marriage relationship becomes more clearly realized by the community, that question will be immensely simplified. Since marriage is not a mere contract but a fact of conduct, and even a sacred fact, the free participation of both parties is needed to maintain it. To introduce the idea of delinquency and punishment into divorce, to foster mutual recrimination, to publish to the world the secrets of the heart or the senses, is not only immoral, it is altogether out of place. In the question as to when a marriage has ceased to be a marriage the two parties concerned can alone be the supreme judges; the State, if the State is called in, can but register the sentence they pronounce, merely seeing to it that no injustice is involved in the carrying out of that sentence.[364]

In discussing in the previous chapter the direction in which sexual morality tends to develop with the development of civilization we came to the conclusion that in its main lines it involved, above all, personal responsibility. A relationship fixed among savage peoples by social custom which none dare break, and in a higher stage of culture by formal laws which must be observed in the letter even if broken in the spirit, becomes gradually transferred to the sphere of individual moral responsibility. Such a transference is necessarily meaningless, and indeed impossible, unless the increasing stringency of the moral bond is accompanied by the decreasing stringency of the formal bond. It is only by the process of loosening the artificial restraints that the natural restraints can exert their full control. That process takes place in two ways, in part on the basis of the indifference to formal marriage which has marked the masses of the population everywhere and doubtless stretches back to the tenth century before the domination of ecclesiastical matrimony began, and partly by the progressive modification of marriage laws which were made necessary by the needs of the propertied classes anxious to secure the State recognition of their unions. The whole process is necessarily a gradual and indeed imperceptible process. It is impossible to fix definitely the dates of the stages by which the Church effected the immense revolution by which it grasped, and eventually transferred to the State, the complete control of marriage, for that revolution was effected without the intervention of any law. It will be equally difficult to perceive the transference of the control of marriage from the State to the individuals concerned, and the more difficult because, as we shall see, although the essential and intimately personal fact of marriage is not a proper matter for State control, there are certain aspects of

marriage which touch the interests of the community so closely that the State is bound to insist on their registration and to take an interest in their settlement.

The result of dissolving the formal stringency of the marriage relationship, it is sometimes said, would be a tendency to an immoral laxity. Those who make this statement overlook the fact that laxity tends to reach a maximum as a result of stringency, and that where the merely external authority of a rigid marriage law prevails, there the extreme excesses of license most flourish. It is also undoubtedly true, and for the same reason, that any sudden removal of restraints necessarily involves a reaction to the opposite extreme of license; a slave is not changed at a stroke into an autonomous freeman. Yet we have to remember that the marriage order existed for millenniums before any attempt was made to mould it into arbitrary shapes by human legislation. Such legislation, we have seen, was indeed the effort of the human spirit to affirm more emphatically the demands of its own instincts.[365] But its final result is to choke and impede rather than to further the instincts which inspired it. Its gradual disappearance allows the natural order free and proper scope.

The great truth that compulsion is not really a force on the side of virtue, but on the side of vice, had been clearly realized by the genius of Rabelais, when he said of his ideal social state, the Abbey of Thelema, that there was but one clause in its rule: Fay ce que vouldras. "Because," said Rabelais (Bk. i, Ch. VII), "men that are free, well-born, well-bred, and conversant in honest companies, have naturally an instinct and spur that prompts them unto virtuous actions and withdraws them from vice. These same men, when by base subjection and constraint they are brought under and kept down, turn aside from that noble disposition by which they freely were inclined to virtue, to shake off and break that bond of servitude." So that when a man and a woman who had lived under the rule of Thelema married each other, Rabelais tells us, their mutual love lasted undiminished to the day of their death.

When the loss of autonomous freedom fails to lead to licentious rebellion it incurs the opposite risk and tends to become a flabby reliance on an external support. The artificial support of marriage by State regulation then resembles the artificial support of the body furnished by corset-wearing. The reasons for and against adopting artificial support are the same in one case as the other. Corsets really give a feeling of support; they really furnish without trouble a fairly satisfactory appearance of decorum; they are a real protection against various accidents. But the price at which they furnish these advantages is serious, and the advantages themselves only exist under unnatural conditions. The corset cramps the form and the healthy development of the organs; it enfeebles the voluntary muscular system; it is incompatible with perfect grace and beauty; it diminishes the sum of active energy. It exerts, in short, the same kind of influence on physical responsibility as formal marriage on moral responsibility.

It is too often forgotten, and must therefore be repeated, that married people do not remain together because of any religious or legal tie; that tie is merely the historical outcome of their natural tendency to remain together, a tendency which is itself far older than history. "Love would exist in the world to-day, just as pure and just as enduring," says Shufeldt (_Medico-Legal Journal_, Dec., 1897), "had man

never invented 'marriage.' Truly affined mates would have remained faithful to each other as long as life lasted. It is only when men attempt to improve upon nature that crime, disease, and unhappiness step in." "The abolition of marriage in the form now practiced," wrote Godwin more than a century ago (_Political Justice_, second edition, 1796, vol. i, p. 248), "will be attended with no evils. We are apt to represent it to ourselves as the harbinger of brutal lust and depravity. But it really happens in this, as in other cases, that the positive laws which are made to restrain our vices irritate and multiply them." And Professor Lester Ward, in insisting on the strength of the monogamic sentiment in modern society, truly remarks (_International Journal of Ethics_, Oct., 1896) that the rebellion against rigid marriage bonds "is, in reality, due to the very strengthening of the true bonds of conjugal affection, coupled with a rational and altogether proper determination on the part of individuals to accept, in so important a matter, nothing less than the genuine article." "If by a single stroke," says Professor Woods Hutchinson (_Contemporary Review_, Sept., 1905), "all marriage ties now in existence were struck off or declared illegal, eight-tenths of all couples would be remarried within forty eight hours, and seven-tenths could not be kept asunder with bayonets." An experiment of this kind on a small scale was witnessed in 1909 in an English village in Buckinghamshire. It was found that the parish church had never been licensed for marriages, and that in consequence all the people who had gone through the ceremony of marriage in that church during the previous half century had never been legally married. Yet, so far as could be ascertained, not a single couple thus released from the legal compulsion of marriage took advantage of the freedom bestowed. In the face of such a fact it is obviously impossible to attach any moral value to the form of marriage.

It is certainly inevitable that during a period of transition the natural order is to some extent disturbed by the persistence, even though in a weakened form, of external bonds which are beginning to be consciously realized as inimical to the authoritative control of individual moral responsibility. We can clearly trace this at the present time. A sensitive anxiety to escape from external constraint induces an under-valuation of the significance of personal constraint in the relationship of marriage. Everyone is probably familiar with cases in which a couple will live together through long years without entering the legal bond of marriage, notwithstanding difficulties in their mutual relationship which would have long since caused a separation or a divorce had they been legally married. When the inherent difficulties of the marital relationship are complicated by the difficulties due to external constraint, the development of individual moral responsibility cuts two ways, and leads to results that are not entirely satisfactory. This has been seen in the United States of America and attention has often been called to it by thoughtful American observers. It is, naturally, noted especially in women because it is in women that the new growth of personal freedom and moral responsibility has chiefly made itself felt. The first stirring of these new impulses, especially when associated, as it often is, with inexperience and ignorance, leads to impatience with the natural order, to a demand for impossible conditions of existence, and to an inaptitude not only for the arbitrary bondage of law but even for the wholesome and necessary bonds of human social life. It is always a hard lesson for the young and idealistic that

in order to command Nature we must obey her; it can only be learnt through contact with life and by the attainment of full human growth.

Dr. Felix Adler (in an address before the Society of Ethical Culture of New York, Nov. 17, 1889) called attention to what he regarded as the most deep-rooted cause of an undue prevalence of divorce in America. "The false idea of individual liberty is largely held in America," and when applied to family life it often leads to an impatience with these duties which the individual is either born into or has voluntarily accepted. "I am constrained to think that the prevalence of divorce is to be ascribed in no small degree to the influence of democratic ideas--that is, of false democratic ideas--and our hope lies in advancing towards a higher and truer democracy." A more recent American writer, this time a woman, Anna A. Rogers ("Why American Marriages Fail," _Atlantic Monthly_, Sept., 1907) speaks in the same sense, though perhaps in too unqualified a manner. She states that the frequency of divorce in America is due to three causes: (1) woman's failure to realize that marriage is her work in the world; (2) her growing individualism; (3) her lost art of giving, replaced by a highly developed receptive faculty. The American woman, this writer states, in discovering her own individuality has not yet learnt how to manage it; it is still "largely a useless, uneasy factor, vouchsafing her very little more peace than it does those in her immediate surcharged vicinity." Her circumstances tend to make of her "a curious anomalous hybrid; a cross between a magnificent, rather unmannerly boy, and a spoiled, exacting _demi-mondaine_, who sincerely loves in this world herself alone." She has not yet learnt that woman's supreme work in the world can only be attained through the voluntary acceptance of the restraints of marriage. The same writer points out that the fault is not alone with American women, but also with American men. Their idolatry of their women is largely responsible for that intolerance and selfishness which causes so many divorces; "American women are, as a whole, pampered and worshipped out of all reason." But the men, who lend themselves to this, do not feel that they can treat their wives with the same comradeship as the French treat their wives, nor seek their advice with the same reliance; the American woman is placed on an unreal pedestal. Yet another American writer, Rafford Pyke ("Husbands and Wives," _Cosmopolitan_, 1902), points out that only a small proportion of American marriages are really unhappy, these being chiefly among the more cultured classes, in which the movement of expansion in women's interests and lives is taking place; it is more often the wife than the husband who is disappointed in marriage, and this is largely due to her inability to merge, not necessarily subordinate, her individuality in an equal union with his. "Marriage to-day is becoming more and more dependent for its success upon the adjustment of conditions that are psychical. Whereas in former generations it was sufficient that the union should involve physical reciprocity, in this age of ours the union must involve a psychic reciprocity as well. And whereas, heretofore, the community of interest was attained with ease, it is now becoming far more difficult because of the tendency to discourage a woman who marries from merging her separate individuality in her husband's. Yet, unless she does this, how can she have a complete and perfect interest in the life together, and, for that matter, how can he have such an interest either?"

Professor Münsterberg, the distinguished psychologist, in his frank but appreciative study of American institutions, _The Americans_, taking a broader outlook, points out that the influence of women on morals in America has not been in every respect satisfactory, in so far as it has tended to encourage shallowness and superficiality. "The American woman who has scarcely a shred of education," he remarks (p. 587), "looks in vain for any subject on which she has not firm convictions already at hand.... The arrogance of this feminine lack of knowledge is the symptom of a profound trait in the feminine soul, and points to dangers springing from the domination of women in the intellectual life.... And in no other civilized land are ethical conceptions so worm-eaten by superstitions."

We have seen that the modern tendency as regards marriage is towards its recognition as a voluntary union entered into by two free, equal, and morally responsible persons, and that that union is rather of the nature of an ethical sacrament than of a contract, so that in its essence as a physical and spiritual bond it is outside the sphere of the State's action. It has been necessary to labor that point before we approach what may seem to many not only a different but even a totally opposed aspect of marriage. If the marriage union itself cannot be a matter for contract, it naturally leads to a fact which must necessarily be a matter for implicit or explicit contract, a matter, moreover, in which the community at large has a real and proper interest: that is the fact of procreation.[366]

The ancient Egyptians--among whom matrimonial institutions were so elastic and the position of woman so high--recognized a provisional and slight marriage bond for the purpose of testing fecundity.[367] Among ourselves the law makes no such paternal provision, leaving to young couples themselves the responsibility of making any tests, a permission, we know, they largely avail themselves of, usually entering the legal bonds of marriage, however, before the birth of their child. That legal bond is a recognition that the introduction of a new individual into the community is not, like sexual union, a mere personal fact, but a social fact, a fact in which the State cannot fail to be concerned. And the more we investigate the tendency of the modern marriage movement the more we shall realize that its attitude of freedom, of individual moral responsibility, in the formation of sexual relationships, is compensated by an attitude of stringency, of strict social oversight, in the matter of procreation. Two people who form an erotic relationship are bound, when they reach the conviction that their relationship is a real marriage, having its natural end in procreation, to subscribe to a contract which, though it may leave themselves personally free, must yet bind them both to their duties towards their children.[368]

The necessity for such an undertaking is double, even apart from the fact that it is in the highest interests of the parents themselves. It is required in the interests of the child. It is required in the interests of the State. A child can be bred, and well-bred, by one effective parent. But to equip a child adequately for its entrance into life both parents are usually needed. The State on its side--that is to say, the community of which parents and child alike form part--is bound to know who these persons are who have become sponsors for a new individual now introduced into its midst. The most Individualistic State, the most Socialistic State, are alike bound, if faithful to the

interests, both biological and economic, of their constituent members generally, to insist on the full legal and recognized parentage of the father and mother of every child. That is clearly demanded in the interests of the child; it is clearly demanded also in the interests of the State.

The barrier which in Christendom has opposed itself to the natural recognition of this fact, so injuring alike the child and the State, has clearly been the rigidity of the marriage system, more especially as moulded by the Canon law. The Canonists attributed a truly immense importance to the _copula carnalis_, as they technically termed it. They centred marriage strictly in the vagina; they were not greatly concerned about either the presence or the absence of the child. The vagina, as we know, has not always proved a very firm centre for the support of marriage, and that centre is now being gradually transferred to the child. If we turn from the Canonists to the writings of a modern like Ellen Key, who so accurately represents much that is most characteristic and essential in the late tendencies of marriage development, we seem to have entered a new world, even a newly illuminated world. For "in the new sexual morality, as in Corregio's _Notte_, the light emanates from the child."[369]

No doubt this change is largely a matter of sentiment, of, as we sometimes say, mere sentiment, although there is nothing so powerful in human affairs as sentiment, and the revolution effected by Jesus, the later revolution effected by Rousseau, were mainly revolutions in sentiment. But the change is also a matter of the growing recognition of interests and rights, and as such it manifests itself in law. We can scarcely doubt that we are approaching a time when it will be generally understood that the entrance into the world of every child, without exception, should be preceded by the formation of a marriage contract which, while in no way binding the father and mother to any duties, or any privileges, towards each other, binds them both towards their child and at the same time ensures their responsibility towards the State. It is impossible for the State to obtain more than this, but it should be impossible for it to demand less. A contract of such a kind "marries" the father and mother so far as the parentage of the individual child is concerned, and in no other respect; it is a contract which leaves entirely unaffected their past, present, or future relations towards other persons, otherwise it would be impossible to enforce it. In all parts of the world this elementary demand of social morality is slowly beginning to be recognized, and as it affects hundreds of thousands of infants[370] who are yearly branded as "illegitimate" through no act of their own, no one can say that the recognition has come too soon. As yet, indeed, it seems nowhere to be complete.

Most attempts or proposals for the avoidance of illegitimate births are concerned with the legalizing of unions of a less binding degree than the present legal marriage. Such unions would serve to counteract other evils. Thus an English writer, who has devoted much study to sex questions, writes in a private letter: "The best remedy for the licentiousness of celibate men and the mental and physical troubles of continence in woman would be found in a recognized honorable system of free unions and trial-marriages, in which preventive intercourse is practiced until the lovers were old enough to become parents, and possessed of sufficient means to support a family. The prospect of a loveless existence for young men and women of ardent natures is

intolerable and as terrible as the prospect of painful illness and death. But I think the old order must change ere long."

In Teutonic countries there is a strongly marked current of feeling in the direction of establishing legal unions of a lower degree than marriage. They exist in Sweden, as also in Norway where by a recent law the illegitimate child is entitled to the same rights in relation to both parents as the legitimate child, bearing the father's name and inheriting his property (_Die Neue Generation_, July, 1909, p. 303). In France the well-known judge, Magnard, so honorably distinguished for his attitude towards cases of infanticide by young mothers, has said: "I heartily wish that alongside the institution of marriage as it now exists we had a free union constituted by simple declaration before a magistrate and conferring almost the same family rights as ordinary marriage." This wish has been widely echoed.

In China, although polygamy in the strict sense cannot properly be said to exist, the interests of the child, the woman, and the State are alike safeguarded by enabling a man to enter into a kind of secondary marriage with the mother of his child. "Thanks to this system," Paul d'Enjoy states (_La Revue_, Sept., 1905), "which allows the husband to marry the woman he desires, without being prevented by previous and undissolved unions, it is only right to remark that there are no seduced and abandoned girls, except such as no law could save from what is really innate depravity; and that there are no illegitimate children except those whose mothers are unhappily nearer to animals by their senses than to human beings by their reason and dignity."

The new civil code of Japan, which is in many respects so advanced, allows an illegitimate child to be "recognized" by giving notice to the registrar; when a married man so recognizes a child, it appears, the child may be adopted by the wife as her own, though not actually rendered legitimate. This state of things represents a transition stage; it can scarcely be said to recognize the rights of the "recognized" child's mother. Japan, it may be added, has adopted the principle of the automatic legitimation by marriage of the children born to the couple before marriage.

In Australia, where women possess a larger share than elsewhere in making and administering the laws, some attention is beginning to be given to the rights of illegitimate children. Thus in South Australia, paternity may be proved before birth, and the father (by magistrate's order) provides lodging for one month before and after birth, as well as nurse, doctor, and clothing, furnishing security that he will do so; after birth, at the magistrate's decision, he pays a weekly sum for the child's maintenance. An "illegitimate" mother may also be kept in a public institution at the public expense for six months to enable her to become attached to her child.

Such provisions are developed from the widely recognized right of the unmarried woman to claim support for her child from its father. In France, indeed, and in the legal codes which follow the French example, it is not legally permitted to inquire into the paternity of an illegitimate child. Such a law is, needless to say, alike unjust to the mother, to the child, and to the State. In Austria, the law goes to the opposite, though certainly more reasonable, extreme, and permits even the mother who has

had several lovers to select for herself which she chooses to make responsible for her child. The German code adopts an intermediate course, and comes only to the aid of the unmarried mother who has one lover. In all such cases, however, the aid given is pecuniary only; it insures the mother no recognition or respect, and (as Wahrmund has truly said in his _Ehe und Eherecht_) it is still necessary to insist on "the unconditional sanctity of motherhood, which is entitled, under whatever circumstances it arises, to the respect and protection of society."

It must be added that, from the social point of view, it is not the sexual union which requires legal recognition, but the child which is the product of that union. It would, moreover, be hopeless to attempt to legalize all sexual connection, but it is comparatively easy to legalize all children.

There has been much discussion in the past concerning the particular form which marriage ought to take. Many theorists have exercised their ingenuity in inventing and preaching new and unusual marriage-arrangements as panaceas for social ills; while others have exerted even greater energy in denouncing all such proposals as subversive of the foundations of human society. We may regard all such discussions, on the one side or the other, as idle.

In the first place marriage customs are far too fundamental, far too intimately blended with the primary substance of human and indeed animal society, to be in the slightest degree shaken by the theories or the practices of mere individuals, or even groups of individuals. Monogamy--the more or less prolonged cohabitation of two individuals of opposite sex--has been the prevailing type of sexual relationship among the higher vertebrates and through the greater part of human history. This is admitted even by those who believe (without any sound evidence) that man has passed through a stage of sexual promiscuity. There have been tendencies to variation in one direction or another, but at the lowest stages and the highest stages, so far as can be seen, monogamy represents the prevailing rule.

It must be said also, in the second place, that the natural prevalence of monogamy as the normal type of sexual relationship by no means excludes variations. Indeed it assumes them. "There is nothing precise in Nature," according to Diderot's saying. The line of Nature is a curve that oscillates from side to side of the norm. Such oscillations inevitably occur in harmony with changes in environmental conditions, and, no doubt, with peculiarities of personal disposition. So long as no arbitrary and merely external attempt is made to force Nature, the vital order is harmoniously maintained. Among certain species of ducks when males are in excess polyandric families are constituted, the two males attending their female partner without jealousy, but when the sexes again become equal in number the monogamic order is restored. The natural human deviations from the monogamic order seem to be generally of this character, and largely conditioned by the social and economic environment. The most common variation, and that which most clearly possesses a biological foundation, is the tendency to polygyny, which is found at all stages of culture, even, in an unrecognized and more or less promiscuous shape, in the highest civilization.[371] It must be remembered, however, that recognized polygyny is not the rule even where it prevails; it is merely permissive; there is never a sufficient

excess of women to allow more than a few of the richer and more influential persons to have more than one wife.[372]

It has further to be borne in mind that a certain elasticity of the formal side of marriage while, on the one side, it permits variations from the general monogamic order, where such are healthful or needed to restore a balance in natural conditions, on the other hand restrains such variations in so far as they are due to the disturbing influence of artificial constraint. Much of the polygyny, and polyandry also, which prevails among us to-day is an altogether artificial and unnatural form of polygamy. Marriages which on a more natural basis would be dissolved cannot legally be dissolved, and consequently the parties to them, instead of changing their partners and so preserving the natural monogamic order, take on other additional partners and so introduce an unnatural polygamy. There will always be variations from the monogamic order and civilization is certainly not hostile to sexual variation. Whether we reckon these variations as legitimate or illegitimate, they will still take place; of that we may be certain. The path of social wisdom seems to lie on the one hand in making the marriage relationship flexible enough to reduce to a minimum these deviations--not because such deviations are intrinsically bad but because they ought not to be forced into existence--and on the other hand in according to these deviations when they occur such a measure of recognition as will deprive them of injurious influence and enable justice to be done to all the parties concerned. We too often forget that our failure to recognize such variations merely means that we accord in such cases an illegitimate permission to perpetrate injustice. In those parts of the world in which polygyny is recognized as a permissible variation a man is legally held to his natural obligations towards all his sexual mates and towards the children he has by those mates. In no part of the world is polygyny so prevalent as in Christendom; in no part of the world is it so easy for a man to escape the obligations incurred by polygyny. We imagine that if we refuse to recognize the fact of polygyny, we may refuse to recognize any obligations incurred by polygyny. By enabling a man to escape so easily from the obligations of his polygamous relationships we encourage him, if he is unscrupulous, to enter into them; we place a premium on the immorality we loftily condemn.[373] Our polygyny has no legal existence, and therefore its obligations can have no legal existence. The ostrich, it was once imagined, hides its head in the sand and attempts to annihilate facts by refusing to look at them; but there is only one known animal which adopts this course of action, and it is called Man.

Monogamy, in the fundamental biological sense, represents the natural order into which the majority of sexual facts will always naturally fall because it is the relationship which most adequately corresponds to all the physical and spiritual facts involved. But if we realize that sexual relationships primarily concern only the persons who enter into those relationships, and if we further realize that the interest of society in such relationships is confined to the children which they produce, we shall also realize that to fix by law the number of women with whom a man shall have sexual relationships, and the number of men with whom a woman shall unite herself, is more unreasonable than it would be to fix by law the number of children they shall produce. The State has a right to declare whether it needs few citizens or many; but

in attempting to regulate the sexual relationships of its members the State attempts an impossible task and is at the same time guilty of an impertinence.

There is always a tendency, at certain stages of civilization, to insist on a merely formal and external uniformity, and a corresponding failure to see not only that such uniformity is unreal, but also that it has an injurious effect, in so far as it checks beneficial variations. The tendency is by no means confined to the sexual sphere. In England there is, for instance, a tendency to make building laws which enjoin, in regard to places of human habitation, all sorts of provisions that on the whole are fairly beneficial, but which in practice act injuriously, because they render many simple and excellent human habitations absolutely illegal, merely because such habitations fail to conform to regulations which, under some circumstances, are not only unnecessary, but mischievous.

Variation is a fact that will exist whether we will or no; it can only become healthful if we recognize and allow for it. We may even have to recognize that it is a more marked tendency in civilization than in more primitive social stages. Thus Gerson argues (_Sexual-Probleme_, Sept., 1908, p. 538) that just as the civilized man cannot be content with the coarse and monotonous food which satisfies the peasant, so it is in sexual matters; the peasant youth and girl in their sexual relationships are nearly always monogamous, but civilized people, with their more versatile and sensitive tastes, are apt to crave for variety. Sénancour (_De l'Amour_, vol. ii, "Du Partage," p. 127) seems to admit the possibility of marriage variations, as of sharing a wife, provided nothing is done to cause rivalry, or to impair the soul's candor. Lecky, near the end of his _History of European Morals_, declared his belief that, while the permanent union of two persons is the normal and prevailing type of marriage, it by no means follows that, in the interests of society, it should be the only form. Remy de Gourmont similarly (_Physique de l'Amour_, p. 186), while stating that the couple is the natural form of marriage and its prolonged continuance a condition of human superiority, adds that the permanence of the union can only be achieved with difficulty. So, also, Professor W. Thomas (_Sex and Society_, 1907, p. 193), while regarding monogamy as subserving social needs, adds: "Speaking from the biological standpoint monogamy does not, as a rule, answer to the conditions of highest stimulation, since here the problematical and elusive elements disappear to some extent, and the object of attention has grown so familiar in consciousness that the emotional reactions are qualified. This is the fundamental explanation of the fact that married men and women frequently become interested in others than their partners in matrimony."

Pepys, whose unconscious self-dissection admirably illustrates so many psychological tendencies, clearly shows how--by a logic of feeling deeper than any intellectual logic--the devotion to monogamy subsists side by side with an irresistible passion for sexual variety. With his constantly recurring wayward attraction to a long series of women he retains throughout a deep and unchanging affection for his charming young wife. In the privacy of his _Diary_ he frequently refers to her in terms of endearment which cannot be feigned; he enjoys her society; he is very particular about her dress; he delights in her progress in music, and spends much money on her

training; he is absurdly jealous when he finds her in the society of a man. His subsidiary relationships with other women recur irresistibly, but he has no wish either to make them very permanent or to allow them to engross him unduly. Pepys represents a common type of civilized "monogamist" who is perfectly sincere and extremely convinced in his advocacy of monogamy, as he understands it, but at the same time believes and acts on the belief that monogamy by no means excludes the need for sexual variation. Lord Morley's statement (_Diderot_, vol. ii, p. 20) that "man is instinctively polygamous," can by no means be accepted, but if we interpret it as meaning that man is an instinctively monogamous animal with a concomitant desire for sexual variation, there is much evidence in its favor.

Women must be as free as men to mould their own amatory life. Many consider, however, that such freedom on the part of women will be, and ought to be, exercised within narrower limits (see, e.g., Bloch, _Sexual Life of Our Time_, Ch. X). In part this limitation is considered due to the greater absorption of a woman in the task of breeding and rearing her child, and in part to a less range of psychic activities. A man, as G. Hirth puts it, expressing this view of the matter (_Wege zur Liebe_, p. 342), "has not only room in his intellectual horizon for very various interests, but his power of erotic expansion is much greater and more differentiated than that of women, although he may lack the intimacy and depth of a woman's devotion."

It may be argued that, since variations in the sexual order will inevitably take place, whether or not they are recognized or authorized, no harm is likely to be done by using the weight of social and legal authority on the side of that form which is generally regarded as the best, and, so far as possible, covering the other forms with infamy. There are many obvious defects in such an attitude, apart from the supremely important fact that to cast infamy on sexual relationships is to exert a despicable cruelty on women, who are inevitably the chief sufferers. Not the least is the injustice and the hampering of vital energy which it inflicts on the better and more scrupulous people to the advantage of the worse and less scrupulous. This always happens when authority exerts its power in favor of a form. When, in the thirteenth century, Alexander III--one of the greatest and most effective potentates who ever ruled Christendom--was consulted by the Bishop of Exeter concerning subdeacons who persisted in marrying, the Pope directed him to inquire into the lives and characters of the offenders; if they were of regular habits and staid morality, they were to be forcibly separated and the wives driven out; if they were men of notoriously disorderly character, they were to be permitted to retain their wives, if they so desired (Lea, _History of Sacerdotal Celibacy_, third edition, vol. i, p. 396). It was an astute policy, and was carried out by the same Pope elsewhere, but it is easy to see that it was altogether opposed to morality in every sense of the term. It destroyed the happiness and the efficiency of the best men; it left the worst men absolutely free. To-day we are quite willing to recognize the evil result of this policy; it was dictated by a Pope and carried out seven hundred years ago. Yet in England we carry out exactly the same policy to-day by means of our separation orders, which are scattered broadcast among the population. None of the couples thus separated--and never disciplined to celibacy as are the Catholic clergy of to-day--may marry again; we, in effect, bid the more scrupulous among them to become celibates, and to the less

scrupulous we grant permission to do as they like. This process is carried on by virtue of the collective inertia of the community, and when it is supported by arguments, if that ever happens, they are of an antiquarian character which can only call forth a pitying smile.

It may be added that there is a further reason why the custom of branding sexual variations from the norm as "immoral" is not so harmless as some affect to believe: such variations appear to be not uncommon among men and women of superlative ability whose powers are needed unimpeded in the service of mankind. To attempt to fit such persons into the narrow moulds which suit the majority is not only an injustice to them as individuals, but it is an offence against society, which may fairly claim that its best members shall not be hampered in its service. The notion that the person whose sexual needs differ from those of the average is necessarily a socially bad person, is a notion unsupported by facts. Every case must be judged on its own merits.

Undoubtedly the most common variation from normal monogamy has in all stages of human culture been polygyny or the sexual union of one man with more than one woman. It has sometimes been socially and legally recognized, and sometimes unrecognized, but in either case it has not failed to occur. Polyandry, or the union of a woman with more than one man, has been comparatively rare and for intelligible reasons: men have most usually been in a better position, economically and legally, to organize a household with themselves as the centre; a woman is, unlike a man, by nature and often by custom unfitted for intercourse for considerable periods at a time; a woman, moreover, has her thoughts and affections more concentrated on her children. Apart from this the biological masculine traditions point to polygyny much more than the feminine traditions point to polyandry. Although it is true that a woman can undergo a much greater amount of sexual intercourse than a man, it also remains true that the phenomena of courtship in nature have made it the duty of the male to be alert in offering his sexual attention to the female, whose part it has been to suspend her choice coyly until she is sure of her preference. Polygynic conditions have also proved advantageous, as they have permitted the most vigorous and successful members of a community to have the largest number of mates and so to transmit their own superior qualities.

"Polygamy," writes Woods Hutchinson (_Contemporary Review_, Oct., 1904), though he recognizes the advantages of monogamy, "as a racial institution, among animals as among men, has many solid and weighty considerations in its favor, and has resulted in both human and pre-human times, in the production of a very high type of both individual and social development." He points out that it promotes intelligence, coöperation, and division of labor, while the keen competition for women weeds out the weaker and less attractive males.

Among our European ancestors, alike among Germans and Celts, polygyny and other sexual forms existed as occasional variations. Tacitus noted polygyny in Germany, and Cæsar found in Britain that brothers would hold their wives in common, the children being reckoned to the man to whom the woman had been first given in marriage (see, e.g., Traill's _Social England_, vol. i, p. 103, for a discussion of

this point). The husband's assistant, also, who might be called in to impregnate the wife when the husband was impotent, existed in Germany, and was indeed a general Indo-Germanic institution (Schrader, _Reallexicon_, art. "Zeugungshelfer"). The corresponding institution of the concubine has been still more deeply rooted and widespread. Up to comparatively modern times, indeed, in accordance with the traditions of Roman law, the concubine held a recognized and honorable position, below that of a wife but with definite legal rights, though it was not always, or indeed usually, legal for a married man to have a concubine. In ancient Wales, as well as in Rome, the concubine was accepted and never despised (R.B. Holt, "Marriage Laws of the Cymri," _Journal Anthropological Institute_, Aug. and Nov., 1898, p. 155). The fact that when a concubine entered the house of a married man her dignity and legal position were less than those of the wife preserved domestic peace and safeguarded the wife's interests. (A Korean husband cannot take a concubine under his roof without his wife's permission, but she rarely objects, and seems to enjoy the companionship, says Louise Jordan Miln, _Quaint Korea_, 1895, p. 92.) In old Europe, we must remember, as Dufour points out in speaking of the time of Charlemagne (_Histoire de la Prostitution_, vol. iii, p. 226), "concubine" was an honorable term; the concubine was by no means a mistress, and she could be accused of adultery just the same as a wife. In England, late in the thirteenth century, Bracton speaks of the _concubina legitima_ as entitled to certain rights and considerations, and it was the same in other parts of Europe, sometimes for several centuries later (see Lea, _History of Sacerdotal Celibacy_, vol. i, p. 230). The early Christian Church was frequently inclined to recognize the concubine, at all events if attached to an unmarried man, for we may trace in the Church "the wish to look upon every permanent union of man or woman as possessing the character of a marriage in the eyes of God, and, therefore, in the judgment of the Church" (art. "Concubinage," Smith and Cheetham, _Dictionary of Christian Antiquities_). This was the feeling of St. Augustine (who had himself, before his conversion, had a concubine who was apparently a Christian), and the Council of Toledo admitted an unmarried man who was faithful to a concubine. As the law of the Catholic Church grew more and more rigid, it necessarily lost touch with human needs. It was not so in the early Church during the great ages of its vital growth. In those ages even the strenuous general rule of monogamy was relaxed when such relaxation seemed reasonable. This was so, for instance, in the case of sexual impotency. Thus early in the eighth century Gregory II, writing to Boniface, the apostle of Germany, in answer to a question by the latter, replies that when a wife is incapable from physical infirmity from fulfilling her marital duties it is permissible for the husband to take a second wife, though he must not withdraw maintenance from the first. A little later Archbishop Egbert of York, in his _Dialogus de Institutione Ecclesiastica_, though more cautiously, admits that when one of two married persons is infirm the other, with the permission of the infirm one, may marry again, but the infirm one is not allowed to marry again during the other's life. Impotency at the time of marriage, of course, made the marriage void without the intervention of any ecclesiastical law. But Aquinas, and later theologians, allow that an excessive disgust for a wife justifies a man in regarding himself as impotent in relation to her. These rules are, of course, quite distinct from the permissions to break the marriage laws granted to kings and princes; such

permissions do not count as evidence of the Church's rules, for, as the Council of Constantinople prudently decided in 809, "Divine law can do nothing against Kings" (art. "Bigamy," _Dictionary of Christian Antiquities_). The law of monogamy was also relaxed in cases of enforced or voluntary desertion. Thus the Council of Vermerie (752) enacted that if a wife will not accompany her husband when he is compelled to follow his lord into another land, he may marry again, provided he sees no hope of returning. Theodore of Canterbury (688), again, pronounces that if a wife is carried away by the enemy and her husband cannot redeem her, he may marry again after an interval of a year, or, if there is a chance of redeeming her, after an interval of five years; the wife may do the same. Such rules, though not general, show, as Meyrick points out (art. "Marriage," _Dictionary of Christian Antiquities_), a willingness "to meet particular cases as they arise."

As the Canon law grew rigid and the Catholic Church lost its vital adaptibility, sexual variations ceased to be recognized within its sphere. We have to wait for the Reformation for any further movement. Many of the early Protestant Reformers, especially in Germany, were prepared to admit a considerable degree of vital flexibility in sexual relationships. Thus Luther advised married women with impotent husbands, in cases where there was no wish or opportunity for divorce, to have sexual relations with another man, by preference the husband's brother; the children were to be reckoned to the husband ("Die Sexuelle Frage bei Luther," _Mutterschutz_, Sept., 1908).

In England the Puritan spirit, which so largely occupied itself with the reform of marriage, could not fail to be concerned with the question of sexual variations, and from time to time we find the proposal to legalize polygyny. Thus, in 1658, "A Person of Quality" published in London a small pamphlet dedicated to the Lord Protector, entitled _A Remedy for Uncleanness_. It was in the form of a number of queries, asking why we should not admit polygamy for the avoidance of adultery and infanticide. The writer inquires whether it may not "stand with a gracious spirit, and be every way consistent with the principles of a man fearing God and loving holiness, to have more women than one to his proper use.... He that takes another man's ox or ass is doubtless a transgressor; but he that puts himself out of the occasion of that temptation by keeping of his own seems to be a right honest and well-meaning man."

More than a century later (1780), an able, learned, and distinguished London clergyman of high character (who had been a lawyer before entering the Church), the Rev. Martin Madan, also advocated polygamy in a book called _Thelyphthora; or, a Treatise on Female Ruin_. Madan had been brought into close contact with prostitution through a chaplaincy at the Lock Hospital, and, like the Puritan advocate of polygamy, he came to the conclusion that only by the reform of marriage is it possible to work against prostitution and the evils of sexual intercourse outside marriage. His remarkable book aroused much controversy and strong feeling against the author, so that he found it desirable to leave London and settle in the country. Projects of marriage reform have never since come from the Church, but from philosophers and moralists, though not rarely from writers of definitely religious character. Sénancour, who was so delicate and sensitive a moralist in the sexual

sphere, introduced a temperate discussion of polygamy into his _De l'Amour_ (vol. ii, pp. 117-126). It seemed to him to be neither positively contrary nor positively conformed to the general tendency of our present conventions, and he concluded that "the method of conciliation, in part, would be no longer to require that the union of a man and a woman should only cease with the death of one of them." Cope, the biologist, expressed a somewhat more decided opinion. Under some circumstances, if all three parties agreed, he saw no objection to polygyny or polyandry. "There are some cases of hardship," he said, "which such permission would remedy. Such, for instance, would be the case where the man or woman had become the victim of a chronic disease; or, when either party should be childless, and in other contingencies that could be imagined." There would be no compulsion in any direction, and full responsibility as at present. Such cases could only arise exceptionally, and would not call for social antagonism. For the most part, Cope remarks, "the best way to deal with polygamy is to let it alone" (E.D. Cope, "The Marriage Problem," _Open Court_, Nov. 15 and 22, 1888). In England, Dr. John Chapman, the editor of the _Westminster Review_, and a close associate of the leaders of the Radical movement in the Victorian period, was opposed to State dictation as regards the form of marriage, and believed that a certain amount of sexual variation would be socially beneficial. Thus he wrote in 1884 (in a private letter): "I think that as human beings become less selfish polygamy [i.e., polygyny], and even polyandry, in an ennobled form, will become increasingly frequent."

James Hinton, who, a few years earlier, had devoted much thought and attention to the sexual question, and regarded it as indeed the greatest of moral problems, was strongly in favor of a more vital flexibility of marriage regulations, an adaptation to human needs such as the early Christian Church admitted. Marriage, he declared, must be "subordinated to service," since marriage, like the Sabbath, is made for man and not man for marriage. Thus in case of one partner becoming insane he would permit the other partner to marry again, the claim of the insane partner, in case of recovery, still remaining valid. That would be a form of polygamy, but Hinton was careful to point out that by "polygamy" he meant "less a particular marriage-order than such an order as best serves good, and which therefore must be essentially variable. Monogamy may be good, even the only good order, if of free choice; but a _law_ for it is another thing. The sexual relationship must be a _natural_ thing. The true social life will not be any fixed and definite relationship, as of monogamy, polygamy, or anything else, but a perfect subordination of every sexual relationship whatever to reason and human good."

Ellen Key, who is an enthusiastic advocate of monogamy, and who believes that the civilized development of personal love removes all danger of the growth of polygamy, still admits the existence of variations. She has in mind such solutions of difficult problems as Goethe had before him when he proposed at first in his _Stella_ to represent the force of affection and tender memories as too strong to admit of the rupture of an old bond in the presence of a new bond. The problem of sexual variation, she remarks, however (_Liebe und Ethik_, p. 12), has changed its form under modern conditions; it is no longer a struggle between the demand of society for a rigid marriage-order and the demand of the individual for sexual satisfaction, but it

has become the problem of harmonizing the ennoblement of the race with heightened requirements of erotic happiness. She also points out that the existence of a partner who requires the other partner's care as a nurse or as an intellectual companion by no means deprives that other partner of the right to fatherhood or motherhood, and that such rights must be safeguarded (Ellen Key, _Ueber Liebe und Ehe_, pp. 166-168).

A prominent and extreme advocate of polygyny, not as a simple rare variation, but as a marriage order superior to monogamy, is to be found at the present day in Professor Christian von Ehrenfels of Prague (see, e.g., his _Sexualethik_, 1908; "Die Postulate des Lebens," _Sexual-Probleme_, Oct., 1908; and letter to Ellen Key in her _Ueber Liebe und Ehe_, p. 466). Ehrenfels believes that the number of men inapt for satisfactory reproduction is much larger than that of women, and that therefore when these are left out of account, a polygynic marriage order becomes necessary. He calls this "reproduction-marriage" (Zeugungsehe), and considers that it will entirely replace the present marriage order, to which it is morally superior. It would be based on private contracts. Ehrenfels holds that women would offer no objection, as a woman, he believes, attaches less importance to a man as a wooer than as the father of her child. Ehrenfels's doctrine has been seriously attacked from many sides, and his proposals are not in the line of our progress. Any radical modification of the existing monogamic order is not to be expected, even if it were generally recognized, which cannot be said to be the case, that it is desirable. The question of sexual variations, it must be remembered, is not a question of introducing an entirely new form of marriage, but only of recognizing the rights of individuals, in exceptional cases, to adopt such aberrant forms, and of recognizing the corresponding duties of such individuals to accept the responsibilities of any aberrant marriage forms they may find it best to adopt. So far as the question of sexual variations is more than this, it is, as Hinton argued, a dynamical method of working towards the abolition of the perilous and dangerous promiscuity of prostitution. A rigid marriage order involves prostitution; a flexible marriage order largely--though not, it may be, entirely--renders prostitution unnecessary. The democratic morality of the present day, so far as the indications at present go, is opposed to the encouragement of a _quasi_-slave class, with diminished social rights, such as prostitutes always constitute in a more or less marked degree. It is fairly evident, also, that the rapidly growing influence of medical hygiene is on the same side. We may, therefore, reasonably expect in the future a slow though steady increase in the recognition, and even the extension, of those variations of the monogamic order which have, in reality, never ceased to exist.

It is lamentable that at this period of the world's history, nearly two thousand years after the wise legislators of Rome had completed their work, it should still be necessary to conclude that we are to-day only beginning to place marriage on a reasonable and humane basis. I have repeatedly pointed out how largely the Canon law has been responsible for this arrest of development. One may say, indeed, that the whole attitude of the Church, after it had once acquired complete worldly dominance, must be held responsible. In the earlier centuries the attitude of Christianity was, on the whole, admirable. It held aloft great ideals but it refrained

from enforcing those ideals at all costs; thus its ideals remained genuine and could not degenerate into mere hypocritical empty forms; much flexibility was allowed when it seemed to be for human good and made for the avoidance of evil and injustice. But when the Church attained temporal power, and when that power was concentrated in the hands of Popes who subordinated moral and religious interests to political interests, all the claims of reason and humanity were flung to the winds. The ideal was no more a fact than it was before, but it was now treated as a fact. Human relationships remained what they were before, as complicated and as various, but henceforth one rigid pattern, admirable as an ideal but worse than empty as a form, was arbitrarily set up, and all deviations from it treated either as non-existent or damnable. The vitality was crushed out of the most central human institutions, and they are only to-day beginning to lift their heads afresh.

If--to sum up--we consider the course which the regulation of marriage has run during the Christian era, the only period which immediately concerns us, it is not difficult to trace the main outlines. Marriage began as a private arrangement, which the Church, without being able to control, was willing to bless, as it also blessed many other secular affairs of men, making no undue attempt to limit its natural flexibility to human needs. Gradually and imperceptibly, however, without the medium of any law, Christianity gained the complete control of marriage, coördinated it with its already evolved conceptions of the evil of lust, of the virtue of chastity, of the mortal sin of fornication, and, having through the influence of these dominating conceptions limited the flexibility of marriage in every possible direction, it placed it on a lofty but narrow pedestal as the sacrament of matrimony. For reasons which by no means lay in the nature of the sexual relationships, but which probably seemed cogent to sacerdotal legislators who assimilated it to ordination, matrimony was declared indissoluble. Nothing was so easy to enter as the gate of matrimony, but, after the manner of a mouse-trap, it opened inwards and not outwards; once in there was no way out alive. The Church's regulation of marriage while, like the celibacy of the clergy, it was a success from the point of view of ecclesiastical politics, and even at first from the point of view of civilization, for it at least introduced order into a chaotic society, was in the long run a failure from the point of view of society and morals. On the one hand it drifted into absurd subtleties and quibbles; on the other, not being based on either reason or humanity, it had none of that vital adaptability to the needs of life, which early Christianity, while holding aloft austere ideals, still largely retained. On the side of tradition this code of marriage law became awkward and impracticable; on the biological side it was hopelessly false. The way was thus prepared for the Protestant reintroduction of the conception of marriage as a contract, that conception being, however, brought forward less on its merits than as a protest against the difficulties and absurdities of the Catholic Canon law. The contractive view, which still largely persists even to-day, speedily took over much of the Canon law doctrines of marriage, becoming in practice a kind of reformed and secularized Canon law. It was somewhat more adapted to modern needs, but it retained much of the rigidity of the Catholic marriage without its sacramental character, and it never made any attempt to become more than nominally contractive. It has been of the nature of an incongruous compromise and has

represented a transitional phase towards free private marriage. We can recognize that phase in the tendency, well marked in all civilized lands, to an ever increasing flexibility of marriage. The idea, and even the fact, of marriage by consent and divorce by failure of that consent, which we are now approaching, has never indeed been quite extinct. In the Latin countries it has survived with the tradition of Roman law; in the English-speaking countries it is bound up with the spirit of Puritanism which insists that in the things that concern the individual alone the individual himself shall be the supreme judge. That doctrine as applied to marriage was in England magnificently asserted by the genius of Milton, and in America it has been a leaven which is still working in marriage legislation towards an inevitable goal which is scarcely yet in sight. The marriage system of the future, as it moves along its present course, will resemble the old Christian system in that it will recognize the sacred and sacramental character of the sexual relationship, and it will resemble the civil conception in that it will insist that marriage, so far as it involves procreation, shall be publicly registered by the State. But in opposition to the Church it will recognize that marriage, in so far as it is purely a sexual relationship, is a private matter the conditions of which must be left to the persons who alone are concerned in it; and in opposition to the civil theory it will recognize that marriage is in its essence a fact and not a contract, though it may give rise to contracts, so long as such contracts do not touch that essential fact. And in one respect it will go beyond either the ecclesiastical conception or the civil conception. Man has in recent times gained control of his own procreative powers, and that control involves a shifting of the centre of gravity of marriage, in so far as marriage is an affair of the State, from the vagina to the child which is the fruit of the womb. Marriage as a state institution will centre, not around the sexual relationship, but around the child which is the outcome of that relationship. In so far as marriage is an inviolable public contract it will be of such a nature that it will be capable of automatically covering with its protection every child that is born into the world, so that every child may possess a legal mother and a legal father. On the one side, therefore, marriage is tending to become less stringent; on the other side it is tending to become more stringent. On the personal side it is a sacred and intimate relationship with which the State has no concern; on the social side it is the assumption of the responsible public sponsorship of a new member of the State. Some among us are working to further one of these aspects of marriage, some to further the other aspect. Both are indispensable to establish a perfect harmony. It is necessary to hold the two aspects of marriage apart, in order to do equal justice to the individual and to society, but in so far as marriage approaches its ideal state those two aspects become one.

We have now completed the discussion of marriage as it presents itself to the modern man born in what in mediæval days was called Christendom. It is not an easy subject to discuss. It is indeed a very difficult subject, and only after many years is it possible to detect the main drift of its apparently opposing and confused currents when one is oneself in the midst of them. To an Englishman it is, perhaps, peculiarly difficult, for the Englishman is nothing if not insular; in that fact lie whatever virtues he possesses, as well as their reverse sides.[374]

Yet it is worth while to attempt to climb to a height from which we can view the stream of social tendency in its true proportions and estimate its direction. It is necessary to do so if we value our mental peace in an age when men's minds are agitated by many petty movements which have nothing to do with their great temporal interests, to say nothing of their eternal interests. When we have attained a wide vision of the solid biological facts of life, when we have grasped the great historical streams of tradition,--which together make up the map of human affairs,--we can face serenely the little social transitions which take place in our own age, as they have taken place in every age.

FOOTNOTES:

[312] Rosenthal, of Breslau, from the legal side, goes so far as to argue ("Grundfragen des Eheproblems," _Die Neue Generation_, Dec., 1908), that the intention of procreation is essential to the conception of legal marriage.

[313] J.A. Godfrey, _Science of Sex_, p. 119.

[314] E.D. Cope, "The Marriage Problem," _Open Court_, Nov., 1888.

[315] See _ante_, p. 395.

[316] Wächter, _Eheschiedungen_, pp. 95 et seq.; Esmein, _Marriage en Droit Canonique_, vol. i, p. 6; Howard, _History of Matrimonial Institutions_, vol. ii, p. 15. Howard (in agreement with Lecky) considers that the freedom of divorce was only abused by a small section of the Roman population, and that such abuse, so far as it existed, was not the cause of any decline of Roman morals.

[317] The opinions of the Christian Fathers were very varied, and they were sometimes doubtful about them; see, e.g., the opinions collected by Cranmer and enumerated by Burnet, _History of Reformation_ (ed. Nares), vol. ii, p. 91.

[318] Constantine, the first Christian Emperor, enacted a strict and peculiar divorce law (allowing a wife to divorce her husband only when he was a homicide, a poisoner, or a violator of sepulchres), which could not be maintained. In 497, therefore, Anastasius decreed divorce by mutual consent. This was abolished by Justinian, who only allowed divorce for various specified causes, among them, however, including the husband's adultery. These restrictions proved unworkable, and Justinian's successor and nephew, Justin, restored divorce by mutual consent. Finally, in 870, Leo the Philosopher returned to Justinian's enactment (see, e.g., Smith and Cheetham, _Dictionary of Christian Antiquities_, arts. "Adultery" and "Marriage").

[319] The element of reverence in the early German attitude towards women and the privileges which even the married woman enjoyed, so far as Tacitus can be considered a reliable guide, seem to have been the surviving vestiges of an earlier social state on a more matriarchal basis. They are most distinct at the dawn of German history. From the first, however, though divorce by mutual consent seems to have been possible, German custom was pitiless to the married woman who was unfaithful, sterile, or otherwise offended, though for some time after the introduction

of Christianity it was no offence for the German husband to commit adultery (Westermarck, _Origin of the Moral Ideas_, vol. ii, p. 453).

[320] "This form of marriage," says Hobhouse (op. cit., vol. i, p. 156), "is intimately associated with the extension of marital power." Cf. Howard, op. cit., vol. i, p. 231. The very subordinate position of the mediæval German woman is set forth by Hagelstange, _Süddeutsches Bauernleben in Mittelalter_, 1898, pp. 70 et seq.

[321] Howard, op. cit., vol. i, p. 259; Smith and Cheetham, _Dictionary of Christian Antiquities_, art. _Arrhæ_. It would appear, however, that the "bride-sale," of which Tacitus speaks, was not strictly the sale of a chattel nor of a slave-girl, but the sale of the _mund_ or protectorship over the girl. It is true the distinction may not always have been clear to those who took part in the transaction. Similarly the Anglo-Saxon betrothal was not so much a payment of the bride's price to her kinsmen, although as a matter of fact, they might make a profit out of the transaction, as a covenant stipulating for the bride's honorable treatment as wife and widow. Reminiscences of this, remark Pollock and Maitland (op. cit., vol. ii, p. 364), may be found in "that curious cabinet of antiquities, the marriage ritual of the English Church."

[322] Howard, op. cit., vol. i, pp. 278-281, 386. The _Arrha_ crept into Roman and Byzantine law during the sixth century.

[323] J. Wickham Legg, _Ecclesiological Essays_, p. 189. It may be added that the idea of the subordination of the wife to the husband appeared in the Christian Church at a somewhat early period, and no doubt independently of Germanic influences; St. Augustine said (Sermo XXXVII, cap. vi) that a good _materfamilias_ must not be ashamed to call herself her husband's servant (_ancilla_).

[324] See, e.g., L. Gautier, _La Chevalerie_, Ch. IX.

[325] Howard, op. cit., vol. i, pp. 293 et seq.; Esmein, _op. cit._, vol. i, pp. 25 et seq.; Smith and Cheetham, _Dictionary of Christian Antiquities_ art. "Contract of Marriage."

[326] Any later changes in Catholic Canon law have merely been in the direction of making matrimony still narrower and still more remote from the practice of the world. By a papal decree of 1907, civil marriages and marriages in non-Catholic places of worship are declared to be not only sinful and unlawful (which they were before), but actually null and void.

[327] E.S.P. Haynes, _Our Divorce Law_, p. 3.

[328] It was the Council of Trent, in the sixteenth century, which made ecclesiastical rites essential to binding marriage; but even then fifty-six prelates voted against that decision.

[329] Esmein, op. cit., vol. i, p. 91.

[330] It is sometimes said that the Catholic Church is able to diminish the evils of its doctrine of the indissolubility of marriage by the number of impediments to marriage it admits, thus affording free scope for dispensations from marriage. This scarcely seems to be the case. Dr. P.J. Hayes, who speaks with authority as

Chancellor of the Catholic Archdiocese of New York, states ("Impediments to Marriage in the Catholic Church," _North American Review_, May, 1905) that even in so modern and so mixed a community as this there are few applications for dispensations on account of impediments; there are 15,000 Catholic marriages per annum in New York City, but scarcely five per annum are questioned as to validity, and these chiefly on the ground of bigamy.

[331] The Canonists, say Pollock and Maitland (loc. cit.), "made a capricious mess of the marriage law." "Seldom," says Howard (_op. cit._, vol i, p. 340), "have mere theory and subtle quibbling had more disastrous consequences in practical life than in the case of the distinction between _sponsalia de præsenti_ and _de futuro_."

[332] Howard, op. cit., vol. i, pp. 386 et seq. On the whole, however, Luther's opinion was that marriage, though a sacred and mysterious thing, is not a sacrament; his various statements on the matter are brought together by Strampff, _Luther über die Ehe_, pp. 204-214.

[333] Howard, op. cit., vol. ii, pp. 61 et seq.

[334] Probably as a result of the somewhat confused and incoherent attitude of the Reformers, the Canon law of marriage, in a modified form, really persisted in Protestant countries to a greater extent than in Catholic countries; in France, especially, it has been much more profoundly modified (Esmein, op. cit., vol. i, p. 33).

[335] The Quaker conception of marriage is still vitally influential. "Why," says Mrs. Besant (_Marriage_, p. 19), "should not we take a leaf out of the Quaker's book, and substitute for the present legal forms of marriage a simple declaration publicly made?"

[336] Howard, op. cit., vol. ii, p. 456. The actual practice in Pennsylvania appears, however, to differ little from that usual in the other States.

[337] Howard, op. cit., vol. ii, p. 109. "It is, indeed, wonderful," Howard remarks, "that a great nation, priding herself on a love of equity and social liberty, should thus for five generations tolerate an invidious indulgence, rather than frankly and courageously to free herself from the shackles of an ecclesiastical tradition."

[338] "The enforced continuance of an unsuccessful union is perhaps the most immoral thing which a civilized society ever countenanced, far less encouraged," says Godfrey (_Science of Sex_, p. 123). "The morality of a union is dependent upon mutual desire, and a union dictated by any other cause is outside the moral pale, however custom may sanction it, or religion and law condone it."

[339] Adultery in most savage and barbarous societies is regarded, in the words of Westermarck, as "an illegitimate appropriation of the exclusive claims which the husband has acquired by the purchase of his wife, as an offence against property;" the seducer is, therefore, punished as a thief, by fine, mutilation, even death (_Origin of the Moral Ideas_, vol. ii, pp. 447 et seq.; id., _History of Human Marriage_, p. 121). Among some peoples it is the seducer who alone suffers, and not the wife.

[340] It is sometimes said in defence of the claim for damages for seducing a wife that women are often weak and unable to resist masculine advances, so that the law ought to press heavily on the man who takes advantage of that weakness. This argument seems a little antiquated. The law is beginning to accept the responsibility even of married women in other respects, and can scarcely refuse to accept it for the control of her own person. Moreover, if it is so natural for the woman to yield, it is scarcely legitimate to punish the man with whom she has performed that natural act. It must further be said that if a wife's adultery is only an irresponsible feminine weakness, a most undue brutality is inflicted on her by publicly demanding her pecuniary price from her lover. If, indeed, we accept this argument, we ought to reintroduce the mediæval girdle of chastity.

[341] Howard, op. cit., vol. ii, p. 114.

[342] This rule is, in England, by no means a dead letter. Thus, in 1907, a wife who had left her home, leaving a letter stating that her husband was not the father of her child, subsequently brought an action for divorce, which, as the husband made no defence, she obtained. But, the King's Proctor having learnt the facts, the decree was rescinded. Then the husband brought an action for divorce, but could not obtain it, having already admitted his own adultery by leaving the previous case undefended. He took the matter up to the Court of Appeal, but his petition was dismissed, the Court being of opinion that "to grant relief in such a case was not in the interest of public morality." The safest way in England to render what is legally termed marriage absolutely indissoluble is for both parties to commit adultery.

[343] Magnus Hirschfeld, _Zeitschrift für Sexualwissenschaft_, Oct., 1908.

[344] H. Adner, "Die Richterliche Beurteilung der 'Zerrütteten' Ehe," _Geschlecht und Gesellschaft_, Bd. ii, Teil 8.

[345] Gross-Hoffinger, _Die Schichsale der Frauen und die Prostitution_, 1847; Bloch presents a full summary of the results of this inquiry in an _Appendix_ to Ch. X of his _Sexual Life of Our Times_.

[346] Divorce in the United States is fully discussed by Howard, op. cit., vol. iii.

[347] H. Münsterberg, _The Americans_, p. 575. Similarly, Dr. Felix Adler, in a study of "The Ethics of Divorce" (_The Ethical Record_, 1890, p. 200), although not himself an admirer of divorce, believes that the first cause of the frequency of divorce in the United States is the high position of women.

[348] In an important article, with illustrative cases, on "The Neuro-psychical Element in Conjugal Aversion" (_Journal of Nervous and Mental Diseases_, Sept., 1892) Smith Baker refers to the cases in which "a man may find himself progressively becoming antipathetic, through recognition of the comparatively less developed personality of the one to whom he happens to be married. Marrying, perhaps, before he has learned to accurately judge of character and its tendencies, he awakens to the fact that he is honorably bound to live all his physiological life with, not a real companion, but a mere counterfeit." The cases are still more numerous, the same writer observes, in which the sexual appetite of the wife fails to reveal itself except as

the result of education and practice. "This sort of natural-unnatural condition is the source of much disappointment, and of intense suffering on the part of the woman as well as of family dissatisfaction." Yet such causes for divorce are far too complex to be stated in statute-books, and far too intimate to be pleaded in courts of justice.

[349] Ten years ago, if not still, the United States came fourth in order of frequency of divorce, after Japan, Denmark, and Switzerland.

[350] Lecky, the historian of European morals, has pointed out (_Democracy and Liberty_, vol. ii, p. 172) the close connection generally between facility of divorce and a high standard of sexual morality.

[351] So, e.g., Hobhouse, _Morals in Evolution_, vol. i, p. 237.

[352] In England this step was taken in the reign of Henry VII, when the forcible marriage of women against their will was forbidden by statute (3 Henry VII, c. 2). Even in the middle of the seventeenth century, however, the question of forcible marriage had again to be dealt with (_Inderwick_, Interregnum, pp. 40 et seq.).

[353] Woods Hutchinson (_Contemporary Review_, Sept., 1905) argues that when there is epilepsy, insanity, moral perversion, habitual drunkenness, or criminal conduct of any kind, divorce, for the sake of the next generation, should be not permissive but compulsory. Mere divorce, however, would not suffice to attain the ends desired.

[354] Similarly in Germany, Wanda von Sacher-Masoch, who had suffered much from marriage, whatever her own defects of character may have been, writes at the end of _Meine Lebensbeichte_ that "as long as women have not the courage to regulate, without State-interference or Church-interference, relationships which concern themselves alone, they will not be free." In place of this old decayed system of marriage so opposed to our modern thoughts and feelings, she would have private contracts made by a lawyer. In England, at a much earlier period, Charles Kingsley, who was an ardent friend to women's movements, and whose feeling for womanhood amounted almost to worship, wrote to J.S. Mill: "There will never be a good world for women until the last remnant of the Canon law is civilized off the earth."

[355] "No fouler institution was ever invented," declared Auberon Herbert many years ago, expressing, before its time, a feeling which has since become more common; "and its existence drags on, to our deep shame, because we have not the courage frankly to say that the sexual relations of husband and wife, or those who live together, concern their own selves, and do not concern the prying, gloating, self-righteous, and intensely untruthful world outside."

[356] Hobhouse, op. cit. vol. i, p. 237.

[357] The same conception of marriage as a contract still persists to some extent also in the United States, whither it was carried by the early Protestants and Puritans. No definition of marriage is indeed usually laid down by the States, but, Howard says (op. cit., vol. ii, p. 395), "in effect matrimony is treated as a relation partaking of the nature of both status and contract."

[358] This point of view has been vigorously set forth by Paul and Victor Margueritte, _Quelques Idées_.

[359] I may remark that this was pointed out, and its consequences vigorously argued, many years ago by C.G. Garrison, "Limits of Divorce," _Contemporary Review_, Feb., 1894. "It may safely be asserted," he concludes, "that marriage presents not one attribute or incident of anything remotely resembling a contract, either in form, remedy, procedure, or result; but that in all these aspects, on the contrary, it is fatally hostile to the principles and practices of that division of the rights of persons." Marriage is not contract, but conduct.

[360] See, e.g., P. and V. Margueritte, op. cit.

[361] As quoted by Howard, op. cit., vol. ii, p. 29.

[362] Ellen Key similarly (_Ueber Liebe und Ehe_, p. 343) remarks that to talk of "the duty of life-long fidelity" is much the same as to talk of "the duty of life-long health." A man may promise, she adds, to do his best to preserve his life, or his love; he cannot unconditionally undertake to preserve them.

[363] Hobhouse, op. cit., vol. 1, pp. 159, 237-9; cf. P. and V. Margueritte, _Quelques Idées_.

[364] "Divorce," as Garrison puts it ("Limits of Divorce," _Contemporary Review_, Feb., 1894), "is the judicial announcement that conduct once connubial in character and purpose, has lost these qualities.... Divorce is a question of fact, and not a license to break a promise."

[365] See, _ante_, p. 425.

[366] It has been necessary to discuss reproduction in the first chapter of the present volume, and it will again be necessary in the concluding chapter. Here we are only concerned with procreation as an element of marriage.

[367] Nietzold, _Die Ehe in Ægypten zur Ptolemäisch-römischen Zeit_, 1903, p. 3. This bond also accorded rights to any children that might be born during its existence.

[368] See, e.g., Ellen Key, _Mutter und Kind_, p. 21. The necessity for the combination of greater freedom of sexual relationships with greater stringency of parental relationships was clearly realized at an earlier period by another able woman writer, Miss J.H. Clapperton, in her notable book, _Scientific Meliorism_, published in 1885. "Legal changes," she wrote (p. 320), "are required in two directions, viz., towards greater freedom as to marriage and greater strictness as to parentage. The marriage union is essentially a private matter with which society has no call and no right to interfere. Childbirth, on the contrary, is a public event. It touches the interests of the whole nation."

[369] Ellen Key, _Liebe und Ehe_, p. 168; cf. the same author's _Century of the Child_.

[370] In Germany alone 180,000 "illegitimate" children are born every year, and the number is rapidly increasing; in England it is only 40,000 per annum, the strong feeling which often exists against such births in England (as also in France) leading to the wide adoption of methods for preventing conception.

[371] "Where are real monogamists to be found?" asked Schopenhauer in his essay, "Ueber die Weibe." And James Hinton was wont to ask: "What is the meaning of maintaining monogamy? Is there any chance of getting it, I should like to know? Do you call English life monogamous?"

[372] "Almost everywhere," says Westermarck of polygyny (which he discusses fully in Chs. XX-XXII of his _History of Human Marriage_) "it is confined to the smaller part of the people, the vast majority being monogamous." Maurice Gregory (_Contemporary Review_, Sept., 1906) gives statistics showing that nearly everywhere the tendency is towards equality in number of the sexes.

[373] In a polygamous land a man is of course as much bound by his obligations to his second wife as to his first. Among ourselves the man's "second wife" is degraded with the name of "mistress," and the worse he treats her and her children the more his "morality" is approved, just as the Catholic Church, when struggling to establish sacerdotal celibacy, approved more highly the priest who had illegitimate relations with women than the priest who decently and openly married. If his neglect induces a married man's mistress to make known her relationship to him the man is justified in prosecuting her, and his counsel, assured of general sympathy, will state in court that "this woman has even been so wicked as to write to the prosecutor's wife!"

[374] Howard, in his judicial _History of Matrimonial Institutions_ (vol. ii. pp. 96 et seq.), cannot refrain from drawing attention to the almost insanely wild character of the language used in England not so many years ago by those who opposed marriage with a deceased wife's sister, and he contrasts it with the much more reasonable attitude of the Catholic Church. "Pictures have been drawn," he remarks, "of the moral anarchy such marriages must produce, which are read by American, Colonial, and Continental observers with a bewilderment that is not unmixed with disgust, and are, indeed, a curious illustration of the extreme insularity of the English mind." So recently as A.D. 1908 a bill was brought into the British House of Lords proposing that desertion without cause for two years shall be a ground for divorce, a reasonable and humane measure which is law in most parts of the civilized world. The Lord Chancellor (Lord Loreburn), a Liberal, and in the sphere of politics an enlightened and sagacious leader, declared that such a proposal was "absolutely impossible." The House rejected the proposal by 61 votes to 2. Even the marriage decrees of the Council of Trent were not affirmed by such an overwhelming majority. In matters of marriage legislation England has scarcely yet emerged from the Middle Ages.

CHAPTER XI.

THE ART OF LOVE.

Marriage Not Only for Procreation--Theologians on the _Sacramentum Solationis_--Importance of the _Art of Love_--The Basis of Stability in Marriage and the Condition for Right Procreation--The Art of Love the Bulwark Against Divorce--The Unity of Love and Marriage a Principle of Modern Morality--Christianity and the Art of Love--Ovid--The Art of Love Among Primitive Peoples--Sexual Initiation in Africa and Elsewhere--The Tendency to Spontaneous Development of the Art of Love in Early Life--Flirtation--Sexual Ignorance in Women--The Husband's Place in Sexual Initiation--Sexual Ignorance in Men--The Husband's Education for Marriage--The Injury Done by the Ignorance of Husbands--The Physical and Mental Results of Unskilful Coitus--Women Understand the Art of Love Better Than Men--Ancient and Modern Opinions Concerning Frequency of Coitus--Variation in Sexual Capacity--The Sexual Appetite--The Art of Love Based on the Biological Facts of Courtship--The Art of Pleasing Women--The Lover Compared to the Musician--The Proposal as a Part of Courtship--Divination in the Art of Love--The Importance of the Preliminaries in Courtship--The Unskilful Husband Frequently the Cause of the Frigid Wife--The Difficulty of Courtship--Simultaneous Orgasm--The Evils of Incomplete Gratification in Women--Coitus Interruptus--Coitus Reservatus--The Human Method of Coitus--Variations in Coitus--Posture in Coitus--The Best Time for Coitus--The Influence of Coitus in Marriage--The Advantages of Absence in Marriage--The Risks of Absence--Jealousy--The Primitive Function of Jealousy--Its Predominance Among Animals, Savages, etc., and in Pathological States--An Anti-Social Emotion--Jealousy Incompatible with the Progress of Civilization--The Possibility of Loving More Than One Person at a Time--Platonic Friendship--The Conditions Which Make It Possible--The Maternal Element in Woman's Love--The Final Development of Conjugal Love--The Problem of Love One of the Greatest of Social Questions.

It will be clear from the preceding discussion that there are two elements in every marriage so far as that marriage is complete. On the one hand marriage is a union prompted by mutual love and only sustainable as a reality, apart from its mere formal side, by the cultivation of such love. On the other hand marriage is a method for propagating the race and having its end in offspring. In the first aspect its aim is erotic, in the second parental. Both these ends have long been generally recognized. We find them set forth, for instance, in the marriage service of the Church of England, where it is stated that marriage exists both for "the mutual society, help and comfort that the one ought to have of the other," and also for "the procreation of children." Without the factor of mutual love the proper conditions for procreation cannot exist; without the factor of procreation the sexual union, however beautiful and sacred a relationship it may in itself be, remains, in essence, a private relationship, incomplete as a marriage and without public significance. It becomes necessary, therefore, to supplement the preceding discussion of marriage in its general outlines by a final and more intimate consideration of marriage in its essence, as embracing the art of love and the science of procreation.

There has already been occasion from time to time to refer to those who, starting from various points of view, have sought to limit the scope of marriage and to suppress one or other of its elements. (See e.g., _ante_, p. 135.)

In modern times the tendency has been to exclude the factor of procreation, and to regard the relationship of marriage as exclusively lying in the relationship of the two parties to each other. Apart from the fact, which it is unnecessary again to call attention to, that, from the public and social point of view, a marriage without children, however important to the two persons concerned, is a relationship without any public significance, it must further be said that, in the absence of children, even the personal erotic life itself is apt to suffer, for in the normal erotic life, especially in women, sexual love tends to grow into parental love. Moreover, the full development of mutual love and dependence is with difficulty attained, and there is absence of that closest of bonds, the mutual coöperation of two persons in producing a new person. The perfect and complete marriage in its full development is a trinity.

Those who seek to eliminate the erotic factor from marriage as unessential, or at all events as only permissible when strictly subordinated to the end of procreation, have made themselves heard from time to time at various periods. Even the ancients, Greeks and Romans alike, in their more severe moments advocated the elimination of the erotic element from marriage, and its confinement to extra-marital relationships, that is so far as men were concerned; for the erotic needs of married women they had no provision to make. Montaigne, soaked in classic traditions, has admirably set forth the reasons for eliminating the erotic interest from marriage: "One does not marry for oneself, whatever may be said; a man marries as much, or more, for his posterity, for his family; the usage and interest of marriage touch our race beyond ourselves.... Thus it is a kind of incest to employ, in this venerable and sacred parentage, the efforts and the extravagances of amorous license" (_Essais_, Bk. i, Ch. XXIX; Bk. iii, Ch. V). This point of view easily commended itself to the early Christians, who, however, deliberately overlooked its reverse side, the establishment of erotic interests outside marriage. "To have intercourse except for procreation," said Clement of Alexandria (_Pædagogus_, Bk. ii, Ch. X), "is to do injury to Nature." While, however, that statement is quite true of the lower animals, it is not true of man, and especially not true of civilized man, whose erotic needs are far more developed, and far more intimately associated with the finest and highest part of the organism, than is the case among animals generally. For the animal, sexual desire, except when called forth by the conditions involved by procreative necessities, has no existence. It is far otherwise in man, for whom, even when the question of procreation is altogether excluded, sexual love is still an insistent need, and even a condition of the finest spiritual development. The Catholic Church, therefore, while regarding with admiration a continence in marriage which excluded sexual relations except for the end of procreation, has followed St. Augustine in treating intercourse apart from procreation with considerable indulgence, as only a venial sin. Here, however, the Church was inclined to draw the line, and it appears that in 1679 Innocent XI condemned the proposition that "the conjugal act, practiced for pleasure alone, is exempt even from venial sin."

Protestant theologians have been inclined to go further, and therein they found some authority even in Catholic writers. John à Lasco, the Catholic Bishop who became a Protestant and settled in England during Edward VI's reign, was following many mediæval theologians when he recognized the _sacramentum solationis_, in

addition to _proles_, as an element of marriage. Cranmer, in his marriage service of 1549, stated that "mutual help and comfort," as well as procreation, enter into the object of marriage (Wickham Legg, _Ecclesiological Essays_, p. 204; Howard, _Matrimonial Institutions_, vol. i, p. 398). Modern theologians speak still more distinctly. "The sexual act," says Northcote (_Christianity and Sex Problems_, p. 55), "is a love act. Duly regulated, it conduces to the ethical welfare of the individual and promotes his efficiency as a social unit. The act itself and its surrounding emotions stimulate within the organism the powerful movements of a vast psychic life." At an earlier period also, Schleiermacher, in his _Letters on Lucinde_, had pointed out the great significance of love for the spiritual development of the individual.

Edward Carpenter truly remarks, in _Love's Coming of Age_, that sexual love is not only needed for physical creation, but also for spiritual creation. Bloch, again, in discussing this question (_The Sexual Life of Our Time_, Ch. VI) concludes that "love and the sexual embrace have not only an end in procreation, they constitute an end in themselves, and are necessary for the life, development, and inner growth of the individual himself."

It is argued by some, who admit mutual love as a constituent part of marriage, that such love, once recognized at the outset, may be taken for granted, and requires no further discussion; there is, they believe, no art of love to be either learnt or taught; it comes by nature. Nothing could be further from the truth, most of all as regards civilized man. Even the elementary fact of coitus needs to be taught. No one could take a more austerely Puritanic view of sexual affairs than Sir James Paget, and yet Paget (in his lecture on "Sexual Hypochondriasis") declared that "Ignorance about sexual affairs seems to be a notable characteristic of the more civilized part of the human race. Among ourselves it is certain that the method of copulating needs to be taught, and that they to whom it is not taught remain quite ignorant about it." Gallard, again, remarks similarly (in his _Clinique des Maladies des Femmes_) that young people, like Daphnis in Longus's pastoral, need a beautiful Lycenion to give them a solid education, practical as well as theoretical, in these matters, and he considers that mothers should instruct their daughters at marriage, and fathers their sons. Philosophers have from time to time recognized the gravity of these questions and have discoursed concerning them; thus Epicurus, as Plutarch tells us,[375] would discuss with his disciples various sexual matters, such as the proper time for coitus; but then, as now, there were obscurantists who would leave even the central facts of life to the hazards of chance or ignorance, and these presumed to blame the philosopher.

There is, however, much more to be learnt in these matters than the mere elementary facts of sexual intercourse. The art of love certainly includes such primary facts of sexual hygiene, but it involves also the whole erotic discipline of marriage, and that is why its significance is so great, for the welfare and happiness of the individual, for the stability of sexual unions, and indirectly for the race, since the art of love is ultimately the art of attaining the right conditions for procreation.

"It seems extremely probable," wrote Professor E.D. Cope,[376] "that if this subject could be properly understood, and become, in the details of its practical conduct, a

part of a written social science, the monogamic marriage might attain a far more general success than is often found in actual life." There can be no doubt whatever that this is the case. In the great majority of marriages success depends exclusively upon the knowledge of the art of love possessed by the two persons who enter into it. A life-long monogamic union may, indeed, persist in the absence of the slightest inborn or acquired art of love, out of religious resignation or sheer stupidity. But that attitude is now becoming less common. As we have seen in the previous chapter, divorces are becoming more frequent and more easily obtainable in every civilized country. This is a tendency of civilization; it is the result of a demand that marriage should be a real relationship, and that when it ceases to be real as a relationship it should also cease as a form. That is an inevitable tendency, involved in our growing democratization, for the democracy seems to care more for realities than for forms, however venerable. We cannot fight against it; and we should be wrong to fight against it even if we could.

Yet while we are bound to aid the tendency to divorce, and to insist that a valid marriage needs the wills of two persons to maintain it, it is difficult for anyone to argue that divorce is in itself desirable. It is always a confession of failure. Two persons, who, if they have been moved in the slightest degree by the normal and regular impulse of sexual selection, at the outset regarded each other as lovable, have, on one side or the other or on both, proved not lovable. There has been a failure in the fundamental art of love. If we are to counterbalance facility of divorce our only sound course is to increase the stability of marriage, and that is only possible by cultivating the art of love, the primal foundation of marriage.

It is by no means unnecessary to emphasize this point. There are still many persons who have failed to realize it. There are even people who seem to imagine that it is unimportant whether or not pleasure is present in the sexual act. "I do not believe mutual pleasure in the sexual act has any particular bearing on the happiness of life," once remarked Dr. Howard A. Kelly.[377] Such a statement means--if indeed it means anything--that the marriage tie has no "particular bearing" on human happiness; it means that the way must be freely opened to adultery and divorce. Even the most perverse ascetic of the Middle Ages scarcely ventured to make a statement so flagrantly opposed to the experiences of humanity, and the fact that a distinguished gynecologist of the twentieth century can make it, with almost the air of stating a truism, is ample justification for the emphasis which it has nowadays become necessary to place on the art of love. "Uxor enim dignitatis nomen est, non voluptatis," was indeed an ancient Pagan dictum. But it is not in harmony with modern ideas. It was not even altogether in harmony with Christianity. For our modern morality, as Ellen Key well says, the unity of love and marriage is a fundamental principle.[378]

The neglect of the art of love has not been a universal phenomenon; it is more especially characteristic of Christendom. The spirit of ancient Rome undoubtedly predisposed Europe to such a neglect, for with their rough cultivation of the military virtues and their inaptitude for the finer aspects of civilization the Romans were willing to regard love as a permissible indulgence, but they were not, as a people,

prepared to cultivate it as an art. Their poets do not, in this matter, represent the moral feeling of their best people. It is indeed a highly significant fact that Ovid, the most distinguished Latin poet who concerned himself much with the art of love, associated that art not so much with morality as with immorality. As he viewed it, the art of love was less the art of retaining a woman in her home than the art of winning her away from it; it was the adulterer's art rather than the husband's art. Such a conception would be impossible out of Europe, but it proved very favorable to the growth of the Christian attitude towards the art of love.

Love as an art, as well as a passion, seems to have received considerable study in antiquity, though the results of that study have perished. Cadmus Milesius, says Suidas, wrote fourteen great volumes on the passion of love, but they are not now to be found. Rohde (_Das Griechische Roman_, p. 55) has a brief section on the Greek philosophic writers on love. Bloch (_Beiträge zur Psychopathia Sexualis_, Teil I, p. 191) enumerates the ancient women writers who dealt with the art of love. Montaigne (_Essais_, liv. ii, Ch. V) gives a list of ancient classical lost books on love. Burton (_Anatomy of Melancholy_, Bell's edition, vol. iii, p. 2) also gives a list of lost books on love. Burton himself dealt at length with the manifold signs of love and its grievous symptoms. Boissier de Sauvages, early in the eighteenth century, published a Latin thesis, _De Amore_, discussing love somewhat in the same spirit as Burton, as a psychic disease to be treated and cured.

The breath of Christian asceticism had passed over love; it was no longer, as in classic days, an art to be cultivated, but only a malady to be cured. The true inheritor of the classic spirit in this, as in many other matters, was not the Christian world, but the world of Islam. _The Perfumed Garden_ of the Sheik Nefzaoui was probably written in the city of Tunis early in the sixteenth century by an author who belonged to the south of Tunis. Its opening invocation clearly indicates that it departs widely from the conception of love as a disease: "Praise be to God who has placed man's greatest pleasures in the natural parts of woman, and has destined the natural parts of man to afford the greatest enjoyments to woman." The Arabic book, _El Ktab_, or "The Secret Laws of Love," is a modern work, by Omer Haleby Abu Othmân, who was born in Algiers of a Moorish mother and a Turkish father.

For Christianity the permission to yield to the sexual impulse at all was merely a concession to human weakness, an indulgence only possible when it was carefully hedged and guarded on every side. Almost from the first the Christians began to cultivate the art of virginity, and they could not so dislocate their point of view as to approve of the art of love. All their passionate adoration in the sphere of sex went out towards chastity. Possessed by such ideals, they could only tolerate human love at all by giving to one special form of it a religious sacramental character, and even that sacramental halo imparted to love a quasi-ascetic character which precluded the idea of regarding love as an art.[379] Love gained a religious element but it lost a moral element, since, outside Christianity, the art of love is part of the foundation of sexual morality, wherever such morality in any degree exists. In Christendom love in marriage was left to shift for itself as best it might; the art of love was a dubious art which was held to indicate a certain commerce with immorality and even indeed to be

itself immoral. That feeling was doubtless strengthened by the fact that Ovid was the most conspicuous master in literature of the art of love. His literary reputation--far greater than it now seems to us[380]--gave distinction to his position as the author of the chief extant text-book of the art of love. With Humanism and the Renaissance and the consequent realization that Christianity had overlooked one side of life, Ovid's _Ars Amatoria_ was placed on a pedestal it had not occupied before or since. It represented a step forward in civilization; it revealed love not as a mere animal instinct or a mere pledged duty, but as a complex, humane, and refined relationship which demanded cultivation; "_arte regendus amor_." Boccaccio made a wise teacher put Ovid's _Ars Amatoria_ into the hands of the young. In an age still oppressed by the mediæval spirit, it was a much needed text-book, but it possessed the fatal defect, as a text-book, of presenting the erotic claims of the individual as divorced from the claims of good social order. It never succeeded in establishing itself as a generally accepted manual of love, and in the eyes of many it served to stamp the subject it dealt with as one that lies outside the limits of good morals.

When, however, we take a wider survey, and inquire into the discipline for life that is imparted to the young in many parts of the world, we shall frequently find that the art of love, understood in varying ways, is an essential part of that discipline. Summary, though generally adequate, as are the educational methods of primitive peoples, they not seldom include a training in those arts which render a woman agreeable to a man and a man agreeable to a woman in the relationship of marriage, and it is often more or less dimly realized that courtship is not a mere preliminary to marriage, but a biologically essential part of the marriage relationship throughout.

Sexual initiation is carried out very thoroughly in Azimba land, Central Africa. H. Crawford Angus, the first European to visit the Azimba people, lived among them for a year, and has described the Chensamwali, or initiation ceremony, of girls. "At the first sign of menstruation in a young girl, she is taught the mysteries of womanhood, and is shown the different positions for sexual intercourse. The vagina is handled freely, and if not previously enlarged (which may have taken place at the harvest festival when a boy and girl are allowed to 'keep house' during the day-time by themselves, and when quasi-intercourse takes place) it is now enlarged by means of a horn or corn-cob, which is inserted and secured in place by bands of bark cloth. When all signs [of menstruation] have passed, a public announcement of a dance is given to the women in the village. At this dance no men are allowed to be present, and it was only with a great deal of trouble that I managed to witness it. The girl to be 'danced' is led back from the bush to her mother's hut where she is kept in solitude to the morning of the dance. On that morning she is placed on the ground in a sitting position, while the dancers form a ring around her. Several songs are then sung with reference to the genital organs. The girl is then stripped and made to go through the mimic performance of sexual intercourse, and if the movements are not enacted properly, as is often the case when the girl is timid and bashful, one of the older women will take her place and show her how she is to perform. Many songs about the relation between men and women are sung, and the girl is instructed as to all her duties when she becomes a wife. She is also instructed that during the time of her menstruation she is unclean, and that during her monthly period she must close her

vulva with a pad of fibre used for the purpose. The object of the dance is to inculcate to the girl the knowledge of married life. The girl is taught to be faithful to her husband and to try to bear children, and she is also taught the various arts and methods of making herself seductive and pleasing to her husband, and of thus retaining him in her power." (H. Crawford Angus, "The Chensamwali," _Zeitschrift für Ethnologie_, 1898, Heft 6, p. 479).

In Abyssinia, as well as on the Zanzibar coast, according to Stecker (quoted by Ploss-Bartels, _Das Weib_, Section 119) young girls are educated in buttock movements which increase their charm in coitus. These movements, of a rotatory character, are called Duk-Duk. To be ignorant of Duk-Duk is a great disgrace to a girl. Among the Swahili women of Zanzibar, indeed, a complete artistic system of hip-movements is cultivated, to be displayed in coitus. It prevails more especially on the coast, and a Swahili woman is not counted a "lady" (bibi) unless she is acquainted with this art. From sixty to eighty young women practice this buttock dance together for some eight hours a day, laying aside all clothing, and singing the while. The public are not admitted. The dance, which is a kind of imitation of coitus, has been described by Zache ("Sitten und Gebräuche der Suaheli," _Zeitschrift für Ethnologie_, 1899, Heft 2-3, p. 72). The more accomplished dancers excite general admiration. During the latter part of this initiation various feats are imposed, to test the girl's skill and self-control. For instance, she must dance up to a fire and remove from the midst of the fire a vessel full of water to the brim, without spilling it. At the end of three months the training is over, and the girl goes home in festival attire. She is now eligible for marriage. Similar customs are said to prevail in the Dutch East Indies and elsewhere.

The Hebrews had erotic dances, which were doubtless related to the art of love in marriage, and among the Greeks, and their disciples the Romans, the conception of love as an art which needs training, skill, and cultivation, was still extant. That conception was crushed by Christianity which, although it sanctified the institution of matrimony, degraded that sexual love which is normally the content of marriage.

In 1176 the question was brought before a Court of Love by a baron and lady of Champagne, whether love is compatible with marriage. "No," said the baron, "I admire and respect the sweet intimacy of married couples, but I cannot call it love. Love desires obstacles, mystery, stolen favors. Now husbands and wives boldly avow their relationship; they possess each other without contradiction and without reserve. It cannot then be love that they experience." And after mature deliberation the ladies of the Court of Love adopted the baron's conclusions (E. de la Bedollière, _Histoire des Moeurs des Français_, vol. iii, p. 334). There was undoubtedly an element of truth in the baron's arguments. Yet it may well be doubted whether in any non-Christian country it would ever have been possible to obtain acceptance for the doctrine that love and marriage are incompatible. This doctrine was, however, as Ribot points out in his _Logique des Sentiments_, inevitable, when, as among the medieval nobility, marriage was merely a political or domestic treaty and could not, therefore, be a method of moral elevation.

"Why is it," asked Rétif de la Bretonne, towards the end of the eighteenth century, "that girls who have no morals are more seductive and more loveable than honest women? It is because, like the Greek courtesans to whom grace and voluptuousness were taught, they have studied the art of pleasing. Among the foolish detractors of my _Contemporaines_, not one guessed the philosophic aim of nearly everyone of these tales, which is to suggest to honest women the ways of making themselves loved. I should like to see the institution of initiations, such as those of the ancients.... To-day the happiness of the human species is abandoned to chance; all the experience of women is individual, like that of animals; it is lost with those women who, being naturally amiable, might have taught others to become so. Prostitutes alone make a superficial study of it, and the lessons they receive are, for the most part, as harmful as those of respectable Greek and Roman matrons were holy and honorable, only tending to wantonness, to the exhaustion alike of the purse and of the physical faculties, while the aim of the ancient matrons was the union of husband and wife and their mutual attachment through pleasure. The Christian religion annihilated the Mysteries as infamous, but we may regard that annihilation as one of the wrongs done by Christianity to humanity, as the work of men with little enlightenment and bitter zeal, dangerous puritans who were the natural enemies of marriage" (Rétif de la Bretonne, _Monsieur Nicolas_, reprint of 1883, vol. x, pp. 160-3). It may be added that Dühren (Dr. Iwan Bloch) regards Rétif as "a master in the _Ars Amandi_," and discusses him from this point of view in his _Rétif de la Bretonne_ (pp. 362-371).

Whether or not Christianity is to be held responsible, it cannot be doubted that throughout Christendom there has been a lamentable failure to recognize the supreme importance, not only erotically but morally, of the art of love. Even in the great revival of sexual enlightenment now taking place around us there is rarely even the faintest recognition that in sexual enlightenment the one thing essentially necessary is a knowledge of the art of love. For the most part, sexual instruction as at present understood, is purely negative, a mere string of thou-shalt-nots. If that failure were due to the conscious and deliberate recognition that while the art of love must be based on physiological and psychological knowledge, it is far too subtle, too complex, too personal, to be formulated in lectures and manuals, it would be reasonable and sound. But it seems to rest entirely on ignorance, indifference, or worse.

Love-making is indeed, like other arts, an art that is partly natural--"an art that nature makes"--and therefore it is a natural subject for learning and exercising in play. Children left to themselves tend, both playfully and seriously, to practice love, alike on the physical and the psychic sides.[381] But this play is on its physical side sternly repressed by their elders, when discovered, and on its psychic side laughed at. Among the well-bred classes it is usually starved out at an early age.

After puberty, if not before, there is another form in which the art of love is largely experimented and practised, especially in England and America, the form of flirtation. In its elementary manifestations flirting is entirely natural and normal; we may trace it even in animals; it is simply the beginning of courtship, at the early stage when

courtship may yet, if desired, be broken off. Under modern civilized conditions, however, flirtation is often more than this. These conditions make marriage difficult; they make love and its engagements too serious a matter to be entered on lightly; they make actual sexual intercourse dangerous as well as disreputable. Flirtation adapts itself to these conditions. Instead of being merely the preliminary stage of normal courtship, it is developed into a form of sexual gratification as complete as due observation of the conditions already mentioned will allow. In Germany, and especially in France where it is held in great abhorrence, this is the only form of flirtation known; it is regarded as an exportation from the United States and is denominated "flirtage." Its practical outcome is held to be the "demi-vierge," who knows and has experienced the joys of sex while yet retaining her hymen intact.

This degenerate form of flirtation, cultivated not as a part of courtship, but for its own sake, has been well described by Forel (_Die Sexuelle Frage_, pp. 97-101). He defines it as including "all those expressions of the sexual instinct of one individual towards another individual which excite the other's sexual instinct, coitus being always excepted." In the beginning it may be merely a provocative look or a simple apparently unintentional touch or contact; and by slight gradations it may pass on to caresses, kisses, embraces, and even extend to pressure or friction of the sexual parts, sometimes leading to orgasm. Thus, Forel mentions, a sensuous woman by the pressure of her garments in dancing can produce ejaculation in her partner. Most usually the process is that voluptuous contact and revery which, in English slang, is called "spooning." From first to last there need not be any explicit explanations, proposals, or declarations on either side, and neither party is committed to any relationship with the other beyond the period devoted to flirtage. In one form, however, flirtage consists entirely in the excitement of a conversation devoted to erotic and indecorous topics. Either the man or the woman may take the active part in flirtage, but in a woman more refinement and skill is required to play the active part without repelling the man or injuring her reputation. Indeed, much the same is true of men also, for women, while they often like flirting, usually prefer its more refined forms. There are infinite forms of flirtage, and while as a preliminary part of courtship, it has its normal place and justification, Forel concludes that "as an end in itself, and never passing beyond itself, it is a phenomenon of degeneration."

From the French point of view, flirtage and flirtation generally have been discussed by Madame Bentzon ("Family Life in America," _Forum_, March, 1896) who, however, fails to realize the natural basis of flirtation in courtship. She regards it as a sin against the law "Thou shalt not play with love," for it ought to have the excuse of an irresistible passion, but she thinks it is comparatively inoffensive in America (though still a deteriorating influence on the women) on account of the temperament, education, and habits of the people. It must, however, be remembered that play has a proper relationship to all vital activities, and that a reasonable criticism of flirtation is concerned rather with its normal limitations than with its right to exist (see the observations on the natural basis of coquetry and the ends it subserves in "The Evolution of Modesty" in volume i of these _Studies_).

While flirtation in its natural form--though not in the perverted form of "flirtage"--has sound justification, alike as a method of testing a lover and of acquiring some small part of the art of love, it remains an altogether inadequate preparation for love. This is sufficiently shown by the frequent inaptitude for the art of love, and even for the mere physical act of love, so frequently manifested both by men and women in the very countries where flirtation most flourishes.

This ignorance, not merely of the art of love but even of the physical facts of sexual love, is marked not only in women, especially women of the middle class, but also in men, for the civilized man, as Fritsch long ago remarked, often knows less of the facts of the sexual life than a milkmaid. It shows itself differently, however, in the two sexes.

Among women sexual ignorance ranges from complete innocence of the fact that it involves any intimate bodily relationship at all to misapprehensions of the most various kind; some think that the relationship consists in lying side by side, many that intercourse takes place at the navel, not a few that the act occupies the whole night. It has been necessary in a previous chapter to discuss the general evils of sexual ignorance; it is here necessary to refer to its more special evils as regards the relationship of marriage. Girls are educated with the vague idea that they will marry,--quite correctly, for the majority of them do marry,--but the idea that they must be educated for the career that will naturally fall to their lot is an idea which as yet has never seemed to occur to the teachers of girls. Their heads are crammed to stupidity with the knowledge of facts which it is no one's concern to know, but the supremely important training for life they are totally unable to teach. Women are trained for nearly every avocation under the sun; for the supreme avocation of wifehood and motherhood they are never trained at all!

It may be said, and with truth, that the present incompetent training of girls is likely to continue so long as the mothers of girls are content to demand nothing better. It may also be said, with even greater truth, that there is much that concerns the knowledge of sexual relationships which the mother herself may most properly impart to her daughter. It may further be asserted, most unanswerably, that the art of love, with which we are here more especially concerned, can only be learnt by actual experience, an experience which our social traditions make it difficult for a virtuous girl to acquire with credit. Without here attempting to apportion the share of blame which falls to each cause, it remains unfortunate that a woman should so often enter marriage with the worst possible equipment of prejudices and misapprehensions, even when she believes, as often happens, that she knows all about it. Even with the best equipment, a woman, under present conditions, enters marriage at a disadvantage. She awakes to the full realization of love more slowly than a man, and, on the average, at a later age, so that her experiences of the life of sex before marriage have usually been of a much more restricted kind than her husband's.[382] So that even with the best preparation, it often happens that it is not until several years after marriage that a woman clearly realizes her own sexual needs and adequately estimates her husband's ability to satisfy those needs. We cannot over-estimate the personal and social importance of a complete preparation for

marriage, and the greater the difficulties placed in the way of divorce the more weight necessarily attaches to that preparation.[383]

Everyone is probably acquainted with many cases of the extreme ignorance of women on entering marriage. The following case concerning a woman of twenty-seven, who had been asked in marriage, is somewhat extreme, but not very exceptional. "She did not feel sure of her affection and she asked a woman cousin concerning the meaning of love. This cousin lent her Ellis Ethelmer's pamphlet, _The Human Flower_. She learnt from this that men desired the body of a woman, and this so appalled her that she was quite ill for several days. The next time her lover attempted a caress she told him that it was 'lust.' Since then she has read George Moore's _Sister Teresa_, and the knowledge that 'women can be as bad as men' has made her sad." The "Histories" contained in the Appendices to previous volumes of these _Studies_ reveal numerous instances of the deplorable ignorance of young girls concerning the most central facts of the sexual life. It is not surprising, under such circumstances, that marriage leads to disillusionment or repulsion.

It is commonly said that the duty of initiating the wife into the privileges and obligations of marriage properly belongs to the husband. Apart, however, altogether from the fact that it is unjust to a woman to compel her to bind herself in marriage before she has fully realized what marriage means, it must also be said that there are many things necessary for women to know that it is unreasonable to expect a husband to explain. This is, for instance, notably the case as regards the more fatiguing and exhausting effects of coitus on a man as compared with a woman. The inexperienced bride cannot know beforehand that the frequently repeated orgasms which render her vigorous and radiant exert a depressing effect on her husband, and his masculine pride induces him to attempt to conceal that fact. The bride, in her innocence, is unconscious that her pleasure is bought at her husband's expense, and that what is not excess to her, may be a serious excess to him. The woman who knows (notably, for instance, a widow who remarries) is careful to guard her husband's health in this respect, by restraining her own ardor, for she realizes that a man is not willing to admit that he is incapable of satisfying his wife's desires. (G. Hirth has also pointed out how important it is that women should know before marriage the natural limits of masculine potency, _Wege zur Liebe_, p. 571.)

The ignorance of women of all that concerns the art of love, and their total lack of preparation for the natural facts of the sexual life, would perhaps be of less evil augury for marriage if it were always compensated by the knowledge, skill, and considerateness of the husband. But that is by no means always the case. Within the ordinary range we find, at all events in England, the large group of men whose knowledge of women before marriage has been mainly confined to prostitutes, and the important and not inconsiderable group of men who have had no intimate intercourse with women, their sexual experiences having been confined to masturbation or other auto-erotic manifestations, and to flirtation. Certainly the man of sensitive and intelligent temperament, whatever his training or lack of training, may succeed with patience and consideration in overcoming all the difficulties placed in the way of love by the mixture of ignorances and prejudices which so often in

woman takes the place of an education for the erotic part of her life. But it cannot be said that either of these two groups of men has been well equipped for the task. The training and experience which a man receives from a prostitute, even under fairly favorable conditions, scarcely form the right preparation for approaching a woman of his own class who has no intimate erotic experiences.[384] The frequent result is that he is liable to waver between two opposite courses of action, both of them mistaken. On the one hand, he may treat his bride as a prostitute, or as a novice to be speedily moulded into the sexual shape he is most accustomed to, thus running the risk either of perverting or of disgusting her. On the other hand, realizing that the purity and dignity of his bride place her in an altogether different class from the women he has previously known, he may go to the opposite extreme of treating her with an exaggerated respect, and so fail either to arouse or to gratify her erotic needs. It is difficult to say which of these two courses of action is the more unfortunate; the result of both, however, is frequently found to be that a nominal marriage never becomes a real marriage.[385]

Yet there can be no doubt whatever that the other group of men, the men who enter marriage without any erotic experiences, run even greater risks. These are often the best of men, both as regards personal character and mental power. It is indeed astonishing to find how ignorant, both practically and theoretically, very able and highly educated men may be concerning sexual matters.

"Complete abstinence during youth," says Freud (_Sexual-Probleme_, March, 1908), "is not the best preparation for marriage in a young man. Women divine this and prefer those of their wooers who have already proved themselves to be men with other women." Ellen Key, referring to the demand sometimes made by women for purity in men (_Ueber Liebe und Ehe_, p. 96), asks whether women realize the effect of their admiration of the experienced and confident man who knows women, on the shy and hesitating youth, "who perhaps has been struggling hard for his erotic purity, in the hope that a woman's happy smile will be the reward of his conquest, and who is condemned to see how that woman looks down on him with lofty compassion and gazes with admiration at the leopard's spots." When the lover, in Laura Marholm's _Was war es_? says to the heroine, "I have never yet touched a woman," the girl "turns from him with horror, and it seemed to her that a cold shudder went through her, a chilling deception." The same feeling is manifested in an exaggerated form in the passion often experienced by vigorous girls of eighteen to twenty-four for old roués. (This has been discussed by Forel, _Die Sexuelle Frage_, pp. 217 et seq.)

Other factors may enter in a woman's preference for the man who has conquered other women. Even the most religious and moral young woman, Valera remarks (_Doña Luz_, p. 205), likes to marry a man who has loved many women; it gives a greater value to his choice of her; it also offers her an opportunity of converting him to higher ideals. No doubt when the inexperienced man meets in marriage the equally inexperienced woman they often succeed in adapting themselves to each other and a permanent _modus vivendi_ is constituted. But it is by no means so always. If the wife is taught by instinct or experience she is apt to resent the awkwardness and helplessness of her husband in the art of love. Even if she is ignorant she may be

permanently alienated and become chronically frigid, through the brutal inconsiderateness of her ignorant husband in carrying out what he conceives to be his marital duties. (It has already been necessary to touch on this point in discussing "The Sexual Impulse in Women" in vol. iii of these _Studies_.) Sometimes, indeed, serious physical injury has been inflicted on the bride owing to this ignorance of the husband.

"I take it that most men have had pre-matrimonial sex-relationships," a correspondent writes. "But I have known one man at least who, up till the age of twenty, had not even a rudimentary idea of sex matters. At twenty-nine, a few months before marriage, he came to ask me how coitus was performed, and displayed an ignorance that I could not believe to exist in the mind of an otherwise intelligent man. He had evidently no instinct to guide him, as the brutes have, and his reason was unable to supply the necessary knowledge. It is very curious that man should lose this instinctive knowledge. I have known another man almost equally ignorant. He also came to me for advice in marital duties. Both of these men masturbated, and they were normally passionate." Such cases are not so very rare. Usually, however, a certain amount of information has been acquired from some for the most part unsatisfactory source, and the ignorance is only partial, though not on that account less dangerous.

Balzac has compared the average husband to an orang-utan trying to play the violin. "Love, as we instinctively feel, is the most melodious of harmonies. Woman is a delicious instrument of pleasure, but it is necessary to know its quivering strings, study the pose of it, its timid keyboard, the changing and capricious fingering. How many orangs--men, I mean, marry without knowing what a woman is!... Nearly all men marry in the most profound ignorance of women and of love" (Balzac, _Physiologie du Mariage_, Meditation VII).

Neugebauer (_Monatsschrift für Geburtshülfe_, 1889, Bk. ix, pp. 221 et seq.) has collected over one hundred and fifty cases of injury to women in coitus inflicted by the penis. The causes were brutality, drunkenness of one or both parties, unusual position in coitus, disproportion of the organs, pathological conditions of the woman's organs (Cf. R.W. Taylor, _Practical Treatise on Sexual Disorders_, Ch. XXXV). Blumreich also discusses the injuries produced by violent coitus (Senator and Kaminer, _Health and Disease in Relation to Marriage_, vol. ii, pp. 770-779). C.M. Green (_Boston Medical and Surgical Journal_, 13 Ap., 1893) records two cases of rupture of vagina by sexual intercourse in newly-married ladies, without evidence of any great violence. Mylott (_British Medical Journal_, Sept. 16, 1899) records a similar case occurring on the wedding night. The amount of force sometimes exerted in coitus is evidenced by the cases, occurring from time to time, in which intercourse takes place by the urethra.

Eulenburg finds (_Sexuale Neuropathie_, p. 69) that vaginismus, a condition of spasmodic contraction of the vulva and exaggerated sensibility on the attempt to effect coitus, is due to forcible and unskilful attempts at the first coitus. Adler (_Die Mangelhafte Geschlechtsempfindung des Weibes_, p. 160) also believes that the scarred remains of the hymen, together with painful memories of a violent first

coitus, are the most frequent cause of vaginismus.

The occasional cases, however, of physical injury or of pathological condition produced by violent coitus at the beginning of marriage constitute but a very small portion of the evidence which witnesses to the evil results of the prevalent ignorance regarding the art of love. As regards Germany, Fürbringer writes (Senator and Kaminer, _Health and Disease in Relation to Marriage_, vol. i, p. 215): "I am perfectly satisfied that the number of young married women who have a lasting painful recollection of their first sexual intercourse exceeds by far the number of those who venture to consult a doctor." As regards England, the following experience is instructive: A lady asked six married women in succession, privately, on the same day concerning their bridal experiences. To all, sexual intercourse had come as a shock; two had been absolutely ignorant about sexual matters; the others had thought they knew what coitus was, but were none the less shocked. These women were of the middle class, perhaps above the average in intelligence; one was a doctor.

Breuer and Freud, in their _Studien über Hysterie_ (p. 216), pointed out that the bridal night is practically often a rape, and that it sometimes leads to hysteria, which is not cured until satisfying sexual relationships are established. Even when there is no violence, Kisch (_Sexual Life of Woman_, Part II) regards awkward and inexperienced coitus, leading to incomplete excitement of the wife, as the chief cause of dyspareunia, or absence of sexual gratification, although gross disproportion in the size of the male and female organs, or disease in either party, may lead to the same result. Dyspareunia, Kisch adds, is astonishingly frequent, though sometimes women complain of it without justification in order to arouse sympathy for themselves as sacrifices on the altar of marriage; the constant sign is absence of ejaculation on the woman's part. Kisch also observes that wedding night deflorations are often really rapes. One young bride, known to him, was so ignorant of the physical side of love, and so overwhelmed by her husband's first attempt at intercourse, that she fled from the house in the night, and nothing would ever persuade her to return to her husband. (It is worth noting that by Canon law, under such circumstances, the Church might hold the marriage invalid. See Thomas Slater's _Moral Theology_, vol. ii, p. 318, and a case in point, both quoted by Rev. C.J. Shebbeare, "Marriage Law in the Church of England," _Nineteenth Century_, Aug., 1909, p. 263.) Kisch considers, also, that wedding tours are a mistake; since the fatigue, the excitement, the long journeys, sight-seeing, false modesty, bad hotel arrangements, often combine to affect the bride unfavorably and produce the germs of serious illness. This is undoubtedly the case.

The extreme psychic importance of the manner in which the act of defloration is accomplished is strongly emphasized by Adler. He regards it as a frequent cause of permanent sexual anæsthesia. "This first moment in which the man's individuality attains its full rights often decides the whole of life. The unskilled, over-excited husband can then implant the seed of feminine insensibility, and by continued awkwardness and coarseness develop it into permanent anæsthesia. The man who takes possession of his rights with reckless brutal masculine force merely causes his wife anxiety and pain, and with every repetition of the act increases her repulsion....

A large proportion of cold-natured women represent a sacrifice by men, due either to unconscious awkwardness, or, occasionally, to conscious brutality towards the tender plant which should have been cherished with peculiar art and love, but has been robbed of the splendor of its development. All her life long, a wistful and trembling woman will preserve the recollection of a brutal wedding night, and, often enough, it remains a perpetual source of inhibition every time that the husband seeks anew to gratify his desires without adapting himself to his wife's desires for love" (O. Adler, _Die Mangelhafte Geschlechtsempfindung des Weibes_, pp. 159 et seq., 181 et seq.). "I have seen an honest woman shudder with horror at her husband's approach," wrote Diderot long ago in his essay "Sur les Femmes"; "I have seen her plunge in the bath and feel herself never sufficiently washed from the stain of duty." The same may still be said of a vast army of women, victims of a pernicious system of morality which has taught them false ideas of "conjugal duty" and has failed to teach their husbands the art of love.

Women, when their fine natural instincts have not been hopelessly perverted by the pruderies and prejudices which are so diligently instilled into them, understand the art of love more readily than men. Even when little more than children they can often completely take the cue that is given to them. Much more than is the case with men, at all events under civilized conditions, the art of love is with them an art that Nature makes. They always know more of love, as Montaigne long since said, than men can teach them, for it is a discipline that is born in their blood.[386]

The extensive inquiries of Sanford Bell (loc. cit.) show that the emotions of sex-love may appear as early as the third year. It must also be remembered that, both physically and psychically, girls are more precocious, more mature, than boys (see, e.g., Havelock Ellis, _Man and Woman_, fourth edition, pp. 34 _et seq._, 200, etc.). Thus, by the time she has reached the age of puberty a girl has had time to become an accomplished mistress of the minor arts of love. That the age of puberty is for girls the age of love seems to be widely recognized by the popular mind. Thus in a popular song of Bresse a girl sings:--

"J'ai calculé mon âge, J'ai quatorze à quinze ans. Ne suis-je pas dans l'âge D'y avoir un amant?"

This matter of the sexual precocity of girls has an important bearing on the question of the "age of consent," or the age at which it should be legal for a girl to consent to sexual intercourse. Until within the last twenty-five years there has been a tendency to set a very low age (even as low as ten) as the age above which a man commits no offence in having sexual intercourse with a girl. In recent years there has been a tendency to run to the opposite and equally unfortunate extreme of raising it to a very late age. In England, by the Criminal Law Amendment Act of 1885, the age of consent was raised to sixteen (this clause of the bill being carried in the House of Commons by a majority of 108). This seems to be the reasonable age at which the limit should be set and its extreme high limit in temperate climates. It is the age recognized by the Italian Criminal Code, and in many other parts of the civilized world. Gladstone, however, was in favor of raising it to eighteen, and Howard, in discussing this question as regards the United States (_Matrimonial Institutions_, vol.

iii, pp. 195-203), thinks it ought everywhere to be raised to twenty-one, so coinciding with the age of legal majority at which a woman can enter into business or political relations. There has been, during recent years, a wide limit of variation in the legislation of the different American States on this point, the differences of the two limits being as much as eight years, and in some important States the act of intercourse with a girl under eighteen is declared to be "rape," and punishable with imprisonment for life.

Such enactments as these, however, it must be recognized, are arbitrary, artificial, and unnatural. They do not rest on a sound biological basis, and cannot be enforced by the common sense of the community. There is no proper analogy between the age of legal majority which is fixed, approximately, with reference to the ability to comprehend abstract matters of intelligence, and the age of sexual maturity which occurs much earlier, both physically and psychically, and is determined in women by a very precise biological event: the completion of puberty in the onset of menstruation. Among peoples living under natural conditions in all parts of the world it is recognized that a girl becomes sexually a woman at puberty; at that epoch she receives her initiation into adult life and becomes a wife and a mother. To declare that the act of intercourse with a woman who, by the natural instinct of mankind generally, is regarded as old enough for all the duties of womanhood, is a criminal act of rape, punishable by imprisonment for life, can only be considered an abuse of language, and, what is worse, an abuse of law, even if we leave all psychological and moral considerations out of the question, for it deprives the conception of rape of all that renders it naturally and properly revolting.

The sound view in this question is clearly the view that it is the girl's puberty which constitutes the criterion of the man's criminality in sexually approaching her. In the temperate regions of Europe and North America the average age of the appearance of menstruation, the critical moment in the establishment of complete puberty, is fifteen (see, e.g., Havelock Ellis, _Man and Woman_, Ch. XI; the facts are set forth at length in Kisch's _Sexual Life of Woman_, 1909). Therefore it is reasonable that the act of an adult man in having sexual connection with a girl under sixteen, with or without her consent, should properly be a criminal act, severely punishable. In those lands where the average age of puberty is higher or lower, the age of consent should be raised or lowered accordingly. (Bruno Meyer, arguing against any attempt to raise the age of consent above sixteen, considers that the proper age of consent is generally fourteen, for, as he rightly insists, the line of division is between the ripe and the unripe personality, and while the latter should be strictly preserved from the sphere of sexuality, only voluntary, not compulsory, influence should be brought to bear on the former. _Sexual-Probleme_, Ap., 1909.)

If we take into our view the wider considerations of psychology, morality, and law, we shall find ample justification for this point of view. We have to remember that a girl, during all the years of ordinary school life, is always more advanced, both physically and psychically, than a boy of the same age, and we have to recognize that this precocity covers her sexual development; for even though it is true, on the average, that active sexual desire is not usually aroused in women until a somewhat

later age, there is also truth in the observation of Mr. Thomas Hardy (_New Review_, June, 1894): "It has never struck me that the spider is invariably male and the fly invariably female." Even, therefore, when sexual intercourse takes place between a girl and a youth somewhat older than herself, she is likely to be the more mature, the more self-possessed, and the more responsible of the two, and often the one who has taken the more active part in initiating the act. (This point has been discussed in "The Sexual Impulse in Women" in vol. iii of these _Studies_.) It must also be remembered that when a girl has once reached the age of puberty, and put on all the manner and habits as well as the physical development of a woman, it is no longer possible for a man always to estimate her age. It is easy to see that a girl has not yet reached the age of puberty; it is impossible to tell whether a mature woman is under or over eighteen; it is therefore, to say the least, unjust to make her male partner's fate for life depend on the recognition of a distinction which has no basis in nature. Such considerations are, indeed, so obvious that there is no chance of carrying out thoroughly in practice the doctrine that a man should be imprisoned for life for having intercourse with a girl who is over the age of sixteen. It is better, from the legal point of view, to cast the net less widely and to be quite sure that it is adapted to catch the real and conscious offender, who may be punished without offending the common sense of the community. (Cf. Bloch, _The Sexual Life of Our Time_, Ch. XXIV; he considers that the "age of consent" should begin with the completion of the sixteenth year.)

It may be necessary to add that the establishment of the "age of consent" on this basis by no means implies that intercourse with girls but little over sixteen should be encouraged, or even socially and morally tolerated. Here, however, we are not in the sphere of law. It is the natural tendency of the well-born and well-nurtured girl under civilized conditions to hold herself in reserve, and the pressure whereby that tendency is maintained and furthered must be supplied by the whole of her environment, primarily by the intelligent reflection of the girl herself when she has reached the age of adolescence. To foster in a young woman who has long passed the epoch of puberty the notion that she has no responsibility in the guardianship of her own body and soul is out of harmony with modern feeling, as well as unfavorable to the training of women for the world. The States which have been induced to adopt the high limit of the age of consent have, indeed, thereby made an abject confession of their inability to maintain a decent moral level by more legitimate means; they may profitably serve as a warning rather than as an example.

The knowledge of women cannot, however, replace, the ignorance of men, but, on the contrary, merely serves to reveal it. For in the art of love the man must necessarily take the initiative. It is he who must first unseal the mystery of the intimacies and audacities which the woman's heart may hold. The risk of meeting with even the shadow of contempt or disgust is too serious to allow a woman, even a wife, to reveal the secrets of love to a man who has not shown himself to be an initiate.[387] Numberless are the jovial and contented husbands who have never suspected, and will never know, that their wives carry about with them, sometimes with silent resentment, the ache of mysterious _tabus_. The feeling that there are delicious privacies and privileges which she has never been asked to take, or forced

to accept, often erotically divorces a wife from a husband who never realizes what he has missed.[388] The case of such husbands is all the harder because, for the most part, all that they have done is the result of the morality that has been preached to them. They have been taught from boyhood to be strenuous and manly and clean-minded, to seek by all means to put out of their minds the thought of women or the longing for sensuous indulgence. They have been told on all sides that only in marriage is it right or even safe to approach women. They have acquired the notion that sexual indulgence and all that appertains to it is something low and degrading, at the worst a mere natural necessity, at the best a duty to be accomplished in a direct, honorable and straight-forward manner. No one seems to have told them that love is an art, and that to gain real possession of a woman's soul and body is a task that requires the whole of a man's best skill and insight. It may well be that when a man learns his lesson too late he is inclined to turn ferociously on the society that by its conspiracy of pseudo-morality has done its best to ruin his life, and that of his wife. In some of these cases husband or wife or both are finally attracted to a third person, and a divorce enables them to start afresh with better experience under happier auspices. But as things are at present that is a sad and serious process, for many impossible. They are happier, as Milton pointed out, whose trials of love before marriage "have been so many divorces to teach them experience."

The general ignorance concerning the art of love may be gauged by the fact that perhaps the question in this matter most frequently asked is the crude question how often sexual intercourse should take place. That is a question, indeed, which has occupied the founders of religion, the law-givers, and the philosophers of mankind, from the earliest times.[389] Zoroaster said it should be once in every nine days. The laws of Manes allowed intercourse during fourteen days of the month, but a famous ancient Hindu physician, Susruta, prescribed it six times a month, except during the heat of summer when it should be once a month, while other Hindu authorities say three or four times a month. Solon's requirement of the citizen that intercourse should take place three times a month fairly agrees with Zoroaster's. Mohammed, in the Koran, decrees intercourse once a week. The Jewish Talmud is more discriminating, and distinguishes between different classes of people; on the vigorous and healthy young man, not compelled to work hard, once a day is imposed, on the ordinary working man twice a week, on learned men once a week. Luther considered twice a week the proper frequency of intercourse.

It will be observed that, as we might expect, these estimates tend to allow a greater interval in the earlier ages when erotic stimulation was probably less and erotic erethism probably rare, and to involve an increased frequency as we approach modern civilization. It will also be observed that variation occurs within fairly narrow limits. This is probably due to the fact that these law-givers were in all cases men. Women law-givers would certainly have shown a much greater tendency to variation, since the variations of the sexual impulse are greater in women.[390] Thus Zenobia required the approach of her husband once a month, provided that impregnation had not taken place the previous month, while another queen went very far to the other extreme, for we are told that the Queen of Aragon, after mature deliberation, ordained six times a day as the proper rule in a legitimate marriage.[391]

It may be remarked, in passing, that the estimates of the proper frequency of sexual intercourse may always be taken to assume that there is a cessation during the menstrual period. This is especially the case as regards early periods of culture when intercourse at this time is usually regarded as either dangerous or sinful, or both. (This point has been discussed in the "Phenomena of Periodicity" in volume i of these _Studies_.) Under civilized conditions the inhibition is due to æsthetic reasons, the wife, even if she desires intercourse, feeling a repugnance to be approached at a time when she regards herself as "disgusting," and the husband easily sharing this attitude. It may, however, be pointed out that the æsthetic objection is very largely the result of the superstitious horror of water which is still widely felt at this time, and would, to some extent, disappear if a more scrupulous cleanliness were observed. It remains a good general rule to abstain from sexual intercourse during the menstrual period, but in some cases there may be adequate reason for breaking it. This is so when desire is specially strong at this time, or when intercourse is physically difficult at other times but easier during the relaxation of the parts caused by menstruation. It must be remembered also that the time when the menstrual flow is beginning to cease is probably, more than any other period of the month, the biologically proper time for sexual intercourse, since not only is intercourse easiest then, and also most gratifying to the female, but it affords the most favorable opportunity for securing fertilization.

Schurig long since brought together evidence (_Parthenologia_, pp. 302 et seq.) showing that coitus is most easy during menstruation. Some of the Catholic theologians (like Sanchez, and later, Liguori), going against the popular opinion, have distinctly permitted intercourse during menstruation, though many earlier theologians regarded it as a mortal sin. From the medical side, Kossmann (Senator and Kaminer, _Health and Disease in Relation to Marriage_, vol. i, p. 249) advocates coitus not only at the end of menstruation, but even during the latter part of the period, as being the time when women most usually need it, the marked disagreeableness of temper often shown by women at this time, he says, being connected with the suppression, demanded by custom, of a natural desire. "It is almost always during menstruation that the first clouds appear on the matrimonial horizon."

In modern times the physiologists and physicians who have expressed any opinion on this subject have usually come very near to Luther's dictum. Haller said that intercourse should not be much more frequent than twice a week.[392] Acton said once a week, and so also Hammond, even for healthy men between the ages of twenty-five and forty.[393] Fürbringer only slightly exceeds this estimate by advocating from fifty to one hundred single acts in the year.[394] Forel advises two or three times a week for a man in the prime of manhood, but he adds that for some healthy and vigorous men once a month appears to be excess.[395] Mantegazza, in his _Hygiene of Love_, also states that, for a man between twenty and thirty, two or three times a week represents the proper amount of intercourse, and between the ages of thirty and forty-five, twice a week. Guyot recommends every three days.[396]

It seems, however, quite unnecessary to lay down any general rules regarding the frequency of coitus. Individual desire and individual aptitude, even within the limits of health, vary enormously. Moreover, if we recognize that the restraint of desire is sometimes desirable, and often necessary for prolonged periods, it is as well to refrain from any appearance of asserting the necessity of sexual intercourse at frequent and regular intervals. The question is chiefly of importance in order to guard against excess, or even against the attempt to live habitually close to the threshold of excess. Many authorities are, therefore, careful to point out that it is inadvisable to be too definite. Thus Erb, while remarking that, for some, Luther's dictum represents the extreme maximum, adds that others can go far beyond that amount with impunity, and he considers that such variations are congenital.[397] Ribbing, again, while expressing general agreement with Luther's rule, protests against any attempt to lay down laws for everyone, and is inclined to say that as often as one likes is a safe rule, so long as there are no bad after-effects.[398]

It seems to be generally agreed that bad effects from excess in coitus, when they do occur, are rare in women (see, e.g., Hammond, _Sexual Impotence_, p. 127). Occasionally, however, evil effects occur in women. (The case, possibly to be mentioned in this connection, has been recorded of a man whose three wives all became insane after marriage, _Journal of Mental Science_, Jan., 1879, p. 611.) In cases of sexual excess great physical exhaustion, with suspicion and delusions, is often observed. Hutchinson has recorded three cases of temporary blindness, all in men, the result of sexual excess after marriage (_Archives of Surgery_, Jan., 1893). The old medical authors attributed many evil results to excess in coitus. Thus Schurig (_Spermatologia_, 1720, pp. 260 et seq.) brings together cases of insanity, apoplexy, syncope, epilepsy, loss of memory, blindness, baldness, unilateral perspiration, gout, and death attributed to this cause; of death many cases are given, some in women, but one may easily perceive that _post_ was often mistaken for _propter_.

There is, however, another consideration which can scarcely escape the reader of the present work. Nearly all the estimates of the desirable frequence of coitus are framed to suit the supposed physiological needs of the husband,[399] and they appear usually to be framed in the same spirit of exclusive attention to those needs as though the physiological needs of the evacuation of the bowels or the bladder were in question. But sexual needs are the needs of two persons, of the husband and of the wife. It is not enough to ascertain the needs of the husband; it is also necessary to ascertain the needs of the wife. The resultant must be a harmonious adjustment of these two groups of needs. That consideration alone, in conjunction with the wide variations of individual needs, suffices to render any definite rules of very trifling value.

It is important to remember the wide limits of variation in sexual capacity, as well as the fact that such variations in either direction may be healthy and normal, though undoubtedly when they become extreme variations may have a pathological significance. In one case, for instance, a man has intercourse once a month and finds this sufficient; he has no nocturnal emissions nor any strong desires in the interval; yet he leads an idle and luxurious life and is not restrained by any moral or religious

scruples; if he much exceeds the frequency which suits him he suffers from ill-health, though otherwise quite healthy except for a weak digestion. At the other extreme, a happily married couple, between forty-five and fifty, much attached to each other, had engaged in sexual intercourse every night for twenty years, except during the menstrual period and advanced pregnancy, which had only occurred once; they are hearty, full-blooded, intellectual people, fond of good living, and they attribute their affection and constancy to this frequent indulgence in coitus; the only child, a girl, is not strong, though fairly healthy.

The cases are numerous in which, on special occasions, it is possible for people who are passionately attached to each other to repeat the act of coitus, or at all events the orgasm, an inordinate number of times within a few hours. This usually occurs at the beginning of an intimacy or after a long separation. Thus in one case a newly-married woman experienced the orgasm fourteen times in one night, her husband in the same period experiencing it seven times. In another case a woman who had lived a chaste life, when sexual relationships finally began, once experienced orgasm fourteen or fifteen times to her partner's three times. In a case which, I have been assured may be accepted as authentic, a young wife of highly erotic, very erethic, slightly abnormal temperament, after a month's absence from her husband, was excited twenty-six times within an hour and a quarter; her husband, a much older man, having two orgasms during this period; the wife admitted that she felt a "complete wreck" after this, but it is evident that if this case may be regarded as authentic the orgasms were of extremely slight intensity. A young woman, newly married to a physically robust man, once had intercourse with him eight times in two hours, orgasm occurring each time in both parties. Guttceit (_Dreissig Jahre Praxis_, vol. ii. p. 311), in Russia, knew many cases in which young men of twenty-two to twenty-eight had intercourse more than ten times in one night, though after the fourth time there is seldom any semen. He had known some men who had masturbated in early boyhood, and began to consort with women at fifteen, yet remained sexually vigorous in old age, while he knew others who began intercourse late and were losing force at forty. Mantegazza, who knew a man who had intercourse fourteen times in one day, remarks that the stories of the old Italian novelists show that twelve times was regarded as a rare exception. Burchard, Alexander VI's secretary, states that the Florentine Ambassador's son, in Rome in 1489, "knew a girl seven times in one hour" (J. Burchard, _Diarium_, ed. Thuasne, vol. i, p. 329). Olivier, Charlemagne's knight, boasted, according to legend, that he could show his virile power one hundred times in one night, if allowed to sleep with the Emperor of Constantinople's daughter; he was allowed to try, it is said, and succeeded thirty times (Schultz, _Das Höfische Leben_, vol. i, p. 581).

It will be seen that whenever the sexual act is repeated frequently within a short time it is very rarely indeed that the husband can keep pace with the wife. It is true that the woman's sexual energy is aroused more slowly and with more difficulty than the man's, but as it becomes aroused its momentum increases. The man, whose energy is easily aroused, is easily exhausted; the woman has often scarcely attained her energy until after the first orgasm is over. It is sometimes a surprise to a young husband, happily married, to find that the act of sexual intercourse which completely

satisfies him has only served to arouse his wife's ardor. Very many women feel that the repetition of the act several times in succession is needed to, as they may express it, "clear the system," and, far from producing sleepiness and fatigue, it renders them bright and lively.

The young and vigorous woman, who has lived a chaste life, sometimes feels when she commences sexual relationships as though she really required several husbands, and needed intercourse at least once a day, though later when she becomes adjusted to married life she reaches the conclusion that her desires are not abnormally excessive. The husband has to adjust himself to his wife's needs, through his sexual force when he possesses it, and, if not, through his skill and consideration. The rare men who possess a genital potency which they can exert to the gratification of women without injury to themselves have been, by Professor Benedikt, termed "sexual athletes," and he remarks that such men easily dominate women. He rightly regards Casanova as the type of the sexual athlete (_Archives d'Anthropologie Criminelle_, Jan., 1896). Näcke reports the case of a man whom he regards as a sexual athlete, who throughout his life had intercourse once or twice daily with his wife, or if she was unwilling, with another woman, until he became insane at the age of seventy-five (_Zeitschrift für Sexualwissenschaft_, Aug., 1908, p. 507). This should probably, however, be regarded rather as a case of morbid hyperæsthesia than of sexual athleticism.

At this stage we reach the fundamental elements of the art of love. We have seen that many moral practices and moral theories which have been widely current in Christendom have developed traditions, still by no means extinct among us, which were profoundly antagonistic to the art of love. The idea grew up of "marital duties," of "conjugal rights."[400] The husband had the right and the duty to perform sexual intercourse with his wife, whatever her wishes in the matter might be, while the wife had the duty and the right (the duty in her case being usually put first) to submit to such intercourse, which she was frequently taught to regard as something low and merely physical, an unpleasant and almost degrading necessity which she would do well to put out of her thoughts as speedily as possible. It is not surprising that such an attitude towards marriage has been highly favorable to conjugal unhappiness, more especially that of the wife,[401] and it has tended to promote adultery and divorce. We might have been more surprised had it been otherwise.

The art of love is based on the fundamental natural fact of courtship; and courtship is the effort of the male to make himself acceptable to the female.[402] "The art of love," said Vatsyayana, one of the greatest of authorities, "is the art of pleasing women." "A man must never permit himself a pleasure with his wife," said Balzac in his _Physiologie du Mariage_, "which he has not the skill first to make her desire." The whole art of love is there. Women, naturally and instinctively, seek to make themselves desirable to men, even to men whom they are supremely indifferent to, and the woman who is in love with a man, by an equally natural instinct, seeks to shape herself to the measure which individually pleases him. This tendency is not really modified by the fundamental fact that in these matters it is only the arts that Nature makes which are truly effective. It is finally by what he is that a man arouses a

woman's deepest emotions of sympathy or of antipathy, and he is often pleasing her more by displaying his fitness to play a great part in the world outside than by any acquired accomplishments in the arts of courtship. When, however, the serious and intimate play of physical love begins, the woman's part is, even biologically, on the surface the more passive part.[403] She is, on the physical side, inevitably the instrument in love; it must be his hand and his bow which evoke the music.

In speaking of the art of love, however, it is impossible to disentangle completely the spiritual from the physical. The very attempt to do so is, indeed, a fatal mistake. The man who can only perceive the physical side of the sexual relationship is, as Hinton was accustomed to say, on a level with the man who, in listening to a sonata of Beethoven on the violin, is only conscious of the physical fact that a horse's tail is being scraped against a sheep's entrails.

The image of the musical instrument constantly recurs to those who write of the art of love. Balzac's comparison of the unskilful husband to the orang-utan attempting to play the violin has already been quoted. Dr. Jules Guyot, in his serious and admirable little book, _Bréviaire de l'Amour Expérimental_, falls on to the same comparison: "There are an immense number of ignorant, selfish, and brutal men who give themselves no trouble to study the instrument which God has confided to them, and do not so much as suspect that it is necessary to study it in order to draw out its slightest chords.... Every direct contact, even with the clitoris, every attempt at coitus [when the feminine organism is not aroused], exercises a painful sensation, an instinctive repulsion, a feeling of disgust and aversion. Any man, any husband, who is ignorant of this fact, is ridiculous and contemptible. Any man, any husband, who, knowing it, dares to disregard it, has committed an outrage.... In the final combination of man and woman, the positive element, the husband, has the initiative and the responsibility for the conjugal life. He is the minstrel who will produce harmony or cacophony by his hand and his bow. The wife, from this point of view, is really the many-stringed instrument who will give out harmonious or discordant sounds, according as she is well or ill handled" (Guyot, _Bréviaire_, pp. 99, 115, 138).

That such love corresponds to the woman's need there cannot be any doubt. All developed women desire to be loved, says Ellen Key, not "en mâle" but "en artiste" (_Liebe und Ehe_, p. 92). "Only a man of whom she feels that he has also the artist's joy in her, and who shows this joy through his timid and delicate touch on her soul as on her body, can keep the woman of to-day. She will only belong to a man who continues to long for her even when he holds her locked in his arms. And when such a woman breaks out: 'You want me, but you cannot caress me, you cannot tell what I want,' then that man is judged." Love is indeed, as Remy de Gourmont remarks, a delicate art, for which, as for painting or music, only some are apt.

It must not be supposed that the demand on the lover and husband to approach a woman in the same spirit, with the same consideration and skilful touch, as a musician takes up his instrument is merely a demand made by modern women who are probably neurotic or hysterical. No reader of these _Studies_ who has followed the discussions of courtship and of sexual selection in previous volumes can fail to realize that--although we have sought to befool ourselves by giving an illegitimate

connotation to the word "brutal"--consideration and respect for the female is all but universal in the sexual relationships of the animals below man; it is only at the furthest remove from the "brutes," among civilized men, that sexual "brutality" is at all common, and even there it is chiefly the result of ignorance. If we go as low as the insects, who have been disciplined by no family life, and are generally counted as careless and wanton, we may sometimes find this attitude towards the female fully developed, and the extreme consideration of the male for the female whom yet he holds firmly beneath him, the tender preliminaries, the extremely gradual approach to the supreme sexual act, may well furnish an admirable lesson.

This greater difficulty and delay on the part of women in responding to the erotic excitation of courtship is really very fundamental and--as has so often been necessary to point out in previous volumes of these _Studies_--it covers the whole of woman's erotic life, from the earliest age when coyness and modesty develop. A woman's love develops much more slowly than a man's for a much longer period. There is real psychological significance in the fact that a man's desire for a woman tends to arise spontaneously, while a woman's desire for a man tends only to be aroused gradually, in the measure of her complexly developing relationship to him. Hence her sexual emotion is often less abstract, more intimately associated with the individual lover in whom it is centred. "The way to my senses is through my heart," wrote Mary Wollstonecraft to her lover Imlay, "but, forgive me! I think there is sometimes a shorter cut to yours." She spoke for the best, if not for the largest part, of her sex. A man often reaches the full limit of his physical capacity for love at a single step, and it would appear that his psychic limits are often not more difficult to reach. This is the solid fact underlying the more hazardous statement, so often made, that woman is monogamic and man polygamic.

On the more physical side, Guttceit states that a month after marriage not more than two women out of ten have experienced the full pleasure of sexual intercourse, and it may not be for six months, a year, or even till after the birth of several children, that a woman experiences the full enjoyment of the physical relationship, and even then only with a man she completely loves, so that the conditions of sexual gratification are much more complex in women than in men. Similarly, on the psychic side, Ellen Key remarks (_Ueber Liebe und Ehe_, p. 111): "It is certainly true that a woman desires sexual gratification from a man. But while in her this desire not seldom only appears after she has begun to love a man enough to give her life for him, a man often desires to possess a woman physically before he loves her enough to give even his little finger for her. The fact that love in a woman mostly goes from the soul to the senses and often fails to reach them, and that in a man it mostly goes from the senses to the soul and frequently never reaches that goal--this is of all the existing differences between men and women that which causes most torture to both." It will, of course, be apparent to the reader of the fourth volume of these _Studies_ on "Sexual Selection in Man" that the method of stating the difference which has commended itself to Mary Wollstonecraft, Ellen Key, and others, is not strictly correct, and the chastest woman, after, for example, taking too hot a bath, may find that her heart is not the only path through which her senses may be affected. The senses are the only channels to the external world which we possess, and love must

come through these channels or not at all. The difference, however, seems to be a real one, if we translate it to mean that, as we have seen reason to believe in previous volumes of these _Studies_, there are in women (1) preferential sensory paths of sexual stimuli, such as, apparently, a predominence of tactile and auditory paths as compared with men; (2) a more massive, complex, and delicately poised sexual mechanism; and, as a result of this, (3) eventually a greater amount of nervous and cerebral sexual irradiation.

It must be remembered, at the same time, that while this distinction represents a real tendency in sexual differentiation, with an organic and not merely traditional basis, it has about it nothing whatever that is absolute. There are a vast number of women whose sexual facility, again by natural tendency and not merely by acquired habits, is as marked as that of any man, if not more so. In the sexual field, as we have seen in a previous volume (_Analysis of the Sexual Impulse_), the range of variability is greater in women than in men.

The fact that love is an art, a method of drawing music from an instrument, and not the mere commission of an act by mutual consent, makes any verbal agreement to love of little moment. If love were a matter of contract, of simple intellectual consent, of question and answer, it would never have come into the world at all. Love appeared as art from the first, and the subsequent developments of the summary methods of reason and speech cannot abolish that fundamental fact. This is scarcely realized by those ill-advised lovers who consider that the first step in courtship--and perhaps even the whole of courtship--is for a man to ask a woman to be his wife. That is so far from being the case that it constantly happens that the premature exhibition of so large a demand at once and for ever damns all the wooer's chances. It is lamentable, no doubt, that so grave and fateful a matter as that of marriage should so often be decided without calm deliberation and reasonable forethought. But sexual relationships can never, and should never, be merely a matter of cold calculation. When a woman is suddenly confronted by the demand that she should yield herself up as a wife to a man who has not yet succeeded in gaining her affections she will not fail to find--provided she is lifted above the cold-hearted motives of self-interest--that there are many sound reasons why she should not do so. And having thus squarely faced the question in cool blood and decided it, she will henceforth, probably, meet that wooer with a tunic of steel enclosing her breast.

"Love must be _revealed_ by acts and not _betrayed_ by words. I regard as abnormal the extraordinary method of a hasty avowal beforehand; for that represents not the direct but the reflex path of transmission. However sweet and normal the avowal may be when once reciprocity has been realized, as a method of conquest I consider it dangerous and likely to produce the reverse of the result desired." I take these wise words from a thoughtful "Essai sur l'Amour" (_Archives de Psychologie_, 1904) by a non-psychological Swiss writer who is recording his own experiences, and who insists much on the predominance of the spiritual and mental element in love.

It is worthy of note that this recognition that direct speech is out of place in courtship must not be regarded as a refinement of civilization. Among primitive peoples everywhere it is perfectly well recognized that the offer of love, and its

acceptance or its refusal, must be made by actions symbolically, and not by the crude method of question and answer. Among the Indians of Paraguay, who allow much sexual freedom to their women, but never buy or sell love, Mantegazza states (_Rio de la Plata e Tenerife_, 1867, p. 225) that a girl of the people will come to your door or window and timidly, with a confused air, ask you, in the Guarani tongue, for a drink of water. But she will smile if you innocently offer her water. Among the Tarahumari Indians of Mexico, with whom the initiative in courting belongs to the women, the girl takes the first step through her parents, then she throws small pebbles at the young man; if he throws them back the matter is concluded (Carl Lumholtz, _Scribner's Magazine_, Sept., 1894, p. 299). In many parts of the world it is the woman who chooses her husband (see, e.g., M.A. Potter, _Sohrab and Rustem_, pp. 169 et seq.), and she very frequently adopts a symbolical method of proposal. Except when the commercial element predominates in marriage, a similar method is frequently adopted by men also in making proposals of marriage.

It is not only at the beginning of courtship that the act of love has little room for formal declarations, for the demands and the avowals that can be clearly defined in speech. The same rule holds even in the most intimate relationships of old lovers, throughout the married life. The permanent element in modesty, which survives every sexual initiation to become intertwined with all the exquisite impudicities of love, combines with a true erotic instinct to rebel against formal demands, against verbal affirmations or denials. Love's requests cannot be made in words, nor truthfully answered in words: a fine divination is still needed as long as love lasts.

The fact that the needs of love cannot be expressed but must be divined has long been recognized by those who have written of the art of love, alike by writers within and without the European Christian traditions. Thus Zacchia, in his great medico-legal treatise, points out that a husband must be attentive to the signs of sexual desire in his wife. "Women," he says, "when sexual desire arises within them are accustomed to ask their husbands questions on matters of love; they flatter and caress them; they allow some part of their body to be uncovered as if by accident; their breasts appear to swell; they show unusual alacrity; they blush; their eyes are bright; and if they experience unusual ardor they stammer, talk beside the mark, and are scarcely mistress of themselves. At the same time their private parts become hot and swell. All these signs should convince a husband, however inattentive he may be, that his wife craves for satisfaction" (_Zacchiæ Quæstionum Medico-legalium Opus_, lib. vii, tit. iii, quæst. I; vol. ii, p. 624 in ed. of 1688).

The old Hindu erotic writers attributed great importance alike to the man's attentiveness to the woman's erotic needs, and to his skill and consideration in all the preliminaries of the sexual act. He must do all that he can to procure her pleasure, says Vatsyayana. When she is on her bed and perhaps absorbed in conversation, he gently unfastens the knot of her lower garment. If she protests he closes her mouth with kisses. Some authors, Vatsyayana remarks, hold that the lover should begin by sucking the nipples of her breasts. When erection occurs he touches her with his hands, softly caressing the various parts of her body. He should always press those parts of her body towards which she turns her eyes. If she is shy, and it is the first

time, he will place his hands between her thighs which she will instinctively press together. If she is young he will put his hands on her breasts, and she will no doubt cover them with her own. If she is mature he will do all that may seem fitting and agreeable to both parties. Then he will take her hair and her chin between his fingers and kiss them. If she is very young she will blush and close her eyes. By the way in which she receives his caresses he will divine what pleases her most in union. The signs of her enjoyment are that her body becomes limp, her eyes close, she loses all timidity, and takes part in the movements which bring her most closely to him. If, on the other hand, she feels no pleasure, she strikes the bed with her hands, will not allow the man to continue, is sullen, even bites or kicks, and continues the movements of coitus when the man has finished. In such cases, Vatsyayana adds, it is his duty to rub the vulva with his hand before union until it is moist, and he should perform the same movements afterwards if his own orgasm has occurred first.

With regard to Indian erotic art generally, and more especially Vatsyayana, who appears to have lived some sixteen hundred years ago, information will be found in Valentino, "L'Hygiène conjugale chez les Hindous," _Archives Générales de Médecine_, Ap. 25, 1905; Iwan Bloch, "Indische Medizin," Puschmann's _Handbuch der Geschichte der Medizin_, vol. i; Heimann and Stephan, "Beiträge zur Ehehygiene nach der Lehren des Kamasutram," _Zeitschaft für Sexualwissenschaft_, Sept., 1908; also a review of Richard Schmidt's German translation of the _Kamashastra_ of Vatsyayana in _Zeitschrift für Ethnologie_, 1902, Heft 2. There has long existed an English translation of this work. In the lengthy preface to the French translation Lamairesse points out the superiority of Indian erotic art to that of the Latin poets by its loftier spirit, and greater purity and idealism. It is throughout marked by respect for women, and its spirit is expressed in the well-known proverb: "Thou shalt not strike a woman even with a flower." See also Margaret Noble's _Web of Indian Life_, especially Ch. III, "On the Hindu Woman as Wife," and Ch. IV, "Love Strong as Death."

The advice given to husbands by Guyot (_Bréviaire de l'Amour Expérimental_, p. 422) closely conforms to that given, under very different social conditions, by Zacchia and Vatsyayana. "In a state of sexual need and desire the woman's lips are firm and vibrant, the breasts are swollen, and the nipples erect. The intelligent husband cannot be deceived by these signs. If they do not exist, it is his part to provoke them by his kisses and caresses, and if, in spite of his tender and delicate excitations, the lips show no heat and the breasts no swelling, and especially if the nipples are disagreeably irritated by slight suction, he must arrest his transports and abstain from all contact with the organs of generation, for he would certainly find them in a state of exhaustion and disposed to repulsion. If, on the contrary, the accessory organs are animated, or become animated beneath his caresses, he must extend them to the generative organs, and especially to the clitoris, which beneath his touch will become full of appetite and ardor."

The importance of the preliminary titillation of the sexual organs has been emphasized by a long succession alike of erotic writers and physicians, from Ovid (_Ars Amatoria_ end of Bk. II) onwards. Eulenburg (_Die Sexuale Neuropathie_, p. 79)

considers that titillation is sometimes necessary, and Adler, likewise insisting on the preliminaries of psychic and physical courtship (_Die Mangelhafte Geschlechtsempfindung des Weibes_, p. 188), observes that the man who is gifted with insight and skill in these matters possesses a charm which will draw sparks of sensibility from the coldest feminine heart. The advice of the physician is at one in this matter with the maxims of the erotic artist and with the needs of the loving woman. In making love there must be no haste, wrote Ovid:--

"Crede mihi, non est Veneris properanda voluptas, Sed sensim tarda prolicienda mora."

"Husbands, like spoiled children," a woman has written, "too often miss the pleasure which might otherwise be theirs, by clamoring for it at the wrong time. The man who thinks this prolonged courtship previous to the act of sex union wearisome, has never given it a trial. It is the approach to the marital embrace, as well as the embrace itself, which constitutes the charm of the relation between the sexes."

It not seldom happens, remarks Adler (op. cit., p. 186), that the insensibility of the wife must be treated--in the husband. And Guyot, bringing forward the same point, writes (op. cit., p. 130): "If by a delay of tender study the husband has understood his young bride, if he is able to realize for her the ineffable happiness and dreams of youth, he will be beloved forever; he will be her master and sovereign lord. If he has failed to understand her he will fatigue and exhaust himself in vain efforts, and finally class her among the indifferent and cold women. She will be his wife by duty, the mother of his children. He will take his pleasure elsewhere, for man is ever in pursuit of the woman who experiences the genesic spasm. Thus the vague and unintelligent search for a half who can unite in that delirious finale is the chief cause of all conjugal dissolutions. In such a case a man resembles a bad musician who changes his violin in the hope that a new instrument will bring the melody he is unable to play."

The fact that there is thus an art in love, and that sexual intercourse is not a mere physical act to be executed by force of muscles, may help to explain why it is that in so many parts of the world defloration is not immediately effected on marriage.[404] No doubt religious or magic reasons may also intervene here, but, as so often happens, they harmonize with the biological process. This is the case even among uncivilized peoples who marry early. The need for delay and considerate skill is far greater when, as among ourselves, a woman's marriage is delayed long past the establishment of puberty to a period when it is more difficult to break down the psychic and perhaps even physical barriers of personality.

It has to be added that the art of love in the act of courtship is not confined to the preliminaries to the single act of coitus. In a sense the life of love is a continuous courtship with a constant progression. The establishment of physical intercourse is but the beginning of it. This is especially true of women. "The consummation of love," says Sénancour,[405] "which is often the end of love with man is only the beginning of love with woman, a test of trust, a gage of future pleasure, a sort of engagement for an intimacy to come." "A woman's soul and body," says another writer,[406] "are not given at one stroke at a given moment; but only slowly, little by little, through

many stages, are both delivered to the beloved. Instead of abandoning the young woman to the bridegroom on the wedding night, as an entrapped mouse is flung to the cat to be devoured, it would be better to let the young bridal couple live side by side, like two friends and comrades, until they gradually learn how to develop and use their sexual consciousness." The conventional wedding is out of place as a preliminary to the consummation of marriage, if only on the ground that it is impossible to say at what stage in the endless process of courtship it ought to take place.

A woman, unlike a man, is prepared by Nature, to play a skilful part in the art of love. The man's part in courtship, which is that of the male throughout the zoölogical series, may be difficult and hazardous, but it is in a straight line, fairly simple and direct. The woman's part, having to follow at the same moment two quite different impulses, is necessarily always in a zigzag or a curve. That is to say that at every erotic moment her action is the resultant of the combined force of her desire (conscious or unconscious) and her modesty. She must sail through a tortuous channel with Scylla on the one side and Charybdis on the other, and to avoid either danger too anxiously may mean risking shipwreck on the other side. She must be impenetrable to all the world, but it must be an impenetrability not too obscure for the divination of the right man. Her speech must be honest, but yet on no account tell everything; her actions must be the outcome of her impulses, and on that very account be capable of two interpretations. It is only in the last resort of complete intimacy that she can become the perfect woman,

"Whose speech Truth knows not from her thought, Nor Love her body from her soul."

For many a woman the conditions for that final erotic avatar--"that splendid shamelessness which," as Rafford Pyke says, "is the finest thing in perfect love"--never present themselves at all. She is compelled to be to the end of her erotic life, what she must always be at the beginning, a complex and duplex personality, naturally artful. Therewith she is better prepared than man to play her part in the art of love.

The man's part in the art of love is, however, by no means easy. That is not always realized by the women who complain of his lack of skill in playing it. Although a man has not to cultivate the same natural duplicity as a woman, it is necessary that he should possess a considerable power of divination. He is not well prepared for that, because the traditional masculine virtue is force rather than insight. The male's work in the world, we are told, is domination, and it is by such domination that the female is attracted. There is an element of truth in that doctrine, an element of truth which may well lead astray the man who too exclusively relies upon it in the art of love. Violence is bad in every art, and in the erotic art the female desires to be won to love and not to be ordered to love. That is fundamental. We sometimes see the matter so stated as if the objection to force and domination in love constituted some quite new and revolutionary demand of the "modern woman." That is, it need scarcely be said, the result of ignorance. The art of love, being an art that Nature makes, is the same now as in essentials it has always been,[407] and it was well established before

woman came into existence. That it has not always been very skilfully played is another matter. And, so far as the man is concerned, it is this very tradition of masculine predominance which has contributed to the difficulty of playing it skilfully. The woman admires the male's force; she even wishes herself to be forced to the things that she altogether desires; and yet she revolts from any exertion of force outside that narrow circle, either before the boundary of it is reached or after the boundary is passed. Thus the man's position is really more difficult than the women who complain of his awkwardness in love are always ready to admit. He must cultivate force, not only in the world but even for display in the erotic field; he must be able to divine the moments when, in love, force is no longer force because his own will is his partner's will; he must, at the same time, hold himself in complete restraint lest he should fall into the fatal error of yielding to his own impulse of domination; and all this at the very moment when his emotions are least under control. We need scarcely be surprised that of the myriads who embark on the sea of love, so few women, so very few men, come safely into port.

It may still seem to some that in dwelling on the laws that guide the erotic life, if that life is to be healthy and complete, we have wandered away from the consideration of the sexual instinct in its relationship to society. It may therefore be desirable to return to first principles and to point out that we are still clinging to the fundamental facts of the personal and social life. Marriage, as we have seen reason to believe, is a great social institution; procreation, which is, on the public side, its supreme function, is a great social end. But marriage and procreation are both based on the erotic life. If the erotic life is not sound, then marriage is broken up, practically if not always formally, and the process of procreation is carried out under unfavorable conditions or not at all.

This social and personal importance of the erotic life, though, under the influence of a false morality and an equally false modesty, it has sometimes been allowed to fall into the background in stages of artificial civilization, has always been clearly realized by those peoples who have vitally grasped the relationships of life. Among most uncivilized races there appear to be few or no "sexually frigid" women. It is little to the credit of our own "civilization" that it should be possible for physicians to-day to assert, even with the faintest plausibility, that there are some 25 per cent. of women who may thus be described.

The whole sexual structure of the world is built up on the general fact that the intimate contact of the male and female who have chosen each other is mutually pleasurable. Below this general fact is the more specific fact that in the normal accomplishment of the act of sexual consummation the two partners experience the acute gratification of simultaneous orgasm. Herein, it has been said, lies the secret of love. It is the very basis of love, the condition of the healthy exercise of the sexual functions, and, in many cases, it seems probable, the condition also of fertilization.

Even savages in a very low degree of culture are sometimes patient and considerate in evoking and waiting for the signs of sexual desire in their females. (I may refer to the significant case of the Caroline Islanders, as described by Kubary in his ethnographic study of that people and quoted in volume iv of these _Studies_,

"Sexual Selection in Man," Sect. III.) In Catholic days theological influence worked wholesomely in the same direction, although the theologians were so keen to detect the mortal sin of lust. It is true that the Catholic insistence on the desirability of simultaneous orgasm was largely due to the mistaken notion that to secure conception it was necessary that there should be "insemination" on the part of the wife as well as of the husband, but that was not the sole source of the theological view. Thus Zacchia discusses whether a man ought to continue with his wife until she has the orgasm and feels satisfied, and he decides that that is the husband's duty; otherwise the wife falls into danger either of experiencing the orgasm during sleep, or, more probably, by self-excitation, "for many women, when their desires have not been satisfied by coitus, place one thigh on the other, pressing and rubbing them together until the orgasm occurs, in the belief that if they abstain from using the hands they have committed no sin." Some theologians, he adds, favor that belief, notably Hurtado de Mendoza and Sanchez, and he further quotes the opinion of the latter that women who have not been satisfied in coitus are liable to become hysterical or melancholic (_Zacchiæ Quæstionum Medico-legalium Opus_, lib. vii, tit. iii, quæst. VI). In the same spirit some theologians seem to have permitted _irrumatio_ (without ejaculation), so long as it is only the preliminary to the normal sexual act.

Nowadays physicians have fully confirmed the belief of Sanchez. It is well recognized that women in whom, from whatever cause, acute sexual excitement occurs with frequency without being followed by the due natural relief of orgasm are liable to various nervous and congestive symptoms which diminish their vital effectiveness, and very possibly lead to a breakdown in health. Kisch has described, as a cardiac neurosis of sexual origin, a pathological tachycardia which is an exaggeration of the physiological quick heart of sexual excitement. J. Inglis Parsons (_British Medical Journal_, Oct. 22, 1904, p. 1062) refers to the ovarian pain produced by strong unsatisfied sexual excitement, often in vigorous unmarried women, and sometimes a cause of great distress. An experienced Austrian gynæcologist told Hirth (_Wege zur Heimat_, p. 613) that of every hundred women who come to him with uterine troubles seventy suffered from congestion of the womb, which he regarded as due to incomplete coitus.

It is frequently stated that the evil of incomplete gratification and absence of orgasm in women is chiefly due to male withdrawal, that is to say _coitus interruptus_, in which the penis is hastily withdrawn as soon as involuntary ejaculation is impending; and it is sometimes said that the same widely prevalent practice is also productive of slight or serious results in the male (see, e.g., L.B. Bangs, _Transactions New York Academy of Medicine_, vol. ix, 1893; D.S. Booth, "Coitus Interruptus and Coitus Reservatus as Causes of Profound Neurosis and Psychosis," _Alienist and Neurologist_, Nov., 1906; also, _Alienist and Neurologist_, Oct., 1897, p. 588).

It is undoubtedly true that coitus interruptus, since it involves sudden withdrawal on the part of the man without reference to the stage of sexual excitation which his partner may have reached, cannot fail to produce frequently an injurious nervous

effect on the woman, though the injurious effect on the man, who obtains ejaculation, is little or none. But the practice is so widespread that it cannot be regarded as necessarily involving this evil result. There can, I am assured, be no doubt whatever that Blumreich is justified in his statement (Senator and Kaminer, _Health and Disease in Relation to Marriage_, vol. ii, p. 783) that "interrupted coitus is injurious to the genital system of those women only who are disturbed in their sensation of delight by this form of cohabitation, in whom the orgasm is not produced, and who continue for hours subsequently to be tormented by feelings of an unsatisfied desire." Equally injurious effects follow in normal coitus when the man's orgasm occurs too soon. "These phenomena, therefore," he concludes, "are not characteristic of interrupted coitus, but consequences of an imperfectly concluded sexual cohabitation as such." Kisch, likewise, in his elaborate and authoritative work on _The Sexual Life of Woman_, also states that the question of the evil results of _coitus interruptus_ in women is simply a question of whether or not they receive sexual satisfaction. (Cf. also Fürbringer, _Health and Disease in Relation to Marriage_, vol. i, pp. 232 _et seq._) This is clearly the most reasonable view to take concerning what is the simplest, the most widespread, and certainly the most ancient of the methods of preventing conception. In the Book of Genesis we find it practiced by Onan, and to come down to modern times, in the sixteenth century it seems to have been familiar to French ladies, who, according to Brantôme, enjoined it on their lovers.

Coitus reservatus,--in which intercourse is maintained even for very long periods, during which the woman may have orgasm several times while the man succeeds in holding back orgasm,--so far from being injurious to the woman, is probably the form of coitus which gives her the maximum of gratification and relief. For most men, however, it seems probable that this self-control over the processes leading to the involuntary act of detumescence is difficult to acquire, while in weak, nervous, and erethic persons it is impossible. It is, however, a desirable condition for completely adequate coitus, and in the East this is fully recognized, and the aptitude carefully cultivated. Thus W.D. Sutherland states ("Einiges über das Alltagsleben und die Volksmedizin unter den Bauern Britischostindiens," _Münchener Medizinische Wochenschrift_, No. 12, 1906) that the Hindu smokes and talks during intercourse in order to delay orgasm, and sometimes applies an opium paste to the glans of the penis for the same purpose. (See also vol. iii of these _Studies_, "The Sexual Impulse in Women.") Some authorities have, indeed, stated that the prolongation of the act of coitus is injurious in its effect on the male. Thus R.W. Taylor (_Practical Treatise on Sexual Disorders_, third ed., p. 121) states that it tends to cause atonic impotence, and Löwenfeld (_Sexualleben und Nervenleiden_, p. 74) thinks that the swift and unimpeded culmination of the sexual act is necessary in order to preserve the vigor of the reflex reactions. This is probably true of extreme and often repeated cases of indefinite prolongation of pronounced erection without detumescence, but it is not true within fairly wide limits in the case of healthy persons. Prolonged _coitus reservatus_ was a practice of the complex marriage system of the Oneida community, and I was assured by the late Noyes Miller, who had spent the greater part of his life in the community, that the practice had no sort of evil result. _Coitus reservatus_ was erected into a principle in the Oneida community. Every man in the community was

theoretically the husband of every woman, but every man was not free to have children with every woman. Sexual initiation took place soon after puberty in the case of boys, some years later in the case of girls, by a much older person of the opposite sex. In intercourse the male inserted his penis into the vagina and retained it there for even an hour without emission, though orgasm took place in the woman. There was usually no emission in the case of the man, even after withdrawal, and he felt no need of emission. The social feeling of the community was a force on the side of this practice, the careless, unskilful men being avoided by women, while the general romantic sentiment of affection for all the women in the community was also a force. Masturbation was unknown, and no irregular relations took place with persons outside the community. The practice was maintained for thirty years, and was finally abandoned, not on its demerits, but in deference to the opinions of the outside world. Mr. Miller admitted that the practice became more difficult in ordinary marriage, which favors a more mechanical habit of intercourse. The information received from Mr. Miller is supplemented in a pamphlet entitled _Male Continence_ (the name given to _coitus reservatus_ in the community), written in 1872 by the founder, John Humphrey Noyes. The practice is based, he says, on the fact that sexual intercourse consists of two acts, a social and a propagative, and that if propagation is to be scientific there must be no confusion of these two acts, and procreation must never be involuntary. It was in 1844, he states, that this idea occurred to him as a result of a resolve to abstain from sexual intercourse in consequence of his wife's delicate health and inability to bear healthy children, and in his own case he found the practice "a great deliverance. It made a happy household." He points out that the chief members of the Oneida community "belonged to the most respectable families in Vermont, had been educated in the best schools of New England morality and refinement, and were, by the ordinary standards, irreproachable in their conduct so far as sexual matters are concerned, till they deliberately commenced, in 1846, the experiment of a new state of society, on principles which they had been long maturing and were prepared to defend before the World." In relation to male continence, therefore, Noyes thought the community might fairly be considered "the Committee of Providence to test its value in actual life." He states that a careful medical comparison of the statistics of the community had shown that the rate of nervous disease in the community was considerably below the average outside, and that only two cases of nervous disorder had occurred which could be traced with any probability to a misuse of male continence. This has been confirmed by Van de Warker, who studied forty-two women of the community without finding any undue prevalence of reproductive diseases, nor could he find any diseased condition attributable to the sexual habits of the community (cf. C. Reed, _Text-Book of Gynecology_, 1901, p. 9).

Noyes believed that "male continence" had never previously been a definitely recognized practice based on theory, though there might have been occasional approximation to it. This is probably true if the coitus is _reservatus_ in the full sense, with complete absence of emission. Prolonged coitus, however, permitting the woman to have orgasm more than once, while the man has none, has long been recognized. Thus in the seventeenth century Zacchia discussed whether such a practice is

legitimate (_Zacchiæ Quæstionum Opus_, ed. of 1688, lib. vii, tit. iii, quæst. VI). In modern times it is occasionally practiced, without any theory, and is always appreciated by the woman, while it appears to have no bad effect on the man. In such a case it will happen that the act of coitus may last for an hour and a quarter or even longer, the maximum of the woman's pleasure not being reached until three-quarters of an hour have passed; during this period the woman will experience orgasm some four or five times, the man only at the end. It may occasionally happen that a little later the woman again experiences desire, and intercourse begins afresh in the same way. But after that she is satisfied, and there is no recurrence of desire.

It may be desirable at this point to refer briefly to the chief variations in the method of effecting coitus in their relationship to the art of love and the attainment of adequate and satisfying detumescence.

The primary and essential characteristic of the specifically human method of coitus is the fact that it takes place face to face. The fact that in what is usually considered the typically normal method of coitus the woman lies supine and the man above her is secondary. Psychically, this front-to-front attitude represents a great advance over the quadrupedal method. The two partners reveal to each other the most important, the most beautiful, the most expressive sides of themselves, and thus multiply the mutual pleasure and harmony of the intimate act of union. Moreover, this face-to-face attitude possesses a great significance, in the fact that it is the outward sign that the human couple has outgrown the animal sexual attitude of the hunter seizing his prey in the act of flight, and content to enjoy it in that attitude, from behind. The human male may be said to retain the same attitude, but the female has turned round; she has faced her partner and approached him, and so symbolizes her deliberate consent to the act of union.

The human variations in the exercise of coitus, both individual and national, are, however, extremely numerous. "To be quite frank," says Fürbringer (Senator and Kaminer, _Health and Disease in Relation to Marriage_, vol. i, p. 213), "I can hardly think of any combination which does not figure among my case-notes as having been practiced by my patients." We must not too hastily conclude that such variations are due to vicious training. That is far from being the case. They often occur naturally and spontaneously. Freud has properly pointed out (in the second series of his _Beiträge zur Neurosenlehre_, "Bruchstück" etc.) that we must not be too shocked even when the idea of _fellatio_ spontaneously presents itself to a woman, for that idea has a harmless origin in the resemblance between the penis and the nipple. Similarly, it may be added, the desire for _cunnilinctus_, which seems to be much more often latently present in women than is the desire for its performance in men, has a natural analogy in the pleasure of suckling, a pleasure which is itself indeed often erotically tinged (see vol. iv of these _Studies_, "Sexual Selection in Man," Touch, Sect. III).

Every variation in this matter, remarks Remy de Gourmont (_Physique de l'Amour_, p. 264) partakes of the sin of luxury, and some of the theologians have indeed considered any position in coitus but that which is usually called normal in Europe as a mortal sin. Other theologians, however, regarded such variations as only venial

sins, provided ejaculation took place in the vagina, just as some theologians would permit _irrumatio_ as a preliminary to coitus, provided there was no ejaculation. Aquinas took a serious view of the deviations from normal intercourse; Sanchez was more indulgent, especially in view of his doctrine, derived from the Greek and Arabic natural philosophers, that the womb can attract the sperm, so that the natural end may be attained even in unusual positions.

Whatever difference of opinion there may have been among ancient theologians, it is well recognized by modern physicians that variations from the ordinary method of coitus are desirable in special cases. Thus Kisch points out (_Sterilität des Weibes_, p. 107) that in some cases it is only possible for the woman to experience sexual excitement when coitus takes place in the lateral position, or in the _a posteriori_ position, or when the usual position is reversed; and in his _Sexual Life of Woman_, also, Kisch recommends several variations of position for coitus. Adler points out (op. cit., pp. 151, 186) the value of the same positions in some cases, and remarks that such variations often call forth latent sexual feelings as by a charm. Such cases are indeed, by no means infrequent, the advantage of the unusual position being due either to physical or psychic causes, and the discovery of the right variation is sometimes found in a merely playful attempt. It has occasionally happened, also, that when intercourse has habitually taken place in an abnormal position, no satisfaction is experienced by the woman until the normal position is adopted. The only fairly common variation of coitus which meets with unqualified disapproval is that in the erect posture. (See e.g., Hammond, op. cit. pp. 257 et seq.)

Lucretius specially recommended the quadrupedal variation of coitus (Bk. iv, 1258), and Ovid describes (end of Bk. iii of the _Ars Amatoria_) what he regards as agreeable variations, giving the preference, as the easiest and simplest method, to that in which the woman lies half supine on her side. Perhaps, however, the variation which is nearest to the normal attitude and which has most often and most completely commended itself is that apparently known to Arabic erotic writers as _dok el arz_, in which the man is seated and his partner is astride his thighs, embracing his body with her legs and his neck with her arms, while he embraces her waist; this is stated in the Arabic _Perfumed Garden_ to be the method preferred by most women.

The other most usual variation is the inverse normal position in which the man is supine, and the woman adapts herself to this position, which permits of several modifications obviously advantageous, especially when the man is much larger than his partner. The Christian as well as the Mahommedan theologians appear, indeed, to have been generally opposed to this superior position of the female, apparently, it would seem, because they regarded the literal subjection of the male which it involves as symbolic of a moral subjection. The testimony of many people to-day, however, is decidedly in favor of this position, more especially as regards the woman, since it enables her to obtain a better adjustment and greater control of the process, and so frequently to secure sexual satisfaction which she may find difficult or impossible in the normal position.

The theologians seem to have been less unfavorably disposed to the position normal among quadrupeds, _a posteriori_, though the old Penitentials were inclined to treat it severely, the Penitential of Angers prescribing forty days penance, and Egbert's three years, if practiced habitually. (It is discussed by J. Petermann, "Venus Aversa," _Sexual-Probleme_, Feb., 1909). There are good reasons why in many cases this position should be desirable, more especially from the point of view of women, who indeed not infrequently prefer it. It must be always remembered, as has already been pointed out, that in the progress from anthropoid to man it is the female, not the male, whose method of coitus has been revolutionized. While, however, the obverse human position represents a psychic advance, there has never been a complete physical readjustment of the female organs to the obverse method. More especially, in Adler's opinion (op. cit., pp. 117-119), the position of the clitoris is such that, as a rule, it is more easily excited by coitus from behind than from in front. A more recent writer, Klotz, in his book, _Der Mensch ein Vierfüssler_ (1908), even takes the too extreme position that the quadrupedal method of coitus, being the only method that insures due contact with the clitoris, is the natural human method. It must, however, be admitted that the posterior mode of coitus is not only a widespread, but a very important variation, in either of its two most important forms: the Pompeiian method, in which the woman bends forwards and the man approaches behind, or the method described by Boccaccio, in which the man is supine and the woman astride.

Fellatio and _cunnilinctus_, while they are not strictly methods of coitus, in so far as they do not involve the penetration of the penis into the vagina, are very widespread as preliminaries, or as vicarious forms of coitus, alike among civilized and uncivilized peoples. Thus, in India, I am told that _fellatio_ is almost universal in households, and regarded as a natural duty towards the paterfamilias. As regards _cunnilinctus_ Max Dessoir has stated (_Allgemeine Zeitschrift für Psychiatrie_, 1894, Heft 5) that the superior Berlin prostitutes say that about a quarter of their clients desire to exercise this, and that in France and Italy the proportion is higher; the number of women who find _cunnilinctus_ agreeable is without doubt much greater. Intercourse _per anum_ must also be regarded as a vicarious form of coitus. It appears to be not uncommon, especially among the lower social classes, and while most often due to the wish to avoid conception, it is also sometimes practiced as a sexual aberration, at the wish either of the man or the woman, the anus being to some extent an erogenous zone.

The ethnic variations in method of coitus were briefly discussed in volume v of these _Studies_, "The Mechanism of Detumescence," Section II. In all civilized countries, from the earliest times, writers on the erotic art have formally and systematically set forth the different positions for coitus. The earliest writing of this kind now extant seems to be an Egyptian papyrus preserved at Turin of the date B.C. 1300; in this, fourteen different positions are represented. The Indians, according to Iwan Bloch, recognize altogether forty-eight different positions; the _Ananga Ranga_ describes thirty-two main forms. The Mohammedan _Perfumed Garden_ describes forty forms, as well as six different kinds of movement during coitus. The Eastern books of this kind are, on the whole, superior to those that have been produced by the Western world, not only by their greater thoroughness, but by the higher spirit by

which they have often been inspired.

The ancient Greek erotic writings, now all lost, in which the modes of coitus were described, were nearly all attributed to women. According to a legend recorded by Suidas, the earliest writer of this kind was Astyanassa, the maid of Helen of Troy. Elephantis, the poetess, is supposed to have enumerated nine different postures. Numerous women of later date wrote on these subjects, and one book is attributed to Polycrates, the sophist.

Aretino--who wrote after the influence of Christianity had degraded erotic matters perilously near to that region of pornography from which they are only to-day beginning to be rescued--in his _Sonnetti Lussuriosi_ described twenty-six different methods of coitus, each one accompanied by an illustrative design by Giulio Romano, the chief among Raphael's pupils. Veniero, in his _Puttana Errante_, described thirty-two positions. More recently Forberg, the chief modern authority, has enumerated ninety positions, but, it is said, only forty-eight can, even on the most liberal estimate, be regarded as coming within the range of normal variation.

The disgrace which has overtaken the sexual act, and rendered it a deed of darkness, is doubtless largely responsible for the fact that the chief time for its consummation among modern civilized peoples is the darkness of the early night in stuffy bedrooms when the fatigue of the day's labors is struggling with the artificial stimulation produced by heavy meals and alcoholic drinks. This habit is partly responsible for the indifference or even disgust with which women sometimes view coitus.

Many more primitive peoples are wiser. The New Guinea Papuans of Astrolabe Bay, according to Vahness (_Zeitschrift für Ethnologie_, 1900, Heft 5, p. 414), though it must be remembered that the association of the sexual act with darkness is much older than Christianity, and connected with early religious notions (cf. Hesiod, _Works and Days_, Bk. II), always have sexual intercourse in the open air. The hard-working women of the Gebvuka and Buru Islands, again, are too tired for coitus at night; it is carried out in the day time under the trees, and the Serang Islanders also have coitus in the woods (Ploss and Bartels, Das _Weib_, Bk. i, Ch. XVII).

It is obviously impracticable to follow these examples in modern cities, even if avocation and climate permitted. It is also agreed that sexual intercourse should be followed by repose. There seems to be little doubt, however, that the early morning and the daylight are a more favorable time than the early night. Conception should take place in the light, said Michelet (_L'Amour_, p. 153); sexual intercourse in the darkness of night is an act committed with a mere female animal; in the day-time it is union with a loving and beloved individual person.

This has been widely recognized. The Greeks, as we gather from Aristophanes in the _Archarnians_, regarded sunrise as the appropriate time for coitus. The South Slavs also say that dawn is the time for coitus. Many modern authorities have urged the advantages of early morning coitus. Morning, said Roubaud (_Traité de l'Impuissance_, pp. 151-3) is the time for coitus, and even if desire is greater in the evening, pleasure is greater in the morning. Osiander also advised early morning

coitus, and Venette, in an earlier century, discussing "at what hour a man should amorously embrace his wife" (_La Génération de l'Homme_, Part II, Ch. V), while thinking it is best to follow inclination, remarks that "a beautiful woman looks better by sunlight than by candlelight." A few authorities, like Burdach, have been content to accept the custom of night coitus, and Busch (_Das Geschlechtsleben des Weibes_, vol. i, p. 214) was inclined to think the darkness of night the most "natural" time, while Fürbringer (Senator and Kaminer, _Health and Disease in Relation to Marriage_, vol. i, p. 217) thinks that early morning is "occasionally" the best time.

To some, on the other hand, the exercise of sexual intercourse in the sunlight and the open air seems so important that they are inclined to elevate it to the rank of a religious exercise. I quote from a communication on this point received from Australia: "This shameful thing that must not be spoken of or done (except in the dark) will some day, I believe, become the one religious ceremony of the human race, in the spring. (Oh, what springs!) People will have become very sane, well-bred, aristocratic (all of them aristocrats), and on the whole opposed to rites and superstitions, for they will have a perfect knowledge of the past. The coition of lovers in the springtime will be the one religious ceremony they will allow themselves. I have a vision sometimes of the holy scene, but I am afraid it is too beautiful to describe. 'The intercourse of the sexes, I have dreamed, is ineffably beautiful, too fair to be remembered,' wrote the chaste Thoreau. Verily human beauty, joy, and love will reach their divinest height during those inaugural days of springtide coupling. When the world is one Paradise, the consummation of the lovers, the youngest and most beautiful, will take place in certain sacred valleys in sight of thousands assembled to witness it. For days it will take place in these valleys where the sun will rise on a dream of passionate voices, of clinging human forms, of flowers and waters, and the purple and gold of the sunrise are reflected on hills illumined with pansies. [I know not if the writer recalled George Chapman's "Enamelled pansies used at nuptials still"], and repeated on golden human flesh and human hair. In these sacred valleys the subtle perfume of the pansies will mingle with the divine fragrance of healthy naked young women and men in the spring coupling. You and I shall not see that, but we may help to make it possible." This rhapsody (an unconscious repetition of Saint-Lambert's at Mlle. Quinault's table in the eighteenth century) serves to illustrate the revolt which tends to take place against the unnatural and artificial degradation of the sexual act.

In some parts of the world it has seemed perfectly natural and reasonable that so great and significant an act as that of coitus should be consecrated to the divinity, and hence arose the custom of prayer before sexual intercourse. Thus Zoroaster ordained that a married couple should pray before coitus, and after the act they should say together: "O, Sapondomad, I trust this seed to thee, preserve it for me, for it is a man." In the Gorong Archipelago it is customary also for husband and wife to pray together before the sexual act (Ploss and Bartels, _Das Weib_, Bd. i, Ch. XVII). The civilized man, however, has come to regard his stomach as the most important of his organs, and he utters his conventional grace, not before love, but only before food. Even the degraded ritual vestiges of the religious recognition of coitus are difficult to find in Europe. We may perhaps detect it among the Spaniards, with their

tenacious instinct for ritual, in the solemn etiquette with which, in the seventeenth century, it was customary, according to Madame d'Aulnoy, for the King to enter the bedchamber of the Queen: "He has on his slippers, his black mantle over his shoulder, his shield on one arm, a bottle hanging by a cord over the other arm (this bottle is not to drink from, but for a quite opposite purpose, which you will guess). With all this the King must also have his great sword in one hand and a dark lantern in the other. In this way he must enter, alone, the Queen's chamber" (Madame d'Aulnoy, _Relation du Voyage d'Espagne_, 1692, vol. iii, p. 221).

In discussing the art of love it is necessary to give a primary place to the central fact of coitus, on account of the ignorance that widely prevails concerning it, and the unfortunate prejudices which in their fungous broods flourish in the noisome obscurity around it. The traditions of the Christian Church, which overspread the whole of Europe, and set up for worship a Divine Virgin and her Divine Son, both of whom it elaborately disengaged from personal contact with sexuality effectually crushed any attempt to find a sacred and avowable ideal in married love. Even the Church's own efforts to elevate matrimony were negatived by its own ideals. That influence depresses our civilization even to-day. When Walt Whitman wrote his "Children of Adam" he was giving imperfect expression to conceptions of the religious nature of sexual love which have existed wholesomely and naturally in all parts of the world, but had not yet penetrated the darkness of Christendom where they still seemed strange and new, if not terrible. And the refusal to recognize the solemnity of sex had involved the placing of a pall of blackness and disrepute on the supreme sexual act itself. It was shut out from the sunshine and excluded from the sphere of worship.

The sexual act is important from the point of view of erotic art, not only from the ignorance and prejudices which surround it, but also because it has a real value even in regard to the psychic side of married life. "These organs," according to the oft-quoted saying of the old French physician, Ambrose Paré, "make peace in the household." How this comes about we see illustrated from time to time in Pepys's Diary. At the same time, it is scarcely necessary to say, after all that has gone before, that this ancient source of domestic peace tends to be indefinitely complicated by the infinite variety in erotic needs, which become ever more pronounced with the growth of civilization.[408]

The art of love is, indeed, only beginning with the establishment of sexual intercourse. In the adjustment of that relationship all the forces of nature are so strongly engaged that under completely favorable conditions--which indeed very rarely occur in our civilization--the knowledge of the art and a possible skill in its exercise come almost of themselves. The real test of the artist in love is in the skill to carry it beyond the period when the interests of nature, having been really or seemingly secured, begin to slacken. The whole art of love, it has been well said, lies in forever finding something new in the same person. The art of love is even more the art of retaining love than of arousing it. Otherwise it tends to degenerate towards the Shakespearian lust,

"Past reason hunted, and no sooner had, Past reason hated,"

though it must be remembered that even from the most strictly natural point of view the transitions of passion are not normally towards repulsion but towards affection.[409]

The young man and woman who are brought into the complete unrestraint of marriage after a prolonged and unnatural separation, during which desire and the satisfactions of desire have been artificially disconnected, are certainly not under the best conditions for learning the art of love. They are tempted by reckless and promiscuous indulgence in the intimacies of marriage to fling carelessly aside all the reasons that make that art worth learning. "There are married people," as Ellen Key remarks, "who might have loved each other all their lives if they had not been compelled, every day and all the year, to direct their habits, wills, and inclinations towards each other."

All the tendencies of our civilized life are, in personal matters, towards individualism; they involve the specialization, and they ensure the sacredness, of personal habits and even peculiarities. This individualism cannot be broken down suddenly at the arbitrary dictation of a tradition, or even by the force of passion from which the restraints have been removed. Out of deference to the conventions and prejudices of their friends, or out of the reckless abandonment of young love, or merely out of a fear of hurting each other's feelings, young couples have often plunged prematurely into an unbroken intimacy which is even more disastrous to the permanency of marriage than the failure ever to reach a complete intimacy at all. That is one of the chief reasons why most writers on the moral hygiene of marriage nowadays recommend separate beds for the married couple, if possible separate bedrooms, and even sometimes, with Ellen Key, see no objection to their living in separate houses. Certainly the happiest marriages have often involved the closest and most unbroken intimacy, in persons peculiarly fitted for such intimacy. It is far from true that, as Bloch has affirmed, familiarity is fatal to love. It is deadly to a love that has no roots, but it is the nourishment of the deeply-rooted love. Yet it remains true that absence is needed to maintain the keen freshness and fine idealism of love. "Absence," as Landor said, "is the invisible and incorporeal mother of ideal beauty." The married lovers who are only able to meet for comparatively brief periods between long absences have often experienced in these meetings a life-long succession of honeymoons.[410]

There can be no question that as presence has its risks for love, so also has absence. Absence like presence, in the end, if too prolonged, effaces the memory of love, and absence, further, by the multiplied points of contact with the world which it frequently involves, introduces the problem of jealousy, although, it must be added, it is difficult indeed to secure a degree of association which excludes jealousy or even the opportunities for motives of jealousy. The problem of jealousy is so fundamental in the art of love that it is necessary at this point to devote to it a brief discussion.

Jealousy is based on fundamental instincts which are visible at the beginning of animal life. Descartes defined jealousy as "a kind of fear related to a desire to preserve a possession." Every impulse of acquisition in the animal world is stimulated into greater activity by the presence of a rival who may snatch beforehand the

coveted object. This seems to be a fundamental fact in the animal world; it has been a life-conserving tendency, for, it has been said, an animal that stood aside while its fellows were gorging themselves with food, and experienced nothing but pure satisfaction in the spectacle, would speedily perish. But in this fact we have the natural basis of jealousy.[411]

It is in reference to food that this impulse appears first and most conspicuously among animals. It is a well-known fact that association with other animals induces an animal to eat much more than when kept by himself. He ceases to eat from hunger but eats, as it has been put, in order to preserve his food from rivals in the only strong box he knows. The same feeling is transferred among animals to the field of sex. And further in the relations of dogs and other domesticated animals to their masters the emotion of jealousy is often very keenly marked.[412]

Jealousy is an emotion which is at its maximum among animals, among savages,[413] among children,[414] in the senile, in the degenerate, and very specially in chronic alcoholics.[415] It is worthy of note that the supreme artists and masters of the human heart who have most consummately represented the tragedy of jealousy clearly recognized that it is either atavistic or pathological; Shakespeare made his Othello a barbarian, and Tolstoy made the Pozdnischeff of his _Kreutzer Sonata_ a lunatic. It is an anti-social emotion, though it has been maintained by some that it has been the cause of chastity and fidelity. Gesell, for instance, while admitting its anti-social character and accumulating quotations in evidence of the torture and disaster it occasions, seems to think that it still ought to be encouraged in order to foster sexual virtues. Very decided opinions have been expressed in the opposite sense. Jealousy, like other shadows, says Ellen Key, belongs only to the dawn and the setting of love, and a man should feel that it is a miracle, and not his right, if the sun stands still at the zenith.[416]

Even therefore if jealousy has been a beneficial influence at the beginning of civilization, as well as among animals,--as may probably be admitted, though on the whole it seems rather to be the by-product of a beneficial influence than such an influence itself,--it is still by no means clear that it therefore becomes a desirable emotion in more advanced stages of civilization. There are many primitive emotions, like anger and fear, which we do not think it desirable to encourage in complex civilized societies but rather seek to restrain and control, and even if we are inclined to attribute an original value to jealousy, it seems to be among these emotions that it ought to be placed.

Miss Clapperton, in discussing this problem (_Scientific Meliorism_, pp. 129-137), follows Darwin (_Descent of Man_, Part I, Ch. IV) in thinking that jealousy led to "the inculcation of female virtue," but she adds that it has also been a cause of woman's subjection, and now needs to be eliminated. "To rid ourselves as rapidly as may be of jealousy is essential; otherwise the great movement in favor of equality of sex will necessarily meet with checks and grave obstruction."

Ribot (_La Logique des Sentiments_, pp. 75 et seq.; _Essai sur les Passions_, pp. 91, 175), while stating that subjectively the estimate of jealousy must differ in

accordance with the ideal of life held, considers that objectively we must incline to an unfavorable estimate "Even a brief passion is a rupture in the normal life; it is an abnormal, if not a pathological state, an excrescence, a parasitism."

Forel (_Die Sexuelle Frage_, Ch. V) speaks very strongly in the same sense, and considers that it is necessary to eliminate jealousy by non-procreation of the jealous. Jealousy is, he declares, "the worst and unfortunately the most deeply-rooted of the 'irradiations,' or, better, the 'contrast-reactions,' of sexual love inherited from our animal ancestors. An old German saying, 'Eifersucht ist eine Leidenschaft die mit Eifer sucht was Leider schafft,' says by no means too much.... Jealousy is a heritage of animality and barbarism; I would recall this to those who, under the name of 'injured honor,' attempt to justify it and place it on a high pedestal. An unfaithful husband is ten times more to be wished for a woman than a jealous husband.... We often hear of 'justifiable jealousy.' I believe, however, that there is no justifiable jealousy; it is always atavistic or else pathological; at the best it is nothing more than a brutal animal stupidity. A man who, by nature, that is by his hereditary constitution, is jealous is certain to poison his own life and that of his wife. Such men ought on no account to marry. Both education and selection should work together to eliminate jealousy as far as possible from the human brain."

Eric Gillard in an article on "Jealousy" (_Free Review_, Sept., 1896), in opposition to those who believe that jealousy "makes the home," declares that, on the contrary, it is the chief force that unmakes the home. "So long as egotism waters it with the tears of sentiment and shields it from the cold blasts of scientific inquiry, so long will it thrive. But the time will come when it will be burned in the Garden of Love as a noxious weed. Its mephitic influence in society is too palpable to be overlooked. It turns homes that might be sanctuaries of love into hells of discord and hate; it causes suicides, and it drives thousands to drink, reckless excesses, and madness. Makes the home! One of your married men friends sees a probable seducer in every man who smiles at his wife; another is jealous of his wife's women acquaintances; a third is wounded because his wife shows so much attention to the children. Some of the women you know display jealousy of every other woman, of their husband's acquaintances, and some, of his very dog. You must be completely monopolized or you do not thoroughly love. You must admire no one but the person with whom you have immured yourself for life. Old friendships must be dissolved, new friendships must not be formed, for fear of invoking the beautiful emotion that 'makes the home.'"

Even if jealousy in matters of sex could be admitted to be an emotion working on the side of civilized progress, it must still be pointed out that it merely acts externally; it can have little or no real influence; the jealous person seldom makes himself more lovable by his jealousy and frequently much less lovable. The main effect of his jealousy is to increase, and not seldom to excite, the causes for jealousy, and at the same time to encourage hypocrisy.

All the circumstances, accompaniments, and results of domestic jealousy in their completely typical form, are well illustrated by a very serious episode in the history of the Pepys household, and have been fully and faithfully set down by the great diarist.

The offence--an embrace of his wife's lady-help, as she might now be termed--was a slight one, but, as Pepys himself admits, quite inexcusable. He is writing, being in his thirty-sixth year, on the 25th of Oct., 1668 (Lord's Day). "After supper, to have my hair combed by Deb, which occasioned the greatest sorrow to me that ever I knew in this world, for my wife, coming up suddenly, did find me embracing the girl.... I was at a wonderful loss upon it, and the girl also, and I endeavored to put it off, but my wife was struck mute and grew angry.... Heartily afflicted for this folly of mine.... So ends this month," he writes a few days later, "with some quiet to my mind, though not perfect, after the greatest falling out with my poor wife, and through my folly with the girl, that ever I had, and I have reason to be sorry and ashamed of it, and more to be troubled for the poor girl's sake. Sixth November. Up, and presently my wife up with me, which she professedly now do every day to dress me, that I may not see Willet [Deb], and do eye me, whether I cast my eye upon her, or no, and do keep me from going into the room where she is. Ninth November. Up, and I did, by a little note which I flung to Deb, advise her that I did continue to deny that ever I kissed her, and so she might govern herself. The truth is that I did adventure upon God's pardoning me this lie, knowing how heavy a thing it would be for me, to the ruin of the poor girl, and next knowing that if my wife should know all it would be impossible for her ever to be at peace with me again, and so our whole lives would be uncomfortable. The girl read, and as I bid her returned me the note, flinging it to me in passing by." Next day, however, he is "mightily troubled," for his wife has obtained a confession from the girl of the kissing. For some nights Mr. and Mrs. Pepys are both sleepless, with much weeping on either side. Deb gets another place, leaving on the 14th of November, and Pepys is never able to see her before she leaves the house, his wife keeping him always under her eye. It is evident that Pepys now feels strongly attracted to Deb, though there is no evidence of this before she became the subject of the quarrel. On the 13th of November, hearing she was to leave next day, he writes: "The truth is I have a good mind to have the maidenhead of this girl." He was, however, the "more troubled to see how my wife is by this means likely forever to have her hand over me, and that I shall forever be a slave to her--that is to say, only in matters of pleasure." At the same time his love for his wife was by no means diminished, nor hers for him. "I must here remark," he says, "that I have lain with my moher [i.e., _muger_, wife] as a husband more times since this falling out than in, I believe, twelve months before. And with more pleasure to her than in all the time of our marriage before." The next day was Sunday. On Monday Pepys at once begins to make inquiries which will put him on the track of Deb. On the 18th he finds her. She gets up into the coach with him, and he kisses her and takes liberties with her, at the same time advising her "to have a care of her honor and to fear God," allowing no one else to do what he has done; he also tells her how she can find him if she desires. Pepys now feels that everything is settled satisfactorily, and his heart is full of joy. But his joy is short-lived, for Mrs. Pepys discovers this interview with Deb on the following day. Pepys denies it at first, then confesses, and there is a more furious scene than ever. Pepys is now really alarmed, for his wife threatens to leave him; he definitely abandons Deb, and with prayers to God resolves never to do the like again. Mrs. Pepys is not satisfied, however, till she makes her husband write a letter to Deb, telling her that she is little better than a whore, and that he hates her, though Deb is

spared this, not by any stratagem of Pepys, but by the considerateness of the friend to whom the letter was entrusted for delivery. Moreover, Mrs. Pepys arranges with her husband that, in future, whenever he goes abroad he shall be accompanied everywhere by his clerk. We see that Mrs. Pepys plays with what appears to be triumphant skill and success the part of the jealous and avenging wife, and digs her little French heels remorselessly into her prostrate husband and her rival. Unfortunately, we do not know what the final outcome was, for a little later, owing to trouble with his eyesight, Pepys was compelled to bring his Diary to an end. It is evident, however, when we survey the whole of this perhaps typical episode, that neither husband nor wife were in the slightest degree prepared for the commonplace position into which they were thrown; that each of them appears in a painful, undignified, and humiliating light; that as a result of it the husband acquires almost a genuine and strong affection for the girl who is the cause of the quarrel; and finally that, even though he is compelled, for the time at all events, to yield to his wife, he remains at the end exactly what he was at the beginning. Nor had husband or wife the very slightest wish to leave each other; the bond of marriage remained firm, but it had been degraded by insincerity on one side and the jealous endeavor on the other to secure fidelity by compulsion.

Apart altogether, however, from the question of its effectiveness, or even of the misery that it causes to all concerned, it is evident that jealousy is incompatible with all the tendencies of civilization. We have seen that a certain degree of variation is involved in the sexual relationship, as in all other relationships, and unless we are to continue to perpetuate many evils and injustices, that fact has to be faced and recognized. We have also seen that the line of our advance involves a constant increase in moral responsibility and self-government, and that, in its turn, implies not only a high degree of sincerity but also the recognition that no person has any right, or indeed any power, to control the emotions and actions of another person. If our sun of love stands still at midday, according to Ellen Key's phrase, that is a miracle to be greeted with awe and gratitude, and by no means a right to be demanded. The claim of jealousy falls with the claim of conjugal rights.

It is quite possible, Bloch remarks (_The Sexual Life of Our Time_, Ch. X), to love more than one person at the same time, with nearly equal tenderness, and to be honestly able to assure each of the passion felt for her or him. Bloch adds that the vast psychic differentiation involved by modern civilization increases the possibility of this double love, for it is difficult for anyone to find his complement in a single person, and that this applies to women as well as to men.

Georg Hirth likewise points out (_Wege zur Heimat_, pp. 543-552) that it is important to remember that women, as well as men, can love two persons at the same time. Men flatter themselves, he remarks, with the prejudice that the female heart, or rather brain, can only hold one man at a time, and that if there is a second man it is by a kind of prostitution. Nearly all erotic writers, poets, and novelists, even physicians and psychologists, belong to this class, he says; they look on a woman as property, and of course two men cannot "possess" a woman. (Regarding novelists, however, the remark may be interpolated that there are many exceptions, and

Thomas Hardy, for instance, frequently represents a woman as more or less in love with two men at the same time.) As against this desire to depreciate women's psychic capacity, Hirth maintains that a woman is not necessarily obliged to be untrue to one man because she has conceived a passion for another man. "Today," Hirth truly declares, "only love and justice can count as honorable motives in marriage. The modern man accords to the beloved wife and life-companion the same freedom which he himself took before marriage, and perhaps still takes in marriage. If she makes no use of it, as is to be hoped--so much the better! But let there be no lies, no deception; the indispensable foundation of modern marriage is boundless sincerity and friendship, the deepest trust, affectionate devotion, and consideration. This is the best safeguard against adultery.... Let him, however, who is, nevertheless, overtaken by the outbreak of it console himself with the undoubted fact that of two real lovers the most noble-minded and deep-seeing _friend_ will always have the preference." These wise words cannot be too deeply meditated. The policy of jealousy is only successful--when it is successful--in the hands of the man who counts the external husk of love more precious than the kernel.

It seems to some that the recognition of variations in sexual relationships, of the tendency of the monogamic to overpass its self-imposed bounds, is at best a sad necessity, and a lamentable fall from a high ideal. That, however, is the reverse of the truth. The great evil of monogamy, and its most seriously weak point, is its tendency to self-concentration at the expense of the outer world. The devil always comes to a man in the shape of his wife and children, said Hinton. The family is a great social influence in so far as it is the best instrument for creating children who will make the future citizens; but in a certain sense the family is an anti-social influence, for it tends to absorb unduly the energy that is needed for the invigoration of society. It is possible, indeed, that that fact led to the modification of the monogamic system in early developing periods of human history, when social expansion and cohesion were the primary necessities. The family too often tends to resemble, as someone has said, the secluded collection of grubs sometimes revealed in their narrow home when we casually raise a flat stone in our gardens. Great as are the problems of love, and great as should be our attention to them, it must always be remembered that love is not a little circle that is complete in itself. It is the nature of love to irradiate. Just as family life exists mainly for the social end of breeding the future race, so family love has its social ends in the extension of sympathy and affection to those outside it, and even in ends that go beyond love altogether.[417]

The question is debated from time to time as to how far it is possible for men and women to have intimate friendships with each other outside the erotic sphere.[418] There can be no doubt whatever that it is perfectly possible for a man and a woman to experience for each other a friendship which never intrudes into the sexual sphere. As a rule, however, this only happens under special conditions, and those are generally conditions which exclude the closest and most intimate friendship. If, as we have seen, love may be defined as a synthesis of lust and friendship, friendship inevitably enters into the erotic sphere. Just as sexual emotion tends to merge into friendship, so friendship between persons of opposite sex, if young, healthy, and attractive, tends to involve sexual emotion. The two feelings are too closely allied for

an artificial barrier to be permanently placed between them without protest. Men who offer a woman friendship usually find that it is not received with much satisfaction except as the first installment of a warmer emotion, and women who offer friendship to a man usually find that he responds with an offer of love; very often the "friendship" is from the first simply love or flirtation masquerading under another name.

"In the long run," a woman writes (in a letter published in _Geschlecht und Gesellschaft_, Bd. i, Heft 7), "the senses become discontented at their complete exclusion. And I believe that a man can only come into the closest mutual association with a woman by whom, consciously or unconsciously, he is physically attracted. He cannot enter into the closest psychic intercourse with a woman with whom he could not imagine himself in physical intercourse. His prevailing wish is for the possession of a woman, of the whole woman, her soul as well as her body. And a woman also cannot imagine an intimate relation to a man in which the heart and the body, as well as the mind, are not involved. (Naturally I am thinking of people with sound nerves and healthy blood.) Can a woman carry on a Platonic relation with a man from year to year without the thought sometimes coming to her: 'Why does he never kiss me? Have I no charm for him?' And in the most concealed corner of her heart will it not happen that she uses that word 'kiss' in the more comprehensive sense in which the French sometimes employ it?" There is undoubtedly an element of truth in this statement. The frontier between erotic love and friendship is vague, and an intimate psychic intercourse that is sternly debarred from ever manifesting itself in a caress, or other physical manifestation of tender intimacy, tends to be constrained, and arouses unspoken and unspeakable thoughts and desires which are fatal to any complete friendship.

Undoubtedly the only perfect "Platonic friendships" are those which have been reached through the portal of a preliminary erotic intimacy. In such a case bad lovers, when they have resolutely traversed the erotic stage, may become exceedingly good friends. A satisfactory friendship is possible between brother and sister because they have been physically intimate in childhood, and all erotic curiosities are absent. The most admirable "Platonic friendship" may often be attained by husband and wife in whom sympathy and affection and common interests have outlived passion. In nearly all the most famous friendships of distinguished men and women--as we know in some cases and divine in others--an hour's passion, in Sainte-Beuve's words, has served as the golden key to unlock the most precious and intimate secrets of friendship.[419]

The friendships that have been entered through the erotic portal possess an intimacy and retain a spiritually erotic character which could not be attained on the basis of a normal friendship between persons of the same sex. This is true in a far higher degree of the ultimate relationship, under fortunate circumstances, of husband and wife in the years after passion has become impossible. They have ceased to be passionate lovers but they have not become mere friends and comrades. More especially their relationship takes on elements borrowed from the attitude of child to parent, of parent to child. Everyone from his first years retains something of the child

which cannot be revealed to all the world; everyone acquires something of the guardian paternal or maternal spirit. Husband and wife are each child to the other, and are indeed parent and child by turn. And here still the woman retains a certain erotic supremacy, for she is to the last more of a child than it is ever easy for the man to be, and much more essentially a mother than he is a father.

Groos (_Der Æsthetische Genuss_, p. 249) has pointed out that "love" is really made up of both sexual instinct and parental instinct.

"So-called happy marriages," says Professor W. Thomas (_Sex and Society_, p. 246), "represent an equilibrium reached through an extension of the maternal interest of the woman to the man, whereby she looks after his personal needs as she does after those of the children--cherishing him, in fact, as a child--or in an extension to woman on the part of man of the nurture and affection which is in his nature to give to pets and all helpless (and preferably dumb) creatures."

"When the devotion in the tie between mother and son," a woman writes, "is added to the relation of husband and wife, the union of marriage is raised to the high and beautiful dignity it deserves, and can attain in this world. It comprehends sympathy, love, and perfect understanding, even of the faults and weaknesses of both sides." "The foundation of every true woman's love," another woman writes, "is a mother's tenderness. He whom she loves is a child of larger growth, although she may at the same time have a deep respect for him." (See also, for similar opinion of another woman of distinguished intellectual ability, footnote at beginning of "The Psychic State in Pregnancy" in volume v of these _Studies_.)

It is on the basis of these elemental human facts that the permanently seductive and inspiring relationships of sex are developed, and not by the emergence of personalities who combine impossibly exalted characteristics. "The task is extremely difficult," says Kisch in his _Sexual Life of Woman_, "but a clever and virtuous modern wife must endeavor to combine in her single personality the sensuous attractiveness of an Aspasia, the chastity of a Lucrece, and the intellectual greatness of a Cornelia." And in an earlier century we are told in the novel of _La Tia Fingida_, which has sometimes been attributed to Cervantes, that "a woman should be an angel in the street, a saint in church, beautiful at the window, honest in the house, and a demon in bed." The demands made of men by women, on the other hand, have been almost too lofty to bear definite formulation at all. "Ninety-nine out of a hundred loving women," says Helene Stöcker, "certainly believe that if a thousand other men have behaved ignobly, and forsaken, ill-used, and deceived the woman they love, the man they love is an exception, marked out from all other men; that is the reason they love him." It may be doubted, however, if the great lovers have ever stood very far above the ordinary level of humanity by their possession of perfection. They have been human, and their art of love has not always excluded the possession of human frailties; perfection, indeed, even if it could be found, would furnish a bad soil for love to strike deep roots in.

It is only when we realize the highly complex nature of the elements which make up erotic love that we can understand how it is that that love can constitute so

tremendous a revelation and exert so profound an influence even in men of the greatest genius and intellect and in the sphere of their most spiritual activity. It is not merely passion, nor any conscious skill in the erotic art,--important as these may be,--that would serve to account for Goethe's relationship to Frau von Stein, or Wagner's to Mathilde Wesendonck, or that of Robert and Elizabeth Browning to each other.[420]

It may now be clear to the reader why it has been necessary in a discussion of the sexual impulse in its relationship to society to deal with the art of love. It is true that there is nothing so intimately private and personal as the erotic affairs of the individual. Yet it is equally true that these affairs lie at the basis of the social life, and furnish the conditions--good or bad as the case may be--of that procreative act which is a supreme concern of the State. It is because the question of love is of such purely private interest that it tends to be submerged in the question of breed. We have to realize, not only that the question of love subserves the question of breed, but also that love has a proper, a necessary, even a socially wholesome claim, to stand by itself and to be regarded for its own worth.

In the profoundly suggestive study of love which the distinguished sociologist Tarde left behind at his death (_Archives d'Anthropologie Criminelle_, loc. cit.), there are some interesting remarks on this point: "Society," he says, "has been far more, and more intelligently, preoccupied with the problem of answering the 'question of breed' than the 'question of love.' The first problem fills all our civil and commercial codes. The second problem has never been clearly stated, or looked in the face, not even in antiquity, still less since the coming of Christianity, for merely to offer the solutions of marriage and prostitution is manifestly inadequate. Statesmen have only seen the side on which it touches population. Hence the marriage laws. Sterile love they profess to disdain. Yet it is evident that, though born as the serf of generation, love tends by civilization to be freed from it. In place of a simple method of procreation it has become an end, it has created itself a title, a royal title. Our gardens cultivate flowers that are all the more charming because they are sterile; why is the double corolla of love held more infamous than the sterilized flowers of our gardens?" Tarde replies that the reason is that our politicians are merely ambitious persons thirsting for power and wealth, and even when they are lovers they are Don Juans rather than Virgils. "The future," he continues, "is to the Virgilians, because if the ambition of power, the regal wealth of American or European millionarism, once seemed nobler, love now more and more attracts to itself the best and highest parts of the soul, where lies the hidden ferment of all that is greatest in science and art, and more and more those studious and artist souls multiply who, intent on their peaceful activities, hold in horror the business men and the politicians, and will one day succeed in driving them back. That assuredly will be the great and capital revolution of humanity, an active psychological revolution: the recognized preponderance of the meditative and contemplative, the lover's side of the human soul, over the feverish, expansive, rapacious, and ambitious side. And then it will be understood that one of the greatest of social problems, perhaps the most arduous of all, has been the problem of love."

FOOTNOTES:

[375] _Quæstionum Convivalium_, lib. iii, quæstio 6.

[376] E.D. Cope, "The Marriage Problem," _Open Court_, Nov. 1888.

[377] Columbus meeting of the American Medical Association, 1900.

[378] Ellen Key, _Ueber Liebe und Ehe_, p. 24.

[379] In an admirable article on Friedrich Schlegel's _Lucinde_ (_Mutterschutz_, 1906, Heft 5), Heinrich Meyer-Benfey, in pointing out that the Catholic sacramental conception of marriage licensed love, but failed to elevate it, regards _Lucinde_, with all its defects, as the first expression of the unity of the senses and the soul, and, as such, the basis of the new ethics of love. It must, however, be said that four hundred years earlier Pontano had expressed this same erotic unity far more robustly and wholesomely than Schlegel, though the Latin verse in which he wrote, fresh and vital as it is, remained without influence. Pontano's _Carmina_, including the "De Amore Conjugali," have at length been reprinted in a scholarly edition by Soldati.

[380] From the thirteenth to the seventeenth centuries Ovid was, in reality, the most popular and influential classic poet. His works played a large part in moulding Renaissance literature, not least in England, where Marlowe translated his _Amores_, and Shakespeare, during the early years of his literary activity, was greatly indebted to him (see, e.g., Sidney Lee, "Ovid and Shakespeare's Sonnets," _Quarterly Review_, Ap., 1909).

[381] This has already been discussed in Chapter II.

[382] By the age of twenty-five, as G. Hirth remarks (_Wege zur Heimat_, p. 541), an energetic and sexually disposed man in a large city has, for the most part, already had relations with some twenty-five women, perhaps even as many as fifty, while a well-bred and cultivated woman at that age is still only beginning to realize the slowly summating excitations of sex.

[383] In his study of "Conjugal Aversion" (_Journal Nervous and Mental Disease_, Sept., 1892) Smith Baker points out the value of adequate sexual knowledge before marriage in lessening the risks of such aversion.

[384] "It may be said to the honor of men," Adler truly remarks (op. cit., p. 182), "that it is perhaps not often their conscious brutality that is at fault in this matter, but merely lack of skill and lack of understanding. The husband who is not specially endowed by nature and experience for psychic intercourse with women, is not likely, through his earlier intercourse with Venus vulgivaga, to bring into marriage any useful knowledge, psychic or physical."

[385] "The first night," writes a correspondent concerning his marriage, "she found the act very painful and was frightened and surprised at the size of my penis, and at my suddenly getting on her. We had talked very openly about sex things before marriage, and it never occurred to me that she was ignorant of the details of the act. I imagined it would disgust her to talk about these things; but I now see I should have

explained things to her. Before marrying I had come to the conclusion that the respect owed to one's wife was incompatible with any talk that might seem indecent, and also I had made a resolve not to subject her to what I thought then were dirty tricks, even to be naked and to have her naked. In fact, I was the victim of mock modesty; it was an artificial reaction from the life I had been living before marriage. Now it seems to me to be natural, if you love a woman, to do whatever occurs to you and to her. If I had not felt it wrong to encourage such acts between us, there might have been established a sexual sympathy which would have bound me more closely to her."

[386] Montaigne, _Essais_, Bk. iii, Ch. V. It is a significant fact that, even in the matter of information, women, notwithstanding much ignorance and inexperience, are often better equipped for marriage than men. As Fürbringer remarks (Senator and Kaminer, _Health and Disease in Relation to Marriage_, vol. i, p. 212), although the wife is usually more chaste at marriage than the husband, yet "she is generally the better informed partner in matters pertaining to the married state, in spite of occasional astonishing confessions."

[387] "She never loses her self-respect nor my respect for her," a man writes in a letter, "simply because we are desperately in love with one another, and everything we do--some of which the lowest prostitute might refuse to do--seems but one attempt after another to translate our passion into action. I never realized before, not that to the pure all things are pure, indeed, but that to the lover nothing is indecent. Yes, I have always felt it, to love her is a liberal education." It is obviously only the existence of such an attitude as this that can enable a pure woman to be passionate.

[388] "To be really understood," as Rafford Pyke well says, "to say what she likes, to utter her innermost thoughts in her own way, to cast aside the traditional conventions that gall her and repress her, to have someone near her with whom she can be quite frank, and yet to know that not a syllable of what she says will be misinterpreted or mistaken, but rather felt just as she feels it all--how wonderfully sweet is this to every woman, and how few men are there who can give it to her!"

[389] In more recent times it has been discussed in relation to the frequency of spontaneous nocturnal emissions. See "The Phenomena of Sexual Periodicity," Sect. II, in volume i of these _Studies_, and cf. Mr. Perry-Coste's remarks on "The Annual Rhythm," in Appendix B of the same volume.

[390] See "The Sexual Impulse in Women," vol. iii of these _Studies_.

[391] Zenobia's practice is referred to by Gibbon, _Decline and Fall_, ed. Bury, vol. i, p. 302. The Queen of Aragon's decision is recorded by the Montpellier jurist, Nicolas Bohier (Boerius) in his _Decisiones_, etc., ed. of 1579, p. 563; it is referred to by Montaigne, _Essais_, Bk. iii, Ch. V.

[392] Haller, _Elementa Physiologiæ_, 1778, vol. vii, p. 57.

[393] Hammond, _Sexual Impotence_, p. 129.

[394] Fürbringer, Senator and Kaminer, _Health and Disease in Relation to Marriage_, vol. i, p. 221.

[395] Forel, _Die Sexuelle Frage_, p. 80.

[396] Guyot, _Bréviaire de l'Amour Expérimental_, p. 144.

[397] Erb, Ziemssen's _Handbuch_, Bd. xi, ii, p. 148. Guttceit also considered that the very wide variations found are congenital and natural. It may be added that some believe that there are racial variations. Thus it has been stated that the genital force of the Englishman is low, and that of the Frenchman (especially Provençal, Languedocian, and Gascon) high, while Löwenfeld believes that the Germanic race excels the French in aptitude to repeat the sex act frequently. It is probable that little weight attaches to these opinions, and that the chief differences are individual rather than racial.

[398] Ribbing, _L'Hygiène Sexualle_, p. 75. Kisch, in his _Sexual Life of Woman_, expresses the same opinion.

[399] Mohammed, who often displayed a consideration for women very rare in the founders of religions, is an exception. His prescription of once a week represented the right of the wife, quite independently of the number of wives a man might possess.

[400] How fragile the claim of "conjugal rights" is, may be sufficiently proved by the fact that it is now considered by many that the very term "conjugal rights" arose merely by a mistake for "conjugal rites." Before 1733, when legal proceedings were in Latin, the term used was _obsequies_, and "rights," instead of "rites," seems to have been merely a typesetter's error (see _Notes and Queries_, May 16, 1891; May 6, 1899). This explanation, it should be added, only applies to the consecrated term, for there can be no doubt that the underlying idea has an existence quite independent of the term.

[401] "In most marriages that are not happy," it is said in Rafford Pyke's thoughtful paper on "Husbands and Wives" (_Cosmopolitan_, 1902), "it is the wife rather than the husband who is oftenest disappointed."

[402] See "Analysis of the Sexual Impulse," in vol. iii of these _Studies_.

[403] It is well recognized by erotic writers, however, that women may sometimes take a comparatively active part. Thus Vatsyayana says that sometimes the woman may take the man's position, and with flowers in her hair and smiles mixed with sighs and bent head, caressing him and pressing her breasts against him, say: "You have been my conqueror; it is my turn to make you cry for mercy."

[404] Thus among the Swahili it is on the third day after marriage that the bridegroom is allowed, by custom, to complete defloration, according to Zache, _Zeitschrift für Ethnologie_, 1899, II-III, p. 84.

[405] _De l'Amour_, vol. ii, p. 57.

[406] Robert Michels, "Brautstandsmoral," _Geschlecht und Gesellschaft_, Jahrgang I, Heft 12.

[407] I may refer once more to the facts brought together in volume iii of these _Studies_, "The Analysis of the Sexual Impulse."

[408] This has been pointed out, for instance, by Rutgers, "Sexuelle Differenzierung," _Die Neue Generation_, Dec., 1908.

[409] Thus, among the Eskimo, who practice temporary wife-exchange, Rasmussen states that "a man generally discovers that his own wife is, in spite of all, the best."

[410] "I have always held with the late Professor Laycock," remarks Clouston (_Hygiene of Mind_, p. 214), "who was a very subtle student of human nature, that a married couple need not be always together to be happy, and that in fact reasonable absences and partings tend towards ultimate and closer union." That the prolongation of passion is only compatible with absence scarcely needs pointing out; as Mary Wollstonecraft long since said (_Rights of Woman_, original ed., p. 61), it is only in absence or in misfortune that passion is durable. It may be added, however, that in her love-letters to Imlay she wrote: "I have ever declared that two people who mean to live together ought not to be long separated."

[411] "Viewed broadly," says Arnold L. Gesell, in his interesting study of "Jealousy" (_American Journal of Psychology_, Oct., 1906), "jealousy seems such a necessary psychological accompaniment to biological behavior, amidst competitive struggle, that one is tempted to consider it genetically among the oldest of the emotions, synonymous almost with the will to live, and to make it scarcely less fundamental than fear or anger. In fact, jealousy readily passes into anger, and is itself a brand of fear.... In sociability and mutual aid we see the other side of the shield; but jealousy, however anti-social it may be, retains a function in zoölogical economy: viz., to conserve the individual as against the group. It is Nature's great corrective for the purely social emotions."

[412] Many illustrations are brought together in Gesell's study of "Jealousy."

[413] Jealousy among lower races may be disguised or modified by tribal customs. Thus Rasmussen (_People of the Polar North_, p. 65) says in reference to the Eskimo custom of wife-exchange: "A man once told me that he only beat his wife when she would not receive other men. She would have nothing to do with anyone but him--and that was her only failing!" Rasmussen elsewhere shows that the Eskimo are capable of extreme jealousy.

[414] See, e.g., Moll, _Sexualleben des Kindes_, p. 158; cf., Gesell's "Study of Jealousy."

[415] Jealousy is notoriously common among drunkards. As K. Birnbaum points out ("Das Sexualleben der Alkokolisten," _Sexual-Probleme_, Jan., 1909), this jealousy is, in most cases, more or less well-founded, for the wife, disgusted with her husband, naturally seeks sympathy and companionship elsewhere. Alcoholic jealousy, however, goes far beyond its basis of support in fact, and is entangled with delusions and hallucinations. (See e.g., G. Dumas, "La Logique d'un Dément," _Revue Philosophique_, Feb., 1908; also Stefanowski, "Morbid Jealousy," _Alienist and Neurologist_, July, 1893.)

[416] Ellen Key, _Ueber Liebe und Ehe_, p. 335.

[417] Schrempf points out ("Von Stella zu Klärchen," _Mutterschutz_, 1906, Heft 7, p. 264) that Goethe strove to show in _Egmont_ that a woman is repelled by the love of a man who knows nothing beyond his love to her, and that it is easy for her to devote herself to the man whose aims lie in the larger world beyond herself. There is profound truth in this view.

[418] A discussion on "Platonic friendship" of this kind by several writers, mostly women, whose opinions were nearly equally divided, may be found, for instance, in the _Lady's Realm_, March, 1900.

[419] There are no doubt important exceptions. Thus Mérimée's famous friendship with Mlle. Jenny Dacquin, enshrined in the _Lettres à une Inconnue_, was perhaps Platonic throughout on Mérimée's side, Mlle. Dacquin adapting herself to his attitude. Cf. A. Lefebvre, _La Célèbre Inconnue de Mérimée_, 1908.

[420] The love-letters of all these distinguished persons have been published. Rosa Mayreder (_Zur Kritik der Weiblichkeit_, pp. 229 _et seq._) discusses the question of the humble and absolute manner in which even men of the most masculine and impetuous genius abandon themselves to the inspiration of the beloved woman. The case of the Brownings, who have been termed "the hero and heroine of the most wonderful love-story that the world knows of," is specially notable; (Ellen Key has written of the Brownings from this point of view in _Menschen_, and reference may be made to an article on the Brownings' love-letters in the _Edinburgh Review_, April, 1899). It is scarcely necessary to add that an erotic relationship may mean very much to persons of high intellectual ability, even when its issue is not happy; of Mary Wollstonecraft, one of the most intellectually distinguished of women, it may be said that the letters which enshrine her love to the worthless Imlay are among the most passionate and pathetic love-letters in English.

CHAPTER XII.

THE SCIENCE OF PROCREATION.

The Relationship of the Science of Procreation to the Art of Love--Sexual Desire and Sexual Pleasure as the Conditions of Conception--Reproduction Formerly Left to Caprice and Lust--The Question of Procreation as a Religious Question--The Creed of Eugenics--Ellen Key and Sir Francis Galton--Our Debt to Posterity--The Problem of Replacing Natural Selection--The Origin and Development of Eugenics--The General Acceptance of Eugenical Principles To-day--The Two Channels by Which Eugenical Principles are Becoming Embodied in Practice--The Sense of Sexual Responsibility in Women--The Rejection of Compulsory Motherhood--The Privilege of Voluntary Motherhood--Causes of the Degradation of Motherhood--The Control of Conception--Now Practiced by the Majority of the Population in Civilized Countries--The Fallacy of "Racial Suicide"--Are Large Families a Stigma of Degeneration?--Procreative Control the Outcome of Natural and Civilized Progress--The Growth of Neo-Malthusian Beliefs and Practices--Facultative Sterility

as Distinct from Neo-Malthusianism--The Medical and Hygienic Necessity of Control of Conception--Preventive Methods--Abortion--The New Doctrine of the Duty to Practice Abortion--How Far is this Justifiable?--Castration as a Method of Controlling Procreation--Negative Eugenics and Positive Eugenics--The Question of Certificates for Marriage--The Inadequacy of Eugenics by Act of Parliament--The Quickening of the Social Conscience in Regard to Heredity--Limitations to the Endowment of Motherhood--The Conditions Favorable to Procreation--Sterility--The Question of Artificial Fecundation--The Best Age of Procreation--The Question of Early Motherhood--The Best Time for Procreation--The Completion of the Divine Cycle of Life.

We have seen that the art of love has an independent and amply justifiable right to existence apart, altogether, from procreation. Even if we still believed--as all men must once have believed and some Central Australians yet believe[421]--that sexual intercourse has no essential connection with the propagation of the race it would have full right to existence. In its finer manifestations as an art it is required in civilization for the full development of the individual, and it is equally required for that stability of relationships which is nearly everywhere regarded as a demand of social morality.

When we now turn to the second great constitutional factor of marriage, procreation, the first point we encounter is that the art of love here also has its place. In ancient times the sexual congruence of any man with any woman was supposed to be so much a matter of course that all questions of love and of the art of love could be left out of consideration. The propagative act might, it was thought, be performed as impersonally, as perfunctorily, as the early Christian Fathers imagined it had been performed in Paradise. That view is no longer acceptable. It fails to commend itself to men, and still less to women. We know that in civilization at all events--and it is often indeed the same among savages--erethism is not always easy between two persons selected at random, nor even when they are more specially selected. And we also know, on the authority of very distinguished gynæcologists, that it is not in very many cases sufficient even to effect coitus, it is also necessary to excite orgasm, if conception is to be achieved.

Many primitive peoples, as well as the theologians of the Middle Ages, have believed that sexual excitement on the woman's part is necessary to conception, though they have sometimes mixed up that belief with false science and mere superstition. The belief itself is supported by some of the most cautious and experienced modern gynæcologists. Thus, Matthews Duncan (in his lectures on _Sterility in Women_) argued that the absence of sexual desire in women, and the absence of pleasure in the sexual act, are powerful influences making for sterility. He brought forward a table based on his case-books, showing that of nearly four hundred sterile women, only about one-fourth experienced sexual desire, while less than half experienced pleasure in the sexual act. In the absence, however, of a corresponding table concerning fertile women, nothing is hereby absolutely proved, and, at most, only a probability established.

Kisch, more recently (in his _Sexual Life of Woman_), has dealt fully with this question, and reaches the conclusion that it is "extremely probable" that the active erotic participation of the woman in coitus is an important link in the chain of conditions producing conception. It acts, he remarks, in either or both of two ways, by causing reflex changes in the cervical secretions, and so facilitating the passage of the spermatozoa, and by causing reflex erectile changes in the cervix itself, with slight descent of the uterus, so rendering the entrance of the semen easier. Kisch refers to the analogous fact that the first occurrence of menstruation is favored by sexual excitement.

Some authorities go so far as to assert that, until voluptuous excitement occurs in women, no impregnation is possible. This statement seems too extreme. It is true that the occurrence of impregnation during sleep, or in anæsthesia, cannot be opposed to it, for we know that the unconsciousness of these states by no means prevents the occurrence of complete sexual excitement. We cannot fail, however, to connect the fact that impregnation frequently fails to occur for months and even years after marriage, with the fact that sexual pleasure in coitus on the wife's part also frequently fails to occur for a similar period.

"Of all human instincts," Pinard has said,[422] "that of reproduction is the only one which remains in the primitive condition and has received no education. We procreate to-day as they procreated in the Stone Age. The most important act in the life of man, the sublimest of all acts since it is that of his reproduction, man accomplishes to-day with as much carelessness as in the age of the cave-man." And though Pinard himself, as the founder of puericulture, has greatly contributed to call attention to the vast destinies that hang on the act of procreation, there still remains a lamentable amount of truth in this statement. "Future generations," writes Westermarck in his great history of moral ideas,[423] "will probably with a kind of horror look back at a period when the most important, and in its consequences the most far-reaching, function which has fallen to the lot of man was entirely left to individual caprice and lust."

We are told in his _Table Talk_, that the great Luther was accustomed to say that God's way of making man was very foolish ("sehr närrisch"), and that if God had deigned to take him into His counsel he would have strongly advised Him to make the whole human race, as He made Adam, "out of earth." And certainly if applied to the careless and reckless manner in which procreation in Luther's day, as still for the most part in our own, was usually carried out there was sound common sense in the Reformer's remarks. If that is the way procreation is to be carried on, it would be better to create and mould every human being afresh out of the earth; in that way we could at all events eliminate evil heredity. It was, however, unjust to place the responsibility on God. It is men and women who breed the people that make the world good or bad. They seek to put the evils of society on to something outside themselves. They see how large a proportion of human beings are defective, ill-conditioned, anti-social, incapable of leading a whole and beautiful human life. In old theological language it was often said that such were "children of the Devil," and Luther himself was often ready enough to attribute the evil of the world to the direct

interposition of the Devil. Yet these ill-conditioned people who clog the wheels of society are, after all, in reality the children of Man. The only Devil whom we can justly invoke in this matter is Man.

The command "Be fruitful and multiply," which the ancient Hebrews put into the mouth of their tribal God, was, as Crackanthorpe points out,[424] a command supposed to have been uttered when there were only eight persons in the world. If the time should ever again occur when the inhabitants of the world could be counted on one's fingers, such an injunction, as Crackanthorpe truly observes, would again be reasonable. But we have to remember that to-day humanity has spawned itself over the world in hundreds and even thousands of millions of creatures, a large proportion of whom, as is but too obvious, ought never to have been born at all, and the voice of Jehovah is now making itself heard through the leaders of mankind in a very different sense.

It is not surprising that as this fact tends to become generally recognized, the question of the procreation of the race should gain a new significance, and even tend to take on the character of a new religious movement. Mere morality can never lead us to concern ourselves with the future of the race, and in the days of old, men used to protest against the tendency to subordinate the interests of religion to the claims of "mere morality." There was a sound natural instinct underlying that protest, so often and so vigorously made by Christianity, and again revived to-day in a more intelligent form. The claim of the race is the claim of religion. We have to beware lest we subordinate that claim to our moralities. Moralities are, indeed, an inevitable part of our social order from which we cannot escape; every community must have its _mores_. But we are not entitled to make a fetich of our morality, sacrificing to it the highest interests entrusted to us. The nations which have done so have already signed their own death-warrant.[425] From this point of view, the whole of Christianity, rightly considered, with its profound conviction of the necessity for forethought and preparation for the life hereafter, has been a preparation for eugenics, a schoolmaster to discipline within us a higher ideal than itself taught, and we cannot therefore be surprised at the solidity of the basis on which eugenical conceptions of life are developing.

The most distinguished pioneers of the new movement of devotion to the creation of the race seem independently to have realized its religious character. This attitude is equally marked in Ellen Key and Francis Galton. In her _Century of the Child_ (English translation, 1909), Ellen Key entirely identifies herself with the eugenic movement. "It is only a question of time," she elsewhere writes (_Ueber Liebe und Ehe_, p. 445), "when the attitude of society towards a sexual union will depend not on the form of the union, but on the value of the children created. Men and women will then devote the same religious earnestness to the psychic and physical perfectioning of this sexual task as Christians have devoted to the salvation of their souls."

Sir Francis Galton, writing a few years later, but without doubt independently, in 1905, on "Restrictions in Marriage," and "Eugenics as a Factor in Religion" (_Sociological Papers_ of the Sociological Society, vol. ii, pp. 13, 53), remarks: "Religious precepts, founded on the ethics and practice of older days, require to be

reinterpreted, to make them conform to the needs of progressive nations. Ours are already so far behind modern requirements that much of our practice and our profession cannot be reconciled without illegitimate casuistry. It seems to me that few things are more needed by us in England than a revision of our religion, to adapt it to the intelligence and needs of this present time.... Evolution is a grand phantasmagoria, but it assumes an infinitely more interesting aspect under the knowledge that the intelligent action of the human will is, in some small measure, capable of guiding its course. Man has the power of doing this largely, so far as the evolution of humanity is concerned; he has already affected the quality and distribution of organic life so widely that the changes on the surface of the earth, merely through his disforestings and agriculture, would be recognizable from a distance as great as that of the moon. Eugenics is a virile creed, full of hopefulness, and appealing to many of the noblest feelings of our nature."

As will always happen in every great movement, a few fanatics have carried into absurdity the belief in the supreme religious importance of procreation. Love, apart from procreation, writes one of these fanatics, Vacher de Lapouge, in the spirit of some of the early Christian Fathers (see _ante_ p. 509), is an aberration comparable to sadism and sodomy. Procreation is the only thing that matters, and it must become "a legally prescribed social duty" only to be exercised by carefully selected persons, and forbidden to others, who must, by necessity, be deprived of the power of procreation, while abortion and infanticide must, under some circumstances, become compulsory. Romantic love will disappear by a process of selection, as also will all religion except a new form of phallic worship (G. Vacher de Lapouge, "Die Crisis der Sexuellen Moral," _Politisch Anthropologische Revue_, No. 8, 1908). It is sufficient to point out that love is, and always must be, the natural portal to generation. Such excesses of procreative fanaticism cannot fail to occur, and they render the more necessary the emphasis which has here been placed on the art of love.

"What has posterity done for me that I should do anything for posterity?" a cynic is said to have asked. The answer is very simple. The human race has done everything for him. All that he is, and can be, is its creation; all that he can do is the result of its laboriously accumulated traditions. It is only by working towards the creation of a still better posterity, that he can repay the good gifts which the human race has brought him.[426] Just as, within the limits of this present life, many who have received benefits and kindnesses they can never repay to the actual givers, find a pleasure in vicariously repaying the like to others, so the heritage we have received from our ascendents we can never repay, save by handing it on in a better form to our descendants.

It is undoubtedly true that the growth of eugenical ideals has not been, for the most part, due to religious feeling. It has been chiefly the outcome of a very gradual, but very comprehensive, movement towards social amelioration, which has been going on for more than a century, and which has involved a progressive effort towards the betterment of all the conditions of life. The ideals of this movement were proclaimed in the eighteenth century, they began to find expression early in the nineteenth century, in the initiation of the modern system of sanitation, in the growth

of factory legislation, in all the movements which have been borne onwards by socialism hand in hand with individualism. The inevitable tendency has been slowly towards the root of the matter; it began to be seen that comparatively little can be effected by improving the conditions of life of adults; attention began to be concentrated on the child, on the infant, on the embryo in its mother's womb, and this resulted in the fruitful movement of puericulture inspired by Pinard, and finally the problem is brought to its source at the point of procreation, and the regulation of sexual selection between stocks and between individuals as the prime condition of life. Here we have the science of eugenics which Sir Francis Galton has done so much to make a definite, vital, and practical study, and which in its wider bearings he defines as "the science which deals with those social eugenics that influence, mentally or physically, the racial qualities of future generations." In its largest aspect, eugenics is, as Galton has elsewhere said, man's attempt "to replace Natural Selection by other processes that are more merciful and not less effective."

In the last chapter of his _Memories of My Life_ (1908), on "Race Improvement," Sir Francis Galton sets forth the origin and development of his conception of the science of eugenics. The term, "eugenics," he first used in 1884, in his _Human Faculty_, but the conception dates from 1865, and even earlier. Galton has more recently discussed the problems of eugenics in papers read before the Sociological Society (_Sociological Papers_, vols. i and ii, 1905), in the Herbert Spencer Lecture on "Probability the Foundation of Eugenics," (1907), and elsewhere. Galton's numerous memoirs on this subject have now been published in a collected form by the Eugenics Education Society, which was established in 1907, to further and to popularize the eugenical attitude towards social questions; _The Eugenics Review_ is published by this Society. On the more strictly scientific side, eugenic studies are carried on in the Eugenics Laboratory of the University of London, established by Sir Francis Galton, and now working in connection with Professor Karl Pearson's biometric laboratory, in University College. Much of Professor Pearson's statistical work in this and allied directions, is the elaboration of ideas and suggestions thrown out by Galton. See, e.g., Karl Pearson's Robert Boyle Lecture, "The Scope and Importance to the State of the Science of National Eugenics" (1907). _Biometrika_, edited by Karl Pearson in association with other workers, contains numerous statistical memoirs on eugenics. In Germany, the _Archiv für Rassen und Gesellschafts-biologie_, and the _Politisch-Anthropologische Revue_, are largely occupied with various aspects of such subjects, and in America, _The Popular Science Monthly_ from time to time, publishes articles which have a bearing on eugenics.

At one time there was a tendency to scoff, or to laugh, at the eugenic movement. It was regarded as an attempt to breed men as men breed animals, and it was thought a sufficiently easy task to sweep away this new movement with the remark that love laughs at bolts and bars. It is now beginning to be better understood. None but fanatics dream of abolishing love in order to effect pairing by rule. It is merely a question of limiting the possible number of mates from whom each may select a partner, and that, we must remember, has always been done even by savages, for, as it has been said, "eugenics is the oldest of the sciences." The question has merely been transformed. Instead of being limited mechanically by caste, we begin to see

that the choice of sexual mates must be limited intelligently by actual fitness. Promiscuous marriages have never been the rule; the possibility of choice has always been narrow, and the most primitive peoples have exerted the most marked self-restraint. It is not so merely among remote races but among our own European ancestors. Throughout the whole period of Catholic supremacy the Canon law multiplied the impediments to matrimony, as by ordaining that consanguinity to the fourth degree (third cousins), as well as spiritual relationship, is an impediment, and by such arbitrary prohibitions limited the range of possible mates at least as much as it would be limited by the more reasonable dictates of eugenic considerations.

At the present day it may be said that the principle of the voluntary control of procreation, not for the selfish ends of the individual, but in order to extinguish disease, to limit human misery, and to raise the general level of humanity by substituting the ideal of quality for the vulgar ideal of mere quantity, is now generally accepted, alike by medical pathologists, embryologists and neurologists, and by sociologists and moralists.

It would be easy to multiply quotations from distinguished authorities on this point. Thus, Metchnikoff points out (_Essais Optimistes_, p. 419) that orthobiosis seems to involve the limitation of offspring in the fight against disease. Ballantyne concludes his great treatise on _Antenanal Pathology_ with the statement that "Eugenics" or well-begetting, is one of the world's most pressing problems. Dr. Louise Robinovitch, the editor of the _Journal of Mental Pathology_, in a brilliant and thoughtful paper, read before the Rome Congress of Psychology in 1905, well spoke in the same sense: "Nations have not yet elevated the energy of genesic function to the dignity of an energy. Other energies known to us, even of the meanest grade, have long since been wisely utilized, and their activities based on the principle of the strictest possible economy. This economic utilization has been brought about, not through any enforcement of legislative restrictions, but through steadily progressive human intelligence. Economic handling of genesic function will, like the economic function of other energies, come about through a steady and progressive intellectual development of nations." "There are circumstances," says C.H. Hughes, ("Restricted Procreation," _Alienist and Neurologist_, May, 1908), "under which the propagation of a human life may be as gravely criminal as the taking of a life already begun."

From the general biological, as well as from the sociological side, the acceptance of the same standpoint is constantly becoming more general, for it is recognized as the inevitable outcome of movements which have long been in progress.

"Already," wrote Haycraft (_Darwinism and Race Progress_, p. 160), referring to the law for the prevention of cruelty to children, "public opinion has expressed itself in the public rule that a man and woman, in begetting a child, must take upon themselves the obligation and responsibility of seeing that that child is not subjected to cruelty and hardship. It is but one step more to say that a man and a woman shall be under obligation not to produce children, when it is certain that, from their want of physique, they will have to undergo suffering, and will keep up but an unequal struggle with their fellows." Professor J. Arthur Thomson, in his volume on _Heredity_ (1908), vigorously and temperately pleads (p. 528) for rational methods of eugenics,

as specially demanded in an age like our own, when the unfit have been given a better chance of reproduction than they have ever been given in any other age. Bateson, again, referring to the growing knowledge of heredity, remarks (_Mendel's Principles of Heredity_, 1909, p. 305): "Genetic knowledge must certainly lead to new conceptions of justice, and it is by no means impossible that, in the light of such knowledge, public opinion will welcome measures likely to do more for the extinction of the criminal and the degenerate than has been accomplished by ages of penal enactment." Adolescent youths and girls, said Anton von Menger, in his last book, the pregnant _Neue Sittenlehre_ (1905), must be taught that the production of children, under certain circumstances, is a crime; they must also be taught the voluntary restraint of conception, even in health; such teaching, Menger rightly added, is a necessary preliminary to any legislation in this direction.

Of recent years, many books and articles have been devoted to the advocacy of eugenic methods. Mention may be made, for instance, of _Population and Progress_ (1907), by Montague Crackanthorpe, President of the Eugenics Education Society. See also, Havelock Ellis, "Eugenics and St. Valentine," _Nineteenth Century and After_, May, 1906. It may be mentioned that nearly thirty years ago, Miss J.H. Clapperton, in her _Scientific Meliorism_ (1885, Ch. XVII), pointed out that the voluntary restraint of procreation by Neo-Malthusian methods, apart from merely prudential motives, there clearly recognized, is "a new key to the social position," and a necessary condition for "national regeneration." Professor Karl Pearson's _Groundwork of Eugenics_, (1909) is, perhaps, the best brief introduction to the subject. Mention may also be made of Dr. Saleeby's _Parenthood and Race Culture_ (1909), written in a popular and enthusiastic manner.

How widely the general principles of eugenics are now accepted as the sound method of raising the level of the human race, was well shown at a meeting of the Sociological Society, in 1905, when, after Sir Francis Galton had read papers on the question, the meeting heard the opinions of numerous sociologists, economists, biologists, and well-known thinkers in various lands, who were present, or who had sent communications. Some twenty-one expressed more or less unqualified approval, and only three or four had objections to offer, mostly on matters of detail (_Sociological Papers_, published by the Sociological Society, vol. ii, 1905).

If we ask by what channels this impulse towards the control of procreation for the elevation of the race is expressing itself in practical life, we shall scarcely fail to find that there are at least two such channels: (1) the growing sense of sexual responsibility among women as well as men, and (2) the conquest of procreative control which has been achieved in recent years, by the general adoption of methods for the prevention of conception.

It has already been necessary in a previous chapter to discuss the far-reaching significance of woman's personal responsibility as an element in the modification of the sexual life of modern communities. Here it need only be pointed out that the autonomous authority of a woman over her own person, in the sexual sphere, involves on her part a consent to the act of procreation which must be deliberate. We are apt to think that this is a new and almost revolutionary demand; it is, however,

undoubtedly a natural, ancient, and recognized privilege of women that they should not be mothers without their own consent. Even in the Islamic world of the _Arabian Nights_, we find that high praise is accorded to the "virtue and courage" of the woman who, having been ravished in her sleep, exposed, and abandoned on the highway, the infant that was the fruit of this involuntary union, "not wishing," she said, "to take the responsibility before Allah of a child that had been born without my consent."[427] The approval with which this story is narrated clearly shows that to the public of Islam it seemed entirely just and humane that a woman should not have a child, except by her own deliberate will. We have been accustomed to say in later days that the State needs children, and that it is the business and the duty of women to supply them. But the State has no more right than the individual to ravish a woman against her will. We are beginning to realize that if the State wants children it must make it agreeable to women to produce them, as under natural and equitable conditions it cannot fail to be. "The women will solve the question of mankind," said Ibsen in one of his rare and pregnant private utterances, "and they will do it as mothers." But it is unthinkable that any question should ever be solved by a helpless, unwilling, and involuntary act which has not even attained to the dignity of animal joy.

It is sometimes supposed, and even assumed, that the demand of women that motherhood must never be compulsory, means that they are unwilling to be mothers on any terms. In a few cases that may be so, but it is certainly not the case as regards the majority of sane and healthy women in any country. On the contrary, this demand is usually associated with the desire to glorify motherhood, if not, indeed, even with the thought of extending motherhood to many who are to-day shut out from it. "It seems to me," wrote Lady Henry Somerset, some years ago ("The Welcome Child," _Arena_, April, 1895), "that life will be dearer and nobler the more we recognize that there is no indelicacy in the climax and crown of creative power, but, rather, that it is the highest glory of the race. But if voluntary motherhood is the crown of the race, involuntary compulsory motherhood is the very opposite.... Only when both man and woman have learned that the most sacred of all functions given to women must be exercised by the free will alone, can children be born into the world who have in them the joyous desire to live, who claim that sweetest privilege of childhood, the certainty that they can expand in the sunshine of the love which is their due." Ellen Key, similarly, while pointing out (_Ueber Liebe und Ehe_, pp. 14, 265) that the tyranny of the old Protestant religious spirit which enjoined on women unlimited submission to joyless motherhood within "the whited sepulchre of marriage" is now being broken, exalts the privileges of voluntary motherhood, while admitting that there may be a few exceptional cases in which women may withdraw themselves from motherhood for the sake of the other demands of their personality, though, "as a general rule, the woman who refuses motherhood in order to serve humanity, is like a soldier who prepares himself on the eve of battle for the forthcoming struggle by opening his veins." Helene Stöcker, likewise, reckons motherhood as one of the demands, one of the growing demands indeed, which women now make. "If, to-day," she says (in the Preface to _Liebe und die Frauen_, 1906), "all the good things of life are claimed even for women--intellectual training, pecuniary independence, a happy vocation in life, a

respected social position--and at the same time, as equally matter-of-course, and equally necessary, marriage and child, that demand no longer sounds, as it sounded a few years ago, the voice of a preacher in the wilderness."

The degradation to which motherhood has, in the eyes of many, fallen, is due partly to the tendency to deprive women of any voice in the question, and partly to what H.G. Wells calls (_Socialism and the Family_, 1906) "the monstrous absurdity of women discharging their supreme social function, bearing and rearing children, in their spare time, as it were, while they 'earn their living' by contributing some half mechanical element to some trivial industrial product." It would be impracticable, and even undesirable, to insist that married women should not be allowed to work, for a work in the world is good for all. It is estimated that over thirty per cent. of the women workers in England are married or widows (James Haslam, _Englishwoman_, June, 1909), and in Lancashire factories alone, in 1901, there were 120,000 married women employed. But it would be easily possible for the State to arrange, in its own interests, that a woman's work at a trade should always give way to her work as a mother. It is the more undesirable that married women should be prohibited from working at a profession, since there are some professions for which a married woman, or, rather, a mother, is better equipped than an unmarried woman. This is notably the case as regards teaching, and it would be a good policy to allow married women teachers special privileges in the shape of increased free time and leave of absence. While in many fields of knowledge an unmarried woman may be a most excellent teacher, it is highly undesirable that children, and especially girls, should be brought exclusively under the educational influence of unmarried teachers.

The second great channel through which the impulse towards the control of procreation for the elevation of the race is entering into practical life is by the general adoption, by the educated classes of all countries--and it must be remembered that, in this matter at all events, all classes are gradually beginning to become educated--of methods for the prevention of conception except when conception is deliberately desired. It is no longer permissible to discuss the validity of this control, for it is an accomplished fact and has become a part of our modern morality. "If a course of conduct is habitually and deliberately pursued by vast multitudes of otherwise well-conducted people, forming probably a majority of the whole educated class of the nation," as Sidney Webb rightly puts it, "we must assume that it does not conflict with their actual code of morality."[428]

There cannot be any doubt that, so far as England is concerned, the prevention of conception is practiced, from prudential or other motives, by the vast majority of the educated classes. This fact is well within the knowledge of all who are intimately acquainted with the facts of English family life. Thus, Dr. A.W. Thomas writes (_British Medical Journal_, Oct. 20, 1906, p. 1066): "From my experience as a general practitioner, I have no hesitation in saying that ninety per cent. of young married couples of the comfortably-off classes use preventives." As a matter of fact, this rough estimate appears to be rather under than over the mark. In the very able paper already quoted, in which Sidney Webb shows that "the decline in the birthrate appears to be much greater in those sections of the population which give proofs of

thrift and foresight," that this decline is "principally, if not entirely, the result of deliberate volition," and that "a volitional regulation of the marriage state is now ubiquitous throughout England and Wales, among, apparently, a large majority of the population," the results are brought forward of a detailed inquiry carried out by the Fabian Society. This inquiry covered 316 families, selected at random from all parts of Great Britain, and belonging to all sections of the middle class. The results are carefully analyzed, and it is found that seventy-four families were unlimited, and two hundred and forty-two voluntarily limited. When, however, the decade 1890-99 is taken by itself as the typical period, it is found that of 120 marriages, 107 were limited, and only thirteen unlimited, while of these thirteen, five were childless at the date of the return. In this decade, therefore, only seven unlimited fertile marriages are reported, out of a total of 120.

What is true of Great Britain is true of all other civilized countries, in the highest degree true of the most civilized countries, and it finds expression in the well-known phenomenon of the decline of the birthrate. In modern times, this movement of decline began in France, producing a slow but steady diminution in the annual number of births, and in France the movement seems now to be almost, or quite, arrested. But it has since taken place in all other progressive countries, notably in the United States, in Canada, in Australia, and in New Zealand, as well as in Germany, Austro-Hungary, Italy, Spain, Switzerland, Belgium, Holland, Denmark, Sweden, and Norway. In England, it has been continuous since 1877. Of the great countries, Russia is the only one in which it has not yet taken place, and among the masses of the Russian population we find less education, more poverty, a higher deathrate, and a greater amount of disease, than in any other great, or even small, civilized country.

It is sometimes said, indeed, that the decline of the birthrate is not entirely due to the voluntary control of procreation. It is undoubtedly true that certain other elements, common under civilized conditions, such as the postponement of marriage in women to a comparatively late age, tend to diminish the size of the family. But when all such allowances have been made, the decline is still found to be real and large. This has been shown, for instance, by the statistical analyses made by Arthur Newsholme and T.H.C. Stevenson, and by G. Yule, both published in _Journal Royal Statistical Society_, April, 1906.

Some have supposed that, since the Catholic Church forbids incomplete sexual intercourse, this movement for the control of procreation will involve a relatively much greater increase among Catholic than among non-Catholic populations. This, however, is only correct under certain conditions. It is quite true that in Ireland there has been no fall in the birthrate, and that the fall is but little marked in those Lancashire towns which possess a large Irish element. But in Belgium, Italy, Spain, and other mainly Catholic countries, the decline in the birthrate is duly taking place. What has happened is that the Church--always alive to sexual questions--has realized the importance of the modern movement, and has adapted herself to it, by proclaiming to her more ignorant and uneducated children that incomplete intercourse is a deadly sin, while at the same time refraining from making inquiries into this matter among her more educated members. The question was definitely

brought up for Papal judgment, in 1842, by Bishop Bouvier of Le Mans, who stated the matter very clearly, representing to the Pope (Gregory XVI) that the prevention of conception was becoming very common, and that to treat it as a deadly sin merely resulted in driving the penitent away from confession. After mature consideration, the Curia Sacra Poenitentiaria replied by pointing out, as regards the common method of withdrawal before emission, that since it was due to the wrong act of the man, the woman who has been forced by her husband to consent to it, has committed no sin. Further, the Bishop was reminded of the wise dictum of Liguori, "the most learned and experienced man in these matters," that the confessor is not usually called upon to make inquiry upon so delicate a matter as the _debitum conjugale_, and, if his opinion is not asked, he should be silent (Bouvier, _Dissertatio in sextum Decalogi præceptum; supplementum ad Tractatum de Matrimonio_. 1849, pp. 179-182; quoted by Hans Ferdy, _Sexual-Probleme_, Aug., 1908, p. 498). We see, therefore, that, among Catholic as well as among non-Catholic populations, the adoption of preventive methods of conception follows progress and civilization, and that the general practice of such methods by Catholics (with the tacit consent of the Church) is merely a matter of time.

From time to time many energetic persons have noisily demanded that a stop should be put to the decline of the birthrate, for, they argue, it means "race suicide." It is now beginning to be realized, however, that this outcry was a foolish and mischievous mistake. It is impossible to walk through the streets of any great city, full of vast numbers of persons who, obviously, ought never to have been born, without recognizing that the birthrate is as yet very far above its normal and healthy limit. The greatest States have often been the smallest so far as mere number of citizens is concerned, for it is quality not quantity that counts. And while it is true that the increase of the best types of citizens can only enrich a State, it is now becoming intolerable that a nation should increase by the mere dumping down of procreative refuse in its midst. It is beginning to be realized that this process not only depreciates the quality of a people but imposes on a State an inordinate financial burden.

It is now well recognized that large families are associated with degeneracy, and, in the widest sense, with abnormality of every kind. Thus, it is undoubtedly true that men of genius tend to belong to very large families, though it may be pointed out to those who fear an alarming decrease of genius from the tendency to the limitation of the family, that the position in the family most often occupied by the child of genius is the firstborn. (See Havelock Ellis, _A Study of British Genius_, pp. 115-120). The insane, the idiotic, imbecile, and weak-minded, the criminal, the epileptic, the hysterical, the neurasthenic, the tubercular, all, it would appear, tend to belong to large families (see e.g., Havelock Ellis, op. cit., p. 110; Toulouse, _Les Causes de la Folie_, p. 91; Harriet Alexander, "Malthusianism and Degeneracy," _Alienist and Neurologist_, Jan., 1901). It has, indeed, been shown by Heron, Pearson, and Goring, that not only the eldest-born, but also the second-born, are specially liable to suffer from pathological defect (insanity, criminality, tuberculosis). There is, however, it would seem, a fallacy in the common interpretation of this fact. According to Van den Velden (as quoted in _Sexual-Probleme_, May, 1909, p. 381), this tendency is fully counterbalanced by the rising mortality of children from the firstborn onward. The

greater pathological tendency of the earlier children is thus simply the result of a less stringent selection by death. So far as they show any really greater pathological tendency, apart from this fallacy, it is perhaps due to premature marriage. There is another fallacy in the frequent statement that the children in small families are more feeble than those in large families. We have to distinguish between a naturally small family, and an artificially small family. A family which is small merely as the result of the feeble procreative energy of the parents, is likely to be a feeble family; a family which is small as the result of the deliberate control of the parents, shows, of course, no such tendency.

These considerations, it will be seen, do not modify the tendency of the large family to be degenerate. We may connect this phenomenon with the disposition, often shown by nervously unsound and abnormal persons, to believe that they have a special aptitude to procreate fine children. "I believe that everyone has a special vocation," said a man to Marro (_La Pubertà_, p. 459); "I find that it is my vocation to beget superior children." He begat four,--an epileptic, a lunatic, a dipsomaniac, and a valetudinarian,--and himself died insane. Most people have come across somewhat similar, though perhaps less marked, cases of this delusion. In a matter of such fateful gravity to other human beings, no one can safely rely on his own unsupported impressions.

The demand of national efficiency thus corresponds with the demand of developing humanitarianism, which, having begun by attempting to ameliorate the conditions of life, has gradually begun to realize that it is necessary to go deeper and to ameliorate life itself. For while it is undoubtedly true that much may be done by acting systematically on the conditions of life, the more searching analysis of evil environmental conditions only serves to show that in large parts they are based in the human organism itself and were not only pre-natal, but pre-conceptional, being involved in the quality of the parental or ancestral organisms.

Putting aside, however, all humanitarian considerations, the serious error of attempting to stem the progress of civilization in the direction of procreative control could never have occurred if the general tendencies of zoölogical evolution had been understood, even in their elements. All zoölogical progress is from the more prolific to the less prolific; the higher the species the less fruitful are its individual members. The same tendency is found within the limits of the human species, though not in an invariable straight line; the growth of civilization involves a diminution in fertility. This is by no means a new phenomenon; ancient Rome and later Geneva, "the Protestant Rome," bear witness to it; no doubt it has occurred in every high centre of moral and intellectual culture, although the data for measuring the tendency no longer exist. When we take a sufficiently wide and intelligent survey, we realize that the tendency of a community to slacken its natural rate of increase is an essential phenomenon of all advanced civilization. The more intelligent nations have manifested the tendency first, and in each nation the more educated classes have taken the lead, but it is only a matter of time to bring all civilized nations, and all social classes in each nation, into line.[429] This movement, we have to remember--in opposition to the ignorant outcry of certain would-be moralists and politicians--is a

beneficent movement. It means a greater regard to the quality than to the quantity of the increase; it involves the possibility of combating successfully the evils of high mortality, disease, overcrowding, and all the manifold misfortunes which inevitably accompany a too exuberant birthrate. For it is only in a community which increases slowly that it is possible to secure the adequate economic adjustment and environmental modifications necessary for a sane and wholesome civic and personal life.[430] If those persons who raise the cry of "race suicide" in face of the decline of the birthrate really had the knowledge and intelligence to realize the manifold evils which they are invoking they would deserve to be treated as criminals.

On the practical side a knowledge of the possibility of preventing conception has, doubtless, never been quite extinct in civilization and even in lower stages of culture, though it has mostly been utilized for ends of personal convenience or practiced in obedience to conventional social rules which demanded chastity, and has only of recent times been made subservient to the larger interests of society and the elevation of the race. The theoretical basis of the control of procreation, on its social and economic, as distinct from its eugenic, aspects, may be said to date from Malthus's famous _Essay on Population_, first published in 1798, an epoch-marking book,--though its central thesis is not susceptible of actual demonstration,--since it not only served as the starting-point of the modern humanitarian movement for the control of procreation, but also furnished to Darwin (and independently to Wallace also) the fruitful idea which was finally developed into the great evolutionary theory of natural selection.

Malthus, however, was very far from suggesting that the control of procreation, which he advocated for the benefit of mankind, should be exercised by the introduction of preventive methods into sexual intercourse. He believed that civilization involved an increased power of self-control, which would make it possible to refrain altogether from sexual intercourse, when such self-restraint was demanded in the interests of humanity. Later thinkers realized, however, that, while it is undoubtedly true that civilization involves greater forethought and greater self-control, we cannot anticipate that those qualities should be developed to the extent demanded by Malthus, especially when the impulse to be controlled is of so powerful and explosive a nature.

James Mill was the pioneer in advocating Neo-Malthusian methods, though he spoke cautiously. In 1818, in the article "Colony" in the supplement to the _Encyclopædia Britannica_, after remarking that the means of checking the unrestricted increase of the population constitutes "the most important practical problem to which the wisdom of the politician and moralist can be applied," he continued: "If the superstitions of the nursery were discarded, and the principle of utility kept steadily in view, a solution might not be very difficult to be found." Four years later, James Mill's friend, the Radical reformer, Francis Place, more distinctly expressed the thought that was evidently in Mill's mind. After enumerating the facts concerning the necessity of self-control in procreation and the evils of early marriage, which he thinks ought to be clearly taught, Place continues: "If a hundredth, perhaps a thousandth part of the pains were taken to teach these truths, that are taken to

teach dogmas, a great change for the better might, in no considerable space of time, be expected to take place in the appearance and the habits of the people. If, above all, it were once clearly understood that it was not disreputable for married persons to avail themselves of such precautionary means as would, without being injurious to health, or destructive of female delicacy, prevent conception, a sufficient check might at once be given to the increase of population beyond the means of subsistence; vice and misery, to a prodigious extent, might be removed from society, and the object of Mr. Malthus, Mr. Godwin, and of every philanthropic person, be promoted, by the increase of comfort, of intelligence, and of moral conduct, in the mass of the population. The course recommended will, I am fully persuaded, at some period be pursued by the people even if left to themselves."[431]

It was not long before Place's prophetic words began to be realized, and in another half century the movement was affecting the birthrate of all civilized lands, though it can scarcely yet be said that justice has been done to the pioneers who promoted it in the face of much persecution from the ignorant and superstitious public whom they sought to benefit. In 1831, Robert Dale Owen, the son of Robert Owen, published his _Moral Physiology_, setting forth the methods of preventing conception. A little later the brothers George and Charles Drysdale (born 1825 and 1829), two ardent and unwearying philanthropists, devoted much of their energy to the propagation of Neo-Malthusian principles. George Drysdale, in 1854, published his _Elements of Social Science_, which during many years had an enormous circulation all over Europe in eight different languages. It was by no means in every respect a scientific or sound work, but it certainly had great influence, and it came into the hands of many who never saw any other work on sexual topics. Although the Neo-Malthusian propagandists of those days often met with much obloquy, their cause was triumphantly vindicated in 1876, when Charles Bradlaugh and Mrs. Besant, having been prosecuted for disseminating Neo-Malthusian pamphlets, the charge was dismissed, the Lord Chief Justice declaring that so ill-advised and injudicious a charge had probably never before been made in a court of justice. This trial, even by its mere publicity and apart from its issue, gave an enormous impetus to the Neo-Malthusian movement. It is well known that the steady decline in the English birthrate begun in 1877, the year following the trial. There could be no more brilliant illustration of the fact, that what used to be called "the instruments of Providence" are indeed unconscious instruments in bringing about great ends which they themselves were far from either intending or desiring.

In 1877, Dr. C.R. Drysdale founded the Malthusian League, and edited a periodical, _The Malthusian_, aided throughout by his wife, Dr. Alice Drysdale Vickery. He died in 1907. (The noble and pioneering work of the Drysdales has not yet been adequately recognized in their own country; an appreciative and well-informed article by Dr. Hermann Rohleder, "Dr. C.R. Drysdale, Der Hauptvortreter der Neumalthusianische Lehre," appeared in the _Zeitschrift für Sexualwissenschaft_, March, 1908). There are now societies and periodicals in all civilized countries for the propagation of Neo-Malthusian principles, as they are still commonly called, though it would be desirable to avoid the use of Malthus's name in this connection. In the medical profession, the advocacy of preventive methods of

sexual intercourse, not on social, but on medical and hygienic grounds, began same thirty years ago, though in France, at an earlier date, Raciborski advocated the method of avoiding the neighborhood of menstruation. In Germany, Dr. Mensinga, the gynæcologist, is the most prominent advocate, on medical and hygienic grounds, of what he terms "facultative sterility," which he first put forward about 1889. In Russia, about the same time, artificial sterility was first openly advocated by the distinguished gynæcologist, Professor Ott, at the St. Petersburg Obstetric and Gynæcological Society. Such medical recommendations, in particular cases, are now becoming common.

There are certain cases in which a person ought not to marry at all; this is so, for instance, when there has been an attack of insanity; it can never be said with certainty that a person who has had one attack of insanity will not have another, and persons who have had such attacks ought not, as Blandford says (Lumleian Lectures on Insanity, _British Medical Journal_, April 20, 1895), "to inflict on their partner for life, the anxiety, and even danger, of another attack." There are other and numerous cases in which marriage may be permitted, or may have already taken place, under more favorable circumstances, but where it is, or has become, highly desirable that there should be no children. This is the case when a first attack of insanity occurs after marriage, the more urgently if the affected party is the wife, and especially if the disease takes the form of puerperal mania. "What can be more lamentable," asks Blandford (loc. cit.), "than to see a woman break down in childbed, recover, break down again with the next child, and so on, for six, seven, or eight children, the recovery between each being less and less, until she is almost a chronic maniac?" It has been found, moreover, by Tredgold (_Lancet_, May 17, 1902), that among children born to insane mothers, the mortality is twice as great as the ordinary infantile mortality, in even the poorest districts. In cases of unions between persons with tuberculous antecedents, also, it is held by many (e.g., by Massalongo, in discussing tuberculosis and marriage at the Tuberculosis Congress, at Naples, in 1900) that every precaution should be taken to make the marriage childless. In a third class of cases, it is necessary to limit the children to one or two; this happens in some forms of heart disease, in which pregnancy has a progressively deteriorating effect on the heart (Kisch, _Therapeutische Monatsheft_, Feb., 1898, and _Sexual Life of Woman_; Vinay, _Lyon Medical_, Jan. 8, 1889); in some cases of heart disease, however, it is possible that, though there is no reason for prohibiting marriage, it is desirable for a woman not to have any children (J.F. Blacker, "Heart Disease in Relation to Pregnancy," _British Medical Journal_, May 25, 1907).

In all such cases, the recommendation of preventive methods of intercourse is obviously an indispensable aid to the physician in emphasizing the supremacy of hygienic precautions. In the absence of such methods, he can never be sure that his warnings will be heard, and even the observance of his advice would be attended with various undesirable results. It sometimes happens that a married couple agree, even before marriage, to live together without sexual relations, but, for various reasons, it is seldom found possible or convenient to maintain this resolution for a long period.

It is the recognition of these and similar considerations which has led--though only within recent years--on the one hand, as we have seen, to the embodiment of the control of procreation into the practical morality of all civilized nations, and, on the other hand, to the assertion, now perhaps without exception, by all medical authorities on matters of sex that the use of the methods of preventing conception is under certain circumstances urgently necessary and quite harmless.[432] It arouses a smile to-day when we find that less than a century ago it was possible for an able and esteemed medical author to declare that the use of "various abominable means" to prevent conception is "based upon a most presumptuous doubt in the conservative power of the Creator."[433]

The adaptation of theory to practice is not yet complete, and we could not expect that it should be so, for, as we have seen, there is always an antagonism between practical morality and traditional morality. From time to time flagrant illustrations of this antagonism occur.[434] Even in England, which played a pioneering part in the control of procreation, attempts are still made--sometimes in quarters where we have a right to expect a better knowledge--to cast discredit on a movement which, since it has conquered alike scientific approval and popular practice, it is now idle to call in question.

It would be out of place to discuss here the various methods which are used for the control of procreation, or their respective merits and defects. It is sufficient to say that the condom or protective sheath, which seems to be the most ancient of all methods of preventing conception, after withdrawal, is now regarded by nearly all authorities as, when properly used, the safest, the most convenient, and the most harmless method.[435] This is the opinion of Krafft-Ebing, of Moll, of Schrenck-Notzing, of Löwenfeld, of Forel, of Kisch, of Fürbringer, to mention only a few of the most distinguished medical authorities.[436]

There is some interest in attempting to trace the origin and history of the condom, though it seems impossible to do so with any precision. It is probable that, in a rudimentary form, such an appliance is of great antiquity. In China and Japan, it would appear, rounds of oiled silk paper are used to cover the mouth of the womb, at all events, by prostitutes. This seems the simplest and most obvious mechanical method of preventing conception, and may have suggested the application of a sheath to the penis as a more effectual method. In Europe, it is in the middle of the sixteenth century, in Italy, that we first seem to hear of such appliances, in the shape of linen sheaths, adapted to the shape of the penis; Fallopius recommended the use of such an appliance. Improvements in the manufacture were gradually devised; the cæcum of the lamb was employed, and afterwards, isinglass. It appears that a considerable improvement in the manufacture took place in the seventeenth or eighteenth century, and this improvement was generally associated with England. The appliance thus became known as the English cape or mantle, the "capote anglaise," or the "redingote anglaise," and, under the latter name, is referred to by Casanova, in the middle of the eighteenth century (Casanova, _Mémoires_, ed. Garnier, vol. iv, p. 464); Casanova never seems, however, to have used these redingotes himself, not caring, he said, "to shut myself up in a piece of dead skin in order to prove that I am perfectly alive."

These capotes--then made of goldbeaters' skin--were, also, it appears, known at an earlier period to Mme. de Sévigné, who did not regard them with favor, for, in one of her letters, she refers to them as "cuirasses contre la volupté et toiles d'arraignée contre le mal." The name, "condom," dates from the eighteenth century, first appearing in France, and is generally considered to be that of an English physician, or surgeon, who invented, or, rather, improved the appliance. Condom is not, however, an English name, but there is an English name, Condon, of which "condom" may well be a corruption. This supposition is strengthened by the fact that the word sometimes actually was written "condon." Thus, in lines quoted by Bachaumont, in his _Diary_ (Dec. 15, 1773), and supposed to be addressed to a former ballet dancer who had become a prostitute, I find:--

"Du _condon_ cependant, vous connaissez l'usage, * * * * * "Le _condon_, c'est la loi, ma fille, et les prophètes!"

The difficulty remains, however, of discovering any Englishman of the name of Condon, who can plausibly be associated with the condom; doubtless he took no care to put the matter on record, never suspecting the fame that would accrue to his invention, or the immortality that awaited his name. I find no mention of any Condon in the records of the College of Physicians, and at the College of Surgeons, also, where, indeed, the old lists are very imperfect, Mr. Victor Plarr, the librarian, after kindly making a search, has assured me that there is no record of the name. Other varying explanations of the name have been offered, with more or less assurance, though usually without any proofs. Thus, Hyrtl (_Handbuch der Topographischen Anatomic_, 7th ed., vol. ii, p. 212) states that the condom was originally called gondom, from the name of the English discoverer, a Cavalier of Charles II's Court, who first prepared it from the amnion of the sheep; Gondom is, however, no more an English name than Condom. There happens to be a French town, in Gascony, called Condom, and Bloch suggests, without any evidence, that this furnished the name; if so, however, it is improbable that it would have been unknown in France. Finally, Hans Ferdy considers that it is derived from "condus"--that which preserves--and, in accordance with his theory, he terms the condom a condus.

The early history of the condom is briefly discussed by various writers, as by Proksch, _Die Vorbauung der Venerischen Krankheiten_, p. 48; Bloch, _Sexual Life of Our Time_, Chs. XV and XXVIII; Cabanès, _Indiscretions de l'Histoire_, p. 121, etc.

The control of procreation by the prevention of conception has, we have seen, become a part of the morality of civilized peoples. There is another method, not indeed for preventing conception, but for limiting offspring, which is of much more ancient appearance in the world, though it has at different times been very differently viewed and still arouses widely opposing opinions. This is the method of abortion.

While the practice of abortion has by no means, like the practice of preventing conception, become accepted in civilization, it scarcely appears to excite profound repulsion in a large proportion of the population of civilized countries. The majority of women, not excluding educated and highly moral women, who become pregnant against their wish contemplate the possibility of procuring abortion without the

slightest twinge of conscience, and often are not even aware of the usual professional attitude of the Church, the law, and medicine regarding abortion. Probably all doctors have encountered this fact, and even so distinguished and correct a medico-legist as Brouardel stated[437] that he had been not infrequently solicited to procure abortion, for themselves or their wet-nurses, by ladies who looked on it as a perfectly natural thing, and had not the least suspicion that the law regarded the deed as a crime.

It is not, therefore, surprising that abortion is exceedingly common in all civilized and progressive countries. It cannot, indeed, unfortunately, be said that abortion has been conducted in accordance with eugenic considerations, nor has it often been so much as advocated from the eugenic standpoint. But in numerous classes of cases of undesired pregnancy, occurring in women of character and energy, not accustomed to submit tamely to conditions they may not have sought, and in any case consider undesirable, abortion is frequently resorted to. It is usual to regard the United States as a land in which the practice especially flourishes, and certainly a land in which the ideal of chastity for unmarried women, of freedom for married women, of independence for all, is actively followed cannot fail to be favorable to the practice of abortion. But the way in which the prevalence of abortion is proclaimed in the United States is probably in large part due to the honesty of the Americans in setting forth, and endeavoring to correct, what, rightly or wrongly, they regard as social defects, and may not indicate any real pre-eminence in the practice. Comparative statistics are difficult, and it is certainly true that abortion is extremely common in England, in France, and in Germany. It is probable that any national differences may be accounted for by differences in general social habits and ideals. Thus in Germany, where considerable sexual freedom is permitted to unmarried women and married women are very domesticated, abortion may be less frequent than in France where purity is stringently demanded from the young girl, while the married woman demands freedom for work and for pleasure. But such national differences, if they exist, are tending to be levelled down, and charges of criminal abortion are constantly becoming more common in Germany; though this increase, again, may be merely due to greater zeal in pursuing the offence.

Brouardel (op. cit., p. 39) quotes the opinion that, in New York, only one in every thousand abortions is discovered. Dr. J.F. Scott (_The Sexual Instinct_, Ch. VIII), who is himself strongly opposed to the practice, considers that in America, the custom of procuring abortion has to-day reached "such vast proportions as to be almost beyond belief," while "countless thousands" of cases are never reported. "It has increased so rapidly in our day and generation," Scott states, "that it has created surprise and alarm in the minds of all conscientious persons who are informed of the extent to which it is carried." (The assumption that those who approve of abortion are necessarily not "conscientious persons" is, as we shall see, mistaken.) The change has taken place since 1840. The Michigan Special Committee on Criminal Abortion reported in 1881 that, from correspondence with nearly one hundred physicians, it appeared that there came to the knowledge of the profession seventeen abortions to every one hundred pregnancies; to these, the committee believe, may be added as many more that never came to the physician's knowledge. The committee further

quoted, though without endorsement, the opinion of a physician who believed that a change is now coming over public feeling in regard to the abortionist, who is beginning to be regarded in America as a useful member of society, and even a benefactor.

In England, also, there appears to have been a marked increase of abortion during recent years, perhaps specially marked among the poor and hard-working classes. A writer in the _British Medical Journal_ (April 9, 1904, p. 865) finds that abortion is "wholesale and systematic," and gives four cases occurring in his practice during four months, in which women either attempted to produce abortion, or requested him to do so; they were married women, usually with large families, and in delicate health, and were willing to endure any suffering, if they might be saved from further child-bearing. Abortion is frequently effected, or attempted, by taking "Female Pills," which contain small portions of lead, and are thus liable to produce very serious symptoms, whether or not they induce abortion. Professor Arthur Hall, of Sheffield, who has especially studied this use of lead ("The Increasing Use of Lead as an Abortifacient," _British Medical Journal_, March 18, 1905), finds that the practice has lately become very common in the English Midlands, and is gradually, it appears, widening its circle. It occurs chiefly among married women with families, belonging to the working class, and it tends to become specially prevalent during periods of trade depression (cf. G. Newman, _Infant Mortality_, p. 81). Women of better social class resort to professional abortionists, and sometimes go over to Paris.

In France, also, and especially in Paris, there has been a great increase during recent years in the practice of abortion. (See e.g., a discussion at the Paris Société de Médecine Légale, _Archives d'Anthropologie Criminelle_, May, 1907.) Doléris has shown (_Bulletin de la Société d'Obstétrique_, Feb., 1905) that in the Paris Maternités the percentage of abortions in pregnancies doubled between 1898 and 1904, and Doléris estimates that about half of these abortions were artificially induced. In France, abortion is mainly carried on by professional abortionists. One of these, Mme. Thomas, who was condemned to penal servitude, in 1891, acknowledged performing 10,000 abortions during eight years; her charge for the operation was two francs and upwards. She was a peasant's daughter, brought up in the home of her uncle, a doctor, whose medical and obstetrical books she had devoured (A. Hamon, _La France en 1891_, pp. 629-631). French public opinion is lenient to abortion, especially to women who perform the operation on themselves; not many cases are brought into court, and of these, forty per cent. are acquitted (Eugène Bausset, _L'Avortement Criminel_, Thèse de Paris, 1907). The professional abortionist is, however, usually sent to prison.

In Germany, also, abortion appears to have greatly increased during recent years, and the yearly number of cases of criminal abortion brought into the courts was, in 1903, more than double as many as in 1885. (See, also, Elisabeth Zanzinger, _Geschlecht und Gesellschaft_, Bd. II, Heft 5; and _Sexual-Probleme_, Jan., 1908, p. 23.)

In view of these facts it is not surprising that the induction of abortion has been permitted and even encouraged in many civilizations. Its unqualified condemnation is

only found in Christendom, and is due to theoretical notions. In Turkey, under ordinary circumstances, there is no punishment for abortion. In the classic civilization of Greece and Rome, likewise, abortion was permitted though with certain qualifications and conditions. Plato admitted the mother's right to decide on abortion but said that the question should be settled as early as possible in pregnancy. Aristotle, who approved of abortion, was of the same opinion. Zeno and the Stoics regarded the foetus as the fruit of the womb, the soul being acquired at birth; this was in accordance with Roman law which decreed that the foetus only became a human being at birth.[438] Among the Romans abortion became very common, but, in accordance with the patriarchal basis of early Roman institutions, it was the father, not the mother, who had the right to exercise it. Christianity introduced a new circle of ideas based on the importance of the soul, on its immortality, and the necessity of baptism as a method of salvation from the results of inherited sin. We already see this new attitude in St. Augustine who, discussing whether embryos that died in the womb will rise at the resurrection, says "I make bold neither to affirm nor to deny, although I fail to see why, if they are not excluded from the number of the dead, they should not attain to the resurrection of the dead."[439] The criminality of abortion was, however, speedily established, and the early Christian Emperors, in agreement with the Church, edicted many fantastic and extreme penalties against abortion. This tendency continued under ecclesiastical influence, unrestrained, until the humanitarian movement of the eighteenth century, when Beccaria, Voltaire, Rousseau and other great reformers succeeded in turning the tide of public opinion against the barbarity of the laws, and the penalty of death for abortion was finally abolished.[440]

Medical science and practice at the present day--although it can scarcely be said that it speaks with an absolutely unanimous voice--on the whole occupies a position midway between that of the classic lawyers and that of the later Christian ecclesiastics. It is, on the whole, in favor of sacrificing the foetus whenever the interests of the mother demand such a sacrifice. General medical opinion is not, however, prepared at present to go further, and is distinctly disinclined to aid the parents in exerting an unqualified control over the foetus in the womb, nor is it yet disposed to practice abortion on eugenic grounds. It is obvious, indeed, that medicine cannot in this matter take the initiative, for it is the primary duty of medicine to save life. Society itself must assume the responsibility of protecting the race.

Dr. S. Macvie ("Mother _versus_ Child," _Transactions Edinburgh Obstetrical Society_, vol. xxiv, 1899) elaborately discusses the respective values of the foetus and the adult on the basis of life-expectancy, and concludes that the foetus is merely "a parasite performing no function whatever," and that "unless the life-expectancy of the child covers the years in which its potentiality is converted into actuality, the relative values of the maternal and foetal life will be that of actual as against potential." This statement seems fairly sound. Ballantyne (_Manual of Antenatal Pathology: The Foetus_, p. 459) endeavors to make the statement more precise by saying that "the mother's life has a value, because she is what she is, while the foetus only has a possible value, on account of what it may become."

Durlacher, among others, has discussed, in careful and cautious detail, the various conditions in which the physician should, or should not, induce abortion in the interests of the mother ("Der Künstliche Abort," _Wiener Klinik_, Aug. and Sept., 1906); so also, Eugen Wilhelm ("Die Abtreibung und das Recht des Arztes zur Vernichtung der Leibesfrucht," _Sexual-Probleme_, May and June, 1909). Wilhelm further discusses whether it is desirable to alter the laws in order to give the physician greater freedom in deciding on abortion. He concludes that this is not necessary, and might even act injuriously, by unduly hampering medical freedom. Any change in the law should merely be, he considers, in the direction of asserting that the destruction of the foetus is not abortion in the legal sense, provided it is indicated by the rules of medical science. With reference to the timidity of some medical men in inducing abortion, Wilhelm remarks that, even in the present state of the law, the physician who conscientiously effects abortion, in accordance with his best knowledge, even if mistakenly, may consider himself safe from all legal penalties, and that he is much more likely to come in conflict with the law if it can be proved that death followed as a result of his neglect to induce abortion.

Pinard, who has discussed the right to control the foetal life (_Annales de Gynécologie_, vols. lii and liii, 1899 and 1900), inspired by his enthusiastic propaganda for the salvation of infant life, is led to the unwarranted conclusion that no one has the rights of life and death over the foetus; "the infant's right to his life is an imprescriptible and sacred right, which no power can take from him." There is a mistake here, unless Pinard deliberately desires to place himself, like Tolstoy, in opposition to current civilized morality. So far from the infant having any "imprescriptible right to life," even the adult has, in human societies, no such inalienable right, and very much less the foetus, which is not strictly a human being at all. We assume the right of terminating the lives of those individuals whose anti-social conduct makes them dangerous, and, in war, we deliberately terminate, amid general applause and enthusiasm, the lives of men who have been specially selected for this purpose on account of their physical and general efficiency. It would be absurdly inconsistent to say that we have no rights over the lives of creatures that have, as yet, no part in human society at all, and are not so much as born. We are here in presence of a vestige of ancient theological dogma, and there can be little doubt that, on the theoretical side at all events, the "imprescriptible right" of the embryo will go the same way as the "imprescriptible right" of the spermatozöon. Both rights are indeed "imprescriptible."

Of recent years a new, and, it must be admitted, somewhat unexpected, aspect of this question of abortion has been revealed. Hitherto it has been a question entirely in the hands of men, first, following the Roman traditions, in the hands of Christian ecclesiastics, and later, in those of the professional castes. Yet the question is in reality very largely, and indeed mainly, a woman's question, and now, more especially in Germany, it has been actively taken up by women. The Gräfin Gisela Streitberg occupies the pioneering place in this movement with her book _Das Recht zur Beiseitigung Keimenden Lebens_, and was speedily followed, from 1897 onwards, by a number of distinguished women who occupy a prominent place in the German woman's movement, among others Helene Stöcker, Oda Olberg, Elisabeth Zanzinger,

Camilla Jellinek. All these writers insist that the foetus is not yet an independent human being, and that every woman, by virtue of the right over her own body, is entitled to decide whether it shall become an independent human being. At the Woman's Congress held in the autumn of 1905, a resolution was passed demanding that abortion should only be punishable when effected by another person against the wish of the pregnant women herself.[441] The acceptance of this resolution by a representative assembly is interesting proof of the interest now taken by women in the question, and of the strenuous attitude they are tending to assume.

Elisabeth Zanzinger ("Verbrechen gegen die Leibesfrucht," _Geschlecht und Gesellschaft_, Bd. II, Heft 5, 1907) ably and energetically condemns the law which makes abortion a crime. "A woman herself is the only legitimate possessor of her own body and her own health.... Just as it is a woman's private right, and most intimate concern, to present her virginity as her best gift to the chosen of her heart, so it is certainly a pregnant woman's own private concern if, for reasons which seem good to her, she decides to destroy the results of her action." A woman who destroys the embryo which might become a burden to the community, or is likely to be an inferior member of society, this writer urges, is doing a service to the community, which ought to reward her, perhaps by granting her special privileges as regards the upbringing of her other children. Oda Olberg, in a thoughtful paper ("Ueber den Juristischen Schutz des Keimenden Lebens," _Die Neue Generation_, June, 1908), endeavors to make clear all that is involved in the effort to protect the developing embryo against the organism that carries it, to protect a creature, that is, against itself and its own instincts. She considers that most of the women who terminate their pregnancies artificially would only have produced undesirables, for the normal, healthy, robust woman has no desire to effect abortion. "There are women who are psychically sterile, without being physically so, and who possess nothing of motherhood but the ability to bring forth. These, when they abort, are simply correcting a failure of Nature." Some of them, she remarks, by going on to term, become guilty of the far worse offence of infanticide. As for the women who desire abortion merely from motives of vanity, or convenience, Oda Olberg points out that the circles in which these motives rule are quite able to limit their children without having to resort to abortion. She concludes that society must protect the young life in every way, by social hygiene, by laws for the protection of the workers, by spreading a new morality on the basis of the laws of heredity. But we need no law to protect the young creature against its own mother, for a thousand natural forces are urging the mother to protect her own child, and we may be sure that she will not disobey these forces without very good reasons. Camilla Jellinek, again (_Die Strafrechtsreform_, etc., Heidelberg, 1909), in a powerful and well-informed address before the Associated German Frauenvereine, at Breslau, argues in the same sense.

The lawyers very speedily came to the assistance of the women in this matter, the more readily, no doubt, since the traditions of the greatest and most influential body of law already pointed, on one side at all events, in the same direction. It may, indeed, be claimed that it was from the side of law--and in Italy, the classic land of legal reform--that this new movement first begun. In 1888, Balestrini published, at Turin, his _Aborto, Infanticidio ed Esposizione d'Infante_, in which he argued that the

penalty should be removed from abortion. It was a very able and learned book, inspired by large ideas and a humanitarian spirit, but though its importance is now recognized, it cannot be said that it attracted much attention on publication.

It is especially in Germany that, during recent years, lawyers have followed women reformers, by advocating, more or less completely, the abolition of the punishment for abortion. So distinguished an authority as Von Liszt, in a private letter to Camilla Jellinek (op. cit.), states that he regards the punishment of abortion as "very doubtful," though he considers its complete abolition impracticable; he thinks abortion might be permitted during the early months of pregnancy, thus bringing about a return of the old view. Hans Gross states his opinion (_Archiv für Kriminal-Anthropologie_, Bd. XII, p. 345) that the time is not far distant when abortion will no longer be punished. Radbruch and Von Lilienthal speak in the same sense. Weinberg has advocated a change in the law (_Mutterschutz_, 1905, Heft 8), and Kurt Hiller (_Die Neue Generation_, April, 1909), also from the legal side, argues that abortion should only be punishable when effected by a married woman, without the knowledge and consent of her husband.

The medical profession, which took the first step in modern times in the authorization of abortion, has not at present taken any further step. It has been content to lay down the principle that when the interests of the mother are opposed to those of the foetus, it is the latter which must be sacrificed. It has hesitated to take the further step of placing abortion on the eugenic basis, and of claiming the right to insist on abortion whenever the medical and hygienic interests of society demand such a step. This attitude is perfectly intelligible. Medicine has in the past been chiefly identified with the saving of lives, even of worthless and worse than worthless lives; "Keep everything alive! Keep everything alive!" nervously cried Sir James Paget. Medicine has confined itself to the humble task of attempting to cure evils, and is only to-day beginning to undertake the larger and nobler task of preventing them.

"The step from killing the child in the womb to murdering a person when out of the womb, is a dangerously narrow one," sagely remarks a recent medical author, probably speaking for many others, who somehow succeed in blinding themselves to the fact that this "dangerously narrow step" has been taken by mankind, only too freely, for thousands of years past, long before abortion was known in the world.

Here and there, however, medical authors of repute have advocated the further extension of abortion, with precautions, and under proper supervision, as an aid to eugenic progress. Thus, Professor Max Flesch (_Die Neue Generation_, April, 1909) is in favor of a change in the law permitting abortion (provided it is carried out by the physician) in special cases, as when the mother's pregnancy has been due to force, when she has been abandoned, or when, in the interests of the community, it is desirable to prevent the propagation of insane, criminal, alcoholic, or tuberculous persons.

In France, a medical man, Dr. Jean Darricarrère, has written a remarkable novel, _Le Droit d'Avortement_ (1906), which advocates the thesis that a woman always

possesses a complete right to abortion, and is the supreme judge as to whether she will or not undergo the pain and risks of childbirth. The question is, here, however, obviously placed not on medical, but on humanitarian and feminist grounds.

We have seen that, alike on the side of practice and of theory, a great change has taken place during recent years in the attitude towards abortion. It must, however, clearly be recognized that, unlike the control of procreation by methods for preventing conception, facultative abortion has not yet been embodied in our current social morality. If it is permissible to interpolate a personal opinion, I may say that to me it seems that our morality is here fairly reasonable.[442] I am decidedly of opinion that an unrestricted permission for women to practice abortion in their own interests, or even for communities to practice it in the interests of the race, would be to reach beyond the stage of civilization we have at present attained. As Ellen Key very forcibly argues, a civilization which permits, without protest, the barbarous slaughter of its carefully selected adults in war has not yet won the right to destroy deliberately even its most inferior vital products in the womb. A civilization guilty of so reckless a waste of life cannot safely be entrusted with this judicial function. The blind and aimless anxiety to cherish the most hopeless and degraded forms of life, even of unborn life, may well be a weakness, and since it often leads to incalculable suffering, even a crime. But as yet there is an impenetrable barrier against progress in this direction. Before we are entitled to take life deliberately for the sake of purifying life, we must learn how to preserve it by abolishing such destructive influences--war, disease, bad industrial conditions--as are easily within our social power as civilized nations.[443]

There is, further, another consideration which seems to me to carry weight. The progress of civilization is in the direction of greater foresight, of greater prevention, of a diminished need for struggling with the reckless lack of prevision. The necessity for abortion is precisely one of those results of reckless action which civilization tends to diminish. While we may admit that in a sounder state of civilization a few cases might still occur when the induction of abortion would be desirable, it seems probable that the number of such cases will decrease rather than increase. In order to do away with the need for abortion, and to counteract the propaganda in its favor, our main reliance must be placed, on the one hand, on increased foresight in the determination of conception and increased knowledge of the means for preventing conception,[444] and on the other hand, on a better provision by the State for the care of pregnant women, married and unmarried alike, and a practical recognition of the qualified mother's claim on society.[445] There can be little doubt that, in many a charge of criminal abortion, the real offence lies at the door of those who have failed to exercise their social and professional duty of making known the more natural and harmless methods for preventing conception, or else by their social attitude have made the pregnant woman's position intolerable. By active social reform in these two directions, the new movement in favor of abortion may be kept in check, and it may even be found that by stimulating such reform that movement has been beneficial.

We have seen that the deliberate restraint of conception has become a part of our civilized morality, and that the practice and theory of facultative abortion has gained

a footing among us. There remains a third and yet more radical method of controlling procreation, the method of preventing the possibility of procreation altogether by the performance of castration or other slighter operation having a like inhibitory effect on reproduction. The other two methods only effect a single act of union or its results, but castration affects all subsequent acts of sexual union and usually destroys the procreative power permanently.

Castration for various social and other purposes is an ancient and widespread practice, carried out on men and on animals. There has, however, been on the whole a certain prejudice against it when applied to men. Many peoples have attached a very sacred value to the integrity of the sexual organs. Among some primitive peoples the removal of these organs has been regarded as a peculiarly ferocious insult, only to be carried out in moments of great excitement, as after a battle. Medicine has been opposed to any interference with the sexual organs. The oath taken by the Greek physicians appears to prohibit castration: "I will not cut."[446] In modern times a great change has taken place, the castration of both men and women is commonly performed in diseased conditions; the same operation is sometimes advocated and occasionally performed in the hope that it may remove strong and abnormal sexual impulses. And during recent years castration has been invoked in the cause of negative eugenics, to a greater extent, indeed, on account of its more radical character, than either the prevention of conception or abortion.

The movement in favor of castration appears to have begun in the United States, where various experiments have been made in embodying it in law. It was first advocated merely as a punishment for criminals, and especially sexual offenders, by Hammond, Everts, Lydston and others. From this point of view, however, it seems to be unsatisfactory and perhaps illegitimate. In many cases castration is no punishment at all, and indeed a positive benefit. In other cases, when inflicted against the subject's will, it may produce very disturbing mental effects, leading in already degenerate or unbalanced persons to insanity, criminality, and anti-social tendencies generally, much more dangerous than the original state. Eugenic considerations, which were later brought forward, constitute a much sounder argument for castration; in this case the castration is carried out, by no means in order to inflict a barbarous and degrading punishment, but, with the subject's consent, in order to protect the community from the risk of useless or mischievous members.

The fact that castration can no longer be properly considered a punishment, is shown by the possibility of deliberately seeking the operation simply for the sake of convenience, as a preferable and most effective substitute for the adoption of preventive methods in sexual intercourse. I am only at present acquainted with one case in which this course has been adopted. This subject is a medical man (of Puritan New England ancestry) with whose sexual history, which is quite normal, I have been acquainted for a long time past. His present age is thirty-nine. A few years since, having a sufficiently large family, he adopted preventive methods of intercourse. The subsequent events I narrate in his own words: "The trouble, forethought, etc., rendered necessary by preventive measures, grew more and more irksome to me as the years passed by, and finally, I laid the matter before another physician, and on his

assurances, and after mature deliberation with my wife, was operated on some time since, and rendered sterile by having the vas deferens on each side exposed through a slit in the scrotum, then tied in two places with silk and severed between the ligatures. This was done under cocaine infiltrative anæsthesia, and was not so extremely painful, though what pain there was (dragging the cord out through the slit, etc.) seemed very hard to endure. I was not out of my office a single day, nor seriously disturbed in any way. In six days all stitches in the scrotum were removed, and in three weeks I abandoned the suspensory bandage that had been rendered necessary by the extreme sensitiveness of the testicles and cord.

"The operation has proved a most complete success in every way. Sexual functions are _absolutely unaffected in any way whatsoever_. There is no sense of discomfort or uneasiness in the sexual tract, and what seems strangest of all to me, is the fact that the semen, so far as one can judge by ordinary means of observation, is undiminished in quantity and unchanged in character. (Of course, the microscope would reveal its fatal lack.)

"My wife is delighted at having fear banished from our love, and, taken all in all, it certainly seems as if life would mean more to us both. Incidentally, the health of both of us seems better than usual, particularly so in my wife's case, and this she attributes to a soothing influence that is attained by allowing the seminal fluid to be deposited in a perfectly normal manner, and remain in contact with the vaginal secretions until it naturally passes off.

"This operation being comparatively new, and, as yet, not often done on others than the insane, criminal, etc., I thought it might be of interest to you. If I shed even the faintest ray of light on this greatest of all human problems ... I shall be glad indeed."

Such a case, with its so far satisfactory issue, certainly deserves to be placed on record, though it may well be that at present it will not be widely imitated.

The earliest advocacy of castration, which I have met with as a part of negative eugenics, for the specific "purpose of prophylaxis as applied to race improvement and the protection of society," is by Dr. F.E. Daniel, of Texas, and dates from 1893.[447] Daniel mixed up, however, somewhat inextricably, castration as a method of purifying the race, a method which can be carried out with the concurrence of the individual operated on, with castration as a punishment, to be inflicted for rape, sodomy, bestiality, pederasty and even habitual masturbation, the method of its performance, moreover, to be the extremely barbarous and primitive method of total ablation of the sexual organs. In more recent years somewhat more equitable, practical, and scientific methods of castration have been advocated, not involving the removal of the sexual glands or organs, and not as a punishment, but simply for the sake of protecting the community and the race from the burden of probably unproductive and possibly dangerous members. Näcke has, from 1899 onwards, repeatedly urged the social advantages of this measure.[448] The propagation of the inferior elements of society, Näcke insists, brings unhappiness into the family and is a source of great expense to the State. He regards castration as the only effective method of

prevention, and concludes that it is, therefore, our duty to adopt it, just as we have adopted vaccination, taking care to secure the consent of the subject himself or his guardian, of the civil authorities, and, if necessary, of a committee of experts. Professor Angelo Zuccarelli of Naples has also, from 1899 onwards, emphasized the importance of castration in the sterilization of the epileptic, the insane of various classes, the alcoholic, the tuberculous, and instinctive criminals, the choice of cases for operation to be made by a commission of experts who would examine school-children, candidates for public employments, or persons about to marry.[449] This movement rapidly gained ground, and in 1905 at the annual meeting of Swiss alienists it was unanimously agreed that the sterilization of the insane is desirable, and that it is necessary that the question should be legally regulated. It is in Switzerland, indeed, that the first steps have been taken in Europe to carry out castration as a measure of social prophylaxis. The sixteenth yearly report (1907) of the Cantonal asylum at Wil describes four cases of castration, two in men and two in women, performed--with the permission of the patients and the civil authorities--for social reasons; both women had previously had illegitimate children who were a burden on the community, and all four patients were sexually abnormal; the operation enabled the patients to be liberated and to work, and the results were considered in every respect satisfactory to all concerned.[450]

The introduction of castration as a method of negative eugenics has been facilitated by the use of new methods of performing it without risk, and without actual removal of the testes or ovaries. For men, there is the simple method of vasectomy, as recommended by Näcke and many others. For women, there is the corresponding, and almost equally simple and harmless method of Kehrer, by section and ligation of the Fallopian tubes through the vagina, as recommended by Kisch, or Rose's very similar procedure, easily carried out in a few minutes by an experienced hand, as recommended by Zuccarelli.

It has been found that repeated exposure to the X-rays produces sterility in both sexes, alike in animals and men, and X-ray workers have to adopt various precautions to avoid suffering from this effect. It has been suggested that the application of the X-rays would be a good substitute for castration; it appears that the effects of the application are only likely to last a few years, which, in some doubtful cases, might be an advantage. (See _British Medical Journal_, Aug. 13, 1904; ib., March 11, 1905; ib., July 6, 1907.)

It is scarcely possible, it seems to me, to view castration as a method of negative eugenics with great enthusiasm. The recklessness, moreover, with which it is sometimes proposed to apply it by law--owing no doubt to the fact that it is not so obviously repulsive as the less radical procedure of abortion--ought to render us very cautious. We must, too, dismiss the idea of castration as a punishment; as such it is not merely barbarous but degrading and is unlikely to have a beneficial effect. As a method of negative eugenics it should never be carried out except with the subject's consent. The fact that in some cases it might be necessary to enforce seclusion in the absence of castration would doubtless be a fact exerting influence in favor of such consent; but the consent is essential if the subject of the operation is to be

safeguarded from degradation. A man who has been degraded and embittered by an enforced castration might not be dangerous to posterity, but might very easily become a dangerous member of the society in which he actually lived. With due precautions and safeguards, castration may doubtless play a certain part in the elevation and improvement of the race.[451]

The methods we have been considering, in so far as they limit the procreative powers of the less healthy and efficient stocks in a community, are methods of eugenics. It must not, however, be supposed that they are the whole of eugenics, or indeed that they are in any way essential to a eugenic scheme. Eugenics is concerned with the whole of the agencies which elevate and improve the human breed; abortion and castration are methods which may be used to this end, but they are not methods of which everyone approves, nor is it always clear that the ends they effect would not better be attained by other methods; in any case they are methods of negative eugenics. There remains the field of positive eugenics, which is concerned, not with the elimination of the inferior stocks but with ascertaining which are the superior stocks and with furthering their procreative power.

While the necessity of refraining from procreation is no longer a bar to marriage, the question of whether two persons ought to marry each other still remains in the majority of cases a serious question from the standpoint of positive as well as of negative eugenics, for the normal marriage cannot fail to involve children, as, indeed, its chief and most desirable end. We have to consider not merely what are the stocks or the individuals that are unfit to breed, but also what are these stocks or individuals that are most fit to breed, and under what conditions procreation may best be effected. The present imperfection of our knowledge on these questions emphasizes the need for care and caution in approaching their consideration.

It may be fitting, at this point, to refer to the experiment of the Oneida Community in establishing a system of scientific propagation, under the guidance of a man whose ability and distinction as a pioneer are only to-day beginning to be adequately recognized. John Humphrey Noyes was too far ahead of his own day to be recognized at his true worth; at the most, he was regarded as the sagacious and successful founder of a sect, and his attempts to apply eugenics to life only aroused ridicule and persecution, so that he was, unfortunately, compelled by outside pressure to bring a most instructive experiment to a premature end. His aim and principle are set forth in an _Essay on Scientific Propagation_, printed some forty years ago, which discusses problems that are only now beginning to attract the attention of the practical man, as within the range of social politics. When Noyes turned his vigorous and practical mind to the question of eugenics, that question was exclusively in the hands of scientific men, who felt all the natural timidity of the scientific man towards the realization of his proposals, and who were not prepared to depart a hair's breadth from the conventional customs of their time. The experiment of Noyes, at Oneida, marked a new stage in the history of eugenics; whatever might be the value of the experiment--and a first experiment cannot well be final--with Noyes the questions of eugenics passed beyond the purely academic stage in which, from the time of Plato, they had peacefully reposed. "It is becoming clear," Noyes states at the outset, "that

the foundations of scientific society are to be laid in the scientific propagation of human beings." In doing this, we must attend to two things: blood (or heredity) and training; and he puts blood first. In that, he was at one with the most recent biometrical eugenists of to-day ("the nation has for years been putting its money on 'Environment,' when 'Heredity' wins in a canter," as Karl Pearson prefers to put it), and at the same time revealed the breadth of his vision in comparison with the ordinary social reformer, who, in that day, was usually a fanatical believer in the influence of training and surroundings. Noyes sets forth the position of Darwin on the principles of breeding, and the step beyond Darwin, which had been taken by Galton. He then remarks that, when Galton comes to the point where it is necessary to advance from theory to the duties the theory suggests, he "subsides into the meekest conservatism." (It must be remembered that this was written at an early stage in Galton's work.) This conclusion was entirely opposed to Noyes' practical and religious temperament. "Duty is plain; we say we ought to do it--we want to do it; but we cannot. The law of God urges us on; but the law of society holds us back. The boldest course is the safest. Let us take an honest and steady look at the law. It is only in the timidity of ignorance that the duty seems impracticable." Noyes anticipated Galton in regarding eugenics as a matter of religion.

Noyes proposed to term the work of modern science in propagation "Stirpiculture," in which he has sometimes been followed by others. He considered that it is the business of the stirpiculturist to keep in view both quantity and quality of stocks, and he held that, without diminishing quantity, it was possible to raise the quality by exercising a very stringent discrimination in selecting males. At this point, Noyes has been supported in recent years by Karl Pearson and others, who have shown that only a relatively small portion of a population is needed to produce the next generation, and that, in fact, twelve per cent. of one generation in man produces fifty per cent. of the next generation. What we need to ensure is that this small reproducing section of the population shall be the best adapted for the purpose. "The _quantity_ of production will be in direct proportion to the number of fertile females," as Noyes saw the question, "and the _value_ produced, so far as it depends on selection, will be nearly in inverse proportion to the number of fertilizing males." In this matter, Noyes anticipated Ehrenfels. The two principles to be held in mind were, "Breed from the best," and "Breed in-and-in," with a cautious and occasional introduction of new strains. (It may be noted that Reibmayr, in his recent _Entwicklungsgeschichte des Genics und Talentes_, argues that the superior races, and superior individuals, in the human species, have been produced by an unconscious adherence to exactly these principles.) "By segregating superior families, and by breeding these in-and-in, superior varieties of human beings might be produced, which would be comparable to the thoroughbreds in all the domestic races." He illustrates this by the early history of the Jews.

Noyes finally criticises the present method, or lack of method, in matters of propagation. Our marriage system, he states, "leaves mating to be determined by a general scramble." By ignoring, also, the great difference between the sexes in reproductive power, it "restricts each man, whatever may be his potency and his value, to the amount of production of which one woman, chosen blindly, may be

capable." Moreover, he continues, "practically it discriminates against the best, and in favor of the worst; for, while the good man will be limited by his conscience to what the law allows, the bad man, free from moral check, will distribute his seed beyond the legal limits, as widely as he dares." "We are safe every way in saying that there is no possibility of carrying the two precepts of scientific propagation into an institution which pretends to no discrimination, allows no suppression, gives no more liberty to the best than to the worst, and which, in fact, must inevitably discriminate the wrong way, so long as the inferior classes are most prolific and least amenable to the admonitions of science and morality." In modifying our sexual institutions, Noyes insists there are two essential points to remember: the preservation of liberty, and the preservation of the home. There must be no compulsion about human scientific propagation; it must be autonomous, directed by self-government, "by the free choice of those who love science well enough to 'make themselves eunuchs for the Kingdom of Heaven's sake.'" The home, also, must be preserved, since "marriage is the best thing for man as he is;" but it is necessary to enlarge the home, for, "if all could learn to love other children than their own, there would be nothing to hinder scientific propagation in the midst of homes far better than any that now exist."

This memorable pamphlet contains no exposition of the precise measures adopted by the Oneida Community to carry out these principles. The two essential points were, as we know, "male continence" (see _ante_ p. 553), and the enlarged family, in which all the men were the actual or potential mates of all the women, but no union for propagation took place, except as the result of reason and deliberate resolve. "The community," says H.J. Seymour, one of the original members (_The Oneida Community_, 1894, p. 5), "was a _family_, as distinctly separated from surrounding society as ordinary households. The tie that bound it together was as permanent, and at least as sacred, as that of marriage. Every man's care, and the whole of the common property, was pledged for the maintenance and protection of the women, and the support and education of the children." It is not probable that the Oneida Community presented in detail the model to which human society generally will conform. But even at the lowest estimate, its success showed, as Lord Morely has pointed out (_Diderot_, vol. ii, p. 19), "how modifiable are some of these facts of existing human character which are vulgarly deemed to be ultimate and ineradicable," and that "the discipline of the appetites and affections of sex," on which the future of civilization largely rests, is very far from an impossibility.

In many respects, the Oneida Community was ahead of its time,--and even of ours,--but it is interesting to note that, in the matter of the control of conception, our marriage system has come into line with the theory and practice of Oneida; it cannot, indeed, be said that we always control conception in accordance with eugenic principles, but the fact that such control has now become a generally accepted habit of civilization, to some extent deprives Noyes' criticism of our marriage system of the force it possessed half a century ago. Another change in our customs--the advocacy, and even the practice, of abortion and castration--would not have met with his approval; he was strongly opposed to both, and with the high moral level that ruled his community, neither was necessary to the maintenance of the stirpiculture that prevailed.

The Oneida Community endured for the space of one generation, and came to an end in 1879, by no means through a recognition of failure, but by a wise deference to external pressure. Its members, many of them highly educated, continued to cherish the memory of the practices and ideals of the Community. Noyes Miller (the author of _The Strike of a Sex_, and _Zugassant's Discovery_) to the last, looked with quiet confidence to the time when, as he anticipated, the great discovery of Noyes would be accepted and adopted by the world at large. Another member of the Community (Henry J. Seymour) wrote of the Community long afterwards that "It was an anticipation and imperfect miniature of the Kingdom of Heaven on earth."

Perhaps the commonest type of proposal or attempt to improve the biological level of the race is by the exclusion of certain classes of degenerates from marriage, or by the encouragement of better classes of the community to marry. This seems to be, at present, the most popular form of eugenics, and in so far as it is not effected by compulsion but is the outcome of a voluntary resolve to treat the question of the creation of the race with the jealous care and guardianship which so tremendously serious, so godlike, a task involves, it has much to be said in its favor and nothing against it.

But it is quite another matter when the attempt is made to regulate such an institution as marriage by law. In the first place we do not yet know enough about the principles of heredity and the transmissibility of pathological states to enable us to formulate sound legislative proposals on this basis. Even so comparatively simple a matter as the relationship of tuberculosis to heredity can scarcely be said to be a matter of common agreement, even if it can yet be claimed that we possess adequate material on which to attain a common agreement. Supposing, moreover, that our knowledge on all these questions were far more advanced than it is, we still should not have attained a position in which we could lay down general propositions regarding the desirability or the undesirability of certain classes of persons procreating. The question is necessarily an individual question, and it can only be decided when all the circumstances of the individual case have been fairly passed in review.

The objection to any legislative and compulsory regulation of the right to marry is, however, much more fundamental than the consideration that our knowledge is at present inadequate. It lies in the extraordinary confusion, in the minds of those who advocate such legislation, between legal marriage and procreation. The persons who fall into such confusion have not yet learnt the alphabet of the subject they presume to dictate about, and are no more competent to legislate than a child who cannot tell A from B is competent to read.

Marriage, in so far as it is the partnership for mutual help and consolation of two people who in such partnership are free, if they please, to exercise sexual union, is an elementary right of every person who is able to reason, who is guilty of no fraud or concealment, and who is not likely to injure the partner selected, for in that case society is entitled to interfere by virtue of its duty to protect its members. But the right to marry, thus understood, in no way involves the right to procreate. For while marriage _per se_ only affects the two individuals concerned, and in no way affects

the State, procreation, on the other hand, primarily affects the community which is ultimately made up of procreated persons, and only secondarily affects the two individuals who are the instruments of procreation. So that just as the individual couple has the first right in the question of marriage, the State has the first right in the question of procreation. The State is just as incompetent to lay down the law about marriage as the individual is to lay down the law about procreation.

That, however, is only one-half of the folly committed by those who would select the candidates for matrimony by statute. Let us suppose--as is not indeed easy to suppose--that a community will meekly accept the abstract prohibitions of the statute book and quietly go home again when the registrar of marriages informs them that they are shut out from legal matrimony by the new table of prohibited degrees. An explicit prohibition to procreate within marriage is an implicit permission to procreate outside marriage. Thus the undesirable procreation, instead of being carried out under the least dangerous conditions, is carried out under the most dangerous conditions, and the net result to the community is not a gain but a loss.

What seems usually to happen, in the presence of a formal legislative prohibition against the marriage of a particular class, is a combination of various evils. In part the law becomes a dead letter, in part it is evaded by skill and fraud, in part it is obeyed to give rise to worse evils. This happened, for instance, in the Terek district of the Caucasus where, on the demand of a medical committee, priests were prohibited from marrying persons among whose relatives or ancestry any cases of leprosy had occurred. So much and such various mischief was caused by this order that it was speedily withdrawn.[452]

If we remember that the Catholic Church was occupied for more than a thousand years in the attempt to impose the prohibition of marriage on its priesthood,--an educated and trained body of men, who had every spiritual and worldly motive to accept the prohibition, and were, moreover, brought up to regard asceticism as the best ideal in life,[453]--we may realize how absurd it is to attempt to gain the same end by mere casual prohibitions issued to untrained people with no motives to obey such prohibitions, and no ideals of celibacy.

The hopelessness and even absurdity of effecting the eugenic improvement of the race by merely placing on the statute book prohibitions to certain classes of people to enter the legal bonds of matrimony as at present constituted, reveals the weakness of those who undervalue the eugenic importance of environment. Those who affirm that heredity is everything and environment nothing seem strangely to forget that it is precisely the lower classes--those who are most subjected to the influence of bad environment--who procreate most copiously, most recklessly, and most disastrously. The restraint of procreation, and a concomitant regard for heredity, increase _pari passu_ with improvement of the environment and rise in social well-being. If even already it can be said that probably fifty per cent. of sexual intercourse--perhaps the most procreatively productive moiety--takes place outside legal marriage, it becomes obvious that statutory prohibition to the unfit classes to refrain from legal marriage merely involves their joining the procreating classes outside legal matrimony. It is also clear that if we are to neglect the factor of environment, and leave the lower

social classes to the ignorance and recklessness which are the result of such environment, the only practical method of eugenics left open is that by castration and abortion. But this method--if applied on a wholesale scale as it would need to be[454] and without reference to the consent of the individual--is entirely opposed to modern democratic feeling. Thus those short-sighted eugenists who overlook the importance of environment are overlooking the only practical channel through which their aims can be realized. Attention to procreation and attention to environment are not, as some have supposed, antagonistic, but they play harmoniously into each other's hands. The care for environment leads to a restraint on reckless procreation, and the restraint of procreation leads to improved environment.

Legislation on marriage, to be effectual, must be enacted in the home, in the school, in the doctor's consulting room. Force is helpless here; it is education that is needed, not merely instruction, but the education of the conscience and will, and the training of the emotions.

Legal action may come in to further this process of education, though it cannot replace it. Thus it is very desirable that when there has been a concealment of serious disease by a party to a marriage such concealment should be a ground for divorce. Epilepsy may be taken as typical of the diseases which should be a bar to procreation, and their concealment equivalent to an annulment of marriage.[455] In the United States the Supreme Court of Errors of Connecticut laid it down in 1906 that the Superior Court has the power to pass a decree of divorce when one of the parties has concealed the existence of epilepsy. This weighty deliverence, it has been well said,[456] marks a forward step in human progress. There are many other seriously pathological conditions in which divorce should be pronounced, or indeed, occur automatically, except when procreation has been renounced, for in that case the State is no longer concerned in the relationship, except to punish any fraud committed by concealment.

The demand that a medical certificate of health should be compulsory on marriage, has been especially made in France. In 1858, Diday, of Lyons, proposed, indeed, that all persons, without exception, should be compelled to possess a certificate of health and disease, a kind of sanitary passport. In 1872, Bertillon (Art. "Demographic," _Dictionnaire Encyclopédique des Sciences Médicales_) advocated the registration, at marriage, of the chief anthropological and pathological traits of the contracting parties (height, weight, color of hair and eyes, muscular force, size of head, condition of vision, hearing, etc., deformities and defects, etc.), not so much, however, for the end of preventing undesirable marriages, as to facilitate the study and comparison of human groups at particular periods. Subsequent demands, of a more limited and partial character, for legal medical certificates as a condition of marriage, have been made by Fournier (_Syphilis et Mariage_, 1890), Cazalis (_Le Science et le Mariage_, 1890), and Jullien (_Blenorrhagie et Mariage_, 1898). In Austria, Haskovec, of Prague ("Contrat Matrimonial et L'Hygiène Publique," _Comptes-rendus Congrès International de Médecine_, Lisbon, 1906, Section VII, p. 600), argues that, on marriage, a medical certificate should be presented, showing that the subject is exempt from tuberculosis, alcoholism, syphilis, gonorrhoea, severe mental, or

nervous, or other degenerative state, likely to be injurious to the other partner, or to the offspring. In America, Rosenberg and Aronstam argue that every candidate for marriage, male or female, should undergo a strict examination by a competent board of medical examiners, concerning (1) Family and Past History (syphilis, consumption, alcoholism, nervous, and mental diseases), and (2) Status Presens (thorough examination of all the organs); if satisfactory, a certificate of matrimonial eligibility would then be granted. It is pointed out that a measure of this kind would render unnecessary the acts passed by some States for the punishment by fine, or imprisonment, of the concealment of disease. Ellen Key also considers (_Liebe und Ehe_, p. 436) that each party at marriage should produce a certificate of health. "It seems to me just as necessary," she remarks, elsewhere (_Century of the Child_, Ch. I), "to demand medical testimony concerning capacity for marriage, as concerning capacity for military service. In the one case, it is a matter of giving life; in the other, of taking it, although certainly the latter occasion has hitherto been considered as much the more serious."

The certificate, as usually advocated, would be a private but necessary legitimation of the marriage in the eyes of the civil and religious authorities. Such a step, being required for the protection alike of the conjugal partner and of posterity, would involve a new legal organization of the matrimonial contract. That such demands are so frequently made, is a significant sign of the growth of moral consciousness in the community, and it is good that the public should be made acquainted with the urgent need for them. But it is highly undesirable that they should, at present, or, perhaps, ever, be embodied in legal codes. What is needed is the cultivation of the feeling of individual responsibility, and the development of social antagonism towards those individuals who fail to recognize their responsibility. It is the reality of marriage, and not its mere legal forms, that it is necessary to act upon.

The voluntary method is the only sound way of approach in this matter. Duclaux considered that the candidate for marriage should possess a certificate of health in much the same way as the candidate for life assurance, the question of professional secrecy, as well as that of compulsion, no more coming into one question than into the other. There is no reason why such certificates, of an entirely voluntary character, should not become customary among those persons who are sufficiently enlightened to realize all the grave personal, family, and social issues involved in marriage. The system of eugenic certification, as originated and developed by Galton, will constitute a valuable instrument for raising the moral consciousness in this matter. Galton's eugenic certificates would deal mainly with the natural virtues of superior hereditary breed--"the public recognition of a natural nobility"--but they would include the question of personal health and personal aptitude.[457]

To demand compulsory certificates of health at marriage is indeed to begin at the wrong end. It would not only lead to evasions and antagonisms but would probably call forth a reaction. It is first necessary to create an enthusiasm for health, a moral conscience in matters of procreation, together with, on the scientific side, a general habit of registering the anthropological, psychological, and pathological data concerning the individual, from birth onwards, altogether apart from marriage. The

earlier demands of Diday and Bertillon were thus not only on a sounder but also a more practicable basis. If such records were kept from birth for every child, there would be no need for special examination at marriage, and many incidental ends would be gained. There is difficulty at present in obtaining such records from the moment of birth, and, so far as I am aware, no attempts have yet been made to establish their systematic registration. But it is quite possible to begin at the beginning of school life, and this is now done at many schools and colleges in England, America, and elsewhere, more especially as regards anthropological, physiological, and psychological data, each child being submitted to a thorough and searching anthropometric examination, and thus furnished with a systematic statement of his physical condition.[458] This examination needs to be standardized and generalized, and repeated at fixed intervals. "Every individual child," as is truly stated by Dr. Dukes, the Physician to Rugby School, "on his entrance to a public school should be as carefully and as thoroughly examined as if it were for life insurance." If this procedure were general from an early age, there would be no hardship in the production of the record at marriage, and no opportunity for fraud. The _dossier_ of each person might well be registered by the State, as wills already are, and, as in the case of wills, become freely open to students when a century had elapsed. Until this has been done during several centuries our knowledge of eugenics will remain rudimentary.

There can be little doubt that the eugenic attitude towards marriage, and the responsibility of the individual for the future of the race, is becoming more recognized. It is constantly happening that persons, about to marry, approach the physician in a state of serious anxiety on this point. Urquhart, indeed (_Journal of Mental Science_, April, 1907, p. 277), believes that marriages are seldom broken off on this ground; this seems, however, too pessimistic a view, and even when the marriage is not broken off the resolve is often made to avoid procreation. Clouston, who emphasizes (_Hygiene of the Mind_, p. 74) the importance of "inquiries by each of the parties to the life-contract, by their parents and their doctors, as to heredity, temperament, and health," is more hopeful of the results than Urquhart. "I have been very much impressed, of late years," he writes (_Journal of Mental Science_, Oct., 1907, p. 710), "with the way in which this subject is taking possession of intelligent people, by the number of times one is consulted by young men and young women, proposing to marry, or by their fathers or mothers. I used to have the feeling in the back of my mind, when I was consulted, that it did not matter what I said, it would not make any difference. But it is making a difference; and I, and others, could tell of scores of marriages which were put off in consequence of psychiatric medical advice."

Ellen Key, also, refers to the growing tendency among both men and women, to be influenced by eugenic consideration in forming partnerships for life (_Century of the Child_, Ch. I). The recognition of the eugenic attitude towards marriage, the quickening of the social and individual conscience in matters of heredity, as also the systematic introduction of certification and registration, will be furthered by the growing tendency to the socialization of medicine, and, indeed, in its absence would be impossible. (See e.g., Havelock Ellis, _The Nationalization of Health_.) The growth

of the State Medical Organization of Health is steady and continuous, and is constantly covering a larger field. The day of the private practitioner of medicine--who was treated, as Duclaux (_L'Hygiène Sociale_, p. 263) put it, "like a grocer, whose shop the customer may enter and leave as he pleases, and when he pleases"--will, doubtless, soon be over. It is now beginning to be felt that health is far too serious a matter, not only from the individual but also from the social point of view, to be left to private caprice. There is, indeed, a tendency, in some quarters, to fear that some day society may rush to the opposite extreme, and bow before medicine with the same unreasoning deference that it once bowed before theology. That danger is still very remote, nor is it likely, indeed, that medicine will ever claim any authority of this kind. The spirit of medicine has, notoriously, been rather towards the assertion of scepticism than of dogma, and the fanatics in this field will always be in a hopelessly small minority.

The general introduction of authentic personal records covering all essential data--hereditary, anthropometric and pathological--cannot fail to be a force on the side of positive as well as of negative eugenics, for it would tend to promote the procreation of the fit as well as restrict that of the unfit, without any legislative compulsion. With the growth of education a regard for such records as a preliminary to marriage would become as much a matter of course as once was the regard to the restrictions imposed by Canon law, and as still is a regard to money or to caste. A woman can usually refrain from marrying a man with no money and no prospects; a man may be passionately in love with a woman of lower class than himself but he seldom marries her. It needs but a clear general perception of all that is involved in heredity and health to make eugenic considerations equally influential.

A discriminating regard to the quality of offspring will act beneficially on the side of positive eugenics by substituting the pernicious tendency to put a premium on excess of childbirth by the more rational method of putting a premium on the quality of the child. It has been one of the most unfortunate results of the mania for protesting against that decline of the birthrate which is always and everywhere the result of civilization, that there has been a tendency to offer special social or pecuniary advantages to the parents of large families. Since large families tend to be degenerate, and to become a tax on the community, since rapid pregnancies in succession are not only a serious drain on the strength of the mother but are now known to depreciate seriously the quality of the offspring, and since, moreover, it is in large families that disease and mortality chiefly prevail, all the interests of the community are against the placing of any premium on large families, even in the case of parents of good stock. The interests of the State are bound up not with the quantity but with the quality of its citizens, and the premium should be placed not on the families that reach a certain size but on the individual children that reach a certain standard; the attainment of this standard could well be based on observations made from birth to the fifth year. A premium on this basis would be as beneficial to a State as that on the merely numerical basis is pernicious.

This consideration applies with still greater force to the proposals for the "systematic endowment of motherhood" of which we hear more and more. So

moderate and judicious a social reformer as Mr. Sidney Webb writes: "We shall have to face the problem of the systematic endowment of motherhood, and place this most indispensable of all professions upon an honorable economic basis. At present it is ignored as an occupation, unremunerated, and in no way honored by the State."[459] True as this statement is, it must always be remembered that an indispensable preliminary to any proposal for the endowment of motherhood by the State is a clear conception of the kind of motherhood which the State requires. To endow the reckless and indiscriminate motherhood which we see around us, to encourage, that is, by State aid, the production of citizens a large proportion of whom the State, if it dared, would like to destroy as unfit, is too ridiculous a proposal to deserve discussion.[460] The only sound reason, indeed, for the endowment of motherhood is that it would enable the State, in its own interests, to further the natural selection of the fit.

As to the positive qualities which the State is entitled to endow in its encouragement of motherhood, it is still too early to speak with complete assurance. Negative eugenics tends to be ahead of positive eugenics; it is easier to detect bad stocks than to be quite sure of good stocks. Both on the scientific side and on the social side, however, we are beginning to attain a clearer realization of the end to be attained and a more precise knowledge of the methods of attaining it.[461]

Even when we have gained a fairly clear conception of the stocks and the individuals which we are justified in encouraging to undertake the task of producing fit citizens for the State, the problems of procreation are by no means at an end. Before we can so much as inquire what are the conditions under which selected individuals may best procreate, there is still the initial question to be decided whether those individuals are both fertile and potent, for this is not guaranteed by the fact that they belong to good stocks, nor is even the fact that a man and a woman are fertile with other persons any positive proof that they will be fertile with each other. Among the large masses of the population who do not seek to make their unions legal until those unions have proved fertile, this difficulty is settled in a simple and practical manner. The question is, however, a serious and hazardous one, in the present state of the marriage law in most countries, for those classes which are accustomed to bind themselves in legal marriage without any knowledge of their potency and fertility with each other. The matter is mostly left to chance, and as legal marriage cannot usually be dissolved on the ground that there are no offspring, even although procreation is commonly declared to be the chief end of marriage, the question assumes much gravity. The ordinary range of sterility is from seven to fifteen per cent. of all marriages, and in a very large proportion of these it is a source of great concern. This could be avoided, in some measure, by examination before marriage, and almost altogether by ordaining that, as it is only through offspring that a marriage has any concern for the State, a legal marriage could be dissolved, after a certain period, at the will of either of the parties, in the absence of such offspring.

It was formerly supposed that when a union proved infertile, it was the wife who was at fault. That belief is long since exploded, but, even yet, a man is generally far more concerned about his potency, that is, his ability to perform the mechanical act

of coitus, than about his fertility, that is, his ability to produce living spermatozoa, though the latter condition is a much more common source of sterility. "Any man," says Arthur Cooper (_British Medical Journal_, May 11, 1907), "who has any sexual defect or malformation, or who has suffered from any disease or injury of the genito-urinary organs, even though comparatively trivial or one-sided, and although his copulative power may be unimpaired, should be looked upon as possibly sterile, until some sort of evidence to the contrary has been obtained." In case of a sterile marriage, the possible cause should first be investigated in the husband, for it is comparatively easy to examine the semen, and to ascertain if it contains active spermatozoa. Prinzing, in a comprehensive study of sterile marriages ("Die Sterilen Ehen," _Zeitschrift für Sozialwissenschaft_, 1904, Heft 1 and 2), states that in two-fifths of sterile marriages the man is at fault; one-third of such marriages are the result of venereal diseases in the husband himself, or transmitted to the wife. Gonorrhoea is not now considered so important a cause of sterility as it was a few years ago; Schenk makes it responsible for only about thirteen per cent. sterile marriages (cf. Kisch, _The Sexual Life of Woman_). Pinkus (_Archiv für Gynäkologie_, 1907) found that of nearly five hundred cases in which he examined both partners, in 24.4 per cent. cases, the sterility was directly due to the husband, and in 15.8 per cent. cases, indirectly due, because caused by gonorrhoea with which he had infected his wife.

When sterility is due to a defect in the husband's spermatozoa, and is not discovered, as it usually might be, before marriage, the question of impregnating the wife by other methods has occasionally arisen. Divorce on the ground of sterility is not possible, and, even if it were, the couple, although they wish to have a child, have not usually any wish to separate. Under these circumstances, in order to secure the desired end, without departing from widely accepted rules of morality, the attempt is occasionally made to effect artificial fecundation by injecting the semen from a healthy male. Attempts have been made to effect artificial fecundation by various distinguished men, from John Hunter to Schwalbe, but it is nearly always very difficult to effect, and often impossible. This is easy to account for, if we recall what has already been pointed out (_ante_ p. 577) concerning the influence of erotic excitement in the woman in securing conception; it is obviously a serious task for even the most susceptible woman to evoke erotic enthusiasm _à propos_ of a medical syringe. Schwalbe, for instance, records a case (_Deutsche Medizinisches Wochenschrift_, Aug., 1908, p. 510) in which,--in consequence of the husband's sterility and the wife's anxiety, with her husband's consent, to be impregnated by the semen of another man,--he made repeated careful attempts to effect artificial fecundation; these attempts were, however, fruitless, and the three parties concerned finally resigned themselves to the natural method of intercourse, which was successful. In another case, recorded by Schwalbe, in which the husband was impotent but not sterile, six attempts were made to effect artificial fecundation, and further efforts abandoned on account of the disgust of all concerned.

Opinion, on the whole, has been opposed to the practice of artificial fecundation, even apart from the question of the probabilities of success. Thus, in France, where there is a considerable literature on the subject, the Paris Medical Faculty, in 1885,

after some hesitation, refused Gérard's thesis on the history of artificial fecundation, afterwards published independently. In 1883, the Bordeaux legal tribunal declared that artificial fecundation was illegitimate, and a social danger. In 1897, the Holy See also pronounced that the practice is unlawful ("Artificial Fecundation before the Inquisition," _British Medical Journal_, March 5, 1898). Apart, altogether, from this attitude of medicine, law, and Church, it would certainly seem that those who desire offspring would do well, as a rule, to adopt the natural method, which is also the best, or else to abandon to others the task of procreation, for which they are not adequately equipped.

When we have ascertained that two individuals both belong to sound and healthy stocks, and, further, that they are themselves both apt for procreation, it still remains to consider the conditions under which they may best effect procreation.[462] There arises, for instance, the question, often asked, What is the best age for procreation?

The considerations which weigh in answering this question are of two different orders, physiological, and social or moral. That is to say, that it is necessary, on the one hand, that physical maturity should have been fully attained, and the sexual cells completely developed; while, on the other hand, it is necessary that the man shall have become able to support a family, and that both partners shall have received a training in life adequate to undertake the responsibilities and anxieties involved in the rearing of children. While there have been variations at different times, it scarcely appears that, on the whole, the general opinion as to the best age for procreation has greatly varied in Europe during many centuries. Hesiod indeed said that a woman should marry about fifteen and a man about thirty,[463] but obstetricians have usually concluded that, in the interests alike of the parents and their offspring, the procreative life should not begin in women before twenty and in men before twenty-five.[464] After thirty in women and after thirty-five or forty in men it seems probable that the best conditions for procreation begin to decline.[465] At the present time, in England and several other civilized countries, the tendency has been for the age of marriage to fall at an increasingly late age, on the average some years later than that usually fixed as the most favorable age for the commencement of the procreative life. But, on the whole, the average seldom departs widely from the accepted standard, and there seems no good reason why we should desire to modify this general tendency.

At the same time, it by no means follows that wide variations, under special circumstances, may not only be permissible, but desirable. The male is capable of procreating, in some cases, from about the age of thirteen until far beyond eighty, and at this advanced age, the offspring, even if not notable for great physical robustness, may possess high intellectual qualities. (See e.g., Havelock Ellis, _A Study of British Genius_, pp. 120 et seq.) The range of the procreative age in women begins earlier (sometimes at eight), though it usually ceases by fifty, or earlier, in only rare cases continuing to sixty or beyond. Cases have been reported of pregnancy, or childbirth, at the age of fifty-nine (e.g., _Lancet_, Aug. 5, 1905, p. 419). Lepage (_Comptes-rendus Société d'Obstétrique de Paris_, Oct., 1903) reports a case of a primipara of fifty-seven; the child was stillborn. Kisch (_Sexual Life of Woman_, Part

II) refers to cases of pregnancy in elderly women, and various references are given in _British Medical Journal_, Aug. 8, 1903, p. 325.

Of more importance is the question of early pregnancy. Several investigators have devoted their attention to this question. Thus, Spitta (in a Marburg Inaugural Dissertation, 1895) reviewed the clinical history of 260 labors in primiparæ of 18 and under, as observed at the Marburg Maternity. He found that the general health during pregnancy was not below the average of pregnant women, while the mortality of the child at birth and during the following weeks was not high, and the mortality of the mother was by no means high. Picard (in a Paris thesis, 1903) has studied childbirth in thirty-eight mothers below the age of sixteen. He found that, although the pelvis is certainly not yet fully developed in very young girls, the joints and bones are much more yielding than in the adult, so that parturition, far from being more difficult, is usually rapid and easy. The process of labor itself, is essentially normal in these cases, and, even when abnormalities occur (low insertion of the placenta is a common anomaly) it is remarkable that the patients do not suffer from them in the way common among older women. The average weight of the child was three kilogrammes, or about 6 pounds, 9 ounces; it sometimes required special care during the first few days after birth, perhaps because labor in these cases is sometimes slow. The recovery of the mother was, in every case, absolutely normal, and the fact that these young mothers become pregnant again more readily than primiparæ of a more mature age, further contributes to show that childbirth below the age of sixteen is in no way injurious to the mother. Gache (_Annales de Gynécologie et d'Obstétrique_, Dec., 1904) has attended ninety-one labors of mothers under seventeen, in the Rawson Hospital, Buenos Ayres; they were of so-called Latin race, mostly Spanish or Italian. Gache found that these young mothers were by no means more exposed than others to abortion or to other complications of pregnancy. Except in four cases of slightly contracted pelvis, delivery was normal, though rather longer than in older primiparæ. Damage to the soft parts was, however, rare, and, when it occurred, in every case rapidly healed. The average weight of the child was 3,039 grammes, or nearly 6¾ pounds. It may be noted that most observers find that very early pregnancies occur in women who begin to menstruate at an unusually early age, that is, some years before the early pregnancy occurs.

It is clear, however, that young mothers do remarkably well, while there is no doubt whatever that they bear unusually fine infants. Kleinwächter, indeed, found that the younger the mother, the bigger the child. It is not only physically that the children of young mothers are superior. Marro has found (_Pubertà_, p. 257) that the children of mothers under 21 are superior to those of older mothers both in conduct and intelligence, provided the fathers are not too old or too young. The detailed records of individual cases confirm these results, both as regards mother and child. Thus, Milner (_Lancet_, June 7, 1902) records a case of pregnancy in a girl of fourteen; the labor pains were very mild, and delivery was easy. E.B. Wales, of New Jersey, has recorded the history (reproduced in _Medical Reprints_, Sept. 15, 1890) of a colored girl who became pregnant at the age of eleven. She was of medium size, rather tall and slender, but well developed, and began to menstruate at the age of ten. She was in good health and spirits during pregnancy, and able to work. Delivery

was easy and natural, not notably prolonged, and apparently not unduly painful, for there were no moans or agitation. The child was a fine, healthy boy, weighing not less than eleven pounds. Mother and child both did well, and there was a great flow of milk. Whiteside Robertson (_British Medical Journal_, Jan. 18, 1902) has recorded a case of pregnancy at the age of thirteen, in a Colonial girl of British origin in Cape Colony, which is notable from other points of view. During pregnancy, she was anæmic, and appeared to be of poor development and doubtfully normal pelvic conformation. Yet delivery took place naturally, at full term, without difficulty or injury, and the lying-in period was in every way satisfactory. The baby was well-proportioned, and weighed 7½ pounds. "I have rarely seen a primipara enjoy easier labor," concluded Robertson, "and I have never seen one look forward to the happy realization of motherhood with greater satisfaction."

The facts brought forward by obstetricians concerning the good results of early pregnancy, as regards both mother and child, have not yet received the attention they deserve. They are, however, confirmed by many general tendencies which are now fairly well recognized. The significant fact is known, for instance, that in mothers over thirty, the proportion of abortions and miscarriages is twice as great as in mothers between the ages of fifteen and twenty, who also are superior in this respect to mothers between the ages of twenty and thirty (_Statistischer Jahrbuch_, Budapest, 1905). It was, again, proved by Matthews Duncan, in his Goulstonian lecture, that the chances of sterility in a woman increase with increase of age. It has, further, been shown (Kisch, _Sexual Life of Woman_, Part II) that the older a woman at marriage, the greater the average interval before the first delivery, a tendency which seems to indicate that it is the very young woman who is in the condition most apt for procreation; Kisch is not, indeed, inclined to think that this applies to women below twenty, but the fact, observed by other obstetricians, that mothers under eighteen tend to become pregnant again at an unusually short interval, goes far to neutralize the exception made by Kisch. It may also be pointed out that, among children of very young mothers, the sexes are more nearly equal in number than is the case with older mothers. This would seem to indicate that we are here in presence of a normal equilibrium which will decrease as the age of the mother is progressively disturbed in an abnormal direction.

The facility of parturition at an early age, it may be noted, corresponds to an equal facility in physical sexual intercourse, a fact that is often overlooked. In Russia, where marriage still takes place early, it was formerly common when the woman was only twelve or thirteen, and Guttceit (_Dreissig Jahre Praxis_, vol. i, p. 324) says that he was assured by women who married at this age that the first coitus presented no especial difficulties.

There is undoubtedly, at the present time, a considerable amount of prejudice against early motherhood. In part, this is due to a failure to realize that women are sexually much more precocious than men, physically as well as psychically (see _ante_ p. 35). The difference is about five years. This difference has been virtually recognized for thousands of years, in the ancient belief that the age of election for procreation is about twenty, or less, for women, but about twenty-five for men; and it

has more lately been affirmed by the discovery that, while the male is never capable of generation before thirteen, the female may, in occasional instances, become pregnant at eight. (Some of the recorded examples are quoted by Kisch.) In part, also, there is an objection to the assumption of responsibilities so serious as those of motherhood by a young girl, and there is the very reasonable feeling that the obligations of a permanent marriage tie ought not to be undertaken at an early age. On the other hand, apart from the physical advantages, as regards both mother and infant, on the side of early pregnancies, it is an advantage for the child to have a young mother, who can devote herself sympathetically and unreservedly to its interests, instead of presenting the pathetic spectacle we so often witness in the middle-aged woman who turns to motherhood when her youth and mental flexibility are gone, and her habits and tastes have settled into other grooves; it has sometimes been a great blessing even to the very greatest men, like Goethe, to have had a youthful mother. It would also, in many cases, be a great advantage for the woman herself if she could bring her procreative life to an end well before the age of twenty-five, so that she could then, unhampered by child-bearing and mature in experience, be free to enter on such wider activities in the world as she might be fitted for.

Such an arrangement of the procreative life of women would, obviously, only be a variation, and would probably be unsuited for the majority. Every case must be judged on its own merits. The best age for procreation will probably continue to be regarded as being, for most women, around the age of twenty. But at a time like the present, when there is an unfortunate tendency for motherhood to be unduly delayed, it becomes necessary to insist on the advantages, in many cases, of early motherhood.

There are other conditions favorable or unfavorable to procreation which it is now unnecessary to discuss in detail, since they have already been incidentally dealt with in previous volumes of these _Studies_. There is, for instance, the question of the time of year and the time of the menstrual cycle which may most properly be selected for procreation.[466] The best period is probably that when sexual desire is strongest, which is the period when conception would appear, as a matter of fact, most often to occur. This would be in spring or early summer,[467] and immediately after (or shortly before) the menstrual period. The Chinese have observed that the last day of menstruation and the two following days--corresponding to the period of oestrus--constitute the most favorable time for fecundation, and Bossi, of Genoa, has found that the great majority of successes in both natural and artificial fecundation occur at this period.[468] Soranus, as well as the Talmud, assigned the period about menstruation as the best for impregnation, and Susruta, the Indian physician, said that at this time pregnancy most readily occurs because then the mouth of the womb is open, like the flower of the water-lily to the sunshine.

We have now at last reached the point from which we started, the moment of conception, and the child again lies in its mother's womb. There remains no more to be said. The divine cycle of life is completed.

FOOTNOTES:

[421] Spencer and Gillen, _Northern Tribes of Central Australia_, p. 330.

[422] Academy of Medicine of Paris, March 31, 1908.

[423] _The Origin and Development of the Moral Ideas_, vol. ii, p. 405.

[424] _Population and Progress_, p. 41.

[425] Cf. Reibmayr, _Entwicklungsgeschichte des Talentes und Genics_, Bd. II, p. 31.

[426] "The debt that we owe to those who have gone before us," says Haycraft (_Darwinism and Race Progress_, p. 160), "we can only repay to those who come after us."

[427] Mardrus, _Les Mille Nuits_, vol. xvi, p. 158.

[428] Sidney Webb, _Popular Science Monthly_, 1906, p. 526 (previously published in the _London Times_, Oct. 11, 16, 1906). In Ch. IX of the present volume it has already been necessary to discuss the meaning of the term, "morality."

[429] Thus, in Paris, in 1906, in the rich quarters, the birthrate per 1,000 inhabitants was 19.09; in well-to-do quarters, 22.51; and in poor quarters, 29.70. Here we see that, while the birthrate falls and rises with social class, even among the poor and least restrained class the birthrate is still but little above the general average for England, where prevention is widespread, and very considerably lower than the average (now rapidly falling) in Germany. It is evident that even among the poor class there is a process of leveling up to the higher classes in this matter.

[430] I have developed these points more in detail in two articles in the _Independent Review_, November, 1903, and April, 1904. See also, Bushee, "The Declining Birthrate and Its Causes," _Popular Science Monthly_, Aug., 1903.

[431] Francis Place, _Illustrations and Proofs of the Principle of Population_, 1822, p. 165.

[432] See, e.g., a weighty chapter in the _Sexualleben und Nervenleiden_ of Löwenfeld, one of the most judicious authorities on sexual pathology. Twenty-five years ago, as many will remember, the medical student was usually taught that preventive methods of intercourse led to all sorts of serious results. At that time, however, reckless and undesirable methods of prevention seem to have been more prevalent than now.

[433] Michael Ryan, _Philosophy of Marriage_, p. 9. To enable "the conservative power of the Creator" to exert itself on the myriads of germinal human beings secreted during his life-time by even one man, would require a world full of women, while the corresponding problem as regards a woman is altogether too difficult to cope with. The process by which life has been built up, far from being a process of universal conservation, has been a process of stringent selection and vast destruction; the progress effected by civilization merely lies in making this blind process intelligent.

[434] Thus, in Belgium, in 1908 (_Sexual-Probleme_, Feb., 1909, p. 136), a physician (Dr. Mascaux) who had been prominent in promoting a knowledge of preventive methods of conception, was condemned to three months imprisonment for "offense against morality!" In such a case, Dr. Helene Stöcker comments (_Die Neue Generation_, Jan., 1909, p. 7), "morality" is another name for ignorance, timidity, hypocrisy, prudery, coarseness, and lack of conscience. It must be remembered, however, in explanation of this iniquitous judgment, that for some years past the clerical party has been politically predominant in Belgium.

[435] It has been objected that the condom cannot be used by the very poorest, on account of its cost, but Hans Ferdy, in a detailed paper (_Sexual-Probleme_, Dec., 1908), shows that the use of the condom can be brought within the means of the very poorest, if care is taken to preserve it under water when not in use. Nyström (_Sexual Probleme_, Nov., 1908, p. 736) has issued a leaflet for the benefit of his patients and others, recommending the condom, and explaining its use.

[436] Thus, Kisch, in his _Sexual Life of Woman_, after discussing fully the various methods of prevention, decides in favor of the condom. Fürbringer similarly (Senator and Kaminer, _Health and Disease in Relation to Marriage_, vol. i, pp. 232 et seq.) concludes that the condom is "relatively the most perfect anti-conceptual remedy." Forel (_Die Sexuelle Frage_, pp. 457 et seq.) also discusses the question at length; any æsthetic objection to the condom, Forel adds (p. 544), is due to the fact that we are not accustomed to it; "eye-glasses are not specially æsthetic, but the poetry of life does not suffer excessively from their use, which, in many cases, cannot be dispensed with."

[437] _L'Avortement_, p. 43.

[438] There are some disputed points in Roman law and practice concerning abortion; they are discussed in Balestrini's valuable book, _Aborto_, pp. 30 et seq.

[439] Augustine, _De Civitate Dei_, Bk. XXII, Ch. XIII.

[440] The development of opinion and law concerning abortion has been traced by Eugène Bausset, _L'Avortement Criminel_, Thèse de Paris, 1907. For a summary of the practices of different peoples regarding abortion, see W.G. Sumner, _Folkways_, Ch. VIII.

[441] _Die Neue Generation_, May, 1908, p. 192. It may be added that in England the attachment of any penalty at all to abortion, practiced in the early months of pregnancy (before "quickening" has taken place), is merely a modern innovation.

[442] Even Balestrini, who is opposed to the punishment of abortion, is no advocate of it. "Whenever abortion becomes a social custom," he remarks (op. cit., p. 191), "it is the external manifestation of a people's decadence, and far too deeply rooted to be cured by the mere attempt to suppress the external manifestation."

[443] Cf. Ellen Key, _Century of the Child_, Ch. I. Hirth (_Wege zur Heimat_, p. 526) is likewise opposed to the encouragement of abortion, though he would not actually punish the pregnant woman who induces abortion. I would especially call attention to an able and cogent article by Anna Pappritz ("Die Vernichtung des

Keimenden Lebens," _Sexual-Probleme_, July, 1909) who argues that the woman is not the sole guardian of the embryo she bears, and that it is not in the interests of society, nor even in her own interests, that she should be free to destroy it at will. Anna Pappritz admits that the present barbarous laws in regard to abortion must be modified, but maintains that they should not be abolished. She proposes (1) a greatly reduced punishment for abortion; (2) this punishment to be extended to the father, whether married or unmarried (a provision already carried out in Norway, both for abortion and infanticide); (3) permission to the physician to effect abortion when there is good reason to suspect hereditary degeneration, as well as when the woman has been impregnated by force.

[444] Cf. Dr. Max Hirsch, _Sexual-Probleme_, Jan., 1908, p. 23.

[445] Bausset (op. cit.) sets forth various social measures for the care of pregnant and child-bearing women, which would tend to lessen criminal abortion.

[446] Gomperz, _Greek Thinkers_, vol. i, p. 564.

[447] F.E. Daniel, President of the State Medical Association of Texas, "Should Insane Criminals or Sexual Perverts be Allowed to Procreate?" _Medico-legal Journal_, Dec., 1893; id., "The Cause and Prevention of Rape," _Texas Medical Journal_, May, 1904.

[448] P. Näcke, "Die Kastration bei gewissen Klassen von Degenerirten als ein Wirksamer Socialer Schutz," _Archiv für Kriminal-Anthropologie_, Bd. III, 1899, p. 58; id. "Kastration in Gewissen Fällen von Geisteskrankheit," _Psychiatrisch-Neurologische Wochenschrift_, 1905, No. 29.

[449] Angelo Zuccarelli, "Asessualizzazione o sterilizzazione dei Degenerati," _L'Anomalo_, 1898-99, No. 6; id., "Sur la nécessité et sur les Moyens d'empêcher la Réproduction des Hommes les plus Dégénérés," International Congress Criminal Anthropology, Amsterdam, 1901.

[450] Näcke, _Neurologisches Centralblatt_, March 1, 1909. The original account of these operations is reproduced in the _Psychiatrisch-Neurologische Wochenschrift_, No. 2, 1909, with an approving comment by the editor, Dr. Bresler. As regards castration in America, see Flood, "Castration of Idiot Children," _American Journal Psychology_, Jan., 1899; also, _Alienist and Neurologist_, Aug., 1909, p. 348.

[451] It is probable that castration may prove especially advantageous in the case of the feeble-minded. "In Somersetshire," says Tredgold ("The Feeble-Mind as a Social Danger," _Eugenics Review_, July, 1909), "I found that out of a total number of 167 feeble-minded women, nearly two-fifths (61) had given birth to children, for the most part illegitimate. Moreover, it is not uncommon, but, rather the rule, for these poor girls to be admitted into the workhouse maternity wards again and again, and the average number of offspring to each one of them is probably three or four, although even six is not uncommon." In his work on _Mental Deficiency_ (pp. 288-292) the same author shows that propagation by the mentally deficient is, in England, "both a terrible and extensive evil."

[452] This example is brought forward by Ledermann, "Skin Diseases and Marriage," in Senator and Kaminer, _Health and Disease in Relation to Marriage_.

[453] I may here again refer to Lea's instructive _History of Sacerdotal Celibacy_.

[454] In England, 35,000 applicants for admission to the navy are annually rejected, and although the physical requirements for enlistment in the army are nowadays extremely moderate, it is estimated by General Maurice that at least sixty per cent. of recruits and would-be recruits are dismissed as unfit. (See e.g., William Coates, "The Duty of the Medical Profession in the Prevention of National Deterioration," _British Medical Journal_, May 1, 1909.) It can scarcely be claimed that men who are not good enough for the army are good enough for the great task of creating the future race.

[455] The recognition of epilepsy as a bar to procreation is not recent. There is said to be a record in the archives of the town of Luçon in which epilepsy was adjudged to be a valid reason for the cancellation of a betrothal (_British Medical Journal_, Feb. 14, 1903, p. 383).

[456] _British Medical Journal_, April 14, 1906. In California and some other States, it appears that deceit regarding health is a ground for the annulment of marriage.

[457] Sir F. Galton, _Inquiries Into Human Faculty_, Everyman's Library edition, pp. 211 et seq.; cf. Galton's collected _Essays in Eugenics_, recently published by the Eugenics Education Society.

[458] For some account of the methods and results of the work in schools, see Bertram C.A. Windle, "Anthropometric Work in Schools," _Medical Magazine_, Feb., 1894.

[459] The most notable steps in this direction have been taken in Germany. For an account of the experiment at Karlsruhe, see _Die Neue Generation_, Dec., 1908.

[460] Wiethknudsen (as quoted in _Sexual-Probleme_, Dec., 1908, p. 837) speaks strongly, but not too strongly, concerning the folly of any indiscriminate endowment of procreation.

[461] On the scientific side, in addition to the fruitful methods of statistical biometrics, which have already been mentioned, much promise attaches to work along the lines initiated by Mendel; see W. Bateson, _Mendel's Principles of Heredity_, 1909; also, W.H. Lock, _Recent Progress in the Study of Variation, Heredity, and Evolution_, and R.C. Punnett, _Mendelism_, 1907 (American edition, with interesting preface by Gaylord Wilshire, from the Socialistic point of view, 1909).

[462] The study of the right conditions for procreation is very ancient. In modern times we find that even the very first French medical book in the vulgar tongue, the _Régime du Corps_, written by Alebrand of Florence (who was physician to the King of France), in 1256, is largely devoted to this matter, concerning which it gives much sound advice. See J.B. Soalhat, _Les Idées de Maistre Alebrand de Florence sur la

Puériculture_, Thèse de Paris, 1908.

[463] Hesiod, _Works and Days_, II, 690-700.

[464] This has long been the accepted opinion of medical authorities, as may be judged by the statements brought together two centuries ago by Schurig, _Parthenologia_, pp. 22-25.

[465] The statement that, on the average, the best age for procreation in men is before, rather than after, forty, by no means assumes the existence of any "critical" age in men analogous to the menopause in women. This is sometimes asserted, but there is no agreement in regard to it. Restif de la Bretonne (_Monsieur Nicolas_, vol. x, p. 176) said that at the age of forty delicacy of sentiment begins to go. Fürbringer believes (Senator and Kaminer, _Health and Disease in Relation to Marriage_, vol. i, p. 222) that there is a decisive turn in a man's life in the sixth decade, or the middle of the fifth, when desire and potency diminish. J.F. Sutherland also states (_Comptes-rendus Congrès International de Médecine_, 1900, Section de Psychiatrie, p. 471) that there is, in men, about the fifty-fifth year, a change analogous to the menopause in women, but only in a certain proportion of men. It would appear that in most men the decline of sexual feeling and potency is very gradual, and at first manifests itself in increased power of control.

[466] See, in vol. i, the study of "The Phenomena of Sexual Periodicity."

[467] Among animals, also, spring litters are often said to be the best.

[468] Bossi's results are summarized in _Archives d'Anthropologie Criminelle_, Sept., 1891. Alebrand of Florence, the French King's physician in the thirteenth century, also advised intercourse a day after the end of menstruation.

POSTSCRIPT.

"The work that I was born to do is done," a great poet wrote when at last he had completed his task. And although I am not entitled to sing any _Nunc dimittis_, I am well aware that the task that has occupied the best part of my life can have left few years and little strength for any work that comes after. It is more than thirty years ago since the first resolve to write the work now here concluded began to shape itself, still dimly though insistently; the period of study and preparation occupied over fifteen years, ending with the publication of _Man and Woman_, put forward as a prolegomenon to the main work which, in the writing and publication, has occupied the fifteen subsequent years.

It was perhaps fortunate for my peace that I failed at the outset to foresee all the perils that beset my path. I knew indeed that those who investigate severely and intimately any subject which men are accustomed to pass by on the other side lay themselves open to misunderstanding and even obloquy. But I supposed that a secluded student who approached vital social problems with precaution, making no direct appeal to the general public, but only to the public's teachers, and who wrapped up the results of his inquiries in technically written volumes open to few, I supposed that such a student was at all events secure from any gross form of attack on the part of the police or the government under whose protection he imagined that

he lived. That proved to be a mistake. When only one volume of these _Studies_ had been written and published in England, a prosecution, instigated by the government, put an end to the sale of that volume in England, and led me to resolve that the subsequent volumes should not be published in my own country. I do not complain. I am grateful for the early and generous sympathy with which my work was received in Germany and the United States, and I recognize that it has had a wider circulation, both in English and the other chief languages of the world, than would have been possible by the modest method of issue which the government of my own country induced me to abandon. Nor has the effort to crush my work resulted in any change in that work by so much as a single word. With help, or without it, I have followed my own path to the end.

For it so happens that I come on both sides of my house from stocks of Englishmen who, nearly three hundred years ago, had encountered just these same difficulties and dangers before. In the seventeenth century, indeed, the battle was around the problem of religion, as to-day it is around the problem of sex. Since I have of late years realized this analogy I have often thought of certain admirable and obscure men who were driven out, robbed, and persecuted, some by the Church because the spirit of Puritanism moved within them, some by the Puritans because they clung to the ideals of the Church, yet both alike quiet and unflinching, both alike fighting for causes of freedom or of order in a field which has now for ever been won. That victory has often seemed of good augury to the perhaps degenerate child of these men who has to-day sought to maintain the causes of freedom and of order in another field.

It sometimes seems, indeed, a hopeless task to move the pressure of inert prejudices which are at no point so obstinate as this of sex. It may help to restore the serenity of our optimism if we would more clearly realize that in a very few generations all these prejudices will have perished and be forgotten. He who follows in the steps of Nature after a law that was not made by man, and is above and beyond man, has time as well as eternity on his side, and can afford to be both patient and fearless. Men die, but the ideas they seek to kill live. Our books may be thrown to the flames, but in the next generation those flames become human souls. The transformation is effected by the doctor in his consulting room, by the teacher in the school, the preacher in the pulpit, the journalist in the press. It is a transformation that is going on, slowly but surely, around us.

I am well aware that many will not feel able to accept the estimate of the sexual situation as here set forth, more especially in the final volume. Some will consider that estimate too conservative, others too revolutionary. For there are always some who passionately seek to hold fast to the past; there are always others who passionately seek to snatch at what they imagine to be the future. But the wise man, standing midway between both parties and sympathizing with each, knows that we are ever in the stage of transition. The present is in every age merely the shifting point at which past and future meet, and we can have no quarrel with either. There can be no world without traditions; neither can there be any life without movement. As Heracleitus knew at the outset of modern philosophy, we cannot bathe twice in the same stream, though, as we know to-day, the stream still flows in an unending circle.

There is never a moment when the new dawn is not breaking over the earth, and never a moment when the sunset ceases to die. It is well to greet serenely even the first glimmer of the dawn when we see it, not hastening towards it with undue speed, nor leaving the sunset without gratitude for the dying light that once was dawn.

In the moral world we are ourselves the light-bearers, and the cosmic process is in us made flesh. For a brief space it is granted to us, if we will, to enlighten the darkness that surrounds our path. As in the ancient torch-race, which seemed to Lucretius to be the symbol of all life, we press forward torch in hand along the course. Soon from behind comes the runner who will outpace us. All our skill lies in giving into his hand the living torch, bright and unflickering, as we ourselves disappear in the darkness.

HAVELOCK ELLIS.

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